

CASES DECIDED

IN THE

COURT OF APPEALS

OF THE

STATE OF NEW YORK

[229 NE3d 1120, 206 NYS3d 227]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LANCE
RODRIGUEZ, Appellant.

Argued November 16, 2022; reargued October 18, 2023; decided November 21, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 19, 2021. The Appellate Division, upon remittitur from the Court of Appeals (op 36 NY3d 1013 [2020]), affirmed a judgment of the Supreme Court, Queens County (Ira H. Margulis, J., at suppression; Joseph A. Zayas, J., at plea and sentencing), which had convicted defendant, upon a plea of guilty, of attempted criminal possession of a weapon in the second degree.

People v Rodriguez, 194 AD3d 968, reversed.

HEADNOTES

Crimes — Unlawful Search and Seizure — Police Stop of Bicyclist — Reasonable Suspicion or Probable Cause Required

1. The police stop of a bicyclist is a seizure under the Federal and State Constitutions requiring reasonable suspicion of a criminal offense or probable cause of a Vehicle and Traffic Law violation. Like an automobile stop, a bicycle stop is a traffic stop that involves a show of governmental authority and triggers anxiety in the individual in a manner that implicates social expectations regarding how reasonable people react to such authority. Whether an individual is driving a car or riding a bike, a police order to stop requires them to halt their momentum based on the expectation that any at-

tempt to leave the scene would be so obviously likely to prompt an objection from the officer that no bicyclist would feel free to leave in the first place. Bicycle stops also implicate the right to be let alone and to refuse to respond to police inquiry, a constitutional right that would be rendered meaningless for bicyclists if the rider's compliance with a police request to stop were regarded as anything other than a full-blown seizure. Moreover, the Vehicle and Traffic Law subjects bicyclists to the same rules of the road as those applicable to automobiles and regulates pedestrians in a more limited fashion. In every relevant, legally-significant way, bicycles are similar to cars for purposes of a police encounter.

Crimes — Unlawful Search and Seizure — Police Stop of Bicyclist

2. In defendant's prosecution for criminally possessing a loaded gun recovered from his waistband after police observed him riding his bicycle in a "somewhat reckless" fashion and holding "something" that was "bulky" with his left hand over his pants, Supreme Court should have suppressed the gun as the product of an impermissible stop because the officers lacked reasonable suspicion of criminal activity or probable cause that defendant had violated the rules of the road while riding his bicycle. Although the officer vaguely commented during the suppression hearing that defendant was riding "in a somewhat reckless manner," he did not testify that he suspected a Vehicle and Traffic Law violation, let alone that he had probable cause of one. Instead, the officer testified that the primary motivation for the stop was that defendant was "holding an object in his waistband," but admitted that he did not know what the "object" was, except that it was "bulky." That observation fell well short of establishing reasonable suspicion of criminality. At no point before the stop did the officers suspect defendant was carrying contraband, and they were "caught . . . off guard" after the stop when defendant admitted that he was carrying a gun.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Evidence § 595; AM JUR 2d Searches and Seizures §§ 81–86.

CARMODY-WAIT 2d Search and Seizure §§ 173:265, 173:266; CARMODY-WAIT 2d Pretrial Motions §§ 189:263, 189:281.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 3.3, 3.7.

NY JUR 2d Criminal Law: Procedure §§ 457, 465, 466, 498, 1648, 1656.

ANNOTATION REFERENCE

See ALR Index under Bicycles; Exclusion of Evidence; Probable Cause; Search and Seizure; Stop and Frisk.

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Query: bicycle /4 stop! /p police & "reasonable suspicion"

POINTS OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (Hannah Kon and David L. Goodwin of counsel), for appellant. The police investigative stop of Lance Rodriguez, a moving bicyclist on a public road, was a *People v De Bour* (40 NY2d 210 [1976]) level three seizure requiring reasonable suspicion of criminality, and because that was lacking, the fruits of the unlawful stop must be suppressed. (*People v Hinshaw*, 35 NY3d 427; *People v Garcia*, 20 NY3d 317; *People v Hollman*, 79 NY2d 181; *People v Cantor*, 36 NY2d 106; *People v Bora*, 83 NY2d 531; *California v Hodari D.*, 499 US 621; *People v Spencer*, 84 NY2d 749; *People v Sobotker*, 43 NY2d 559; *People v Ingle*, 36 NY2d 413; *Delaware v Prouse*, 440 US 648.)

Melinda Katz, District Attorney, Kew Gardens (Mariana Zelig and John M. Castellano of counsel), for respondent. The Appellate Division's decision, affirming the lower court's determination that the police officer's stop of defendant was proper under level two of *People v De Bour* (40 NY2d 210 [1976]), was amply supported by the record, and, as a mixed question of law and fact, is beyond further review. (*People v Bora*, 83 NY2d 531; *People v Porter*, 9 NY3d 966; *People v Shabazz*, 99 NY2d 634; *People v Scott*, 86 NY2d 864; *People v Harrison*, 57 NY2d 470; *People v Morales*, 42 NY2d 129; *People v Damiano*, 87 NY2d 477; *People v Williams*, 17 NY3d 834; *People v Garcia*, 20 NY3d 317.)

White & Case LLP, New York City (B. Cameron Brewer, Stefan Mentzer, Renata Rogers de Castilho, Joshua J. Howard and Tripp Odom of counsel), for Alice Ristroph and others, amicus curiae. I. Under federal and New York law, a police command to stop, followed by submission, is a seizure. (*People v Cantor*, 36 NY2d 106; *Landsman v Village of Hancock*, 296 AD2d 728; *People v Bora*, 83 NY2d 531; *People v Ocasio*, 85 NY2d 982; *People v Carrasquillo*, 54 NY2d 248; *People v Martinez*, 80 NY2d 444; *Floyd v City of New York*, 959 F Supp 2d 540; *Florida v Bostick*, 501 US 429; *United States v Glover*, 957 F2d 1004; *California v Hodari D.*, 499 US 621.) II. The decision below is based on a misreading of state law that ultimately provides less protection to the defendant than federal law. (*People v Feliciano*, 140 AD3d 1776; *People v Rainey*, 122 AD3d 1314; *People v De Bour*, 40 NY2d 210.) III. New York courts should not endorse the view that reasonable persons should sometimes feel free to disregard police commands. (*Graham v*

Connor, 490 US 386; *Vizzari v Hernandez*, 1 AD3d 431; *People v Price*, 112 AD3d 1345.) IV. New York law should not deny constitutional protections to cyclists who reasonably interpret police conduct as a command to stop. (*People v Baez*, 95 AD3d 654; *Brendlin v California*, 551 US 249; *Berkemer v McCarty*, 468 US 420; *People v Spencer*, 84 NY2d 749; *People v Sobotker*, 43 NY2d 559; *United States v Brignoni-Ponce*, 422 US 873; *Delaware v Prouse*, 440 US 648; *United States v Cortez*, 449 US 411; *Gilles v Repicky*, 511 F3d 239.)

New York Civil Liberties Union Foundation, New York City (*Daniel R. Lambright*, *Molly Biklen* and *Christopher T. Dunn* of counsel), for Transportation Alternatives and others, amici curiae. I. Requiring a lower constitutional standard for cyclists will increase rampant racial profiling of black and brown cyclists by the police. (*People v De Bour*, 40 NY2d 210; *Floyd v City of New York*, 959 F Supp 2d 540; *Ligon v City of New York*, 925 F Supp 2d 478; *People v Brannon*, 16 NY3d 596.) II. Allowing police officers to pull over and stop cyclists without reasonable suspicion risks alienating communities of color from participating in biking. III. Police stops of moving bicycles significantly interfere with cyclists' freedom of movement and therefore constitute seizures requiring reasonable suspicion. (*People v Sobotker*, 43 NY2d 559; *People v Hinshaw*, 35 NY3d 427; *People v Spencer*, 84 NY2d 749; *People v Bora*, 83 NY2d 531; *People v Cantor*, 36 NY2d 106; *California v Hodari D.*, 499 US 621; *Brendlin v California*, 551 US 249; *Berkemer v McCarty*, 468 US 420; *People v De Bour*, 40 NY2d 210.)

The Legal Aid Society, New York City (*Corey Stoughton*, *Philip Desgranges* and *Sungso Lee* of counsel), for The Legal Aid Society, amicus curiae. I. A rule that police can stop a moving cyclist only if they have reasonable suspicion of criminal activity creates safer streets, particularly for low-income cyclists. II. New York's Vehicle and Traffic Law supports a rule that police may only conduct bicycle stops on the roadway if they have reasonable suspicion.

OPINION OF THE COURT

RIVERA, J.

Late one winter evening, defendant was riding his bicycle down a road in Queens, New York, when several New York City Police Department officers drove alongside him and twice asked him to stop. Defendant complied and, in response to an

officer's inquiry, acknowledged that he was carrying a gun which turned out to be loaded. Afterwards, he pleaded guilty to a weapons charge. The question presented on this appeal is whether the officers violated the Federal and State Constitutions when they stopped defendant. We conclude that they did and hold that police interference with a bicyclist is a seizure requiring reasonable suspicion of a criminal offense or probable cause of a Vehicle and Traffic Law violation.

I.

Defendant was indicted on several weapons counts based on allegations that, after the police stopped him on his bicycle, he admitted he was carrying a loaded firearm in his waistband, which the police recovered. Defendant moved to suppress the gun and his statements as products of an unlawful seizure.

During the suppression hearing, one of the officers testified that he and two other officers were patrolling in an unmarked police cruiser in Queens. At some point, the officers turned onto a two-way road running north-south when they saw defendant—who he described as “a male Hispanic”—roughly 20 to 25 yards away riding south on a beach-cruiser bicycle. Defendant was wearing sweatpants, a puffy “snorkel” jacket, and a hat. The road did not have a center-lane divider or a bike lane, and cars could park legally on its east side.

Three details drew the officers' attention to defendant. First, defendant was riding the bicycle down the middle of the road in a “somewhat reckless” fashion in that “two or three cars” had to “stop so they didn't hit him or go around him,” although the officer acknowledged that the defendant was not charged with any traffic infractions. Second, defendant had only his right hand on the handlebars. And third, defendant was “favoring his waistband” and holding “something” with his left hand over his pants. The officer did not know what the “object” was except that it was “bulky.”

The officers followed the defendant with one vehicle between their patrol car and the defendant's bicycle. Less than a minute later and shortly before the defendant reached an intersection, the officers pulled alongside the defendant and either “said” or “yelled out” “Police, stop” or “Hold up, police.” Defendant did not stop right away, so the officers continued following him and “commanded” him to stop a second time, yelling “even louder” either “stop the bicycle, police” or “[h]old up, police.” Defendant then turned right onto a side street and stopped his bike.

The officers pulled alongside defendant. Defendant straddled the bike next to the testifying officer's passenger-side door. Through the open car window, the officer identified himself as police and asked the defendant if he had "anything on him" and the defendant answered he did. The officer was "caught . . . off guard" and repeated his question, and the defendant confirmed that he was carrying something. The officer then asked defendant to "step back" so that he could exit the car, at which point he repeated his question. Defendant responded that he had a "gun in [his] waistband."¹ The officer restrained defendant while his sergeant recovered a gun. The gun was loaded with eight rounds and its chamber was empty. The officers then arrested defendant.

Supreme Court denied suppression, concluding that defendant had not been seized and that the officers' observations provided "founded suspicion" for the stop (*People v De Bour*, 40 NY2d 210, 223 [1976]).² Defendant subsequently waived his right to appeal, pleaded guilty to a reduced count and was sentenced to two years' incarceration and 1½ years of post-release supervision.

The Appellate Division affirmed based on the appeal waiver (176 AD3d 1111 [2d Dept 2019]), but we reversed after concluding the waiver was "invalid and unenforceable" (*People v Bisoño*, 36 NY3d 1013, 1017-1018 [2020]). On remittitur, the Appellate Division again affirmed, concluding that an officer's encounter with a bicyclist is subject to *De Bour* analysis and that the officers here had engaged in a justified common-law inquiry when they stopped defendant (194 AD3d 968 [2d Dept 2021]). We now reverse and make clear that, like a stop of a motor vehicle, a stop of a bicyclist is a seizure under both the Federal and State Constitutions.

II.

Both the Fourth Amendment to the United States Constitution and article I, § 12 of the New York Constitution prohibit

1. Defendant testified, in direct contradiction to the officer, that: (1) an officer exited the front passenger door of the patrol car and immediately began patting him down while asking whether he was carrying anything; and (2) defendant never admitted that he was carrying a gun.

2. The court also denied a separate branch of defendant's motion to suppress his roadside admissions that he was carrying a gun as the fruits of a *Miranda* violation, reasoning that temporarily-detained individuals are not in custody for *Miranda* purposes (see generally *Miranda v Arizona*, 384 US 436 [1966]). This branch of defendant's motion is not at issue in this appeal.

“unreasonable searches and seizures” (US Const Amend IV; NY Const, art I, § 12). Under the Fourth Amendment, “a person is seized only when, by means of physical force or a show of authority, [their] freedom of movement is restrained” and, to determine this, courts examine “all of the circumstances surrounding the incident” and ask whether “a reasonable person would have believed that [they were] not free to leave” (*United States v Mendenhall*, 446 US 544, 553-554 [1980] [internal quotation marks omitted]). Applied to police pursuits, the police seize an individual under the Federal Constitution only once the individual either submits to police authority or, if the individual does not submit, is subdued by force (*California v Hodari D.*, 499 US 621, 626-628 [1991]). “The Fourth Amendment permits brief investigative stops . . . when a law enforcement officer has a particularized and objective basis for suspecting the particular person stopped of criminal activity” (*Prado Navarette v California*, 572 US 393, 396-397 [2014] [internal quotation marks omitted]; *Terry v Ohio*, 392 US 1, 21-22 [1968]). A stop is thus constitutional where there exists “reasonable suspicion” of criminal activity based on “the totality of the circumstances” (*Navarette*, 572 US at 397 [internal quotation marks omitted]).

However, federal law draws a bright line for traffic stops. Under the Fourth Amendment, “stopping an automobile and detaining its occupants constitute[s] a seizure” because, as the Supreme Court has explained, automobile stops “generally entail law enforcement officers signaling a moving automobile to pull over to the side of the roadway, by means of a possibly unsettling show of authority” that “may create substantial anxiety” (*Delaware v Prouse*, 440 US 648, 653, 657 [1979] [internal quotation marks omitted]). These realities have given rise to “a societal expectation” that a police officer’s order to pull a car over is an “unquestioned police command” (*Brendlin v California*, 551 US 249, 258 [2007] [brackets omitted]).

The Court has reached similar conclusions under our State’s Constitution and the common law (*People v Hollman*, 79 NY2d 181, 195 [1992]), which, the Court has said, enshrine the individual’s “right to be let alone and refuse to respond to police inquiry” (*People v Holmes*, 81 NY2d 1056, 1058 [1993] [internal quotation marks omitted]; see also *People v May*, 81 NY2d 725,

728 [1992]).³ Applying these principles in the automobile-stop context, the Court has concluded that diversion of an automobile from the flow of traffic “is a seizure implicating constitutional limitations” (*People v Spencer*, 84 NY2d 749, 752 [1995]), even if the automobile is temporarily stopped at a stop sign (*People v Sobotker*, 43 NY2d 559, 562-564 [1978]) and even if “the purpose of the stop is limited and the resulting detention quite brief” (*Spencer*, 84 NY2d at 752, quoting *Prouse*, 440 US at 653).⁴ In New York, such seizures “are lawful only when based on probable cause that a driver has committed a traffic violation” or “when based on a reasonable suspicion that the driver or occupants of the vehicle have committed, are committing, or are about to commit a crime” (*People v Hinshaw*, 35 NY3d 427, 430 [2020] [internal quotation marks and citations omitted]).

[1] Like an automobile stop, a bicycle stop is a traffic stop that involves a show of governmental authority (*see Prouse*, 440 US at 657), and triggers “anxiety” in the individual (*id.*) in a manner that implicates the same social expectations regarding how reasonable people react to such authority (*see Brendlin*, 551 US at 258). Whether an individual is driving a car or riding a bike, a police order to stop requires them to halt their momentum based on the expectation that any “attempt to leave the scene would be so obviously likely to prompt an objection from the officer that” no bicyclist “would feel free to leave in the first place” (*id.* at 257). Bicycle stops also implicate, in a similar manner to automobile stops, the “right to be let alone and to refuse to respond to police inquiry” (*May*, 81 NY2d at 728 [internal quotation marks omitted]), a constitutional right that would be rendered meaningless for bicyclists if we were to regard the rider’s compliance with a police request to stop as anything other than a full-blown seizure. Indeed, there is no

3. *See also Olmstead v United States* (277 US 438, 478 [1928, Brandeis, J., dissenting] [observing that the framers of the Fourth Amendment “conferred, as against the Government, the right to be let alone—the most comprehensive of rights and the right most valued”]).

4. For example, in *People v Ocasio*, the Court upheld the suppression court’s determination that there was “no seizure” of the defendant when two officers walked up to his car window and requested his identification while he was stopped at a red light (85 NY2d 982, 984-985 [1995]) and made clear in *People v Harrison* that the same is true when the police approach a parked car (*see* 57 NY2d 470, 475-476 [1982]). By contrast, in *Sobotker*, the Court held that the police seized the defendant when they directed him to pull his car over to a curb after they saw him “proceeding slowly” before he “came to a standstill at [a] stop sign” (43 NY2d at 562-564).

meaningful constitutional distinction between an officer commanding a driver traveling at five miles per hour to stop their car—as was the case in *Sobotker* (43 NY2d at 562-564)—and the same officer commanding a cyclist riding at the same speed to stop their bicycle.⁵

The dissent rejects this comparison, positing that the police must engage in more “significant show[s] of authority to stop a motor vehicle” than a bicycle because, it reasons, the police “almost always” must “activate their car’s lights or sirens, or block the vehicle’s movement, resulting in ‘a possibly unsettling show of authority’ and potentially creating ‘substantial anxiety’” and that “much less is typically required to stop a bicycle” (dissenting op at 20, quoting *Prouse*, 440 US at 657). This may be true but does little to further the dissent’s position since the police may make these same displays of authority to a bicyclist. Moreover, whether directed at a driver or a bicyclist, a command to stop by armed agents of the State is unsettling, frightening and destabilizing. Indeed, an armed officer’s command to stop—in this case, from a moving car—arguably constitutes a *more* robust display of authority and, in turn, induces *more* anxiety than lights and sirens. And, when a police vehicle passes or runs parallel to a bicyclist the rider is physically vulnerable in ways that an automobile driver is not. The sudden wind loads and aerodynamic forces acting on a bicyclist create instability and loss of control, potentially leading to injurious collisions and falls.

Moreover, once the police initiate contact, a reasonable bicyclist ordered to stop would not feel free to ride away (*cf.* *May*, 81 NY2d at 728). Indeed, “studies over the last several decades on the social psychology of compliance, conformity,

5. Bicycles also travel at faster speeds (*see* Petr Minarik, *What’s the Average Cycling Speed and How to Improve It?*, CyclistsHub.Com [Oct. 6, 2023], available at <https://www.cyclistshub.com/average-cycling-speed/> [last accessed Oct. 27, 2023] [presenting data showing that most leisure riders average between 9 and 14 miles per hour and that professional cyclists average close to 25 miles per hour]).

The dissent disputes none of the above, but instead pivots to an unsupported assertion that “the vast majority of cars in New York” operate at “great speeds” (dissenting op at 20). The dissent fails to explain how the absolute number of drivers travelling fast on highways and throughfares bears on the authority of the police to stop bicyclists travelling at all speeds. Cases like *Sobotker* remind us, among other things, that individual rights turn on the nature and extent of intrusive government actions, not the frequency with which they occur (*see Faretta v California*, 422 US 806, 834 [1975] [“Personal liberties are not rooted in the law of averages”]).

social influence, and politeness have all converged on a single conclusion: the extent to which people feel free to refuse to comply is extremely limited under situationally induced pressures” (Janice Nadler, *No Need to Shout: Bus Sweeps and the Psychology of Coercion*, 2002 Sup Ct Rev 153, 155 [2002] [collecting and summarizing studies]). The dissent ignores this long-known, popularly-understood reality. By contrast, our analysis is grounded in the very “reasonableness” which the dissent insists should be its “touchstone” (dissenting op at 18), in that it appropriately squares our search and seizure jurisprudence with this basic reality.

The dissent appears troubled by the effects of today’s decision on the actions of the police, yet also seems internally conflicted. On the one hand, the dissent appears distressed over our holding’s purported encouragement of more “pretextual stops” and potential to erode “privacy for . . . [bi]cyclists” (dissenting op at 21). However, this fear is unfounded. To borrow the dissent’s phrasing, the rule we set today not only “ensures that bicyclists cannot be stopped based on an officer’s hunch or curiosity” (dissenting op at 21), but also ensures that the police may not initiate an encounter with them absent reasonable suspicion of a crime or probable cause of a traffic violation. The dissent should train its alarm on its own approach which, by permitting police intrusions upon a bicyclist on lesser quanta of proof, would promote the very pretextual stops it fears (dissenting op at 20-21). Our application to bicyclists of the well-understood automobile exception follows logically from our precedents and strikes a sensible balance between “the government’s interest in the detection and apprehension of criminals against the encroachment involved with respect to an individual’s right to privacy and personal security” (*People v Cantor*, 36 NY2d 106, 111 [1975]). The dissent’s approach would greatly diminish the latter interest.

Contradicting itself, the dissent also urges that our holding will result in too few stops and arrests, claiming—without any basis in fact or law—that, after today, “instead of acting to rid our streets of the deadly menace presented by loaded firearms, the police will be forced to ignore a cyclist with a waistband bulge, for no reason other than that the person happened to be riding a bicycle” (dissenting op at 21). Hardly. And hyperbole is not constitutional analysis. Indeed, nothing in today’s decision remotely requires the police to leave “what is seen . . . unseen” (dissenting op at 21), that is, to cease surveillance of bicyclists

with suspiciously bulky waistbands. It merely reminds them of the constitutional limitations on their ability to intrude upon those bicyclists' personal liberty without some additional proof of criminal wrongdoing (*see e.g. Holmes*, 81 NY2d at 1058 [reasonable suspicion was absent where defendant stood in an area known for drug trafficking with an unidentified bulge in his jacket pocket]; *People v Stewart*, 41 NY2d 65, 69 [1976] [observing that "a bulge in the pocket, unlike a waistband bulge, could be caused by any number of innocuous objects"]).

Treating bicycle stops the same as other traffic stops also accords with the Vehicle and Traffic Law, which subjects bicyclists to the same rules of the road as those applicable to automobiles. While the Vehicle and Traffic Law does not include bicycles within its definition of "vehicles" (*see* Vehicle and Traffic Law § 159), it grants bicyclists "all of the rights" and "subject[s]" them "to all of the duties applicable to the driver of a vehicle" (Vehicle and Traffic Law § 1231).⁶ For example, just as automobiles must, "from one-half hour after sunset to one-half hour before sunrise" and in low-visibility conditions, display at least two lights in the front and, depending on the age of the vehicle, one or two red lights in the back illuminating a distance of between 500 and 1,000 feet (*see* Vehicle and Traffic Law § 375 [2] [a] [1]-[3]), when ridden in the dark, bicycles similarly must have a lamp on the front that emits a white light and one on the back that emits a red light, and at least one of those lights must be visible for at least 200 feet from each side (Vehicle and Traffic Law § 1236 [a]). The Vehicle and Traffic Law also requires bicycles to have reflective tires or reflectors mounted on the spokes of each wheel (Vehicle and Traffic Law § 1236 [d]).

In addition, just as "[e]very motor vehicle" must have "a suitable and adequate horn or other device for signaling . . . sufficiently loud to serve as a danger warning" (Vehicle and Traffic

6. The dissent summarily dismisses Vehicle and Traffic Law § 1231's vesting of bicyclists with the same rights and imposition of the same duties as automobile drivers and—without citation to any authority—asserts that the Vehicle and Traffic Law's objective is "to ensure the safe flow of traffic" (dissenting op at 20). This tautological statement of purpose is simply irrelevant to the dissent's broader disagreement with our analogies to the Vehicle and Traffic Law. Regardless of whether the safe flow of traffic is the goal—as can be said of all Vehicle and Traffic Law provisions—the Vehicle and Traffic Law's similar regard for automobile drivers and bicyclists on our public roadways buttresses the legally-significant similarities between them for search-and-seizure purposes.

Law § 375 [1] [a]), a bicycle must have “a bell or other [audible] device” that can be heard for at least 100 feet (Vehicle and Traffic Law § 1236 [b]). Just as the Vehicle and Traffic Law requires automobile drivers and certain passengers to wear seat belts (Vehicle and Traffic Law § 1229-c), bicyclists younger than 14 must wear helmets (Vehicle and Traffic Law § 1238 [5]). An automobile driver must properly signal before turning right or left (Vehicle and Traffic Law § 1163 [b]) and, similarly, cyclists must signal upcoming turns using their hands or arms to warn others (Vehicle and Traffic Law § 1237). Finally, and most significantly, bicyclists are sometimes restricted to riding on “public roadways” (Vehicle and Traffic Law § 1100 [a]; *see e.g.* Administrative Code of City of NY § 19-176 [prohibiting bicycle riding on sidewalks]; Municipal Code of the City of Rochester § 34-2 [same in Center City District]), where “[n]o person” may “fail or refuse to comply with any lawful order” (Vehicle and Traffic Law § 1102).

By contrast, the Vehicle and Traffic Law regulates pedestrians in a more limited fashion. Article 27 of the Vehicle and Traffic Law contains a special list of pedestrian-only restrictions that requires them to, for example, obey “traffic-control signals” (Vehicle and Traffic Law § 1150), yield to vehicles outside of crosswalks and, when walking outside of crosswalks, cross the street in a straight line rather than diagonally (Vehicle and Traffic Law § 1152), walk only on sidewalks where they are provided (Vehicle and Traffic Law § 1156), and refrain from obstructing traffic (Vehicle and Traffic Law § 1157).

The dissent’s uncontroversial observation that “a bicycle simply is not a car” is of no moment (dissenting op at 19); we agree that the two are different forms of transportation. The point is that, in every relevant, legally-significant way, bicycles are similar to cars for purposes of a police encounter. Consequently, the Federal and State Constitutions shield bicyclists from unwarranted government intrusions to the same extent as they do with respect to motorists. We therefore conclude that bicycle stops, like automobile stops, are seizures under both constitutions, which the police lack the authority to conduct absent reasonable suspicion of criminal activity or

probable cause that the bicyclist has violated the rules of the road (see *Hinshaw*, 35 NY3d at 430).⁷

III.

[2] “Like all seizures, the officer’s action[s]” during a traffic stop “must be justified at [their] inception” (*Kansas v Glover*, 589 US 376, 386 [2020] [internal quotation marks and some brackets omitted]). Here, the officers’ actions were unjustified from the beginning because, as the prosecution concedes, the police possessed neither probable cause of a Vehicle and Traffic Law violation nor reasonable suspicion of criminality (*Hinshaw*, 35 NY3d at 430). Although the officer vaguely commented during the suppression hearing that defendant was riding “in a somewhat reckless manner,” he did not testify that he suspected a Vehicle and Traffic Law violation—let alone that he had probable cause of one.⁸ Instead, the officer testified

7. The dissent asserts that “[t]he Supreme Court has made ‘clear that for the most part *per se* rules are inappropriate in the Fourth Amendment context’ ” (dissenting op at 17, quoting *United States v Drayton*, 536 US 194, 201 [2002]). But *per se* rules—especially ones favoring governmental authority—are hardly foreign to the Supreme Court’s Fourth Amendment jurisprudence (e.g. *Michigan v Summers*, 452 US 692, 705 & n 19 [1981] [holding that officers executing a search warrant may “detain the occupants of the premises while a proper search is conducted” regardless of the “quantum of proof justifying detention or the extent of the intrusion to be imposed by the seizure”]; *United States v Robinson*, 414 US 218, 235 [1973] [establishing a bright-line rule “that in the case of a lawful custodial arrest a full search of the person is . . . a ‘reasonable’ search” under the Fourth Amendment]). The dissent conveniently ignores that the Supreme Court has established a *per se* rule for traffic stops similar to the one we extend to bicyclists today (see *Prouse*, 440 US at 657). And, to be clear, we rest our holding on both the Fourth Amendment and article I, § 12 of the State Constitution, which the dissent acknowledges provides greater protections than the Federal Constitution (see dissenting op at 16).

Likewise overstated is the dissent’s concern that our rule leaves lower courts to “speculate” about its precise boundaries—i.e., whether it applies only to bicyclists on public roadways, to moving bicyclists only, or to “some other as yet undefined class of [bi]cyclists” (whatever that means) (dissenting op at 18). What the dissent terms as “speculat[ion]” is what lawyers and judges call judicial analysis. Just as courts, including this one, have determined over time which automobile stops fall within *Prouse*’s bright-line rule and which do not, we have confidence that our state courts can do the same for bicycle stops (see e.g. *Sobotker*, 43 NY2d 562-564; *Harrison*, 57 NY2d at 475-476; *Ocasio*, 85 NY2d at 984; *Spencer*, 84 NY2d at 752).

8. Although Vehicle and Traffic Law § 1234 (a) requires bicyclists to ride in “a usable right-hand shoulder” of the roadway, it permits bicyclists to leave the right edge of the road “when preparing for a left turn or when reasonably necessary to avoid conditions that would make it unsafe to

(n. cont’d)

that the primary motivation for the stop was that defendant was “holding an object in his waistband,” but admitted that he did not know what the “object” was, except that it was “bulky.” This observation of course fell well short of establishing reasonable suspicion of criminality (*see e.g. Holmes*, 81 NY2d at 1058; *Stewart*, 41 NY2d at 69). Indeed, at no point before the stop did the officers suspect defendant was carrying contraband and, in fact, they were “caught . . . off guard” after the stop, when defendant admitted that he was carrying a gun.⁹

IV.

An officer’s stop of a moving bicyclist constitutes a seizure. On the record before us, Supreme Court should have suppressed the gun as the product of an impermissible stop because the officers lacked reasonable suspicion of criminal activity or probable cause that defendant had violated the rules of the road while riding his bicycle. Since no other admissible evidence exists to establish the crime, the prosecution would be unable to secure a conviction on the gun possession count without the gun recovered from defendant and his statements to the police. Therefore, the indictment must be dismissed (*see e.g. Hinshaw*, 35 NY3d at 439).

continue along near the right-hand curb or edge” (Vehicle and Traffic Law § 1234 [a]). Moreover, Vehicle and Traffic Law § 1642 permits cities with populations exceeding one million people—like New York City—to supersede the Vehicle and Traffic Law with local traffic regulations, which New York City has done regarding regulations of bicyclists (*see* 34 RCNY 4-02 [e]). Those regulations contain nothing restricting bicycle riding to the right side of the road (*see generally* 34 RCNY 4-02).

9. Of course, defendant’s post-seizure behavior “cannot validate an encounter,” like the one here, “that was not justified at its inception” (*People v Moore*, 6 NY3d 496, 498 [2006]). Indeed, the Court’s observation that events following the stop in *Sobotker* were irrelevant to its legality are no less apt in the case of a bicycle stop (*see* 43 NY2d at 565). As the *Sobotker* Court explained:

“[A] search may not be justified by its avails alone. Constitutionally protected rights are not to be dispensed with in this case solely because the results of the improper search and seizure uncovered the fact that one or all of the persons who were its targets were armed with a deadly weapon. Almost any series of indiscriminate seizures is bound to produce some instances of criminality that might otherwise have gone undetected or unprevented. But were hindsight alone to furnish the governing criteria, a vital constitutional safeguard of our personal security would soon be gone” (*id.*).

Accordingly, the order of the Appellate Division should be reversed, defendant's motion to suppress granted and the indictment dismissed.

SINGAS, J. (dissenting). A police officer observed defendant Lance Rodriguez riding a bicycle while clutching a bulky object at his waistband. The officer asked defendant to stop and, upon doing so, defendant admitted that he was carrying a gun. Today, the majority abandons this Court's long-settled precedent, overturns a gun conviction stemming from reasonable police action, and creates a new rule that transforms any stop of a bicycle from a facts and circumstances inquiry into a *per se* seizure. Because I would adhere to our well established jurisprudence, and because *stare decisis* principles should not be so carelessly disregarded, I dissent.

I.

At approximately 10:40 p.m. on December 13, 2014, in the Far Rockaway section of Queens, Officer Richard Schell was on patrol in plain clothes in an unmarked car with two other police officers. The officers saw defendant riding his bicycle in the street "in a somewhat reckless manner," such that cars had to "either stop so they didn't hit him or go around him." Defendant had one hand on the bicycle's handlebars. The other hand was holding "a bulky object" at the waistband of his pants.

As defendant made a turn on his bicycle, Officer Schell called out, "[h]old up, police," but defendant continued on. The officers drove behind him for a short distance before Officer Schell yelled, "hold up, police" or "stop the bicycle, please." Defendant stopped this time. Up to this point, the officers had not activated their lights or sirens, or impeded defendant's path with their vehicle. Speaking through the car's open window while seated inside, Officer Schell asked defendant "if he had anything on him." When defendant said that "he did," it caught Officer Schell "off guard" so he "asked him again." Defendant confirmed that he had something on him. Officer Schell exited the vehicle, and defendant admitted that he had a gun in his waistband and put his hands in the air. The other officers then got out of the car, frisked defendant, and recovered a loaded .40 caliber pistol, with eight rounds in the magazine, from his waistband. The officers never drew their weapons.

Supreme Court denied defendant's motion to suppress the weapon and defendant's statements. Defendant subsequently pleaded guilty to attempted criminal possession of a weapon in the second degree. The Appellate Division ultimately affirmed

the judgment, concluding that Supreme Court “properly determined that” the police “were justified in making a common-law inquiry” and that, based on the circumstances here, their encounter with defendant was not a seizure (194 AD3d 968, 971 [2d Dept 2021]).

On these facts, the majority now reverses, suppresses the gun, and dismisses the indictment, “hold[ing] that police interference with a bicyclist is a seizure” (majority op at 5). Because the Appellate Division correctly rejected defendant’s invitation to create an amorphous “bicycle rule” that conflicts with our settled law, I would affirm.

II.

Although “the search and seizure provision of the State Constitution is similar to the wording of the Fourth Amendment . . . , we have held that our [s]tate provision, for reasons peculiar to New York, is subject to its own interpretation” (*People v Bora*, 83 NY2d 531, 534 [1994]). For nearly 50 years, New York’s search and seizure law has been governed by *People v De Bour* (40 NY2d 210 [1976]). The majority largely ignores this seminal case, but in *De Bour* we “established a four-tiered framework for evaluating the propriety of police-initiated encounters with civilians” (*People v Johnson*, 40 NY3d 172, 174 [2023]; see *People v Moore*, 6 NY3d 496, 498 [2006]). By doing so, we “adopted greater protections” than that required under the Federal Constitution “for pedestrian stops by the police” (*People v Hinshaw*, 35 NY3d 427, 431 [2020]). *De Bour* “is more protective of the rights of individuals ‘to be free from aggressive governmental interference’ ” (*id.*, quoting *De Bour*, 40 NY2d at 216), guiding police conduct that “fall[s] below the level of a Fourth Amendment seizure” (*People v Hollman*, 79 NY2d 181, 196 [1992]). We established levels one and two, the request for information and the common-law inquiry, to ensure that police encounters with people in New York that “do[] not rise to a seizure” under federal law are “predicated on more than a hunch, whim, caprice[,] or idle curiosity” (*People v Ocasio*, 85 NY2d 982, 985 [1995]). Those extra levels of protection find no counterpart in federal law.¹

1. The majority concludes that “the officers violated the Federal and State Constitutions when they stopped defendant,” presuming a federal bicycle rule and creating a new *per se* rule for New York (majority op at 5). I focus my analysis on New York law because our precedent affords defendant more protection than the Federal Constitution, and I conclude that his rights under New York law were not violated.

We have established that “[t]here are no bright lines separating various types of police activity” under *De Bour* (*Bora*, 83 NY2d at 535; see *Hollman*, 79 NY2d at 192 [there is no “bright line test for distinguishing between” *De Bour*’s levels]). The Supreme Court has made “clear that for the most part *per se* rules are inappropriate in the Fourth Amendment context. The proper inquiry necessitates a consideration of all the circumstances surrounding the encounter” (*United States v Drayton*, 536 US 194, 201 [2002] [internal quotation marks omitted]).

Bright lines are inadvisable in the search and seizure context because applying this law is “‘largely based upon considerations of reasonableness’” (*Hinshaw*, 35 NY3d at 431, quoting *Hollman*, 79 NY2d at 195). “Determining whether a seizure occurs during the course of a street encounter between the police and a private citizen involves an analysis of the ‘most subtle aspects of our constitutional guarantees’” (*Bora*, 83 NY2d at 535, quoting *People v Cantor*, 36 NY2d 106, 112 [1975]). “Typically the inquiry involves a consideration of all the facts and a weighing of their individual significance” in an effort to determine what “a reasonable person would have believed, under the circumstances” (*id.*; see *Ocasio*, 85 NY2d at 984 [“whether a reasonable person would have believed, under the circumstances, that the officer’s conduct was a significant limitation on (their) freedom . . . involves consideration of all the facts”]). “These determinations can only be made on a case-by-case basis” (*Hollman*, 79 NY2d at 192; see *De Bour*, 40 NY2d at 219).

Despite our general rule mandating an examination of the totality of the circumstances in determining the reasonableness of an interaction between the police and a person, we have made one narrow exception for moving automobiles. Thus, “as a matter of law, . . . interference with a moving vehicle is a seizure” of the vehicle’s occupants requiring at least reasonable suspicion (*Ocasio*, 85 NY2d at 984; see *Hinshaw*, 35 NY3d at 430; *People v Spencer*, 84 NY2d 749, 753 [1995], *cert denied* 516 US 905 [1995]).² This exception accords with federal law (see *Brendlin v California*, 551 US 249, 251 [2007]; *Delaware v Prouse*, 440 US 648, 654 [1979]) and is justified because “the obvious impact of stopping the progress of an automobile is

2. The police may also stop a moving automobile “based on probable cause that a driver has committed a traffic violation” (*Hinshaw*, 35 NY3d at 430 [internal quotation marks omitted]) or “pursuant to routine, nonpretextual traffic checks to enforce traffic regulations” (*Spencer*, 84 NY2d at 753; see *Hinshaw*, 35 NY3d at 430).

more intrusive than the minimal intrusion involved in stopping a pedestrian” (*Spencer*, 84 NY2d at 752 [internal quotation marks omitted]; see *Hinshaw*, 35 NY3d at 432).

Nevertheless, the automobile rule is a rarity and does not apply to parked cars or cars stopped at a stop signal (see *Ocasio*, 85 NY2d at 984-985; *Spencer*, 84 NY2d at 753). Rather, *De Bour* applies to the occupants of a parked or stationary car (see *Spencer*, 84 NY2d at 753). The majority now extends the automobile rule (which does not even apply to all cars) to bicycles.

III.

The majority has adopted a nebulous “per se” rule that fails to make clear the scope of the new bicycle rule. The police and lower courts are left to speculate whether the rule applies to: (1) any “police interference with a bicyclist” (majority op at 5); (2) only persons cycling on a roadway and, thus, subject to the Vehicle and Traffic Law (see *id.* at 12); (3) only to “moving bicyclist[s]” (*id.* at 14); or (4) some other as yet undefined class of cyclists.

Contrary to the majority’s holding, police encounters with bicyclists should continue to be evaluated on a case-by-case basis, measured against the well-established touchstone of reasonableness. In *De Bour*, we rejected the “all or nothing approach” that the majority adopts today for (certain) bicyclists, concluding that ignoring a case’s circumstances was contrary to “[c]ommon sense and a firm grasp of the practicalities involved” (40 NY2d at 217). Rather than judicially codifying a haphazard set of per se rules in the search and seizure realm, we have, until today, adhered to our test analyzing the “crucial factor,” whether “the police behavior can be characterized as reasonable” under the facts presented (*id.*).

Of course, in certain circumstances, a police encounter with a bicyclist may rise to a seizure (see *People v Morris*, 138 AD3d 1239, 1239-1240 [3d Dept 2016], *lv denied* 27 NY3d 1153 [2016]; *People v Lee*, 96 AD3d 1522, 1525 [4th Dept 2012]). I continue to believe that we can trust our courts to make that determination. Notably, each Appellate Division department has applied our totality of the circumstances test to police encounters with bicyclists for decades without any confusion (see e.g. *People v Feliciano*, 140 AD3d 1776, 1776 [4th Dept 2016], *lv denied* 28 NY3d 1027 [2016]; *Morris*, 138 AD3d at 1239-1240; *Matter of Jamaal C.*, 19 AD3d 144, 145 [1st Dept 2005]; *People v Day*, 8 AD3d 495, 495-496 [2d Dept 2004], *lv*

denied 3 NY3d 739 [2004]; *People v Ruffin*, 133 AD2d 425, 425, 428 [2d Dept 1987], *appeal withdrawn* 70 NY2d 877 [1987]).

Despite this commonsense approach based on reasonableness, the majority effects a drastic change in our law by abandoning our well settled search and seizure precedent. It concludes that

“[w]hether an individual is driving a car or riding a bike, a police order to stop requires them to halt their momentum based on the expectation that any attempt to leave the scene would be so obviously likely to prompt an objection from the officer that no bicyclist would feel free to leave in the first place” (majority op at 8 [internal quotation marks omitted]).

The majority appears to treat bicycles the same as cars because both may be in motion on the roadway. The majority has thus started us down a slippery slope, which could eventually lead to per se rules for any number of devices that may be used to put a person in motion, including such items as skateboards and in-line skates. If extended, the majority’s analysis might lead to per se rules for people in motion, i.e., joggers and other pedestrians.

The majority attempts to limit the scope of the new rule by adding an analysis aligning its application to bicycles with the Vehicle and Traffic Law. Initially, the majority concedes, as it must, that the Vehicle and Traffic Law “does not include bicycles within its definition of ‘vehicles’” (*id.* at 11, citing Vehicle and Traffic Law § 159). A bicycle is also not a “[m]otor vehicle[]” (Vehicle and Traffic Law § 125) and, in fact, is separately defined in Vehicle and Traffic Law § 102. It makes sense that the legislature has distinguished between cars and bicycles in the Vehicle and Traffic Law because, contrary to the majority’s implication, a bicycle simply is not a car.

The majority strains to identify similarities between the Vehicle and Traffic Law’s treatment of cars and bicycles, unremarkably noting that bicycles must have bells and cars must have horns and that both cyclists and motorists must signal before turning. “[M]ost significantly, bicyclists are *sometimes* restricted to riding on public roadways” (majority op at 12 [emphasis added and internal quotation marks omitted]). It appears that this last and most significant factor only applies to some unknown class of bicyclists or some subset of roadways

in the state. And while Vehicle and Traffic Law § 1231 makes traffic laws applicable to bicyclists (and persons gliding along on in-line skates), it does so to ensure the safe flow of traffic. The Vehicle and Traffic Law does not turn a bicycle into a car for search and seizure purposes.

In attempting to analogize cars and bicycles, the majority concludes that stops of both involve the same “show of governmental authority” (majority op at 8). This is rarely true. Most obviously, a vehicle ordinarily is enclosed, inhibiting the effectiveness of a verbal request, particularly if the windows are closed. It takes a significant show of authority to stop a motor vehicle, justifying a per se rule for stops of moving cars. The stop of a vehicle, a two-ton mass of steel, which may be traveling at high speeds, will almost always require officers to activate their car’s lights or sirens, or block the vehicle’s movement, resulting in “a possibly unsettling show of authority” and potentially creating “substantial anxiety” (*Prouse*, 440 US at 657; see *People v May*, 81 NY2d 725, 727 [1992]).

By contrast, much less is typically required to stop a bicycle. A bicycle is not capable of reaching a car’s high speed. At any given moment, an untold number of cars are traveling at 65 miles per hour on the Thruway or at similarly great speeds on other highways, parkways, and thoroughfares in this state. The majority’s example of a car driving at five miles per hour ignores the reality of how drivers operate the vast majority of cars in New York. The majority is willing to upend our search and seizure law by focusing on what sometimes occurs on congested city streets. While cyclists may reach speeds comparable to cars in certain situations, for the most part cars need a more significant show of force to be pulled over. Thus, a bicycle stop can more likely be effectuated by an officer making a verbal request, as was the case here.

In sum, while we have adopted a unique per se rule for stops of moving vehicles, the differences between cars and bicycles render a similar per se rule for cyclists unnecessary.

IV.

The majority’s per se rule is also bad policy. It will endanger New Yorkers by precluding police from conducting a common-law inquiry of a cyclist with a “waistband bulge,” the “telltale” sign of a weapon (*De Bour*, 40 NY2d at 221; see *People v Benjamin*, 51 NY2d 267, 271 [1980]). In *De Bour*, we said that

an officer should be “expected to request clarification as to the source of [a] waistband bulge” (40 NY2d at 221). The majority recoils from the ramifications of its holding (*see* majority op at 10-11), but the result speaks for itself. Now, instead of acting to rid our streets of the deadly menace presented by loaded firearms, the police will be forced to ignore a cyclist with a waistband bulge, for no reason other than that the person happened to be riding a bicycle. In this way, the majority’s rule needlessly “hamper[s] the police in the performance of their . . . vital task[]” of maintaining order in our communities (*De Bour*, 40 NY2d at 218).

This essential role likely will become even more important in the wake of *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]), given the potential for the proliferation of guns on our streets. Therefore, it seems like an especially inopportune time for this Court to impose unwarranted barriers to policing gun crime.

Additionally, the majority’s rule merely shifts the risk of arbitrary police encounters to pretextual stops. Absent the *per se* rule, the *De Bour* analysis ensures that bicyclists cannot be stopped based on an officer’s hunch or curiosity. Officers must have the requisite basis under levels one or two to request information or make a common-law inquiry. The majority has stripped these protections from bicyclists, essentially inviting police officers to engage in stops pursuant to the Vehicle and Traffic Law when, for instance, a person’s bicycle lacks a bell or a reflector or the rider fails to use hand signals. Thus, police officers must now engage with bicyclists at level three or four under *De Bour*, resulting in a greater intrusion and less privacy for the cyclists.

V.

Here, applying our formerly settled *De Bour* rubric, the record demonstrates that the police had founded suspicion to conduct a common-law inquiry when they observed defendant on his bicycle holding what appeared, and turned out to be, a loaded firearm in his waistband. From now on, because of the majority’s contorted reasoning, what is seen must be unseen, and the bicyclist is free to ride away, locked and loaded.

I dissent.

Chief Judge WILSON and Judges TROUTMAN and EGAN JR.* concur. Judge SINGAS dissents and votes to affirm in an opinion, in which Judges GARCIA and CANNATARO concur. Judge HALLIGAN took no part.

Order reversed, defendant's motion to suppress granted and indictment dismissed.

* Designated pursuant to NY Constitution, article VI, § 2.

[230 NE3d 447, 206 NYS3d 525]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PABLO
PASTRANA, Appellant.

Argued September 13, 2023; decided November 21, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 5, 2022. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (John W. Carter, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree, criminal possession of marijuana in the fifth degree and unlawful possession of marijuana.

People v Pastrana, 205 AD3d 461, affirmed.

HEADNOTES

Crimes — Unlawful Search and Seizure — Constitutional Validity of Roadblock

1. In a criminal prosecution, the constitutional validity of the roadblock pursuant to which defendant's vehicle was stopped was demonstrated, albeit barely, by the testimony of a detective who was assigned to the roadblock and the reasonable inferences to be drawn therefrom. The detective's testimony established that the primary purpose of the vehicle checkpoint was roadway safety, not general crime control. It further established that the checkpoint was maintained in accordance with a uniform procedure that gave little discretion to operating personnel, i.e., every third car was stopped. Finally, the detective's testimony established that the roadblock was conducted with adequate precautions that gave fair warning to motorists. The Court of Appeals had no power to revisit the factual finding of the suppression court that the detective's testimony was credible. Moreover, to the extent defendant contended that the decision to set up a roadblock was discriminatory, that contention was not supported by the record. The roadblock was set up on a bridge leading from Manhattan into the Bronx on the day of the National Puerto Rican Day Parade, and the record demonstrated that the post-parade traffic was particularly heavy. The reasonable inference to be drawn from the detective's testimony was that the roadway safety checkpoint was chosen for that date and location because of the large volume of traffic that would be crossing the bridge.

Statutes — Retroactive Application of Statute — Marijuana Regulation and Taxation Act

2. Penal Law § 222.05 (3), which provides that the odor of cannabis can no longer be the basis for a police search and was enacted after defendant was convicted of criminal possession of a weapon and marijuana following a police search of his vehicle based solely upon the odor of cannabis, did not apply retroactively to render the search of defendant's vehicle invalid. The stat-

ute provides that, in any “criminal proceeding,” the odor of cannabis shall not be the basis for a “finding or determination of reasonable cause to believe a crime has been committed,” but defendant’s appeal to the Appellate Division from his judgment of conviction was not a “criminal proceeding” within the meaning of Penal Law § 222.05 (3). The Marihuana Regulation and Taxation Act (MRTA), which added Penal Law § 222.05, also included provisions intended to remedy past discriminatory practices regarding the policing of marijuana, including provisions regarding vacatur of prior marijuana-related convictions. Thus, when the legislature intended the MRTA to impact convictions that became final before the law’s effective date, it provided express provisions to that effect. There is no similar expression of legislative intent with respect to Penal Law § 222.05. Nor is there any provision in the text or legislative history of the MRTA that would support the staggering impact of the retroactive application defendant proposed: the vacatur of scores of convictions, even those for weapons possession or violent crimes, because the police conducted a search based on the odor of marijuana that was lawful at the time.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

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 § 207:1.
 LAFAYE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 3.8,
 27.2.
 MCKINNEY’S, Penal Law § 222.05.
 NY JUR 2d Criminal Law: Procedure §§ 225, 505, 3552; NY
 JUR 2d Criminal Law: Substantive Principles and Of-
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ANNOTATION REFERENCE

Validity of Warrantless Search of Motor Vehicle Based on
 Odor of Marijuana—State Cases. 114 ALR5th 173.

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POINTS OF COUNSEL

Jenay Nurse Guilford, Center for Appellate Litigation, New York City (Mark W. Zeno of counsel), for appellant. I. Because the prosecution did not meet its burden of showing that the roadblock was for a constitutionally permitted primary

programmatic purpose, was properly authorized at the programmatic level, and was properly administered, the marijuana and handgun recovered during that roadblock should have been suppressed. (*Michigan Dept. of State Police v Sitz*, 496 US 444; *People v Spencer*, 84 NY2d 749; *Terry v Ohio*, 392 US 1; *People v De Bour*, 40 NY2d 210; *Camara v Municipal Court of City & County of San Francisco*, 387 US 523; *People v Belton*, 55 NY2d 49; *Whren v United States*, 517 US 806; *People v Robinson*, 97 NY2d 341; *Indianapolis v Edmond*, 531 US 32; *People v Scott*, 63 NY2d 518.) II. The warrantless search of Pablo Pastrana's car and its locked glove box was unlawful because Penal Law § 222.05 (3) prohibits courts from determining reasonable cause to believe a crime has been committed based solely on the odor of cannabis or presence of cannabis in now-lawful amounts. (*Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Matter of Tall Trees Constr. Corp. v Zoning Bd. of Appeals of Town of Huntington*, 97 NY2d 86; *People v Rogers*, 48 NY2d 167; *Kimmel v State of New York*, 29 NY3d 386; *Zion v Kurtz*, 50 NY2d 92; *People v Fabien*, 206 AD3d 436; *People v Babadzhanov*, 204 AD3d 685; *People v Vaughn*, 203 AD3d 1729; *People v Galindo*, 38 NY3d 199.) III. Under *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]), Penal Law § 265.03 (3) was unconstitutional, and Pablo Pastrana's conviction for that offense violates the Second and Fourteenth Amendments and must be reversed and the indictment dismissed. (*District of Columbia v Heller*, 554 US 570; *McDonald v Chicago*, 561 US 742; *People v Hughes*, 22 NY3d 44; *United States v Salerno*, 481 US 739; *People v Stuart*, 100 NY2d 412; *Smith v Cahoon*, 283 US 553; *Lovell v City of Griffin*, 303 US 444; *Staub v City of Baxley*, 355 US 313; *Shuttlesworth v Birmingham*, 394 US 147; *People v Rodriguez*, 76 Misc 3d 494.)

Darcel D. Clark, District Attorney, Bronx (*Nicole Neckles*, *Yael V. Levy*, *David M. Cohn* and *Rafael Curbelo* of counsel), for respondent. I. Defendant's suppression motion involves a mixed question of law and fact, and the record supports the lower courts' findings that the checkpoint was valid. (*People v Shabazz*, 99 NY2d 634; *People v Harrison*, 57 NY2d 470; *People v Bigelow*, 66 NY2d 417; *People v Brown*, 25 NY3d 973; *Matter of Luis P.*, 32 NY3d 1165; *People v Parker*, 32 NY3d 49; *People v Scott*, 63 NY2d 518; *People v John BB.*, 56 NY2d 482; *People v Ingle*, 36 NY2d 413; *Indianapolis v Edmond*, 531 US 32.) II. The Marihuana Regulation and Taxation Act's prohibition

against finding probable cause based solely on the odor of marijuana is inapplicable to defendant's prosecution because the statute, enacted almost six years after defendant's arrest, is not retroactive. (*Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Jacobus v Colgate*, 217 NY 235; *People v Utsey*, 7 NY3d 398; *Simonson v International Bank*, 14 NY2d 281; *People v Martello*, 93 NY2d 645; *People v Pepper*, 53 NY2d 213; *Davis v United States*, 564 US 229; *People v Defore*, 242 NY 13; *People v McCray*, 195 AD3d 555.) III. Contrary to defendant's unpreserved claim, he had no Second Amendment right to possess an unlicensed firearm. (*People v Baumann & Sons Buses, Inc.*, 6 NY3d 404; *People v Davidson*, 98 NY2d 738; *People v Iannelli*, 69 NY2d 684; *People v Hughes*, 22 NY3d 44; *Matter of O'Brien v Keegan*, 87 NY2d 436; *People v Gray*, 86 NY2d 10; *People v Hawkins*, 11 NY3d 484; *People v Taylor*, 15 NY3d 518; *People v Ahmed*, 66 NY2d 307; *People v Patterson*, 39 NY2d 288.)

Letitia James, Attorney General, New York City (Nikki Kowalski, Andrew W. Amend, Barbara D. Underwood, Jodi A. Danzig and Anthony Raduazo of counsel), in her statutory capacity under Executive Law § 71. I. This Court has no power to review defendant's unpreserved constitutional challenge. (*People v Graham*, 25 NY3d 994; *People v Turriago*, 90 NY2d 77; *People v Hughes*, 22 NY3d 44; *People v Baumann & Sons Buses, Inc.*, 6 NY3d 404; *Matter of Van Berkel v Power*, 16 NY2d 37; *People v Reynolds*, 25 NY2d 489; *People v Friola*, 11 NY2d 157; *People v Adames*, 216 AD3d 519; *People v McWilliams*, 214 AD3d 1328; *People v Jacque-Crews*, 213 AD3d 1335.) II. Defendant lacks standing to bring his constitutional challenge. (*Allen v Wright*, 468 US 737; *Moose Lodge No. 107 v Irvis*, 407 US 163; *People v Nelson*, 69 NY2d 302; *Shuttlesworth v Birmingham*, 394 US 147; *Staub v City of Baxley*, 355 US 313; *Lovell v City of Griffin*, 303 US 444; *Smith v Cahoon*, 283 US 553; *Village of Valatie v Smith*, 83 NY2d 396; *People v Hollman*, 68 NY2d 202; *People v Hughes*, 22 NY3d 44.) III. Defendant's claim that Penal Law § 265.03 (3) violates the Second Amendment is meritless. (*People v Rodriguez*, 76 Misc 3d 494; *People v Brundige*, 78 Misc 3d 616.)

OPINION OF THE COURT

TROUTMAN, J.

In June of 2015, defendant was driving a vehicle that was stopped at a roadblock set up by police on a bridge leading

from Manhattan into the Bronx on the same day as the annual Puerto Rican Day Parade. After officers smelled marijuana in the car, they conducted a search, during which they recovered a loaded firearm. In 2018, defendant was convicted, upon a jury verdict, of criminal possession of a weapon in the second degree, criminal possession of marijuana in the fifth degree, and unlawful possession of marijuana. The Appellate Division affirmed (205 AD3d 461 [1st Dept 2022]), and a Judge of this Court granted defendant leave to appeal (38 NY3d 1135 [2022]). We reject defendant's contentions on this appeal as without merit or unpreserved.

I.

Defendant first contends that the People did not meet their burden at the suppression hearing to demonstrate the constitutional validity of the roadblock pursuant to which his vehicle was stopped. We conclude that the lower courts properly determined that the People met their burden.

At the suppression hearing, the People offered the testimony of a detective who was responsible for questioning the driver of vehicles that were stopped pursuant to the roadblock. That detective testified that he was assigned to conduct a vehicle checkpoint on the bridge in question, and that the purpose of the checkpoint was vehicle safety. To that end, the detective asked each driver he approached to produce their driver's license, insurance, and registration. The detective would also check for "improper inspections, equipment, [and] seat belts." The purpose of the roadblock was not specifically to check for drunk drivers, but the detective testified that if police found an intoxicated driver, they would take appropriate action. The checkpoint was conducted during daylight hours and marked by cones and two vans.

The detective further testified that the procedure for the checkpoint was to stop every third car that passed through. The detective was not responsible for counting cars and directing them to pull over, but he testified that defendant's car was pulled over pursuant to this established procedure. The detective asked defendant to roll down the windows in the vehicle, and when defendant complied, there was a strong odor of marijuana coming from the vehicle. The detective testified that he observed marijuana in plain view in the car. The detective then commenced a search of the car, and after noticing a strong odor of marijuana near the glove box, he opened it, finding a

larger quantity of marijuana and a loaded firearm. Defendant was then arrested.

[1] The detective's testimony satisfied the People's burden to demonstrate a permissible primary programmatic purpose for the roadblock, that it was maintained "in accordance with a uniform procedure which afforded little discretion to operating personnel," and that the checkpoint was conducted with fair warning to motorists and with precautions regarding motorist safety (*People v Scott*, 63 NY2d 518, 526 [1984]; *see generally Indianapolis v Edmond*, 531 US 32 [2000]). That testimony established that the primary purpose of the checkpoint was roadway safety, not general crime control (*see Indianapolis*, 531 US at 44; *People v Jackson*, 99 NY2d 125, 131-132 [2002]; *Matter of Muhammad F.*, 94 NY2d 136, 145-146 [1999], *cert denied* 531 US 1044 [2000]). It further established that the checkpoint was maintained in accordance with a uniform procedure that gave little discretion to operating personnel, i.e., every third car was stopped (*see Scott*, 63 NY2d at 526). Finally, the detective's testimony established that the roadblock was conducted with adequate precautions that gave fair warning to motorists (*cf. Muhammad F.*, 94 NY2d at 147).

Defendant's challenge to the validity of the checkpoint is, in large part, essentially a challenge to the credibility of the detective's testimony. But this Court has no power to revisit the factual finding of the suppression court that the detective's testimony was credible (*see People v Concepcion*, 38 NY2d 211, 213 [1975]). Moreover, to the extent defendant contends that the decision to set up a roadblock was discriminatory, that contention is not supported by the record. The roadblock was set up on the day of the National Puerto Rican Day Parade, and the record demonstrates that the post-parade traffic was particularly heavy. Thus, the reasonable inference to be drawn from the detective's testimony is that the roadway safety checkpoint was chosen for that date and location because of the large volume of traffic that would be crossing the bridge.

The People's evidentiary showing as to the authorization for the roadblock certainly could have been more robust (*see e.g. Scott*, 63 NY2d at 523 [written documentation regarding authorization for roadblock]; *Jackson*, 99 NY2d at 128 [testimony from senior officer responsible for initiating the roadblock]). Nevertheless, we conclude that the detective's testimony and

the reasonable inferences to be drawn therefrom were sufficient, albeit barely, to satisfy the People's burden.

II.

Defendant further contends that the Marihuana Regulation and Taxation Act (MRTA) should be applied retroactively to his case to render the search of his vehicle unlawful. The Appellate Division has rejected that contention (*see e.g. People v Boyd*, 206 AD3d 1350, 1354 [3d Dept 2022], *lv denied* 38 NY3d 1149 [2022]; *People v Babadzhanov*, 204 AD3d 685, 686-687 [2d Dept 2022], *lv denied* 38 NY3d 1069 [2022]; *People v Vaughn*, 203 AD3d 1729, 1730 [4th Dept 2022], *lv denied* 38 NY3d 1036 [2022]). We agree with the Appellate Division and therefore conclude that defendant's contention is without merit.

The MRTA, which became law in 2021 (*see* L 2021, ch 92), added Penal Law § 222.05, which provides that with certain exceptions not relevant here, the odor of cannabis or burnt cannabis, or the possession of cannabis in the amounts authorized by the MRTA, shall not be the basis for a "finding or determination of reasonable cause to believe a crime has been committed" (*id.* § 222.05 [3]). In short, Penal Law § 222.05 (3) provides that the odor of marijuana or possession of marijuana in legally authorized amounts can no longer be the basis for a police search.

Penal Law § 222.05 became effective on March 31, 2021, nearly six years after the search of defendant's vehicle was conducted. If the search of defendant's vehicle had been conducted after that effective date, it would not be valid under the MRTA, given that it was based solely upon the odor of cannabis. Defendant contends, however, that this provision of the MRTA should be applied retroactively to invalidate searches that occurred *before* the effective date of the statute.

[2] " 'It is a fundamental canon of statutory construction that retroactive operation is not favored by courts and statutes will not be given such construction unless the language expressly or by necessary implication requires it' " (*People v Galindo*, 38 NY3d 199, 207 [2022], quoting *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 584 [1998]). Nothing in the text or legislative history of the MRTA requires or supports the conclusion that the legislature intended for the newly-enacted Penal Law § 222.05 to apply retroactively to invalidate searches that were conducted before the effective

date of the statute.* The fact that Penal Law § 222.05 was to take effect “immediately” (L 2021, ch 92, § 64) merely supports the conclusion that as of March 31, 2021, law enforcement could no longer conduct searches based solely on the odor of cannabis. “[T]he date that legislation is to take effect is a separate question from whether the statute should apply to claims and rights then in existence,” and the legislature’s expression that a statute is to take effect immediately is equivocal in a retroactivity analysis (*Majewski*, 91 NY2d at 583).

Importantly, the legislature included provisions in the MRTA intended to remedy past discriminatory practices regarding the policing of marijuana, including provisions regarding vacatur of prior marijuana-related convictions (*see* CPL 440.46-a). Thus, when the legislature intended the MRTA to impact convictions that became final before the law’s effective date, it provided express provisions to that effect. There is no similar expression of legislative intent with respect to Penal Law § 222.05. Moreover, applying the MRTA retroactively to invalidate searches that have already occurred would not deter any police misconduct because, as defendant concedes, at the time police searched his car in 2015, a search based on the odor of marijuana was lawful. Defendant points to no provision in the text or legislative history of the MRTA that would support the staggering impact of the retroactive application he proposes: the vacatur of scores of convictions, even those for weapons possession or violent crimes, because the police conducted a search based on the odor of marijuana that was lawful at the time. Nothing in the text of the statute or the legislative history supports a conclusion that this was the legislature’s intent.

III.

Finally, defendant contends that his conviction of criminal possession of a weapon in the second degree is unconstitutional

* We reject defendant’s assertion that an appeal to the Appellate Division from a judgment of conviction and sentence is a “criminal proceeding” within the meaning of Penal Law § 222.05 (3). The Criminal Procedure Law separately defines “criminal court” and “intermediate appellate court” and contains different provisions applicable to each court (*see* CPL 1.20 [19], [22]; art 450). Pursuant to these provisions, intermediate appellate courts review appeals as of right from criminal proceedings, but an appeal as of right does not itself constitute a “criminal proceeding” (*see* CPL 1.20 [18]). Like Judge Halligan, we do not address whether Penal Law § 222.05 applies in a post-enactment suppression hearing regarding a pre-enactment search, as that issue is not before us (*see* Halligan, J., dissenting op at 32 n).

pursuant to the Second Amendment to the United States Constitution, relying on the Supreme Court's 2022 decision in *New York State Rifle & Pistol Association, Inc. v Bruen* (597 US 1 [2022]). For the reasons explained in *People v Cabrera* (41 NY3d 35 [2023] [decided today]), we conclude that defendant's contention is unpreserved for appellate review.

Accordingly, the order of the Appellate Division should be affirmed.

RIVERA, J. (dissenting). I agree for the reasons discussed by the majority that defendant Pablo Pastrana's challenge to the roadblock that led to the search of his vehicle and the eventual discovery of an unlicensed loaded firearm and illegal amounts of marijuana is without merit, and that the Marihuana Regulation and Taxation Act is not retroactive. However, for the reasons I discuss in my dissent in *People v Garcia* (41 NY3d 62 [2023] [decided today]), defendant's Second Amendment facial challenge under *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]) is preserved but meritless.

Defendant's alternative as-applied constitutional challenge to the ban on licensing people with felonies requires remittal for further development of a record for appellate review. Defendant has standing to raise both of these claims for the reasons discussed in *Garcia*. I agree with the majority that the lack of an adequate record renders it impossible at this juncture to consider defendant's claim that there is no historical tradition to support New York's universal prohibition on people with felonies obtaining gun licenses. However, defendant had no reason to develop such record pre-*Bruen*. And the prosecutor had no opportunity to establish a historical tradition to justify the restrictions and the sentence because until *Bruen* that was not the standard by which to assess these types of constitutional challenges. Instead, courts in New York, and throughout the country, applied intermediate scrutiny's means-end test in deciding whether the gun regulation is substantially related to achieving an important governmental interest, such as public safety (see e.g. *Kachalsky v County of Westchester*, 701 F3d 81, 85 [2d Cir 2012]; *People v Hughes*, 22 NY3d 44, 50-51 [2013]; *Kanter v Barr*, 919 F3d 437, 447 [7th Cir 2019]).

I would remand for development of the record in accordance with the test articulated in *Bruen*. Otherwise, we risk depriving defendant "of a State forum in which his arguments could be heard" (*People v Patterson*, 39 NY2d 288, 296 [1976], *affd*

sub nom. Patterson v New York, 432 US 197 [1977]). Remittal is especially appropriate given that other defendants—convicted after *Bruen* was issued—are raising the same (preserved) claims in our courts. We should not deny defendant the same opportunity to build a record and for the prosecutor to do the same. Our “procedural rules should be so designed as to keep unjust results to a minimum” (*People v Finch*, 23 NY3d 408, 416 [2014]).

HALLIGAN, J. (dissenting). I would hold that the People did not meet their burden at the suppression hearing to demonstrate the constitutional validity of the roadblock where Pistrana’s car was stopped. As the majority correctly notes, Detective Veit testified at the suppression hearing that the goal of the checkpoint was vehicular safety, which is a permissible primary programmatic purpose (*Delaware v Prouse*, 440 US 648, 658 [1979]). But when measured against our prior cases, the record does not adequately establish that the selection of the checkpoint’s particular date and location would be effective in serving that objective, or that the checkpoint was properly authorized.*

Both this Court and the U.S. Supreme Court have used a balancing test to determine whether a suspicionless stop is reasonable (see *People v Abad*, 98 NY2d 12, 16-17 [2002], citing *Brown v Texas*, 443 US 47, 50 [1979]). One element, termed the “effectiveness” factor, is “the degree to which the seizure advances the public interest” (*id.* at 17). Here, the People offered no testimony as to why this date and location were selected for the checkpoint. The majority concludes a reasonable inference can be drawn that it was because a large number of cars would be crossing the bridge, given the parade scheduled for that day. That may indeed have been why the roadblock was conducted at that time and place, but the People did nothing to establish the point.

More concerning is the absence of any testimony regarding how the checkpoint was authorized. In *People v Scott*, this

* With respect to whether the Appellate Division properly declined to apply the Marihuana Regulation and Taxation Act’s probable cause provision to reverse defendant’s conviction, I agree with the majority that the statutory term “criminal proceeding” cannot fairly be read to encompass direct appeals at the Appellate Division (Penal Law § 222.05 [3]). Whether that provision, which governs a “finding or determination of reasonable cause,” applies to a post-enactment suppression hearing concerning a pre-enactment search is a closer question in light of the statutory text, and given that it is not squarely presented, I would not reach it here.

Court emphasized that “a plan embodying explicit, neutral limitations on the conduct of individual officers” is essential to adequately protect Fourth Amendment concerns (63 NY2d 518, 525-526 [1984], quoting *Brown*, 443 US at 51). Such a plan should ensure that “officers in the field” do not have “unfettered discretion” in order to reduce the risk of arbitrary invasions (*Matter of Muhammad F.*, 94 NY2d 136, 142 [1999], quoting *Brown*, 443 US at 51; see also *United States v Martinez-Fuerte*, 428 US 543, 559 [1976] [“The location of a fixed checkpoint is not chosen by officers in the field, but by officials responsible for making overall decisions as to the effective allocation of limited enforcement resources”]; *Delaware*, 440 US at 654-655 [Fourth Amendment requires safeguards to “assure that the individual’s reasonable expectation of privacy is not subject to the discretion of the official in the field” (internal quotation marks omitted)]).

Scott provides an example of how this can be accomplished: the checkpoint there was “established pursuant to a written directive of the County Sheriff” that detailed the purpose for the stops and procedures for selecting sites and conducting the stops, and the locations were “selected in advance by senior personnel” (*Scott*, 63 NY2d at 522-524). “[T]he specific procedures devised and promulgated to law enforcement personnel by the head of their department” allowed the court to conclude that the checkpoint “was being maintained in accordance with a uniform procedure which afforded little discretion to operating personnel,” among other factors (*id.* at 526; see also *Abad*, 98 NY2d at 15 [noting that guidelines for livery cab stop program were “spelled out” in Police Department Operations Order]).

As with the reason for selecting the particular date and location for the checkpoint, proper authorization was not established by the People. Detective Veit testified that when on patrol, “[w]e receive a specific assignment”; that on the day in question, he “was assigned to the Puerto Rican Day Parade, and [his] assignment was a vehicle checkpoint on the University Heights bridge and Fordham Road”; and that this was a “unique assignment.” Whether that suffices to show proper authorization is not a question of the detective’s credibility, but whether the record includes any information indicating how, or by whom, the checkpoint was approved. To the extent any additional inference could have been drawn from Detective Veit’s comments, it would stretch too far to ensure that officer discre-

tion was sufficiently constrained for purposes of the Fourth Amendment.

Judges GARCIA, SINGAS and CANNATARO concur. Judge RIVERA dissents in an opinion. Judge HALLIGAN dissents in a separate opinion, in which Chief Judge WILSON concurs.

Order affirmed.

[230 NE3d 1082, 207 NYS3d 18]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAMON
CABRERA, Appellant.

Argued September 13, 2023; decided November 21, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 14, 2022. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Martin Marcus, J., at suppression hearing; Marc Whiten, J., at plea; Armando Montano, J., at sentencing), which had convicted defendant, upon his plea of guilty, of criminal possession of a weapon in the second degree.

People v Cabrera, 206 AD3d 479, reversed.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review — Intervening Supreme Court Precedent

1. In defendant's prosecution for criminally possessing firearms, the Court of Appeals declined to reach the merits of defendant's challenge to Penal Law § 265.03 (3) as unconstitutional in light of *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]), decided after his appeal to the Appellate Division, because defendant failed to preserve his Second Amendment arguments for appellate review. Preservation is essential where the failure to raise a claim in the court of first instance means that the appellate record is inadequate to fairly assess the merits, even if governing law was altered by an intervening U.S. Supreme Court decision. Defendant's claims were not foreclosed by binding precedent from the Court of Appeals or the U.S. Supreme Court at the time of trial, nor were they unanticipated at the time of his trial. Moreover, *Bruen* did not directly address the constitutional questions defendant sought to raise on appeal, as it did not address the rest of New York's licensing scheme or the interplay between the invalidation of New York's proper cause requirement and state statutes criminalizing unlicensed possession of a firearm. Further, the failure to preserve Second Amendment challenges in the court of first instance stymied the development of a record that would allow for careful and deliberate adjudication on the merits of constitutional challenges presented. Defendant's as-applied challenges were similarly unreviewable, as his failure to preserve his Second Amendment claim deprived the government of the opportunity to argue that he would have been otherwise ineligible to obtain a license and thus was not aggrieved by the proper cause requirement.

Crimes — Confession — Custodial Status

2. In a criminal prosecution, Supreme Court erred in denying defendant's motion to suppress statements he made while handcuffed and in response to questions from a detective regarding guns in his vehicle and his lack of a New York firearm license, where it was undisputed that defendant had not

received *Miranda* warnings when he answered the detective's questions and there was no record support for the conclusion that defendant was not in custody for *Miranda* purposes. A reasonable innocent person in defendant's position could not have felt free to leave when three law enforcement officers approached him at night, on a residential street, and handcuffed him before questioning him about the firearms in his vehicle. The level to which the police restricted defendant's movement was of a degree associated with a formal arrest. Nor did the record suggest that the defendant had any reason to believe that he would be handcuffed only for a limited duration. Nonetheless, the Court of Appeals declined to adopt a per se rule that the use of handcuffs places an individual in custody for purposes of *Miranda* in all instances. The custodial status analysis is inherently fact-specific, as it turns on the point of view of a reasonable person innocent of any wrongdoing under the circumstances.

Crimes — Unlawful Search and Seizure — Voluntary Consent to Search Vehicle

3. In a criminal prosecution, Supreme Court properly denied defendant's motion to suppress several guns found in his car during a police search, where the record supported the determination that defendant voluntarily consented in writing to the search of his vehicle. When defendant signed the consent form, he was in police custody, but the record confirmed that the handcuffs had been removed, he had been read his *Miranda* warnings, he was calm and cooperative, and he had been specifically advised that he could refuse to consent to the search or withdraw his consent once given. Immediately after signing the consent form, defendant invoked his right to counsel, suggesting that he appreciated the rights covered in the *Miranda* warnings and the consent form. Moreover, the voluntariness of defendant's written consent was not impermissibly tainted by a *Miranda* violation committed when he was initially handcuffed. The written consent was given at a different location than the prior un-Mirandized statements, about 90 minutes later, and under much different circumstances evincing a change in tenor of defendant's engagement with police.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review §§ 532, 574; AM JUR 2d Evidence §§ 595, 648, 710, 743; AM JUR 2d Searches and Seizures §§ 277, 278, 282.

CARMODY-WAIT 2d Search and Seizure §§ 173:295, 173:297; CARMODY-WAIT 2d Confessions; Privilege Against Self-Incrimination §§ 176:33, 176:34, 176:38; CARMODY-WAIT 2d Pretrial Motions §§ 189:280, 189:281; CARMODY-WAIT 2d Appeals in Criminal Cases §§ 207:163, 207:184.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 3.7, 3.10, 6.1, 6.6, 9.5, 27.5.

NY JUR 2d Criminal Law: Procedure §§ 448, 449, 574–577, 1656, 3557, 3558.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Confessions and

Admissions; Consent; Custodial Interrogation; Exclusion of Evidence; Miranda Warnings; Search and Seizure.

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POINTS OF COUNSEL

Jenay Nurse Guilford, Center for Appellate Litigation, New York City (Barbara Zolot of counsel), for appellant. I. Law enforcement violated *Miranda v Arizona* (384 US 436 [1966]) by questioning Ramon Cabrera about the presence of guns in his car after handcuffing him without administering *Miranda* warnings (US Const Amends V, XIV; NY Const, art I, § 6). (*People v Dunbar*, 24 NY3d 304; *People v Paulman*, 5 NY3d 122; *People v Yukl*, 25 NY2d 585; *Berkemer v McCarty*, 468 US 420; *Terry v Ohio*, 392 US 1; *People v Shivers*, 21 NY2d 118; *People v Quarles*, 58 NY2d 664, 467 US 649; *California v Beheler*, 463 US 1121; *People v Bennett*, 70 NY2d 891; *United States v Newton*, 369 F3d 659.) II. *New York State Rifle & Pistol Assn., Inc v Bruen* (597 US 1 [2022]) rendered Ramon Cabrera’s seizure, arrest, conviction, and sentence unconstitutional (US Const Amends II, IV, VIII, XIV; art IV, § 3; NY Const, art I, §§ 5, 6, 12; Penal Law § 70.02 [1] [b]; [3] [b]). (*District of Columbia v Heller*, 554 US 570; *Matter of Klenosky v New York City Police Dept.*, 75 AD2d 793; *People v Hughes*, 22 NY3d 44; *People v Eastman*, 85 NY2d 265; *Griffith v Kentucky*, 479 US 314; *United States v Salerno*, 481 US 739; *People v Stuart*, 100 NY2d 412; *Bach v Pataki*, 408 F3d 75; *Saenz v Roe*, 526 US 489; *Supreme Court of Va. v Friedman*, 487 US 59.)

Darcel D. Clark, District Attorney, Bronx (Joshua P. Weiss, Yael V. Levy, David M. Cohn and Matthew B. White of counsel), for respondent. I. The record supports the lower courts’ findings that (1) defendant was not “in custody” for *Miranda* purposes when the police asked whether he had weapons and (2) the police properly searched defendant’s car after he admitted that there were guns in the trunk and consented to the search. (*People v Cruz*, 90 NY2d 961; *People v Paulman*, 5 NY3d 122; *People v Harrison*, 57 NY2d 470; *People v Brown*, 25 NY3d 973; *Miranda v Arizona*, 384 US 436; *People v Doll*, 21 NY3d 665; *Maryland v Shatzer*, 559 US 98; *Howes v Fields*,

565 US 499; *Matter of Kwok T.*, 43 NY2d 213; *California v. Beheler*, 463 US 1121.) II. Defendant's Second Amendment challenges to his conviction and sentence are unpreserved and unreviewable. In any event, defendant had no constitutional right to smuggle a stash of unregistered firearms into New York. (*People v. Davidson*, 98 NY2d 738; *People v. Iannelli*, 69 NY2d 684; *People v. Baumann & Sons Buses, Inc.*, 6 NY3d 404; *People v. Hughes*, 22 NY3d 44; *People v. Gray*, 86 NY2d 10; *People v. Hawkins*, 11 NY3d 484; *People v. Taylor*, 15 NY3d 518; *People v. Reynolds*, 25 NY2d 489; *People v. Friola*, 11 NY2d 157; *People v. Ahmed*, 66 NY2d 307.)

Letitia James, Attorney General, New York City (*Ester Murdukhayeva*, *Andrew W. Amend*, *Barbara D. Underwood*, *Nikki Kowalski*, *Jodi A. Danzig* and *Anthony Raduazo* of counsel), in her statutory capacity under Executive Law § 71. I. This Court has no power to review defendant's unpreserved constitutional challenges. (*People v. Graham*, 25 NY3d 994; *People v. Turriago*, 90 NY2d 77; *People v. Hughes*, 22 NY3d 44; *People v. Baumann & Sons Buses, Inc.*, 6 NY3d 404; *Matter of Van Berkel v. Power*, 16 NY2d 37; *People v. Reynolds*, 25 NY2d 489; *People v. Friola*, 11 NY2d 157; *People v. Adames*, 216 AD3d 519; *People v. McWilliams*, 214 AD3d 1328; *People v. Jacque-Crews*, 213 AD3d 1335.) II. Defendant lacks standing to bring his constitutional challenges. (*United States v. Decastro*, 682 F3d 160; *Jackson-Bey v. Hanslmaier*, 115 F3d 1091; *Allen v. Wright*, 468 US 737; *Moose Lodge No. 107 v. Irvis*, 407 US 163; *People v. Nelson*, 69 NY2d 302; *Staub v. City of Baxley*, 355 US 313; *Lovell v. City of Griffin*, 303 US 444; *Smith v. Cahoon*, 283 US 553; *People v. Williams*, 76 Misc 3d 925; *People v. Caldwell*, 76 Misc 3d 997.) III. Defendant's claim that Penal Law § 265.03 (3) violates the Second Amendment is meritless. (*People v. Rodriguez*, 76 Misc 3d 494; *People v. Brundige*, 78 Misc 3d 616.) IV. There is no merit to defendant's claim that his conviction violates the Privileges and Immunities Clause. (*Saenz v. Roe*, 526 US 489; *Supreme Court of Va. v. Friedman*, 487 US 59; *People v. Kinchen*, 60 NY2d 772; *People v. Correa*, 15 NY3d 213; *Matter of Jacob*, 86 NY2d 651; *Barnard v. Thorstenn*, 489 US 546; *Culp v. Raoul*, 921 F3d 646.)

OPINION OF THE COURT

HALLIGAN, J.

Two primary issues are raised in this appeal. The first is whether, in light of the U.S. Supreme Court's recent decision

in *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]), New York’s criminal prohibition on the unlicensed public carry of a loaded firearm is unconstitutional (see Penal Law § 265.03 [3]). Because defendant Ramon Cabrera’s Second Amendment arguments were not preserved as required by New York law, we do not reach the merits of these constitutional challenges. The second is whether Cabrera was in custody for purposes of *Miranda v Arizona* (384 US 436 [1966]) when he was handcuffed and questioned by law enforcement officers. Because the conclusion below that he was not in custody is unsupported by the record, we reverse and remit the case for a new trial.

In August 2016, Cabrera was pulled over for speeding in South Carolina and revealed to a police officer that he had firearms in his car and was driving to his mother’s home in the Bronx. Although the defendant held a Florida license for the guns and was legally permitted to possess them in South Carolina, the officer warned him that possession of the guns would be unlawful in New York, and notified the Bureau of Alcohol, Tobacco, Firearms and Explosives (ATF) about the defendant and his travel plans. That information was relayed to New York City Police Department Detective Kevin Muirhead, who was assigned to the ATF Joint Firearms Task Force. The South Carolina officer shared the details of his encounter and Cabrera’s license plate number with Detective Muirhead, and Muirhead determined that the car was registered to a Bronx address associated with Cabrera’s mother.

Around 8:00 p.m. that evening, Detective Muirhead and two colleagues, Lieutenant Peter Carretta and ATF Special Agent Adam Schultz, began a stakeout of the mother’s residence. When Cabrera arrived at approximately 10:00 p.m., Detective Muirhead pulled up behind his car. The officers exited their vehicle and approached the defendant as he emerged from his car. Muirhead identified himself as a police officer and asked for the defendant’s name and his destination. Cabrera was “calm and . . . cooperative,” and provided his name and stated that the house belonged to his mother. Detective Muirhead later testified that Cabrera was handcuffed, though he could not recall at what point in the encounter the handcuffs were applied or who had done so.

When asked for identification, the defendant permitted one of the officers to retrieve his wallet from the vehicle’s center console. In removing the driver’s license from the wallet, the

officer also found a Florida concealed carry permit. Detective Muirhead then asked Cabrera whether “there were any firearms in the vehicle [he] should be aware about”; Cabrera informed him that there were three handguns and a rifle in the trunk and permitted him to open it. Upon doing so, Detective Muirhead observed the top portion of a rifle. He asked Cabrera whether he had a New York State carry permit, and Cabrera responded “no.” Cabrera was then arrested and brought to the Task Force’s office, along with his vehicle.

An hour and a half after the officers apprehended him, Cabrera was placed in an interrogation room and his handcuffs were removed. Special Agent Schultz read Cabrera each of the *Miranda* warnings from a form, and Cabrera acknowledged them by nodding affirmatively, initialing next to each warning, and signing the bottom of the form. One of the officers then read to Cabrera from a “consent to search” form, which informed him that, among other things, he had the right to refuse to give consent, that he could withdraw his consent at any time before the search’s termination, that any contraband found during the search could be used against him, and that he could consult with an attorney before he consented to the search. While apprising Cabrera of both the *Miranda* waiver and “consent to search” form, Special Agent Schultz referred to them as “formalit[ies]” and suggested the search needed to be completed before the car could be returned to the defendant’s mother. When asked if he was authorizing the search of the car, Cabrera nodded affirmatively and signed the form. Immediately after, Cabrera said he wanted a lawyer and no further questioning occurred. Cabrera did not, however, withdraw his consent to the search or ask to consult with an attorney about the search. Given Cabrera’s consent, Detective Muirhead searched the trunk, recovering a disassembled rifle, three handguns, and several boxes of ammunition.

Cabrera later moved to suppress both the statements he made to police while handcuffed and the physical evidence found in his vehicle. He argued that he had been placed in custody when “confronted by three officers who immediately handcuff[ed] [him]” and that the officers failed to read him his *Miranda* rights prior to questioning him. He further argued that he never voluntarily consented to a search of the vehicle because his initial verbal consent was involuntary and a fruit of an improper custodial interrogation, and the consent form signed at the Task Force’s office was tainted by the prior un-

lawful custodial interrogation and involuntary in light of certain comments by the police.

Supreme Court denied the suppression motion. The court assumed, as the People conceded it should, that Cabrera was handcuffed before he was questioned, but it nonetheless concluded that the detective was permitted to question Cabrera without first issuing *Miranda* warnings. The handcuffing, the court explained, ensured the officers' safety and "did not transform the encounter into a full-blown arrest requiring probable cause." The court further concluded that under the totality of the circumstances, both the defendant's on-scene consent to search his trunk and written consent at the office were voluntary.

Cabrera pleaded guilty to one count of criminal possession of a weapon in the second degree (Penal Law § 265.03 [3]). The Appellate Division rejected Cabrera's suppression claims and affirmed the judgment (206 AD3d 479 [1st Dept 2022]). It held that the hearing court correctly determined that even if the defendant was handcuffed when he was questioned about the guns outside his mother's house, the handcuffing did not elevate what was otherwise an investigatory detention to custody for *Miranda* purposes, and thus the officers did not first have to provide *Miranda* warnings before questioning Cabrera about the guns. The Court also rejected Cabrera's challenge to admission of the physical evidence, noting that the officers acquired probable cause to search the vehicle under the automobile exception once the defendant admitted to possessing the firearms. Further, the Court agreed with Supreme Court's conclusion that Cabrera voluntarily consented to a search of his car both at the scene and in the Task Force office. A Judge of this Court granted Cabrera leave to appeal (38 NY3d 1187 [2022]).

On appeal to this Court, Cabrera claims to have been in custody for *Miranda* purposes when he was handcuffed and asks this Court to adopt a rule that a handcuffed person is *per se* in custody for purposes of *Miranda*. He further contends that there is no record support for the Appellate Division's finding that he was not in custody under the circumstances and that both his oral and written consent to the search were tainted by the *Miranda* violation and independently involuntary. In addition, the defendant raises several constitutional challenges to his conviction and sentence for the first time on appeal to this Court in light of the Supreme Court's recent decision in *Bruen*.

I.

We begin with Cabrera's Second Amendment challenges. Cabrera argues that, because Penal Law § 265.03 (3) criminalizes unlicensed possession of a firearm, the constitutionality of that statute necessarily rose or fell with the constitutionality of the licensing regulations in effect at the time he was charged. In his view, the U.S. Supreme Court's decision in *Bruen* rendered unconstitutional the entirety of New York's licensing regime, and that in turn meant that Penal Law § 265.03 (3) was facially unconstitutional. Cabrera further argues that the statute is unconstitutional as applied to him on several grounds. He contends that because he was able to obtain a valid gun license in Florida, we must assume that New York's proper cause requirement alone made his unlicensed possession criminal. Cabrera also alleges a violation of his right to travel under the Privileges and Immunities Clause based on what he construes as a residency requirement for New York licenses. Finally, Cabrera argues that the felony classification and authorized sentencing range for violations of Penal Law § 265.03 (3) violate the Second Amendment, Eighth Amendment, Due Process Clause, and Equal Protection Clause in light of *Bruen*.

It is undisputed that Cabrera did not raise these constitutional arguments before the trial court, as is generally required to preserve such challenges for this Court's review (see *People v Baumann & Sons Buses, Inc.*, 6 NY3d 404, 408 [2006]; see also e.g. *People v Davidson*, 98 NY2d 738, 739 [2002] ["Because defendant's constitutional challenge to the loitering statute was made for the first time on his motion pursuant to CPL 330.30, it was not properly preserved"]). Cabrera nonetheless argues that his lack of preservation should be excused, claiming that it would have been "futile, if not frivolous," to challenge Penal Law § 265.03 (3) prior to *Bruen*.

Unlike the trial courts and the Appellate Division, this Court's jurisdiction is limited to "questions of law" (NY Const, art VI, § 3; *People v Turriago*, 90 NY2d 77, 80 [1997]). We have long maintained that, absent certain limited exceptions, a reviewable question of law exists only if it was presented to the trial court in the first instance; generally, "points which were not raised at trial may not be considered for the first time on appeal" (*People v Thomas*, 50 NY2d 467, 471 [1980]; CPL 470.05 [2]). This rule helps ensure that errors are avoided or corrected at the earliest possible opportunity (see *People v Hunter*, 17 NY3d 725, 727-728 [2011]; see also *People v Peque*,

22 NY3d 168, 183 [2013]). It also gives the parties an essential opportunity to probe relevant factual and legal issues, thereby ensuring that the record before this Court reflects a full airing of the points that bear upon an ultimate merits determination (see e.g. *People v Martin*, 50 NY2d 1029, 1031 [1980] [no preservation exception where record was not developed as to existence of exigent circumstances that may have justified warrantless arrest]). Preservation of a constitutional challenge, in particular, “ensures that the drastic step of striking duly enacted legislation will be taken not in a vacuum but only after the lower courts have had an opportunity to address the issue and the unconstitutionality of the challenged provision has been established beyond a reasonable doubt” (see *Baumann & Sons Buses*, 6 NY3d at 408, citing *Matter of Van Berkel v Power*, 16 NY2d 37, 40 [1965]). For these reasons, we have carefully guarded the preservation rule against “erosion” (*People v Mack*, 27 NY3d 534, 540-541 [2016]).

One “very narrow exception,” termed the “mode of proceedings” exception, allows a defendant to raise unpreserved challenges to “the essential validity of the proceedings conducted below” by alleging “error[s] that would affect the organization of the court or the mode of proceedings proscribed by law” (*People v Patterson*, 39 NY2d 288, 295-296 [1976]). In *Patterson*, the defendant relied on a U.S. Supreme Court decision issued during the pendency of his appeal (*Mullaney v Wilbur*, 421 US 684 [1975]) to argue that he was unconstitutionally forced to bear the ultimate burden of persuasion on his extreme emotional disturbance defense to murder. We underscored the critical importance of preserving objections before the trial court, but nonetheless held that the error asserted fit within a “mode of proceedings” exception and was therefore reviewable. Cabrera does not argue that his Second Amendment arguments fall within this “tightly circumscribed class” (*People v Kelly*, 5 NY3d 116, 120 [2005]) of nonwaivable errors (cf. *People v David*, 41 NY3d 90 [2023] [decided today]).

Patterson also noted that at the time of the defendant’s trial, “there was no doubt in this State that the . . . affirmative defense was constitutionally valid” (*Patterson*, 39 NY2d at 296), and “no intimation that the homicide provisions might be vulnerable to serious constitutional challenge” (*id.* at 294). Although we had previously rejected a general exception to our preservation requirement based on a change in the law (see

People v Reynolds, 25 NY2d 489, 495 [1969]), we stated that “[t]he defendant’s failure to object . . . cannot deprive him of the right to attack that practice when an intervening Supreme Court decision calls that practice into question” (*Patterson*, 39 NY2d at 296, citing *O’Connor v Ohio*, 385 US 92 [1966]).

Cabrera relies on this passage of *Patterson*, contending that his unpreserved *Bruen*-based challenges are reviewable “because they are based on an intervening Supreme Court decision that overruled binding precedent after judgment was entered,” and the dissent in *People v Garcia* (41 NY3d 62 [2023]), decided today, takes the same view. In addition to *Patterson*, Cabrera points to *People v Baker* (23 NY2d 307 [1968]), in which this Court reviewed the merits of an unpreserved claim under the Confrontation Clause. At the time of trial, the claim in *Baker* had been squarely foreclosed by *Delli Paoli v United States* (352 US 232 [1957]), but *Delli Paoli* was subsequently overruled by *Bruton v United States* (391 US 123 [1968]). Again relying upon *O’Connor*, we concluded that “[t]he error cannot be ignored upon the ground that no proper objection was made since in this pre-*Bruton* case their admission under limiting instructions was proper” (*Baker*, 23 NY2d at 317 [citation omitted]).

To the extent *Patterson* and *Baker* can be read as setting forth a “futility” exception where an intervening U.S. Supreme Court precedent gives rise to a constitutional claim previously foreclosed by this Court’s precedent, such an exception is not warranted here. Both *Patterson* and *Baker* relied upon *O’Connor*, a decision in which a state high court refused to consider a claim on the ground it was barred by a state procedural rule after the U.S. Supreme Court had granted certiorari, vacated, and remanded to the state court to carry out exactly that task. Then just one year after *Patterson*, the U.S. Supreme Court clarified that States, if they wish, may enforce their “normal and valid” procedural rules, like preservation, to bar review of claims based on intervening U.S. Supreme Court precedent (*Hankerson v North Carolina*, 432 US 233, 244 n 8 [1977]).

In the years following *Patterson*, we consistently required preservation in a series of cases presenting constitutional claims based on intervening U.S. Supreme Court precedent. In *People v Thomas* (50 NY2d 467 [1980]), we held that an intervening U.S. Supreme Court decision will not excuse preservation if the claim previously foreclosed under the Federal

Constitution was already available under state law. There, the Appellate Division had relied on *Patterson* in reviewing an unpreserved error regarding a jury charge on intent. The defendant argued that the charge violated the U.S. Supreme Court's intervening decision in *Sandstrom v Montana* (442 US 510, 513 [1979]) by including a presumption that effectively absolved the People from proving an essential element of the crime. This Court reversed, explaining that the charge in *Sandstrom* had long been held erroneous under state law (see *Thomas*, 50 NY2d at 472). As for the defendant's claim that *Sandstrom* now made the charge unconstitutional under federal law, we held that "the rule requiring a defendant to preserve his points for appellate review applies generally to claims of error involving Federal constitutional rights" (*Thomas*, 50 NY2d at 473). We further noted with approval the U.S. Supreme Court's instruction in *Hankerson* that "when the defendant claims, for the first time on appeal, that the court's charge erroneously shifted the burden of proof, the State courts are free to enforce 'the normal and valid rule that failure to object to a jury instruction is a waiver of any claim of error'" (*id.*, quoting *Hankerson v North Carolina*, 432 US 233, 244 n 8 [1977]).

Both before and after *Patterson*, we have explained that preservation is essential where the failure to raise a claim in the court of first instance means that the appellate record is inadequate to fairly assess the merits, even if governing law was altered by an intervening Supreme Court decision. For example, in *People v Martin* (50 NY2d 1029, 1031 [1980]), the defendant sought review of an unpreserved claim that he had been arrested inside his home without a warrant in violation of the rule announced a few months earlier in *Payton v New York* (445 US 573 [1980]). *Payton* changed the law in New York, which at the time of the defendant's trial allowed warrantless arrests inside the home even absent exigent circumstances. We concluded that the defendant's failure to raise his constitutional challenge before the trial court "deprive[d] the People of a fair opportunity to present their proof on th[e] issue" of exigent circumstances, rendering the record "inadequate to permit the appellate court to make an intelligent determination on the merits," and thus did not review the unpreserved claim (*Martin*, 50 NY2d at 1031). Other cases reach a similar conclusion (see *People v Gonzalez*, 55 NY2d 887, 888 [1982] [same]; *People v Gates*, 24 NY2d 666, 669-670 [1969] [not reaching unpreserved

claim under *Davis v Mississippi* (394 US 721 [1969]) because failure to timely object deprived People of opportunity to establish lawful grounds for arrest]; *People v Friola*, 11 NY2d 157, 158-160 [1962] [not reaching unpreserved claim under *Mapp v Ohio* (367 US 643 [1961]) because record contained no inquiry as to lawfulness of alleged search and seizure]).

These cases demonstrate the high bar for excusing preservation on the basis of an intervening U.S. Supreme Court decision. There can be little doubt that *Bruen* effected a dramatic change in how States may regulate possession of guns in public, or that this Court—like others around the nation—will face an array of significant questions in its wake.¹ On that point, we agree with the dissent in *Garcia*. But as with virtually all our prior cases regarding unpreserved constitutional challenges, adjudication of those issues will have to await a case in which they have been duly preserved.

[1] Several factors lead us to this conclusion. First, unlike the Confrontation Clause claim raised in *Baker*, Cabrera’s Second Amendment claims were not foreclosed by binding precedent from this Court or the U.S. Supreme Court at the time of trial. Defendant points to intermediate appellate authority upholding the proper cause requirement that *Bruen* abrogated (see e.g. *Matter of Corbett v City of New York*, 160 AD3d 415

1. See e.g. *United States v Daniels*, 77 F4th 337 (5th Cir, Aug. 9, 2023) (federal statute prohibiting firearm possession by unlawful users of controlled substance unconstitutional as applied to marijuana user); *Range v Attorney Gen. United States of Am.*, 69 F4th 96 (3d Cir, June 6, 2023 en banc) (federal felon-in-possession statute unconstitutional as applied to defendant with felony-equivalent welfare fraud conviction); *United States v Rahimi*, 61 F4th 443 (5th Cir 2023), cert granted 600 US —, 143 S Ct 2688 (June 30, 2023) (federal statute prohibiting firearm possession by persons subject to domestic violence restraining order is not consistent with historical tradition and thus facially unconstitutional); *United States v Bullock*, 679 F Supp 3d 501 (SD Miss, June 28, 2023, No. 18-CR-165-CWR-FKB) (federal felon-in-possession law unconstitutional as applied to defendant with prior aggravated assault and manslaughter convictions); *United States v Price*, 635 F Supp 3d 455 (SD W Va, Oct. 12, 2022) (federal statute prohibiting possession of a firearm with removed, obliterated or altered serial number facially unconstitutional); *Firearms Policy Coalition, Inc. v McCraw*, 623 F Supp 3d 740 (ND Tex, Aug. 25, 2022), appeal dismissed sub nom. *Andrews v McCraw*, 2022 WL 19730492, 2022 US App LEXIS 37633 (5th Cir, Dec. 21, 2022, No. 22-10898) (Texas criminal prohibition on handgun carry by individuals aged 18 to 20 years old facially unconstitutional); *Commonwealth v Guardado*, 491 Mass 666, 206 NE3d 512 (Apr. 13, 2023) (convictions for unlawful possession of firearm and ammunition violated rights under Second Amendment and Due Process Clause where jury was not instructed that lack of licensure was essential element of offense).

[1st Dept 2018]), but even in the face of adverse Appellate Division precedent, litigants are expected to preserve their constitutional challenges to facilitate potential review by this Court.

Cabrera also calls our attention to *Kachalsky v County of Westchester* (701 F3d 81 [2d Cir 2012]) and *People v Hughes* (22 NY3d 44 [2013]). While acknowledging that “[a] number of courts and academics . . . take the view that *Heller*’s reluctance to announce a standard of review is a signal that courts must look solely to the text, history, and tradition of the Second Amendment,” the Second Circuit in *Kachalsky* concluded that means-end intermediate scrutiny applied to public carry of firearms and upheld the proper cause requirement later invalidated in *Bruen* (*Kachalsky*, 701 F3d at 89 n 9). As with any federal circuit court ruling, *Kachalsky* did not bind this Court.

In *Hughes*, this Court considered a Second Amendment challenge to the classification of criminal possession of a weapon in the second degree (Penal Law § 265.03 [3]) as a felony. Notably, the defendant did not contest the State’s authority to treat his conduct as a crime. Instead, he objected to the relative severity of punishment imposed. In rejecting the contention that the Second Amendment barred classifying unlawful possession as a felony, we emphasized that “New York’s criminal weapon possession laws prohibit only *unlicensed* possession of handguns,” and held that if any Second Amendment scrutiny applied to the severity of punishment for concededly unlawful conduct, intermediate scrutiny was appropriate (22 NY3d at 50-51). Deeming that standard satisfied, the Court concluded that the sentence imposed on Hughes was not constitutionally infirm (*id.* at 51).

At the time of Cabrera’s conviction in January 2018 and appeal to the Appellate Division in early 2022, neither this Court nor the U.S. Supreme Court had determined whether New York’s proper cause requirement violated the Second Amendment. While *Hughes* could fairly be read to adopt intermediate scrutiny in the Second Amendment context, as the dissent in *Garcia* notes (*Garcia*, 41 NY3d at 77, [Rivera, J., dissenting] [decided today]), it did not consider the proper cause requirement or address any of the Second Amendment arguments the defendant now asks us to consider: whether the Second Amendment invalidates a conviction for unlicensed possession where the licensing scheme includes a proper cause requirement; whether New York’s licensing scheme imposes a residency

requirement and, if so, whether the Second Amendment bars that condition; or whether the Second Amendment precludes classification and sentencing disparities between in-home and public possession.

Moreover, unlike the challenge to the affirmative defense in *Patterson*, the arguments that Cabrera now presses were not unanticipated at the time of his trial. *Bruen* rested on the U.S. Supreme Court’s prior decisions in *District of Columbia v Heller* (554 US 570 [2008]) and *McDonald v Chicago* (561 US 742 [2010]). Those rulings did not speak directly to how the Second Amendment right applied outside the home or resolve the appropriate level of scrutiny, and it is clear that early on, some courts and individual judges viewed *Heller* as dispensing with means-end scrutiny—just as the Supreme Court eventually held in *Bruen* (see *Ezell v City of Chicago*, 651 F3d 684, 708 [7th Cir 2011] [applying more rigorous scrutiny to Second Amendment challenge to Chicago’s prohibition on firing ranges]; *Heller v District of Columbia*, 670 F3d 1244, 1271 [DC Cir 2011, Kavanaugh, J., dissenting] [*“Heller and McDonald leave little doubt that courts are to assess gun bans and regulations based on text, history, and tradition, not by a balancing test such as strict or intermediate scrutiny”*]; *Moore v Madigan*, 702 F3d 933, 937, 942 [7th Cir 2012] [Circuit Court was “bound by the Supreme Court’s historical analysis” as “central” to *Heller*, therefore holding the Second Amendment applied outside the home]; *Peruta v County of San Diego*, 742 F3d 1144, 1167, 1173-1175, 1179 [9th Cir 2014], *revd on reh en banc* 824 F3d 919 [9th Cir 2016] [opining that the Second Circuit did not properly grapple with history in *Kachalsky* and that the gun regulations at issue in *Drake v Filko* (724 F3d 426 [3d Cir 2013]), *Woollard v Gallagher* (712 F3d 865 [4th Cir 2014]), and *Kachalsky* should have been struck down even under intermediate scrutiny]; *Kanter v Barr*, 919 F3d 437, 451 [7th Cir 2019, Barrett, J., dissenting] [arguing a categorical felony ban on lawful handgun possession was unconstitutional because “(f)ounding-era legislatures did not strip felons of the right to bear arms simply because of their status as felons”]).

Notably, by 2017, the U.S. Court of Appeals for the D.C. Circuit had invalidated the District of Columbia’s “proper cause” licensing requirement and interpreted *Heller* as “dispens[ing] with tiers of scrutiny in striking down a ban on possession by almost everyone” (*Wrenn v District of Columbia*, 864 F3d 650, 664 [DC Cir 2017]). Both before and after *Wrenn*

was decided, some New York litigants directly attacked *Kachalsky* as wrongly decided under *Heller* and *McDonald*. For example, in May 2013, the New York State Rifle & Pistol Association challenged a New York City rule regarding firearm transport and New York’s gun licensing regime. Relying on *Heller*’s historical analysis, the plaintiff contended that the right to transport and possess guns outside a primary residence was a “core” Second Amendment right, and that *Kachalsky* erred in applying intermediate scrutiny (*New York State Rifle & Pistol Assn. v City of New York*, 86 F Supp 3d 249, 259 [SD NY 2015], *affd* 883 F3d 45 [2d Cir 2018], *vacated & remanded* 590 US 336 [2020] [hereinafter *NYSRPA v CNY*]; *see also Osterweil v Bartlett*, 706 F3d 139 [2d Cir 2013] and *Osterweil v Bartlett*, 21 NY3d 580, 587 [2013] [assessing a related constitutional challenge to New York’s gun licensing regime]).

After the federal district court granted summary judgment to New York City and the Second Circuit affirmed, the U.S. Supreme Court granted certiorari in January 2019 to evaluate the constitutionality of the challenged city and state regulations. Although the Supreme Court later dismissed the case as moot following an amendment to the relevant statute and regulation (*see NYSRPA v CNY*, 590 US 336, 339 [2020]), the dissent and concurrence raised serious doubts about the means-ends test, relied heavily on the historical reasoning laid out in *Heller*, and noted the Court’s eagerness to revisit the issue (590 US at 340 [Kavanaugh, J., concurring] [agreeing with Justice Alito’s dissent that federal and state courts should refocus on historical analysis and signaling that “(t)he Court should address that issue soon”]). The *Bruen* plaintiffs themselves took a similar approach, explicitly arguing in their February 2018 complaint that *Kachalsky* “was wrongly decided” and that it should be overruled (*see also Libertarian Party of Erie County v Cuomo*, 970 F3d 106, 127 [2d Cir 2020] [noting plaintiffs contended that “*Kachalsky* was wrongly decided”]). Given these developments, we cannot conclude that the potential success of these arguments was so unanticipated as to excuse preservation.

Second, unlike the intervening decisions relied upon in *Baker* and *Patterson*, *Bruen* did not directly address the constitutional questions that Cabrera now seeks to raise. *Bruen* ruled that New York’s proper cause standard for issuance of public carry licenses violates the Second and Fourteenth Amendments

(*Bruen*, 597 US at 8-11, 17, 37). It did not address the rest of New York’s licensing scheme or the interplay between the invalidation of New York’s proper cause requirement and state statutes criminalizing unlicensed possession of a firearm, as the dissent in *Garcia* acknowledges (*Garcia*, 41 NY3d at 80-81 [Rivera, J., dissenting] [decided today]). In fact, several of the *Bruen* concurrences explicitly noted that the opinion “decide[d] nothing about who may lawfully possess a firearm or the requirements that must be met to buy a gun” (597 US at 72 [Alito, J., concurring]); that it did “not prohibit States from imposing licensing requirements for carrying a handgun” (*id.* at 79 [Kavanaugh, J., concurring]); and that it did not “cast doubt on longstanding prohibitions on the possession of firearms by felons and the mentally ill” (*id.* at 81, quoting *Heller*, 554 US at 626-627). For this reason, the circumstances of this case are distinguishable from those presented in *O’Connor*, on which we relied in both *Patterson* and *Baker*.

Third, and critically, the failure to preserve Second Amendment challenges in the court of first instance stymied the development of a record that would allow for careful and deliberate adjudication on the merits of constitutional challenges presented to us (*see Martin*, 50 NY2d at 1031). The advent of the one-step history and tradition test does not, alone, compel the conclusion that New York’s criminal possession of a weapon statutes are facially unconstitutional. Rather, that determination must be made by closely analyzing historical analogues to assess whether our modern regulations are consistent with historical tradition. The nature of that complex inquiry only underscores the importance of preservation (*see United States v Bullock*, 679 F Supp 3d 501 [SD Miss, June 28, 2023, No. 18-CR-165-CWR-FKB] [noting difficulty of judicial analysis of historical analogues without benefit of expert reports or amicus briefs]). By way of comparison, when the U.S. Supreme Court considered a single component of New York’s licensing scheme in *Bruen*, it had the benefit of an extensive record, hundreds of pages of briefing on historical analogues and over 80 amici submissions. We simply do not have the record, at this juncture, to give the constitutional questions regarding Penal Law § 265.03 (3) the careful consideration they deserve. To the extent that the classification and sentencing disparities between offenses involving in-home and public possession must

be justified as consistent with historical tradition, the record before us likewise does not permit a meaningful determination on the merits (*see Martin*, 50 NY2d at 1031).

Cabrera's as-applied challenges are unreviewable for a similar reason. His failure to preserve his Second Amendment claim deprived the government of the opportunity to argue that he would have been otherwise ineligible to obtain a license and thus was not aggrieved by the proper cause requirement. Nor are we persuaded that because he obtained a valid out-of-state license it must be presumed that he would have met all of the constitutionally valid requirements for licensure in *this* State. The defendant himself acknowledges that New York's licensing scheme is more onerous than Florida's (and we note that more onerous does not necessarily mean unconstitutional). Finally, the record has not been adequately developed as to whether the defendant meets any purported residency requirement imposed by the State's licensing scheme, which precludes review of his claim under the Privileges and Immunities Clause. To the extent Cabrera raises an Eighth Amendment claim, that too is subject to the preservation requirement.

For the above reasons, we do not reach the merits of Cabrera's constitutional challenges on an underdeveloped record and without the benefit of the careful consideration by the courts and the parties below.² We take no position on whether Cabrera would have had standing to bring his *Bruen* claims had he timely raised them, or on the merits of the various *Bruen* claims addressed in the dissent to *People v Garcia* (41 NY3d 62 [2023] [decided today]).

II.

We turn now to the question regarding whether Cabrera was in custody for purposes of *Miranda* when he was handcuffed and questioned by law enforcement officers in his mother's driveway, and whether his subsequent consents to a search of his vehicle were valid (*see Miranda v Arizona*, 384 US 436 [1966]).

Cabrera contends that the lower courts erred in concluding that he was not in custody for purposes of *Miranda* when he was handcuffed outside his mother's house, and that his statements regarding the firearms in his vehicle and his lack of a

2. Consistent with this Court's practice, remittal is not available to develop a claim that is otherwise unreviewable on preservation grounds.

New York license should have been suppressed accordingly. *Miranda* warnings must be administered when an interrogation occurs “after a person has been taken into custody or otherwise deprived of his freedom of action in any significant way” (*id.* at 444). Not every stop constitutes custody for purposes of *Miranda*. To ascertain custodial status, we must consider “whether a reasonable person innocent of any wrongdoing would have believed that he or she was not free to leave” (*People v Paulman*, 5 NY3d 122, 129 [2005]), and whether there has been a “forcible seizure which curtails a person’s freedom of action to the degree associated with a formal arrest” (*People v Morales*, 65 NY2d 997, 998 [1985], citing *Berkemer v McCarty*, 468 US 420 [1984]; see also *People v Bennett*, 70 NY2d 891, 894 [1987] [“When a seizure of a person . . . does not constitute a restraint on his or her freedom of movement of the degree associated with a formal arrest, *Miranda* warnings need not be given”])).

[2] While the Appellate Division’s determination that Cabrera was not in custody for *Miranda* purposes must be affirmed if supported by the record (see *Paulman*, 5 NY3d at 129), a reasonable innocent person in Cabrera’s position could not have felt free to leave when three law enforcement officers approached him at night, on a residential street, and handcuffed him before questioning him about the firearms in his vehicle. The level to which the police restricted Cabrera’s movement was of a degree associated with a formal arrest. Nor does the record suggest that the defendant had any reason to believe that he would be handcuffed only for a limited duration. We therefore conclude that there is no record support for the conclusion of the courts below that Cabrera was not in custody for *Miranda* purposes. On appeal, the People have conceded that the defendant was subject to interrogation and that they did not argue below that the public safety exception applied. Custodial status is therefore dispositive; in the absence of warnings, his statements should have been suppressed.

In reaching this conclusion, we decline to adopt a per se rule that the use of handcuffs places an individual in custody for purposes of *Miranda* in all instances. In prior decisions, we have stressed that the custodial status analysis is inherently fact-specific, as it turns on the point of view of a reasonable person innocent of any wrongdoing under the circumstances (see e.g. *Paulman*, 5 NY3d at 129; *People v Harris*, 48 NY2d 208, 215 [1979]; *People v Yukl*, 25 NY2d 585, 589 [1969]). In

only one circumstance—where a defendant is interrogated “at gun point”—has this Court indicated that the defendant is in custody for *Miranda* purposes as a matter of law (*People v Shivers*, 21 NY2d 118, 120-121 [1967]; see also *People v Huffman*, 41 NY2d 29, 34 [1976]). Admittedly, there may be very few circumstances where a handcuffed person is not in custody for purposes of *Miranda* given the obvious physical constraint and association with formal arrest. Thus, the use of handcuffs must appropriately be given very substantial weight in this inquiry, but we do not believe it to be dispositive.

This approach accords with that adopted by other state and federal courts, which have accorded significant—but not dispositive—weight to the use of handcuffs in assessing whether an individual is in custody for purposes of *Miranda*. For example, the U.S. Court of Appeals for the Second Circuit noted that “[h]andcuffs are generally recognized as a hallmark of a formal arrest” but assessed their impact on the defendant in light of the specific circumstances presented (*United States v Newton*, 369 F3d 659, 675-677 [2d Cir 2004] [handcuffs were “the problematic factor in (that) set of circumstances” given that the record had no indication that a person “in (the defendant’s) situation would have understood that the handcuffing would likely last only until the officers had completed their search”]; see also *United States v Martinez*, 462 F3d 903, 909 [8th Cir 2006] [defendant in custody, “considering the totality of the circumstances,” when he was detained, patted down, questioned, and then “handcuffed and told he was being further detained”]; *State v Wilson*, 142 NM 737, 747-748, 169 P3d 1184, 1194-1195 [Ct App 2007] [defendant in custody when handcuffed and placed in the back of a police car]; *Commonwealth v Damiano*, 422 Mass 10, 13, 660 NE2d 660, 662 [1996] [a person “handcuffed in the back seat of a police cruiser in the middle of the night on a multi-lane State highway” is in custody]; compare *United States v Coulter*, 41 F4th 451, 454, 460 [5th Cir 2022] [handcuffed individual not in custody where officer informed the defendant he was “going to detain (him)” so he did not “run up and grab the gun” and the defendant “implicitly acknowledged the limited purpose of the restraint”]).

Given our holding that Cabrera was in custody and the undisputed fact that he had not received *Miranda* warnings when he answered Detective Muirhead’s questions, Supreme Court erred in denying his motion to suppress his responses regarding guns in the car and his lack of a New York license.

For that reason, Cabrera's guilty plea should be vacated (*see People v Grant*, 45 NY2d 366, 379-380 [1978]).

[3] While Cabrera also challenges Supreme Court's denial of his motion to suppress the physical evidence found in his vehicle, the record supports the determinations below that the defendant voluntarily consented to the search of his vehicle in writing at the Task Force office. The burden of proving voluntariness lies with the People and is a question of fact (*see People v Kuhn*, 33 NY2d 203, 208 [1973], quoting *People v Whitehurst*, 25 NY2d 389, 391 [1969]). Relevant factors include whether the suspect was in custody at the time, the number of officers present, the defendant's background, whether the defendant was restrained, whether the defendant aided or resisted law enforcement, and whether the police advised the defendant of their right to withhold consent (*see People v Gonzalez*, 39 NY2d 122, 128 [1976]).

When the defendant signed the consent form at the Task Force office, he was in police custody, but the record—both the video of the interaction and the testimony at the suppression hearing—confirms that the handcuffs had been removed, he had been read his *Miranda* warnings, he was calm and cooperative, and he had been specifically advised that he could refuse to consent to the search or withdraw his consent once given.³ Additionally, law enforcement read the consent form aloud, including the provisions that required the defendant's consent be voluntary and stated his right to refuse or withdraw consent and demand a search warrant. Immediately after signing the consent form, Cabrera invoked his right to counsel, suggesting that he appreciated the rights covered in the *Miranda* warnings and the consent form.

While Special Agent Schultz regrettably referred to the two forms as mere “formalit[ies]” and suggested the car could be returned to the defendant's mother once it was searched, there is record support for the conclusion that those comments did not vitiate the voluntariness of Cabrera's consent in light of the indicia of voluntariness. Given that Cabrera voluntarily gave written consent to the search at the office, we need not separately assess whether the automobile exception applies or whether the oral consent the defendant gave at the scene was

3. Given that Cabrera was specifically advised that he could withdraw his consent to search his vehicle once given, his knowledge that the detective had already found the guns does not require a different conclusion.

voluntary and independently sufficient to allow admission of the physical evidence.

To the extent that our case law on successive interrogations after a *Miranda* violation applies to a consent to search, the voluntariness of Cabrera's written consent was not impermissibly tainted by the *Miranda* violation committed when he was initially handcuffed. In determining whether there is a "single continuous chain of events" (*People v Chapple*, 38 NY2d 112, 114 [1975]) or a "sufficiently 'definite, pronounced break in the interrogation' to dissipate the taint from the *Miranda* violation" (*Paulman*, 5 NY3d at 131, quoting *Chapple*, 38 NY2d at 115), we have considered various factors as set forth in *People v Paulman* (5 NY3d at 130-131). In *Paulman*, we held that Mirandized statements made after an un-Mirandized statement were admissible given the different locations of the interrogations, the different methods used to elicit information, a change in police personnel, and the "marked change in the tenor of [the defendant's] engagement with police" (*id.* at 131).

Similar factors support our conclusion that the *Miranda* violation which occurred when Cabrera was initially stopped and handcuffed did not render his later written consent to search involuntary. The written consent was given at a different location than the prior un-Mirandized statements, about 90 minutes later, and under much different circumstances evincing a "change in . . . tenor" of Cabrera's engagement with police (*id.* at 131).⁴ Most notably, he was not in handcuffs surrounded by several officers on the street. These circumstances are distinguishable from the "single continuous chain of events" in *Chapple*, in which an officer forced the defendant into his vehicle, took him to the site of a burglary and questioned him, gave *Miranda* warnings, continued to question him as he took the defendant to the sites of additional burglaries, took him to police headquarters where he continued questioning, and obtained a confession (*Chapple*, 38 NY2d at 114).

4. There are factual distinctions between the circumstances of the subsequent interrogation in *Paulman* and the circumstances of the written consent to search here, but "[n]o one factor is determinative and each case must be viewed on its unique facts" (*Paulman*, 5 NY3d at 131). Particularly given the 90-minute lapse between the *Miranda* violation and the subsequent written consent at the Task Force office—a significantly longer interval than the approximately 30-minute interval between successive interrogations in *Paulman*—we conclude there was no "single continuous chain of events" here (*Chapple*, 38 NY2d at 114).

Accordingly, the order of the Appellate Division should be reversed and the case remitted to Supreme Court for further proceedings in accordance with this opinion.

RIVERA, J. (dissenting). The police had information that defendant Ramon Cabrera was driving across state lines to his mother's home in New York with weapons in the trunk of a car that was registered to her. The police staked out her home, waiting for defendant. When he arrived, police approached, handcuffed defendant, and then asked if he had weapons. Defendant calmly and forthrightly responded he had a rifle and three handguns in the trunk, which, with his consent, they opened and saw part of the rifle. In response to further questioning, defendant stated that he did not have a New York carry permit. The officers then arrested and took defendant to the precinct where law enforcement searched the car and retrieved the weapons and ammunition from the trunk.

I agree with the majority that defendant was in custody when he was handcuffed and before he was informed of his rights, and therefore his inculpatory responses to the officer's questioning should be suppressed (*see* majority op at 52). However, I would make clear that, as a matter of law—and reality—any person placed in handcuffs is thereby in custody and constitutionally entitled to *Miranda* warnings.

Contrary to the majority's view, the record establishes that defendant did not voluntarily consent to the search merely by signing a police form which Special Agent Schultz told him was a "formality." Therefore, the weapons and ammunition, in addition to the statements, must also be suppressed. The prosecution cannot convict defendant without this evidence and therefore the charging instrument should be dismissed.

I.

Handcuffing is Custody for *Miranda* Purposes

To protect the Fifth Amendment right against self-incrimination, *Miranda* warnings are mandated prior to the interrogation of a suspect who is in custody (*Miranda v Arizona*, 384 US 436, 444, 457 [1966]). Custodial interrogation is "questioning initiated by law enforcement officers after a person has been taken into custody or otherwise deprived of his freedom of action in any significant way" (*id.* at 444). *Miranda* rights "become applicable as soon as a suspect's freedom of action is curtailed to a 'degree associated with formal ar-

rest' ” (*Berkemer v McCarty*, 468 US 420, 440 [1984], quoting *California v Beheler*, 463 US 1121, 1125 [1983 per curiam]; *United States v Newton*, 369 F3d 659, 676-677 [2d Cir 2004] [a person in handcuffs was in custody for *Miranda* purposes, even when the police officers informed the defendant that they were not under arrest]). “Handcuffs are generally recognized as a hallmark of a formal arrest” (*United States v Newton*, 369 F3d 659, 676-677 [2d Cir 2004], citing *New York v Quarles*, 467 US 649, 655 [1984]). While handcuffing can be “reasonable to the officers’ investigatory purpose under the Fourth Amendment, [it] nevertheless place[s the suspect] in custody for purposes of *Miranda*” (*United States v Newton*, 369 F3d 659, 676-677 [2d Cir 2004], citing *Berkemer*, 468 US at 440).

Several armed officers stopped defendant late at night and placed him in handcuffs based on information from out-of-state law enforcement that defendant was traveling with unlicensed firearms. In response to the officers’ questions defendant admitted to having weapons, without a carry permit, in the trunk of the car he was driving. The majority and I are in full agreement that once defendant was handcuffed he was in custody for *Miranda* purposes and therefore his subsequent inculpatory statements should have been suppressed (*see* majority op at 52). However, unlike the majority, I take this opportunity to clarify that any person placed in handcuffs is in custody as a matter of law, and therefore entitled to *Miranda* warnings.

Handcuffs have a long, sordid history, including as a tool of bondage (*United States v Malebran*, 26 F Cas 1145, 1146 [CC D NY 1820, No. 15,711] [describing handcuffing as a chattel slavery practice]). Today most people associate their use with law enforcement, and recognize the “two metal rings, joined by a short chain, that are locked around a prisoner’s wrists to prevent free movement” (Cambridge Dictionary, handcuffs [<https://dictionary.cambridge.org/us/dictionary/english/handcuffs>]).

Handcuffs are restraints, full stop. Indeed, handcuffs are commonly used to physically restrain a person during an arrest (*Burch v City of New York*, 2016 WL 11430773, *6, 2016 US Dist LEXIS 195623, *17 [ED NY, Apr. 22, 2016, No. 11-CV-2841 (CBA) (VMS)], quoting NYPD Patrol Guide Procedure No. 203-11 [(a)fter an individual has been controlled and *placed under custodial restraint using handcuffs* and other authorized methods” (emphasis added)]). But a person may be placed in custody short of an arrest because, under our objective test, a

person is in custody when “a reasonable person innocent of any wrongdoing would have believed that [they are] not free to leave” (*People v Paulman*, 5 NY3d 122, 129 [2005]; *People v Yukl*, 25 NY2d 585, 589 [1969]). Once handcuffed, a person is in custody; they cannot reasonably believe that they are free to leave. If they tried to leave, they would be chased by law enforcement; all the while their wrists would be locked in metal. In fact, New York defines the crime of “escape” as requiring “proof that defendant ‘escape[d] from custody.’ ‘Custody,’ in turn, ‘means restraint by a public servant’” (*People v Antwine*, 8 NY3d 671, 674 [2007], citing Penal Law § 205.00 [2]).

The singular purpose of handcuffs is to restrain. Goals well understood by law enforcement personnel in the field and the individuals they restrain with these “metal bracelets.” Thus, there are obvious benefits to avoiding individualized determinations when the common throughline in all cases is that handcuffs are the type of physical restraints that the individual knows they cannot escape.

There is no situation in which handcuffing does not restrain an individual and therefore handcuffing places the person restrained in custody under *Miranda* (*People v Quarles*, 58 NY2d 664, 666 [1982] [suppressing unwarned statements of suspect who had been frisked and handcuffed], *revd on other grounds* 467 US 649 [1984]). Neither this Court nor the United States Supreme Court has ever recognized an instance of handcuffing that was *not* custody for purposes of *Miranda* (*id.*; see also *e.g. Dunaway v New York*, 442 US 200, 215 & n 17 [1979] [describing handcuffing as a “trapping() of a technical formal arrest”]).

The majority has chosen to continue the ad hoc, case-by-case approach to handcuffing even though the Court has repeatedly extolled the benefits of bright-line rules, especially as regards the constitutionality of law enforcement practices. As we have explained, “[i]n addition to providing the rationale for resolution of particular cases, rules give necessary guidance to lower courts and to police. Police officers are well served when they are advised, in advance, as to whether their proposed conduct will be lawful” (*People v Gomez*, 5 NY3d 416, 420 [2005]). We have “sought to provide and maintain ‘bright line’ rules to guide the decisions of law enforcement and judicial personnel who must understand and implement our decisions in their day-to-day operations in the field” (*People v Garcia*, 20 NY3d 317, 323 [2012], quoting *People v P.J. Video*, 68 NY2d 296, 305 [1986]).

The rule is readily understood, even in a fast-paced police encounter. If an officer handcuffs someone, all they need do is advise the individual of their *Miranda* rights, or not ask any questions until those warnings are administered. It's as simple as that. The rule does not undermine law enforcement. To the contrary, the rule ensures proper police conduct. The benefits are obvious: ease of application in the field and in our courts; reduction in the misapplication of *Miranda*; and confidence in law enforcement and our judicial system.

II.

Defendant Did Not Voluntarily Consent to a Vehicle Search

“Consent to search is voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice. Voluntariness is incompatible with official coercion, actual or implicit, overt or subtle” (*People v Gonzalez*, 39 NY2d 122, 128-129 [1976]).¹ Courts have excluded evidence obtained by misstatements that create uncertainty or confusion about an individual’s constitutional right to deny consent. For example, in *United States v Cruz* (701 F Supp 440 [SD NY 1988]), the federal district court held the consent to search involuntary where a police officer stated he would otherwise clearly get a warrant if the defendant did not consent to the search. The court explained that “[p]ublic policy favors a prophylactic rule of exclusion where law enforcement officers misstate facts” and where, as in that case, the defendant was misinformed by the misrepresentation (*id.* at 447-448; *cf.* *People v Dunbar*, 24 NY3d 304 316 [2014] [finding a preamble to *Miranda* warnings, which was, “at best confusing and at worst misleading,” made the *Miranda* warning inadequate and ineffective because it “undercut the meaning of all four *Miranda* warnings, depriving (defendants) of an effective explanation of their rights”]).

Here, after defendant’s arrest and transport to the precinct, and before he was advised of his rights, Special Agent Schultz referred to the *Miranda* warnings as “things we need to go through, formalities, once we do that . . . we can get to the

1. The prosecution’s assertion that the decision here is controlled by *United States v Patane* (542 US 630 [2004]), which held that a lack of *Miranda* warnings on its own does not require suppression of the physical fruits of a suspect’s unwarned by voluntary statements, is unpreserved and unreviewable.

meat of things.” Following the *Miranda* warnings, Special Agent Schultz then read a vehicle search consent form to defendant “just to search the vehicle,” adding that the form—like the waiver of the *Miranda* warnings given moments before—was merely “another formality . . . for you and us” and implying that they could not release the car to his mother until they completed the search, stating:

“This next form is a consent to search. I kind of talked to you about it before. It’s just to search your vehicle. It’s another formality—it’s your mom’s car, and you want to give it back to her, and so this is something we gotta do, you know, for you and for us.”

By then it was almost midnight, an hour and a half after defendant was arrested in his mother’s driveway, and hours after driving to New York.²

Critically, when defendant signed the vehicle search form, he was aware that Detective Muirhead knew about and saw the weapons. While handcuffed outside his mother’s home, defendant himself told the detective that there were three guns and a rifle in the trunk, and at the same time he gave the detective permission to open the trunk, which he did and upon seeing part of the rifle he immediately arrested defendant. Thus, defendant had no reason to doubt the Special Agent Schultz’s statement that his signature on the form was a formality, even though that mischaracterized the need for consent since earlier

2. The majority cites *People v Paulman* (5 NY3d at 130-131) to assert that defendant voluntarily consented to the search at the precinct despite the previous un-Mirandized warnings, in part because of the “change . . . in tenor” of the interaction (majority op at 55). In *Paulman*, this Court declined to suppress a statement that was not “elicited as part of a single continuous chain of events,” stemming from a *Miranda* violation (*id.* at 132). *Paulman* distinguished *People v Bethea* (67 NY2d 364, 368 [1986]), where this Court found that “close sequence” of unwarned statements and later, warned statements warrants suppression of both (*id.* at 132). However, in *Paulman*, the Court found that the change in tenor distinguishing the case from the “single continuous chain of events” in *Bethea* was based on several factors: the defendant initiated the initial interaction with police at his home, different police officers questioned the defendant at the precinct, and there was a long cessation of interrogation while the defendant ate a meal (*id.* at 132). Here, the factual scenario is directly opposite: the police initiated the initial interaction, the same police officers transported defendant to the precinct, and there was no significant gap in questioning for a meal. Contrary to the majority’s view (majority op at 55), the record bears out that the “tenor” of the interactions between defendant and law enforcement remained the same throughout the evening.

that night defendant had admitted the presence of weapons and had already consented to Detective Muirhead opening the trunk to look inside. Although we now hold that this consent was obtained in violation of defendant's rights and cannot be used against him, defendant did not know that at the time he signed the form. The majority is incorrect to the extent it suggests that defendant understood that the perfunctory language in the consent-to-search form, which indicated he could withdraw consent, would prevent the admission of the gun the officer had previously seen during the stop (majority op at 54 & n 3). The futility of withdrawing consent was further bolstered by the officer referring to the forms as necessary before they could "get to the meat of things." The confusion and uncertainty as to defendant's rights caused by the prior search and Special Agent Schultz's minimization of the importance of the written consent was compounded by the suggestion that refusing to sign would only further delay releasing the car to defendant's mother (*Matter of 2029 Hering St., Bronx, N.Y.*, 464 F Supp 164, 172 [SD NY 1979] [finding that for "an average layperson" one of the factors indicating that the consent was not voluntary but merely "submi(ssion) to a claim of lawful authority" was the defendant "see(ing) her own property searched"]]. Under these circumstances, defendant did not voluntarily consent to the car search.

III.

Dismissal of the Indictment is Required

Defendant's statements as well as the weapons discovered in the trunk should have been suppressed. Therefore, I would reverse and dismiss the indictment (*People v Stokes*, 32 NY2d 202, 207 [1973]).³

Judges GARCIA, SINGAS, CANNATARO and TROUTMAN concur. Judge RIVERA dissents in an opinion, in which Chief Judge WILSON concurs.

Order reversed and case remitted to Supreme Court, Bronx County, for further proceedings in accordance with the opinion herein.

3. My conclusion that the indictment should be dismissed makes it unnecessary for me to address defendant's Second Amendment claims. A preservation and merits analysis of various *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]) claims are set forth in my dissent in *People v Garcia* (41 NY3d 62 [2023] [decided today]).

[230 NE3d 1066, 207 NYS3d 1]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GEORGE GARCIA, Appellant.

Argued September 13, 2023; decided November 21, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 3, 2022. The Appellate Division affirmed (1) a judgment of the Supreme Court, New York County (Roger S. Hayes, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree (two counts), and sentenced him to concurrent terms of 3½ years; and (2) an order of that Supreme Court (Daniel Conviser, J.; op 70 Misc 3d 206 [2020]) which had denied defendant's CPL 440.20 motion to set aside the sentence.

People v Garcia, 205 AD3d 432, affirmed.

HEADNOTES

Crimes — Jurors — Selection of Jury — Limiting Questioning Regarding Self-Defense and Gun Ownership

1. In a prosecution for criminal possession of a weapon in the second degree, the trial court did not abuse its discretion in limiting questioning of potential jurors about the use of guns for self-defense and, in the fifth round of voir dire, limiting questions about gun ownership. While the trial court precluded general questions about jurors' views on self-defense, counsel and the court both questioned jurors extensively about their ability to be fair given the facts of the case, including asking jurors broad questions such as their view on "the whole issue of gun control" and "gun licensing," and their ability to "apply the law that applies to this case" as instructed notwithstanding those personal views. On this record, the jurors' ability to follow and apply the law as to defendant's defense for his actions was not inadequately explored. In addition, defendant's argument that the trial court improperly curtailed the questioning of the fifth panel was unpersuasive. The previous panels had expressed confusion over counsel's expansive questions, and defense counsel was able to ask the jurors on the fifth panel a series of abstract questions about their personal views, including on guns, mass shootings, licensed guns, gun control, and whether they had any "moral or political objection[s]" to individual firearm ownership.

Crimes — Sentence — Motion to Vacate Sentence Based on Risk of COVID-19

2. In a criminal prosecution in which defendant argued that his age and health conditions put him at a higher risk of serious death or illness from COVID-19, rendering his sentence unconstitutional under the Eighth Amendment, the record before the Court of Appeals did not provide a basis for

reversal of the decisions below which had declined to vacate defendant's sentence under CPL 440.20. Nor could the Appellate Division have reduced defendant's sentence below the statutory minimum imposed by the trial court.

Crimes — Appeal — Preservation of Issue for Review — Constitutionality of Criminal Possession of Weapon Statutes

3. In a prosecution for criminal possession of a weapon in the second degree, the Court of Appeals did not reach defendant's arguments, raised for the first time in that Court, that the statutory provisions under which he was convicted were unconstitutional in light of *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]). Defendant's arguments that *Bruen* rendered Penal Law §§ 265.03 (1) (b) and (3) and 265.15 (4) facially unconstitutional, and rendered section 265.03 (3) unconstitutional as applied to him, required preservation for the same reasons set forth in *People v Cabrera* (41 NY3d 35 [2023]).

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review § 574; AM JUR 2d Criminal Law § 831; AM JUR 2d Jury §§ 164, 172, 176.
CARMODY-WAIT 2d Jury Selection and Supervision §§ 191:21, 191:24, 191:29, 191:30; CARMODY-WAIT 2d Postjudgment Motions §§ 205:40, 205:43; CARMODY-WAIT 2d Appeals in Criminal Cases §§ 207:23, 207:24.
LAFAYE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 22.3, 24.11, 27.5.
MCKINNEY'S, CPL 440.20; Penal Law §§ 265.03 (1) (b); (3); 265.25 (4).
NY JUR 2d Criminal Law: Procedure §§ 2597, 2598, 3508, 3556, 3558.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Post-Conviction Proceedings and Remedies; Voir Dire.

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POINTS OF COUNSEL

Jenay Nurse Guilford, Center for Appellate Litigation, New York City (Matthew Bova and Katharine Skolnick of counsel), for appellant. I. The court violated George Garcia's statutory and constitutional rights when it barred the parties from

examining jurors about self-defense and whether they could fairly sit on a gun possession case. (CPL 270.15 [1] [c]; US Const Amends VI, XIV; NY Const, art I, §§ 2, 6.) (*People v Boulware*, 29 NY2d 135; *People v Jean*, 75 NY2d 744; *People v Steward*, 17 NY3d 104; *People v Porter*, 226 AD2d 275; *People v Pons*, 68 NY2d 264; *People v Miller*, 28 NY3d 355.) II. George Garcia's health conditions and exceptional equities make his prison sentence unconstitutionally cruel and unusual, and the Appellate Division had the authority to reduce his sentence. (US Const Amends VIII, XIV; NY Const, art I, § 5.) (*People ex rel. Stoughton v Brann*, 185 AD3d 521; *People ex rel. Carroll v Keyser*, 184 AD3d 189; *People v Broadie*, 37 NY2d 100; *Helling v McKinney*, 509 US 25; *Hope v Pelzer*, 536 US 730; *Wilkins v Gaddy*, 559 US 34; *People v Thompson*, 83 NY2d 477; *Solem v Helm*, 463 US 277; *People v Martinez*, 191 AD2d 306; *People v Skeffery*, 188 AD2d 438.) III. Penal Law § 265.03 (1) (b) and (3), and the statutory presumption under Penal Law § 265.15 (4) permitting an inference of unlawful intent from possession of a firearm, are unconstitutional in light of *New York State Rifle & Pistol Assn. Inc. v Bruen* (597 US 1 [2022]), such that George Garcia's convictions of those offenses must be reversed and the charges dismissed. (US Const Amends II, XIV; NY Const, art I, § 6.) (*District of Columbia v Heller*, 554 US 570; *McDonald v Chicago*, 561 US 742; *People v Hughes*, 22 NY3d 44; *Matter of Klenosky v New York City Police Dept.*, 75 AD2d 793; *People v Psilakis*, 148 AD2d 475; *People v Kohut*, 30 NY2d 183; *People v Stuart*, 100 NY2d 412; *Brandenburg v Ohio*, 395 US 444; *Voisine v United States*, 579 US 686.)

Alvin L. Bragg, Jr., District Attorney, New York City (Steven C. Wu, Samuel Z. Goldfine and Stephen J. Kress of counsel), for respondent. I. Defendant's newly raised Second Amendment claims are procedurally barred and meritless. (*People v Baumann & Sons Buses, Inc.*, 6 NY3d 404; *People v Hughes*, 22 NY3d 44; *People v Benjamin*, 216 AD3d 1457; *People v Adames*, 216 AD3d 519; *People v Reynolds*, 25 NY2d 489; *People v Peque*, 22 NY3d 168; *People v Ramlall*, 34 NY3d 1154; *People v Patterson*, 39 NY2d 288; *People v Thomas*, 50 NY2d 467; *People v Ivey*, 86 NY2d 10.) II. Defendant had ample opportunity during voir dire to learn whether prospective jurors could keep an open mind about his defense. (*People v Miller*, 28 NY3d 355; *People v Boulware*, 29 NY2d 135; *People v Steward*, 17 NY3d 104; *People v Arnold*, 96 NY2d 358; *People v White*, 143 AD3d 548; *People v Perry*, 19 NY3d 70.) III. Defendant's bare minimum sentence was not cruel or unusual, and it could not be

reduced in the interest of justice. (*People v Jones*, 39 NY2d 694; *People v Broadie*, 37 NY2d 100; *Rummel v Estelle*, 445 US 263; *People v Thompson*, 83 NY2d 477; *People ex rel. Stoughton v Brann*, 185 AD3d 521; *People v White*, 69 Misc 3d 425; *People v Mingo*, 9 NY3d 938; *People v Miles*, 61 NY2d 635; *Helling v McKinney*, 509 US 25; *Solem v Helm*, 463 US 277.)

Letitia James, Attorney General, New York City (Andrew W. Amend, Barbara D. Underwood, Nikki Kowalski, Jodi A. Danzig and Anthony Raduazo of counsel), in her statutory capacity under Executive Law § 71. I. This Court has no power to review defendant's unpreserved constitutional challenges. (*People v Graham*, 25 NY3d 994; *People v Turriago*, 90 NY2d 77; *People v Hughes*, 22 NY3d 44; *People v Baumann & Sons Buses, Inc.*, 6 NY3d 404; *Matter of Van Berkel v Power*, 16 NY2d 37; *People v Reynolds*, 25 NY2d 489; *People v Friola*, 11 NY2d 157; *People v Adames*, 216 AD3d 519; *People v McWilliams*, 214 AD3d 1328; *People v Jacque-Crews*, 213 AD3d 1335.) II. Defendant lacks standing to bring his constitutional challenges. (*United States v Decastro*, 682 F3d 160; *Jackson-Bey v Hanslmaier*, 115 F3d 1091; *Allen v Wright*, 468 US 737; *Moose Lodge No. 107 v Irvis*, 407 US 163; *People v Nelson*, 69 NY2d 302; *Shuttlesworth v Birmingham*, 394 US 147; *Staub v City of Baxley*, 355 US 313; *Lovell v City of Griffin*, 303 US 444; *Smith v Cahoon*, 283 US 553; *People v Williams*, 76 Misc 3d 925.) III. Defendant's claim that Penal Law § 265.03 (3) violates the Second Amendment is meritless. (*People v Rodriguez*, 76 Misc 3d 494; *People v Brundige*, 78 Misc 3d 616.) IV. Defendant's challenge to Penal Law § 265.03 (1) (b) is meritless. (*United States v Vongxay*, 594 F3d 1111; *Village of Valatie v Smith*, 83 NY2d 396.) V. Defendant's challenges to Penal Law § 265.15 (4) and the instructions given to the jury under that statute are meritless. (*People v Galindo*, 23 NY3d 719; *People v McKenzie*, 67 NY2d 695; *County Court of Ulster Cty. v Allen*, 442 US 140; *People v Laietta*, 30 NY2d 68; *Matter of Raquel M.*, 99 NY2d 92; *People v Baskerville*, 60 NY2d 374; *People v Lemmons*, 40 NY2d 505; *United States v Scott*, 660 F2d 1145; *Overstock Book Co. v Barry*, 436 F2d 1289; *People v Felder*, 47 NY2d 287.)

OPINION OF THE COURT

HALLIGAN, J.

Defendant George Garcia argues that his conviction for two counts of criminal possession of a weapon in the second degree (see Penal Law § 265.03 [1] [b]; [3]) should be reversed because

the trial court impermissibly limited questioning during voir dire. He also argues that his sentence—the statutory minimum term of 3½ years in prison—violates the Eighth Amendment given his risk of serious illness or death from COVID-19, and that the Appellate Division had the power to reduce his sentence below the statutory minimum. None of these contentions provides grounds for reversal. Garcia further argues for the first time in this Court that the statutory provisions under which he was convicted are unconstitutional in light of *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]). These arguments are unpreserved, and for the reasons set forth in *People v Cabrera* (41 NY3d 35 [2023] [decided today]), we do not reach them.

The incident giving rise to this appeal took place in July 2017. According to testimony at trial, while Garcia and his girlfriend were at a New York City nightclub, an unknown man verbally and physically accosted the girlfriend. A physical altercation between the man and the couple ensued, and club security ejected them from the club. Garcia recalled hearing the stranger threaten him as they left, and then seeing four or five people behind them as they walked toward their car. Speculating that these individuals might be friends of the stranger who had assaulted his girlfriend, Garcia retrieved his gun and began walking back toward the nightclub.

Garcia had purchased the gun a few years earlier and obtained a license from the State of Utah. On the night before the incident, he loaded the gun and placed it in the trunk of his car in anticipation of a visit to a New Jersey gun range the following day. At trial, Garcia testified that he intended to use the weapon to “scare” the people he believed were following him; several days after the incident, he was recorded saying he was “gonna light that [person] up that night” and “[the person] was lucky the cops came before [Garcia] did.” When two police officers spotted Garcia with the loaded weapon in hand, they arrested him.

Following a January 2019 jury trial, Garcia was convicted of two counts of criminal possession of a weapon in the second degree—one count for possessing a loaded gun outside his home or place of business under Penal Law § 265.03 (3) and one count for possessing a loaded gun with the intent to use it unlawfully against another person under Penal Law § 265.03 (1) (b). Supreme Court sentenced him to the statutory minimum sentence, two 3½-year terms in prison to be served concurrently.

In July 2020, Garcia, who was 67 years old at the time and suffered from various serious medical conditions, moved under CPL 440.20 to set aside his sentence. He alleged that his incarceration during the COVID-19 pandemic put him at an elevated risk of serious illness or death and therefore constituted cruel and unusual punishment and a violation of substantive due process under provisions of the United States and New York Constitutions. In August 2020, Supreme Court denied Garcia's CPL 440.20 motion, noting the lack of reported COVID-19 cases in his facility at the time, and reasoning that as to proportionality, Garcia had received the minimum statutory sentence.¹ The denial was without prejudice to renewal, should Garcia marshal more evidence or should conditions change with respect to Garcia's health or conditions of confinement. The defendant appealed from both the judgment and the denial of his CPL 440.20 motion. In a consolidated opinion, the Appellate Division held that Supreme Court had not abused its discretion with regard to the voir dire at Garcia's trial, and that the motion court had correctly declined to set aside his sentence under CPL 440.20 (205 AD3d 432 [1st Dept 2022]). A Judge of this Court then granted leave to appeal (39 NY3d 986 [2022]).

Two of Garcia's challenges pertain to voir dire. He argues that Supreme Court erred by barring defense counsel from examining potential jurors about self-defense as a justification and by limiting questions about gun ownership in the fifth round of questioning. When speaking to the first panel of potential jurors, defense counsel tried to ask whether anyone objected generally to the idea of using a firearm in self-defense. The court sustained the People's objection, noting that justification could at best negate the requirement that a gun be possessed with intent to use it unlawfully against another, but was not a defense to possession. The parties were allowed to query potential jurors about whether they could follow the law as instructed and whether they could be fair and impartial, and defense counsel was permitted to ask successive panels broad questions about their views on guns and gun ownership.

1. In October 2020, the court granted Garcia's motion for a stay of the judgment pending appeal and a release on his own recognizance pursuant to CPL 460.50 because it found he presented "minimal flight risk," and his continued incarceration posed "significant risk" to his health given the COVID-19 pandemic. The Appellate Division continued the stay through the pendency of Garcia's consolidated appeals, and a Judge of this Court extended it through the duration of this Court's proceedings.

After four rounds of voir dire, the original pool was exhausted. Prior to questioning the supplemental pool, the court asked the parties to rein in their questioning because counsels' broad questions were confusing the jurors and causing them to speculate about the case.² Midway through questioning the fifth panel, defense counsel asked jurors to raise their hands if they thought that non-law enforcement personnel should be allowed to possess guns. Supreme Court instructed that the proper question was "will the jurors be able and willing to follow the law in our state as it applies to firearms?" When defense counsel continued to ask about each panel's "personal opinion" regarding firearm ownership, Supreme Court again rebuffed his attempts.

Throughout the process, the court took an active role in questioning the jurors, noting not only their answers, but whether they seemed "equivocal" on being able to follow the law and whether their body language indicated strong, insurmountable, or emotional reactions to guns. The court struck several panelists for cause, and the parties liberally used their peremptory challenges. As Garcia notes, the court ultimately instructed the jury that lawful justification could pose a defense to the intent element of one of the charged crimes, and the jury's notes focused on this instruction.

A trial court "has broad discretion to control and restrict the scope of the voir dire examination" (*People v Boulware*, 29 NY2d 135, 139, 140 [1971] [italics omitted]). It is essential, though, that both sides have "a fair opportunity to question the prospective jurors as to any unexplored matter affecting their qualifications" (CPL 270.15 [1] [c]). That standard was satisfied here.

Relying on *People v Miller* (28 NY3d 355 [2016]), Garcia contends that the court impermissibly curtailed his opportunity to explore the jury's potential biases related to the use of guns for self-defense. *Miller* explained that questions regarding jurors' "ability to follow and apply the law" go to "the heart of determining whether those jurors could be impartial and afford defendant a fair trial" (*id.* at 359). Thus, where the trial court completely precluded any questions about whether jurors could disregard an involuntary confession and refused to make

2. For example, in response to a line of questions related to the jurors' views on firearms, one juror responded that defense counsel was "making it a little bit confusing" by "presenting a lot of evidence" in a selective, "piece-meal" fashion and asking them to "judge" prior to the trial.

its own inquiry on the topic because the prosecution had not yet decided to introduce defendant's statements at trial and then later introduced them, the court abused its discretion (*id.*).

[1] This case is distinguishable from *Miller*. To be sure, notwithstanding the "broad discretion" of the trial judge to manage voir dire, any restrictions imposed must still afford counsel fair opportunity to question prospective jurors about "relevant matters" (see *People v Miller*, 28 NY3d 355, 358 [2016]; dissenting op at 86). But here, unlike in *Miller*, while the trial court precluded general questions about jurors' views on self-defense, counsel and the court both questioned jurors extensively about their ability to be fair given the facts of the case, including asking jurors broad questions such as their view on "the whole issue of gun control" and "gun licensing," and their ability to "apply the law that applies to this case" as instructed notwithstanding those personal views. On this record, we do not agree that the trial court abused its discretion such that the jurors' ability to follow and apply the law as to Garcia's defense for his actions was inadequately explored.

Garcia also contends that the court improperly curtailed the questioning of the fifth panel. Given that previous panels had expressed confusion over the expansive questions, and defense counsel was able to ask the jurors on the fifth panel a series of abstract questions about their personal views, including on guns, mass shootings, licensed guns, gun control, and whether they had any "moral or political objection[s]" to individual firearm ownership, this argument is unpersuasive. Garcia's contention that it was necessary to ask these jurors additional general questions about gun policy and unlicensed firearms so they could fully appreciate their own biases is similarly unavailing. Counsel asked a sufficiently broad series of questions to elicit jurors' personal views, including on gun policy generally and whether they could be fair to a defendant accused of illegally possessing a firearm. In our view, no abuse of discretion is apparent on these facts.

[2] Garcia further argues that the trial court should have vacated his sentence under CPL 440.20 because his age and health conditions put him at a higher risk of serious death or illness from COVID-19, rendering his sentence unconstitutional under the Eighth Amendment, particularly considering the equities of his case. On the record before us, this claim does not provide a basis for reversal of the decisions below. Nor

could the Appellate Division have reduced his sentence below the statutory minimum (*see* CPL 470.20 [6]; *People v Harcq*, 292 NY 321, 325 [1944]).

[3] Finally, Garcia argues that *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]) renders Penal Law §§ 265.03 (1) (b) and (3) and 265.15 (4) facially unconstitutional, and renders section 265.03 (3) unconstitutional as applied to him, claiming that because he held a Utah license, the only reason he did not possess a New York license must have been the “proper cause” requirement invalidated in *Bruen*. Both defendant’s facial and as-applied challenges require preservation for the same reasons set forth in *People v Cabrera* (decided today). Therefore, we do not reach them.

Accordingly, the order of the Appellate Division should be affirmed.

RIVERA, J. (dissenting). Defendant George Garcia was convicted upon a jury verdict of two counts of second-degree weapons possession (Penal Law § 265.03 [1] [b], [3]), for threatening someone with a gun. Defendant advances several arguments in support of his appeal. I dissent because two of these claims have merit and require reversal of his conviction.¹

The presumption in Penal Law § 265.03 (1) (b) that unlicensed possession is evidence of intent to use the weapon unlawfully is unconstitutional and therefore defendant’s conviction on this count should be reversed and the count dismissed. Additionally, the court abused its discretion and prejudiced defendant by limiting defendant’s voir dire questions related to gun control and justification. Therefore, his conviction on the single other remaining charge should be reversed and a new trial ordered.

I.

According to the evidence at trial, defendant is a New York City resident with no prior criminal history. Approximately a year before the events leading to his arrest and prosecution, he had purchased and licensed a gun in Utah. He testified that he did not apply for a New York gun possession license because of

1. I agree with the majority that, on the record before us, defendant’s Eighth Amendment challenge to his incarceration during the COVID-19 pandemic does not provide grounds for reversal, and the Appellate Division was correct that it did not have the power to reduce defendant’s sentence below the statutory minimum (majority op at 69-70).

costs and geographic limitations on his possession in New York City. Although he kept the gun at home in a lockbox, on the day he was arrested he had put the gun in the trunk of his car out of convenience because he was taking his girlfriend to a nightclub that evening and then going to a gun range the following day. At the club, defendant and another man began fighting and defendant and his girlfriend were asked to leave. Once outside, the man confronted them and told defendant he was “going to get him.” Defendant testified that he noticed five people following him and he feared for his life, so he retrieved the gun from his car and walked towards the group. At that moment an officer intervened, arrested defendant without incident, and recovered the gun.

During four rounds of voir dire, defense counsel successfully challenged for cause several potential jurors who demonstrated bias and an inability to render a fair verdict based on their views on gun ownership and gun control. Over defense counsel’s objection, the court limited that line of questioning during the fifth and final round. The court also prohibited questioning over defense counsel’s objections regarding justification. Nonetheless, the court eventually charged the jurors that

“[t]he term intent mean[s] conscious objective or purpose . . . Jurors, under our law, the possession of any person of any . . . weapon is presumptive evidence of intent to use the same unlawfully against another . . . The defense of justification, which is commonly known as the defense of self-defense, does not apply to this case, because that defense, justification, applies only to the actual use of force. You may, however, in determining whether or not the defendant had the intent required for this crime, consider the following: The use of a firearm to engage in conduct that is justifiable under the law is not unlawful. Thus, an intent to use a firearm against another justifiably is not an intent to use it unlawfully.”

During deliberations, the jury submitted three notes: (1) inquiring whether it was possible to hold a loaded weapon without intent to unlawfully use it, (2) requesting clarification of “unlawful,” and (3) asking whether it was “unlawful to scare someone with a gun.” The court largely read back the same jury charge, and stated, “[I]f the only intent you find . . . was

to use the gun . . . justifiably, then it would not be unlawful,” and “it is unlawful to scare someone with a gun unless the person’s intent is justified.” The jury convicted defendant of two counts of criminal possession of a weapon in the second degree.

II.

Defendant’s Post-*Bruen* Second Amendment Challenge

Defendant first challenges his conviction as a violation of his Second Amendment right to possess a firearm in public. Defendant contends that under the United States Supreme Court’s decision in *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]) the entirety of New York’s gun possession licensing regime is unconstitutional, and the statute is unconstitutional as applied to him because his possession of an out-of-state license indicates he would have been licensed in New York but for the proper cause provision in New York’s licensing regime. He further argues that there is no historical tradition—as required by the *Bruen* majority—to justify the presumption in Penal Law § 265.03 (1) (b) that mere firearm possession is evidence of intent to use unlawfully. Unlike the majority, I conclude that defendant’s *Bruen* claims fall within an exception to our preservation rules. On the merits, defendant’s facial challenge to the licensing regime fails, but his challenge to the statutory presumption requires reversal of his conviction under Penal Law § 265.03 and dismissal of that charge.

Courts throughout the country are facing challenges to federal and state gun control laws similar to those asserted here and in five other appeals: *People v Pastrana* (41 NY3d 23 [2023]), *People v Cabrera* (41 NY3d 35 [2023]), *People v David* (41 NY3d 90 [2023]), *People v Telfair* (41 NY3d 107 [2023]), and *People v Rivera* (41 NY3d 936 [2023]). Several courts have found merit in these early *Bruen*-based attacks on gun regulation. Delaware’s federal district court determined that plaintiffs were likely to prevail in their challenge to bans on ghost guns²

2. “Ghost guns” are assembled from parts separately purchased to make homemade, untraceable guns that do not have serial numbers (Annie Karni & Chris Cameron, ‘Ghost Guns’: What They Are and Why There’s a Fight

(n. cont’d)

(*Rigby v Jennings*, 630 F Supp 3d 602 [D Del 2022]). A West Virginia federal district court found unconstitutional a ban on possessing guns with obliterated serial numbers (*United States v Price*, 635 F Supp 3d 455 [SD W Va 2022]). The federal district court of Maryland granted a preliminary injunction in favor of plaintiffs challenging firearm restrictions within 1,000 feet of public demonstrations, locations selling alcohol, and private property absent permission of the owner (*Kipke v Moore*, 695 F Supp 3d 638 [D Md, Sept. 29, 2023, Civil Action No. GLR-23-1293]). The Massachusetts Supreme Judicial Court concluded that under *Bruen*, absence of licensure is an essential element of the State's illegal gun possession laws, the trial court's failure to instruct the jury on that element was reversible error, and upon reconsideration held that double jeopardy does not bar the defendant's retrial (*Commonwealth v Guardado*, 491 Mass 666, 668, 206 NE3d 512, 522 [2023], *op vacated in part on reconsideration* 493 Mass 1, 220 NE3d 102 [Oct. 26, 2023, SJC-13315]). And the Fifth Circuit struck down a federal law prohibiting possession of firearms by persons subject to domestic violence orders of protection (*United States v Rahimi*, 61 F4th 443 [5th Cir 2023], *cert granted* 600 US —, 143 S Ct 2688 [2023]).

As these cases illustrate, the *Bruen* majority has wrought a change in the law with immeasurable effects on the safety of our neighborhoods. The Supreme Court will have to answer open questions regarding what regulations are constitutional under its "rigid history-only approach" (*Bruen*, 597 US at 103 [Breyer, J., dissenting]; see *United States v Rahimi*, 61 F4th 443 [5th Cir], *cert granted* 600 US —, 143 S Ct 2688 [2023]). We are in uncharted and dangerous territory, waiting to see how the law will develop in this post-*Bruen* era. But with or without the Supreme Court's introspection, it falls to the rest of the federal and state judiciary to determine what legislatures may do to curb gun violence. For now, the majority has merely delayed resolution of these first *Bruen*-spawned challenges to our State's gun laws (*People v Cabrera*, 41 NY3d at 39).

Over Them, NY Times, Aug. 8, 2023). *Rigby v Jennings* concerned possession of unserialized guns and certain firearm component parts used to make these "ghost guns" (630 F Supp 3d 602, 607 [D Del 2022]).

A.Standing

Two threshold matters are presented on this appeal. First, the Attorney General intervenor unpersuasively argues that defendant does not have standing to bring his claims. The United States Supreme Court has consistently held that a defendant has standing to challenge the constitutionality of a licensing scheme that underlies their criminal prosecution, even if the defendant did not apply for the license (*see Shuttlesworth v Birmingham*, 394 US 147, 151 [1969] [the defendant, convicted under a statute that criminalized participating in public parades or demonstrations without a permit, had standing to challenge law even though he did not apply for permit]; *Staub v City of Baxley*, 355 US 313, 319 [1958] [“The decisions of this Court have uniformly held that the failure to apply for a license under an ordinance which on its face violates the Constitution does not preclude review in this Court of a judgment of conviction under such an ordinance”], citing *Smith v Cahoon*, 283 US 553, 562 [1931]; *Lovell v City of Griffin*, 303 US 444, 452 [1938]). The cases relied on by the prosecution and the Attorney General intervenor are both civil injunction licensure cases, rather than criminal cases, and are accordingly distinguishable (*Allen v Wright*, 468 US 737 [1984]; *Moose Lodge No. 107 v Irvis*, 407 US 163, 166-168 [1972]). When evaluating standing in criminal cases, the Supreme Court has consistently held that when a defendant is being prosecuted based on a licensing scheme challenged as unconstitutional, as is the case here, it is the fact of the prosecution that confers standing.

Therefore, defendant has standing to challenge the basis for his conviction even though he did not apply for a New York license to possess his gun in public.

B.Preservation

The second threshold question is whether defendant’s Second Amendment claims are barred by our rules of preservation. The majority so holds, but I disagree. Generally, we will not review a claim raised for the first time on appeal and our preservation rules do not allow a defendant to “sit idly by while error is committed, thereby allow[ing] the error to pass into the

record uncured, and yet claim the error on appeal” (*People v Patterson*, 39 NY2d 288, 295 [1976]). However, we have recognized an exception to our preservation rules when an intervening decision from the United States Supreme Court changes the legal landscape, upending established decisional law. In those cases, “[t]he defendant’s failure to object to a practice deemed valid in this State cannot deprive [them] of the right to attack that practice when an intervening Supreme Court decision calls that practice into question” (*id.* at 296; *see also People v Thomas*, 50 NY2d 467, 434 [1980] [along with mode of proceeding error exception to preservation, *Patterson* “also recognized that the defendant’s failure to object was excusable because the statutory practice had previously been deemed valid and had only been called into question by an intervening Supreme Court decision”]). As the Court has recognized, “[w]ere we not to treat appellant’s claim on the merits, [they] would be deprived of a State forum in which [their] arguments could be heard” (*Patterson*, 39 NY2d at 296). This “intervening decision” exception dovetails with our rule that a party must raise a claim at the first possible opportunity (*id.* at 295). Since a party cannot raise a claim of which they are unaware, preservation is no bar to appellate review.

In *Bruen*, a majority held that the “plain text” of the Second Amendment “presumptively guarantees . . . a right to ‘bear’ arms in public for self-defense,” because “[n]othing in the Second Amendment’s text draws a home/public distinction with respect to the right to keep and bear arms” (*Bruen*, 597 US at 32-33). The majority adopted a “historical tradition” test, analogizing to historical factors considered in First Amendment constitutional jurisprudence (*id.* at 17 [rejecting the two-step test in *District of Columbia v Heller* (554 US 570 [2008]) in favor of a test on regulations where “the government must demonstrate that the regulation is consistent with this Nation’s historical tradition of firearm regulation”]). Under that test, the majority concluded that New York’s “proper cause” licensing requirement had no historical justification: “Apart from a few late-19th-century outlier jurisdictions, American governments simply have not broadly prohibited the public carry of commonly used firearms for personal defense” (*Bruen* at 70). Therefore, public carry is presumptively permitted, subject to restrictions, rather than presumptively prohibited, subject to extenuating circumstances (*id.* at 33).

The *Bruen* majority’s holding was a sea change in the law, replacing the means-end intermediate scrutiny universally ap-

plied by courts throughout the country after the Supreme Court’s *Heller* and *McDonald v Chicago* (561 US 742 [2010]) decisions in cases challenging state gun licensing schemes, with a historical originalist analysis (see *Taveras v New York City*, 2022 WL 2678719, *1, 2022 US App LEXIS 19093, *3 [2d Cir, July 12, 2022, No. 21-398] [in *Bruen*, “the Supreme Court expressly rejected the two-part test that this Circuit—and many others—had been applying to Second Amendment claims . . . neither the district court nor the parties’ briefs anticipated and addressed this new legal standard”]; *Range v Attorney Gen. United States of Am.*, 69 F4th 96, 101 [3d Cir 2023] [“*Bruen* abrogated our Second Amendment jurisprudence”]; *United States v Rahimi*, 61 F4th 443, 450-451 [5th Cir 2023] [“*Bruen* clearly ‘fundamentally change(d)’ our analysis of laws that implicate the Second Amendment rendering our prior precedent obsolete” (citation omitted) (quoting *In re Bonvillian Marine Serv., Inc.*, 19 F4th 787, 792 [5th Cir 2021])], cert granted 600 US —, 143 S Ct 2688 [2023]).

Licensing requirements generally survived intermediate scrutiny based on the government’s undisputed interest in public safety (*Kachalsky v County of Westchester*, 701 F3d 81, 85 [2d Cir 2012]; *New York State Rifle & Pistol Assn., Inc. v Beach*, 354 F Supp 3d 143, 148 [ND NY 2018]; *Libertarian Party of Erie County v Cuomo*, 970 F3d 106, 114 [2d Cir 2020]). That was the well-established jurisprudence in New York by 2018 at the commencement of defendant’s trial. For example, in 2012, the Second Circuit Court of Appeals considered whether the Second Amendment guarantees a right to possess and carry weapons in public for self-defense, rendering unconstitutional New York’s licensing requirement that an applicant establish “proper cause” to carry a weapon outside the home or business (*Kachalsky* at 83). *Kachalsky* rejected the plaintiffs’ proposed Second Amendment analytic paradigm, grounded solely on what the plaintiffs claimed was a history and tradition of a Second Amendment right to carry handguns in public (*id.* at 96). The court noted that history was “highly ambiguous” and certainly could not be the sole legal lens by which to assess plaintiffs’ constitutional challenge (*id.* at 91). Having rejected the premise that the Second Amendment protects unregulated public carry, the Second Circuit turned to the question of the proper standard by which to assess the constitutionality of the challenged licensing requirement. The court reasoned that because the United States Supreme Court in

District of Columbia v Heller identified the “core” Second Amendment protection as the “right of law-abiding, responsible citizens to use arms in defense of hearth and home” (*Kachalsky* at 93, quoting *Heller*, 554 US 570, 634-635 [2008]), intermediate scrutiny is the proper standard “when the regulation does not burden the ‘core’ protection of self-defense in the home” (*Kachalsky* at 93). Applying that standard, the court concluded that the proper cause requirement was sufficiently related to New York’s “substantial, indeed compelling, governmental interests in public safety and crime prevention” (*id.* at 97).

A year later, in *People v Hughes*, our Court held that the defendant’s sentence as a prior felon for weapon’s possession in the defendant’s home did not violate his Second Amendment right to keep and bear arms (22 NY3d 44, 50-51 [2013]). We assumed without deciding that defendant’s sentence was subject to the Second Amendment and acknowledged that the level of scrutiny applicable to Second Amendment claims was “left unanswered by the Supreme Court in *Heller*,” but that several federal courts of appeals had applied intermediate scrutiny (*id.* at 51, citing *Heller v District of Columbia*, 670 F3d 1244, 1261-1264 [DC Cir 2011]; *United States v Booker*, 644 F3d 12, 25 [1st Cir 2011]; *United States v Masciandaro*, 638 F3d 458, 471 [4th Cir 2011]; *United States v Chester*, 628 F3d 673, 683 [4th Cir 2010]; *United States v Marzzarella*, 614 F3d 85, 97 [3d Cir 2010]; *United States v Reese*, 627 F3d 792, 802 [10th Cir 2010]; *United States v Skoien*, 614 F3d 638, 641-642 [7th Cir 2010 en banc]). We noted that “the Supreme Court’s *Heller* opinion itself seems to point in the direction of intermediate scrutiny” and reasoned that under that standard, “preventing the criminal use of firearms is an important government objective; and keeping guns away from people who have shown they cannot be trusted to obey the law is a means substantially related to that end” (*Hughes* at 51-52).

The majority concludes that defendant failed to preserve his constitutional claim, relying on three factors the majority deems dispositive. First, the majority states that at the time of defendant’s trial defendant’s claims were not foreclosed by binding precedent (*Cabrera*, 41 NY3d at 46). This is a paper tiger because *Kachalsky* and *Hughes* make clear, under the case law as it stood at the time of defendant’s trial, the challenges he now asserts would have been rejected outright.

The second and third factors raised by the majority are easily dispensed with. Contrary to the majority’s assertion that

Bruen does not directly implicate the constitutional issues at play in *People v Baker* (23 NY2d 307 [1968]) and *Patterson* (39 NY2d at 295-296; *Cabrera*, 41 NY3d at 49), *Bruen* is indistinguishable in that its holding is at the core of the constitutional challenges raised here. The majority's interpretation of the holding in *Bruen* ignores the import of that decision and its effect on gun possession regulation throughout the country. The *Bruen* majority changed the legal standard for evaluating regulations on public possession of firearms, holding that public possession of firearms is a right protected by the Second Amendment on equal standing with the First Amendment, subject to the same constitutional protections as home possession. Defendant grounds his claim on this now-firmly established right and relies on the Supreme Court's historical tradition test to argue the unconstitutionality of his conviction under New York's gun possession laws. There is no oxygen between the *Bruen* majority's doctrinal pronouncements and defendant's claims.

The majority's third basis for deploying the preservation rule is to ensure an adequate record for appellate review (*Cabrera*, 41 NY3d at 45-46). I agree that a rule requiring preservation of all available claims incentivizes parties to adequately raise and argue those claims. However, the majority's rule is an ineffective means to achieve that end as applied to claims that are only viable after trial because of an intervening Supreme Court decision. Moreover, nothing bars us from remitting for a full development of the factual record so that a defendant and the prosecution may present their arguments under the historical tradition test.

The most troubling aspect of the majority's standard is that it requires prescience on counsel's part akin to clairvoyance. For example, the majority asserts that counsel should have made the arguments in defendant's New York criminal prosecution that eventually succeeded in *Bruen*, notwithstanding Second Circuit precedent rejecting those same claims and their underlying analysis. In support, the majority states that *Kachalsky* did not bind our Court (*Cabrera*, 41 NY3d at 47). That's true, but neither did the decisions from the Seventh and D.C. Circuits—including the respective dissenting opinions by two judges before their appointment to the Supreme Court—cited by the majority as providing a basis for counsel to have realized that they should have asserted claims long rejected by both the Second Circuit and this Court (*Kachalsky*, 701 F3d

81; *Hughes*, 22 NY3d 44). The majority’s citation to *Peruta v County of San Diego* (742 F3d 1144, 1167, 1173-1175, 1179 [9th Cir 2014], *revd on reh en banc* 824 F3d 919 [9th Cir 2016]) is especially curious, because that Court (sitting en banc) employed a historical analysis and yet concluded that the Second Amendment does not protect a public carry of concealed weapons and upheld California’s good cause requirement.³ None of these decisions could or should have put defense counsel on notice that theories shopped around the country with limited success—and having failed miserably in New York—would miraculously be embraced as winning arguments in our state trial courts.

In essence, the preservation rule adopted by the majority places an unduly high burden on counsel. Counsel is not required to divine the possible future success of formerly rejected claims. In the context of ineffective assistance of counsel claims, courts reject the high bar the majority now applies to our rules of preservation—rules intended to ensure claims are properly considered before reaching our Court. In fact, this Court should take care to avoid promulgating a preservation doctrine that incentivizes clogging trial court dockets with meritless claims foreclosed by precedent. In *Reed v Ross*, the Supreme Court noted:

“[I]f we were to hold that the novelty of a constitutional question does not give rise to cause for counsel’s failure to raise it, we might actually disrupt state-court proceedings by encouraging defense counsel to include any and all remotely plausible constitutional claims that could, some day, gain recognition. Particularly disturbed by this prospect, Judge Haynsworth, writing for the Court of Appeals in this case, stated:

3. California’s licensing statute provided as follows:

“[T]he sheriff of a county may issue a [concealed carry] license to [a] person upon proof of all of the following:

“(1) The applicant is of good moral character.

“(2) Good cause exists for issuance of the license.

“(3) The applicant is a resident of the county or a city within the county, or the applicant’s principal place of employment or business is in the county or a city within the county and the applicant spends a substantial period of time in that place of employment or business.

“(4) The applicant has completed a course of training as described in Section 26165” (Cal Penal Code § 26150 [a]).

“ ‘If novelty were never cause, counsel on appeal would be obliged to raise and argue every conceivable constitutional claim, no matter how far fetched, in order to preserve a right for post-conviction relief upon some future, unforeseen development in the law. Appellate courts are already overburdened with meritless and frivolous cases and contentions, and an effective appellate lawyer does not dilute meritorious claims with frivolous ones. Lawyers representing appellants should be encouraged to limit their contentions on appeal at least to those which may be legitimately regarded as debatable’ ” (*Reed v Ross*, 468 US 1, 15-16 [1984], quoting *Ross v Reed*, 704 F2d 705, 708 [4th Cir 1983]).

As Justice Marshall stated in *Farmer v Sumner*, “[t]he fact that petitioner did not raise a *Booth* claim below rather obviously reflects the fact that *Booth* had not been handed down at the time. Petitioner should not be penalized for not being prescient” (489 US 1060, 1061 [1989] [Marshall, J., dissenting]). Similarly, counsel cannot be faulted for failing to intuit that almost a decade after *Hughes*, the Supreme Court would adopt a completely different legal framework and hold the proper cause provision unconstitutional.

The standard adopted by the majority “cut[s] back on the hard won exemptions by which we have softened the rigors of the preservation doctrine when applied to certain fundamental constitutional rights” (*People v Thomas*, 50 NY2d 467, 474 [1980] [Fuchsberg, J., concurring]). Our “procedural rules should be so designed as to keep unjust results to a minimum” (*People v Finch*, 23 NY3d 408, 416 [2014]).

Defendant raised his claims—now viable under *Bruen*—at the earliest possible opportunity, after the United States Supreme Court replaced New York’s constitutional method for analyzing Second Amendment challenges to the Penal Law criminal weapons possession provisions and the public gun possession licensing scheme. Therefore, they are reviewable on this appeal.

III.

Facial Challenge to Penal Law § 265.03

Defendant’s facial challenge that the entirety of New York’s gun licensing regime is unconstitutional is without merit. The

petitioners in *Bruen* did not challenge Penal Law § 265.03 (3)—the section defendant was convicted of violating. More to the point, the *Bruen* majority struck down only the “proper cause” provision of the regulatory scheme, which required that an applicant for a public carry license establish that they had a reason other than self-defense protection to possess a gun in public (*Bruen* at 11). Defendant’s suggestion that the majority’s holding nullifies New York’s regulation of public gun possession is belied by the *Bruen* majority’s reference to certain common regulatory requirements (*id.* at 38), as well as Justice Kavanaugh’s concurring opinion, joined by Chief Justice Roberts, that states are not prohibited “from imposing licensing requirements for carrying a handgun for self-defense” (*id.* at 79). A solid majority of the United States Supreme Court recognizes some form of gun possession regulation as constitutional.

IV.

As-Applied Challenge

While remittal is appropriate to develop the factual record under the historical tradition test, defendant’s as-applied challenge to the statute and licensing regulations does not require this outcome and is inappropriate for remittal. Defendant did not apply for a permit to carry a weapon in public in New York. That failure is fatal to his claim because he has deprived the State of an opportunity to assess his eligibility for a license. Indeed, we do not know if defendant would have been issued a license had he applied. Crucially, defendant testified that he applied for a Utah license because it would have been difficult to secure a gun possession license in New York, citing expense and that the license would only be valid in the borough where he lived. Neither of these reasons implicate the proper cause provision (*Teamsters v United States*, 431 US 324, 364-368 [1977]; see also *Bordell v General Elec. Co.*, 922 F2d 1057, 1061 [2d Cir 1991] [requiring plaintiff to show “objective evidence to substantiate his claim that the challenged conduct has deterred him from engaging in protected activity”]).

Unlike challenges that require a historical tradition record, remittal is not appropriate to address the factual deficiencies in defendant’s as-applied claims. Returning the case to the

trial court would devolve the proceeding to a quasi-administrative hearing and circumvent the regulatory structure (Penal Law § 400.00). Permitting this end run incentivizes gun owners to flout the State’s licensing laws, increasing the risk to the public and gun-related violence. The fact is that the *Bruen* majority did not abolish New York’s licensing regime but instead reaffirmed regulation as constitutionally permissible (*Bruen* at 38).

V.

“Intent to Use Unlawfully” Presumption in Penal Law

§ 265.03 (1) (b)

Defendant claims that Penal Law § 265.03 (1) (b), which bars the “intent to use . . . unlawfully,” is unconstitutional under *Bruen* due to the presumption that possession of a weapon is evidence of the intent to use that weapon unlawfully. Penal Law § 265.15 (4) provides that “[t]he possession by any person of any . . . instrument, appliance or substance designed, made or adapted for use primarily as a weapon . . . is presumptive evidence of intent to use the same unlawfully against another.” Given the *Bruen* majority’s holding that the Second Amendment guarantees the right to carry a weapon in public for self-defense, the statutory presumption is unconstitutional on its face as it requires the jury to assume a defendant intends an unlawful use of a weapon merely because they possess the weapon in public. Following *Bruen*, which held that public possession is protected by the Second Amendment, there simply cannot be a criminal statutory presumption that mere public possession—not just unlicensed public possession—can be presumed to indicate an intent to use unlawfully.

VI.

Restrictions on Voir Dire

Defendant advances meritorious claims based on the court’s limitations during the voir dire of the venire. Thus, even if his Second Amendment challenge is unpreserved, he is entitled to reversal and a new trial as I discuss below.

A.

Jury Selection

The year of defendant’s trial, there were over 300 mass shootings in the United States.⁴ The evening between the second and third round of voir dire, 13 people were killed in a mass shooting in Thousand Oaks, California. Multiple jurors alluded to the mass shootings in the news when discussing their views on gun ownership. Defense counsel successfully challenged for cause several prospective jurors based on the venirepersons’ express and potential biases regarding gun control. After several rounds of questioning, during the final round, the court restricted counsel’s prior line of inquiry on gun ownership. Efficient administration of a trial is within the trial judge’s discretion, but the sudden prohibition on questions that had surfaced actual and implicit bias in the prior rounds was error.

The line of questioning, which drilled down to the venirepersons’ sensibilities about guns, was critical to identifying express and implicit bias. For example, counsel asked, “Would you all promise me that you will follow the New York State law as it applies to the facts in making your determination?” Despite potential jurors responding that they could “follow New York State law” regarding guns, they backtracked upon further questioning. Indeed, when later asked their specific views about guns, some potential jurors gave answers indicating they could not in fact be fair in defendant’s gun case. For example, after one potential juror agreed that the general public should be barred from possessing firearms, the court clarified that “the real question is, will you be willing, can you, will you apply the law that applies to this case, to the facts as you find them to be and make a decision.” The prospective juror candidly responded, “No. No. I mean given what’s going on in the world right now with guns, I just, no.” Another prospective juror flat out denied they could put aside any bias, declaring: “I won’t be able to be fair to anyone that was carrying a gun in Manhattan.” A New York City elementary school teacher affirmed she could follow the law, but was so emotional when discussing the dangers of guns near children that the judge dismissed her for

4. *Mass Shootings in 2018*, Gun Violence Archive, <https://www.gunviolencearchive.org/reports/mass-shooting?year=2018> (defining “mass shooting” as a single incident in which four or more people, not including the shooter, are “shot and/or killed” at “the same general time and location”).

cause because of her “quivering” voice and “shaking” body that was “beyond voluntary control” when discussing her views on guns.

And so the voir dire progressed during four rounds with nine jurors selected, and 21 persons dismissed for cause, almost all due to an inability to be fair. Nevertheless, in the fourth round, the court expressed “frustrat[ion] by the lack of progress” with jury selection, which by then had taken two days. Then, before round five of jury selection, the prosecutor expressed concern that 65 additional prospective jurors may not be enough to seat a jury due to the number of for-cause challenges. The court raised scheduling concerns and indicated that jury selection needed to be completed that day. During this discussion, the court instructed the lawyers not to ask about case facts, or out-of-state licenses, stating, “I absolutely don’t want you to go there,” because that line of questioning would be “confusing” to the prospective jurors. Defense counsel objected to the court’s limitation on asking the prospective jurors’ views about guns. In response, the court clarified that counsel “[can] ask if they will follow the law regarding firearms regardless of their personal views about whether individuals should be able to have a *licensed firearm* or not . . . [b]ut not about the general view about firearms” (emphasis added).

After that directive, the court interrupted defense counsel when he started to ask, as he had in previous rounds, whether anyone other than the police or military should have guns:

“[DEFENSE COUNSEL]: . . .

“Let me put a question to the panel, I ask for hands. Who here thinks that individuals other than police officers and the military should not have firearms?

“THE COURT: Well, that’s not the question, counsel.

“The question is, will the jurors be able and willing to follow the law in our state as it applies to firearms? . . .

“[On-the-record discussion held at sidebar.] . . .

“[DEFENSE COUNSEL]: . . . [With a] lot of bonafide[] cause challenges, the information only was extracted upon questions put to them about their views, which then allowed them to feel comfortable enough to say honestly I cannot be fair.

“People who are articulating they could be fair . . . were ultimately struck for cause because when they started talking about these issues, or they were like, you know what, I can’t be fair, I had these experiences. I can’t be objective.

“THE COURT: All right.

“What’s your position, People?

“[ASSISTANT DISTRICT ATTORNEY]: I think we are getting too far foul about asking gun policy. I think the last round people were getting confused about whether dislike gun generally meant they couldn’t be fair in this particular case. So I think we should prevent questions on gun policy, generally.

“THE COURT: Okay.

“That’s my feeling, that your questions are too broad about gun policy. Did we do enough in this state, in this country, it just starts getting way beyond . . . the juror’s qualifications to be a fair juror. So I will not allow you to ask that question.

“[DEFENSE COUNSEL]: So I won’t.

“I understand the Court’s order to me that I cannot ask questions about gun policy. Fair enough.

“May I ask a personal opinion on firearm and individuals who have firearms?

“THE COURT: No. You are certainly welcome to ask if they will follow the law regarding firearms regardless of personal views about whether individuals should be able to have a licensed firearm or not. You can ask that. But not about the general view about firearms.”

Jury selection concluded at the close of this fifth round.

Defense counsel’s voir dire questioning was further curtailed after counsel asked the venire panel, “does anyone have an objection to the idea of, if you have a firearm, you can use that to defend yourself or somebody else?” The prosecutor objected, arguing that justification was not at issue. Defense counsel replied that it may have bearing on the defense’s case because “this incident emanates from a confrontation in which . . . [t]he evidence is [defendant’s] girlfriend was assaulted.” The

court sustained the objection and instructed the prosecutor and defense counsel not to discuss justification or defendant's out-of-state gun permit.

B.

Defendant's Right to Inquire During Voir Dire

The court improperly curtailed defense counsel's voir dire of prospective jurors on their views of gun ownership and justification, even though specific questions about their views had previously resulted in successful for-cause challenges based on pro-gun control bias. In addition, the court denied defendant a fair opportunity to explore the venirepersons' qualifications and potential biases by precluding an entire line of questions on self-defense and defense of a third party.

CPL 270.15 (1) (c) states, in part, that "[t]he court shall permit both parties . . . to examine the prospective jurors, individually or collectively, regarding their qualifications to serve as jurors. Each party shall be afforded a fair opportunity to question the prospective jurors as to any unexplored matter affecting their qualifications." The Court has long recognized that "parties may *always* inquire as to those matters which would constitute a sufficient ground for a challenge for cause" (*People v Boulware*, 29 NY2d 135, 142 [1971] [emphasis added], citing Code Crim Pro §§ 375, 376). As particularly relevant here, a defendant has a "right to inquire as to . . . prejudices [of potential jurors] so as to provide a foundation for a challenge for cause or a peremptory challenge" (*Boulware* at 141). "[Q]uestions related to whether [a prospective juror] would give the defendant a fair trial" are the "kind . . . which should be permitted during a voir dire" (*id.* at 142 [italics omitted]). "The Judge presiding necessarily has broad discretion to control and restrict the scope of the voir dire examination" (*id.* at 139-140 [italics omitted]). "Any restriction imposed on voir dire, however, must afford 'counsel a fair opportunity to question prospective jurors about relevant matters'" (*People v Miller*, 28 NY3d 355, 358 [2016], quoting *People v Steward*, 17 NY3d 104, 110 [2011]). The majority attempts to distinguish *Miller* (28 NY3d 355) by mischaracterizing the nature of questioning in the fifth panel as not limiting a line of inquiry, and only limiting the scope of inquiry (majority op at 69). This argument fails to address that the court here did in fact prohibit two separate entire lines of inquiry that had direct

implications on whether prospective jurors could follow the law—if a juror does not believe armed self-defense is ever lawful, they could not be fair on this jury regarding an “intent to use unlawfully” charge. Similarly, if a juror believes any possession of firearms outside of law enforcement should be illegal, they should be questioned on whether this view affects their ability to fairly evaluate the facts of firearms charges.

During four rounds of questioning the court permitted defense counsel—and the prosecutor—to inquire about specific views on firearms, but the court changed course at the final round in favor of general questions as to whether jurors could “follow the law” about guns. But a prospective juror may not reveal, or be aware of, their bias without the prodding of a specific question. Indeed, most people intend to follow the law, but may not fully appreciate how bias works on the deliberative process. As one of the definitive treatises on criminal procedure by criminal law scholar and regularly cited expert Wayne R. LaFave explains, “[d]irect admissions of bias, however, are not frequently made; it is unlikely that a prejudiced juror would recognize [their] own personal prejudice—or knowing it, would admit it” (6 Wayne R. LaFave et al., *Criminal Procedure* § 22.3 [c], *Challenges for Cause* [4th ed] [internal quotation marks omitted]). MacArthur “Genius” award winner, founder and president of Gideon’s Promise, professor and defense attorney Jonathan Rapping advises that “[l]awyers should never ask questions like ‘Can you be fair?’ This question is worse than meaningless in that it causes the juror to perceive what [they are] ‘expected’ to say and creates an additional hurdle to learning [their] true opinions and assumptions” (Jonathan A. Rapping, *Implicitly Unjust: How Defenders Can Affect Systemic Racist Assumptions*, 16 *NYU J Legis & Pub Poly* 999, 1032 n 139 [2013]).

As scholars and trial lawyers recognize, it is difficult to know, without a line of targeted questions, whether a prospective juror harbors a bias or is unable to be fair. That was the case here, where specific follow up questions revealed some prospective jurors’ biases and partiality. Limiting defense counsel’s opportunity to delve into potential bias—especially on a sensitive subject like gun ownership and gun control in the wake of nationwide, highly publicized mass shootings—after previously permitting that line of questioning—was an abuse of discretion.

Courts have also recognized the potential ineffectiveness of generalized questions regarding a prospective juror’s fealty to

the law. For example, in *People v Weber*, the Appellate Division reversed Supreme Court and ordered a new trial, concluding that defendant's for-cause challenge should have been granted when a prospective juror stated that she could "follow the law" but failed to state that she could be impartial (103 AD3d 822, 823 [2d Dept 2013]). Given the prospective juror's response, it was necessary "to ascertain that she would render an impartial verdict based on the evidence" (*id.* at 823). In *United States v Wilson*, a prospective juror stating that he could set aside his belief and follow the law was not enough because the juror's "personal views on this issue" are "closely held and unambiguous" (493 F Supp 2d 445, 450-451 [ED NY 2006]). The United States Supreme Court has also held in death penalty cases that affirmations that a juror can "follow the law" are not enough to address potential bias because there are situations where a juror could, "in good conscience, swear to uphold the law and yet be unaware that maintaining such dogmatic beliefs . . . would prevent [them] from doing so" (*Morgan v Illinois*, 504 US 719, 734-736 [1992]). This is no less true when the topic of inquiry is gun control and the public discourse on mass shootings has the potential to impact individual perceptions of gun owners. Notwithstanding the majority's argumentation, specific questions and follow-ups are required to uncover bias.⁵

In addition to curtailing voir dire on attitudes towards gun ownership and gun control, the court also improperly prohibited defense counsel's questioning on self-defense and third-party defense. Defendant testified that his actions were motivated by fear of an attack on himself and his girlfriend. His defense went directly to the question of his intent to use a firearm and whether he was justified in attempting to protect himself and another. Even though the court precluded any questioning on the topic, the court instructed the jury, "The use of a firearm to engage in conduct that is justifiable under the law is not unlawful. Thus, an intent to use a firearm against another justifiably is not an intent to use it unlawfully." The court thus

5. The majority notes that a juror raised that she was confused by the line of questioning, which can be an appropriate reason to tailor the scope of voir dire questioning (majority op at 68 n 2, 69). However, the juror raised this concern in response to defense counsel's question, "If you had to make a decision right now on his fate, what would be your determination," which the court reasonably struck as confusing. These concerns were not in reference to the specific questions on firearm views or on justification as a defense, the two lines of questioning at issue in this appeal.

abused its discretion by restricting voir dire on prospective jurors' views on those matters.

Nor were these errors harmless. Defense counsel was unable to delve into the potential biases of prospective jurors even though this same line of questioning had surfaced prospective jurors' partiality and resulted in successful for-cause challenges. Counsel was also unable to inquire about views on an essential element of the charge: defendant's intent to use the gun unlawfully. The jury notes confirm that his defense claim was an important issue during deliberations.

Under the circumstances, these errors deprived defendant of his right to a fair and impartial jury, and he should be retried before jurors whose potential bias has been adequately tested and purged during voir dire.

I dissent.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO and TROUTMAN concur. Judge RIVERA dissents in an opinion.

Order affirmed.

[231 NE3d 402, 207 NYS3d 456]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CARLOS
L. DAVID, Appellant.

Argued September 13, 2023; decided November 21, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered October 7, 2022. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Thomas E. Moran, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree (two counts).

People v David, 209 AD3d 1276, affirmed.

HEADNOTES**Crimes — Appeal — Preservation of Issue for Review — Constitutional Challenges to Firearm Licensing Scheme**

1. In defendant's prosecution for criminally possessing a weapon, defendant's contentions that Penal Law § 265.03 (3) is facially unconstitutional under *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]) and impermissibly shifts the burden of production to show licensure to the defendant were unpreserved for appellate review, and the mode of proceedings exception to the preservation requirement did not apply. Initially, an unpreserved Second Amendment challenge to Penal Law § 265.03 (3) based on *Bruen* is unreviewable. There is a very narrow exception to the preservation requirement for a tightly circumscribed class of nonwaivable errors that go to the essential validity of the proceedings conducted below. However, the "mode of proceedings" exception does not categorically exempt from preservation all claims related to the shifting of burdens at trial. Rather, errors that fall short of expressly shifting the burden of persuasion to the defendant must be timely preserved. Moreover, Penal Law § 265.03 (3) shifts only the burden of production to the defendant, while the burden of persuasion on licensure always remains with the People. The shift in the burden of production alone effectuated by Penal Law § 265.03 (3) does not impinge on the validity of a proceeding to the same extent as requiring the defendant to bear the entire burden of proof. Nor was defendant's challenge reviewable on the grounds that the accusatory instrument was facially defective in failing to plead all constitutionally required elements, thereby depriving Supreme Court of jurisdiction. In such circumstances, preservation is required.

Crimes — Unlawful Search and Seizure — Inventory Search of Impounded Vehicle

2. The suppression court did not err in denying defendant's motion to suppress the handguns and cash found during an inventory search of defendant's vehicle after the officer who pulled him over discovered that he did not possess a valid driver's license, where the decision to tow the vehicle, which defendant had parked illegally and partially blocking a bike lane and the

flow of traffic, was not in contravention of the police department's policy. Law enforcement officers may conduct an inventory search of an impounded vehicle without a warrant so long as the search is conducted according to reasonable police regulations relating to inventory procedures administered in good faith. The police procedures applicable here required officers to consider alternatives to towing, including whether there is another possible driver and the proximity of the owner/operator's residence, but they did not impose on officers an affirmative duty to inquire whether any alternatives exist beyond those that are raised for their consideration or are otherwise apparent. While there were several facts that could have weighed against impoundment if made known to the officer during the stop, the record was undisputed that defendant did not inform the officer of those facts at the time. The officer did not realize that the owner's residence was nearby; nor did defendant tell him. Moreover, defendant could not legally drive the car away from the scene, and there was no other licensed driver present. As the decision to tow was not unreasonable, neither was the search.

Crimes — Harmless and Prejudicial Error — Cash Found in Same Location as Handguns

3. In defendant's prosecution for criminally possessing handguns found during an inventory search of his vehicle, any error by the trial court in allowing testimony related to cash found in the same compartment as the guns was harmless. While the connection between the presence of the cash in the same location as the guns and defendant's knowledge that the guns were present may have been tenuous and the probative value thus limited, the risk of prejudice was low given that the testimony about the cash was brief and accompanied the general list of items found in the inventory search.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review §§ 531, 574, 607, 610, 658;
AM JUR 2d Searches and Seizures §§ 175, 176.
CARMODY-WAIT 2d Search and Seizure §§ 173:356,
173:357; CARMODY-WAIT 2d Appeals in Criminal Cases
§§ 207:23, 207:24, 207:26, 207:125, 207:164.
LAFAYE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 3.7,
9.4, 27.5, 27.6.
MCKINNEY'S, Penal Law § 265.03 (3).
NY JUR 2d Criminal Law: Procedure §§ 501, 3556–3558,
3570, 3572, 3672, 3675–3677.

ANNOTATION REFERENCE

Lawfulness of “inventory search” of motor vehicle
impounded by police. 48 ALR3d 537.

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POINTS OF COUNSEL

Julie A. Cianca, Public Defender, Rochester (Guy A. Talia of counsel), for appellant. I. New York Penal Law § 265.03 (3) is unconstitutional on its face because it fails to require the state to prove everything the Constitution requires it to prove for a criminal sanction to be imposed. (*District of Columbia v Heller*, 554 US 570; *People v Washington*, 209 AD2d 162, 86 NY2d 853; *People v Anonymous*, 187 AD3d 512; *People v Tucker*, 181 AD3d 103; *Bailey v Alabama*, 219 US 219; *People v Hughes*, 22 NY3d 44; *People v Kohut*, 30 NY2d 183; *People v Psilakis*, 148 AD2d 475; *Patterson v New York*, 432 US 197; *People v Patterson*, 39 NY2d 288.) II. But for New York State's unconstitutional gun-licensing regime, Carlos L. David would have been able to legally possess the firearms he was convicted of possessing. (*Matter of Klenosky v New York City Police Dept.*, 75 AD2d 793; *Shuttlesworth v Birmingham*, 394 US 147; *Staub v City of Baxley*, 355 US 313; *Bach v Pataki*, 408 F3d 75; *McDonald v Chicago*, 561 US 742; *People v Sovey*, 77 Misc 3d 518; *Kachalsky v County of Westchester*, 701 F3d 81; *Matter of Delgado v Kelly*, 127 AD3d 644; *Matter of Caputo v Kelly*, 117 AD3d 644.) III. Carlos L. David's suppression motion should have been granted because the police did not follow their own procedures in determining that an inventory search was necessary. (*People v Gomez*, 13 NY3d 6; *People v Galak*, 80 NY2d 715; *People v Johnson*, 1 NY3d 252; *Florida v Wells*, 495 US 1.) IV. If the indictment is not dismissed, Carlos L. David should be granted a new trial because Supreme Court abused its discretion in allowing the admission of testimony related to the cash found in the vehicle. (*People v Cortez*, 22 NY3d 1061; *People v Alvino*, 71 NY2d 233; *People v Williams*, 56 NY2d 236; *People v Kuzdzal*, 31 NY3d 478; *People v Milot*, 305 AD2d 729; *People v Walker*, 83 NY2d 455; *People v Meseck*, 52 AD3d 948; *People v Chaney*, 298 AD2d 617; *People v Molineux*, 168 NY 264; *People v Pittman*, 49 AD3d 1166.)

Sandra Doorley, District Attorney, Rochester (Lisa Gray and Nancy Gilligan of counsel), for respondent. I. Defendant's challenges to the criminal possession of a weapon statutes are entirely unpreserved and without merit. (*People v Davidson*, 98 NY2d 738; *People v Iannelli*, 69 NY2d 684; *People v Baumann & Sons Buses, Inc.*, 6 NY3d 404; *People v Voliton*, 83 NY2d 192; *People v Patterson*, 39 NY2d 288; *People v Tucker*, 181 AD3d 103; *People v McWilliams*, 214 AD3d 1328; *People v Kinchen*, 60 NY2d 772; *United States v Decastro*, 682 F3d 160;

Allen v Wright, 468 US 737.) II. The impoundment of a third-party vehicle was reasonable and lawful, as it comported with Rochester Police Department General Order 511. (*Bessette v Niles*, 23 AD3d 996; *People v Walker*, 20 NY3d 122.) III. The evidentiary ruling permitting testimony concerning the \$734.00 recovered from the center console of the SUV was a proper exercise of discretion. (*People Cortez*, 22 NY3d 1061; *People v Frumusa*, 29 NY3d 364; *People v Scarola*, 71 NY2d 769; *People v Primo*, 96 NY2d 351; *People v Crimmins*, 36 NY2d 230.)

Letitia James, Attorney General, New York City (Andrew W. Amend, Barbara D. Underwood, Nikki Kowalski, Jodi A. Danzig and Anthony Raduazo of counsel), in her statutory capacity under Executive Law § 71. I. This Court has no power to review defendant's unpreserved constitutional challenges. (*People v Graham*, 25 NY3d 994; *People v Turriago*, 90 NY2d 77; *People v Hughes*, 22 NY3d 44; *People v Baumann & Sons Buses, Inc.*, 6 NY3d 404; *Matter of Van Berkel v Power*, 16 NY2d 37; *People v Reynolds*, 25 NY2d 489; *People v Friola*, 11 NY2d 157; *People v Adames*, 216 AD3d 519; *People v McWilliams*, 214 AD3d 1328; *People v Jacque-Crews*, 213 AD3d 1335.) II. Defendant lacks standing to bring his constitutional challenges. (*United States v Decastro*, 682 F3d 160; *Jackson-Bey v Hanslmaier*, 115 F3d 1091; *Allen v Wright*, 468 US 737; *Moose Lodge No. 107 v Irvis*, 407 US 163; *People v Nelson*, 69 NY2d 302; *Shuttlesworth v Birmingham*, 394 US 147; *Staub v City of Baxley*, 355 US 313; *People v Williams*, 76 Misc 3d 925; *People v Caldwell*, 76 Misc 3d 997; *Bach v Pataki*, 408 F3d 75.) III. Defendant's claim that Penal Law § 265.03 (3) violates the Second Amendment is meritless. (*People v Rodriguez*, 76 Misc 3d 494; *People v Brundige*, 78 Misc 3d 616.) IV. The State can validly place the burden on a defendant to come forward with evidence of licensure in a prosecution for the criminal possession of a firearm. (*People v Santana*, 7 NY3d 234; *People v Psilakis*, 148 AD2d 475; *People v Tatis*, 170 AD3d 45; *People v Ressler*, 302 AD2d 921; *People v Washington*, 209 AD2d 162; *People v Butts*, 72 NY2d 746; *People v Rodriguez*, 3 NY3d 462; *In re Winship*, 397 US 358; *Parker v Matthews*, 567 US 37; *People v Laietta*, 30 NY2d 68.)

OPINION OF THE COURT

HALLIGAN, J.

Defendant Carlos L. David challenges his conviction for two counts of criminal possession of a weapon in the second degree (see Penal Law § 265.03 [3]) on several grounds. He argues

that the police recovered the handguns that gave rise to his conviction during an invalid inventory search, and that Supreme Court improperly allowed prejudicial testimony at his trial. Neither argument provides grounds for reversal. David additionally argues that Penal Law § 265.03 (3) is facially unconstitutional under *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]). This argument is unpreserved, and for the reasons set forth below, we do not reach it.

Late on a September evening in 2017, a Rochester Police Department officer observed David driving an SUV without its headlights on and pulled him over. David was alone in the car, which was registered to a woman who was not present. Upon learning that David possessed only a learner's permit, not a valid driver's license, and noting that David had parked partially in the bike lane, the officer decided the car had to be towed. The officer then conducted an inventory search of the vehicle and recovered two handguns and a large amount of cash.

David was charged with two counts of criminal possession of a weapon in the second degree under Penal Law § 265.03 (3). He moved to suppress the handguns as the fruit of an invalid search. At the *Dunaway/Mapp/Huntley* hearing, the officer read into the record Rochester Police Department Regulations General Order 511 (I) (E), which provides that, “[w]hen deciding whether to tow a vehicle for safekeeping, members will take into consideration such factors as: the crime rate in the area and proximity of the operator/owner's residence, valuables in the vehicle, and whether or not another person is readily available who can operate the car.” The officer testified that he decided to tow the car because it was illegally parked in a no-parking area, partially blocking the bike lane and the flow of traffic. He also stated that he did not call the car's owner and did not realize that the address to which the car was registered was merely three blocks away.

The suppression court rejected David's argument that the officer failed to follow police department protocol by not considering alternatives to towing. The court “fully credit[ed]” the officer's testimony, holding that “[a]s the officer discovered that the defendant failed to possess a valid driver's license and his vehicle was improperly parked, he was authorized to tow the vehicle.” The court further found that the officer had “appropriately towed the defendant's vehicle pursuant to the General Orders of his police department.”

In advance of trial, David also moved to exclude evidence of the cash found in the vehicle on the grounds that its prejudicial nature outweighed its probative value. The People responded that the cash tended to show David's connection to the car, and therefore that he knowingly possessed the guns, and Supreme Court denied the motion. David was convicted of both counts and appealed.

The Appellate Division affirmed, reasoning that “the suppression hearing testimony established that it is the policy of the Rochester Police Department to tow a vehicle and conduct an inventory search when, following a traffic stop, there is no licensed driver present,” and that because David did not have a driver's license and was the sole driver present, the officer properly decided to tow the vehicle (209 AD3d 1276, 1277 [4th Dept 2022]). The Appellate Division further concluded that the record did not support an inference that the inventory search was a mere pretext to uncover incriminating evidence. After the U.S. Supreme Court decided *Bruen*, but before the Appellate Division decided David's appeal, David had moved for leave to file a supplemental brief arguing that *Bruen* rendered Penal Law § 265.03 (3) facially unconstitutional. The Appellate Division denied that motion (2022 NY Slip Op 71788[U] [4th Dept 2022]) and did not address *Bruen*. A Judge of this Court then granted leave to appeal (39 NY3d 1077 [2023]).

I.

We begin with David's Second Amendment challenge. On appeal, the defendant argues that the statute under which he was convicted is facially unconstitutional in light of *Bruen* because a defendant cannot be properly convicted solely on proof of the statutory elements set forth in Penal Law § 265.03 (3), which do not include the lack of a New York firearm license. He further contends that even if Penal Law § 265.03 (3) is read together with Penal Law § 265.20 (a) (3), which exempts from prosecution a person with a New York firearm license, the statutory scheme impermissibly places the burden of production to show licensure on the defendant once the People have merely shown conduct presumptively protected by the Constitution—to wit, public carry of a firearm.

[1] Parties are generally required to preserve all claims for appellate review by raising them in the trial court, including challenges involving a criminal defendant's federal constitutional rights (*see People v Tutt*, 38 NY2d 1011 [1976]), and the

constitutionality of statutes (see e.g. *People v Baumann & Sons Buses, Inc.*, 6 NY3d 404, 408 [2006]). In *People v Cabrera* (41 NY3d 35 [2023] [decided today]), we hold that an unpreserved Second Amendment challenge to Penal Law § 265.03 (3) based on *Bruen* is unreviewable, and to the extent David likewise argues that *Bruen* renders unconstitutional New York’s entire licensing regime, and in turn its statutory prohibition on criminal possession of a weapon, that challenge is unreviewable for the same reasons.

David also raises an additional claim: that his convictions violate due process by treating presumptively innocent conduct as unlawful and shifting the burden of production to David to show otherwise. As an initial matter, we read the statutory scheme differently than the dissent does. Because the licensure exemption is not found within the text of the relevant Penal Law provision criminalizing possession of a weapon, it presumptively operates as a “proviso that need not be pleaded but may be raised by the accused as a bar to prosecution or a defense at trial” (*People v Santana*, 7 NY3d 234, 236 [2006]; see also *id.* at 236-237 [(E)ssential allegations are generally determined by the statute defining the crime”]; *People v Davis*, 13 NY3d 17, 31 [2009]).¹ In contrast to the “home or place of business” exception previously found within the text of Penal Law § 265.02 (former [4]), which we have construed as an element of the relevant offense (see *People v Rodriguez*, 68 NY2d 674, 675 [1986], *rev’d on dissenting op of Lazer, J.*, 113 AD2d 337, 343-348 [2d Dept 1985]), the licensure exemption is not found within the text of Penal Law § 265.03 (3). Rather, the Legislature placed it within Penal Law § 265.20, alongside myriad other exemptions—including possession by a state prison warden in pursuit of official duty (Penal Law § 265.20 [a] [2]), persons employed in fulfilling defense contracts with the federal government (Penal Law § 265.20 [a] [1] [e]), and a person voluntarily surrendering a weapon (Penal Law § 265.20 [a] [1] [f])—that would not reasonably be viewed as elements of the various offenses criminalizing possession of a weapon. “[C]ommon sense and reasonable pleading” suggest the

1. *Hughes*, relied upon by the dissent, simply held that section 265.03 and the licensure exemption, read together, prohibit only unlicensed possession (*People v Hughes*, 22 NY3d 44, 50 [2013]), not that lack of a license is an element of a criminal possession charge. If *Hughes* had indeed held that lack of a license is an element of the crime charged here, that would be all the more reason to require preservation of this argument.

Legislature did not intend that the People plead and prove every one of these exemptions (*Davis*, 13 NY3d at 31), and no party has pointed us to any sign of legislative intent to treat the licensure exemption alone as the sole element among that list.

Turning to the impact of *Bruen*, the Supreme Court’s decision effected a substantial change in Second Amendment jurisprudence, as we note in *Cabrera* (decided today), and David raises meaningful questions about New York’s statutory scheme in its wake (*cf. Commonwealth v Guardado*, 491 Mass 666, 206 NE3d 512 [Apr. 13, 2023] [holding that Massachusetts statute prohibiting public possession of loaded firearms but allowing affirmative licensure defense violated due process because lack of license must be essential element of crime under *Bruen*]). But the “mode of proceedings” exception set forth in *People v Patterson* (39 NY2d 288 [1976]), on which David relies, does not provide a basis for reaching his unpreserved arguments.

This Court has recognized a “very narrow” exception to the preservation requirement for a “tightly circumscribed class” of nonwaivable errors (*People v Kelly*, 5 NY3d 116, 119-120 [2005]) that go to “the essential validity of the proceedings conducted below” (*Patterson*, 39 NY2d at 295-296). In *Patterson*, this Court reviewed an unpreserved due process challenge to a statute that placed the entire burden of proof—both the burden of production and the ultimate burden of persuasion (*see Schaffer v Weast*, 546 US 49, 56 [2005])—on the defendant to establish extreme emotional disturbance as an affirmative defense to murder. We reasoned that “[i]f the burden of proof was improperly placed upon the defendant, [the] defendant was deprived of a properly conducted trial, the distribution of the burden of persuasion being just as significant as the proper composition of the jury” (39 NY2d at 296). And we applied an exception to the need for a timely objection “to ensure that criminal trials are conducted in accordance with the mode of procedure mandated by Constitution and statute” (*id.* at 295-296).

This case does not fit within the mode of proceedings exception outlined in *Patterson*. First, our cases following *Patterson* have confirmed that the “mode of proceedings” exception does not categorically exempt from preservation all claims related to the shifting of burdens at trial. To the contrary, we have repeatedly concluded that errors that fall short of expressly shifting the burden of persuasion to the defendant must be

timely preserved (*see e.g. People v Thomas*, 50 NY2d 467, 472 [1980] [no mode of proceedings exception for unpreserved argument that a permissive presumption on intent violated due process to the extent it could reasonably be interpreted by the jury to shift the burden of proof to defendant]; *People v McKenzie*, 67 NY2d 695, 697 [1986] [no mode of proceedings exception for unpreserved argument that statutory presumptions regarding possession and intent in Penal Law § 265.15 (3) and (4) unconstitutionally shifted the burden of proof to defendant because “the charge contained no express burden-shifting language”]; *People v Gray*, 86 NY2d 10, 21-22 [1995] [no mode of proceedings exception for unpreserved argument that failure to charge jury that People must prove knowledge of the weight of contraband possessed lessened burden of proof]; *People v Easley*, 42 NY2d 50, 58-59 [1977] [no mode of proceedings exception for unpreserved argument that burden of proving knowledge of alleged victim’s mental defect was unconstitutionally placed upon defendant, where the defendant failed to place the affirmative defense in issue]).

This line of cases fully accords with *Hankerson v North Carolina*, in which the U.S. Supreme Court endorsed applying a state law preservation bar even where the defendant was impermissibly forced to bear the burden of persuasion to negate an essential element (*see* 432 US 233, 244 n 8 [1977] [“The States, if they wish, may be able to insulate past convictions by enforcing the normal and valid rule that failure to object to a jury instruction is a waiver of any claim of error (in the burden of proof)”]).

Second, Penal Law § 265.03 (3) differs from the statute in *Patterson* in that it shifts only the burden of production to the defendant. Critically, the burden of persuasion on licensure always remains with the People (*see* Penal Law § 25.00 [1]). That distinction matters for due process purposes (*see Mullaney v Wilbur*, 421 US 684, 702 n 31 [1975] [“Shifting the burden of persuasion to the defendant obviously places an even greater strain upon him (than shifting the burden of production) since he no longer need only present some evidence with respect to the fact at issue; he must affirmatively establish that fact”]). Because the shift in the burden of production alone effectuated by Penal Law § 265.03 (3) does not impinge on the validity of a proceeding to the same extent as requiring the de-

fendant to bear the entire burden of proof, *Patterson's* preservation reasoning does not have full force here.²

Third, unlike the pure mode of procedure question in *Patterson*, David's argument rests on asserted violations of both the Second Amendment and due process—a hybrid question of substance and procedure. As noted, New York's law places only the burden of production on a defendant to show licensure, a practice that is generally permissible (*see e.g. People v Laietta*, 30 NY2d 68, 74-76 [1972] [no violation of constitutional due process in placing even the burden of persuasion on the defendant with respect to the defense of entrapment]; *Mullaney*, 421 US at 701 n 28 ["Many States do require the defendant to show that there is 'some evidence' indicating that (a defense is applicable) before requiring the prosecution to (disprove the defense) beyond a reasonable doubt. Nothing in this opinion is intended to affect that requirement" (citations omitted)]). David's contrary argument rests squarely on *Bruen*; he contends that in light of *Bruen*, the Second Amendment makes lack of licensure an essential element of the offense and bars a shift in the burden of production on that point. For the same reasons that we do not reach the *Bruen*-based Second Amendment arguments absent preservation (*see People v Cabrera* [decided today]), we reach the same conclusion regarding David's due process challenge, which is firmly grounded in his understanding of the scope of the Second Amendment.

Nor is David's challenge reviewable on the grounds that the accusatory instrument was facially defective in failing to plead all constitutionally required elements, thereby depriving Supreme Court of jurisdiction. In such circumstances, we have found that preservation is required (*see Baumann & Sons Buses*, 6 NY3d at 408 ["For this Court to consider a constitutional claim in the guise of an argument that the accusatory instrument is facially insufficient would permit an end run around the parties' obligation to preserve constitutional claims before the trial court"]). The cases David relies upon to argue otherwise are inapposite (*see People v Martinez*, 81 NY2d 810, 812 [1993] [conviction of crime that is a legal impossibility]; *People v Tannenbaum*, 23 NY2d 753 [1968] [conviction under

2. We do not decide whether shifting the burden of production to the defendant could amount to a due process violation (*cf. dissenting op at 103-104*). We note only that doing so does not raise concerns of the same magnitude as shifting the burden of persuasion on an element of a crime.

substantive criminal statute that U.S. Supreme Court had expressly held was unconstitutional)).

David raises significant questions about whether, in light of *Bruen*, lack of licensure is an essential element of New York's criminal possession of a weapon offense and must therefore be charged to the jury in all cases. But because he did not preserve these arguments, they must await another day.

II.

Turning to David's evidentiary challenges, law enforcement officers may conduct an inventory search of an impounded vehicle without a warrant, so long as the search is conducted according to "reasonable police regulations relating to inventory procedures administered in good faith" (*Colorado v Bertine*, 479 US 367, 374 [1987]; see also *People v Gomez*, 13 NY3d 6, 10 [2009] [(A)n inventory search should be conducted pursuant to an established procedure clearly limiting the conduct of individual officers that assures that the searches are carried out consistently and reasonably" (internal quotation marks omitted)]). David contends that under the Rochester Police Department's protocol, the officer was required to ask where the vehicle's owner lived and whether she was available to retrieve the car but did not do so, and that the suppression court accordingly erred by denying his suppression motion.

[2] David's argument rests on an overly expansive reading of General Order 511 (I) (E), which requires officers to consider alternatives to towing, including whether there is another possible driver and the proximity of the owner/operator's residence. That provision does not impose on officers an affirmative duty to inquire whether any alternatives exist, beyond those that are raised for their consideration or are otherwise apparent. While David points to several facts that could have weighed against impoundment if made known to the officer during the stop, the record is undisputed that David did not inform the officer of these facts at the time. The officer did not realize that the owner's residence was nearby; nor did David tell him. Moreover, David could not legally drive the car away from the scene, and there was no other licensed driver present. In some circumstances, an officer may need to explore alternatives to impoundment, but here, the decision to tow the vehicle was not in contravention of the police department's policy (see *People v Walker*, 20 NY3d 122, 125 [2012] ["where no facts were brought to the (officer's) attention to show that impound-

ing would be unnecessary,” officers are not required to take further steps, even where a potential alternative driver is present on the scene]).

Relying on *People v Gomez* (13 NY3d 6 [2009]), David also argues that it was particularly unreasonable to impound and then search his vehicle given that he was pulled over for a minor driving infraction, the car was not stolen nor was his license revoked, he was not under the influence of alcohol or drugs, and the car was parked only because the police had pulled him over and only partially impeded the bike lane. But David does not contest that he could not legally drive the car and there was no other authorized and capable driver present. Accordingly, the decision to tow was not unreasonable, and thus neither was the search.

[3] Finally, David argues that Supreme Court abused its discretion in allowing testimony related to the cash found in the same compartment as the guns because the evidence was more prejudicial than it was probative. “Evidence is relevant if it has any tendency in reason to prove the existence of any material fact” (*People v Frumusa*, 29 NY3d 364, 371 [2017] [internal quotation marks omitted]), but trial courts retain discretion to “exclude relevant evidence if its probative value is outweighed by . . . undue prejudice to the opposing party” (*People v Primo*, 96 NY2d 351, 355 [2001]). The People argue that the presence of the cash in the same location as the guns made it more likely that David knew the guns were present. While the connection between these two facts may be tenuous and the probative value thus limited, the risk of prejudice was low given that the testimony about the cash was brief and accompanied the general list of items found in the inventory search; for that reason, any error in allowing the testimony was harmless.

Accordingly, the order of the Appellate Division should be affirmed.

RIVERA, J. (dissenting). The lack of a license to possess a weapon is an essential element of New York’s criminal weapons possession laws. That was made clear in *People v Hughes* (22 NY3d 44, 50 [2013]). As with the elements of any other crime, the prosecution bears the burden to establish this element beyond a reasonable doubt. Defendant Carlos L. David’s conviction should be reversed and a new trial ordered because the jury was not charged on this element and made no findings

that defendant possessed an unlicensed weapon. Defendant thus need not rely on the United States Supreme Court majority's holding in *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1, 10 [2022]) that the Second Amendment guarantees the right to publicly carry a weapon for self-defense, but whether under *Hughes* or *Bruen*, the outcome is the same.

I.

A jury convicted defendant of two counts of criminal possession of a weapon in the second degree under Penal Law § 265.03 (3). That section provides that

“[a] person is guilty of criminal possession of a weapon in the second degree when . . .

“[they] possess[] any loaded firearm. Such possession shall not, except as provided in subdivision one or seven of section 265.02 of this article, constitute a violation of this subdivision if such possession takes place in such person's home or place of business” (Penal Law § 265.03 [3]).

As relevant to my discussion, the court instructed the jury on the elements of the charged offenses as follows:

“In order for you to find the defendant guilty of these crimes, the People are required to prove from all the evidence in the case beyond a reasonable doubt each of the following four elements: That on or about September 5, 2017, in the County of Monroe, the defendant, Carlos David, possessed a firearm. The first count is a .45 auto, second count is a 9-millimeter; two, that the defendant did so knowingly; three, that the firearm was loaded and operable; and four, that such possession did not take place in the defendant's home or place of business.”

During the pendency of his appeal at the Appellate Division, a majority of the United States Supreme Court in *Bruen* struck down the “proper cause” requirement of New York State's firearm licensing regime. The Appellate Division did not address the impact of *Bruen* on defendant's appeal (209 AD3d 1276 [4th Dept 2022]).

On appeal to us, defendant claims that he was convicted for the constitutionally-protected conduct of possessing a handgun in public. According to defendant, Penal Law § 265.03 (3) is

facially unconstitutional because it does not expressly state unlicensed possession as an element of the crime. He also claims that the statute presumes guilt for innocent conduct and violates due process by shifting the burden to a defendant to justify public possession.

For the reasons I discuss in *People v Garcia* (41 NY3d 62 [2023, Rivera, J., dissenting]), decided today, defendant's Second Amendment challenges are preserved.¹ I now turn to the merits of those claims.

II.

Facial Challenge

Defendant's facial challenge is without merit. According to defendant, the Penal Law criminalizes what the *Bruen* majority held to be protected by the Second Amendment—possession of a loaded handgun in public. Defendant correctly summarizes the majority's holding in *Bruen*, but defendant's facial challenge is based on an erroneous interpretation of our law. Defendant incorrectly asserts that Penal Law § 265.20 (a) (3) requires that the prosecution establish only four elements to prove guilt: (1) a defendant's knowing, (2) possession, (3) of a loaded and operable firearm, (4) outside their home or place of business. Even if the text of the Penal Law could be read as defendant claims, our decisional law makes clear that the lack of licensure is an essential element of criminal weapon possession. In *People v Hughes* we declared that “New York's criminal weapon possession laws prohibit only *unlicensed* possession of handguns. A person who has a valid, applicable license for [their] handgun commits no crime” (22 NY3d 44, 50 [2013], citing Penal Law § 265.20 [a] [3]). Thus, New York does not criminalize the mere possession of a handgun in public.

III.

Burden Shifting on the Licensure Element

Defendant further asserts that, notwithstanding *Hughes*, section 265.03 (3) does not prohibit only unlicensed possession because the gun license exemption is set forth in a different section, Penal Law § 265.20 (a) (3). As such, the statutory scheme presumes public possession is unlawful and the

1. I have no occasion to opine on whether defendant's claims also fall within the mode-of-proceedings exception to preservation.

licensure exemption is a defense for which a defendant must carry the initial burden of production. Having thus framed this permutation of his constitutional claim, defendant contends that because the *Bruen* majority held that gun possession in public is lawful, the statute works an unconstitutional shifting of the burden of proof to defendant to establish his innocence (*In re Winship*, 397 US 358, 364 [1970] [shifting the burden of persuasion to a criminal defendant violates due process]). The majority similarly opines, relying in part on *People v Santana* (7 NY3d 234, 236 [2006]), that there is a licensure exemption “not found within the text of Penal Law § 265.03 (3)” and thus it constitutes a “proviso” that may be raised by the defendant as an ordinary defense which the prosecution must *disprove* beyond a reasonable doubt (majority op at 96). That characterization is deployed in support of the majority’s conclusion that defendant’s challenge is unpreserved, in part, because shifting the burden of production is not a due process violation so long as the burden of persuasion remains with the prosecution. The majority’s conclusion is not supported by law or practice.

First, *Santana* was decided seven years before *Hughes* declared that only unlicensed weapons possession is a crime under New York law and thus *Hughes*, not *Santana*, properly instructs on the essential elements of firearms possession (*Santana*, 7 NY3d at 236). Contrary to the majority’s view, under *Hughes*, the lack of a license is an essential element of the crime which must be established by the prosecution by clear and convincing evidence (22 NY3d at 50 [2013] [stating the law prohibits *only* “unlicensed possession”]).

Second, the majority misunderstands *Santana* and how we distinguish elements from defenses. *Santana* involved a jurisdictional deficiency challenge to the prosecutor’s information on the ground that the second-degree criminal contempt charge under Penal Law § 215.50 (3) failed to state that the crime did not arise out of a labor dispute, an exception found in the Judiciary Law and cross-referenced in Penal Law § 215.50 (3). The Court stated that “[l]egislative intent to create an exception has generally been found when the language of exclusion is contained entirely within a Penal Law provision” (*Santana* at 237). But that is the case here; the licensure exclusion is set forth in the Penal Law. It is not found in a completely different statute, as was the case in *Santana*. The fact that the licensure exclusion is located in a different section of the Penal Law is irrelevant to the analysis as further is sup-

ported by *Santana*'s citation to the 1986 decision in *People v Rodriguez* (*id.* at 237, citing 68 NY2d 674, 675 [1986]). The *Rodriguez* Court adopted the dissenting opinion in the Appellate Division, which observed that a defendant may be required to carry the burden of proof in asserting a legislatively defined affirmative defense or negating a rebuttable presumption (*People v Rodriguez*, 113 AD2d 337, 343 [2d Dept 1985, Lazer, J., dissenting]). The dissent explained that absent such legislative guidance courts considered whether the information was "uniquely in the possession of the defendant" but after the adoption of the revised Penal Law in 1965, this approach was limited to "offenses defined outside the Penal Law" (*id.* at 345, citing e.g. *People v D'Amato*, 12 AD2d 439 [1st Dept 1961] [General Business Law § 343]; *People v Baur*, 102 Misc 2d 971 [Nassau Dist Ct 1980] [Vehicle and Traffic Law §§ 1180 (b); 1104 (a); 1110 (a)]). And in *Rodriguez*, because the offense was "found within the Penal Law"—like "any true statutory exception setting forth a material element of a crime found in the Penal Law"—"the People must bear the burden of introduction unless it has been classified as a defense by the Legislature" (*id.* at 345).

The majority here concludes that the statutory scheme shifts only the burden of production to the defendant (majority op at 98-99). However, this ignores that a defendant meets the burden of production by establishing that they have a valid license and thus they essentially must prove that they are engaged in constitutionally protected conduct. In other words, a defendant must persuade the factfinder that they are innocent of the crime of unlicensed possession of a weapon. As a consequence, the prosecution is placed in a reflexive posture, needing only to respond to the licensure issue if the defendant raises it. This view of the statutory framework absolves the prosecution of establishing the only crime under New York's law: *unlicensed* firearm possession. It is nothing short of a shifting of the burden, in contravention of *Hughes*.

The burden shifting is also constitutionally impermissible under the *Bruen* majority holding. That view is shared by the Supreme Judicial Court of Massachusetts which recently invalidated an almost identical statutory scheme to that in New York, on the basis that, post-*Bruen*, lack of licensure is required to be an essential element of the crime of public possession of a firearm and cannot be an affirmative defense (*Commonwealth v Guardado*, 491 Mass 666, 667, 206 NE3d 512 [2023] [*Guar-*

dado I)).² In *Guardado I*, the court found that defendant's Second Amendment and due process rights were violated because the jury was not instructed that lack of licensure was an element and thus the defendant was convicted of solely possessing a firearm in public which *Bruen* held was constitutionally protected conduct (491 Mass at 689-690, 206 NE3d at 538-539, citing *Bruen* at 33).³ As I discuss, this same rationale applies to the New York statute in question, Penal Law § 265.03 (3).

It is undisputed that the court did not charge the jury that in order to find defendant guilty of Penal Law § 265.03 (3) it must find that the prosecution established by clear and convincing evidence that defendant did not have a license to possess the handguns in public. Therefore, defendant is entitled to a new trial where the jury is properly instructed on all the elements of criminal weapons possession.⁴

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO and TROUTMAN concur. Judge RIVERA dissents in an opinion.

Order affirmed.

2. In a subsequent decision, the court rejected a double jeopardy challenge on the ground that since *Guardado I* had held licensure was not an essential element at the time of the defendant's trial, on retrial "the Commonwealth is not being given a second bite at the proverbial apple to supply evidence that it was required to muster in the earlier trial" (*Commonwealth v Guardado*, 493 Mass 1, 3, 220 NE3d 102, 104 [Oct. 26, 2023] [*Guardado II*]).

3. As the concurrence in *Guardado I* notes, requiring proof of licensure as an essential element need not be particularly burdensome for the prosecution, and may be proved in a variety of ways, including by establishing a lack of evidence of licensure records (*Commonwealth v Guardado*, 491 Mass 666, 694, 206 NE3d 512, 541 [2023, Lowy, J., concurring]). Notably, under New York law, "[e]very licensee while carrying a pistol or revolver shall have on [their] person a license to carry the same" and "[u]pon demand, the license shall be exhibited for inspection to any peace officer, who is acting pursuant to [their] special duties, or police officer" (Penal Law § 400.00 [8]). A defendant's failure to do so may provide an inference of a lack of licensure.

4. I agree with the majority that defendant's challenges to the vehicle inventory search and admission of certain trial testimony are without merit.

[231 NE3d 385, 207 NYS3d 439]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SEBASTIAN TELFAIR, Appellant.

Argued September 13, 2023; decided November 21, 2023

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered October 6, 2021. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (John T. Hecht, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree.

People v Telfair, 198 AD3d 678, reversed.

HEADNOTE

Crimes — Proof of Other Crimes — Prior Possession of Guns Not Probative of Knowledge

In defendant's prosecution for criminally possessing guns recovered from his truck, the trial court committed reversible error in admitting evidence of two prior incidents involving defendant's possession of a weapon that occurred 10 years earlier as probative of defendant's knowledge that the guns were in his truck, as the prior incident evidence was not relevant to an issue other than defendant's criminal propensity. The evidence regarding the prior incidents did not increase the possibility that defendant knew there were guns in his truck 10 years later. That defendant unknowingly possessed other guns in two completely different circumstances about 10 years prior could not have put him on notice that there might have been guns in his truck this time, nor was the evidence of those incidents relevant to refute the defense that defendant did not know the guns were in the vehicle. The prior incidents were neither very similar nor close in time to this incident; rather, they involved different guns, different sets of circumstances, different excuses, and occurred more than 10 years earlier. The prior gun possession incidents were essentially evidence of prior wrongdoing that tended to show only that if defendant did it once, he would do it again. Moreover, the trial court's ruling was not harmless. There was circumstantial evidence from which the jury could have inferred that defendant knowingly possessed the guns, but not overwhelming proof of guilt. Thus, it could not be said that there was no significant probability the jury would have acquitted defendant had the evidence of the prior incidents been excluded.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review §§ 610, 615; AM JUR 2d Evidence §§ 400, 405–407, 409, 410, 434, 436.
CARMODY-WAIT 2d Fundamentals of Criminal Evidence

§§ 193:16–193:18, 193:21, 193:22, 193:24; CARMODY-WAIT 2d Appeals in Criminal Cases § 207:125.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 24.4.

NY JUR 2d Criminal Law: Procedure §§ 2068, 2069, 3672, 3673, 3676, 3677.

ANNOTATION REFERENCE

See ALR Index under Harmless and Prejudicial Error; Prior Offenses and Convictions.

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POINTS OF COUNSEL

Barry Krinsky, Brooklyn, for appellant. I. The court deprived the defendant of his constitutional due process right to a fair trial when the court allowed evidence of prior alleged uncharged crimes over defendant's objections. (*People v Molineux*, 168 NY 264; *People v Singleton*, 139 AD3d 208; *People v Blair*, 90 NY2d 1003; *People v Mercado*, 120 AD2d 619; *People v Seeley*, 74 AD2d 910; *People v Cass*, 18 NY3d 553; *People v Allweiss*, 48 NY2d 40; *People v Santarelli*, 49 NY2d 241; *People v Alling*, 69 NY2d 637.) II. The defendant was deprived of his constitutional due process rights to a fair trial based on prosecutorial misconduct by the assistant district attorney in his summation when he asserted improper inappropriate inflammatory prejudicial remarks propounding a propensity theory in his summation which was compounded by the court's overruling defense counsel's objections to those improper statements. (*People v Rojas*, 97 NY2d 32; *People v Allweiss*, 48 NY2d 40; *People v Gillyard*, 13 NY3d 351; *People v Arafet*, 13 NY3d 460; *People v Wilkinson*, 71 AD3d 249; *People v Wright*, 121 AD3d 924; *People v Morris*, 21 NY3d 588; *People v Cass*, 18 NY3d 553; *People v Scaringe*, 137 AD3d 1409; *People v Ball*, 154 AD3d 1060.) III. Under *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]), Penal Law § 265.03 (3) was unconstitutional as applied to Sebastian Telfair and Mr. Telfair's conviction for that offense violates the Second and Fourteenth Amendments and must be reversed and the indictment dismissed. (*McDonald v Chicago*, 561 US 742; *People v Hughes*, 22 NY3d 44; *Matter of Klenosky v New York City Police Dept.*,

75 AD2d 793; *District of Columbia v Heller*, 554 US 570; *People v Eastman*, 85 NY2d 265; *Griffith v Kentucky*, 479 US 314; *Davis v United States*, 564 US 229; *United States v Salerno*, 481 US 739; *Smith v Cahoon*, 283 US 553; *Lovell v City of Griffin*, 303 US 444.)

Eric Gonzalez, District Attorney, Brooklyn (Jean M. Joyce and Leonard Joblove of counsel), for respondent. I. Defendant's claims regarding the trial court's *Molineux* ruling, and regarding the prosecutor's summation comments on the *Molineux* evidence, are partially unpreserved and are meritless. In any event, any error was harmless. (*People v Jackson*, 29 NY3d 18; *People v Grant*, 7 NY3d 421; *People v Till*, 87 NY2d 835; *People v Bailey*, 32 NY3d 70; *People v Frumusa*, 29 NY3d 364; *People v Morris*, 21 NY3d 588; *People v Ingram*, 71 NY2d 474; *People v Valentin*, 29 NY3d 150; *People v Marrin*, 205 NY 275; *People v Kims*, 24 NY3d 422.) II. Defendant's *Bruen* claims are unpreserved. In any event, defendant lacks standing to assert those claims, and the claims are partially waived and are meritless. (*People v Hughes*, 22 NY3d 44; *People v Iannelli*, 69 NY2d 684; *People v McWilliams*, 214 AD3d 1328; *Matter of Kachalsky v Cacace*, 14 NY3d 743; *McDonald v Chicago*, 561 US 742; *Osterweil v Bartlett*, 21 NY3d 580; *People v Reynolds*, 25 NY2d 489; *People v Friola*, 11 NY2d 157; *Mapp v Ohio*, 367 US 643; *People v Walker*, 71 NY2d 1018.)

Letitia James, Attorney General, New York City (Ester Mordulchayeva, Andrew W. Amend, Barbara D. Underwood, Nikki Kowalski, Jodi A. Danzig and Anthony Raduazo of counsel), in her statutory capacity under Executive Law § 71. I. This Court has no power to review defendant's unpreserved constitutional challenges. (*People v Graham*, 25 NY3d 994; *People v Turriago*, 90 NY2d 77; *People v Hughes*, 22 NY3d 44; *People v Baumann & Sons Buses, Inc.*, 6 NY3d 404; *Matter of Van Berkel v Power*, 16 NY2d 37; *People v Reynolds*, 25 NY2d 489; *People v Friola*, 11 NY2d 157; *People v Adames*, 216 AD3d 519; *People v McWilliams*, 214 AD3d 1328; *People v Jacque-Crews*, 213 AD3d 1335.) II. Defendant lacks standing to bring his constitutional challenges. (*Allen v Wright*, 468 US 737; *Moose Lodge No. 107 v Irvis*, 407 US 163; *People v Nelson*, 69 NY2d 302; *Shuttlesworth v Birmingham*, 394 US 147; *Staub v City of Baxley*, 355 US 313; *Lovell v City of Griffin*, 303 US 444; *Smith v Cahoon*, 283 US 553; *People v Williams*, 76 Misc 3d 925; *People v Caldwell*, 76 Misc 3d 997; *People v Parker*, 52 NY2d 935, 70 AD2d 387.) III. Defendant's claim that Penal Law § 265.03 (3) violates the

Second Amendment is meritless. (*People v Rodriguez*, 76 Misc 3d 494.) IV. There is no merit to defendant's claim that his conviction violates the Privileges and Immunities Clause. (*Saenz v Roe*, 526 US 489; *Supreme Court of Va. v Friedman*, 487 US 59; *People v Kinchen*, 60 NY2d 772; *People v Correa*, 15 NY3d 213; *Matter of Jacob*, 86 NY2d 651; *Barnard v Thorstenn*, 489 US 546.)

OPINION OF THE COURT

HALLIGAN, J.

Defendant Sebastian Telfair challenges his conviction of criminal possession of a weapon in the second degree (*see* Penal Law § 265.03 [3]) on several grounds. First, he raises facial and as-applied challenges to the statute under which he was convicted based on the U.S. Supreme Court's recent decision in *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]). Those arguments are unpreserved and, for the reasons set forth in *People v Cabrera* (41 NY3d 35 [2023] [decided today]), we do not reach them. Second, Telfair argues that the trial court deprived him of his right to a fair trial in admitting evidence of alleged prior bad acts under *People v Molineux* (168 NY 264 [1901]) and allowing the prosecutor to make propensity arguments during summation. Because we conclude Supreme Court erred in permitting admission of the prior bad acts evidence and the error was not harmless, we reverse.

Telfair was arrested on an early morning in June 2017. After he made a U-turn without his headlights on, law enforcement officials pulled Telfair over. As the officers approached Telfair's truck, they smelled marijuana and observed a lit marijuana cigarette on the center console. The officers seized the cigarette, arrested Telfair and his passenger, and transported them and the vehicle to the police precinct.

During an inventory search, the police recovered various items, including two small bags of marijuana and cash. They also found a loaded .45 caliber gun in the truck's center console, as well as three handguns and ammunition in the flatbed area; each firearm was legally purchased and registered in Telfair's name in Florida. The defendant was charged with several crimes related to possession of weapons and ammunition, as well as various vehicle and traffic violations.

The People moved under *People v Molineux* (168 NY 264 [1901]) to introduce evidence of two prior incidents involving Telfair's possession of a weapon: a 2006 uncharged crime and a

2007 misdemeanor conviction for weapon possession. The People expected that Telfair would claim at trial that someone else had packed his truck and unbeknownst to him, placed his guns inside it, and the prior acts would show the defendant actually knew he possessed the firearms on the day of his arrest. Defense counsel responded that given the temporal remoteness and dissimilarity of the prior incidents, they had “little, if any, probative value” and were highly prejudicial, in part because the 2007 conviction concerned the same charge for which Telfair was now on trial. When asked whether he would assert that Telfair did not know the guns were in his car, defense counsel did not disclaim the defense.

Supreme Court admitted the evidence, finding it “extremely probative” that in the prior incidents Telfair “claimed not to have knowledge of guns found in his possession” and “came up with an excuse about not having placed those guns in his possession, whether it’s his luggage or his vehicle.” The court noted it would provide a limiting instruction that the evidence should be considered only as to Telfair’s knowing state of mind and absence of mistake, not any propensity to commit the alleged crime. At various points during the trial, the court gave such an instruction, including during the People’s opening and closing statements, multiple times throughout the testimony regarding the incidents, as part of the jury charge, and in response to a jury question during deliberations.

Opening statements and much of the trial testimony focused on whether Telfair knew the guns were in his car. Telfair’s wife testified that he had moved out of their Florida home, taking his belongings and storing them with the help of Caterina Scotto, his girlfriend at the time. Scotto testified to the same course of events and that she allowed the defendant to store his cars at her home, opened storage units for him, and helped him coordinate the shipping of two vehicles (including the truck in which he was stopped) to New York after movers packed them. She also claimed to have seen the defendant put a gun in the bed of the truck before it was shipped. A tow truck driver testified to taking the defendant’s two vehicles and passing them along to a vehicle transporter, who in turn testified to taking the vehicles to New York and leaving them with Telfair. The People also demonstrated that the guns were legally purchased by and registered to Telfair in Florida, and that one of the guns was found in the truck’s center console after the arrest. And a detective testified to New York Police Department

records showing that the City's license plate reader system placed the defendant's truck at numerous locations across New York in the days after it arrived there, but before the defendant's arrest.

Defense counsel told the jury that Telfair did not know the guns were in his car; that Telfair had someone else pack the truck and did not know the guns were placed inside it; and that when Telfair retrieved the truck from a long-term packing facility the day before his arrest, he still did not know the guns were inside it. Defense counsel further contended that the absence of Telfair's fingerprints or DNA on the guns confirmed his account.

The People put on *Molineux* evidence regarding the two prior incidents in which the defendant previously possessed guns outside of Florida. First, a Massachusetts detective testified that in 2006, while Telfair was a professional basketball player, a flight attendant on the team plane found a .22 caliber pistol in a pillow imprinted with a photograph of Telfair's baby. The detective determined that the gun was legally owned by the defendant's then-girlfriend, Samantha Rodriguez. Telfair told the detective at the time that he had borrowed Rodriguez's gym bag while packing for his trip and did not realize it contained the pistol; not knowing what to do with the gun once he discovered it after boarding, he placed it inside his pillow. The detective testified that, after inspecting the gym bag and confirming that it contained Rodriguez's belongings, he accepted the defendant's explanation and no criminal charges were filed.

Next, a police officer and an assistant district attorney testified regarding the 2007 incident, in which Telfair was stopped for speeding in Westchester County and the officer found a loaded .45 caliber handgun under the passenger seat. According to the assistant district attorney, Telfair's lawyer proffered that the gun belonged to Rodriguez, and that, as the primary user of the vehicle, she must have left the gun in the car. Telfair and his fiancé pleaded guilty to criminal possession of a weapon in the fourth degree.

In summation, the prosecutor referenced the guns found in the prior incidents, stating that the "defendant claimed I didn't know, I had them by accident," and "now here we are again ten years later in 2017 he's caught again and it's the same excuse." Telfair objected, and the court reiterated its limiting instruc-

tion, but the prosecutor then remarked that the jury could consider that “[Telfair’s] used this, I don’t want to say excuse, but he’s used this defense multiple times.”

During deliberations, the jury sent a note requesting clarity on how the *Molineux* evidence could be used, which read: “How is the jury allowed to use the evidence from the Westchester and Boston firearm incident for and not allowed to use it for, eg, knowledge or lack of mistake as to what?” Defense argued that a responsive instruction should not refer to mistake or accident because the defense theory was not that Telfair had mistakenly possessed guns, but rather that he did not know he possessed them. The court nonetheless reiterated its instruction, and the jury returned a guilty verdict shortly thereafter. Telfair was convicted of one count of criminal possession of a weapon in the second degree in connection with the gun recovered from the truck’s center console and acquitted of all other charges.

The Appellate Division affirmed, concluding that Supreme Court properly exercised its discretion in admitting the *Molineux* evidence because it was relevant and probative of Telfair’s knowing possession of the guns; that Telfair had placed the element in issue by claiming a lack of knowledge; and that any potential prejudice was offset by the multiple limiting instructions (198 AD3d 678 [2d Dept 2021]). Justice Barros dissented and granted the defendant’s application for leave to appeal to this Court and for a stay of execution of the judgment, which we extended pending determination of this appeal.

Before this Court, Telfair raises several constitutional challenges to his conviction for the first time. He argues that the U.S. Supreme Court’s decision in *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]) rendered unconstitutional the entirety of New York’s licensing regime, which in turn meant that the provision under which he was convicted for unlicensed possession was facially unconstitutional. Telfair also contends that the statute is unconstitutional as applied to him on several grounds: that given his valid Florida gun license, we must assume that the proper cause requirement alone made his unlicensed possession criminal, and that his right to travel under the Privileges and Immunities Clause is violated by what the defendant construes as a residency requirement for New York licenses. These arguments are unpreserved and, for the reasons set forth in *People v Cabrera* (decided today), we do not reach them.

Turning to Telfair's *Molineux* claim, the general rule is that evidence of a defendant's prior uncharged crimes or bad acts is inadmissible in a criminal trial (see *Molineux*, 168 NY at 291-292). "The natural and inevitable tendency of the tribunal—whether judge or jury—is to give excessive weight to the vicious record of crime thus exhibited, and either to allow it to bear too strongly on the present charge, or to take the proof of it as justifying a condemnation irrespective of guilt of the present charge" (*People v Zackowitz*, 254 NY 192, 198 [1930, Cardozo, Ch. J.]). Excluding such evidence avoids the risk of infecting jury deliberations with forbidden propensity inferences (see *Molineux*, 168 NY at 291-293; *People v Ventimiglia*, 52 NY2d 350, 359 [1981]).

There are, however, exceptions to this rule: evidence of prior crimes may be admissible "if it helps to establish some element of the crime under consideration or is relevant because of some recognized exception to the general rule" (*People v Alvino*, 71 NY2d 233, 241-242 [1987]). In *Molineux*, we set out several such exceptions: motive, intent, absence of mistake or accident, common scheme or plan, or identity of the defendant (see *Molineux*, 168 NY at 293).

In reviewing a *Molineux* ruling, we must first assess whether the People have "identif[ied] some issue, *other than mere criminal propensity*, to which the evidence is relevant" (*People v Hudy*, 73 NY2d 40, 55 [1988]). That is a question of law, not discretion, for this Court's review (see *People v Cass*, 18 NY3d 553, 560 n 3 [2012]; *Alvino*, 71 NY2d at 242). If the evidence is relevant to some issue other than propensity, we consider whether the probative value of the evidence "outweighs its potential for prejudice" (*People v Ely*, 68 NY2d 520, 529 [1986], quoting *Ventimiglia*, 52 NY2d at 359). "[T]he trial court's decision to admit the evidence may not be disturbed simply because a contrary determination could have been made or would have been reasonable. Rather, it must constitute an abuse of discretion as a matter of law" (*People v Morris*, 21 NY3d 588, 597 [2013], citing *Cass*, 18 NY3d at 560 n 3). If the Court concludes that *Molineux* evidence was erroneously admitted, harmless error analysis determines whether a new trial is warranted (see *People v Frankline*, 27 NY3d 1113, 1115 [2016]).

The threshold question, then, is whether the prior incident evidence was relevant to an issue other than propensity. We conclude it was not.

The key question at trial was knowledge: whether Telfair knew that the guns were in his truck. That focus was clear at a pretrial hearing, in defense counsel's opening statement and on summation, and in an exchange with the court following the jury's question on the significance of the *Molineux* evidence. While the dissent insists there is no meaningful difference between knowledge and mistake here (dissenting op at 121), the distinction seems plain: for example, one might know an item had been in a car but mistakenly think it had been removed, as opposed to having no knowledge it had ever been there in the first place. Precedent bears that out; *Molineux* and its progeny distinguish between "mistake or accident" and "intent or guilty knowledge" (*Molineux*, 168 NY at 297-305; *Cass*, 18 NY3d at 560). But our disagreement with the dissent on the nature of the defense is not dispositive of the outcome here. Whether labelled as knowledge or mistake, the evidence regarding the 2006 and 2007 incidents did not increase the possibility that Telfair knew there were guns in his car in June 2017.

Molineux and later cases rest on the proposition that in circumstances where "intent is not to be inferred from the commission of the act," "proof of intent is often unobtainable except by evidence of successive repetitions of the act" (*Molineux*, 168 NY at 297-298). For example, in a case alleging check forgery, evidence that "at or near the same time . . . the defendant had passed, or had in his possession, similar forged instruments" would be relevant to prove intent, and the same is true for allegations of "passing counterfeit money," "receiving stolen property and obtaining money under false pretenses" (*id.*). In these instances, the admission of prior bad acts evidence is "founded on the law of probabilities" (*People v Ingram*, 71 NY2d 474, 479 [1988]), as the dissent notes, or a theory of warning (*id.* at 482 [Kaye, J., concurring]).¹

Evidence of the 2006 and 2007 incidents was not relevant to whether Telfair knew that the guns in question were in his vehicle in 2017. The warning theory has no application here; that Telfair unknowingly possessed other guns in two completely different circumstances about 10 years prior could not have put him on notice that there might have been guns in his truck

1. Contrary to the dissent's suggestion (dissenting op at 124 n 5), nothing in our opinion narrows admissible *Molineux* evidence to one of these categories or the other.

this time. As for the law of probabilities, the dissent (echoing the prosecutor's summation) argues that "defendant's history of repeatedly transporting firearms outside the jurisdictions in which they were licensed, as well as the similarity of his excuses when caught" refute his defense here (dissenting op at 122). But in *Ingram*, on which the dissent relies, the Court emphasized the factual similarity and temporal proximity of the later robbery to the one at issue in concluding that the evidence was properly admitted to cast doubt on the defendant's claim of innocence (*Ingram*, 71 NY2d at 480).

In other cases where this Court has permitted *Molineux* evidence to prove a subjective element of a crime, or to rebut a defendant's defense as to that element, the prior acts were likewise proximate in time and quite similar to the alleged crime (see e.g. *Alvino*, 71 NY2d at 243 [evidence of recent, repeated, and highly similar uncharged crimes admissible]; *People v Caban*, 14 NY3d 369, 375 [2010] [license suspension resulting from defendant's traffic incident three months prior properly admitted to prove mens rea where the license "was suspended for conduct frighteningly similar . . .—backing unsafely into a crosswalk"]; *People v Bradley*, 20 NY3d 128, 133 [2012] ["evidence of a prior homicide . . . relevant to rebut a claim of extreme emotional disturbance made with respect to (a subsequent homicide)" where the homicides were "very similarly targeted and committed" and "relatively closely spaced"], citing *Cass*, 18 NY3d at 563-564 [evidence admissible where homicides occurred in similar circumstances and 14 months apart]).

Not so here. The 2006 and 2007 incidents were neither very similar nor close in time to the 2017 incident. Just the opposite: they involved different guns, different sets of circumstances, different excuses, and occurred more than 10 years earlier. In that key respect, this case resembles *People v Bradley* (20 NY3d 128 [2012]), where we reiterated the general principle that evidence of prior incidents may be admissible to prove a "subjective element" such as state of mind, but held that conduct similar only in broad respects and occurring at a "remote, indeterminate time" would disclose only the "defendant's violent propensity and the manner of its expression" and was thus not sufficiently relevant to be admissible (20 NY3d at 133-135). Likewise, the prior gun possession incidents here are essentially evidence of prior wrongdoing that "tended to show only that 'if defendant did it once . . . he would do it again' "

(*People v Vargas*, 88 NY2d 856, 858 [1996]; *Alvino*, 71 NY2d at 242 [same]; *People v Katz*, 209 NY 311, 328 [1913] [“proof showing that A. shot B. at one time and place throws no light upon the charge that A. poisoned C. at another time and place”]; *Hudy*, 73 NY2d at 56 [“(This) is precisely th(e) type of result that the *Molineux* rule was adopted to prevent”]).²

The dissent’s assertion that today’s ruling “destabilizes our century-old *Molineux* jurisprudence” is puzzling, to say the least (dissenting op at 130). Our disagreement turns on whether this particular *Molineux* evidence is relevant to an issue other than defendant’s propensity to possess guns. If anything, it is the dissent’s view that would upset our precedent. Neither the People nor the dissent have identified any New York appellate decision upholding reliance upon a defendant’s prior possession of a gun to show subsequent knowing possession of a different gun, let alone doing so where the circumstances of the prior incident are so remote and distinct from those of the charged incident. The case cited by the Appellate Division below allowed testimony that the defendant knowingly possessed a gun in his residence two years earlier to prove his knowing possession of *the same gun* within *the same residence* (*People v Lawrence*, 141 AD3d 1079, 1080-1081 [4th Dept 2016]; *see also People v Kidd*, 112 AD3d 994, 995 [3d Dept 2013] [testimony that defendant had purchased and used or displayed the same gun relevant to defendant’s knowing possession of that same gun four years later]). Rather, the Appellate Division has held that evidence of prior possession of a different gun is not necessarily relevant to whether a defendant knowingly possessed a new firearm (*see People v Singleton*, 139 AD3d 208, 213 [1st Dept 2016]).³

As for the dissent’s suggestion that we proceed blithely here, consistent with our duty to safeguard the rights of criminal defendants to a fair trial, we have reversed in numerous cases when *Molineux* evidence was improperly admitted (*see e.g.*

2. Our conclusion rests on the totality of facts presented in this case, not any “bright-line rule of exclusion” based on the age of the prior incidents (dissenting op at 125).

3. The dissent attempts to distinguish *Singleton* by pointing out that the defendants there claimed the gun giving rise to the criminal possession charge belonged to a third party (dissenting op at 123 n 3). The Appellate Division concluded that it was error to admit a photo of defendants holding a different gun because “the gun depicted [in the photo] was not the same gun, or even the same type of gun, as that recovered [at the scene]” (*Singleton*, 139 AD3d at 213). The same is true here.

People v Vargas, 88 NY2d 856 [1996] [reversing conviction for rape, sodomy, sexual abuse, and attempted robbery on *Molineux* grounds]; *Hudy*, 73 NY2d 40 [reversing conviction for multiple counts of sexual abuse and endangering child welfare on *Molineux* grounds]; *Ely*, 68 NY2d 520 [reversing murder conviction on *Molineux* grounds]; *People v Santarelli*, 49 NY2d 241 [1980] [same]; *Zackowitz*, 254 NY 192 [Cardozo, Ch. J.] [same]). If, as the dissent suggests, the People are regularly relying on *Molineux* evidence of prior gun possession to prove current knowing possession of different guns—which the dearth of case law on the topic suggests is not the case—we have no doubt that the People will be able to conform their tactics to our holding today in order to avoid reversal of firearm possession convictions on appeal.

Moving on to the final step in our analysis, we hold that the trial court’s ruling was not harmless. There was circumstantial evidence from which the jury could have inferred that Telfair knowingly possessed the guns in this case, but not overwhelming proof of guilt, and we cannot conclude there was no significant probability the jury would have acquitted Telfair had the evidence of the 2006 and 2007 incidents been excluded. While the People argue that the split verdict means that any *Molineux* error must have been harmless, there is no reason to reach that conclusion, rather than its inverse.

The prosecution’s comments in summation compounded the impact of admitting the evidence of the prior incidents and make it even more difficult to conclude the error was harmless. Given that the propriety of these comments largely rises or falls with the *Molineux* ruling, they did not amount to prosecutorial misconduct.

Telfair separately contends the trial court committed reversible error in permitting testimony by both his wife, Samantha Telfair, and then-girlfriend, Caterina Scotto, as to other “uncharged crimes” allegedly committed against them. We hold that it did not. As to the testimony of Telfair’s wife, the court provided adequate limiting instructions (to which the defendant did not object). As to Scotto’s testimony, the defendant himself first raised these allegations during opening statements and during Scotto’s cross-examination, and the People only elicited her testimony on redirect. And in any event, the testimony was harmless because it did not speak to the critical issue of whether Telfair knowingly possessed the firearms.

Because we conclude that Supreme Court erred in admitting *Molineux* evidence regarding the 2006 and 2007 incidents and that the error cannot be deemed harmless, we reverse.

Accordingly, the order of the Appellate Division should be reversed and a new trial ordered.

RIVERA, J. (concurring). I agree for the reasons discussed by the majority that defendant Sebastian Telfair's claims under *People v Molineux* (168 NY 264 [1901]) have merit and warrant reversal of his conviction and a new trial ordered on the second-degree weapons possession counts. As for defendant's other claims, I would resolve them on different grounds.

First, contrary to the majority's conclusion, defendant's facial constitutional challenge to New York State's gun licensing regime, based on the United States Supreme Court's holding in *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1, 11 [2022]), is preserved. However, the claim is without merit for the reasons discussed in my dissent in *People v Garcia* (41 NY3d 62 [2023]), decided today. Defendant's alternative argument that his conviction violates the Privileges and Immunities Clause because, according to defendant, New York imposes an in-state residency requirement for obtaining a gun license also fails. Whether New York prohibits nonresidents from obtaining a gun license is an open question (*Osterweil v Bartlett*, 21 NY3d 580, 582 [2013] [finding that a part-time resident could obtain New York license regardless of their domicile]). Defendant's out-of-state residency is disputed, and because he did not apply for a license, we do not know whether he would have been denied a license because of a nonresidency prohibition or because he was a New York resident. As I discuss in *Garcia*, remittal is not appropriate in this context because it would turn his criminal proceeding into a quasi-administrative licensing hearing.

CANNATARO, J. (dissenting). In 2017, defendant was pulled over after police observed him commit a traffic infraction in Brooklyn. The incident occurred within days of his relocation to New York from Florida. After defendant's arrest, an inventory search of the pickup truck he was driving yielded a number of personal belongings, as well as three semiautomatic pistols, one semiautomatic assault weapon, several boxes of ammunition, and a bulletproof vest. Each of the firearms was loaded, operable, and belonged to defendant. None was licensed in New York. Defendant was charged with four counts of crimi-

nal possession of a weapon in the second degree (Penal Law § 265.03 [3]). His defense at trial was that someone else had packed the truck in Florida and he had no idea the firearms were inside. To rebut that claim, the People were permitted to present evidence showing that on two prior occasions when defendant was traveling into the Northeast, an unlicensed firearm was found among defendant's belongings or in his vehicle and that he similarly claimed in those incidents his possession of the gun was an accident or innocent mistake.

The majority concludes that admission of this evidence was error under *People v Molineux* (168 NY 264 [1901]) because it had no relevance to the People's case. I believe the majority has fundamentally misconstrued our prior case law and infringed upon the discretion of the trial court. Indeed, it is difficult to avoid the conclusion that today's decision severely curtails a venerated evidentiary rule that has been in use since 1901. And it does so in the context of a gun-possession case, at a time when unlawful possession of firearms in this state is more persistent and threatening than ever. I therefore respectfully dissent.

I.

The *Molineux* rule states that when evidence of a defendant's uncharged crimes or prior misconduct "proves *only* criminal propensity and serves no *other* function in demonstrating defendant's guilt of the crime charged, there is no legitimate basis for its admission" (*People v Cass*, 18 NY3d 553, 559 [2012] [emphases added and internal quotation marks omitted]). Conversely, it is well settled that "where the proffered *Molineux* evidence is relevant to some material fact in the case, other than the defendant's propensity to commit the crime charged, it is not to be excluded merely because it shows that the defendant had committed other crimes" (*id.* at 560; see *People v Ventimiglia*, 52 NY2d 350, 359 [1981] [the *Molineux* rule's "policy of protection against potential prejudice gives way when evidence of prior crime is probative of the crime now charged"]). In the latter event, the decision of whether to admit the evidence rests upon the trial court's discretionary balancing of probative value and unfair prejudice (*People v Bailey*, 32 NY3d 70, 83 [2018]). *Molineux* thus requires courts to engage in a "two-part inquiry" (*Cass*, 18 NY3d at 560).

In concluding that it was error to inform the jury of the two prior incidents in which defendant was caught carrying

unlicensed firearms in public and claimed it was an innocent mistake, the majority remarkably opines that such evidence was irrelevant to any material issue in this case. I cannot agree. As the majority acknowledges, *Molineux* itself explicitly states that prior bad acts are relevant to prove “absence of mistake or accident” (168 NY at 293; majority op at 114). In the 122 years since *Molineux* was decided, this Court has reiterated that proving absence of mistake is a permissible *Molineux* purpose in dozens of opinions (see e.g. *People v Denson*, 26 NY3d 179, 185 [2015]; *Cass*, 18 NY3d at 560; *People v Gamble*, 18 NY3d 386, 397 [2012]; *People v Alvino*, 71 NY2d 233, 244 [1987]; *Matter of Brandon*, 55 NY2d 206, 211 [1982]; *Ventimiglia*, 52 NY2d at 359; *People v Allweiss*, 48 NY2d 40, 47 [1979]; *People v Condon*, 26 NY2d 139, 143 [1970]).

Recognizing this long and unbroken line of authority, defendant’s trial counsel did what many attorneys often do in service of their clients: he attempted to distinguish it. “We are not saying this is a *mistake*,” he argued, “We are saying he didn’t *know* the guns were in the car” (emphases added). The courts below correctly recognized this as a distinction without a difference, both as a matter of semantics¹ and because proving that criminal acts were undertaken with the necessary “intent” or “guilty knowledge” (that is, scienter) is also a long-recognized basis for the admission of *Molineux* evidence (*Molineux*, 168 NY at 297). Here, the People were required to prove that defendant was “aware” of the presence of the firearms in his pickup truck as an element of their prima facie case (*People v Saunders*, 85 NY2d 339, 341-342 [1995])—i.e., that his acts were “knowing” (*People v Ford*, 66 NY2d 428, 440 [1985]). Defendant disputed that he had any knowledge of the guns in the truck on the night in question, relying on record evidence indicating that someone else may have packed the firearms in the vehicle in preparation for his relocation from Florida to New York. In other words, he suggested to the jury that his act of transporting multiple, unlicensed firearms through Brooklyn on the night in question was the result of an honest mistake, accident, or inadvertence (see Black’s Law Dictionary [11th ed 2019] [defining “honest mistake” as “(a) mistake made unintentionally” and an “accident” as “(a)n unintended and unforeseen injurious occurrence”]). As a consequence, evidence

1. As discussed further herein, defendant’s lack of knowledge purportedly resulted from mistake, accident, or inadvertence.

of defendant's similar prior bad acts became relevant to prove not one but two issues under *Molineux* and its progeny: (1) defendant's intent or guilty knowledge, and (2) the absence of mistake or accident (see *Cass*, 18 NY3d at 559).

The reason *Molineux* evidence is admissible to prove intent or guilty knowledge is because proof of scienter "is often unobtainable except by evidence of successive repetitions of the act" (*Molineux*, 168 NY at 297-298). In an illegal gun possession case like this one, "guilt cannot be predicated upon the mere commission of the act charged as a crime" (see *People v Katz*, 209 NY 311, 328 [1913])—the simple fact that defendant drove a pickup containing illegal guns in the center console and truck bed does not necessarily mean defendant acted with awareness of their presence. "In such a case the general rule gives way to the exception under which guilty knowledge of a defendant may be proved by evidence of his complicity in similar offenses under such circumstances as to support the inference that the act charged was not innocently or inadvertently committed" (*id.*; see *Alvino*, 71 NY2d at 249). The relevance of such evidence "is founded on the law of probabilities. The theory is that the more often the act constituting the crime has been done, the less the likelihood that it could have been done innocently, as if by chance" (*People v Ingram*, 71 NY2d 474, 479 [1988], citing 2 Wigmore, Evidence §§ 302, 312 [Chadbourn rev 1979]).

Insofar as defenses of mistake, accident, good faith, and inadvertence aim to negate intent or guilty knowledge, the same logic also supports the admission of *Molineux* evidence to prove the absence of those very excuses.² "The recurrence of the act negatives the possibility of good faith or inadvertence" (see *id.*). Here, defendant's history of repeatedly transporting firearms outside the jurisdictions in which they were licensed, as well as the similarity of his excuses when caught, tend to refute his defense that he did not know the guns were in his pickup this time—i.e., that this was merely another instance of accidental or inadvertent possession. As *Molineux* and a

2. In making this point, I do not dispute that "intent" and "absence of mistake or accident" can present distinct issues (see *Molineux*, 168 NY at 293). Intent or other scienter is typically an element of the People's prima facie case. Mistake is typically a defense. Here, defendant's mistake defense presented some unique factual issues for the People to disprove and led them to seek introduction of the *Molineux* evidence. However, the fact that mistake-type defenses target scienter means that the logic underpinning both *Molineux* exceptions is often (albeit perhaps not always) the same.

century of case law makes clear, juries are entitled to consider such evidence in evaluating whether an act was committed knowingly or by mistake.

In contrast, “propensity” evidence is evidence introduced *solely* to show a defendant’s “bad character” or tendency to engage in criminal conduct (*People v Agina*, 18 NY3d 600, 603 [2012]). “[C]ourts limit the admission of *Molineux* evidence because of the danger that the jury might conclude that if the defendant did it once, he or she likely did it again” (*People v Frumusa*, 29 NY3d 364, 370 [2017]). In this case, however, there was no dispute that defendant engaged in the conduct necessary for liability to attach under Penal Law § 265.03 (3)—he admits that the unlicensed firearms belonged to him and were in the truck he drove on the night in question.³ Thus, the jury was not asked to find that because “defendant did it once, he . . . likely did it again” (*id.*). Instead, they were asked to evaluate his scienter and the specific excuse he offered for *this* concededly unlicensed possession of firearms in view of the number of times he has committed similar bad acts and offered similar excuses. That context was important for the jury to fairly assess his defense.

The majority nonetheless insists that the key question at trial was not mistake, but lack of knowledge, and that this “plain” difference somehow supports the complete irrelevance of the 2006 and 2007 incidents (*see* majority op at 115). But it offers little reasoning for this conclusion, and our precedent does not support the notion that the evidence was irrelevant to either issue.⁴ Take *People v Ingram* (71 NY2d 474 [1988]) for instance. In that case, the defendant acted as the getaway driver for a gas station robbery but argued at trial that he lacked “*knowledge* that [his companion] was intending to commit a robbery” (*see id.* at 476 [emphasis added]). The Court

3. *People v Singleton*, on which the majority relies, is easily distinguished on this basis: the defense in that case was that the gun *belonged to a third party*. The fact that the defendants had previously been photographed holding a different “type of gun” did not tend to refute their defense that *this gun* belonged to the third party, and the defendants were also depicted making “highly prejudicial” gang signs (139 AD3d 208, 210, 212-213 [1st Dept 2016]). Here, there was no dispute over ownership of the specific firearms in question.

4. The majority’s hypothetical that “one might know an item had been in the car but mistakenly think it had been removed” (majority op at 115) is unilluminating. In that situation *Molineux* evidence would still be relevant to prove both knowledge and absence of mistake; as here, the mistake would be the purported reason for lack of knowledge at the time of the offense.

held that evidence of the defendant's participation in another, *subsequent*, gas station robbery with the same companion "ha[d] obvious relevance as tending to refute defendant's claim of an innocent state of mind" under the law-of-probabilities rationale (*id.* at 480).

Even then-Associate Judge Kaye, in a concurrence from which the majority appears to draw inspiration,⁵ agreed that evidence of the subsequent robbery was relevant to prove the defendant's "intent" to commit the charged offense, "eliminate[] the element of innocent intent," and "negative accident or inadvertence," based on the common understanding that "[s]imilar results, quite simply, do not usually occur through abnormal causes" (*see id.* at 482 [Kaye, J., concurring] [internal quotation marks omitted]). As she put it, the *Molineux* evidence "tend[ed] to decrease the possibility that [the defendant's] presence with [the companion] on the earlier occasion was coincidental or otherwise innocent" (*id.* at 483).

The same logic applies here. The sole question at defendant's trial was whether he possessed admittedly illegal firearms in New York with the required scienter or whether it was an innocent mistake. Evidence of the 2006 and 2007 incidents tended to decrease the possibility that defendant's criminal acts in 2017 were coincidental, accidental, inadvertent, or otherwise innocent.

The other rationale offered by the majority for its relevance holding is that defendant's prior acts of illegal firearm possession "involved different guns, different sets of circumstances, different excuses, and occurred more than 10 years earlier" (majority op at 116). The problem with this ground is that the distinctions the majority highlights regarding the 2006 and

5. Judge Kaye expounded upon a difference she perceived between *Molineux* evidence aimed to prove a defendant's "knowledge of a particular fact" and evidence admitted to prove "intent to commit the charged crime" (*Ingram*, 71 NY2d at 482 [Kaye, J., concurring]). She described the first category as encompassing cases in which a prior bad act helps establish that the defendant was "warn[ed]" about the stolen or otherwise illegal nature of property (*see id.*). Although this warning-based reasoning was not adopted by the majority in *Ingram* (or by this Court in any decision post-*Ingram*), today's majority cites it to suggest that *Molineux* evidence is only admissible to prove knowledge in limited circumstances (*see* majority op at 115). In doing so, the majority ignores that Judge Kaye classified the *Ingram* defendant's lack-of-knowledge defense as falling into the "intent" category, agreeing with the *Ingram* majority that the defendant's participation in a *subsequent* gas station robbery tended to establish scienter and refute his claims of inadvertence, even though the warning logic obviously did not apply (*see id.* at 482-483).

2007 incidents go to the probative weight of those incidents, not their relevance. It may be true that admissible *Molineux* evidence generally involves bad acts “proximate in time and quite similar to the alleged crime” (*id.*). Never before, however, has any court in this state held that a prior bad act is irrelevant to prove lack of knowledge or mistake as a matter of law simply because it occurred approximately 10 years before the instant offense and involved minimally distinguishable facts. And if ever there were a case to draw such an arbitrary line in the sand, this is not the one.

Molineux does not require that the circumstances of the prior offenses be identical, only “similar” (see *Alvino*, 71 NY2d at 241; see also *People v Caban*, 14 NY3d 369, 372 [2010] [prior negligent incident properly admitted where it had “some noticeable similarities” with the charged negligence]). As we have explained, in reliance on a leading treatise: “‘mere prior occurrence of an act *similar in its gross features*—i.e., the same doer, and the same sort of act, but not necessarily the same mode of acting nor the same sufferer, may suffice’” (*Matter of Brandon*, 55 NY2d 206, 213 [1982] [emphasis added], quoting 2 Wigmore, Evidence [Chadbourn rev ed], § 304 at 251). Here, the fact that defendant’s prior incidents involved “different guns” is unremarkable, particularly because unlawfully possessed firearms are generally destroyed by law enforcement and thus rarely are the subject of repeat offenses (see Penal Law § 400.05 [1], [2]). No one has claimed that the prior guns had meaningfully different attributes than the guns involved here or that those attributes had anything to do with defendant’s reasons for unlawfully possessing them. The majority does not explain why this distinction is critical.

Nor does the age of the prior incidents diminish their probative force in this case given that defendant apparently was domiciled for most of the intervening time in Florida where the guns were licensed. In the analogous *Sandoval* context, our courts have long held that “‘there is no bright-line rule of exclusion based upon age of conviction’” (*People v McCommons*, 143 AD3d 1150, 1152 [3d Dept 2016] [2003 crimes “were not too remote in time to be of probative value” notwithstanding six-year period between those events and the charged crimes, particularly because the defendant was incarcerated during some of the intervening period], quoting *People v Martin*, 136 AD3d 1218 [3d Dept 2016] [involving two remote prior convictions], *lv denied* 28 NY3d 972 [2016]; *People v Portis*, 129

AD3d 1300, 1303 [3d Dept 2015] [similar], *lv denied* 26 NY3d 1091 [2015]; *People v Crooks*, 118 AD3d 816, 817 [2d Dept 2014] [“the oldest conviction occurred 10 years before the instant offenses”], *lv denied* 24 NY3d 1043 [2014]; *People v Wilson*, 78 AD3d 1213, 1215-1216 [3d Dept 2010] [prior conviction “occurred more than 10 years earlier”], *lv denied* 16 NY3d 747 [2011]). There is no reason the same rule should not apply in the *Molineux* context, particularly in gun-possession cases, which implicate serious issues of public safety and in which it is often easy for a defendant to claim mistake or inadvertence (*cf. People v Huertas*, 186 AD3d 731, 733 [2d Dept 2020] [*Molineux* evidence consisted of three prior gun-related incidents, each of which occurred over 10 years before the subject shooting, offered to rebut the defendant’s claim that shooting was an accident], *affd* 38 NY3d 1129 [2022]).

People v Bradley (20 NY3d 128 [2012]), on which the majority relies, does not support the novel rule it creates today. The majority seizes on this Court’s statement that the defendant’s claim of self-defense “was not in any direct or logical way disproved by proof of the bare circumstance that defendant at some remote, indeterminate time had stabbed an unidentified man in the thigh” (*id.* at 134). However, the immediately following sentences from *Bradley* make clear that the remoteness of the prior incident was not the reason the Court saw no direct or logical link between the prior incident and the defense:

“While that stabbing assertedly was in response to harassment, the nature of the harassment was left entirely to the imagination. It is possible that the harassment was relatively minor, but it is at least equally possible that it was not. If defendant during the earlier incident used her knife to ward off a sexual or other serious assault, it would not logically show that her subsequent conduct was, as the prosecution contended, simply an expression of unbridled rage” (*id.* at 134-135).

The majority ignores this express reasoning in favor of the more convenient sound bite that the prior incident occurred “at some remote, indeterminate time,” a fact which although remarked upon was not the basis for our decision.

It is the job of the trial judge, who is closest to the evidence, to determine at what point the dissimilarity or remoteness of a prior bad act makes its admission insufficiently probative to

justify its risk of prejudice.⁶ The role of this Court is to assess whether the balance struck by the trial judge under the particular facts and circumstances was an abuse of discretion, not to impose our own contrary judgment on appeal (*see People v Morris*, 21 NY3d 588, 597 [2013]). And although the majority denies any intent to set a “‘bright-line rule of exclusion’ based on the age of the prior incidents” (majority op at 117 n 2), it cannot have it both ways: if there is no bright-line legal rule, then the question necessarily implicates the trial court’s discretion.

For all of the claimed factual dissimilarities, the critical fact remains that defendant was found to have transported unlicensed firearms into New York on two prior occasions, and more than that, each time blamed some outside agency (frequently his girlfriend) for their presence. A jury could legitimately infer that the lesson defendant learned from the prior incidents was that claiming mistake is helpful to avoid criminal liability in gun-possession cases,⁷ and that he employed that strategy in this instance. This is certainly not a case in which the *Molineux* evidence involved a completely unrelated crime or a significantly different excuse. The majority picks at trivial details to justify depriving the jury of what is perhaps the best evidence that defendant knowingly transported a veritable arsenal of weapons into this state. Under the law-of-probabilities rationale discussed in *Ingram*, I would hold that defendant’s prior unlawful gun possessions easily satisfied *Molineux*’s relevance standard.

II.

The question conveniently avoided by the majority’s relevance holding is whether the trial court abused its discretion in balancing the probative value of the 2006 and 2007 incidents against their potential prejudicial impact. That is a difficult showing for a defendant to make on any appeal. Indeed, “when

6. *See People v Burkett* (101 AD3d 1468, 1471 [3d Dept 2012] [listing “the temporal proximity of the events” as one of several factors appropriately considered “to achieve an appropriate balance” between probative and prejudicial value]). The lower court authorities cited by the majority are inapposite; they remarked on the similarity and proximity of the prior incidents solely to support their conclusions that “the probative value of the [*Molineux* evidence] outweighed its prejudicial effect” (*People v Lawrence*, 141 AD3d 1079, 1080-1081 [4th Dept 2016]; *People v Kidd*, 112 AD3d 994, 996 [3d Dept 2013]).

7. In the first incident, defendant avoided criminal charges. In the second, he was permitted to plead guilty to a lesser offense.

evidence of uncharged crimes is relevant to some issue other than the defendant's criminal disposition, it is generally held to be admissible on the theory that the probative value will outweigh the potential prejudice to the accused" (*People v Valentin*, 29 NY3d 150, 155 [2017] [internal quotation marks and brackets omitted]).

As we have further explained, evidence is not "prejudicial" merely because it is "compelling" and makes a conviction more likely: "[r]ather, the court must weigh the probative value of the evidence against the danger of *unfair or undue* prejudice to the defendant" (*Frumusa*, 29 NY3d at 372 [additional emphasis added and internal quotation marks omitted]). The danger of undue prejudice refers to the risk that the jury will convict based on the jurors' perception of the defendant's generally depraved character (*see Molineux*, 168 NY at 293; *see also Robinson*, 68 NY2d at 549-550 ["Prejudice involves both the nature of the crime, for the more heinous the uncharged crime, the more likely that jurors will be swayed by it, and the difficulty faced by the defendant in seeking to rebut the inference which the uncharged crime evidence brings into play"]).

In his briefs to this Court, defendant adopts the dissenting Justice's reasoning below that the evidence was prejudicial because the gun in the 2006 incident was placed "in a pillow that was imprinted with his baby's photograph" and the 2007 incident involved defendant "operating a vehicle at an excessive rate of speed without a valid driver[s] license" (198 AD3d 678, 689 [2d Dept 2021, Barros, J., dissenting]). Neither of those points demonstrate that the evidence was so prejudicial that its admission amounted to an abuse of discretion. Defendants' prior crimes were not particularly "heinous" (*see Robinson*, 68 NY2d at 549-550; *compare Molineux*, 168 NY 264 [evidence admitted that the defendant had previously killed a man by poisoning him with mercury]). It is difficult to grasp the prejudice caused by the child's photograph on the defendant's pillow: it was not the child's pillow, and the child was not present. The acts of speeding and driving with an expired license are not the type of conduct an average person is likely to feel compelled to punish regardless of the merits of the actual offense charged. Moreover, it is unclear whether defendant made specific and timely objections to these portions of the testimony. And to the extent the remoteness of the incidents and the fact that they involved different guns and necessarily different excuses on defendant's part diminished their probative value,

they also diminished the risk of prejudice as the average juror is capable of recognizing and accounting for those differences (and as discussed below, the jurors here apparently did so).

Most importantly, the trial court expended substantial effort to ensure that defendant was not unfairly prejudiced by the introduction of the challenged evidence. The court repeatedly instructed the jury on the limited purpose for which they could consider that evidence. It did so each time the People elicited evidence regarding defendant's prior bad acts, as well as during the prosecutor's opening and closing statements, during the court's final charge, and in response to a jury note. The jury was given a limiting instruction regarding the challenged evidence a total of ten times.

"Jurors are presumed to have followed a trial judge's limiting instructions" (*Morris*, 21 NY3d at 598).⁸ That presumption is particularly appropriate here considering that the jury "rendered a 'discerning and discrete verdict'" by acquitting him of most of the criminal weapons possession charges (*see id.* at 599, quoting *People v Till*, 87 NY2d 835, 837 [1995]). The verdict also refutes defendant's argument that the note jurors sent during deliberations, asking for clarification of the *Molineux* rule, demonstrates actual prejudicial impact. If anything, comparing the note and the ultimate verdict indicates that the jurors applied the *Molineux* rule carefully and properly, and that requiring the jury to deliberate under the assumption that this was the first time defendant illegally transported weapons in this state was not necessary to "safeguard the right[] of . . . defendant[] to a fair trial" (majority op at 117).

Ultimately, "[d]etermining whether the probity of [*Molineux*] evidence exceeds the prejudice to the defendant is a delicate business, and as in almost every case . . . there is the risk

8. This Court has affirmed the admission of *Molineux* evidence based on trial courts' limiting instructions in many prior cases (*see e.g., People v Tosca*, 98 NY2d 660, 661 [2002] [any prejudice was ameliorated by "the trial court twice explicitly instruct(ing) the jury on the limited use it could make of the testimony and that the testimony was not to be considered proof of the uncharged crime"]; *Morris*, 21 NY3d at 598 ["Any potential for prejudice here was offset by the trial court's four strong limiting instructions"]; *People v Till*, 87 NY2d 835, 837 [1995] ["The Appellate Division majority's analysis falls short also because it disregards the trial court's explicit emphasis twice, by cautionary instructions to the jury, that the uncharged robbery testimony was provided to it solely 'for the purpose of background information' and 'for the continuity of the events' and was not to be considered as proof of the crimes at issue"]).

that uncharged crime testimony may improperly divert the jury from the case at hand or introduce more prejudice than evidentiary value” (*Morris*, 21 NY3d at 596-597 [internal quotation marks omitted]). “Yet this case-specific, discretionary exercise remains within the sound province of the trial court . . . which is in the best position to evaluate the evidence” (*id.* at 597). On this record, I am unable to conclude that the trial court abused its discretion in admitting the *Molineux* evidence, and I am unwilling to join the majority in circumventing that determination through a strained holding on relevance.

III.

Today’s majority decision destabilizes our century-old *Molineux* jurisprudence. It does so in an illegal firearm possession case at a time when gun crime by repeat offenders is a particular problem for this state and may become even worse in the wake of the U.S. Supreme Court’s recent decision in *New York State Rifle & Pistol Assn., Inc. v Bruen* (597 US 1 [2022]). Because the majority’s reasoning is irreconcilable with our precedent, fails to identify any abuse of discretion, and may serve to undermine public safety, I would affirm.

Chief Judge WILSON and Judge TROUTMAN concur. Judge RIVERA concurs in result in an opinion. Judge CANNATARO dissents and votes to affirm in an opinion, in which Judges GARCIA and SINGAS concur.

Order reversed and a new trial ordered.

[231 NE3d 984, 208 NYS3d 76]

In the Matter of CHRISTOPHER BLACK, Appellant, v NEW YORK
STATE TAX APPEALS TRIBUNAL et al., Respondents.

Argued October 17, 2023; decided November 20, 2023

SUMMARY

APPEAL from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered June 30, 2022, in a proceeding pursuant to CPLR article 78. The Appellate Division, with two Justices dissenting, (1) confirmed a determination of respondent Tax Appeals Tribunal sustaining two notices of deficiency of employee withholding taxes against petitioner; and (2) dismissed the petition.

Matter of Black v New York State Tax Appeals Trib., 206 AD3d 1482, affirmed.

HEADNOTES

Taxation — Personal Income Tax — Employee Withholding Taxes — Person Responsible for Payment

1. In a proceeding challenging the determination of respondent Tax Appeals Tribunal finding that petitioner was a person responsible for the collection and payment of employee withholding taxes on behalf of a corporation, respondent properly considered whether petitioner had the actual authority and effective power to pay the withholding taxes such that he was liable under Tax Law § 685 (g) for willfully failing to pay the tax. Both the state and federal tests require that a person have the type of control and authority over the affairs of the corporation that would render the person under a duty to collect and pay over withholding taxes, necessarily meaning that the person had the actual authority and ability to pay the overdue taxes. While respondent imprecisely articulated the test as whether petitioner had shown that he “lacked control and authority over the affairs of” the corporation, the factors it considered made clear that it viewed the phrase as encompassing consideration of both petitioner’s status in the corporation and whether petitioner had control and authority over the finances such that he could have paid the taxes. Respondent noted that petitioner was an officer of the corporation and its majority shareholder, managed its field operations, had check signing authority, filed tax returns on behalf of the corporation, and had considerable economic interest in it, as well as that petitioner had held himself out to the Department of Taxation and Finance as a responsible person and negotiated a delay in the payment of overdue taxes because “he had to make payroll,” and that bank signature cards reflected that petitioner could withdraw funds independently from the corporate bank account while others could not. Reading the phrase “control and authority over the affairs of” the corporation in the context of the factors considered indicated that respondent employed the proper legal standard.

Taxation — Tax Appeals Tribunal — Substantial Evidence

2. In a proceeding challenging the determination of respondent Tax Appeals Tribunal finding that petitioner was a person responsible for the collec-

tion and payment of employee withholding taxes on behalf of a corporation, substantial evidence supported respondent's determination that petitioner had actual authority over the corporation's finances and the ability to remit the overdue withholding tax yet willfully failed to do so. During the audit period, petitioner was the corporation's majority shareholder; derived significant income and tax benefits from the corporation as its president; had broad oversight authority over daily field operations; represented to the Department of Taxation and Finance that he was authorized to resolve the corporation's financial problems; was directly involved in negotiating a resolution of the tax liabilities with the Department as the latter's primary contact at the corporation; signed the checks remitting full payment for other tax amounts due; and held himself out to be the owner and principal officer of the corporation with control over its financial affairs. Moreover, petitioner was concededly aware that the withholding taxes were not being paid, yet he continued to use his authority as president and majority shareholder to maintain minority-owned business enterprise status and delay the tax collection actions by informing the Department that he would pay the taxes despite his awareness that trust funds belonging to the government were being used for other purposes. While doing so, petitioner benefitted from those actions and the fraud perpetrated on the Department because petitioner's representations were essential to keeping the corporation afloat, enabling him to receive a salary, allocate business losses, and secure a job for his daughter.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d State and Local Taxation § 482.

McKINNEY's, Tax Law § 685 (g).

NY JUR 2d Taxation and Assessment §§ 1281, 1282, 2775, 2776.

ANNOTATION REFERENCE

See ALR Index under Taxes; Withholding Taxes.

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POINTS OF COUNSEL

Greenberg Traurig, LLP, Albany (*Henry M. Greenberg* and *Kelly L. McNamee* of counsel), for appellant. The Tax Appeals Tribunal's decision that petitioner is personally liable to pay New England Construction Company, Inc.'s withholding taxes is contrary to law and contradicted by the undisputed evidence in the record. (*Matter of Levin v Gallman*, 42 NY2d 32; *In re*

Mazzeo, 131 F3d 295; *Matter of Basch v New York State Tax Commn.*, 134 AD2d 786; *Matter of Risoli v Commissioner of Taxation & Fin.*, 237 AD2d 675; *United States v Rem*, 38 F3d 634; *Matter of Michaelson v New York State Tax Commn.*, 67 NY2d 579; *Matter of Hunt v State Tax Commn.*, 65 NY2d 13; *Matter of Friedsam v State Tax Commn.*, 64 NY2d 76; *Matter of Astoria Fin. Corp. v Tax Appeals Trib. of State of N.Y.*, 63 AD3d 1316; *Plett v United States*, 185 F3d 216.)

Letitia James, Attorney General, Albany (Owen Demuth, Barbara D. Underwood and Jeffrey W. Lang of counsel), for respondents. The Tax Appeals Tribunal's determination that petitioner was liable as a responsible person for willfully failing to pay withholding taxes owed by New England Construction Company, Inc. was rational, lawful, and supported by substantial evidence. (*Matter of Jason B. v Novello*, 12 NY3d 107; *Matter of Haug v State Univ. of N.Y. at Potsdam*, 32 NY3d 1044; *Matter of Marine Holdings, LLC v New York City Commn. on Human Rights*, 31 NY3d 1045; *Matter of Ridge Rd. Fire Dist. v Schiano*, 16 NY3d 494; *Matter of Levin v Gallman*, 42 NY2d 32; *Matter of State Div. of Human Rights [Granelle]*, 70 NY2d 100; *Hochstein v United States*, 900 F2d 543; *Matter of Martin v Commissioner of Taxation & Fin.*, 162 AD2d 890; *Matter of Blodnick v New York State Tax Commn.*, 124 AD2d 437; *Fiataruolo v United States*, 8 F3d 930.)

OPINION OF THE COURT

CANNATARO, J.

On this appeal, we are asked whether the determination of the Tax Appeals Tribunal challenged here was affected by an error of law. Specifically, petitioner and the dissenters argue that the Tribunal employed an incorrect legal test in making its determination, under Tax Law § 685 (g), that petitioner was a person responsible for the collection and payment of employee withholding taxes on behalf of New England Construction Company, Inc. (NECC), a corporation of which petitioner was president and the majority shareholder, and on behalf of which petitioner had repeatedly held himself out as being responsible for payment of taxes. We conclude that the Tribunal committed no such error. Rather, in resolving the question before it, the Tribunal properly considered whether petitioner had the actual authority and effective power to pay the withholding taxes and, thus, was a "responsible person" under section 685. Moreover, substantial evidence supports the Tribu-

nal's determination that petitioner willfully failed to pay the withholding taxes.

I.

During the period at issue, petitioner was president and 51% shareholder of NECC, which engaged in interior finish construction, including drywall construction, acoustical ceilings and millwork. Petitioner testified that he and his brother formed NECC in 1994 to have it certified as a minority-owned business enterprise (MBE). Petitioner and Frank Nastasi, his former employer, agreed that petitioner could do "minority participation work" for Nastasi's corporation, Nastasi & Associates.

Petitioner's brother left NECC after two years and petitioner acquired his shares. In 1995 or 1996, four individuals associated with Nastasi & Associates—including Anthony Nastasi—invested in NECC, resulting in petitioner becoming a 51% shareholder and the other four investors holding the remaining 49%. Anthony Nastasi ultimately became the sole owner of Nastasi & Associates and bought out the interests of other investors in NECC, acquiring a 44% interest.¹ In December 2005, petitioner entered into an agreement with Nastasi & Associates acknowledging that NECC was indebted to the former for more than \$4 million. The parties agreed that, upon the written demand of Anthony Nastasi, petitioner would resign as president of NECC and would be deemed to have sold his shares to Anthony Nastasi for \$26. All NECC assets remaining after satisfaction of its debt were to be distributed to Anthony and his brother Tom Nastasi (70%), petitioner (25%) and the remaining 5% to Lee. Petitioner would then acquire all outstanding shares for \$75 and be immediately reinstated as president. Petitioner acknowledges that, by 2010, the Nastasis had invested perhaps \$6 million in NECC, while petitioner invested, at most, \$200,000 in the company.

Nevertheless, it was petitioner who represented NECC on tax matters before the Department of Taxation and Finance (hereinafter the Department). In that capacity, petitioner signed both the NYS-45 form (quarterly combined withholding, wage reporting and unemployment insurance returns) for the quarter ending December 31, 2014, and a check as payment for

1. The remaining 5% interest was owned by Richard Lee, another individual who was not involved in NECC's management.

unemployment insurance amounts reported on that return. In addition, petitioner signed NECC's 2011 application to register for a sales tax certificate of authority, on which he represented himself to the Department as the person who "oversees all" of NECC's "business activities." Petitioner was also named as the sole contact on the "business contact information" form submitted to the Department in August 2014 with respect to corporation tax, sales tax and withholding tax. He also listed himself as a "responsible person for [NECC]" in 2013 in connection with a sales and use tax audit and the Department's audit records show him as the "primary contact" during numerous communications between NECC and the Department from February 2012 to February 2014. Similarly, in 2012, petitioner signed a "responsible person questionnaire" in connection with a negotiated installment agreement to pay off outstanding tax debt. On that form he averred that he (1) was responsible for the remittance of sales tax for NECC; (2) participated in making significant business decisions; (3) was responsible for maintaining and managing NECC; (4) managed NECC and had knowledge and control over its financial affairs; (5) had the authority to pay or direct payment of NECC's bills or other business liabilities; (6) had the authority to act on behalf of the business with the Department; (7) hired and fired employees; and (8) negotiated loans, borrowed money for the business and guaranteed business loans. Petitioner also averred on the form that NECC checks were signed by him in "all circumstances" and that he was involved in "all financial affairs dealing with NECC's day to day business."

Petitioner testified that, in February 2015, Anthony Nastasi requested that petitioner complete a questionnaire provided by a carpenter's union challenging NECC's failure to provide benefits to its unionized employees. Petitioner refused to fill out the form on the advice of counsel, at which point Nastasi invoked the December 2005 agreement, acquired petitioner's shares and purported to fire petitioner. Anthony Nastasi submitted a letter to the Department in April 2015 stating that petitioner had been relieved of his duties and petitioner signed an agreement of sale in May 2015 transferring his shares in NECC to Nastasi and attached a letter of resignation.

Nonetheless, based on the documentation that petitioner had provided to the Department holding himself out as having significant control over NECC's financial affairs and the authority

to pay NECC's tax obligations, the Department concluded that petitioner was a "responsible person" of NECC within the meaning of Tax Law § 685 (g). The Department issued notices of deficiency against petitioner, asserting withholding tax penalties against him. Petitioner protested the notices of deficiency and the matter proceeded to a hearing in August 2018 before the Division of Tax Appeals.

At the hearing, petitioner argued that his answers on the responsible person questionnaire were inaccurate and designed solely to maintain NECC's MBE certification. Petitioner claimed that, when he repeatedly approached Nastasi about delinquent taxes, Nastasi responded that the payment of taxes was Nastasi's responsibility and that NECC was Nastasi's company. Petitioner further claimed that he had no actual authority to pay the tax debts without Anthony Nastasi's approval, and that he had no authority to issue checks without Anthony Nastasi's permission. In addition, petitioner stated that NECC's checkbook was kept in the office of Nastasi & Associates, and petitioner would travel to that office once a week to sign checks prepared at Anthony Nastasi's behest. Petitioner further asserted that Nastasi kept a facsimile stamp of petitioner's signature. This testimony was corroborated by that of Mary Probst, NECC's controller during the time period at issue and an employee of petitioner at the time of the hearing, and Nastasi's attorney, Thomas Pillari. However, bank signature cards from 2012 indicated that petitioner could withdraw funds independently but that withdrawals by Nastasi required petitioner's approval.

In further support of his claims that he had misrepresented his role on the responsible person questionnaire, petitioner presented evidence that, in 2014, the Port Authority of New York and New Jersey had decertified NECC as an MBE based on proof that it was "heavily dependent on another construction company, Nastasi & Associates, for financing, staffing, management and daily operations," as well as its conclusion that "Nastasi exerts a substantial amount of control over the operations of [NECC]." The Port Authority rejected as false petitioner's claims that Nastasi was merely a silent partner.

Petitioner also pointed to the IRS's determination that he was not personally liable for unpaid withholding taxes assessed against NECC under federal law. In 2015, the IRS issued petitioner a proposed assessment of penalties for NECC's unpaid federal withholding taxes. Petitioner protested that he

lacked financial control over NECC. In connection with petitioner's protest, Nastasi submitted a declaration of trust fund responsibility for NECC. Nastasi also submitted an affidavit asserting that petitioner handled "the operating activities" of NECC but Nastasi alone controlled corporate financial disbursements, including tax payments, and petitioner had no access to corporate checks to make disbursements. Nastasi stated that petitioner "had signature authority on the [corporate] bank account only to enable him to handle items related to running the operations of [NECC]; his authority did not include payment of [NECC's] accrued liabilities, tax obligations, or anything beyond the company's general operations." The IRS accepted petitioner's protest without elaboration.

Notwithstanding these claims, an Administrative Law Judge for the Department substantially upheld the state notices of deficiency, concluding that petitioner was a "responsible person" under Tax Law § 685 (g) until his departure from NECC in February 2015 when Nastasi exercised his authority under the parties' agreement. Upon appeal, the Tax Appeals Tribunal affirmed. The Tribunal framed the issue as "whether petitioner presented facts showing that [he] lacked control and authority over the affairs of NECC." It noted that the determination of whether an individual is a responsible person is factual, turning on a variety of factors. The Tribunal concluded that petitioner was "under a duty to collect and pay over withholding taxes" based upon the evidence that he was an officer and majority shareholder of NECC, managed its field operations, had check signing authority, filed tax returns on behalf of the company, had considerable economic interest in NECC and held himself out as a responsible person to third parties, including the Department. The Tribunal determined that petitioner's testimony that his prior representations were inaccurate failed to overcome this evidence. The Tribunal also found that petitioner's failure to pay withholding taxes was willful. Finally, although the Tribunal agreed with petitioner that the relevant federal and state tax law provisions should be construed in conformity with one another, it concluded that it was not required to give deference to the IRS's *factual* determinations regarding petitioner's status as a responsible person.

Petitioner then commenced this CPLR article 78 proceeding in the Appellate Division, which confirmed the Tribunal's termination (206 AD3d 1482 [3d Dept 2022]). The Court

rejected petitioner's argument that the Tribunal's determination was irrational in light of the IRS's determination that petitioner was not a responsible person within the meaning of the federal statute (*see id.* at 1483). In addition, the Court rejected the argument that, "in finding petitioner had not demonstrated he lacked 'authority and control' rather than 'actual authority,' the Tribunal employed a fallacious standard, and, as such, substantial evidence analysis does not apply" (*id.* at 1484 n 3). The Court concluded that substantial evidence supported the Tribunal's determination that petitioner was a responsible person who willfully failed to remit NECC's withholding taxes, noting in particular that

"petitioner intentionally held himself out to third parties, as well as to the Division of Taxation itself, as the contact person and responsible person for New York taxes by signing state tax returns and checks accompanying the returns, executing a sales tax certificate of authority listing himself as the corporation's responsible person, filling out the Division's 'Responsible Person Questionnaire,' and maintaining communication with the Department" (*id.* at 1485).

Two dissenters would have annulled the Tribunal's determination on the ground that the Tribunal erred by purportedly focusing on whether petitioner demonstrated that he "lacked control and authority over the *affairs* of [NECC]," rather than whether petitioner had control over NECC's finances (*id.* at 1488 [internal quotation marks omitted]).

Petitioner now appeals as of right under CPLR 5601 (a) based on the two-Justice dissent.

II.

Under Tax Law § 685 (g), a person may be held liable for the withholding taxes of a corporation if the person is "required to collect, truthfully account for, and pay over the tax imposed" and "willfully fails to collect such tax or . . . willfully attempts in any manner to evade or defeat the tax or the payment thereof." As this Court has previously explained, section 685 (g) essentially provides that "a person responsible for collecting and paying taxes withheld from employees' wages is liable for a 100% civil penalty if [that person] willfully fails to collect and pay over the tax" (*Matter of Levin v Gallman*, 42 NY2d 32, 33 [1977]). Such a responsible person includes "an officer or

employee of any corporation . . . who . . . is under a duty to perform the act in respect of which the violation occurs” (Tax Law § 685 [n]). Under the broad terms of this definition, more than one person can be a responsible person under Tax Law § 685.² Because section 685 (g) was modeled after 26 USC § 6672 (a) (see *Matter of Levin*, 42 NY2d at 33-34), the terms in the former are to be interpreted in conformity with the latter unless a different meaning is clearly required (see Tax Law § 607 [a]; *Matter of Michaelson v New York State Tax Commn.*, 67 NY2d 579, 583 [1986]).

Contrary to the assertions of petitioner and the dissent that the Appellate Division and Tribunal violated the doctrine of federal conformity, review of the relevant case law reveals that the standard employed below is the same in all relevant respects as that applied by federal courts for determining whether an individual is a responsible person under 26 USC § 6672 (a). Thus, there was no compromise of the doctrine of federal conformity here. Both the state and federal tests require that a person have, as the Tribunal put it, the type of “control and authority over the affairs of” the corporation that would render the person “under a duty to collect and pay over withholding taxes,” necessarily meaning that the person had the actual authority and ability to pay the overdue taxes. The factors considered by both state and federal courts in determining whether an individual is such a responsible person clarify that the standard, even if not fully articulated in every case, examines whether the individual had actual authority over the corporation’s financial affairs such that the person had the ability or effective power to remit the overdue taxes.

The federal cases employ a nonexclusive list of factors in determining whether an individual has significant control over a corporation’s finances. The factors tend to focus on whether the individual

“(1) is an officer or member of the board of directors, (2) owns shares or possesses an entrepreneurial stake in the company, (3) is active in the management of day-to-day affairs of the company, (4) has the ability to hire and fire employees, (5) makes decisions regarding which, when and in

2. We therefore reject any suggestion that evidence of Anthony Nastasi’s control over NECC’s finances alone is sufficient to absolve petitioner of liability under Tax Law § 685.

what order outstanding debts or taxes will be paid, (6) exercises control over daily bank accounts and disbursement records, and (7) has check-signing authority” (*Vinick v United States*, 205 F3d 1, 7 [1st Cir 2000], quoting *Fiataruolo v United States*, 8 F3d 930, 939 [2d Cir 1993]).

Despite petitioner’s protestations to the contrary, holding oneself out as a responsible person is a relevant factor under federal law (*see Hochstein v United States*, 900 F2d 543, 548 n 1 [2d Cir 1990]). As in the state courts, no single factor is determinative in the federal courts, and the totality of the circumstances must be considered (*see Matter of Menik v Roth*, 280 AD2d 702, 703 [3d Dept 2001]; *Fiataruolo*, 8 F3d at 939).³

Notably, the factors employed by the federal courts do not merely look to whether the individual had authority over the finances of the corporation at issue but “divide into the following three groups: (1) those that identify the [person’s] status within the corporation, (2) those that identify [the

3. The dissenters insist that all of the seven factors laid out in *Vinick* are “mandatory inquiries under federal law” and conclude that the Tribunal erred in failing to expressly consider each of those factors (dissenting op at 151-152). However, other federal courts also phrase the list differently and sometimes leave out certain factors, depending on their relevance to the particular case before the court (*see e.g. Thosteson v United States*, 331 F3d 1294, 1299 [11th Cir 2003], *cert denied* 540 US 1105 [2004] [“Indicia of responsibility include the holding of corporate office, control over financial affairs, the authority to disburse corporate funds, stock ownership, and the ability to hire and fire employees”]; *Plett v United States*, 185 F3d 216, 219 [4th Cir 1999] [listing the factors as “(1) served as an officer of the company or as a member of its board of directors; (2) controlled the company’s payroll; (3) determined which creditors to pay and when to pay them; (4) participated in the day-to-day management of the corporation; (5) possessed the power to write checks; and (6) had the ability to hire and fire employees”]; *Barnett v I.R.S.*, 988 F2d 1449, 1455 [5th Cir 1993], *cert denied* 510 US 990 [1993] [looking to whether the individual “(i) is an officer or member of the board of directors; (ii) owns a substantial amount of stock in the company; (iii) manages the day-to-day operations of the business; (iv) has the authority to hire or fire employees; (v) makes decisions as to the disbursement of funds and payment of creditors; and (vi) possesses the authority to sign company checks”]; *Hochstein*, 900 F2d at 547 [“Courts consider several factors in determining whether an individual is responsible for collecting and paying withholding taxes, including the individual’s duties as outlined in the corporate bylaws, . . . ability to sign checks, . . . status as an officer or director, and whether (the individual) could hire and fire employees”]). In any event, because the dissenters go on to dismiss most of the factors set forth in *Vinick* as insufficient to assess whether a person has actual authority to pay taxes owing (dissenting op at 152-154), their insistence that all seven factors must be expressly considered by the Tribunal is puzzling at best.

person's] involvement in the daily affairs of the corporation, and (3) those that identify [the person's] involvement in the financial affairs of the corporation" (*Vinick*, 205 F3d at 8). Application of those factors is meant to resolve the "crucial inquiry [of] whether the person had the 'effective power' to pay the taxes—that is, whether [the person] had the actual authority or ability, in view of [the person's] status within the corporation, to pay the taxes owed" (*id.* [citation omitted]). Moreover, the requisite "control may be shared by several people within a company, all of whom may be found responsible for a tax delinquency," and, while technical or titular authority is not sufficient, "a person need not have the final word on which creditors are to be paid or how funds are to be allocated" to be deemed a responsible person (*Fiataruolo*, 8 F3d at 939).

The factors applied by the Tribunal and appellate courts of this state serve the same end and are derived from federal case law. Indeed, the case cited by the Appellate Division for the list of factors relevant in this case, *Matter of Malkin v Tully*, compiled the list from factors in federal cases (65 AD2d 228, 231 [3d Dept 1978]). *Malkin* described the relevant factors as "whether the petitioner signed the tax return, derived a substantial part of his income from the corporation, . . . had the right to hire and fire employees," and "was authorized to sign checks" (65 AD2d at 231 [citations omitted]). This Court endorsed the use of the *Malkin* factors shortly after that case was decided (*see Matter of MacLean v New York State Tax Commn.*, 49 NY2d 920 [1980], *affg on op below* 69 AD2d 951, 951-952 [3d Dept 1979]). Because "[t]he factual nature of the determination precludes an exhaustive list of factors" (*Matter of Basch v New York State Tax Commn.*, 134 AD2d 786, 787 [3d Dept 1987]), the list of factors considered in the state courts has evolved over time, just as it has in the federal courts. Additional relevant factors that have been considered include status as a corporate officer, shareholder and signatory on corporate bank accounts (*see Matter of Menik*, 280 AD2d at 703; *Matter of Hopper v Commissioner of Taxation & Fin.*, 224 AD2d 733, 737 [3d Dept 1996], *lv denied* 88 NY2d 808 [1996]), authority over the management of the corporation's affairs (*see Matter of Menik*, 280 AD2d at 703; *Matter of Risoli v Commissioner of Taxation & Fin.*, 237 AD2d 675, 676 [3d Dept 1997]), authority to direct payment of corporate bills and to make payroll (*see Matter of Fisher v State Tax Commn.*, 90 AD2d 910, 911 [3d Dept 1982]; *Matter of McHugh v State Tax*

Commn., 70 AD2d 987, 988 [3d Dept 1979]), and whether the individual has direct involvement in attempting to resolve a corporation's financial problems, including tax liabilities (see *Matter of Risoli*, 237 AD2d at 676; *Matter of Martin v Commissioner of Taxation & Fin.*, 162 AD2d 890, 891 [3d Dept 1990]). As in the federal courts, holding oneself out as a responsible person is also a relevant factor (see *Matter of Martin*, 162 AD2d at 891).

The list of factors that the state courts and the Tribunal consider may be more extensive than that set forth in the federal cases on which petitioner relies and, certainly, not every court mechanistically repeats and analyzes each of the factors in the same way in every case, as the dissenters would require of the Tribunal. But, regardless of the iteration, the essential question remains whether the person had the actual authority and ability or effective power to pay the taxes owed. Or, as the Appellate Division has framed the issue, consideration of the factors answers the question of whether the "petitioner had the authority to act on behalf of the corporation . . . and was personally involved in the financial affairs of the corporation during the audit period" (*Risoli*, 237 AD2d at 676).⁴

[1] Here, as noted above, the Tribunal articulated the test as "whether petitioner presented facts showing that [he] lacked control and authority over the affairs of NECC." While the phrase "control and authority over the affairs of NECC" is, perhaps, imprecise because it *could* be interpreted to mean control over "daily field operations" without regard to one's ef-

4. The dissenters do not dispute that our state appellate decisions pertaining to the responsible person test conform with federal law (dissenting op at 154), but they insist that the Tribunal could not have applied the same test that is employed by the federal courts because the Tribunal did not cite federal case law (dissenting op at 150). Of course, there is no support for the dissenters' novel requirement that an administrative agency must cite federal case law. Moreover, the Appellate Division decisions cited by the Tribunal reinforce the conclusion that the Tribunal understood the test to be whether petitioner had the actual authority and ability to pay the withholding taxes. In determining whether the petitioners were responsible persons within the meaning of Tax Law § 685, the cited cases look to whether the petitioner was involved in the financial management of the corporation and payment of employees, decided which outstanding bills were to be made and controlled the assets of the corporation (see *Matter of Cohen v State Tax Commn.*, 128 AD2d 1022, 1023-1024 [3d Dept 1987]; *Matter of Amengual v State Tax Commn.*, 95 AD2d 949, 950 [3d Dept 1983]; *Matter of McHugh v State Tax Commn.*, 70 AD2d 987, 988 [3d Dept 1979]). Review of these cases alone is sufficient to resolve the dissenters' criticism of the Tribunal that this Court has been forced to "guess as to the test that the Tribunal applied" (dissenting op at 150).

fective control over *financial affairs* and ability to pay overdue taxes, the factors the Tribunal considered make clear that it viewed the phrase as encompassing consideration of both petitioner's status in the corporation and whether petitioner had control and authority over the finances of NECC such that he could have paid the taxes.

The Tribunal noted that "petitioner was an officer of NECC and its majority shareholder, managed its field operations, had check signing authority, filed tax returns on behalf of the company and had considerable economic interest in NECC," as well as noting that petitioner had held himself out to the Department as a responsible person and negotiated a delay in the payment of overdue taxes because "he had to make payroll," and that bank signature cards reflected that petitioner could withdraw funds independently from the corporate bank account, while Anthony Nastasi could not.

Although the dissenters state that there was a "paucity of factors applied by the Tribunal that resemble the factors applied by federal courts" (dissenting op at 151), we note that the Tribunal expressly considered four of the seven factors set forth in *Vinick* (205 F3d at 8), as well as petitioner's holding oneself out as a responsible person, which is also a relevant factor under federal law (see *Hochstein*, 900 F2d at 548 n 1). The dissenters further posit that the Tribunal failed to consider the two factors that they deem most important, i.e., whether a person makes decisions regarding the repayment of outstanding debts or taxes and exercises control over daily bank accounts and disbursements (dissenting op at 152). However, the Tribunal noted that petitioner had informed the Department at one point that he could not pay amounts due because he had to make payroll—demonstrating that it considered petitioner's previous claims to the Department that he was making decisions regarding which, when and in what order NECC's debts would be paid—and the Tribunal's determination that petitioner exercised control over daily bank accounts and disbursements is readily inferable from its reference to the bank signature cards. Reading the phrase "control and authority over the affairs of NECC" in the context of the factors that the Tribunal considered indicates that it employed the proper legal standard, that is, whether petitioner had authority and control that would enable him to actually pay the overdue taxes.

III.

As petitioner argues, the substantial evidence and rationality standards are not relevant to determining the correct legal standard to be applied in determining whether an individual is a responsible person within the meaning of the Tax Law (*see Levin*, 42 NY2d at 34). However, having concluded that the proper legal standard was applied, we note that, “[i]n the evidentiary hearing before the [Department] the petitioner has the burden of proving the deficiency assessment improper, and if there are any facts or reasonable inferences from the facts to support the . . . determination, the assessment should be confirmed” (*id.* at 34 [citation omitted]). Stated differently, petitioner bore the burden at the hearing and the determination must be upheld if “there is substantial evidence in the record to support the determination of the Tax Appeals Tribunal imposing personal liability on petitioner pursuant to Tax Law § 685 (g)” (*Matter of Menik*, 280 AD2d at 702). Applying the substantial evidence standard, the “question . . . is not whether [the reviewing court] find[s] the proof . . . convincing, but whether the [agency] could do so” (*Matter of Marine Holdings, LLC v New York City Commn. on Human Rights*, 31 NY3d 1045, 1047 [2018] [internal quotation marks and citation omitted]).

[2] Here, substantial evidence in the record supports the Tribunal’s determination that petitioner did have actual authority over NECC’s finances and the ability to remit the overdue withholding tax during the relevant time period. As set forth in the Tribunal’s decision, it is undisputed that, during the audit period, petitioner was NECC’s majority shareholder; derived significant income and tax benefits from NECC as its president; had broad oversight authority over daily field operations; represented to the Department that he was authorized to resolve NECC’s financial problems; was directly involved in negotiating a resolution of NECC’s tax liabilities with the Department as the latter’s primary contact at NECC; signed the checks remitting full payment for other tax amounts due; and held himself out to be the owner and principal officer of the corporation with control over its financial affairs. This documented proof provides substantial evidence for the Tribunal’s determination and, thus, the determination must be sustained “irrespective of whether a similar quantum of evidence is available to support other varying conclusions” (*Matter of Haug v State Univ. of N.Y. at Potsdam*, 32 NY3d 1044, 1046 [2018]).

To be sure, the testimony of petitioner, Probst and Pillari—some of which was self-interested—and Nastasi’s affidavits submitted to the IRS may have called the veracity of the documentary evidence into question if that testimony was credited. However, “it was the province of the [Department] to resolve any conflicts in the evidence and make credibility determinations” (*Haug*, 32 NY3d at 1046). Petitioner expressly placed his credibility—along with that of Nastasi—into issue by insisting that their prior representations of petitioner’s authority and control were intended only to create the false impression that petitioner controlled NECC in order to obtain lucrative state contracts. Petitioner, who admitted to lying to the Department when it suited him, did not disavow the documents establishing that he had authority and control over NECC’s finances until those representations no longer benefited him financially. The Tribunal was free to reject petitioner’s testimony as lacking in credibility and insufficient to overcome the proof that petitioner did have actual authority over NECC’s finances. To accept as true and “undisputed” all of the testimony, as the dissenters do (dissenting op at 154), when the administrative factfinder had rejected the same as lacking credibility would be to violate the fundamental tenet governing review of administrative determinations—“‘[c]ourts may not weigh the evidence or reject [a] determination where the evidence is conflicting and room for choice exists’” (*Matter of Marine Holdings*, 31 NY3d at 1047, quoting *Matter of State Div. of Human Rights [Granelle]*, 70 NY2d 100, 106 [1987]).

Turning to willfulness, the test in New York is also consistent with that employed under federal law; the question is “whether the act, default, or conduct is consciously and voluntarily done with knowledge that as a result, trust funds belonging to the Government will not be paid over but will be used for other purposes” (*Matter of Levin*, 42 NY2d at 34). Petitioner was concededly aware that Nastasi was not paying withholding taxes and testified that he repeatedly discussed the matter with Nastasi. Yet petitioner continued to use his authority as president and majority shareholder to maintain MBE status and delay the tax collection actions by informing the Department that he would pay the taxes despite his awareness that Nastasi was using trust funds belonging to the government for other purposes. While doing so, petitioner benefitted from Nastasi’s actions and the fraud that they both perpetrated on the Department because petitioner’s representations were essential

to keeping the corporation afloat, enabling him to receive a salary, allocate business losses and secure a job for his daughter. Thus, the finding of willfulness is supported by substantial evidence as well.

Accordingly, the judgment of the Appellate Division should be affirmed, with costs.

TROUTMAN, J. (dissenting). In derogation of the doctrine of federal conformity, the Tax Appeals Tribunal failed to apply the “actual authority” or “effective power” test used by federal courts when determining whether petitioner could be held personally liable as a “responsible person” for unpaid employee withholding taxes owed by New England Construction Company, Inc. (NECC). Because the majority does not recognize from the record below that the Tribunal failed to apply the appropriate standard, I dissent.

It is undisputed that the doctrine of federal conformity governs the tax proceedings that the Department of Taxation and Finance brought against this petitioner under Tax Law § 685 (g). That doctrine has long been in existence, and it holds that, where there is a provision of New York tax law that is modeled after a virtually identical provision in the Internal Revenue Code (IRC), that provision of New York tax law should be construed in conformity with the IRC (*see Matter of Friedsam v State Tax Commn.*, 64 NY2d 76, 80-81 [1984]; *Matter of Marx v Bragalini*, 6 NY2d 322, 333 [1959]). The doctrine of federal conformity is now enshrined by the legislature in Tax Law § 607 (a) for the purpose of “provid[ing] a statutory mandate to assure conformity” (*Friedsam*, 64 NY2d at 80; *see* Tax Law § 607 [a] [“Any term used in this article shall have the same meaning as when used in a comparable context in the laws of the United States relating to federal income taxes, unless a different meaning is clearly required”]).

As is relevant here, Tax Law § 685 (g), under which petitioner was charged, provides that where a person is responsible to pay withholding taxes and fails to pay them willfully, they may be held personally liable. In other words, section 685 (g) allows the State to pierce the corporate veil and hold someone personally liable if they are responsible for paying taxes and fail to do so willfully. The language of section 685 (g) is in all material respects the same as 26 USC § 6672 (a) of the IRC.

Despite this similarity, the Tribunal and the Internal Revenue Service (IRS) reached different determinations about

petitioner's liability under those respective statutes, with the Tribunal finding that petitioner was liable under Tax Law § 685 (g) and the IRS finding that he was not liable under 26 USC § 6672 (a). The reason for this discrepancy may well be explained by the differences in the evidence presented to the two tribunals. But what we know for sure is that the Tribunal failed to apply the same federal test for liability that the IRS is bound to apply. In doing that, the Tribunal violated the doctrine of federal conformity.

I.

One evident and uncontroverted fact in this case is that petitioner is not a completely sympathetic person, as the dissenting Justices at the Appellate Division aptly pointed out:

“[P]etitioner, by his own account, engaged in a highly inappropriate scheme of falsely holding himself out as NECC's financial decision-maker for purposes of retaining its status as a minority-owned business enterprise (hereinafter MBE). Such behavior violated the MBE requirements. Nevertheless, there are regulatory provisions to address such a scenario, and the question before this Court is not the appropriateness of petitioner's conduct, but the propriety of the Tribunal's determination that he should be held personally liable for the corporation's tax liability” (206 AD3d 1482, 1486 [3d Dept 2022] [citations omitted]).

It is through this lens that the facts of this case are best viewed.

Petitioner began his career in 1986 as an apprentice carpenter for Nastasi White, going on to work for Nastasi & Associates after it splintered off from Nastasi White. In 1994, petitioner formed NECC, a drywall, acoustical ceilings, and millwork construction company. Petitioner's purpose in forming NECC included getting the corporation certified as a minority business enterprise to gain access to state contracts with minority access goals. Thereafter, petitioner and the owners of Nastasi & Associates arranged for petitioner to take over Nastasi & Associates' minority subcontracts. At all relevant times, petitioner was president and a 51% shareholder of NECC, with the remaining shares belonging to family members or owners of Nastasi & Associates.

In 2005, Anthony Nastasi took over the financial affairs and management of NECC. That same year, petitioner entered into

an agreement with Nastasi & Associates, which recited that “[w]hereas [NECC] [was] indebted to [Nastasi & Associates] for more than [\$4,000,000], and the parties desire to order their relationship in the event of certain contingencies,” the parties agree that, “[u]pon the written demand of Anthony Nastasi,” petitioner would resign his position as president of NECC and would be deemed to have sold his 26 shares of NECC common stock to Nastasi for \$26. Although the agreement allowed for another outcome if NECC paid off its financial obligation to Nastasi & Associates, that never happened.

Starting in 2012, NECC began to encounter tax liabilities, including issues regarding employee withholding taxes. In 2015, Nastasi terminated petitioner pursuant to the 2005 agreement, purchased petitioner’s shares of NECC, and became its sole owner.

Because NECC had been incurring federal and state liability for unpaid employee withholding taxes since 2012, in early 2015 the IRS issued petitioner an assessment holding him personally liable for NECC’s unpaid federal taxes. However, the IRS subsequently canceled the assessment after petitioner challenged it, finding that he was not a person responsible for paying NECC’s taxes under federal law. The IRS based its decision, in part, on sworn affidavits in which Nastasi averred that he himself had sole authority to pay NECC’s accrued liabilities, including tax obligations, and that petitioner’s authority over NECC’s bank account was limited to paying the costs of its field operations.

In December 2015, the State Department of Taxation and Finance issued petitioner notices of deficiency for unpaid withholding taxes under New York’s parallel delinquent tax statutes, asserting that he was a person responsible for paying NECC’s taxes. After a hearing before an administrative law judge, the Tax Appeals Tribunal (Tribunal) rejected petitioner’s challenge to the assessment, determining that it was not bound by the federal determination and that petitioner was responsible for the tax and willfully failed to pay it.

The Appellate Division confirmed the Tribunal’s determination in a 3-2 decision. The majority reasoned that “it is undisputed that petitioner was president, the majority shareholder, had check signing authority, was involved in daily field operations and derived a substantial part of his income from NECC” (206 AD3d at 1485). The Court also relied on the

fact that petitioner “held himself out” to tax officials as the “responsible person for New York taxes” (*id.*). The majority further held that petitioner’s failure to pay was willful (*see id.* at 1485-1486).

In my view, the two dissenting Justices at the Appellate Division homed in on the key problem with the analysis of the majority below, which applies equally to this Court’s majority opinion. The problem is the failure of the Tribunal to apply the federal standard for determining whether petitioner is a person responsible, under Tax Law § 685 (g), for paying the taxes owed to the State.

II.

The majority acknowledges that the doctrine of federal conformity applies to Tax Law § 685 (g), inasmuch as it is “modeled after 26 USC § 6672 (a)” of the IRC (majority op at 139, citing *Matter of Levin v Gallman*, 42 NY2d 32, 33-34 [1977]). Consequently, the test for who constitutes a responsible person liable for unpaid taxes is the same under both statutes.

Federal courts view the responsible person test as being a “functional” test (*Gephart v United States*, 818 F2d 469, 473 [6th Cir 1987]). “It is a test of substance, not form” (*Godfrey v United States*, 748 F2d 1568, 1576 [Fed Cir 1984]). The critical inquiry in determining whether someone is a “responsible person” is if they had the “effective power” or “actual authority or ability” to pay the taxes owed by the corporation (*Erwin v United States*, 591 F3d 313, 321 [4th Cir 2010]; *Plett v United States*, 185 F3d 216, 219 [4th Cir 1999]). In other words, under the federal test, “[w]hether one is considered a person responsible for paying over such taxes to the government . . . is a question ‘focusing upon the degree of influence and control which the person exercised over the financial affairs of the corporation, and, specifically, disbursements of funds and the priority of payments to creditors’” (*Kinnie v United States*, 994 F2d 279, 283 [6th Cir 1993], quoting *Gephart*, 818 F2d at 473).

In applying this federal test to an individual, federal courts examine seven, nonexclusive, factors that inquire into whether the person

“(1) is an officer or member of the board of directors, (2) owns shares or possesses an entrepreneurial stake in the company, (3) is active in the management of day-to-day affairs of the company,

(4) has the ability to hire and fire employees, (5) makes decisions regarding which, when and in what order outstanding debts or taxes will be paid, (6) exercises control over daily bank accounts and disbursement records, and (7) has check-signing authority” (*Vinick v United States*, 205 F3d 1, 7 [1st Cir 2000], quoting *Fiataruolo v United States*, 8 F3d 930, 939 [2d Cir 1993]).

“No single factor is determinative of responsibility” and the “totality of the circumstances” must be considered (*Vinick*, 205 F3d at 8 [internal quotation marks omitted]). The seven factors serve as a guide—not a mechanistic checklist—for answering the “core question” of whether an “individual has *significant control* over the enterprise’s finances” (*Fiataruolo*, 8 F3d at 939 [internal quotation marks omitted]). The test “is meant to encompass all those connected closely enough with the business to prevent the tax default from occurring,” but it “is not meant to ensnare those who have merely technical authority or titular designation” (*id.* [internal quotation marks and brackets omitted]).

III.

Unfortunately, this federal test is not the test that the Tribunal applied. How do we know? Well, one glaring indicator is that the federal test is never referenced in its opinion. In fact, there is not one citation to federal case law in that regard.

But the problem runs far deeper than that.¹ The majority’s best guess as to the test that the Tribunal applied is “‘whether petitioner presented facts showing that [he] lacked control and authority over the affairs of NECC’” (majority op at 137, 142). But that is not the federal test, which looks instead to whether petitioner presented facts demonstrating that he did not have the “effective power” or “actual authority or ability” to pay the

1. Regrettably, the majority opinion misapprehends the points raised in this dissent as “insist[ing] that the Tribunal could not have applied the same test that is employed by the federal courts because the Tribunal did not cite federal case law” or as “requir[ing] that an administrative agency must cite federal case law” (majority op at 142 n 4). A simple reading of this dissent shows that those statements by the majority are inaccurate. What is true is that the Tribunal’s failure to cite federal case law is a symptom of the Tribunal’s failure to apply the doctrine of federal conformity. The majority is confusing a reference to a symptom of the Tribunal’s error with the diagnosis of the error infecting the Tribunal’s opinion, which is the true focus of this dissent.

taxes owed by NECC (*Erwin*, 591 F3d at 321; *Plett*, 185 F3d at 219).

The majority's description of the Tribunal's test as being "imprecise" is charitable, but it misses the crucial discrepancy between that test and the federal test (majority op at 142-143). The Tribunal's test fails to inquire into whether petitioner "could have paid the taxes, but chose not to do so" (*Vinick*, 205 F3d at 9). Simply put, whether someone had some "control and authority over the affairs of a corporation" does not necessitate a determination that they had the effective power, actual authority, or actual ability to pay the corporation's taxes.

Attempting to rectify this incongruity, the majority points to the few factors that the Tribunal did analyze that cross over with factors analyzed under the federal test. However, that gesture fails to vindicate the majority's position given the paucity of factors applied by the Tribunal that resemble the factors applied by federal courts:

"The Tribunal concluded that petitioner was 'under a duty to collect and pay over withholding taxes' based upon the evidence that he was an officer and majority shareholder of NECC, managed its field operations, had check signing authority, filed tax returns on behalf of the company, had considerable economic interest in NECC and held himself out as a responsible person to third parties, including the Department" (majority op at 137; *see id.* at 143).

The fact that certain of these factors may engage in some of the same inquiries as the federal test does not make up for the fact that they are being used for a completely different purpose. Under the Tribunal's test, these factors explore the issue of whether petitioner lacked some ambiguous amount of control and authority over the affairs of NECC. But the factors under the federal test are used to pinpoint whether the type of control and authority over the affairs of NECC wielded by petitioner would give him effective power or actual ability to pay delinquent taxes. No matter how similar some of the Tribunal's factors are to the federal factors, that similarity does not demonstrate that the Tribunal and the federal courts are applying the same test, inasmuch as those factors are being used in different ways to make different determinations.

This discussion of the factors used by the Tribunal brings up another problem. The Tribunal also fails to apply all the fac-

tors applied under the federal test. Although it is true that the factors are not exhaustive, the majority points to nothing that shows that those factors are not mandatory inquiries under federal law. As the Appellate Division warned in a case cited by the majority: “While no one factor is controlling, all must be considered” (*Matter of Malkin v Tully*, 65 AD2d 228, 231 [3d Dept 1978]).² The Tribunal failed to do that.

Compounding the Tribunal’s error, the subset of federal factors applied by the Tribunal does not sufficiently assess whether a person has actual authority to pay taxes, inasmuch as those factors fail to identify “most readily [a] person who could have paid the taxes, but chose not to do so” (*Vinick*, 205 F3d at 9, citing *Morgan v United States*, 937 F2d 281, 284 [5th Cir 1991] [“The central question is whether an individual had the effective power to pay taxes”]). But that is precisely what is done under the fifth and sixth factors of the federal courts’ standard inquiry. Those factors delve into “whether the individual . . . (5) makes decisions regarding which, when and in what order outstanding debts or taxes will be paid, [and] (6) exercises control over daily bank accounts and disbursement records” (*Vinick*, 205 F3d at 7). Factors five and six are two of the three federal factors that go to “the heart of the matter,” and five is “the most important” (*id.* at 9). Although arguments regarding those factors were raised by petitioner before the Tribunal, there is no indication in the Tribunal’s opinion that it analyzed either of those factors in reaching its conclusion.

Indeed, the factors considered by the Tribunal as part of its analysis do not meaningfully point towards who “had or exercised control of the collection, accounting for, and payment over of taxes” (*Godfrey*, 748 F2d at 1576). Petitioner’s having been an officer of NECC and its majority shareholder is certainly some indication of his status within the corporate structure. However, “titular authority is insufficient to create liability” (*Vinick*, 205 F3d at 8). “Like corporate title, share ownership is a factor, but not all shareholders are responsible persons” (*id.*, citing *O’Connor v United States*, 956 F2d 48, 51-52 [4th Cir 1992] [“To ignore (the separation of ownership and authority) would be to envelop within ‘responsible person’ all significant investors with titles in corporations which fail to

2. However, to the extent that this decades-old state court decision cited by the majority considers only a small fraction of the factors now weighed by the U.S. Court of Appeals, the decision applies an obsolete approach to the federal responsibility test (*see* majority op at 141).

pay their withholding taxes”]). “Furthermore, share ownership is not a predicate to finding responsibility” (*id.*).

Additionally, the fact that petitioner “managed [NECC’s] field operations” does not implicate him in having “significant control over [NECC’s] finances” (*Hochstein v United States*, 900 F2d 543, 547 [1990]), because, without more, the two functions are significantly distinct. Nor do inquiries into petitioner’s authority to file tax returns on behalf of NECC or his considerable economic interest in NECC, without more, lead to a determination that petitioner “had or exercised control of the collection, accounting for, and payment over of taxes” (*Godfrey*, 748 F2d at 1576 [holding that “(t)he mechanical dut(y) of . . . preparing tax returns (is) thus not determinative of liability” (*id.* at 1575)]).

Furthermore, although a person’s “being held out as an officer of the corporation” can be “relevant to [their] status as a responsible person,” it must still be accompanied by “the authority to direct the payment of corporate funds” (*Hochstein*, 900 F2d at 546, 548 n 1).³ For example, the Second Circuit in *Hochstein* found a corporate controller to be a responsible person where, in addition to being held out as an officer, he also “exercise[d] significant control over [the corporation’s] finances,” including having authorization to sign checks in any amount; having the authority to sign and file the corporation’s tax returns; having dealt with the corporation’s financing partner on a daily basis during the corporation’s financial troubles; having made the initial determination of the order in which large bills were to be paid, subject to the approval of the corporation’s president; having the discretion to pay smaller bills; and having overseen the corporation’s bookkeeping (*see id.* at 547-548). In contrast, here, the Tribunal failed to analyze petitioner’s actual authority to exercise significant control over the corporation’s finances.

And although the majority also points to petitioner’s check signing authority as an important factor, “case law discloses that authority to sign checks, without more, is a weak pillar on which to rest a liability determination that a person is properly subject to a . . . penalty” (*Vinick*, 205 F3d at 10 [internal quotation marks and brackets omitted]; *see Godfrey*, 748 F2d

3. As counsel for the Tribunal conceded at oral argument, the Tribunal’s focus on petitioner’s holding himself out as a responsible person on a questionnaire was not raised for the purpose of invoking principles of estoppel, rather it was raised as one additional factor worth considering.

at 1575 [“The mechanical duties of signing checks and preparing tax returns are thus not determinative of liability”]). Thus, merely looking to petitioner’s check signing authority provides an incomplete picture without considering “the context of financial control” within NECC (*Vinick*, 205 F3d at 10). This is crucial given that it is undisputed that petitioner did not have access to the corporation’s checkbook, because it was in Nastasi’s closed safe approximately 40 miles away from petitioner’s office.

It is further undisputed that petitioner had nothing to do with hiring and firing employees of NECC and that he had nothing to do with payroll. Moreover, petitioner’s witnesses at the administrative hearing were unanimous in stating that NECC was Nastasi’s company and that he exercised complete financial control.

Although the majority notes that there are several ways in which courts phrase the factors that are examined under the responsible person test, that is not a reason to claim that the Tribunal applied the federal test, when it clearly did not (*see* majority op at 140 n 3). Instead, that is a reason for this Court to give the Tribunal guidance as to which factors it must apply under the doctrine of federal conformity. Beyond that, it is worth noting that the federal cases cited by the majority all examine factors that, like factors five and six of the standard seven-part test, are aimed at determining whether an individual had the effective power to pay taxes (*id.*).

Furthermore, although the majority takes great length to demonstrate that the Appellate Division’s decisions pertaining to the responsible person test conform with federal law, the concern here is not whether the Appellate Division applies the correct test. The concern is that the Tribunal did not.⁴

Along those lines, it is noteworthy that there is minimal daylight between the majority’s understanding of the test for a responsible person and the test that I have explained is applied by the federal courts. Our disagreement is primarily over

4. Tellingly, the Appellate Division’s decisions cited by the Tribunal fail to anchor their analysis of various factors to any overarching responsible person test (*see Matter of Cohen v State Tax Commn.*, 128 AD2d 1022, 1023-1024 [3d Dept 1987]; *Matter of Amengual v State Tax Commn.*, 95 AD2d 949, 950 [3d Dept 1983]; *Matter of McHugh v State Tax Commn.*, 70 AD2d 987, 988 [3d Dept 1979]). Although this is problematic in a different way than the Tribunal’s reliance on the wrong test, it is still problematic (*see supra* at 150-151).

whether the Tribunal applied the correct test, but it is not so much over the nature of that test. In the end, we all agree that the test requires a determination that “the person had the actual authority and ability or effective power to pay the taxes owed” (majority op at 142).

IV.

None of this is to say that this Court should find that the Tribunal’s decision was not supported by substantial evidence. As the majority points out, petitioner held himself out as a responsible person, most notably by completing a “responsible person questionnaire” in 2012; such evidence could of course weigh heavily, so long as the proper test is applied.

My desired result would be simply for this Court to reverse on the law and remit to the Appellate Division with instructions for that Court to remand the matter to the Tribunal so that it can review this matter applying the correct federal standard for determining if petitioner is a “responsible person” under Tax Law § 685 (g). Although the majority has chosen not to take that path in this case, there is clearly a need for this Court to provide the Tribunal and the Appellate Division with guidance to avoid them going further afield.

Chief Judge WILSON and Judges RIVERA, GARCIA and SINGAS concur. Judge TROUTMAN dissents in an opinion, in which Judge HALLIGAN concurs.

Judgment affirmed, with costs.

[231 NE3d 1001, 208 NYS3d 94]

In the Matter of ROCHESTER POLICE LOCUST CLUB, INC., et al.,
Respondents, v CITY OF ROCHESTER et al., Respondents,
and COUNCIL OF CITY OF ROCHESTER, Appellant.

Argued October 18, 2023; decided November 20, 2023

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 11, 2021. The Appellate Division order, insofar as appealed from, affirmed so much of a judgment (denominated order and judgment) of the Supreme Court, Monroe County (John J. Ark, J.; op 71 Misc 3d 438 [2020]), as had granted in part the petition challenging Local Law No. 2-2019 of the City of Rochester and declared “invalid, void and unenforceable” those “portions of Local Law No. 2 which authorize and empower the Police Accountability Board to conduct disciplinary hearings and discipline officers of the City of Rochester Police Department.”

Matter of Rochester Police Locust Club, Inc. v City of Rochester, 196 AD3d 74, affirmed.

HEADNOTE

Local Laws — Inconsistency with State Law — Local Law Granting Exclusive Authority over Police Discipline to New Civilian Entity

Local Law No. 2-2019 of the City of Rochester, which amended the City Charter to grant the newly-created Police Accountability Board (PAB) the exclusive authority to investigate and impose discipline for police misconduct, was properly invalidated as it conflicted with the disciplinary procedures imposed by Civil Service Law §§ 75 and 76 and the Taylor Law that rendered those procedures proper subjects of collective bargaining. The Municipal Home Rule Law expressly vests the City with the power to revise and amend its charter by local laws that are not inconsistent with the Constitution or general law, as well as the power “to adopt and amend local laws not inconsistent with the provisions of the constitution or not inconsistent with any general law relating to its property, affairs or government” (Municipal Home Rule Law § 10 [1] [i]). The City Council exercised that authority when it adopted Local Law No. 2-1985, which explicitly aimed to repeal the provision of its charter governing police discipline and render the disciplinary provisions of Civil Service Law §§ 75 and 76 applicable such that police discipline would be the subject of collective bargaining. Local Law No. 2-2019 was a new effort to reassert local control over police discipline and vest the PAB with that power, but such effort clashed with the statewide disciplinary provisions set forth in Civil Service Law §§ 75 and 76, and did not qualify as a preexisting “general, special or local law or charter provision” excluded from the scope of those sections by Civil Service Law § 76 (4). Local Law No.

2-2019 therefore exceeded the City's power under Municipal Home Rule Law § 10 (1) (i).

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Labor and Labor Relations § 2350; AM JUR 2d Municipal Corporations, Counties, and Other Political Subdivisions §§ 294, 306.

McKINNEY'S, Civil Service Law §§ 75, 76; Municipal Home Rule Law § 10 (1) (i).

NY JUR 2d Counties, Towns, and Municipal Corporations §§ 140, 154; NY JUR 2d Employment Relations §§ 607, 612, 613, 622.

ANNOTATION REFERENCE

See ALR Index under Collective Bargaining; Discipline and Disciplinary Actions; Home Rule; Municipal Corporations; Police and Law Enforcement Officers.

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POINTS OF COUNSEL

Emery Celli Brinckerhoff Abady Ward & Maazel, LLP, New York City (*Andrew G. Celli, Jr.*, *Debra L. Greenberger* and *Scout Katovich* of counsel), for appellant. I. Under the *New York City Patrolmen's Benevolent Association* line of cases, the 1907 Charter of the City of Rochester prohibits the City of Rochester from collectively bargaining over police discipline. (*Matter of Patrolmen's Benevolent Assn. of City of N.Y., Inc. v New York State Pub. Empl. Relations Bd.*, 6 NY3d 563; *Matter of Town of Wallkill v Civil Serv. Empls. Assn., Inc. [Local 1000, AFSCME, AFL-CIO, Town of Wallkill Police Dept. Unit, Orange County Local 836]*, 19 NY3d 1066; *Matter of City of Schenectady v New York State Pub. Empl. Relations Bd.*, 30 NY3d 109; *Matter of Cohoes City School Dist. v Cohoes Teachers Assn.*, 40 NY2d 774; *Board of Educ., Great Neck Union Free School Dist. v Aremman*, 41 NY2d 527; *Matter of Schenectady Police Benevolent Assn. v New York State Pub. Empl. Relations Bd.*, 85 NY2d 480; *Matter of Buffalo Police Benevolent Assn. [City of Buffalo]*, 4 NY3d 660; *Syracuse Teachers Assn. v Board of Educ.*, Syra-

cuse City School Dist., 35 NY2d 743; *Matter of Susquehanna Val. Cent. School Dist. at Conklin* [*Susquehanna Val. Teachers' Assn.*], 37 NY2d 614.) II. Local Law No. 2-1985 of the City of Rochester did not alter the 1907 state grant of power. (*Albany Area Bldrs. Assn. v Town of Guilderland*, 74 NY2d 372; *Adler v Deegan*, 251 NY 467; *Matter of Silverman v McGuire*, 51 NY2d 228; *Matter of Patrolmen's Benevolent Assn. of City of N.Y., Inc. v New York State Pub. Empl. Relations Bd.*, 6 NY3d 563; *Alweis v Evans*, 69 NY2d 199; *Turnpike Woods v Town of Stony Point*, 70 NY2d 735; *Kamhi v Town of Yorktown*, 74 NY2d 423; *Matter of Town of Wallkill v Civil Serv. Empls. Assn., Inc.* [*Local 1000, AFSCME, AFL-CIO, Town of Wallkill Police Dept. Unit, Orange County Local 836*], 19 NY3d 1066; *Matter of City of Schenectady v New York State Pub. Empl. Relations Bd.*, 30 NY3d 109.) III. The City of Rochester's state-granted power over police discipline may be vested in a civilian board. (*Bareham v City of Rochester*, 246 NY 140; *Morin v Foster*, 45 NY2d 287; *Farrington v Pinckney*, 1 NY2d 74.)

Trevett Cristo, Rochester (*Daniel P. DeBolt* of counsel), for Rochester Police Locust Club, Inc. and others, respondents. I. Police discipline in the City of Rochester is governed by the Civil Service Law and is a mandatory subject of collective bargaining. (*Matter of City of Schenectady v New York State Pub. Empl. Relations Bd.*, 30 NY3d 109; *Matter of Auburn Police Local 195, Council 82, Am. Fedn. of State, County & Mun. Empls., AFL-CIO v Helsby*, 46 NY2d 1034; *Matter of Town of Wallkill v Civil Serv. Empls. Assn., Inc.* [*Local 1000, AFSCME, AFL-CIO, Town of Wallkill Police Dept. Unit, Orange County Local 836*], 19 NY3d 1066; *Matter of City of Watertown v State of N.Y. Pub. Empl. Relations Bd.*, 95 NY2d 73; *Matter of New York City Tr. Auth. v New York State Pub. Empl. Relations Bd.*, 8 NY3d 226; *Matter of City of New York v MacDonald*, 201 AD2d 258; *Matter of City of Mount Vernon v Cuevas*, 289 AD2d 674; *Matter of Rockland County Patrolmen's Benevolent Assn. v Town of Clarkstown*, 149 AD2d 516; *Matter of Town of Greenburgh* [*Police Assn. of Town of Greenburgh*], 94 AD2d 771; *Motondo v City of Syracuse*, 68 Misc 3d 398.) II. City council's 1985 legislation was lawful and valid. (*Matter of Town of Greenburgh* [*Police Assn. of Town of Greenburgh*], 94 AD2d 771; *Triple A Intl., Inc. v Democratic Republic of Congo*, 721 F3d 415.) III. The Police Accountability Board legislation would still be unlawful and invalid even if the City of Rochester had retained its previous grandfathered status. (*Meringolo v Jacobson*, 173 Misc 2d 650, 256 AD2d 20.) IV. City Council should be estopped

from taking the position that police discipline is a prohibited subject of bargaining. V. Local Law No. 2-2019 of the City of Rochester violates Civil Service Law § 75 and McKinney's Unconsolidated Laws of NY § 891 (as added by L 1940, ch 834). (*Matter of Lynch v Giuliani*, 301 AD2d 351.)

Barbara Graves-Poller, Corporation Counsel, Kingston, for City of Kingston, amicus curiae. City of Kingston and other cities will suffer if this Court adopts the Appellate Division's low bar for "unambiguous" legislative intent. (*Ballentine v Koch*, 89 NY2d 51; *Ball v State of New York*, 41 NY2d 617; *People v Van Buren*, 4 NY3d 640; *Cimo v State of New York*, 306 NY 143; *Home Telephone & Telegraph Co. v Los Angeles*, 211 US 265; *Farrington v Pinckney*, 1 NY2d 74; *Matter of Karedes v Colella*, 100 NY2d 45; *Morin v Foster*, 45 NY2d 287; *Matter of Amorosi v South Colonie Ind. Cent. School Dist.*, 9 NY3d 367; *B & F Bldg. Corp. v Liebig*, 76 NY2d 689.)

Sylvia O. Hinds-Radix, Corporation Counsel, New York City (*Elina Druker, Richard Dearing, Claude S. Platton and Spencer Fisher* of counsel), for City of New York, amicus curiae. I. Exempt jurisdictions have home rule authority to modify or repeal charter provisions concerning local control over police discipline. (*Jancyn Mfg. Corp. v County of Suffolk*, 71 NY2d 91; *DJL Rest. Corp. v City of New York*, 96 NY2d 91; *Matter of Gizzo v Town of Mamaroneck*, 36 AD3d 162; *Matter of Holland v Bankson*, 290 NY 267; *Kamhi v Town of Yorktown*, 74 NY2d 423; *Kittinger v Buffalo Traction Co.*, 160 NY 377; *Patrolmen's Benevolent Assn. of City of N.Y. v City of New York*, 97 NY2d 378; *Murray v Town of N. Castle, N.Y.*, 203 AD3d 150; *Ryan v City of New York*, 177 NY 271; *Johnson v Etkin*, 279 NY 1.) II. The question whether a local law forfeits a jurisdiction's exemption turns on whether it retains the key elements of local control. (*Mayor of City of N.Y. v Council of City of N.Y.*, 9 NY3d 23; *Matter of Resnick v County of Ulster*, 44 NY2d 279; *Matter of Toys "R" Us v Silva*, 89 NY2d 411.)

Harris Beach PLLC, White Plains (*Brian D. Ginsberg* of counsel) and Pittsford (*Svetlana K. Ivy* of counsel), for Albany Community Police Review Board, amicus curiae. The New York State policy favoring local control over police discipline entitles municipalities to establish civilian review boards. (*Matter of City of Schenectady v New York State Pub. Empl. Relations Bd.*, 30 NY3d 109; *Matter of Town of Wallkill v Civil Serv. Empls. Assn., Inc.* [*Local 1000, AFSCME, AFL-CIO, Town of*

Wallkill Police Dept. Unit, Orange County Local 836], 19 NY3d 1066; *Matter of Patrolmen's Benevolent Assn. of City of N.Y., Inc. v New York State Pub. Empl. Relations Bd.*, 6 NY3d 563; *People ex rel. Masterson v French*, 110 NY 494; *American Intl. Specialty Lines Ins. Co. v Allied Capital Corp.*, 35 NY3d 64; *Matter of United Fedn. of Teachers, Local 2, AFT, AFL-CIO v Board of Educ. of City School Dist. of City of N.Y.*, 1 NY3d 72; *Matter of Board of Educ. of Arlington Cent. School Dist. v Arlington Teachers Assn.*, 78 NY2d 33.)

OPINION OF THE COURT

EGAN JR., J.*

Since the 1980s, the collective bargaining agreement (hereinafter CBA) in place between the City of Rochester and the Rochester Police Locust Club, Inc. (hereinafter the Locust Club), the union representing police officers in the City, has governed the procedure for disciplining police officers. In 2019, the Council of the City of Rochester adopted, the Mayor of the City of Rochester signed, and voters approved via referendum Local Law No. 2-2019 of the City of Rochester, which created the Police Accountability Board (hereinafter PAB), a body of nine City residents whose powers included the exclusive authority to “investigate and make determinations respecting” any police officer accused of misconduct. That authority included the power to conduct a hearing on the alleged misconduct and to impose disciplinary sanctions, up to and including dismissal, if the officer were found guilty. The City’s police chief was free to impose additional punishment upon that officer, but was obliged at a minimum to implement the sanction determined by the PAB.

There is no dispute that the disciplinary procedures set forth in Local Law No. 2-2019 deviated in significant respects from the agreed-upon procedures set forth in the CBA then in effect and that they were not agreed to by the Locust Club. The Locust Club and others commenced this combined CPLR article 78 proceeding and declaratory judgment action to challenge Local Law No. 2-2019 and, in particular, its transfer of police disciplinary authority to the PAB. Supreme Court ultimately granted the petition in part and held, among other things, that Local Law No. 2-2019 was invalid to the extent that it transferred that authority. Upon the City Council’s appeal, the Appellate Division affirmed (196 AD3d 74 [4th Dept 2021]).

* Designated pursuant to NY Constitution, article VI, § 2.

The Appellate Division held that the City was obliged to negotiate with the Locust Club on the issue of police discipline because in 1985 it had repealed the provision of its charter vesting a local official in charge of the police force with unilateral authority over police discipline and that the City's effort to revive that authority in Local Law No. 2-2019 necessarily failed under the Municipal Home Rule Law because it was inconsistent with a general law, namely, "the Taylor Law's mandate of collective bargaining for police discipline" (196 AD3d at 84). We granted the City Council's motion for leave to appeal and now affirm.

I.

In 1907, the Legislature enacted the Charter of the City of Rochester (*see* L 1907, ch 755 [hereinafter 1907 City Charter]). The 1907 City Charter specified that the City's department of public safety would contain several bureaus, including the police bureau, and granted the commissioner of public safety, among other things, "cognizance, jurisdiction, supervision and control of the police bureau, . . . [including] the officers and members thereof" (1907 City Charter § 317). The commissioner was further granted, in a provision entitled "[c]harges and trials of policemen and firemen," exclusive power "to hear, try and determine" disciplinary charges against a police officer "according to the rules made by [the commissioner] in relation to such matters" (1907 City Charter § 330). The commissioner was free to impose a range of penalties, up to and including dismissal, upon an officer if he or she were found guilty of misconduct, and the commissioner's decision was "final and conclusive, and not subject to review by any court" (1907 City Charter § 330).

The State Constitution was amended in 1923 to provide for municipal home rule, and those home rule powers were implemented via the former City Home Rule Law and, later, the Municipal Home Rule Law (*see e.g. Hausser v Giunta*, 88 NY2d 449, 451 [1996]; *New Rochelle Trust Co. v White*, 283 NY 223, 229 [1940]). The City exercised those home rule powers on several occasions over the ensuing decades to amend the provisions of its charter governing the administrative structure of the police force. The charter nevertheless retained—eventually in section 8A-7 of the charter entitled "[c]harges and trials of policemen"—a provision vesting the official responsible for administering the police force with exclusive disciplinary

authority over police officers.¹ In 1985, however, Local Law No. 2-1985 was enacted as part of a restructuring plan and repealed section 8A-7, explicitly stating that the provision was no longer necessary because the “subject matter is covered in the Civil Service Law” (Local Law No. 2-1985 of City of Rochester § 1).

The questions presented here revolve around the effect of that 1985 repeal and whether it rendered police disciplinary procedures an appropriate subject of collective bargaining in the City.

II.

This case is the latest of a series in which we have addressed the issue of when police disciplinary procedures are subject to collective bargaining. Briefly, in 1958, the Legislature enacted Civil Service Law §§ 75 and 76 to specify “the procedures for disciplining public employees, including police officers, . . . [and] provide for a hearing and an appeal” (*Matter of Patrolmen’s Benevolent Assn. of City of N.Y., Inc. v New York State Pub. Empl. Relations Bd.*, 6 NY3d 563, 573 [2006]). “[A]lthough Civil Service Law §§ 75 and 76 generally govern police disciplinary procedures, preexisting laws that expressly provide for control of police discipline were ‘grandfathered’ under Civil Service Law § 76 (4), which provides that nothing in sections 75 and 76 ‘shall be construed to repeal or modify any general, special or local’ laws or charters” (*Matter of City of Schenectady v New York State Pub. Empl. Relations Bd.*, 30 NY3d 109, 114 [2017], quoting *Matter of Patrolmen’s Benevolent Assn. of City of N.Y., Inc.*, 6 NY3d at 573).

Thereafter, the Taylor Law was enacted in 1967 to enshrine “the ‘strong and sweeping’ public policy in favor of collective bargaining in this state” and require good-faith bargaining between recognized employee organizations and public employers over the terms and conditions of employment (*Matter of City of Long Beach v New York State Pub. Empl. Relations Bd.*, 39 NY3d 17, 22 [2022], quoting *Matter of City of Watertown v State of N.Y. Pub. Empl. Relations Bd.*, 95 NY2d 73, 78 [2000];

1. The fact that the charter was amended in various respects prior to 1985 to change the administrative structure of the City’s police force is “irrelevant for [our] purpose[s],” as those alterations never disturbed the disciplinary authority granted by the Legislature in 1907 (*Matter of City of Schenectady v New York State Pub. Empl. Relations Bd.*, 30 NY3d 109, 115 n 1 [2017]).

see Civil Service Law § 200 *et seq.*, as added by L 1967, ch 392, § 2; *Matter of City of Schenectady*, 30 NY3d at 114). Although the disciplinary procedures set forth in Civil Service Law §§ 75 and 76 predate the Taylor Law, we have previously “held that the policy of the Taylor Law prevails, and collective bargaining is required [for disciplinary procedures], where no legislation specifically commits police discipline to the discretion of local officials” (*Matter of Patrolmen’s Benevolent Assn. of City of N.Y., Inc.*, 6 NY3d at 571; see *Matter of Auburn Police Local 195, Council 82, Am. Fedn. of State, County & Mun. Empls., AFL-CIO v Helsby*, 62 AD2d 12 [3d Dept 1978], *affd for reasons stated below* 46 NY2d 1034 [1979]).

This Court’s prior decisions have also addressed the situation where a law grandfathered under Civil Service Law § 76 (4) gives rise to a conflict “between the strong and sweeping policy of the State to support collective bargaining under the Taylor Law and a competing policy . . . favoring strong disciplinary authority for those in charge of police forces” (*Matter of Patrolmen’s Benevolent Assn. of City of N.Y., Inc.*, 6 NY3d at 571 [internal quotation marks and citation omitted]; see *Matter of City of Schenectady*, 30 NY3d at 114; *Matter of Town of Wallkill v Civil Serv. Empls. Assn., Inc. [Local 1000, AFSCME, AFL-CIO, Town of Wallkill Police Dept. Unit, Orange County Local 836]*, 19 NY3d 1066, 1069 [2012]). We have resolved that tension by holding that the specific goal of strong disciplinary authority for the leader of a police force prevails over the general one of supporting collective bargaining and that, where “legislation specifically commit[ting] police discipline to the discretion of local officials . . . is in force, the policy favoring control over the police prevails, and collective bargaining over disciplinary matters is prohibited” (*Matter of Patrolmen’s Benevolent Assn. of City of N.Y., Inc.*, 6 NY3d at 571-572; see *Matter of City of Schenectady*, 30 NY3d at 115; *Matter of Town of Wallkill*, 19 NY3d at 1069).² To put it simply, “some [municipalities] have the right to bargain about police discipline, and some do not” (*Matter of City of Schenectady*, 30 NY3d at 118), and the difference depends upon whether there is applicable legislation “specifically commit[ting] police discipline to the discretion of local officials . . . in force” (*Matter of*

2. Our prior decisions address the circumstances under which police discipline could become a prohibited subject of bargaining; we note that the Legislature recently acted to ensure that the same rule would not be extended to the discipline of firefighters (see L 2022, ch 674).

Patrolmen's Benevolent Assn. of City of N.Y., Inc., 6 NY3d at 571-575).

III.

Applying those principles here, the parties are in agreement that section 330 of the 1907 City Charter constituted prior legislation committing police discipline to the discretion of the City official in charge of the police force which was grandfathered under Civil Service Law § 76 (4). The provision would have prohibited collective bargaining over police disciplinary procedures had it remained “in force” (*Matter of Patrolmen's Benevolent Assn. of City of N.Y., Inc.*, 6 NY3d at 572). That said, the Municipal Home Rule Law expressly vests the City with the power to “revise and amend its charter by local laws that are not inconsistent with the Constitution or general law” (*Matter of St. Lawrence County v City of Ogdensburg*, 40 NY3d 121, 126 [2023]; see Municipal Home Rule Law § 10 [1] [ii] [c] [1]), as well as the power to “adopt and amend local laws not inconsistent with the provisions of the constitution or not inconsistent with any general law relating to its property, affairs or government” (Municipal Home Rule Law § 10 [1] [i]). It is further established that the City could exercise that power in a way that surrendered authority granted to it under the 1907 City Charter; indeed, as the City itself points out, a referendum was required to approve Local Law No. 2-2019 precisely because that law “[a]bolishe[d], transfer[red] or curtail[ed]” the charter power of the Mayor to appoint and remove all members of boards (Municipal Home Rule Law § 23 [2] [f]).

The City Council exercised that authority when it adopted Local Law No. 2-1985 with the explicit aim of repealing the provision in its charter governing “[c]harges and trials of policemen, for the reason that this subject matter is covered in the Civil Service Law” (Local Law No. 2-1985 § 1). The plain meaning of that language rendered the disciplinary provisions of Civil Service Law §§ 75 and 76 applicable and, “where Civil Service Law §§ 75 and 76 apply, police discipline may be the subject of collective bargaining” (*Matter of Patrolmen's Benevolent Assn. of City of N.Y., Inc.*, 6 NY3d at 573). Indeed, it is notable that the Taylor Law itself is a part of the Civil Service Law and had been operative for almost two decades before the City enacted Local Law No. 2-1985 and specified that “the Civil Service Law” would thereafter govern police discipline. The City Council suggests that it did not intend for the 1985

law to require the City to collectively bargain police discipline but, even accepting that its intent is relevant in view of the plain text of the law itself, there is no evidence in the record to support that claim. In any event, by 1985 the case law was clearly established that police discipline was a proper subject of collective bargaining where the procedures of Civil Service Law §§ 75 and 76 applied, and the City Council certainly should have been aware of that fact (*see Matter of Town of Greenburgh [Police Assn. of Town of Greenburgh]*, 94 AD2d 771, 771-772 [2d Dept 1983], *lv denied* 60 NY2d 551 [1983]; *Matter of Auburn Police Local 195*, 62 AD2d at 17). It follows that, upon the enactment of Local Law No. 2-1985, there was no longer a conflicting charter provision in force that “specifically commit[ed] police discipline to the discretion of local officials”; therefore, “the policy of the Taylor Law prevail[ed], and collective bargaining [was] required” on the issue of police discipline (*Matter of Patrolmen’s Benevolent Assn. of City of N.Y., Inc.*, 6 NY3d at 571).

Having surrendered the grant of police disciplinary power embodied in the 1907 City Charter in 1985, the attempt in Local Law No. 2-2019 to give exclusive disciplinary power to the PAB without the Locust Club’s agreement necessarily fails. Even if the City Council had attempted to repeal Local Law No. 2-1985 before enacting the 2019 local law, it could not have revived the authority granted under the 1907 City Charter because “[t]he repeal . . . of any provision of a statute, which repeals any provision of a prior statute, does not revive such prior provision” (General Construction Law § 90). Local Law No. 2-2019 was instead a new effort to reassert local control over police discipline and vest the PAB with that power, but such an effort clashes with the statewide disciplinary provisions set forth in Civil Service Law §§ 75 and 76 and, importantly, does not qualify as a preexisting “general, special or local law or charter provision” excluded from the scope of those sections by Civil Service Law § 76 (4). Local Law No. 2-2019 therefore exceeded the City’s power “to adopt and amend local laws not inconsistent with the provisions of the constitution or not inconsistent with any general law relating to its property, affairs or government” (Municipal Home Rule Law § 10 [1] [i] [emphasis added]; *see* Municipal Home Rule Law §§ 10 [1] [ii] [c] [1]; 22), as it ran afoul of the disciplinary procedures imposed by Civil Service Law §§ 75 and 76 and the Taylor Law that rendered those procedures proper subjects of collective

bargaining. It follows that the portion of Local Law No. 2-2019 addressing police discipline does exceed the City's authority under the Municipal Home Rule Law and is invalid.

IV.

Finally, even if the City could rely upon the policy articulated in now-repealed section 330 of the 1907 City Charter to justify the passage of Local Law No. 2-2019—conducting a legislative séance to summon that policy “as a ghost after the provision of law embodying it has been repealed” (brief for amicus curiae City of New York at 16 n 7)—the effort to do so would suffer from an additional flaw. If the State's 1907 policy judgment that authority for police discipline should rest exclusively with the City official in charge of the police department was so strong that it overcame even the more recently enacted statewide policy embodied in the Taylor Law, then the City necessarily also lacked the authority, in 2019, to contravene that policy judgment by shifting disciplinary authority to a new, all-civilian PAB. As the Appellate Division put it:

“If, as the current City Council insists, the [L]egislature's 1907 policy determination to commit police discipline to the exclusive discretion of the executive branch was so important and fundamental that it barred the 1985 City Council from subjecting police discipline to collective bargaining, then the paramount import of that 1907 policy would also logically bar the current City Council from transferring the executive's latent disciplinary authority to an unelected body like PAB. Simply stated, the 1907 City Charter provision cannot logically preclude collective bargaining of police discipline yet simultaneously permit an independent board to fire police officers over the objection of the executive's appointed police chief. The very rationale that the City Council deploys to invalidate the 1985 repeal would equally doom its own 2019 legislation. Thus, by winning the battle over the validity of the 1985 repeal, the City Council would ineluctably lose the war over the validity of the 2019 local law” (196 AD3d at 83-84).

There are obvious differences between the all-civilian PAB and a police chief, police commissioner or public safety commissioner. The exemption from collective bargaining over po-

lice discipline, as we recognized in cases like *Matter of Patrolman's Benevolent Assn. of City of N.Y., Inc.*, is based on a public “policy favoring strong disciplinary authority for those in charge of police forces” (6 NY3d at 571 [emphasis added]). We justified our recognition of that exemption, in part, based on the “quasi-military nature of a police force” and our understanding “that a question pertaining solely to the general government and discipline of the force . . . must, from the nature of things, rest wholly in the discretion of the commissioners” (*id.* at 576 [internal quotation marks omitted]). Local Law No. 2-2019 reflects a wholly different and contradictory policy judgment, namely, that the public interest is best served when the local officials generally in charge of police departments are *not* in charge of police discipline. Neither the City Council nor the dissent cite any state legislative enactment embodying that public policy.

It may, or may not, be the popular will in this State to transfer the power over police discipline away from officials in charge of police forces—and some would argue that such a transfer of power is good public policy—but even those who favor that policy must admit that the Legislature has not acted to implement it. Although this Court has previously “recognized that there may be general public policy limitations on collective bargaining that are not derived from statute,” we have emphasized that such must be a rare occurrence because “a public policy strong enough to [prevail over the strong presumption in favor of collective bargaining created by the Taylor Law] would ‘almost invariably involv[e] an important constitutional or statutory duty or responsibility’” (*Matter of Board of Educ. of City School Dist. of City of N.Y. v New York State Pub. Empl. Relations Bd.*, 75 NY2d 660, 667-668 [1990], quoting *Matter of Port Jefferson Sta. Teachers Assn. v Brookhaven-Comsewogue Union Free School Dist.*, 45 NY2d 898, 899 [1978]). As such, we have stated that “[t]he presumption in favor of bargaining may be overcome only in special circumstances where the legislative intent to remove the issue from mandatory bargaining is plain and clear, or where a specific statutory directive leaves no room for negotiation” (*Matter of City of Watertown v State of N.Y. Pub. Empl. Relations Bd.*, 95 NY2d at 78-79 [internal quotation marks and citations omitted]; see *Matter of City of Long Beach v New York State Pub. Empl. Relations Bd.*, 39 NY3d 17, 22 [2022]). The Legislature may therefore act to articulate a public policy that

would prevail over the “strong and sweeping” one favoring collective bargaining that it has already adopted in the Taylor Law (*id.* at 78 [internal quotation marks omitted]) and, if it does so, this Court will enforce that policy just as stringently as we have the one set forth in the Taylor Law. Absent such action by the Legislature, however, the statewide policy in favor of collective bargaining must control.

Accordingly, the order of the Appellate Division insofar as appealed from should be affirmed, with costs.

Chief Judge WILSON (dissenting). In the wake of the killings of Eric Garner, Akai Gurley, Tamir Rice, Calvin Reid, Anthony Hill, Eric Harris, Dontay Ivy, Walter Scott, Greg Gunn, Derravis Rogers, Jordan Edwards, Dennis Plowden, Stephon Clark, Chinedu Okobi, George Robinson, Jimmy Atchison, Javier Ambler, Tyan Twyman, Cameron Lamb, William Howard Green, Manuel Ellis, Breonna Taylor, Daniel Prude, George Floyd, Andre Hill, Calvin Wilks, Jr., Quadry Sanders, Jayland Walker, Ta’Kiya Young, and approximately 9,000 other people by police officers since 2015,¹ cities around the country have taken steps to make police officers more accountable to the public they serve by altering the method of police discipline. Rochester, New York, recognizing the need for change even before the 2020 killing of Mr. Prude by its police force, joined ongoing reform efforts by creating an independent board to oversee complaints of police misconduct.² Rather than being handled internally within the police department or submitted

1. See *e.g.* *Police Shootings Database*, The Washington Post, <https://www.washingtonpost.com/graphics/investigations/police-shootings-database> (last accessed Oct. 27, 2023).

2. The importance of civilian oversight of law enforcement is widely recognized (see Final Report of the President’s Task Force on 21st Century Policing at 26 [May 2015] [“Some form of civilian oversight of law enforcement is important in order to strengthen trust with the community”]; Udi Ofer, *Getting it Right: Building Effective Civilian Review Boards to Oversee Police*, 46 Seton Hall L Rev 1033, 1040-1042 [2016] [noting the existence of hundreds of civilian review boards, and tracing the genesis of such boards to Civil Rights Movement challenges to police brutality]). Due in part to the inability of existing practices to prevent the killings mentioned above, demands for such oversight have strengthened in recent years to demand that civilians have meaningful control over police discipline, rather than merely a nominal or advisory role (*e.g.* Jocelyn Simonson, *Police Reform through a Power Lens*, 130 Yale LJ 778, 813-824 [2021] [describing activist demands for such control in Chicago, Oakland, Nashville, and other locations]).

In New York, 2020 protests over the killing of George Floyd sparked the City of Albany to pass 2021 Local Law J, which transformed a preexisting civilian review board by granting it the power to conduct independent

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to arbitration, such complaints would now be investigated by a board largely nominated by community organizations and appointed by the City Council, improving “accountability and transparency” (Charter of City of Rochester §§ 18-1, 18-4 [H], as added by Local Law No. 2-2019 of City of Rochester).

The majority believes that Rochester had the ability to take this action until 1985 when, by repealing a portion of the charter New York State granted to Rochester in 1907, Rochester forever lost the ability to structure police discipline except as agreed to through collective bargaining with the Locust Club. I disagree. Fundamentally, the majority has allowed the inconclusive action of a bygone Rochester legislative body to displace the public policy of New York State, when the proper question is whether there is a *state* public policy that can overcome the Taylor Law mandate of collective bargaining. We have already held that there is such a policy; the remaining question is whether it applies on the facts present here.

The majority has lost the forest for the trees. Whether a subject must be collectively bargained under the Taylor Law depends on state public policy, not the presence of a conflicting statute. The majority agrees that prior to 1985, state public policy prohibited collective bargaining over police discipline in Rochester, even though Rochester had been bargaining over police discipline for nearly a decade. Although the 1985 Rochester law repealed certain statutory provisions relevant to police discipline, state policy governing the application of the Taylor Law cannot be altered by municipal legislation, especially municipal legislation that expresses no clear desire to forgo the City’s ability to unilaterally determine its own police disciplinary measures. Rather, the state policy favoring “strong disciplinary authority for those in charge of police forces” continues to apply to Rochester (*Matter of Patrolmen’s Benevo-*

investigations and issue subpoenas (Albany Community Police Review Board, *About Us*, <https://www.albanycprb.org/about-us> [last accessed Nov. 3, 2023]). New York City enacted Local Law No. 24 (2022), which empowered its Civilian Complaint Review Board to initiate complaints even if no victim comes forth with a formal accusation. Buffalo has also strongly considered the creation of such a board (Deidre Williams, *Some still press for Buffalo police review board. Others vow to ‘exhaust every resource to fight it’*, The Buffalo News, Apr. 6, 2023, available at https://buffalonews.com/news/local/some-still-press-for-buffalo-police-review-board-others-vow-to-exhaust-every-resource-to/article_04e06eca-c500-11ed-9ccf-0b51c89e2290.html). Our decision today creates an odd divide between cities which may pursue such reform and cities which may not, dependent on historical contingencies unrelated to the merits or demerits of the reforms themselves.

lent Assn. of City of N.Y., Inc. v New York State Pub. Empl. Relations Bd., 6 NY3d 563, 571 [2006] [PBA]). Because Local Law No. 2-2019 aligns with that policy, there is no conflict here between state and local law—only between a modern policy consensus and equivocal 1985 municipal legislation. Because there is no reason to favor the latter over the former, I dissent.

I.

The State granted a new charter to the City of Rochester in 1907 (L 1907, ch 755). Section 324 of that charter gave the Commissioner of Public Safety a duty to make “rules and regulations not inconsistent with . . . this act and other laws of the state . . . for the government, direction, management and discipline of the police.” Section 330 gave the Commissioner the power to hear disciplinary proceedings against police officers and administer punishment, subject to certain due process protections.

Between 1925 and 1970, Rochester repeatedly amended its charter using its powers under the City Home Rule Law (L 1924, ch 363) and its successor, the Municipal Home Rule Law (L 1963, ch 843). Those amendments reorganized the police and fire departments but did not significantly alter the disciplinary provisions in the original charter. In 1958, the State passed sections 75 and 76 of the Civil Service Law. However, Rochester’s existing disciplinary procedures were grandfathered in under section 76 (4) of that law. In 1967, the State passed the Taylor Law. According to Rochester’s undisputed representation, the City and the Locust Club began collective bargaining over police discipline no later than 1976, with the agreement between the parties incorporating sections 75 and 76 of the Civil Service Law.

In 1985, Rochester passed Local Law No. 1-1985 and Local Law No. 2-1985. Local Law No. 1-1985 repealed the former section 8A-2 and replaced it with a new section 8A-1, stating that the chief of police, as deputy to the Commissioner of Public Safety, “shall, subject to the approval of the Commissioner of Public Safety, assign, station and transfer all personnel” and “see that all rules and regulations relating to the Police Department are enforced and carried out.” The chief of police also had the authority to issue subpoenas and administer oaths. Local Law No. 2-1985 repealed section 8A-7, which described procedures for disciplinary proceedings, “for the reason that this subject matter is covered in the Civil Service Law” (Local Law No. 2-1985 of City of Rochester § 1).

In 2016, Rochester entered into a three-year collective bargaining agreement (CBA) with the Locust Club. Article 20 of that agreement contains extensive procedures regarding discipline. Among other things, it mandates that serious disciplinary charges will be heard by neutral hearing officers agreed on by the City and Locust Club.

In 2019, Rochester adopted Local Law No. 2-2019 via a referendum with 75% support. The purpose of Local Law No. 2-2019 was to increase community control over police discipline. To this end, Local Law No. 2-2019 created a Police Accountability Board (PAB) composed of community leaders and political appointees with the power to investigate complaints received directly or referred from the chief of police and other city officials. After a hearing following the procedural requirements of Civil Service Law § 75, it may impose discipline according to a disciplinary matrix that it is required to create. The chief of police must impose at least the discipline recommended by the PAB, but can deviate upwards.

Local Law No. 2-2019 conflicts with the CBA because it contemplates discipline according to a different disciplinary process than the one contained in the CBA and uses different hearing officers than specified by the CBA. The Locust Club brought a hybrid CPLR article 78 and declaratory judgment action seeking a declaration that Local Law No. 2-2019 is invalid because it conflicts with the Taylor Law, Civil Service Law § 75, and McKinney's Unconsolidated Laws of NY § 891 (as added by L 1940, ch 834).

II.

Rochester argues that it is free to depart from the CBA procedures because police discipline is a prohibited subject of bargaining in Rochester under the Taylor Law. The majority's conclusion to the contrary rests on the proposition that bargaining can be prohibited under the Taylor Law only if bargaining would conflict with a statute "in force." That is not so. Whether the subject is teacher tenure, police hiring, or questioning of firefighters regarding criminal activity, our test for a prohibited subject has long been whether there is a *public policy*—not necessarily a statute—prohibiting bargaining (e.g. *Matter of Susquehanna Val. Cent. School Dist. at Conklin* [*Susquehanna Val. Teachers' Assn.*], 37 NY2d 614, 616 [1975]; *Matter of Cohoes City School Dist. v Cohoes Teachers Assn.*, 40 NY2d 774, 778 [1976]; *Matter of Buffalo Police Benevolent Assn.* [*City of*

Buffalo], 4 NY3d 660, 664 [2005]; *Matter of City of New York v Uniformed Fire Officers Assn., Local 854, IAFF, AFL-CIO*, 95 NY2d 273, 281 [2000] [collecting cases where “arbitration is prohibited on public policy grounds alone”). We have repeatedly stated that a public policy prohibiting bargaining can be “explicit or implicit in statute or decisional law, or in neither” (*PBA*, 6 NY3d at 573, quoting *Matter of Cohoes City School Dist. v Cohoes Teachers Assn.*, 40 NY2d 774, 778 [1976]). Just last year, we reiterated the principle that “some subjects are excluded from collective bargaining as a matter of policy, even where no statute explicitly says so” (*Matter of City of Long Beach v New York State Pub. Empl. Relations Bd.*, 39 NY3d 17, 22 [2022]).

Our public policy test is derived from a concern with legislative intent, understood not in terms of how “these enactments were intended by their authors” but in terms of our desire to give voice to a coherent legislative policy (*PBA*, 6 NY3d at 576; see *Matter of City of Schenectady v New York State Pub. Empl. Relations Bd.*, 85 NY2d 480, 486 [1995]; *Matter of City of Wassertown v State of N.Y. Pub. Empl. Relations Bd.*, 95 NY2d 73, 78-79 [2000]). Without a doubt, the policy of collective bargaining announced by the Taylor Law is “strong and sweeping” (*Cohoes*, 40 NY2d at 778). Nevertheless, we have recognized that there are areas where the legislature explicitly or implicitly does not intend it to apply (see *Matter of City of Schenectady*, 85 NY2d at 486). Some of those areas are marked off by conflicting statutes, but others have not been addressed by the legislature so clearly (e.g. *Matter of Buffalo Police Benevolent Assn.*, 4 NY3d at 664; *Board of Educ., Great Neck Union Free School Dist. v Areman*, 41 NY2d 527, 530 [1977]). Our standard therefore recognizes that the public policy of the state need not be drawn from a statute at all—much less from a local decision to exempt itself from an otherwise widespread state public policy.

Police discipline is no exception to our standard. Indeed, our pivotal case analyzing collective bargaining over police discipline, *Matter of Patrolmen’s Benevolent Assn. of City of N.Y., Inc. v New York State Pub. Empl. Relations Bd.* (6 NY3d 563, 573 [2006] [*PBA*]), contains some of our strongest statements that a policy prohibiting bargaining need not be derived from a particular statute. In *PBA*, we considered whether state statutes that vested the New York City police commissioner and Rockland Town Board with broad discretion over police

discipline created a prohibition on bargaining under the Taylor Law (*PBA*, 6 NY3d at 570-571). Our opinion first cited several cases for the proposition that “some subjects are excluded from collective bargaining as a matter of policy, even where no statute explicitly says so” (*id.* at 572-573). We then reiterated the legal standard that bargaining is prohibited by “[p]ublic policy . . . whether explicit or implicit in statute or decisional law, or in neither” (*id.* at 573, quoting *Matter of Cohoes City School Dist. v Cohoes Teachers Assn.*, 40 NY2d 774, 778 [1976]). Finally, we held that although the statutes in question did not explicitly prohibit bargaining over discipline, they expressed a policy of strong local authority over police discipline “so important that the policy favoring collective bargaining should give way” (*PBA*, 6 NY3d at 575-576). Our overriding concern in *PBA* was to determine New York State’s public policy regarding the application of the Taylor Law to police discipline, just as we do when analyzing prohibited subjects of bargaining in any other context.

Our subsequent cases have applied the holding of *PBA* without disturbing that underlying analysis (see *Matter of Town of Wallkill v Civil Serv. Empls. Assn., Inc. [Local 1000, AFSCME, AFL-CIO, Town of Wallkill Police Dept. Unit, Orange County Local 836]*, 19 NY3d 1066 [2012]; *Matter of City of Schenectady v New York State Pub. Empl. Relations Bd.*, 30 NY3d 109 [2017]). Those decisions observed that the state policy favoring local control over police discipline was widespread, applying to every town (*Wallkill*, 19 NY3d 1066) and every city of the second class (*Schenectady*, 30 NY3d 109) in addition to municipalities with charters and specific acts similar to those discussed in *PBA*.³ It is a fair summary of these cases to say that state policy is for most municipalities to maintain discretionary control over police discipline rather than submitting such discipline to collective bargaining.

3. Historically, the earliest cities each obtained a charter from the State—Rochester’s first charter was granted in 1834 (New York State Division of Local Government Services, *Revising City Charters in New York State* 1-2 [2023], available at https://dos.ny.gov/system/files/documents/2023/01/revising-city-charters_0.pdf). As cities multiplied, it became unwieldy for the legislature to pass laws for each city individually (*id.* at 2). At the Constitutional Convention of 1894, cities were divided into different classes by population to enable the legislature to pass laws that would cover multiple cities simultaneously (*id.*). This was the genesis of the second class city, town, and village laws, which consistently reflect the same state policy of local control visible in individual city charters (see *Schenectady*, 30 NY3d at 113).

Contrary to the majority's assumption, our police discipline cases create no requirement that a policy prohibiting bargaining must be embodied in a statute "in force," which would be a departure from the legal standard we apply to every other subject (majority op at 164, quoting *PBA*, 6 NY3d at 572). *PBA* explicitly acknowledges that a policy prohibiting bargaining may exist "even where no statute explicitly says so" (*PBA*, 6 NY3d at 572). The opinion approvingly cites *Matter of Buffalo Police Benevolent Assn. (City of Buffalo)*, decided only the year before, in which we held that a commissioner of police could not collectively bargain away discretion over hiring because police hiring affects the "safety of the community"—a policy not embodied in any statute "in force" (*PBA*, 6 NY3d at 576, citing 4 NY3d at 664 [2005]). A state statute "in force" is a strong signal of state public policy, will generally be the way such policy is demonstrated, and is the way it was demonstrated in *PBA*. However, we cannot read "in force" to be a prerequisite to finding a state public policy when *PBA* explicitly articulates a contrary standard. In unusual cases, as we will see here, state policy may be clear even when a local statute is no longer in force.

The majority also indicates that the existence of a prohibition on bargaining hinges on whether Civil Service Law §§ 75 and 76 apply (majority op at 164-165, citing *PBA*, 6 NY3d at 573). As with the "in force" requirement, this confuses a relevant ancillary issue with the governing legal standard. Decades before *PBA*, we affirmed an Appellate Division decision, *Matter of Auburn*, observing that sections 75 and 76 of the Civil Service Law, which provide statewide disciplinary procedures for Civil Service employees, do not express a policy prohibiting bargaining over police discipline (see *Matter of Auburn Police Local 195, Council 82, Am. Fedn. of State, County & Mun. Emps., AFL-CIO v Helsby*, 62 AD2d 12, 17 [3d Dept 1978], *affd* 46 NY2d 1034 [1979]).⁴ *PBA* and subsequent cases distinguished *Auburn* by noting that due to the grandfathering clause in sec-

4. *Auburn's* holding is much more limited than the majority implies and is irrelevant here. *Auburn* is a one-line summary affirmance of an Appellate Division decision which reversed a Public Employment Relations Board (PERB) determination that the city was prohibited from bargaining around the provisions of Civil Service Law §§ 75 and 76 (46 NY2d 1034). PERB's position that bargaining was prohibited was based solely on Civil Service Law amendments stating that the Civil Service Law procedures could be modified, supplemented or replaced by agreements "between the state and an employee organization," which PERB interpreted as showing legislative intent

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tion 76 (4), the procedures in sections 75 and 76 do not apply where a preexisting statute, such as the Town Law, controls police discipline. But after distinguishing *Auburn* in that way, our cases have always moved on to the ultimate ground of the analysis—whether there is a state policy prohibiting collective bargaining in the relevant location.

Because the majority never takes a step back to view the overall landscape of our Taylor Law jurisprudence, it confuses particular steps in our analysis of collective bargaining over police discipline with the governing legal standard. Without explanation, it departs from our general test for prohibited subjects of bargaining in favor of a new test that a subject we have previously deemed “prohibited” (*PBA*, 6 NY3d at 572) can remain prohibited only if (1) a statute that conflicts with the Taylor Law is in force and (2) sections 75 and 76 of the Civil Service Law are not applicable to that municipality. The majority’s analytical method is merely an artifact of misreading our precedent—there is no reason police discipline should be analyzed differently from every other subject of bargaining. Although the difference will be unimportant when a municipality—even if it has engaged in years of collective bargaining⁵—has not taken the step of repealing a provision from its charter, as applied here it creates a result that bargaining is mandated where contrary to public policy, simply because that policy is not expressed in the manner familiar from our past cases.

III.

Our previous cases have dealt with two state policies: the policy of local authority over police discipline and the policy of mandatory collective bargaining. We have held that the former

to prohibit modification of such provisions by a city (*Auburn*, 62 AD2d at 16 [emphasis omitted], quoting Civil Service Law § 76 [4]). The Appellate Division holding was narrow, concluding only that PERB had failed to establish a reasonable basis for its determination, and no issue of public policy based on any charter or other source was raised (*id.* at 17). *Auburn*’s holding—that the amendment authorizing the state to enter into collective bargaining agreements did not bar localities from doing the same—does not bear on whether bargaining is nevertheless prohibited due to public policy derived from another statutory provision, decisional law, or other source.

5. Of course, the mere fact that a municipality has collectively bargained a subject in the past does not determine whether such bargaining is appropriate under the Taylor Law (*see Wallkill*, 19 NY3d at 1068 [holding that although Wallkill has been bargaining over discipline for 12 years, it is a prohibited subject]).

is strong enough to overcome the latter. It is undisputed under our precedent that prior to 1985, Rochester could refuse to bargain collectively over police discipline. The question is whether Rochester's 1985 legislation, which repealed local charter provisions covering disciplinary process, also reversed the state policy calculus. The majority holds that it did, because state policy must be embodied in a statute in force, and once Rochester repealed its charter provision, the only statute in force was the Taylor Law.

However, the basis of the bargaining prohibition was not the formal text of Rochester's charter but the state policy it represented. That state policy of local control over police discipline is embodied not only in the Rochester charter, but also in the Second Class Cities Law, Town Law, Village Law, other city charters, and virtually every legislative grant to municipalities statewide. Rochester's charter identifies it as one of the many cities covered by that policy, and the state never took any action that would cause any doubt as to the dominant weight the state gives to that policy. A city may repeal its charter provisions, but state policy cannot change without state action. Because state policy still favors local authority over collective bargaining in Rochester, there is no requirement of mandatory collective bargaining under the Taylor Law that would conflict with Local Law No. 2-2019. Indeed, local control over police discipline is not inherently inconsistent with collective bargaining over police discipline, so long as the decision to bargain collectively is made by the appropriate local authority and is revocable when the local authority no longer chooses to use that method to impose discipline.

This case also presents a third policy not considered by our precedent: the policy of municipal home rule. That policy does not alter but rather reinforces our conclusion that Local Law No. 2-2019 is valid. Combining the policies of home rule and local authority suggests the State's overall policy is to grant local governments a free hand in matters of police discipline. Adding the policy of the Municipal Home Rule Law to the calculus of our precedent therefore supports Rochester's ability to choose to impose police discipline in the format it chooses, even via collective bargaining, and to retain freedom to switch between formats so long as discipline remains under the control of local officials. No statute or state policy in play here can justify a result in which Rochester is irrevocably trapped in collective bargaining while numerous other municipalities may lawfully eschew it.

Our past decisions have already established that where the State has “specifically commit[ted] police discipline to the discretion of local officials,” there is a “policy favoring the authority of public officials over the police” that overcomes the state policy of collective bargaining (*PBA*, 6 NY3d at 571, 575-576). Here, the 1907 Rochester charter “commits police discipline to the discretion of local officials” (*id.*). The charter is a state law that gives the public safety commissioner the duty to create “rules and regulations . . . for the government, direction, management, and discipline of the police” and conduct disciplinary proceedings accordingly (1907 Charter of City of Rochester §§ 324, 330). Thus, Rochester is one of the many cities, towns and villages the State identified as included in the broader state policy of strong local authority over police discipline, which according to our precedent reaches most of the municipalities in New York. Because of that provision, the parties do not dispute that before the 1985 local legislation, Rochester was covered by a state policy of official authority strong enough to displace the Taylor Law’s presumption of collective bargaining.

The key question is whether Rochester’s 1985 local legislation changed New York State’s policy calculus. It did not because it could not. The 1985 Rochester legislation repealed the former charter provisions on police discipline and revised provisions on the powers of the police commissioner. Rochester had the power to do so under the Municipal Home Rule Law, which allows it to supersede special laws (Municipal Home Rule Law § 10 [1] [i]). However, the supersession provisions of the Municipal Home Rule Law do not make the local law a state law, nor do they make the local policy state policy. State policy is derived from state statute and decisional law, and presumably also from executive orders, regulations, or other statements of official policy. But local governments cannot create or alter state policy—even if the state has authorized them to deviate from state law—and state policy therefore cannot be derived from local law. The majority cites no state action between 1967 and 2019 suggesting any weakening of the state’s preference for local authority over collective bargaining, which admittedly existed at that time in Rochester and similar cities.

In fact, recent evidence suggests the policy of local authority over police discipline is stronger than ever. In response to the widespread protests following the death of George Floyd in 2020, Executive Order 203 instructed local governments to

develop comprehensive police reform plans (*see* Executive Order [A. Cuomo] No. 203 [9 NYCRR 8.203] [June 12, 2020]). In response, “more than half the plans discussed civilian oversight and civilian review boards,” and the state office created by the Executive Order held up several such planned boards as “innovative community initiatives” intended to inspire others (New York State Police Reform and Reinvention Collaborative, *Initial Report on Innovative Community Initiatives* at 12-13 [May 2021], available at <https://policereform.ny.gov> [click on “Innovative Community Initiatives Report” button]). Similarly, the Attorney General has taken a strong position that a city attempting to comply with the Executive Order should “establish a civilian oversight entity . . . with subpoena power, structural independence, the power to conduct administrative prosecutions” and ideally, “final disciplinary authority over officers” (Letter from New York State Office of the Attorney General to the Honorable Byron W. Brown, Mayor of Buffalo, *Re: Buffalo Draft Resolution Pursuant to Executive Order 203*, Mar. 25, 2021, at 2-3). Those recent state actions express approval of strong local oversight of police discipline that is consistent with the policy expressed in the Town Law, Village Law, Second Class Cities Law, and charters of cities like Rochester, but inconsistent with mandatory collective bargaining.

The majority’s main objection to this line of reasoning is that state policy should be derived from a statute “in force,” and the 1907 Rochester Charter provision regarding police discipline is no longer in force (*PBA*, 6 NY3d at 572). Of course, the Town Law, Village Law, Second Class Cities Law, related charters, Executive Order 203, and all other sources of the state policy of local authority remain “in force.” However, assuming that the argument is that the policy should no longer apply to Rochester because Rochester’s specific statute is no longer in force, imposing such a requirement is entirely inapt where a municipality supersedes state law.

If the State repeals a statute, we presume that statute no longer reflects state policy—rather, state policy is reflected by the decision to repeal. Therefore, deriving state policy from the repealed statute would be unreasonable. However, that logic does not apply where state legislation is repealed by a city under the Home Rule Law. In such a case, state policy is reflected by the original legislation, and only local policy is reflected by the local law “in force.” If the original legislation expressed a policy of local authority that included Rochester,

the fact that the statute was superseded by local action does not reflect a change in the state's policy. The local legislature may have the power to amend state statutes relevant to its location, but it does not have the power to change a state policy determination. Because state policy still demands that the collective bargaining mandate of the Taylor Law bend to Rochester's exercise of local authority over police discipline, Local Law No. 2-2019 is valid.

Considering the policy of the Municipal Home Rule Law only strengthens this conclusion. Focused on resolving the "tension" between the policy of collective bargaining and the policy of strong disciplinary authority (*PBA*, 6 NY3d at 571), we have not previously confronted how the policy of municipal self-government impacts this balance. Put simply, the policy of the Municipal Home Rule Law is that the State will defer to cities on many affairs related to their property, affairs, and government. As applied to the Taylor Law, it may be state policy to defer to municipal decisions on the application of the Taylor Law to local government and affairs. Where our prior precedent stated that the policy of strong disciplinary authority outweighs the policy of collective bargaining on the scales of state policy, the policy of home rule suggests that a city should be able to put a thumb on either side of the scale.

Analogously, we held in *Matter of Buffalo Police Benevolent Assn.* that public policy prevented the police commissioner from waiving his statutory discretion over the selection of police officer candidates through collective bargaining, but at the same time implied that he could waive such discretion if there were "compelling evidence that the Commissioner made a conscious choice to do so" (4 NY3d at 664). Thus, we suggested that in some cases where a subject of bargaining would normally be prohibited by public policy, the state should defer to a clear local choice to the contrary. As applied here, if Rochester made a clear decision to bargain or not to bargain over police discipline, state policy would be to defer to that decision.

As discussed further below, Rochester did not express any clear intent here to submit to mandatory collective bargaining. But more crucially, even if Rochester did decide to impose police discipline through a collectively bargained procedure, by the same logic it would be able to change that decision later on. Nothing about the policy of the Municipal Home Rule Law changes the holding of our precedent that at baseline, the state's policy favoring local authority over police discipline can

overcome the policy of the Taylor Law. Instead the state's policy favoring home rule bolsters the ability of municipalities to choose to impose police discipline through a variety of methods, with local governments determining what methods best suit the needs of the day.

Rochester's 1985 enactment did not change state policy with respect to the application of the Taylor Law. Although Rochester effectively repealed the state law, that repeal did not alter the state's policy preference for local control over police discipline even as to Rochester; that policy is demonstrated by the state enactments, not the local statute "in force" at some particular point in time. Adding respect for home rule to the policy calculus set out in our precedent only reinforces the conclusion that discipline should remain a prohibited subject of bargaining under the Taylor Law where the local government supports the state policy of local authority over police discipline and the only contrary policy comes from a discarded local law.

IV.

Bargaining remains prohibited in Rochester for an additional reason. Although, as explained above, Rochester should be able to opt out of collective bargaining under the Taylor Law even if it at one point opted in, here, Rochester never opted in with sufficient clarity to overcome the state policy that favors local control of police discipline over the mandatory bargaining of the same.

Our case law interpreting the Home Rule Law emphasizes the need for clarity and specificity when a local government seeks to supplant a state law (*see Turnpike Woods v Town of Stony Point*, 70 NY2d 735 [1987]; *Kamhi v Town of Yorktown*, 74 NY2d 423, 434-435 [1989]). Consequently, we should not conclude lightly or "by implication" that a municipality has chosen to abdicate its authority over police discipline in favor of collective bargaining (*Turnpike Woods*, 70 NY2d at 738). This is especially true if we believe that this action is irreversible and will forever bind the hands of future local legislatures or the overwhelming decision of the local voters, as the majority's holding requires.

Local Law No. 2-1985 lacks a sufficiently clear statement showing Rochester's intent to abandon local control over police discipline. Collective bargaining is not explicitly mentioned in the 1985 law, nor does the legislative history show any intent to address collective bargaining. Instead, the repeal of the

disciplinary procedures in the charter appears to have been a “housekeeping” measure taken in the context of a larger restructuring of Rochester’s public safety organization. Rochester had already been collectively bargaining over discipline for at least nine years, and the bargaining agreement incorporated Civil Service Law §§ 75 and 76. The text of the 1985 enactment merely repeals the charter section titled “Charges and trials of policemen,” which was already unused under the collective bargaining agreement. Therefore, the 1985 repeal did not change the status quo in Rochester regarding police discipline. The reason given for repeal—“that this subject matter is covered in the Civil Service Law”—could readily be understood as a reference to the procedural aspects of Civil Service Law §§ 75 and 76, which already governed police discipline in the City, rather than an attempt to address the status of collective bargaining.

Moreover, Local Law No. 1-1985 retained broad grants of authority in the commissioner of public safety and chief of police. The commissioner has “the power of an appointing officer,” may “issue subpoenas, administer oaths, and take affidavits” and make “rules and regulations” for how employees should be assigned, stationed, and transferred (Charter of City of Rochester former § 8-2, as added by Local Law No. 1-1985 § 5). The chief of police “shall have control of . . . administration” of the police department, must ensure that rules and regulations are “enforced and carried out,” and generally must perform “other duties as may be prescribed by law or ordinance or assigned by the Commissioner of Public Safety” (Charter of City of Rochester former § 8A-1, as added by Local Law No. 1-1985 § 6). The chief also has the same subpoena and oath powers as the commissioner (*id.*).

When Rochester repealed the disciplinary procedures in its previous charter, new disciplinary procedures presumably replaced them. However, other than vesting numerous powers in the commissioner and chief of police, the 1985 laws contain no specifics as to whether disciplinary procedures would come from the Civil Service Law (without collective bargaining), the Taylor Law, or the general authority of the commissioner and chief of police. Given that silence, the preexistence of collective bargaining even when police discipline was a prohibited subject, and the general importance of the State’s public policy to place discipline within the control of local authorities, we should not assume that Rochester intended to cede its control

over police discipline. In the absence of a clear statement to the contrary, we should assume that bargaining over discipline remained prohibited in Rochester.

V.

Because the majority concludes that the Taylor Law governs police discipline in Rochester, its discussion in section IV, addressing the Locust Club's alternative arguments, is dicta. However, because I have concluded that the Taylor Law does not control collective bargaining over police discipline in Rochester, I must address the Locust Club's alternative arguments, which I conclude are without force.

The only alternative ground credited by the Appellate Division was that Local Law No. 2-2019 conflicts with the 1907 Charter (*Matter of Rochester Police Locust Club, Inc. v City of Rochester*, 196 AD3d 74, 83-84 [4th Dept 2021]). The argument is that if the 1907 Charter expresses a state policy of strong disciplinary authority in local officials that prohibits collective bargaining, such a policy should also prohibit taking authority from the chief of police and placing it in an appointed commission.

First, state policy would not have the same effect on a local law as it would on the application of the Taylor Law. The policy of the 1907 Charter is relevant to our Taylor Law analysis because the application of the Taylor Law depends on state policy. However, there is no general rule that a municipality may not take actions contrary to state policy. Under the Home Rule Law, Rochester can repeal its 1907 Charter and replace it with a new regime so long as the new regime is not inconsistent with any general law.

A better phrasing of the argument might therefore be that if Rochester repealed its 1907 Charter and replaced it with Local Law No. 2-2019, the prohibition on bargaining would end and Local Law No. 2-2019 would conflict with the general bargaining mandate of the Taylor Law. The key premise of that argument is that a policy of "strong disciplinary authority" in local officials generally is not sufficient to prohibit collective bargaining—rather, disciplinary authority must be vested specifically in elected, or possibly executive officials (196 AD3d at 83). Because Local Law No. 2-2019 vests disciplinary authority in unelected municipal officials outside of the Police Department, mandatory bargaining under the Taylor Law should apply. The concern seems to be at least partly with preserving a clear

chain of command—our precedent rooted the policy of strong disciplinary authority in the “quasi-military” nature of the police force, and Local Law No. 2-2019 could be understood to dilute the chain of command by placing authority in a board appointed largely by the City Council (*PBA*, 6 NY3d at 576).

However, I do not read our precedent to rest on the maintenance of a militaristic chain of command. Our precedent covers both police commissioners and Town Boards, and makes no mention of whether officials are elected or unelected. Although *PBA* quoted an 1888 case stating that police discipline should rest “wholly in the discretion of the commissioners,” even *PBA* itself quickly qualified this proposition by holding that bargaining was also prohibited when control over police discipline is placed with the Town Board (*PBA*, 6 NY3d at 576, quoting *People ex rel. Masterson v French*, 110 NY 494, 499 [1888]; see also *Wallkill*, 19 NY3d at 1068). Moreover, we accepted in *Schenectady* that authority can be moved between a police chief, commissioner of public safety, and other local officials without violating an Second Class Cities Law provision similar to the Rochester Charter (see *Schenectady*, 30 NY3d at 115 n 1). Our cases have not generally stated that bargaining is prohibited because of the need to preserve a direct chain of command, but due to a more general policy of preserving “official authority over the police” (*PBA*, 6 NY3d 576), “local control over police discipline” (*Schenectady*, 30 NY3d at 117), or “strong disciplinary authority for those in charge of police forces” (*Wallkill*, 19 NY3d at 1069, quoting *PBA*, 6 NY3d at 571).⁶

Moreover, it makes sense as a matter of policy that whether bargaining is prohibited under the Taylor Law should not depend on whether discipline is vested in a particular type of official. The principle behind the prohibition on bargaining is that collective bargaining dilutes the ability each local government to determine what form of disciplinary authority is needed to preserve the “safety of the community” (*PBA*, 6 NY3d at 576, quoting *Buffalo Police Benevolent Assn.*, 4 NY3d at 664). If a police officer is participating in conduct that endangers the safety of the community, it is important that the officer be removed or appropriately disciplined rather than al-

6. Notably, this last mention of “those in charge of police forces” referred to the Town Board, even though towns may also appoint police commissioners and a police chief (see Town Law § 150). It was no obstacle to our holding in *Wallkill* that the day-to-day commander of police differed from the responsible disciplinary body.

lowed to repeat the conduct (*see generally* Stephen Rushin, *Police Arbitration*, 74 Vanderbilt L Rev 1023, 1065-1069 [2021] [finding that arbitrators’ “tendency towards compromise” has resulted in unfit officers—for example, officers who challenged persons in custody to fistfights or offered homeless individuals sandwiches filled with dog feces—being reinstated to duty]). There is no reason to believe that a process internal to the police department would be able to provide a robust disciplinary response where an external municipal commission would not. In fact, Rochester’s action in establishing the PAB evidences strong local disapproval of the preexisting, collectively bargained police disciplinary processes—hardly unique in the wake of recent attention paid nationwide to thousands of police killings of unarmed persons.

Here, the members of the Rochester PAB are local officials appointed by the City Council. Rochester has chosen to vest power in those local officials, rather than the police chief, mayor, or city council itself, because it believes that doing so is the best way to strengthen “local control over police discipline” (*Schenectady*, 30 NY3d at 117). That action is consistent with state policy, and there is no reason our Taylor Law analysis should apply differently to Rochester’s regime than to those in *PBA*, *Wallkill*, or *Schenectady*.

The Locust Club also argues that Local Law No. 2-2019 conflicts with Civil Service Law §§ 75 and 76 and Uncons Laws § 891, which mandate that disciplinary proceedings be heard by the “officer or body having the power to remove the person charged” (Uncons Laws § 891). Even assuming that Local Law No. 2-2019 must be consistent with those laws, I agree with the Appellate Division that it is, for the same reasons cited in the decision below. Although the police chief is required to sign off on discipline, in substance the PAB has the power to remove the person charged. Although a snippet of the majority opinion might be read to suggest that Rochester Local Law No. 2-2019 is barred by sections 75 and 76 (majority op at 165-166), no reasoning or elaboration is provided. I therefore understand the force of the majority’s decision to be that Rochester Local Law No. 2-2019 conflicts with the Taylor Law, not with Civil Service Law §§ 75 and 76.

VI.

The majority holds that because Rochester passed a law that arguably relinquished local control over police discipline in

1985, Rochester must now continue with collective bargaining even if it is inconsistent with state public policy, local public policy, and the will of the vast majority of Rochester's citizens who daily are protected by and subjected to the conduct of its police force. The result resembles an odd game of rock-paper-scissors. A state law favoring strong disciplinary authority beats the Taylor Law, municipal law beats a policy of strong disciplinary authority, but the Taylor Law beats municipal law. Unless the state legislature now affirmatively steps in, the majority has implemented a one-way ratchet where a city can move from the more favored state policy to the less favored one, but never back.

Fortunately, the legislature has the power to break the cycle. As we have recently seen, the legislature monitors our holdings on state bargaining policy and is equipped to modify or clarify them as needed (*see* L 2022, ch 674 [announcing the policy of the state that firefighters not be exempt from collective bargaining over discipline under the Taylor Law]). Here, Rochester's attempt to strengthen police oversight emerged from protests over police misconduct that have also resonated in the halls of our state government (*see* Executive Order 203 [June 12, 2020] [instructing local government entities to review current practices to foster police trust and legitimacy]; L 2020, ch 96 [repealing laws restricting access to police disciplinary records]). If Rochester's desire to establish an independent disciplinary commission is in fact consistent with state policy, the legislature may easily correct our error. Otherwise, someone will have to explain to the people of Rochester why they cannot vote to rein in police misconduct while both New York City and the Town of Wallkill may.

Order insofar as appealed from affirmed, with costs.

Judges GARCIA, SINGAS and CANNATARO concur. Chief Judge WILSON dissents in an opinion, in which Judges RIVERA and HALLIGAN concur. Judge TROUTMAN took no part.

[231 NE3d 1021, 208 NYS3d 114]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DEVON
T. BUTLER, Appellant.

Argued November 16, 2023; decided December 19, 2023

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from an order of that Court, entered May 20, 2021. The Appellate Division affirmed a judgment of the Broome County Court (Joseph F. Cawley, Jr., J.), which had convicted defendant, upon his plea of guilty, of criminal possession of a controlled substance in the third degree and tampering with physical evidence.

People v Butler, 196 AD3d 28, reversed.

HEADNOTES**Crimes — Unlawful Search and Seizure — Canine Sniff of Defendant's Person Following Traffic Stop**

1. In defendant's prosecution for possessing a controlled substance, the use of a canine to sniff defendant's body for the presence of narcotics following a traffic stop qualified as a search implicating the protections of the Fourth Amendment, notwithstanding that the dog never made contact with defendant and sniffed only the air closely surrounding his person. The presence or absence of direct physical contact with the body is not determinative of whether or not government conduct implicates "[t]he right of the people to be secure in their persons" and qualifies as a search (US Const 4th Amend); the question turns instead on whether the conduct compromises personal dignity and violates reasonable social expectations concerning the security of one's body and the privacy of matters related thereto. Compared to a sniff of an inanimate object like a closed suitcase or automobile, the sniffing of the human body involves a greater intrusion on personal privacy, security, and dignity. In permitting the dog to approach and sniff defendant for evidence of criminal activity, the officers also exceeded the scope of any invitation or license implicitly granted by defendant with respect to his so-called personal space. Introducing a trained police dog to explore otherwise undetectable odors in the hopes of discovering incriminating evidence goes far beyond any implied social license or reasonable expectation. Recognizing this form of investigative technique as a search is consistent with a central aim of the Framers, which was to place obstacles in the way of a too permeating police surveillance.

Courts — Appellate Division — Scope of Review — Issues Not Decided Adversely to Defendant

2. In a criminal prosecution in which a canine was used to sniff defendant's body for the presence of narcotics following a traffic stop, the Appellate Division lacked jurisdiction under CPL 470.15 to decide that a canine sniff search of a person requires reasonable suspicion and was justified in this

case, where County Court did not decide those issues adversely to defendant. CPL 470.15 (1) functions as a legislative restriction on the Appellate Division's power to review issues either decided in an appellant's favor, or not ruled upon, by the trial court. Thus, the statute barred the Appellate Division from affirming defendant's judgment based on a ground not decided adversely to him by the suppression court. County Court held that the canine sniff of defendant's person did not qualify as a search. The court did not decide the standard that would govern if the canine sniff did so qualify, much less whether that standard was met. Those questions presented separate and analytically distinct issues from the threshold question of whether the sniff implicated constitutional protections or prohibitions. Additionally, it was unclear whether County Court's conclusion that defendant "abandoned" the narcotics during his flight from police was premised on its holding that the canine sniff of defendant was not a search and was acceptable. Because abandonment analysis turns largely on whether the law enforcement conduct preceding the purported abandonment was lawful or unlawful, consideration of that issue was referred back to County Court.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review § 534; AM JUR 2d Searches and Seizures § 111.
CARMODY-WAIT 2d Search and Seizure §§ 173:355, 173:361; CARMODY-WAIT 2d Appeals in Criminal Cases § 207:121.
LAFAYE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 3.2, 3.8, 27.5.
MCKINNEY'S, CPL 470.15.
NY JUR 2d Criminal Law: Procedure §§ 242, 285, 3687.

ANNOTATION REFERENCE

Use of Trained Dog to Detect Narcotics or Drugs as Unreasonable Search in Violation of State Constitutions. 117 ALR5th 407.

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POINTS OF COUNSEL

Clea Weiss, Rochester, for appellant. I. The canine sniff search of Devon T. Butler's body was unconstitutional. (*United States v Jones*, 565 US 400; *Katz v United States*, 389 US 347; *Kyllo v United States*, 533 US 27; *Illinois v Caballes*, 543 US 405; *United States v Place*, 462 US 696; *Horton v Goose Cr.*

Ind. School Dist., 690 F2d 470; *Florida v Jardines*, 569 US 1; *Terry v Ohio*, 392 US 1; *People v Dunn*, 77 NY2d 19; *People v Devone*, 15 NY3d 106.) II. The Appellate Division lacked jurisdiction to affirm the suppression decision on a basis not ruled upon by County Court. (*People v LaFontaine*, 92 NY2d 470; *People v Harris*, 35 NY3d 1010; *People v Ingram*, 18 NY3d 948; *People v Concepcion*, 17 NY3d 192; *People v Nicholson*, 26 NY3d 813; *People v Romero*, 91 NY2d 750; *People v Karp*, 76 NY2d 1006; *People v Cade*, 74 NY2d 410; *People v Colon*, 65 NY2d 888; *People v Goodfriend*, 64 NY2d 695.)

Michael A. Korchak, District Attorney, Binghamton (*Benjamin E. Holwitt* and *Geoffrey B. Rossi* of counsel), for respondent. (*People v Price*, 54 NY2d 557; *People v Holmes*, 81 NY2d 1056; *People v Harris*, 35 NY3d 1010.) II. The appropriate standard for a canine sniff of the outside of a person's body is reasonable suspicion and was not a violation of defendant's constitutional rights. (*Horton v Goose Cr. Ind. School Dist.*, 690 F2d 470; *Terry v Ohio*, 392 US 1; *People v Dunn*, 77 NY2d 19; *People v Hall*, 10 NY3d 303; *People v Woods*, 98 NY2d 627.) III. The defendant's argument about the disproportionate use of canines towards Black communities does not contain a question of law for this Court's review.

The Law Office of Stephen N. Preziosi P.C., New York City (*Stephen N. Preziosi* of counsel), for New York State Association of Criminal Defense Lawyers, amicus curiae. I. A canine sniff of a person's intimate body parts constitutes a search under both the Fourth Amendment and article I, § 12 of the New York State Constitution. (*Florida v Jardines*, 569 US 1; *California v Ciraolo*, 476 US 207; *People v More*, 97 NY2d 209; *People v Hall*, 10 NY3d 303; *People v Mothersell*, 14 NY3d 358; *People v De Bour*, 40 NY2d 210; *Katz v United States*, 389 US 347; *People v Dunn*, 77 NY2d 19; *Terry v Ohio*, 392 US 1; *Arizona v Hicks*, 480 US 321.) II. New York courts have consistently applied a progressive or graduated approach to determine the level of police justification required in search and seizure cases: a canine sniff of the groin and buttock area has a heightened expectation of privacy and requires a heightened justification for police intrusion. (*People v Hollman*, 79 NY2d 181; *People v De Bour*, 40 NY2d 210; *People v Price*, 54 NY2d 557; *People v Devone*, 15 NY3d 106; *People v Galak*, 81 NY2d 463; *People v Garvin*, 30 NY3d 174; *United States v Thomas*, 757 F2d 1359; *Horton v Goose Cr. Ind. School Dist.*, 690 F2d 470; *Terry v Ohio*, 392 US 1; *Minnesota v Dickerson*, 508 US

366.) III. The Pennsylvania Supreme Court requires probable cause for canine sniffs of a person.

OPINION OF THE COURT

CANNATARO, J.

Over the past 40 years, the United States Supreme Court has taken an incremental approach to determining whether the police technique of using a canine's heightened sense of smell to detect the presence of illegal drugs offends the prohibition on unreasonable searches set forth in the Fourth Amendment to the United States Constitution. Today we take the logical next step in that progression: we hold that the use of a narcotics-detection dog to sniff defendant's body for evidence of a crime qualified as a search and thus implicated the protections of the Fourth Amendment.

The suppression court terminated its review of the canine sniff of defendant's person upon concluding that it did not qualify as a search. Although the Appellate Division correctly resolved that question on appeal, it erred in holding that a canine body sniff requires reasonable suspicion and was justified here, issues that were not decided adversely to defendant by the suppression court. We accordingly reverse and remit this case to County Court for consideration of the remaining questions in the first instance.

I.

In 2017, two police officers observed what they believed to be a hand-to-hand drug transaction in a parking lot known for such activity. The officers followed defendant's vehicle from the scene. After observing defendant engage in evasive driving maneuvers and failing to stop at a stop sign, the officers initiated a traffic stop. Upon questioning, defendant admitted that he did not have a valid driver's license, and his explanation of his destination and origin did not align with what the officers had observed. When defendant stepped out of his vehicle, the officers noticed a bulge in his pants that he explained was \$1,000 cash.

After defendant declined the officers' request for consent to search his vehicle, one of the officers retrieved a Belgian Malinois named Apache to sniff-test the vehicle for the presence of narcotics. As the canine was led toward the vehicle it began to pull on its leash toward defendant, who was then standing six to eight feet away, indicating to the officer that the dog was "in

odor” and had caught the scent of narcotics. After being redirected to the vehicle, the canine jumped into the driver’s seat and again indicated that it was in odor. The officer then decided to “see if there’s any odor on [defendant].” He “extended the leash a little bit” so the canine could walk around defendant, at which point the dog indicated for the third time that it was in odor, put its nose in defendant’s “groin/buttock region,” and sat, alerting the officer that it had located narcotics. When the officer stated that “[t]he dog has got something,” defendant ran.

The officers and Apache pursued and ultimately apprehended defendant.¹ Because they had seen defendant reach into his pants as he fled, the officers conducted a search of the surrounding area and recovered a plastic bag containing 76 glassine envelopes of heroin, which defendant admitted belonged to him. Defendant was charged with criminal possession of a controlled substance in the third degree, tampering with physical evidence, and obstructing governmental administration in the second degree.

Defendant moved to suppress evidence of the drugs, arguing that the officers’ use of a canine to search his vehicle and person was unlawful. Following a hearing, County Court denied the motion, reasoning that the officers had a “founded suspicion” of criminal activity to justify the sniff-search of defendant’s vehicle, but that the sniff of defendant’s person was not a search because there is no “reasonable expectation of privacy in the air surrounding a person” and it was “perfectly acceptable for Apache to approach defendant in an effort to ‘sniff’ the air surrounding defendant.” The court also determined that defendant had voluntarily abandoned the narcotics during his flight from police. Following these rulings, defendant pleaded guilty to both the possession and tampering charges and appealed from the resulting judgment.

The Appellate Division affirmed on different grounds in a divided opinion. The majority agreed with County Court that the canine search of defendant’s vehicle was lawful, but stated that the suppression court had “inaccurately characterized” what occurred thereafter as “a canine simply sniffing the air around defendant” rather than as a “contact sniff” of defendant’s person (196 AD3d 28, 31 [3d Dept 2021]). The Court determined that the contact sniff intruded upon defendant’s

1. Apache remained leashed throughout the encounter.

personal privacy and therefore qualified as a search under both federal and state constitutional law. The Court further held that this type of search requires reasonable suspicion of criminal activity because “[a] canine sniff is a minimal intrusion compared to a full-blown search of a person” (*id.*). Insofar as the canine had twice signaled that it had detected the scent of narcotics “[w]ithout prompting” by the officers, the Court concluded that there was a reasonable and articulable basis to suspect that defendant possessed narcotics on his person, and that the resulting contact sniff was not unreasonable under the circumstances (*id.* at 31-32). The Court stated that defendant’s remaining contentions were unavailing because “[h]aving discarded the heroin while properly being pursued by the officers, defendant abandoned any right to challenge the seizure of this evidence” (*id.* at 32).

One Justice concurred with the result, agreeing with the majority that the canine sniff of defendant’s person qualified as a search but opining that the Court lacked jurisdiction under CPL 470.15 (1) and *People v LaFontaine* (92 NY2d 470 [1998]) to decide whether the search was justified or the legal standard governing that question, issues that had not been decided adversely to defendant by County Court (196 AD3d at 32-33 [Aarons, J., concurring]). The concurrence would instead have affirmed based on County Court’s abandonment analysis (*id.* at 33).

Another Justice dissented, agreeing with the majority and concurrence that the canine sniff of defendant’s person was a search but opining that such a search requires probable cause and that no such cause existed here (*id.* at 33 [Pritzker, J., dissenting]). The dissenting Justice granted leave to appeal to this Court (2021 NY Slip Op 69469[U] [2021]).

II.

The Fourth Amendment provides, in relevant part, that “[t]he right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated” (US Const 4th Amend). The purpose of this prohibition is to safeguard the privacy and security rights of individuals against arbitrary invasions by the government (*Carpenter v United States*, 585 US 296, 303 [2018]). Thus, when an individual seeks to preserve something as private, and his expectation of privacy is one that society is prepared to recognize as reasonable, official intrusion into that private sphere generally qualifies as a search (*id.* at 304).

The Supreme Court has yet to decide whether the use of a canine to detect the scent of illegal drugs concealed on a person's body qualifies as a search within the meaning of the Fourth Amendment, and the question appears to be one of first impression in New York. That said, the Supreme Court has considered and resolved a number of challenges to the use of drug-sniffing dogs by law enforcement in other contexts and reached different conclusions depending on the interests and circumstances involved. We accordingly turn first to that precedent for guidance in answering the question.

A.

United States v Place

The Supreme Court's jurisprudence on the use of drug-sniffing dogs by law enforcement begins with *United States v Place* (462 US 696 [1983]). In that case, the Court held that having a canine sniff the outside of an airplane passenger's suitcase for the presence of illegal drugs inside did not constitute a search under the Fourth Amendment. The Court opened its analysis by acknowledging that "a person possesses a privacy interest in the contents of personal luggage that is protected by the Fourth Amendment" (*id.* at 707, citing *United States v Chadwick*, 433 US 1, 13 [1977]). The Court opined, however, that a canine sniff of a suitcase "is much less intrusive than a typical search" insofar as it "does not require opening the luggage" and "discloses only the presence or absence of narcotics, a contraband item" (*id.*). In the Court's view, the limited nature of that disclosure "ensures that the owner of the property is not subjected to the embarrassment and inconvenience entailed in less discriminate and more intrusive investigative methods" (*id.*). For these reasons, the Court described a canine sniff as "*sui generis*" and concluded that "the particular course of investigation that the agents intended to pursue here—exposure of respondent's luggage, which was located in a public place, to a trained canine—did not constitute a 'search' within the meaning of the Fourth Amendment" (*id.*).²

2. Notably, the canine sniff in *Place* occurred after officers had lawfully seized the defendant's suitcase from an airport based on reasonable suspicion of drug-trafficking activity (462 US at 699, 704-705).

Illinois v Caballes

Next in our review of federal canine-sniff jurisprudence is *Illinois v Caballes* (543 US 405 [2005]). In that case, the Court held that the use of a “well-trained narcotics-detection dog” to sniff the exterior of a vehicle during a lawful traffic stop “generally does not implicate legitimate privacy interests” or qualify as a search (*id.* at 409). The Court reasoned that government action constitutes a search only if it compromises a “legitimate” interest in privacy, and that “governmental conduct that *only* reveals the possession of contraband” does not qualify “because the expectation that certain facts will not come to the attention of the authorities is not the same as an interest in privacy that society is prepared to consider reasonable” (*id.* at 408-409 [internal quotation marks omitted]). The Court noted that in *Place*, it had “treated a canine sniff by a well-trained narcotics-detection dog as ‘*sui generis*’ because it ‘discloses only the presence or absence of narcotics, a contraband item’” (*id.* at 409, quoting 462 US at 707). Given that the canine sniff in *Caballes* “was performed on the exterior of [the defendant’s] car while he was lawfully seized for a traffic violation,” the Court concluded that “[a]ny intrusion on [the defendant’s] privacy expectations d[id] not rise to the level of a constitutionally cognizable infringement” (*id.*).

Florida v Jardines

The most recent Supreme Court decision in this arena is *Florida v Jardines* (569 US 1 [2013]). There, the Court held that having a canine sniff a homeowner’s porch to discern whether narcotics are present inside the residence is a search within the meaning of the Fourth Amendment. The Court explained that “the area immediately surrounding and associated with the home—what our cases call the curtilage—[is] part of the home itself for Fourth Amendment purposes” (*id.* at 6 [internal quotation marks omitted]). Further, in conducting the search, the government had exceeded the scope of any invitation or license implicitly granted by the homeowner to the public regarding the use of a porch. In this regard, the Court recognized that there is a well-understood license, “implied from the habits of the country,” that permits visitors “to approach the home by the front path, knock promptly, wait briefly to be received, and then (absent invitation to linger longer) leave” (*id.* at 8 [internal quotation marks omitted]). The Court reasoned that such license permits “a police officer not

armed with a warrant [to] approach a home and knock, precisely because that is ‘no more than any private citizen might do’ ” (*id.*, quoting *Kentucky v King*, 563 US 452, 469 [2011]).

“But introducing a trained police dog to explore the area around the home in hopes of discovering incriminating evidence is something else. There is no customary invitation to do *that*. An invitation to engage in canine forensic investigation assuredly does not inhere in the very act of hanging a knocker. To find a visitor knocking on the door is routine (even if sometimes unwelcome); to spot that same visitor exploring the front path with a metal detector, or marching his bloodhound into the garden before saying hello and asking permission, would inspire most of us to—well, call the police. The scope of a license—express or implied—is limited not only to a particular area but also to a specific purpose” (*id.* at 9).

The Court acknowledged holding in *Place* and *Caballes* that canine sniffs of closed suitcases and lawfully-stopped automobiles generally do not violate legitimate privacy interests, but distinguished those decisions on the ground that the officers in *Jardines* had learned what they learned only by “physically intruding” upon an area “protect[ed] as part of the home itself” (*id.* at 6, 11). The Court explained that since its conclusions were based on “the traditional property-based understanding of the Fourth Amendment,” it “need not decide whether the officers’ investigation of [the defendant’s] home violated his expectation of privacy” (*id.* at 11).

Justice Kagan wrote separately to note that she “could just as happily have decided [the appeal] by looking to [the defendant’s] privacy interests” (*id.* at 13 [Kagan, J., concurring]). As she would have articulated the rule: “privacy expectations are most heightened in the home and the surrounding area,” and “police officers invade those shared expectations when they use trained canine assistants to reveal within the confines of a home what they could not otherwise have found there” (*id.* at 13 [internal quotation marks omitted]).

B.

[1] Applying the Supreme Court’s Fourth Amendment jurisprudence to the instant case, we hold that the use of a canine

to sniff defendant's body for the presence of narcotics qualified as a search. This is true even if we accept County Court's apparent conclusion that when Apache put its nose in defendant's "groin/buttock region," the dog did not make actual contact with defendant and sniffed only the air closely surrounding his person. The lack of direct physical contact is not dispositive in this context because of the "heightened" interest society recognizes in the privacy and security of the human body, which can encompass space immediately surrounding the body and was clearly implicated by what occurred here (*cf. Jardines*, 569 US at 7 [majority op], 13 [Kagan, J., concurring]).

It cannot be disputed that society treats many matters related to the body as private, or that individuals have a significant interest in the security and integrity of their persons (*see e.g. Missouri v McNeely*, 569 US 141, 159 [2013]; *Skinner v Railway Labor Executives' Assn.*, 489 US 602, 616 [1989]; *Terry v Ohio*, 392 US 1, 9 [1968]; *Schmerber v California*, 384 US 757, 772 [1966]). The Fourth Amendment protects those important interests from unreasonable intrusion by the government. Indeed, although this Court has at times described governmental intrusion into the home as "the chief evil" against which the Fourth Amendment is directed (*see People v Levan*, 62 NY2d 139, 144 [1984] [internal quotation marks omitted]), the text of the Constitution notably lists "[t]he right of the people to be secure in their persons" first among the several areas entitled to protection, and the Supreme Court has recognized the heightened nature of that interest (US Const 4th Amend; *see Terry*, 392 US at 9 ["'No right is held more sacred, or is more carefully guarded, . . . than the right of every individual to the possession and control of his own person, free from all restraint or interference of others'" (emphasis added)], quoting *Union Pacific R. Co. v Botsford*, 141 US 250, 251 [1891]; *see also Horton v Goose Cr. Ind. Sch. Dist.*, 690 F2d 470, 478 [5th Cir 1982] ["the (F)ourth (A)mendment applies with its fullest vigor against any intrusion on the human body"]).

Thus, the Supreme Court has long held that the Fourth Amendment is implicated when the government attempts to gather evidence of criminal activity from an individual's person. It has recognized that a search occurs whether the particular method employed by the government entails a "compelled surgical intrusion into an individual's body" (*Winston v Lee*, 470 US 753, 759 [1985]; *see Schmerber*, 384 US at 767); "gentle" or

“light” contact with the body (*see Maryland v King*, 569 US 435, 446 [2013]); “brief” contact with “outer clothing” (*Terry v Ohio*, 392 US 1, 24-25 [1968]); mandated collection *by the individual searched* of matter emitted from their body for testing by the government (*Skinner*, 489 US at 617); or the “visual or aural monitoring” of private bodily functions (*id.*). In addition, multiple federal circuit courts have held that the use of magnetometers to detect concealed metal is a search, notwithstanding that the use of such technology does not involve physical contact and is “far less intrusive than the use of large dogs to sniff [people’s] bodies” (*Horton*, 690 F2d at 478 [collecting authorities]; *see United States v Albarado*, 495 F2d 799, 803 [2d Cir 1974] [“Even the unintrusive magnetometer walk-through is a search in that it searches for and discloses metal items within areas most intimate to the person where there is a normal expectation of privacy”]).

This precedent confirms that the presence or absence of direct physical contact with the body is not determinative of whether or not government conduct implicates “[t]he right of the people to be secure in their persons” and qualifies as a search; the question turns instead on whether the conduct compromises personal dignity and violates reasonable social expectations concerning the security of one’s body and the privacy of matters related thereto (*see* US Const 4th Amend; *Skinner*, 489 US at 613-614 [the Fourth Amendment “guarantees the privacy, dignity, and security of persons”]; *King*, 569 US at 446 [“The fact that an intrusion is negligible (or severe) is of central relevance to determining reasonableness, (but) *it is still a search as the law defines that term*” (emphasis added)]).

Compared to a sniff of an inanimate object like a closed suitcase or automobile, the sniffing of the human body involves an obviously greater intrusion on personal privacy, security, and dignity. Most people “deliberately attempt not to expose the odors emanating from their bodies to public smell” and experience anxiety and embarrassment at the thought of emitting odors, demonstrating the sensitivity of the matter (*see Horton*, 690 F2d at 478). Moreover, it is of little consolation in this context that the only information a canine may be capable of conveying to police is the presence of illegal drugs. The “embarrassment and inconvenience” of this type of search does not arise solely from fear that the canine will reveal the presence of contraband (*compare Place*, 462 US at 707), but from the objectively undignified and disconcerting experience of hav-

ing an unfamiliar animal place its snout and jaws in close proximity to—if not direct contact with—vulnerable parts of our bodies (see *Horton*, 690 F2d at 478 [collecting academic commentary that “the intensive smelling of people, even if done by dogs, is indecent and demeaning” (parentheses and internal quotation marks omitted)]; compare *Terry*, 392 US at 24-25, 29-30 [even a “limited search of the outer clothing,” in which an officer “d(oes) not place his hands in (an individual’s) pockets or under the outer surface of their garments,” “constitutes a *severe*, though brief, intrusion upon cherished personal security, and it must surely be an annoying, frightening, and perhaps humiliating experience” (emphasis added)]).

In this regard, it also cannot be ignored that some people are afraid of dogs, particularly police canines, which are usually quite large and can be cross-trained to apprehend fleeing suspects (see Ann L. Shiovone, *K-9 Catch-22: The Impossible Dilemma of Using Police Dogs on Apprehension of Suspects*, 80 U Pitt L Rev 613, 622, 652 & nn 287-288 [spring 2019]; Police Executive Research Forum, *Guidance on Policy and Practices for Patrol Canines* at 14 [2020], available at <https://www.policeforum.org/assets/Canines.pdf>). Although deaths caused by canines are rare, fear and distrust of their use by law enforcement is not without justification, particularly considering the shameful history in this country of police using canines to intimidate and control people of color and marginalized communities (see e.g. Shontel Stewart, *Man’s Best Friend? How Dogs Have Been Used to Oppress African Americans*, 25 Mich J Race & L 183 [2020]).

In permitting Apache to approach and sniff defendant for evidence of criminal activity, the officers also exceeded the scope of any invitation or license implicitly granted by defendant with respect to his so-called personal space (cf. *Jardines*, 569 US at 8-9). Preliminarily, although the Supreme Court in *Jardines* borrowed from implied-license principles as part of its property-law analysis upon concluding that a porch is part of the home for Fourth Amendment purposes, consideration of the implied social licenses that govern human interaction is also helpful to assess whether a canine sniff of a person violates an expectation of privacy considered reasonable by society (see *id.* at 13-14 [Kagan, J., concurring] [“The law of property naturally enough influences our shared societal expectations of what places should be free from governmental incursions” (internal quotation marks and brackets omitted)]; *French v*

Merrill, 15 F4th 116, 131 [1st Cir 2021] [*Jardines* “clearly established that an implicit social license sets the boundaries of what acts officers may engage in”], *reh en banc denied* 24 F4th 93 [1st Cir 2022], *cert denied* 598 US —, 143 S Ct 301 [2022]). For our part, we will assume that when a person decides to venture out into the public square, they implicitly permit others—including not just friends and coworkers but certain strangers and even police—to approach and interact in ways that may put them in a position to notice odors emanating from the body (say, in a crowded queue or rush-hour subway car). However, it is not part of the social convention for strangers to enter each other’s personal space for the specific purpose of sniffing each other; such conduct is likely to be considered alarming and intrusive. Even with pets, it is generally considered rude to allow one’s dog to approach and intensively sniff a stranger without consent. And introducing a trained police dog to explore otherwise *undetectable* odors in the hopes of discovering incriminating evidence is “something else” entirely; it goes far beyond any implied social license or reasonable expectation (*Jardines*, 569 US at 9). Authorization to engage in canine forensic investigation assuredly does not inhere in the very act of venturing out in public (*see Carpenter*, 585 US at 310 [“A person does not surrender all Fourth Amendment protection by venturing into the public sphere. To the contrary, what one seeks to preserve as private, even in an area accessible to the public, may be constitutionally protected” (internal quotation marks and brackets omitted)]).

Finally, a refusal by this Court to recognize what occurred here as a search would sanction law enforcement to roam the streets of this state’s cities and neighborhoods with police dogs arbitrarily sniffing people for evidence of crimes, a picture straight out of dystopian fiction. Recognizing this form of investigative technique as a search is therefore consistent with “a central aim of the Framers[, which] was ‘to place obstacles in the way of a too permeating police surveillance’” (*Carpenter*, 585 US at 305, quoting *United States v Di Re*, 332 US 581, 595 [1948]).

For all of these reasons, we conclude that the canine sniff of defendant’s person qualified as a search under the Fourth Amendment.

III.

[2] The second question presented by this appeal is whether the Appellate Division could decide that a canine sniff search

of a person requires reasonable suspicion and was justified in this case. We conclude that the Appellate Division lacked jurisdiction to resolve those issues because County Court did not decide them adversely to defendant (*see LaFontaine*, 92 NY2d at 473-474).

Section 470.15 (1) of the Criminal Procedure Law functions as “a legislative restriction on the Appellate Division’s power to review issues either decided in an appellant’s favor, or not ruled upon, by the trial court” (*People v Harris*, 35 NY3d 1010, 1011 [2020] [internal quotation marks omitted]). Here, the statute barred the Appellate Division from affirming defendant’s judgment based on a ground not decided adversely to him by the suppression court (*see id.*). County Court held that the canine sniff of defendant’s person did not qualify as a search. The court did not decide the standard that would govern if the canine sniff *did* so qualify, much less whether that standard was met. Those questions present “separate” and “analytically distinct” issues from the threshold question of whether the sniff implicated constitutional protections or prohibitions (*compare People v Garrett*, 23 NY3d 878, 885 n 2 [2014]). The Appellate Division therefore erred in deciding those questions adversely to defendant.

Finally, it is unclear whether County Court’s conclusion that defendant “abandoned” the narcotics during his flight from police was premised on its holding that the canine sniff of defendant was not a search and was “perfectly acceptable.” Because abandonment analysis turns largely on whether the law enforcement conduct preceding the purported abandonment was lawful or unlawful (*see People v Ramirez-Portoreal*, 88 NY2d 99, 110 [1996]; *People v Boodle*, 47 NY2d 398, 402 [1979]), consideration of this issue potentially raises another *LaFontaine* issue and must also be referred back to County Court.

Accordingly, the order of the Appellate Division should be reversed, and the case remitted to County Court for further proceedings in accordance with this opinion.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, TROUTMAN and HALLIGAN concur.

Order reversed, and case remitted to County Court, Broome County, for further proceedings in accordance with the opinion herein.

[232 NE3d 168, 208 NYS3d 490]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL BAY, Appellant.

Argued November 15, 2023; decided December 14, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Cortland County Court (Julie A. Campbell, J.), entered March 14, 2022. County Court affirmed a judgment of the Cortland City Court which had convicted defendant, after a nonjury trial, of harassment in the second degree.

People v Bay, 79 Misc 3d 171, reversed.

HEADNOTE

Crimes — Disclosure — Discovery Items Disclosed after Filing Certificate of Compliance — Due Diligence

In a criminal prosecution, the People's certificate of compliance (COC) with their statutory disclosure obligations, filed weeks before they turned over key discovery items subject to automatic disclosure under CPL 245.20, was not properly filed and their statement of readiness for trial was therefore illusory for purposes of CPL 30.30, where the People failed to show they had exercised due diligence and made reasonable efforts to identify mandatory discovery prior to filing the COC. The key question in determining if a proper COC has been filed is whether the prosecution has "exercis[ed] due diligence and ma[de] reasonable inquiries to ascertain the existence of material and information subject to discovery" (CPL 245.50 [1]). The "due diligence" standard requires the People to make reasonable efforts to comply with statutory directives. Post-filing disclosure and a supplemental COC cannot compensate for a failure to exercise diligence before the initial COC is filed. CPL 245.50 (3) and 30.30 (5), taken together, plainly require that the People file a proper COC reflecting that they have complied with their disclosure obligations before they may be deemed ready for trial. These provisions thus condition trial readiness for purposes of CPL 30.30 on the filing of a proper COC. The belated disclosure here consisted of routinely produced disclosure materials, the creation of at least one of which was mandated by law. The absence of such significant items of disclosure was readily noticed by the defense, which then brought it to the attention of the People and the court. The prosecution had two opportunities to establish that they had exercised due diligence, but failed to do so.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Depositions and Discovery §§ 243, 258, 260, 266, 273–274.

CARMODY-WAIT 2d Timeliness of Prosecution; Speedy Trial

§§ 186:118, 186:128; 186:133; CARMODY-WAIT 2d Discovery §§ 187:1–187:4, 187:16–187:17, 187:28, 187:30, 187:35–187:37, 187:129–187:133.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 18.3, 20.3, 20.6.

McKINNEY'S, CPL 30.30 (5); 245.20; 245.50 (1), (3).

NY JUR 2d Criminal Law: Procedure §§ 1685–1686, 1688, 1695, 1701, 1706, 1716, 1770–1772, 1906, 1921–1922, 1924, 1927.

ANNOTATION REFERENCE

Right of accused in state courts to inspection or disclosure of evidence in possession of prosecution. 7 ALR3d 8.

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Query: ((disclosure OR discovery) /5 diligen!) & “certificate of compliance” & illusory & “automatic disclosure” & “statement of readiness”

POINTS OF COUNSEL

Keith Dayton, Public Defender, Cortland (Kayla Hardesty of counsel), for appellant. I. The People’s CPL article 245 certificate of compliance was not proper and their CPL 30.30 statement of readiness was illusory. (*People v Aquino*, 72 Misc 3d 518; *People v Quinlan*, 71 Misc 3d 266; *People v Pierna*, 74 Misc 3d 1072; *People v Rodriguez*, 73 Misc 3d 411; *People v Perez*, 73 Misc 3d 171; *People v Adrovic*, 69 Misc 3d 563; *People v Figueroa*, 76 Misc 3d 888; *People v Vargas*, 76 Misc 3d 646.) II. The sole relief for a violation of CPL 30.30 (1) is dismissal of the accusatory instrument. (*People v Diaz*, 75 Misc 3d 314; *People v Lawrence*, 64 NY2d 200; *People v Gaskin*, 214 AD3d 1353; *People v Quinlan*, 71 Misc 3d 266; *People v Edwards*, 77 Misc 3d 740; *American Airlines v State Commn. for Human Rights*, 29 AD2d 178; *People v Gaskin*, 214 AD3d 1353.)

Patrick A. Perfetti, District Attorney, Cortland, for respondent. The prosecutor’s statement of readiness was accompanied by a proper certificate of compliance. The lower courts therefore properly declined to grant defendant’s CPL 30.30 motion for dismissal. (*People v Galak*, 114 Misc 2d 719; *People v Honshj*, 176 Misc 2d 170; *People v Rosario*, 9 NY2d 286; *People v Gaskin*, 214 AD3d 1353; *People v Rodriguez*, 73 Misc 3d 411; *People v Williams*, 76 Misc 3d 712; *People v Sherman*, 78 Misc 3d 975;

People v Goggins, 76 Misc 3d 898; *People v Barralaga*, 73 Misc 3d 510; *People v Pondexter*, 76 Misc 3d 349.)

Stephen Herrick, Public Defender, Albany (*James A. Bartosik, Jr.* of counsel), and *Thomas C. DeBose III*, Assigned Counsel Program, Albany (*William A. Carter* of counsel), for Albany County Office of the Public Defender and another, amici curiae. I. The People's certificate of compliance must be invalidated under CPL 245.50 (1) and (3) if the People fail to perform due diligence in disclosing all CPL 245.20 (1) discoverable items before filing. (*People v Barnett*, 68 Misc 3d 1000; *People v Edwards*, 77 Misc 3d 740; *People ex rel. Ferro v Brann*, 197 AD3d 787; *People v Moss*, 75 Misc 3d 956; *People v Rosario*, 70 Misc 3d 753; *People v Bruni*, 71 Misc 3d 913; *People v Marrin*, 187 AD2d 284, 81 NY2d 843; *People v Garrett*, 171 AD2d 153, 79 NY2d 827; *People v Soto*, 72 Misc 3d 1153; *People v Pondexter*, 76 Misc 3d 349.) II. CPL 245.50 (1)'s "no adverse consequences" does not preclude a finding of illusory certificate of compliance or statement of trial readiness based on a discovery violation. III. A court may not issue a CPL 245.80 sanction in lieu of a CPL 30.30 dismissal. (*People v Hamilton*, 46 NY2d 932; *People v Friscia*, 70 AD2d 709; *People v Quinlan*, 71 Misc 3d 266; *People v Adrovic*, 69 Misc 3d 563; *People v Kendzia*, 64 NY2d 331; *People v Robinson*, 171 AD2d 475; *People v England*, 84 NY2d 1; *People v Santana*, 233 AD2d 344; *People v South*, 29 Misc 3d 92; *People v Williams*, 32 AD3d 403.)

Drew R. DuBrin, Rochester, for New York State Association of Criminal Defense Lawyers, amicus curiae. I. The Legislature has created a link between discovery compliance and CPL 30.30 trial readiness. (*People v Robbins*, 206 AD3d 1069.) II. The link between discovery compliance and CPL 30.30 trial readiness requires actual good faith compliance with CPL 245.20 discovery obligations. (*People v Finnegan*, 85 NY2d 53; *People v Holz*, 35 NY3d 55; *Matter of Kosmider v Whitney*, 34 NY3d 48; *People ex rel. Ferro v Brann*, 197 AD3d 787; *People v Torres*, 205 AD3d 524; *People v Gaskin*, 214 AD3d 1353; *People v Rodriguez*, 77 Misc 3d 23; *People v Cooper*, 71 Misc 3d 559; *People v Quinlan*, 71 Misc 3d 266; *People v Adrovic*, 69 Misc 3d 563.) III. Prejudice to the defense is not a factor in the analysis. (*People v Hamilton*, 46 NY2d 932; *Tzolis v Wolff*, 10 NY3d 100; *People v Sosa*, 18 NY3d 436; *People v Brown*, 25 NY3d 247.) IV. The People are not in good faith compliance with their discovery obligations, and thus are not ready for trial, when they have not provided items or information related to the case

within their or law enforcement's possession, custody, or control. This is true regardless of whether the prosecutor handling the case knows about the material or makes any effort to learn of its existence. (*People v Aguayza*, 77 Misc 3d 482; *People v Goggins*, 76 Misc 3d 898; *People v Francis*, 74 Misc 3d 808; *People v Figueroa*, 76 Misc 3d 888; *People v McMillian*, 71 Misc 3d 374.) V. Under no circumstances can the People be said to be in good faith compliance with their CPL 245.20 discovery obligations, and be ready for trial, where they fail to turn over discoverable material because the prosecutor did not know about the material due to the lack of good faith, diligent efforts to ascertain its existence. VI. The "no adverse consequence" clause of CPL 245.50 (1) does not allow the People to be ready for trial where they do not provide discoverable material because, due to the lack of diligence and reasonable inquiries, the prosecutor is unaware of it. (*People v Badji*, 36 NY3d 393; *People v Clement*, 78 Misc 3d 331.)

Twyla Carter, The Legal Aid Society, New York City (*John Schoeffel* and *Peter R. Mitchell* of counsel), for The Legal Aid Society, amicus curiae. The court's rulings that a prosecutor acts with "diligence" under CPL 245.50 (1) simply by turning over any non-disclosed discovery items after having certified compliance—and that discovery violation sanctions under CPL 245.80 may be used in lieu of granting a motion to dismiss based on discovery violations under CPL 30.30—misapply those statutes, and, if upheld, would eviscerate the 2019 legislative reforms. (*People v Kendzia*, 64 NY2d 331; *People v Anderson*, 66 NY2d 529; *People v Brown*, 28 NY3d 392; *People v Banach*, 80 NY2d 610; *Kyles v Whitley*, 514 US 419; *People v Clarke*, 28 NY3d 48; *People v Novoa*, 70 NY2d 490; *People ex rel. Ferro v Brann*, 197 AD3d 787; *People v Torres*, 205 AD3d 524; *People v Rodriguez*, 77 Misc 3d 23.)

John J. Flynn, District Attorneys Association of the State of New York, Inc. (*Paul J. Williams, III* and *Daniel J. Mattle* of counsel), for District Attorney's Association of the State of New York, Inc., amicus curiae. The discovery laws were intended to fulfill the legislative purpose of establishing an equitable and cooperative discovery procedure. Defendant's interpretation improperly suggests discovery compliance requires perfection instead of reasonable compliance—as incorporated in the statutes—and if adopted would result in ceaseless and unwarranted litigation, contrary to the spirit and cooperation imbued in CPL article 245. (*People v Badji*, 36 NY3d 393; *Matter of*

Mestecky v City of New York, 30 NY3d 239; *People v Wallace*, 31 NY3d 503; *Matter of Sutka v Conners*, 73 NY2d 395; *Ferres v City of New Rochelle*, 68 NY2d 446; *Matter of New York County Lawyers' Assn. v Bloomberg*, 19 NY3d 712; *Matter of Avella v City of New York*, 29 NY3d 425; *Rocovich v Consolidated Edison Co.*, 78 NY2d 509; *Town of Aurora v Village of E. Aurora*, 32 NY3d 366; *People v Gaillard*, 215 AD3d 459.)

OPINION OF THE COURT

HALLIGAN, J.

In 2019, the New York State Legislature enacted sweeping reforms that expanded and restructured disclosure obligations in criminal cases, effective at the start of 2020 (*see* L 2019, ch 59, § 1, part LLL). This appeal concerns a new requirement set forth in CPL article 245 that the People file a certificate of compliance (COC) with their statutory disclosure obligations (*see* CPL 245.50 [1], [3]). Here, weeks after filing their COC, the People turned over several key discovery items that were within their possession and control and therefore subject to automatic disclosure under the recently-enacted CPL 245.20. The defendant sought dismissal pursuant to CPL 30.30, arguing that the People were not actually ready for trial within the applicable speedy trial period because they had not exercised due diligence with respect to their disclosure obligations. The question before us is whether the COC was improper in light of the People's belated disclosure, and whether the People's statement of readiness was therefore illusory for purposes of CPL 30.30. Because the People failed to show they had exercised due diligence and made reasonable efforts to identify mandatory discovery prior to filing the COC, the COC was not proper when filed, and the prosecution's declaration of trial readiness was therefore illusory.

I.

On April 22, 2021, defendant Michael Bay was arrested after becoming physically aggressive toward his mother and arraigned in City Court on an information charging him with one count of harassment in the second degree (*see* Penal Law § 240.26 [1]). Bay pleaded not guilty and was released on his own recognizance, and the case was adjourned so that Bay could obtain counsel. At the next appearance on April 28th, City Court adjourned the proceeding until May 26th because defense counsel noted that she had not received discovery from the prosecution and the parties had yet to discuss a potential plea. The court charged the delay to the People.

On April 29th, the People provided the defense with various discovery materials: the information, a supporting deposition of Bay's mother, the mother's request for an order of protection and the ensuing order of protection, photographs of the mother's home, and a discovery compliance report. On May 4th, the People served and filed their COC, statement of trial readiness pursuant to CPL 30.30, and a discovery compliance report documenting those submissions.

At a subsequent appearance on May 26th, defense counsel told the court she had received some discovery but could not yet fully assess the case because she had not been given the 911 call or a police report. The prosecutor responded, "I just checked; the discovery, as it exists with this case, has been turned over." Defense counsel subsequently advised that Bay was not currently interested in pleading guilty and again indicated that the defense was "looking for the remaining discovery items at this time." The prosecutor asserted that "those discovery items don't exist" and that a COC had already been filed.

Later in the appearance, defense counsel reiterated that she had not received an arrest or police report. The prosecutor responded that "[the defendant] wouldn't have been arrested," to which the defense replied that "[u]sually there is some report from the police from the incident though." When the court suggested there should be a domestic incident report (DIR) given the nature of the offense charged (*see* CPL 140.10 [5]), the prosecutor explained that "procedure would call for a DIR to be filed . . . [but that] doesn't always happen." The court indicated that it did not know whether a 911 call had been made in this case and, when asked, the prosecutor stated, "Judge, there was not. I think this was reported by [the defendant's mother] after the incident."

Turning to the People's readiness declaration, the court asked the prosecutor whether "disclosure [has] been reasonably met[.]" The prosecutor replied that "we have provided all disclosure," and that the People were "unaware . . . of any evidence that hasn't been provided to the defense." The court concluded that "the People have met their burden as far as readiness goes and . . . they're ready for trial at least based upon what's been presented today." The matter was adjourned for a nonjury trial.

Approximately one week before the anticipated trial date, defense counsel called the district attorney's office to again

inquire about discovery and spoke with a different prosecutor. That prosecutor told defense counsel that the office had a police report, and that he would check on whether a 911 call had been made. Later that day, the People served the defense with a copy of the DIR and a police report, and the following day, served a duplicate recording of the 911 call and a call detail report.

The next day, on July 1st, Bay filed a motion to dismiss pursuant to CPL 30.30 (1) (d). He argued that the prosecution's failure to disclose material discoverable under CPL 245.20 meant that the COC filed on May 4th was improper, that the statement of readiness should therefore be deemed illusory and ineffective to stop the speedy trial clock, and that the 30-day speedy trial period prescribed by CPL 30.30 had expired. One day after Bay filed the motion, the People served a supplemental COC, again certifying that they had provided all known material and information subject to discovery under CPL article 245 after exercising due diligence and making reasonable inquiries.

At a July 6th appearance, the prosecutor did not dispute that the belated discovery had not been provided before the initial COC was filed, nor explain why the People had overlooked it. He suggested that the defense's focus on the validity of the COC was misplaced, stated that Bay would face numerous other charges even if the court were to strike the COC and dismiss the violation-level offense, and contended that the People could "upgrade" a COC by making subsequent additional disclosure. The court recalled that at the May appearance, the prosecutor indicated he had provided all discovery and was not sure the other materials existed or had been filed, and stated that the court would take the prosecutor "at his word" on that point. The defense countered that the purpose of a COC is to ensure that "reasonable inquiries as to the existence of discovery have already been [made]" when the COC is filed. Ultimately, the court denied the motion to dismiss but precluded the prosecution from using the 911 recording at trial as a sanction for the untimely disclosure. The case proceeded to trial, and Bay was convicted of harassment in the second degree.

County Court affirmed, concluding that "there is nothing to suggest that the People's statement of readiness was made in bad faith or did not accurately reflect the People's position" (79 Misc 3d 171, 176 [Cortland County Ct 2022]). The court

characterized Bay’s arguments as advocating for a rule of strict liability: that “any time supplemental discovery is provided, any prior statement of readiness by the People is illusory” (*id.* at 177). That view, the court found, was not supported by CPL article 245, which contemplates additional discovery and provides that “[n]o adverse consequence to the prosecution or the prosecutor shall result from the filing of a certificate of compliance in good faith and reasonable under the circumstances,” other than a discovery sanction pursuant to CPL 245.80 (*id.*, quoting CPL 245.50 [1]). The court found that the defense “failed to articulate any prejudice” resulting from the late disclosure, and that “[o]n this record it is clear that the People were unaware of the . . . items of discovery and when made aware of their existence, the items were obtained and disclosed to the defendant within less than one day” (*id.*). Furthermore, the court found, “the People acted in good faith with respect to their discovery obligations under CPL article 245 as well as their diligence in unearthing and disclosing additional discoverable items the same day the defense requested them” (*id.* at 178).

A Judge of this Court granted leave to appeal (39 NY3d 1077 [2023]).

II.

We begin with a brief overview of recent amendments to New York’s statutory scheme governing discovery in criminal cases. Prior to the 2019 amendments, which went into effect in 2020, former CPL article 240 allowed a defendant to request various types of discovery materials from the People, who were in turn obligated to produce them “within fifteen days of the service of the demand or as soon thereafter as practicable” (former CPL 240.80 [3]). If the People failed to do so, the trial court could impose various sanctions, including allowing discovery of material not previously disclosed, granting a continuance, issuing a protective order, or prohibiting the introduction of certain evidence or testimony (*see* former CPL 240.70). Separately, CPL 30.30 required that the People be ready for trial within specific time periods that vary according to the level of offense charged. Nothing in the speedy trial statute linked CPL article 240’s discovery obligations to the People’s readiness for trial under CPL 30.30, as this Court recognized (*see People v McKenna*, 76 NY2d 59, 63-64 [1990], citing *People v Anderson*, 66 NY2d 529, 537 [1985]).

In 2014, the New York State Justice Task Force proposed reforms to the discovery regime in light of concerns that available discovery is “highly circumscribed” and “often comes too late to permit both sides to investigate facts fully and make informed decisions before trial” (Report of the New York State Justice Task Force of its Recommendations Regarding Criminal Discovery Reform at 5 [2014]). Requiring early and broader disclosure, the Task Force concluded, would facilitate expeditious resolution of cases and better enable defense counsel to investigate and prepare for trial (*see id.* at 3; *see also* New York State Bar Association, Report of the Task Force on Criminal Discovery at 2 [2015]). Over the next few years, the legislature considered various discovery reform bills, and in the course of doing so, legislators noted that the existing scheme necessitated extensive exchanges of discovery demands, motions, and responses, and raised concerns about the limits on disclosure and the impact of discovery delays (*see* Assembly Mem in Support of 2019 NY Assembly Bill A1431; Assembly Mem in Support of 2017 NY Assembly Bill A4360A; NY Assembly Debate on 2019 NY Assembly Bill A2009C, Mar. 31, 2019 at 336, 378, 443-444; NY Senate Debate on 2019 NY Senate Bill S1509C, Mar. 31, 2019 at 2688-2690, 2714, 2802).

In 2019, the legislature adopted significant reforms that repealed CPL article 240, enacted CPL article 245 in its place, and amended CPL 30.30, the speedy trial provision. As detailed below, CPL article 245 imposes new automatic disclosure requirements and compliance mechanisms applicable to both the prosecution and defense (*see generally* CPL art 245; L 2019, ch 59, § 1, part LLL, §§ 1, 2). To incentivize the People’s compliance with these procedures, the enactments tie their discovery obligations to trial readiness under CPL 30.30 (*see* CPL 30.30 [5]; NY Senate Debate on 2019 NY Senate Bill S1509C, Mar. 31, 2019 at 2615; *People v Gaskin*, 214 AD3d 1353, 1353-1354 [4th Dept 2023]).

CPL 245.20, titled “[a]utomatic discovery,” requires disclosure to a defendant of “all items and information that relate to the subject matter of the case and are in the possession, custody or control of the prosecution or persons under the prosecution’s direction or control” (CPL 245.20 [1]). The statute enumerates 21 categories of material subject to disclosure (*see* CPL 245.20 [1] [disclosure obligations include, but are not limited to, these categories]), and provides that materials possessed by a New York State or local police or law enforcement agency are

deemed in the People's possession for purposes of the discovery requirements (*see* CPL 245.20 [2]; *see also* 245.55 [1] [prosecution must take steps to ensure "a flow of information is maintained" with "the police and other investigative personnel"])). Article 245 also sets forth time periods for disclosure: as amended in 2020, CPL 245.10 generally requires the People to turn over automatic discovery within 20 days of arraignment if a defendant is in custody or within 35 days if not, and once the People certify compliance, a defendant has 30 days to fulfill reciprocal discovery obligations (*see* CPL 245.10; L 2020, ch 56, § 1, part HHH, § 1).¹

CPL 245.50 (1) creates a new compliance mechanism. It directs the People to file a COC after they have "provided the discovery required by subdivision one of section 245.20," with several narrow exceptions. The COC "shall state that, after exercising due diligence and making reasonable inquiries to ascertain the existence of material and information subject to discovery, the prosecutor has disclosed and made available all known material and information subject to discovery" (CPL 245.50 [1]). CPL 245.60 imposes a continuing duty to disclose, and when the People provide discovery after a COC has been filed, they must file a supplemental COC (*see* CPL 245.50 [1]). Although CPL 245.50 (1) directs that "[n]o adverse consequence to the prosecution or the prosecutor shall result from the filing of a certificate of compliance in good faith and reasonable under the circumstances," it clarifies that a trial court may nonetheless grant discovery sanctions and remedies where provided in CPL 245.80.

A defendant likewise must provide mandatory disclosure, as described in CPL 245.20 (4); subsequently serve a COC certifying the exercise of due diligence and reasonable inquiry; and, pursuant to the continuing duty to disclose, serve any belated discovery and an accompanying supplemental COC (*see* CPL 245.50 [2]). As with the People, if a defendant violates their discovery obligations, a CPL 245.80 remedy or sanction may be imposed against them (*see* CPL 245.50 [2]).

The legislature tethered the People's CPL article 245 discovery obligations to CPL 30.30's speedy trial requirements, through both the enactment of CPL 245.50 (3) and amend-

1. These time periods may be stayed up to an additional 30 days when discoverable materials are exceptionally voluminous or when, despite diligent and good faith efforts, the materials are not otherwise in the People's actual possession (*see* CPL 245.10 [1] [a]).

ments to CPL 30.30 itself. CPL 245.50 (3), titled “[t]rial readiness,” states that “[n]otwithstanding the provisions of any other law” and “absent an individualized finding of special circumstances in the instant case by the court before which the charge is pending, the prosecution shall not be deemed ready for trial for purposes of section 30.30 of this chapter until it has filed a proper certificate pursuant to [CPL 245.50 (1)].” CPL 30.30 (5), which was added in the 2019 reforms, directs that the People must submit a COC attesting to good faith compliance with CPL 245.20’s disclosure requirements before or at the time they provide notice that they are trial-ready (*see* CPL 30.30 [5]; L 2019, ch 59, § 1, part KKK). At that point, “the court shall make inquiry on the record as to their actual readiness,” and the defense shall be given “an opportunity to be heard on the record as to whether the disclosure requirements have been met” (*id.*). CPL 30.30 (1)’s instruction that the court must grant a defendant’s motion to dismiss on speedy trial grounds if the prosecution is not ready within the applicable timeframe (here, 30 days) was in place prior to the 2019 changes and remains so (*see* CPL 30.30 [1] [d]).

In 2022, the legislature enacted additional amendments to CPL article 245 (*see* L 2022, ch 56, § 1, part UU, subpart D). While not directly applicable to this case, we note them to give a full description of the statutory scheme. CPL 245.80 (2) was modified to direct that a court should only dismiss a charge as a sanction for a disclosure violation if it has considered all other remedies and concluded that dismissal “is appropriate and proportionate to the prejudice suffered by the party.” CPL 245.50 was amended to require that parties must notify opposing parties of a COC deficiency or challenge the sufficiency of a COC as soon as practicable (*see* CPL 245.50 [4] [b], [c]). Finally, CPL 245.50 was amended to require that a supplemental COC detail the basis for a delayed disclosure so the court can assess the validity of the original COC, which is not impacted so long as it was filed in good faith and after exercising due diligence, or the delayed discovery did not exist when it was filed (*see* CPL 245.50 [1-a]).

It is against these provisions that we must assess a CPL 30.30 motion for speedy trial dismissal based on incomplete compliance with CPL article 245 discovery obligations.

III.

The People contend that the propriety of a COC rests solely on good faith and reasonableness, and that the COC filed in

this case cleared that bar. They argue that their failure to relay the belated discovery items before filing the COC was inadvertent, that the provision of supplemental discovery does not invalidate a prior COC, and that dismissal should be a “last resort” imposed only when no other measure can cure any prejudice caused by belated disclosure. In the People’s view, there was no prejudice here, so the trial court properly imposed a sanction of preclusion pursuant to CPL 245.80, rather than dismissing the case on speedy trial grounds. We are unpersuaded by these contentions.

In resolving questions of statutory interpretation, our “primary consideration . . . is to ‘ascertain and give effect to the intention of the Legislature’ ” (*People v Galindo*, 38 NY3d 199, 203 [2022] [some internal quotation marks omitted], quoting *Riley v County of Broome*, 95 NY2d 455, 463 [2000]). We start with the plain language of the statute (*see People v Schneider*, 37 NY3d 187, 196 [2021], *cert denied* 595 US —, 142 S Ct 344 [2021]). “In the absence of a statutory definition, ‘we construe words of ordinary import with their usual and commonly understood meaning, and in that connection have regarded dictionary definitions as useful guideposts in determining the meaning of a word or phrase’ ” (*Yaniveth R. v LTD Realty Co.*, 27 NY3d 186, 192 [2016], quoting *Rosner v Metropolitan Prop. & Liab. Ins. Co.*, 96 NY2d 475, 479-480 [2001]).

Under the terms of the statute, the key question in determining if a proper COC has been filed is whether the prosecution has “exercis[ed] due diligence and ma[de] reasonable inquiries to ascertain the existence of material and information subject to discovery” (CPL 245.50 [1]; *see also* 245.20 [2] [the “prosecutor shall make a diligent, good faith effort to ascertain the existence of” discovery materials outside of their possession]; CPL 245.50 [3] [court may deem prosecution ready where mandatory discovery has been lost or destroyed “despite diligent and good faith efforts, reasonable under the circumstances”]). Although the statute nowhere defines “due diligence,” it is a familiar and flexible standard that requires the People “to make reasonable efforts” to comply with statutory directives (*People v Bolden*, 81 NY2d 146, 155 [1993]; *see People v Luperon*, 85 NY2d 71, 80-81 [1995]). Black’s Law Dictionary is in accord; it defines “due diligence” as “[t]he diligence reasonably expected from, and ordinarily exercised by, a person who seeks to satisfy a legal requirement or to discharge an obligation” (Black’s Law Dictionary 573 [11th ed 2019]). Reasonableness, then, is the

touchstone—a concept confirmed by the statutory directive to make “reasonable inquiries” (CPL 245.50 [1]).

An analysis of whether the People made reasonable efforts sufficient to satisfy CPL article 245 is fundamentally case-specific, as with any question of reasonableness, and will turn on the circumstances presented (*cf. People v Diaz*, 97 NY2d 109, 116 [2001]; *People v Budd*, 46 NY2d 930, 931-932 [1979]). There is no rule of “strict liability”; that is, the statute does not require or anticipate a “perfect prosecutor.” On the other hand, the plain terms of the statute make clear that while good faith is required, it is not sufficient standing alone and cannot cure a lack of diligence (*see* CPL 245.20 [2]; 245.50 [1], [3]; *Anderson*, 66 NY2d at 536 [statutory requirement of due diligence established that more than good faith was required]). Although the relevant factors for assessing due diligence may vary from case to case, courts should generally consider, among other things, the efforts made by the prosecution and the prosecutor’s office to comply with the statutory requirements, the volume of discovery provided and outstanding, the complexity of the case, how obvious any missing material would likely have been to a prosecutor exercising due diligence, the explanation for any discovery lapse, and the People’s response when apprised of any missing discovery.

Read together, CPL 245.50 and 30.30 require that due diligence must be conducted prior to filing a COC (*see* CPL 245.50 [1] [detailing representations that must be included in a COC]; CPL 245.50 [3] [directing that “the prosecution shall not be deemed ready for trial for purposes of (CPL) 30.30 . . . until it has filed a proper certificate pursuant to (CPL 245.50 [1])”]; CPL 30.30 [5] [directing that a COC must “accompan(y) or precede()” the People’s statement of trial readiness, that the court “shall” make inquiry on the record as to actual readiness, and, if the court concludes the People are not ready, the statement of readiness is not valid]). Although belated disclosure will not necessarily establish a lack of due diligence or render an initial COC improper, post-filing disclosure and a supplemental COC cannot compensate for a failure to exercise diligence before the initial COC is filed.²

We underscore that the discovery provisions empower—and indeed, require—the trial court to facilitate compliance on the

2. We note that CPL 245.50 (1-a)—which was added to CPL article 245 during the pendency of this appeal and does not directly apply here—requires that “[a]ny supplemental [COC] shall detail the basis for the delayed

(n. cont’d)

record with these new discovery obligations (*see* CPL 30.30 [5] [when the People state they are ready for trial, “the court shall make inquiry on the record as to their actual readiness”]; CPL 245.35 [affording trial courts broad discretion to impose “(c)ourt ordered procedures to facilitate compliance,” such as “discovery compliance conference(s)” (CPL 245.35 [2])]; *see also* 245.50 [1-a]). To this end, a trial court should analyze the People’s readiness after they file a COC and statement of readiness, and it must ensure that inquiries from defense counsel regarding discovery obligations are meaningfully addressed and that a record is made of the People’s efforts to secure and disclose any responsive discovery. Those steps can be taken when an initial COC is filed and the People announce they are trial-ready, and in the event the court later learns that discovery was incomplete at the time of filing. Especially in light of the 2022 addition of subdivisions (b) and (c) to CPL 245.50 (4), which require a party to notify the opposing party of a COC deficiency or challenge a COC as soon as practicable, any questions about whether due diligence was exercised in the discovery process should be evaluated as soon as possible. We also note that nothing prevents the People from detailing their efforts to exercise due diligence within the COC itself.

Should a defendant bring a CPL 30.30 motion to dismiss on the ground that the People failed to exercise due diligence and therefore improperly filed a COC, the People bear the burden of establishing that they did, in fact, exercise due diligence and made reasonable inquiries prior to filing the initial COC despite a belated or missing disclosure (*see People v Santos*, 68 NY2d 859, 861 [1986], citing *People v Berkowitz*, 50 NY2d 333, 349 [1980]). If the prosecution fails to make such a showing, the COC should be deemed improper, the readiness statement stricken as illusory, and—so long as the time chargeable to the People exceeds the applicable CPL 30.30 period—the case dismissed.

Contrary to the People’s contentions, a defendant need not demonstrate prejudice to obtain speedy trial dismissal based on a failure to timely comply with discovery obligations. CPL 245.50 (3) and 30.30 (5), taken together, plainly require that the People file a proper COC reflecting that they have complied with their disclosure obligations before they may be deemed

disclosure so that the court may determine whether the delayed disclosure impacts the propriety of the [original COC]” (CPL 245.50 [1-a]).

ready for trial. CPL 245.50 (3) mandates that “[n]otwithstanding the provisions of any other law, . . . the prosecution shall not be deemed ready for trial for purposes of [CPL] 30.30 . . . until it has filed a proper certificate.” Likewise, CPL 30.30 (5) directs that “[a]ny statement of trial readiness must be accompanied or preceded by a certification of good faith compliance with the disclosure requirements of [CPL] 245.20.” These provisions thus condition trial readiness for purposes of CPL 30.30 on the filing of a proper COC, which is consistent with the legislative history of the disclosure reforms (*see* NY Senate Debate on 2019 NY Senate Bill S1509C, Mar. 31, 2019 at 2615). The consequence of unreadiness after the CPL 30.30 period expires is dismissal (*see* CPL 30.30 [1]) and, as this Court has previously stated, speedy trial dismissal pursuant to CPL 30.30 is not contingent on a finding of prejudice (*see People v Hamilton*, 46 NY2d 932, 933-934 [1979]; *see also* CPL 30.30 [1]).³

The People’s argument that the remedy here must satisfy CPL 245.80, and thus that dismissal is appropriate only upon a showing of proportionate prejudice, misunderstands the statutory scheme. As explained, CPL 30.30 now requires dismissal if the People did not file a proper COC and the speedy trial period has run. That provision is not qualified by CPL 245.80. On the other hand, if the court deems a COC proper (including in a case where there was late disclosure but the court concludes the People exercised due diligence), CPL 245.80 sets forth the available remedies for the belated disclosure. (Likewise if the court determines the COC is not proper but the speedy trial clock has not yet expired.) The statute instructs that where CPL 245.80 controls, the remedy must be “appropriate and proportionate to the prejudice suffered by the party entitled to disclosure” (CPL 245.80 [1] [a]; *see also* [2] [court may order dismissal only “after considering all other remedies” and concluding “dismissal is appropriate and proportionate to the prejudice suffered by the party entitled to disclosure, or

3. CPL 245.50 (1)’s mandate that “[n]o adverse consequence to the prosecution or the prosecutor shall result from the filing of a [COC] in good faith and reasonable under the circumstances” does not change the analysis. CPL 245.50 (1) requires that the People “exercis[e] due diligence and mak[e] reasonable inquiries” prior to filing a COC, and CPL 245.50 (3) states that the People shall not be deemed trial ready until they have filed a proper COC pursuant to CPL 245.50 (1). The reference to “adverse consequence” does not alter the statutory standard for a proper COC or limit dismissals under CPL 30.30 (5) to instances of bad faith.

make such other order as it deems just under the circumstances”)].

We note that speedy trial dismissals based on disclosure violations are not inevitable. In addition to exercising due diligence to ensure COCs are not later deemed improper, the People can request additional time for discovery upon a showing of good cause (*see* CPL 245.70 [2]), seek “an individualized finding of special circumstances” to be deemed ready despite the failure to file a “proper certificate” (CPL 245.50 [3]), or try to exclude from the speedy trial calculus “periods of delay occasioned by exceptional circumstances” (CPL 30.30 [4] [g]).

IV.

Applying these principles, we reverse County Court’s order of affirmance. Due diligence is a mixed question of fact and law, and thus we consider whether the fact finder’s conclusions are supported by the record (*see Luperon*, 85 NY2d at 78). Viewed under the proper legal standard, there is no record support for the conclusion of the courts below that prior to filing the initial COC, the People exercised due diligence and made reasonable inquiries to identify mandatory discovery items relating to this case.

The belated disclosure here consisted of routinely produced disclosure materials—the creation of at least one of which was mandated by law (*see* CPL 140.10 [5]). The absence of such significant items of disclosure was readily noticed by the defense, which then brought it to the attention of the People and the court. The prosecution had two opportunities to establish that they had exercised due diligence, but failed to do so. At the appearance on May 26th, in which defense counsel first called attention to the missing items, the prosecutor simply asserted that he had “checked” without any elaboration as to what efforts were made to verify whether there was any outstanding discovery or whether the disclosure requested by the defense—which was in the possession of the People (*see* CPL 245.20 [2])—actually existed. The prosecutor speculated that such disclosure items did not exist and had not been created, and otherwise stated in a cursory fashion that all discovery had been turned over. When the parties appeared on July 6th following Bay’s CPL 30.30 motion, the People again made no mention of any efforts taken to ascertain the existence of discovery materials before the COC was filed, nor did they explain why some discovery was initially missing or how it came into their possession.

Because the People did not establish that they exercised due diligence prior to filing the initial COC, the trial court should have determined that the COC was improper and accordingly stricken the statement of readiness as illusory. In the absence of a valid readiness statement tolling the speedy trial clock, the People do not dispute that they had exceeded the applicable 30-day period under CPL 30.30 (1) when Bay moved for dismissal. Thus, the defendant's motion should have been granted.

Accordingly, the County Court order should be reversed, defendant's CPL 30.30 motion granted, and the accusatory instrument dismissed.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur.

Order reversed, defendant's CPL 30.30 motion granted and accusatory instrument dismissed.

[232 NE3d 179, 208 NYS3d 501]

MARK A. STONEHAM et al., Appellants, v JOSEPH BARSUK, INC.,
et al., Defendants, and DAVID J. BARSUK, Respondent.

Argued November 16, 2023; decided December 19, 2023

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered November 18, 2022. The Appellate Division affirmed an order of the Supreme Court, Chautauqua County (Lynn W. Keane, J.; op 2021 NY Slip Op 34055[U] [2021]), which had denied plaintiffs' motion for partial summary judgment and granted the cross-motions of defendant David J. Barsuk for summary judgment dismissing the Labor Law § 240 (1) claim against him. The following question was certified by the Appellate Division: "Was the order of this Court entered November 18, 2022, properly made?"

Stoneham v Joseph Barsuk, Inc., 210 AD3d 1479, affirmed.

HEADNOTE

Labor — Safe Place to Work — Elevation-Related Hazard — Ordinary Vehicle Repair

Plaintiff, a certified diesel technician who was pinned under a commercial trailer while installing air brake equipment when a front loader used to lift the trailer above the ground rolled backwards, was not engaged in an activity covered by Labor Law § 240 (1), as the statute was not intended to cover ordinary vehicle repair. Labor Law § 240 (1) does not apply every time an employee is injured as the result of an elevation differential. Plaintiff's work was analogous to that of a factory worker engaged in the normal manufacturing process, which is not a protected activity under the statute. Expanding the statute's scope to cover a mechanic engaged in ordinary vehicle repair would extend the statute far beyond the purposes it was designed to serve. Further, if the statute applied in this case, car owners would be absolutely liable for gravity-related injuries that occurred when a mechanic was working on their car. This would be an enormous expansion of liability under Labor Law § 240 (1), and one that was not envisioned by the legislature.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Employment Relationship §§ 233, 253.

McKINNEY'S, Labor Law § 240 (1).

NY JUR 2d Employment Relations §§ 281–284, 289, 301.

NEW YORK LAW OF TORTS § 12:85.

ANNOTATION REFERENCE

See ALR Index under Labor and Employment; Repairs and Maintenance.

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POINTS OF COUNSEL

Lipsitz, Ponterio & Comerford, LLC, Buffalo (*John N. Lipsitz and Zachary James Woods* of counsel), for appellants. I. The courts below erred in determining that Labor Law § 240 (1) does not apply to the facts of this case. (*Wilinski v 334 E. 92nd Hous. Dev. Fund Corp.*, 18 NY3d 1; *Rivers v Sauter*, 26 NY2d 260; *Lewis-Moors v Contel of N.Y.*, 78 NY2d 942; *Rocovich v Consolidated Edison Co.*, 78 NY2d 509; *Gordon v Eastern Ry. Supply*, 82 NY2d 555; *Moore v Shulman*, 259 AD2d 975; *Spears v State of New York*, 266 AD2d 898; *Hutchins v Finch, Pruyn & Co.*, 267 AD2d 809; *Joblon v Solow*, 91 NY2d 457; *McCoy v Abigail Kirsch at Tappan Hall, Inc.*, 99 AD3d 13.) II. Although this Court need not consider the issue of “repair v. routine maintenance,” it would be an error to hold as a matter of law that Mark A. Stoneham was engaged in routine maintenance. (*Riccio v NHT Owners, LLC*, 51 AD3d 897; *Buckmann v State of New York*, 64 AD3d 1137; *Dean v City of Utica*, 75 AD3d 1130; *Pieri v B&B Welch Assoc.*, 74 AD3d 1727; *Kostyo v Schmitt & Behling, LLC*, 82 AD3d 1575; *Goad v Southern Elec. Intl.*, 263 AD2d 654; *Caraciolo v 800 Second Ave. Condominium*, 294 AD2d 200; *Crossett v Schofell*, 256 AD2d 881; *Carr v Perl Assoc.*, 201 AD2d 296; *Zuckerman v City of New York*, 49 NY2d 557.) III. The record establishes at least a triable question of fact on the issue of Mark A. Stoneham’s status as an employee. (*Vernum v Zilka*, 241 AD2d 885; *Thompson v Marotta*, 256 AD2d 1124; *Stringer v Musacchia*, 46 AD3d 1274.) IV. Respondent failed to satisfy its moving burden on the issue of sole proximate cause. (*Rice v West 37th Group, LLC*, 78 AD3d 492; *Collins v West 13th St. Owners Corp.*, 63 AD3d 621; *Buckmann v State of New York*, 64 AD3d 1137; *Sanatass v Consolidated Inv. Co., Inc.*, 10 NY3d 333.)

Goldberg Segalla LLP, Buffalo (*James M. Specyal and Susan E. Van Gelder* of counsel), and *Kenney Shelton Liptak Nowak LLP*, Buffalo (*Justin L. Hendricks and Melissa A. Foti* of counsel), for respondent. I. The Appellate Division properly concluded that Labor Law § 240 (1) is inapplicable. (*Caddy v Interborough R.T. Co.*, 195 NY 415; *Ross v Curtis-Palmer*

Hydro-Elec. Co., 81 NY2d 494; *Nicometi v Vineyards of Fredonia, LLC*, 25 NY3d 90; *Narducci v Manhasset Bay Assoc.*, 96 NY2d 259; *Misseritti v Mark IV Constr. Co.*, 86 NY2d 487; *Toefer v Long Is. R.R.*, 4 NY3d 399; *Rodriguez v Margaret Tietz Ctr. for Nursing Care*, 84 NY2d 841; *Blake v Neighborhood Hous. Servs. of N.Y. City*, 1 NY3d 280; *Gordon v Eastern Ry. Supply*, 82 NY2d 555; *Guevarra v Wreckers Realty, LLC*, 169 AD3d 651.) II. Labor Law § 240 (1) does not apply because Mark A. Stoneham was a volunteer at the time of the accident. (*Stringer v Musacchia*, 11 NY3d 212; *Whelen v Warwick Val. Civic & Social Club*, 47 NY2d 970; *Ramsden v Geary*, 195 AD3d 1488; *Doskotch v Pisocki*, 168 AD3d 1174; *Nelson v E&M 2710 Clarendon LLC*, 129 AD3d 568; *Mordkofsky v V.C.V. Dev. Corp.*, 76 NY2d 573; *Alvarez v Prospect Hosp.*, 68 NY2d 320; *Mandelos v Karavasidis*, 86 NY2d 767; *Zuckerman v City of New York*, 49 NY2d 557; *Cruz v New York City Tr. Auth.*, 31 AD3d 688, 8 NY3d 825.) III. Adequate safety devices were available on the date of Mark A. Stoneham's accident. (*Robinson v East Med. Ctr., LP*, 6 NY3d 550; *Montgomery v Federal Express Corp.*, 4 NY3d 805.)

OPINION OF THE COURT

SINGAS, J.

Plaintiff Mark A. Stoneham was lying beneath a lifted trailer working on a faulty air brake system when the trailer fell on him causing serious injuries. The issue is whether plaintiff was engaged in an activity protected by Labor Law § 240 (1). We hold that the statute was not intended to cover ordinary vehicle repair and, thus, the courts below correctly dismissed the section 240 (1) cause of action as to defendant David J. Barsuk.

I.

Plaintiff is a certified diesel technician who has experience working on heavy equipment, including dump trucks, loaders, dozers, and trailers. Defendant owned a commercial trailer, which could haul heavy equipment weighing up to 20 tons. After defendant noticed a problem with the trailer's air brake system, plaintiff agreed to replace a leaking air tank and four air hoses located underneath the trailer. In August 2018, plaintiff used a front loader, equipped with a bucket attachment, to lift the trailer about 5½ feet above the ground and

then engaged the front loader’s parking brake.* As plaintiff was lying under the trailer installing the new air brake equipment, the front loader rolled backwards and the trailer fell on him, pinning him underneath. Plaintiff suffered severe injuries.

Plaintiff, and his wife suing derivatively, commenced this action against defendant and others, alleging a Labor Law § 240 (1) cause of action and three additional claims. Plaintiffs moved for summary judgment as to liability against defendant on the section 240 (1) claim, arguing that defendant failed to provide plaintiff with adequate safety devices. Defendant cross-moved for summary judgment dismissing the section 240 (1) cause of action as to him. Supreme Court denied plaintiffs’ motion and granted defendant’s cross-motions (*see* 2021 NY Slip Op 34055[U] [Sup Ct, Chautauqua County 2021]).

The Appellate Division affirmed, with two Justices dissenting (*see* 210 AD3d 1479, 1479 [4th Dept 2022]). Considering Labor Law § 240 (1)’s purpose and its text “as a whole,” the Court held that “the vehicle repair work at issue here” was not “a protected activity within the meaning of” the statute (*id.* at 1480, 1481). The dissenters, by contrast, determined that “under the unique circumstances of this case,” they were unable to “conclude that plaintiff was not engaged in a protected activity as a matter of law” (*id.* at 1482 [Winslow & Bannister, JJ., dissenting]).

The Appellate Division granted plaintiffs leave to appeal to this Court and certified a question asking whether its order was properly made (*see* 213 AD3d 1284 [4th Dept 2023]). We answer the question in the affirmative.

II.

Labor Law § 240 (1) applies to workers “employed” in the “erection, demolition, repairing, altering, painting, cleaning or pointing of a building or structure” (*see Dahar v Holland Ladder & Mfg. Co.*, 18 NY3d 521, 524-525 [2012]). The statute’s “central concern is the dangers that beset workers in the construction industry” (*id.* at 525). If an employee is engaged in an activity covered by section 240 (1), “contractors and owners” must “furnish or erect” enumerated safety devices “to give

* Plaintiff alleges that defendant Joseph Barsuk, Inc. owned the front loader. This appeal stems from plaintiff’s motion for summary judgment against defendant, who is a principal of Joseph Barsuk, Inc., and defendant’s cross-motions for summary judgment.

proper protection” to the employee. “Whether a plaintiff is entitled to recovery under [section] 240 (1) requires a determination of whether the injury sustained is the type of elevation-related hazard to which the statute applies” (*Wilinski v 334 E. 92nd Hous. Dev. Fund Corp.*, 18 NY3d 1, 7 [2011]). To make this determination, a court must examine the “type of work the plaintiff was performing at the time of injury” (*Joblon v Solow*, 91 NY2d 457, 465 [1998]).

Section 240 (1) “is to be construed as liberally as may be for the accomplishment of the purpose for which it was . . . framed” (*Nicometi v Vineyards of Fredonia, LLC*, 25 NY3d 90, 101 [2015] [internal quotation marks omitted]). However, “the statutory language must not be strained in order to encompass what the [l]egislature did not intend to include” (*Martinez v City of New York*, 93 NY2d 322, 326 [1999] [internal quotation marks omitted]; see *Blake v Neighborhood Hous. Servs. of N.Y. City*, 1 NY3d 280, 292 [2003]). The statute “should be construed with a commonsense approach to the realities of the workplace at issue” (*Nicometi*, 25 NY3d at 101 [internal quotation marks omitted]).

While we have “rejected the idea that Labor Law § 240 (1) applies only to work performed on construction sites” (*Dahar*, 18 NY3d at 525; see *Joblon*, 91 NY2d at 464), we have limited the statute’s reach when necessary to align with the statutory text and legislative intent (see e.g. *Soto v J. Crew Inc.*, 21 NY3d 562, 564, 568 [2013] [rejecting the “plaintiff’s argument that the legislature intended to cover all cleaning that occurs in a commercial setting” even though the plaintiff fell from a ladder “while dusting a . . . display shelf”]; *Abbatiello v Lancaster Studio Assoc.*, 3 NY3d 46, 53 [2004] [concluding that routine maintenance of a malfunctioning cable box is not covered under the statute even though plaintiff fell from a 20-foot ladder while working on the box]; *Martinez*, 93 NY2d at 324 [section 240 (1) did not apply when the plaintiff “was injured when he fell from a height while performing asbestos inspection work”]; *Misseritti v Mark IV Constr. Co.*, 86 NY2d 487, 489 [1995] [“the collapse of (a) fire wall” onto a worker “is . . . not an elevation-related risk subject to the safeguards prescribed by Labor Law § 240 (1)”]). Thus, contrary to the dissent’s suggestion, Labor Law § 240 (1) does not apply every time an employee is injured as “the result of an elevation differential” (dissenting op at 226). “[A]n accident alone does not establish a Labor Law § 240 (1) violation” (*Abbatiello*, 3 NY3d at 50).

We have held that work completed “during the normal manufacturing process” is not “protected under Labor Law § 240 (1)” (*Jock v Fien*, 80 NY2d 965, 968 [1992]; see *Preston v APCH, Inc.*, 34 NY3d 1136, 1137 [2020]). *Dahar* is instructive in this regard. The plaintiff there “was injured when he fell from a ladder in a factory while cleaning a product manufactured by his employer” (18 NY3d at 523). The product was a seven-foot-high wall module, which was to be transported and attached to a building at a different location. Falling from a ladder obviously was “an elevation-related risk” of the plaintiff’s employment (dissenting op at 225). Despite that elevation differential, we held that the plaintiff’s activity “was not protected by Labor Law § 240 (1)” because we had never “extend[ed] the statute to reach a factory employee engaged in cleaning a manufactured product” (*Dahar*, 18 NY3d at 523, 525).

The plaintiff in *Dahar* understood his claim differently than the dissent, arguing that he was entitled to protection under section 240 (1) because he was “cleaning” a “structure” (*compare* dissenting op at 226). Here, plaintiff similarly maintains that the trailer “was a ‘structure’ under the broad definition” that we have adopted for that term, and that he was repairing that structure (*Dahar*, 18 NY3d at 525). But “[t]he breadth of the statute’s protection has . . . been construed to be less wide than its text would indicate” (*Runner v New York Stock Exch., Inc.*, 13 NY3d 599, 603 [2009]; see *Dahar*, 18 NY3d at 526 [“we have not extended the statute’s coverage to every activity that might fit within its literal terms”]). As in *Dahar*, plaintiff’s “argument is too simple, and would lead to an expansion of section 240 (1) liability that our cases do not support and that we are convinced the [l]egislature never intended” (18 NY3d at 525). Indeed, plaintiff essentially asks us to ignore the statute’s context and, instead, focus exclusively on the definition of “structure,” one word in section 240 (1).

Employing a holistic view of the statute, we conclude that the activity in which plaintiff was engaged, ordinary vehicle repair, is not an activity covered by Labor Law § 240 (1). Such work is analogous to that of a factory worker engaged in the normal manufacturing process. Plaintiff is a mechanic who was fixing the brakes on a trailer, a “[v]ehicle” as that term is defined in Vehicle and Traffic Law § 159. Expanding the statute’s scope to cover a mechanic engaged in ordinary vehicle repair would “extend the statute . . . far beyond the purposes it was designed to serve” (*Dahar*, 18 NY3d at 526).

Further, if the statute applied in this case, car owners would be absolutely liable for gravity-related injuries that occurred when a mechanic was working on their car. This would be an enormous expansion of liability under Labor Law § 240 (1), and one that was not envisioned by the legislature. Indeed, this state's section 240 (1) jurisprudence is devoid of cases in which a mechanic recovered under the statute for an injury suffered while engaged in ordinary vehicle repair. "Such injuries can hardly be uncommon; we infer that it has been generally—and correctly—understood that the statute does not apply to them" (*Dahar*, 18 NY3d at 526). We decline to strain the statute's reach to encompass what the legislature did not intend to include.

This case involves a horrific incident that caused plaintiff grievous injuries. However, plaintiff was engaged in ordinary vehicle repair, which is not a protected activity under Labor Law § 240 (1). Accordingly, the Appellate Division order should be affirmed, with costs, and the certified question answered in the affirmative.

CANNATARO, J. (dissenting). The majority today holds that the legislature did not intend for Labor Law § 240 (1) to apply to "ordinary vehicle repair." However, this Court has previously interpreted Labor Law § 240 (1) as covering cases where a "plaintiff's injuries were the direct consequence of a failure to provide adequate protection against a risk arising from a physically significant elevation differential" (*Runner v New York Stock Exch., Inc.*, 13 NY3d 599, 603 [2009]), which I believe encompasses the work plaintiff was performing here. Because the majority has not provided any authority for its novel view that the legislature did not intend "ordinary vehicle repair" to qualify as a protected activity, I respectfully dissent.

I.

At the time of the accident, plaintiff was performing repairs on a commercial trailer.¹ The trailer was hoisted about 5½ feet off the ground by means of the bucket attachment of a front loader that plaintiff had used to access the underside of the trailer. While plaintiff was working underneath the trailer, the front loader rolled backwards releasing the trailer, which fell onto plaintiff, causing him severe injuries.

1. It is undisputed that plaintiff was not working on a car, or any type of motor vehicle when he was injured.

Labor Law § 240 (1) requires owners, contractors and their agents to provide appropriate protective equipment to workers engaged “in the erection, demolition, repairing, altering, painting, cleaning or pointing of a building or structure.” This Court has repeatedly instructed that Labor Law § 240 (1) “is to be construed as liberally as may be for the accomplishment of the purpose for which it was . . . framed” (*Narducci v Manhasset Bay Assoc.*, 96 NY2d 259, 267 [2001] [internal quotation marks and citations omitted]; *Rocovich v Consolidated Edison Co.*, 78 NY2d 509, 513 [1991]; *Koenig v Patrick Constr. Corp.*, 298 NY 313, 319 [1948]). As we have explained, the “purpose” for which Labor Law § 240 (1) was framed was to protect against the dangers of “elevation-related hazards in the workplace” (*Joblon v Solow*, 91 NY2d 457, 462 [1998]) more specifically, the “protection of persons in gaining access to or working at sites where elevation poses a risk” and protection of workers in “lifting or securing loads and materials employed in the work” (*Rocovich*, 78 NY2d at 513-514). And although we have in the past observed that the statute’s “central concern is the dangers that beset workers in the construction industry” (*Dahar v Holland Ladder & Mfg. Co.*, 18 NY3d 521, 525 [2012]) we have also repeatedly “rejected the idea that Labor Law § 240 (1) applies only to work performed on construction sites” (*id.*; *Joblon*, 91 NY2d at 466).

As the majority correctly concludes, it is not the nature of the structure, but rather the nature of the work that determines whether section 240 (1) properly applies. Indeed, in 1909, this Court held that a structure “in its broadest sense includes any production or piece of work artificially built up or composed of parts joined together in some definite manner” (*Caddy v Interborough R.T. Co.*, 195 NY 415, 420 [1909]).²

We have likewise recognized that “a violation of the statute cannot establish liability if the statute is intended to protect against a particular hazard, and a hazard of a different kind is the occasion of the injury” (*Rocovich*, 78 NY2d at 513 [internal quotation marks omitted]). In other words, simply because a worker is injured due to a lack of safety equipment while erecting, demolishing, repairing, altering, painting, cleaning, or pointing a building or structure does not necessarily invoke the protections of section 240 (1). The injury must have been

2. *Caddy* was interpreting a precursor statute to Labor Law § 240 (1) (L 1897, ch 415).

caused by a type of hazard contemplated by the statute. To determine what types of hazards are protected we look to the specific safety devices enumerated in the statute (*id.* at 513-514). For instance, “scaffolding” and “ladders” seek to protect workers who are gaining access to sites where elevation poses a risk and “hoists, blocks, braces, irons, and stays” are used to safely lift and secure loads and materials to ensure that they do not injure workers in gravity-related falls (*id.* [internal quotation marks omitted]).

We have repeatedly held that the statute is intended to protect workers engaged in employment where there is an elevation-related risk. *Rocovich*, for example, interpreted the purpose of section 240 (1) as seeking to alleviate the “significant risk inherent in [a] particular task because of the relative elevation at which the task must be performed or at which materials or loads must be positioned or secured” (*id.* at 514).

In *Narducci*, we further explained that

“Labor Law § 240 (1) applies to both falling worker and falling object cases. With respect to falling objects, Labor Law § 240 (1) applies where the falling of an object is related to a significant risk inherent in . . . the relative elevation . . . at which materials or loads must be positioned or secured. Thus, for section 240 (1) to apply, a plaintiff must show more than simply that an object fell causing injury to a worker. A plaintiff must show that the object fell, while being hoisted or secured, *because of* the absence or inadequacy of a safety device of the kind enumerated in the statute” (96 NY2d at 267-268 [internal quotation marks and citations omitted]).

Finally, in *Runner*, we held that the dispositive question in Labor Law § 240 (1) cases is “whether plaintiff’s injuries were the direct consequence of a failure to provide adequate protection against a risk arising from a physically significant elevation differential” (13 NY3d at 603).

Based on the foregoing, there is at least a question of fact in this case as to whether the protections of Labor Law § 240 (1) are available because plaintiff suffered an injury due to a “significant elevation differential” which could have been avoided by the provision of appropriate safety equipment. Both plaintiff and his expert witness opined that the incident would not have happened had plaintiff been provided with proper blocks to

secure the wheels of the front loader, and that the materials available at the worksite on the day of the accident were insufficient for that purpose. Thus, plaintiff's injury, the result of an elevation differential between him and the structure he was repairing, could potentially have been prevented through use of an enumerated piece of safety equipment specified in Labor Law § 240 (1).

II.

The majority reads between the lines of this Court's precedents to create an exception from the protections of section 240 (1) for "ordinary vehicle repair," reasoning that such activity is outside the scope of the statute's purpose. In so doing, it ignores a significant body of case law analyzing section 240 (1) developed over the past century.

Recognizing that this Court has "rejected the idea that Labor Law § 240 (1) applies only to work performed on construction sites," the majority asserts that "we have limited the statute's reach when necessary to align with the statutory text and legislative intent" (majority op at 221 [internal quotation marks omitted]). In support of this conclusion, the majority cites to cases excluding manufacturing and routine maintenance from the protections of section 240 (1) (*see e.g. Preston v APCH, Inc.*, 34 NY3d 1136, 1137 [2020]; *Soto v J. Crew Inc.*, 21 NY3d 562, 568 [2013]; *Dahar*, 18 NY3d at 526;³ *Abbatiello v Lancaster Studio Assoc.*, 3 NY3d 46, 53 [2004]; *Martinez v City of New York*, 93 NY2d 322, 326 [1999]; *Jock v Fien*, 80 NY2d 965, 968 [1992]). But those cases each dealt with injuries that "did not involve 'erection, demolition, *repairing*, altering, painting, cleaning or pointing' of a building or structure" and are thus not analogous to the case at bar (*Preston*, 34 NY3d at 1137 [emphasis added]). In contrast, this case arguably deals with a repair, which would fit squarely within the activities the statute expressly sought to protect.⁴

Furthermore, despite the majority's assertion that applying section 240 (1) here would lead to an expansion of the statute

3. Although the plaintiff in *Dahar* may have understood his claim as covered under Labor Law § 240 (1) because he was cleaning a structure, this Court found that it was more akin to manufacturing, a non-covered activity (18 NY3d at 526).

4. The Appellate Division assumed without deciding that the work done by plaintiff was a repair and not "routine maintenance" (210 AD3d 1479 [4th Dept 2022]).

beyond what the legislature intended, it does not point to any authority for its view of what the legislature actually intended, other than analogizing the repair activity at issue to “a factory worker engaged in the normal manufacturing process”—a concededly unprotected activity (majority op at 222). To get around this problem, the majority employs what it calls a “holistic view of the statute,” concluding “that the activity in which plaintiff was engaged, ordinary vehicle *repair*, is not an activity covered by Labor Law § 240 (1)” (majority op at 222 [emphasis added]). But in my view, this conclusion runs contrary to the established test that this Court has developed for determining whether an activity is protected under the statute, whether the risk inherent in the work being performed was the product of an elevation differential that could have been prevented through the use of appropriate safety equipment (*Runner*, 13 NY3d at 603). Because I think the answer to that question is yes, and because unsupported pronouncements regarding the intent of the 1921 legislature are insufficient to overcome more than a century of precedent, I respectfully dissent.

Chief Judge WILSON and Judges RIVERA, GARCIA, TROUTMAN and HALLIGAN concur. Judge CANNATARO dissents in an opinion.

Order affirmed, with costs, and certified question answered in the affirmative.

[232 NE3d 186, 208 NYS3d 508]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSHUA
MESSANO, Appellant.

Argued November 16, 2023; decided January 11, 2024

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered February 10, 2023. The Appellate Division affirmed a judgment of the Onondaga County Court (Thomas J. Miller, J.), which had convicted defendant, upon a plea of guilty, of criminal possession of a weapon in the second degree.

People v Messano, 213 AD3d 1307, reversed.

HEADNOTE**Crimes — Unlawful Search and Seizure — Reasonable Suspicion of
Drug Transaction — Plain View Doctrine**

In a criminal prosecution, a detective's observations of defendant pulling into an empty parking lot along with another vehicle, approaching and leaning into the other vehicle to talk to the driver, and looking around while using his phone, coupled with the arrival of a third vehicle driven by a person who the detective knew had been previously arrested for drug possession, did not provide reasonable suspicion that defendant was engaged in a drug transaction such that police had a lawful vantage point from which to view drug-related contraband inside defendant's car and conduct a warrantless search of the vehicle. The plain view doctrine does not legitimize a warrantless seizure of property when an officer gains the vantage point from which they view incriminating evidence by violating a constitutional prohibition against unreasonable searches and seizures. Although the detective "believed" defendant had engaged in a hand-to-hand drug transaction, he conceded that he never saw anything change hands between defendant and the other driver. Defendant's behavior, viewed in totality, was equivocal and susceptible of an innocent interpretation, and therefore could not form the basis for reasonable suspicion that he had engaged in a crime. Thus, at the time defendant was detained and the car searched, the police did not have evidence that defendant had even committed a violation of the Vehicle and Traffic Law, let alone a criminal offense. Moreover, there was no record evidence or any reasonable inference that an officer was in a position to view the contraband absent the unlawful detention of defendant, as one officer testified that it was only after defendant was detained at the back of the car that he walked towards the driver's door and looked in the window.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Searches and Seizures §§ 99–101, 247.

CARMODY-WAIT 2d Search and Seizure §§ 173:80–173:85, 173:340, 173:349.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 3.2, 3.7.

NY JUR 2d Criminal Law: Procedure §§ 277–280, 508, 512, 515.

ANNOTATION REFERENCE

See ALR Index under Criminal Law; Drugs and Narcotics; Evidence; Exclusion of Evidence; Observation; Plain View Doctrine; Search and Seizure.

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POINTS OF COUNSEL

Hiscock Legal Aid Society, Syracuse (Sara A. Goldfarb of counsel), for appellant. The evidence should have been suppressed because police unlawfully seized Joshua Messano without reasonable suspicion. (*People v De Bour*, 40 NY2d 210; *People v Moore*, 6 NY3d 496; *People v Brannon*, 16 NY3d 596; *People v Martinez*, 80 NY2d 444; *People v Forrest*, 77 AD3d 511; *People v Major*, 115 AD3d 1; *People v Ayarde*, 161 AD3d 630; *People v Loper*, 115 AD3d 875; *People v Peterson*, 266 AD2d 738; *People v Lee*, 110 AD3d 1482.)

William J. Fitzpatrick, District Attorney, Syracuse (Bradley W. Oastler of counsel), for respondent. Police had reasonable suspicion to seize defendant, despite the fact that they did not personally witness a drug transaction, where he engaged in a series of suspicious behaviors leading to a specific belief regarding his involvement in a drug transaction, and denial of suppression was therefore appropriate. (*People v Brannon*, 16 NY3d 596; *People v Cantor*, 36 NY2d 106; *People v Carney*, 58 NY2d 51; *People v Prochilo*, 41 NY2d 759; *People v Loper*, 115 AD3d 875; *People v Forrest*, 77 AD3d 511; *People v Peterson*, 266 AD2d 738; *People v Benjamin*, 51 NY2d 267; *People v Fitzpatrick*, 32 NY2d 499; *People v Turriago*, 90 NY2d 77.)

OPINION OF THE COURT

RIVERA, J.

Defendant asserts that County Court should have granted

his motion to suppress physical evidence found in his car as a direct result of defendant's unlawful seizure by police. The prosecution counters that even if the officers lacked reasonable suspicion of defendant's involvement in criminal activity, what appeared to be drug-related contraband was in plain view on the driver's seat, justifying the search of his car. We conclude that the search was unconstitutional because the prosecution failed to establish that the police had reasonable suspicion to detain defendant and failed to meet its burden of showing that the police observed the contraband in plain view.

I.

Defendant Joshua Messano was indicted on one count of second-degree criminal possession of a weapon under Penal Law § 265.03 after the police recovered a loaded handgun from the back seat of the car he was driving. Following his indictment, defendant moved to suppress the gun as the fruit of an unlawful detention and search.

During the suppression hearing, Detective Bryan Hart testified that he was patrolling a Syracuse neighborhood around 6:40 p.m. when he observed a car driving through traffic faster than the other drivers on a busy road. This car crossed the double-yellow line and pulled up to another car stopped in traffic and driven by defendant. Hart observed and overheard the two engage in a "loud conversation" and then pull into a parking lot where the businesses were closed. Hart positioned his unmarked car "approximately 50 to 75 yards" away. From there, he saw defendant exit the car he had been driving and stick his head through the other car's front passenger-side window several times while talking to that other car's driver. He further observed defendant looking around and texting on his phone. Based on his experience, Hart "believed" defendant had engaged in a hand-to-hand drug-related transaction. However, he conceded on cross-examination that he did not actually see any such transaction between defendant and the other driver.

While Hart was observing the two men, a third car arrived and that car's driver exited. Hart knew this third person by name as someone who had previously been arrested for drug possession. Hart then contacted other officers to assist in approaching defendant and the other two men. A marked patrol unit and several other detectives responded. One of the responding officers, Deputy Conor Young, approached defend-

ant, who was then seated in the driver's seat of his car. Young testified that, as he walked towards the car, defendant exited, closed the car door and began walking towards him. Upon the approach, Young frisked defendant "to make sure he had no weapons that could harm [the officer] or [his] partner," although Young acknowledged on cross-examination that defendant was not "threatening."

Young found nothing on defendant during the frisk and told him to stand at the rear of the car, where Young's partner, Deputy Dominick Albanese, was standing and "could maintain eyesight on [defendant]." Young testified that, at that point, defendant was not free to leave. Young then approached defendant's car, looked through the open driver's-side window and saw what he described as "a rolled dollar bill and white substance on the driver's side seat." Based on his training and experience, he concluded the powder was cocaine. Young told Albanese to arrest defendant, who was still standing with Albanese behind the car. Defendant was handcuffed and placed under arrest and his car immediately searched. The officers recovered a "clear baggy" of what Young believed to be narcotics in the front console and a handgun in the center armrest of the back seat. After defendant was arrested, while he was still standing behind the car, Hart conducted a "secondary search" of defendant's person and recovered \$1,200 in cash.

Following the hearing, defense counsel argued that the police lacked reasonable suspicion to restrain defendant because the officers had merely observed him engaged in innocent behavior beforehand and that the plain view doctrine did not justify the search of defendant's car. County Court denied suppression. Defendant later pleaded guilty to second-degree criminal possession of a weapon.

A divided Appellate Division affirmed (213 AD3d 1307 [4th Dept 2023]). The majority concluded that: (1) Young had reasonable suspicion of defendant's involvement in a drug transaction based on Hart's observations as communicated to him, and therefore the detention outside defendant's car was not unlawful; and (2) even if defendant had not been detained, Young could have "simply walked up to the vehicle, looked in the window, and observed the drugs in plain view on the driver's seat" (*id.* at 1308). Two Justices dissented, concluding that there was no reasonable suspicion to detain defendant based on actions that "were at all times innocuous and readily susceptible of an innocent interpretation" (*id.* at 1310 [Whalen,

P.J. & Bannister, J., dissenting] [internal quotation marks omitted]). The dissent also concluded that the officer's observation of the dollar bill and white powder on the driver's seat were not attenuated from defendant's detention at the back of the car because the latter was a continuation of the initial unlawful seizure which provided Young with an unobstructed view (*id.*).

One of the dissenting Justices granted defendant leave to appeal. We now reverse.

II.

The Fourth Amendment to the United States Constitution and article I, § 12 of the New York Constitution prohibit “unreasonable searches and seizures” (US Const Amend IV; NY Const, art I, § 12). These provisions permit the police to conduct brief investigative stops of individuals in public places that fall under “an entire rubric of police conduct . . . which historically has not been, and as a practical matter could not be, subjected to the warrant procedure” (*Terry v Ohio*, 392 US 1, 20 [1968]), but only when there is “a particularized and objective basis for suspecting the particular person stopped of criminal activity” (*Prado Navarette v California*, 572 US 393, 396-397 [2014]; *Terry*, 392 US at 21-22)—that is, “reasonable suspicion” of criminal activity based on “the totality of the circumstances” (*Navarette*, 572 US at 397 [internal quotation marks omitted]; *People v Cantor*, 36 NY2d 106, 112 [1975] [“Before a person may be stopped in a public place a police officer must have reasonable suspicion that such person is committing, has committed, or is about to commit a crime”], citing CPL 140.50). Reasonable suspicion is “that quantum of knowledge sufficient to induce an ordinarily prudent and cautious person under the circumstances to believe criminal activity is at hand” (*People v Martinez*, 80 NY2d 444, 448 [1992] [internal quotation marks and alterations omitted]). “It may not rest on equivocal or innocuous behavior that is susceptible of an innocent as well as a culpable interpretation” (*People v Brannon*, 16 NY3d 596, 602 [2011] [internal quotation marks omitted]).

Generally, as with searches, seizures of property “conducted outside the judicial process, without prior approval by judge or magistrate, are *per se* unreasonable under the Fourth Amendment—subject only to a few specifically established and well delineated exceptions” (*Minnesota v Dickerson*, 508 US 366, 372 [1993] [internal quotation marks omitted]). Among those

“‘established’ ” exceptions is “‘that under certain circumstances the police may seize evidence in plain view without a warrant’ ” (*Arizona v Hicks*, 480 US 321, 326 [1987] [emphasis omitted], quoting *Coolidge v New Hampshire*, 403 US 443, 465 [1971 plurality]). Under this “plain view doctrine, . . . law enforcement officers may properly seize an item in ‘plain view’ without a warrant if,” in pertinent part, “they are lawfully in a position to observe the item” (*People v Brown*, 96 NY2d 80, 88-89 [2001]).¹

“[T]he fundamental justification for the plain view doctrine is that when the police are already lawfully in a position to make the observation, the discovery and seizure of contraband in plain view involve no intrusion on the individual’s constitutional rights beyond that already authorized by the warrant or some exception to the warrant requirement” (*People v Diaz*, 81 NY2d 106, 111 [1993], *abrogated on other grounds by Dickerson*, 508 US 366).

In other words, the police may seize incriminating evidence “if they had the right to be where they were when they saw it” (*Brown*, 96 NY2d at 88). That justification is absent—and the doctrine therefore does not legitimize a warrantless seizure of property—when an officer gains the vantage point from which they view incriminating evidence by violating a constitutional prohibition against unreasonable searches and seizures (*see Horton v California*, 496 US 128, 136 [1990] [“It is, of course, an essential predicate to any valid warrantless seizure of incriminating evidence that the officer did not violate the Fourth Amendment in arriving at the place from which the evidence could be plainly viewed”]; *Brown*, 96 NY2d at 89 [“The constitutionality of a plain view seizure ‘must turn on the legality of the intrusion that enables (police) to perceive and physically seize the property in question’ ”], quoting *Texas v Brown*, 460 US 730, 737 [1983]).

When a defendant moves to suppress evidence seized by the police, the prosecution initially bears “the burden of going forward to show the legality of the police conduct in the first instance” (*People v Berrios*, 28 NY2d 361, 367 [1971] [internal quotation marks, emphasis and citation omitted]). Moreover,

1. An officer also must “have lawful access to the item itself when they seize it[,] and . . . the incriminating character of the item [must be] immediately apparent” (*Brown*, 96 NY2d at 89).

since all seizures “presumptively are unreasonable per se, . . . where a warrant has not been obtained,” the prosecution has “the burden of overcoming this presumption of unreasonableness” (see *People v Jimenez*, 22 NY3d 717, 721 [2014] [internal quotation marks and alterations omitted]). Here then, the prosecution had “the burden of demonstrating the legitimacy of the plain view seizure” (*Brown*, 96 NY2d at 90 n 6).

III.

Applying this established law to the record on this appeal, we conclude that Hart’s observations—relayed to the other officers, including Officer Young—did not provide the police with reasonable suspicion that defendant was engaged in a drug transaction. Furthermore, Young was not justified in detaining defendant at the back of his car and there is absolutely no record support for a determination that the dollar bill and white powder were in plain view. Lacking both reasonable suspicion of a drug transaction and a lawful vantage point from which Young could observe the items on the driver’s seat, the police had no justification for the warrantless search of the vehicle.

According to Hart’s testimony at the suppression hearing, on a summer day during daylight hours, Hart observed two men in their respective cars meet on the road, talk to each other through their car windows loudly over the traffic, then pull into an empty parking lot where defendant went over to the other car, put his head through the closest open window, and continued their conversation. Defendant also stood up, looked around, and used his phone. Crucially, although Hart “believed” defendant had engaged in a hand-to-hand drug transaction, he conceded that he never saw anything change hands between defendant and the other driver. Furthermore, no other record evidence or reasonable inferences to be drawn therefrom supported Hart’s belief, as Hart testified that he made his observations from 50-75 yards away. Defendant’s behavior, viewed in totality, was equivocal and susceptible of an innocent interpretation, and therefore could not form the basis for reasonable suspicion that he had engaged in a crime (see *Brannon*, 16 NY3d at 602).

Moreover, the arrival of the third driver who had previously been apprehended for drug possession could not provide reasonable suspicion because police did not observe defendant engage in a transaction with the third driver. “Guilt by association . . . has no place in our jurisprudence” (*Matter of*

Dorothy D., 49 NY2d 212, 216 [1980]; *Joint Anti-Fascist Refugee Comm. v McGrath*, 341 US 123, 178 [1951, Douglas, J., concurring] [referring to “guilt by association” as “one of the most odious institutions of history”]), including our search and seizure jurisprudence (see *Sibron v New York*, 392 US 40, 62 [1968] [“The inference that persons who talk to narcotics addicts are engaged in the criminal traffic in narcotics is simply not the sort of reasonable inference required to support an intrusion by the police upon an individual’s personal security”]; cf. *People v Johnson*, 64 NY2d 617, 618-619 [1984] [“(A) stop based on no more than that a suspect has previously been arrested for burglary and that there have been burglaries in the area is premature and unlawful”]).² Thus, at the time defendant was detained and the car searched, the police did not have evidence that defendant had even committed a violation of the Vehicle and Traffic Law, let alone a criminal offense (see *Navarrette*, 572 US at 397; *Cantor*, 36 NY2d at 112). Therefore, as a matter of law, the officers’ observations could not form the “minimum showing necessary to establish” a reasonable suspicion that defendant had committed or was about to commit a crime (*People v McRay*, 51 NY2d 594, 601 [1980]; see also *People v Johnson*, 40 NY3d 172, 175-176 [2023]).

That leaves only the prosecution’s contention that even if, as we conclude, the detention of defendant at the back of the car was not lawful, the contraband on the driver’s seat was nevertheless in plain view, thereby justifying the subsequent vehicular search. This claim is without merit. At the suppression hearing, Young did not testify that he could see what was on the car seat from his vantage point as defendant approached him or during the frisk. Therefore, there is no record evidence or any reasonable inference that Young was in a position to view the contraband absent the unlawful detention of defendant (see *McRay*, 51 NY2d at 601; *Brown*, 96 NY2d at 90 n 6).

Young testified that it was only after defendant was detained at the back of the car that Young walked towards the driver’s door and looked in the window. The only reasonable inference

2. The dissent bemoans our references and supposed “attempt to analogize this case” to *Dorothy D.* (49 NY2d at 216) and *McGrath* (341 US 178) as evidence of our “disconnect from the record in this case” (dissenting op at 241-242). In doing so, the dissent confuses the concept of analogy with our simple application of a broad legal principle universally embraced in free societies and embedded in our precedents—an application which *Sibron* (392 US at 62) tells us is proper when evaluating the constitutionality of an individual’s encounter with the police.

to be drawn from this testimony is that Young could see what was on the seat only by approaching the car door and looking in at the driver's seat. Indeed, Young's actions confirm this reading of the record because if it were otherwise Young would have ordered defendant's arrest after the frisk and before telling him to move.³ Thus, the prosecution's assertion that the officer was justified in detaining defendant at the back of the car—allowing Young to easily view the driver's seat—is unsupported by the record. By Young's own account, when he ordered defendant to stand at the back of the vehicle, there was no evidence of a drug transaction—as he recovered none during the frisk—or any basis to fear defendant, who Young admitted was not threatening and was compliant with the officer's commands.⁴

The Appellate Division reasoned that, even if Young had not detained defendant, he could have observed the contraband in plain view simply by walking up to the driver's seat and looking into the vehicle (*see* 213 AD3d at 1308). However, this conclusion is unsupported because, had the officers not unlawfully detained defendant behind the car, defendant could have walked back, opened the car door and sat on the driver's seat—actions that, contrary to the dissent's unsupported assertions (*see* dissenting op at 243-244), would have blocked Young's view of the contraband.⁵ Therefore, the prosecution failed to meet its burden to establish at the suppression hearing that

3. The dissent ignores that, because the government failed to meet its burden, the record here is insufficient to establish reasonable suspicion for the detention (dissenting op at 239, 243-244). The prosecution also failed to meet its burden of establishing the propriety of this presumptively-invalid vehicular search on plain-view grounds (*see Brown*, 96 NY2d at 90 n 6). While the dissent acknowledges this burden (*see* dissenting op at 239), the dissent fails to give it proper consideration, as required by our precedents (*see Jimenez*, 22 NY3d at 721).

4. We have no occasion to opine on the legality of Young's frisk of defendant since it is irrelevant to whether the motion to suppress should have been granted. Moreover, the fact that Hart recovered cash from defendant post-arrest is irrelevant to the legality of this detention and the vehicle search because this discovery cannot retroactively legitimize an intrusion "that was not justified at its inception" (*People v Moore*, 6 NY3d 496, 498 [2006]).

5. The dissent disagrees with our plain-view analysis and draws on *United States v Class* (883 F3d 734, 738 [8th Cir 2018]) for support (*see* dissenting op at 244). However, *Class* was a federal case that applied a different standard of review and involved a different burden allocation (*id.* at 738-739; *see also Ornelas v United States*, 517 US 690, 699 [1996]).

The core questions before us on defendant's appeal are whether, under New York precedent, as a matter of law, the officers' observations constituted

(n. cont'd)

the unlawful detention of defendant was not the reason that Young had an “unobstructed view of the driver’s seat” (213 AD3d at 1310 [Whalen, P.J. & Bannister, J., dissenting]).

IV.

For the reasons we discuss, the prosecution failed to carry its burden of overcoming the presumptive unreasonableness of the warrantless vehicular search (*Jimenez*, 22 NY3d at 721), including “demonstrating the legitimacy of the plain view seizure” (*Brown*, 96 NY2d at 90 n 6). Accordingly, the Appellate Division order should be reversed, defendant’s motion to suppress physical evidence granted and the indictment dismissed.

GARCIA, J. (dissenting). A police officer saw drugs in plain view on the seat of defendant’s car, arrested him, and searched the vehicle. A loaded gun was recovered. The record supports the holdings by the lower courts that the officer, after receiving a report that defendant was engaged in a drug deal, had the reasonable suspicion necessary to briefly detain defendant by his car and that even if he did not, the drugs were in plain view. Defendant’s conviction for unlawful possession of a loaded gun should therefore be affirmed by application of our well-established standard for reviewing mixed questions of law and fact. But instead of looking to the ample record support for the lower courts’ determinations the majority does the opposite, substituting its own view of the facts and drawing negative inferences from the record in order to reverse that conviction as a “matter of law.” That error has consequences for the community, leading to suppression of the “physical evidence” (majority op at 237)—namely a loaded gun—and dismissal of the indictment. I dissent.

I.

The scene leading up to the seizure of the gun from defendant’s car is not as antiseptic as portrayed by the majority. Detective Bryan Hart observed a Mercedes “driving erratically” through heavy traffic, and crossing a double solid line

the “minimum showing necessary to establish” reasonable suspicion (*McRay*, 51 NY2d at 601), and whether the prosecution met its burden to establish a lawful vantage point from which the police could engage in a plain-view seizure (*Brown*, 96 NY2d at 90 n 6). As we have thoroughly discussed, application of these proper standards compels a conclusion that the motion to suppress should have been granted.

(or, as the majority would have it, “driving through traffic faster than the other drivers on a busy road” [majority op at 230]). That car pulled up to the car driven by defendant and Hart saw the drivers of the two vehicles have a shouted conversation before both turned into the parking lot of a closed business.

As Hart continued to watch the two men, he observed motions that he believed to be a hand-to-hand drug transaction. He saw defendant step out of his car, insert his head through the window of the other car, and have a conversation with the other driver. During this interaction, defendant alternated between texting on his phone, looking around, and talking to the other driver. Though Hart answered in the affirmative when asked on cross-examination whether he did not “actually see” a hand-to-hand drug transaction, he testified that, based on his years of experience, including surveilling hundreds of such transactions, the interaction he observed “had the characteristics of a hand to hand drug transaction.” When asked what these characteristics were, he responded, “*reaching in and out of a vehicle*, one person staying in the vehicle in order to stay within concealment, the other person being outside of the vehicle, *reaching in, hand to hand movements*” (emphasis added). He also noted “[t]he nervousness of a person watching what’s going on around them.”

After watching this interaction in the otherwise deserted parking lot, Hart continued surveillance and a third car arrived in the parking lot. That third driver got out and went over to meet defendant and the other driver. Hart “immediately identified” the driver of the third car by name as someone who he knew had previously been arrested for drug possession. At that point, Hart relayed his observations to other officers and requested assistance, and four officers, including Deputies Young and Albanese, responded. Young testified that when he arrived at the parking lot, he saw three cars and three individuals. Defendant was sitting in the driver’s seat of his car with the door open and the other two men were standing outside defendant’s car.

As Young approached the three men, defendant got out of his car, closed the door, and walked toward him. At that point, Young performed a pat frisk which he testified was for “officer safety” and which yielded no weapons. Young then directed defendant to stand at the rear of the car. He acknowledged during cross-examination that at this point defendant was not free

to leave. Next, Young “looked at the driver’s side, the window was completely down, and observed a rolled dollar bill and white substance on the driver’s side seat.” He testified that, based on his experience, the substance appeared to be cocaine. At this point, Albanese placed defendant under arrest and Albanese and Young searched the vehicle. They discovered drugs and a loaded handgun in the car.

Both the suppression court and the Appellate Division upheld the seizure, each court finding that Young had the requisite reasonable suspicion that defendant was involved in a drug deal and that, in any event, the drugs were in plain view on the car seat (213 AD3d 1307, 1308 [4th Dept 2023]).

II.

We have made clear that lower court determinations of reasonable suspicion and plain view present mixed questions of law and fact beyond our review and that this “rule applies ‘where the facts are disputed, where credibility is at issue *or where reasonable minds may differ as to the inference to be drawn*’ ” (*People v Harrison*, 57 NY2d 470, 477 [1982], quoting *People v McRay*, 51 NY2d 594, 601 [1980] [emphasis added]; see *People v McLaren*, 62 NY2d 730, 731 [1984] [plain view determination involves a mixed question of law and fact which is not subject to further review by this Court when supported by evidence in the record]).

Instead of applying this well-established standard, the majority repeatedly emphasizes that it is the People’s initial burden to come forward with evidence showing the legality of the police conduct (see majority op at 230, 233, 236 n 3, 236-237). But while the People have that burden (see *People v Brown*, 96 NY2d 80, 90 n 6 [2001]), at this stage of the process they are entitled to every reasonable inference from the record in support of the lower courts’ findings that they met that burden. This Court does not act as another suppression court, marshaling and weighing the evidence to determine if the People met their burden of proof. Rather, the only question for us is whether the lower courts’ conclusion that they did meet that burden is supported by the record, affording the prevailing party all reasonable inferences. Here, the record amply supports both holdings and we should affirm.

III.

Application of the correct standard demonstrates that there is record support for the lower courts’ conclusion that Young

had reasonable suspicion to justify the brief detention of defendant. We have defined the “[r]easonable suspicion” required for a level three detention as “the quantum of knowledge sufficient to induce an ordinarily prudent and cautious man under the circumstances to believe criminal activity is at hand” (see *People v Cantor*, 36 NY2d 106, 112-113 [1975]; see also *People v Brannon*, 16 NY3d 596, 601-602 [2011]). “Reasonable suspicion” to detain—not the “probable cause” needed to arrest—was required here.

While correctly quoting from *Brannon* for the proposition that reasonable suspicion “may not rest on equivocal or innocuous behavior” (majority op at 232, quoting *Brannon*, 16 NY3d at 602), the majority omits the sentence that immediately follows: “A stop based on reasonable suspicion will be upheld so long as the intruding officer can point to ‘specific and articulable facts which, along with any logical deductions, reasonably prompted th[e] intrusion’ ” (*Brannon*, 16 NY3d at 602, quoting *Cantor*, 36 NY2d at 113). Crucially, the concept articulated in the missing sentence from the majority’s *Brannon* quote is also missing from the majority’s analysis. Only after the proper standard for reviewing the record has been applied will this Court consider whether, as a matter of law, that record supports the minimum showing necessary to establish the relevant standard (see e.g. *Harrison*, 57 NY2d at 477-478). By ignoring any reasonable inferences that do not benefit defendant, and drawing contrary inferences that do, the majority recasts a mixed question of law and fact as the “purely legal question” of whether the minimum showing was made and thereby evades our well-established standard of review and overturns the rulings of the lower courts (see *People v Sivertson*, 29 NY3d 1006, 1007 [2017] [dissent “unduly emphasizes the testimony and resulting inferences that are favorable to defendant” in a mixed question case]).

A proper focus on the record—along with the reasonable inferences derived therefrom—demonstrates that Hart’s testimony about what he did observe provided record support for the lower courts’ finding of the requisite level of suspicion here. All of the circumstances—the erratic driving, the shouted conversation between the occupants of the two cars, both cars pulling into the parking lot of a deserted business, the interaction between defendant and the other driver that had, in this experienced officer’s view, the hallmarks of a drug transaction, and the arrival of a third driver with a known prior drug ar-

rest in the otherwise empty lot—add up, with all proper inferences granted, to record support for a finding of reasonable suspicion.

The majority takes a different approach. Rather than look to the entire record and draw any reasonable inferences in support of the lower courts' holdings (*see People v Benjamin*, 51 NY2d 267, 271 [1980] [looking to the totality of circumstances including information relayed in a radio call and observations at the scene in assessing reasonable suspicion]), the majority attempts to individually catalogue each action and deem each one “not enough.” For example, it is undisputed that the arrival of the third driver with a record of drug arrests could not, standing alone, provide the requisite level of suspicion. But of course, Hart did not premise his suspicion solely on defendant's association with a known drug offender, despite the majority's attempt to analogize this case to *Joint Anti-Fascist Refugee Comm. v McGrath* (majority op at 234-235, citing 341 US 123, 178 [1951, Douglas, J., concurring]), a true “guilt by association” case involving membership in a group labeled “subversive” by the United States government. Similarly, a person with a known history of narcotics arrests arriving at the scene where the officer believed a hand-to-hand drug transaction had just taken place and engaging with the other participants is in no way analogous to a refusal by a judge to expunge a baseless complaint filed out of spite against a juvenile solely because the judge concluded that the juvenile's sibling had a prior arrest (*see* majority op at 234-235, citing *Matter of Dorothy D.*, 49 NY2d 212, 216 [1980]). Nor do the facts here compare with “[a] stop based on no more than that a suspect has previously been arrested for burglary and that there have been burglaries in the area” (*see* majority op at 235, quoting *People v Johnson*, 64 NY2d 617, 619 [1984]).

Certainly any “broad legal principle universally embraced in free societies” (majority op at 235 n 2) must be respected, but when invoked by a court it must also be relevant. Or, as *Sibron v New York* (392 US 40 [1968]), also cited by the majority for the “universally embraced” principle (majority op at 235 n 2), teaches: “[t]he constitutional validity of a warrantless search is pre-eminently the sort of question which can only be decided in the concrete factual context of the individual case” (392 US at 59, 62 [officer “merely saw (defendant) talking to a number of known narcotics addicts over a period of eight hours”] [emphasis added]). Rather than providing legal support, the citations

to those “guilt by association” cases are further evidence of the majority’s disconnect from the record in this case.¹

Similarly, the majority relies on the fact that Young recovered “no evidence of a drug transaction” during the frisk (majority op at 236) to negate the reasonable suspicion already established by Hart’s observations. The People never argued that reasonable suspicion developed after the pat down search. The majority appears to wrongly equate Young’s testimony that he recovered no weapon in that search with the conclusion that “[b]y [his] own account, when he ordered defendant to stand at the back of the vehicle, there was no evidence of a drug transaction” (see majority op at 236), conflating the justification for the pat search with the justification for the subsequent detention. Young conducted the pat frisk for officer safety, not to investigate a possible drug transaction. During the suppression hearing, Young was asked: “[Y]ou didn’t find anything worrisome [during the pat search]” and he was careful to respond: “I did not identify anything that would indicate that [defendant] had *a weapon* on him” (emphasis added). The pat search would not have necessarily revealed the presence or absence of drugs on defendant’s person.² Nor did the fact that police did not find drugs or money on defendant when they frisked him rule out the possibility that the evidence remained in defendant’s car when he left it to approach the officer. Hart’s observations prior to the pat down search were sufficient evidence in the record to support the finding of reasonable suspicion necessary for the brief detention, regardless of the results of that search. In sum, the record, and the inferences drawn from the established facts, provide support for the lower courts’ conclusion that Young had reasonable suspicion to briefly detain defendant.

1. It is unclear what the majority means by asserting that the “association” proof fails only “because police did not observe defendant engage in a transaction with the third driver” (majority op at 234). If the majority means observing a drug transaction between the two, that observation would provide officers with probable cause and that standard is not relevant here. If the majority means observing them “interact,” there is ample proof in the record that the third driver interacted with the other two individuals present in the otherwise empty parking lot. If the majority means observing them interact in a way that suggests a drug transaction, that is exactly what the officer observed between the defendant and the other driver.

2. After his arrest, the police recovered approximately \$1,200 from the defendant, further supporting the officer’s testimony that the search was indeed done in a manner only to address officer safety and not to uncover evidence of a drug transaction.

IV.

However, even if Young's detention of defendant had been unreasonable, Young nevertheless legally searched the car after he saw the drugs in plain view on the driver's seat. Police "may properly seize an item in 'plain view' without a warrant if (i) they are lawfully in a position to observe the item; (ii) they have lawful access to the item itself when they seize it; and (iii) the incriminating character of the item is immediately apparent" (*People v Brown*, 96 NY2d 80, 89 [2001], citing *People v Diaz*, 81 NY2d 106, 110 [1993]; *Horton v California*, 496 US 128, 136-137 [1990]). Only the first requirement is at issue here. When the proper deferential standard of review is applied (see *People v Beriguet*, 84 NY2d 978, 980 [1994]), the record supports the conclusion that Young was lawfully in a position where he could plainly see the drugs even absent the allegedly unlawful detention.

Defendant voluntarily got out of the car to approach the officer. Young and defendant were necessarily about the same distance from the car at the time of the frisk. After the frisk, Young told defendant to wait at the back of the car as he approached the driver's side door. The fair inference is that this all happened quickly: first the frisk and then Young walking ahead of defendant back to the driver's side window while telling defendant to stay by the back of the car.

Rather than engage with this rapidly developing scene, the majority concludes, in a few sentences, that there is "no record evidence or any reasonable inference that Young was in a position to view the contraband absent the unlawful detention of defendant" (majority op at 235). The majority reaches this conclusion for three reasons: (1) "Young could see what was on the seat only by approaching the car door and looking in at the driver's seat"; (2) the "prosecution's assertion that the officer was justified in detaining defendant at the back of the car—allowing Young to easily view the driver's seat—is unsupported by the record"; and (3) "had the officers not unlawfully detained defendant behind the car, defendant could have walked back, opened the car door and sat on the driver's seat" (majority op at 235-236).

The first two points are entirely irrelevant to the plain view analysis. The majority's first point is uncontested: no one argued below that the officers could see the contraband at any point before Young approached the door of the vehicle. The ma-

jority's second point goes to reasonable suspicion to detain the defendant, but at this stage of the analysis, the unlawfulness of that detention is assumed. Instead, the only relevant issue is whether, despite that detention, Young was in a lawful position to observe the contraband (see *State v Graham*, 200 Conn 9, 20, 509 A2d 493, 499 [1985] ["The plain view 'search' of the car was wholly unconnected with the arrest other than by the fact that it occurred shortly thereafter"]).

The majority nevertheless concludes that but for the detention, Young would not have been in a position to see the drugs on the seat, speculating that had defendant not been detained, he could have rushed back to his car ahead of the officer, jumped into the driver's seat, and concealed the drugs with his body (majority op at 236). That supposition defies not only our standard of review, but common sense as well. Any attempt by defendant to sprint back to the car ahead of Young "would likely have aroused the officers' suspicion" further (see *United States v Class*, 883 F3d 734, 738 [8th Cir 2018] [plain view seizure of drugs from engine compartment was not causally related to prior unlawful detention and rejecting as "unlikely speculation" the argument that defendant could have abruptly closed the hood without raising suspicion]). Moreover, opening the car door in front of the officer in order to get back in would have made the view of the drugs plainer still.

Instead of affording the People all reasonable inferences in looking for record support for the holdings of the two lower courts, the majority reweighs the hearing testimony, and based on negative inferences and speculation, holds that the People did not meet their burden of proof. The majority's holding is unmoored to our standard of review and ignores the circumstances confronting the officers in that deserted parking lot. Public safety will suffer (see *People v DeBellis*, 40 NY3d 431 [2023] [reversing conviction because defense lawyer failed to request instruction that defendant was on his way to turn his gun in to police even though defendant repeatedly lied to police about having a gun]).

Chief Judge WILSON and Judges TROUTMAN and HALLIGAN concur. Judge GARCIA dissents and votes to affirm in an opinion, in which Judges SINGAS and CANNATARO concur.

Order reversed, defendant's motion to suppress physical evidence granted and indictment dismissed.

[232 NE3d 738, 208 NYS3d 857]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS
P. PERDUE, Appellant.

Argued March 16, 2023; reargued November 14, 2023; decided December 14, 2023

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 11, 2022. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Thomas E. Moran, J.), which had convicted defendant, upon a jury verdict, of assault in the second degree and criminal possession of a weapon in the second degree (two counts).

People v Perdue, 203 AD3d 1638, affirmed.

HEADNOTES

Crimes — Identification of Defendant — First-Time In-Court Identification — Meaningful Opportunity to Request Protective Measures

1. To counteract the heightened risk of eyewitness misidentification in the first-time, in-court identification context, criminal defendants should be afforded a meaningful opportunity to request additional procedures that would demonstrate the reliability of a subsequent in-court identification or reduce the suggestiveness of the in-court identification procedure itself. The ability of the defendant to meaningfully request protective measures is dependent on the defendant's awareness that the witness may make a first-time, in-court identification. Accordingly, when the People may ask a witness to make a first-time, in-court identification, they must ensure that the defendant is aware of that possibility as early as practicable. The court's obligation to take any action regarding a first-time, in-court identification is dependent upon a timely request made by the defendant.

Crimes — Identification of Defendant — First-Time In-Court Identification

2. In a criminal prosecution, Supreme Court did not abuse its discretion as a matter of law in denying defendant's request to preclude an eyewitness's first-time, in-court identification of defendant even though the People did not specifically notify defendant that the witness might be called to identify him, where defendant was aware from pretrial discovery that the witness might make a first-time, in-court identification, the witness's testimony and pretrial statements established the reliability of her identification, and the lack of formal notice did not significantly prejudice defendant. The body-camera footage and the 911 call, together with the People's witness list, which included the witness, alerted defendant that the witness would likely make a first-time, in-court identification. Moreover, defendant did not request any alternative identification procedures before the witness testified. During her trial testimony, which took place only five months after the shooting and mir-

rored her previous description of the shooter on the 911 call, the witness established her ability to observe the shooting and view the shooter. The victim, who had met defendant prior to the shooting, also identified defendant as the shooter and confirmed that he and defendant appeared on the surveillance video. Defendant could be seen on the video not only wearing the precise clothing that the witness had described, but also holding what was clearly a gun. Though the People were not aware of any duty to provide notice, that did not appear to have significantly prejudiced defendant, given that he was provided with the witness's unequivocal statements that she could identify the perpetrator.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Evidence §§ 1353, 1355.

CARMODY-WAIT 2d Pretrial Notice § 188:52; CARMODY-WAIT 2d Particular Types of Evidence § 194:219.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 7.4, 7.5.

NY JUR 2d Criminal Law: Procedure §§ 1811–1813, 2103.

ANNOTATION REFERENCE

See ALR Index under Description and Identification.

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POINTS OF COUNSEL

Mark D. Funk, Monroe County Conflict Defender, Rochester (Carolyn Walther and Kathleen P. Reardon of counsel), for appellant. I. The first-time in-court identification was unduly suggestive, violated Thomas Perdue's due process rights and should not have been admissible. (*Stovall v Denno*, 388 US 293; *People v Duuvon*, 77 NY2d 541; *People v Ross*, 288 AD2d 138; *People v Jackson*, 167 AD2d 420; *People v Anderson*, 118 AD3d 1138; *People v Madison*, 8 AD3d 956; *Manson v Brathwaite*, 432 US 98; *Neil v Biggers*, 409 US 188; *People v Adams*, 53 NY2d 241; *People v Blake*, 35 NY2d 331.) II. The trial judge wrongfully determined that defense counsel opened the door, and abused his discretion by allowing the prosecutor to conduct a second direct examination of her witness to fill in the gaps she failed to address in her first examination. (*People v Melendez*, 55 NY2d 445; *People v Sylvester*, 188 AD3d 1723; *People v Odums*, 121 AD3d 1503; *People v Crimmins*, 36 NY2d 230.)

Sandra Doorley, District Attorney, Rochester (Martin P. McCarthy and Kaylan C. Porter of counsel), for respondent. I. The trial court properly permitted an eyewitness to identify defendant as the perpetrator before the jury. (*Perry v New Hampshire*, 565 US 228; *People v Marte*, 12 NY3d 583; *Moore v Illinois*, 434 US 220; *Simmons v United States*, 390 US 377; *People v Pacquette*, 25 NY3d 575; *United States v Wade*, 388 US 218; *People v White*, 73 NY2d 468; *People v Adams*, 53 NY2d 241; *Manson v Brathwaite*, 432 US 98; *Neil v Biggers*, 409 US 188.) II. After defendant's cross-examination created a misimpression that his identification was the result of an incomplete investigation, the trial court properly allowed the People to rebut the inference on redirect. (*People v Melendez*, 55 NY2d 445; *People v Regina*, 19 NY2d 65; *People v Holley*, 26 NY3d 514; *People v Brown*, 262 AD2d 570, 95 NY2d 776; *People v Mateo*, 2 NY3d 383; *People v Rojas*, 97 NY2d 32; *People v Ochoa*, 14 NY3d 180; *People v Gumbs*, 195 AD3d 450, 37 NY3d 992; *People v Morris*, 21 NY3d 588; *People v Alim*, 204 AD3d 1418.)

OPINION OF THE COURT

SINGAS, J.

"The importance of identification evidence is, of course, self-evident" (*People v Riley*, 70 NY2d 523, 530 [1987]). In every trial, the People bear the burden of proving beyond a reasonable doubt that the defendant is the person who committed the charged crime. But because identification evidence may bear certain "weaknesses and dangers," this Court has implemented "constitutional, statutory[,] and decisional safeguards" to ensure the reliability of this "most potent evidence" (*id.* at 530, 531).

On this appeal, we are asked whether a witness was properly allowed to identify defendant Thomas Perdue as the perpetrator for the first time in court, without having been subjected to any pretrial identification procedure. We hold that, when the People call a witness who may make a first-time, in-court identification, they must ensure that the defendant is aware of that possibility as early as practicable so that the defendant has a meaningful opportunity to request alternative identification procedures. If the defendant explicitly requests such procedures, a trial court may exercise its discretion to fashion any measures necessary to reduce the risk of misidentification. The ultimate determination of whether to admit a first-time, in-court identification, like any evidence, rests within the evi-

dentiary gatekeeping discretion of the trial court. The court must balance the probative value of the identification against the dangers of misidentification and other prejudice to the defendant.

Here, defendant was aware from pretrial discovery that the witness might make a first-time, in-court identification but sought only preclusion of the identification. Because the witness's testimony and pretrial statements established the reliability of her first-time, in-court identification, and the lack of formal notice did not significantly prejudice defendant, the trial court did not abuse its discretion in denying defendant's request to preclude it. We therefore affirm.

I.

In 2017, defendant shot the victim in the leg during a house party. A neighbor, the witness at issue in this case, called 911 to report the shooting. On the call, the witness described the shooter as a Black, skinny, dark-skinned man, wearing a white baseball cap, gray pants, and white sneakers. After law enforcement responded to the scene, the witness told officers that she could identify the shooter if necessary. Her statements to police were captured on video recorded by an officer's body camera, which was provided to defendant before trial. No pretrial identification procedure was conducted with this witness.

At trial, the victim testified and identified defendant as the person who shot him. The witness subsequently testified that, on the night of the shooting, there was a light on the front porch that illuminated the front of the house where the shooting took place. She stated that she saw the shooter standing right outside the house, "right there by the grass, right there by the walkway, in my plain view sight, out of my window." She further testified that the shooter was a dark-skinned Black man, approximately six feet tall, with a mustache and a goatee, and was wearing gray jeans, white sneakers, and a white cap. The People asked whether the witness "would . . . recognize" the individual if she saw him again and the witness answered, "Of course."

Defendant objected, protesting that the witness did not participate in a pretrial identification procedure. Defendant asked the court to preclude the witness's first-time, in-court identification, arguing that the identification procedure was suggestive because there was only one person sitting in the courtroom who could possibly be the suspect. The court ruled that "if [the

witness] can ID [defendant] in court, she can ID him in court” and that defendant could challenge the identification on cross-examination. The witness then identified defendant as the shooter. She also pointed out the shooter and the victim in surveillance video. On cross-examination, the witness testified that she had never seen the shooter before the night of the shooting and that, despite speaking to the police and to the prosecutor, she was never asked to identify defendant prior to trial. During his closing argument, defendant vigorously attacked the in-court identification.

The jury convicted defendant of all charges and the Appellate Division affirmed the judgment (*see* 203 AD3d 1638 [4th Dept 2022]). A Judge of this Court granted defendant leave to appeal (*see* 38 NY3d 1073 [2022]).

II.

This Court has recognized the very real danger of wrongful convictions presented by mistaken eyewitness identification and has taken steps to protect criminal defendants from such miscarriages of justice (*see People v Boone*, 30 NY3d 521 [2017]; *People v Marshall*, 26 NY3d 495 [2015]; *People v Santiago*, 17 NY3d 661, 669 [2011]; *see also Riley*, 70 NY2d at 530-531). Most of this Court’s rules “imposing constitutional limits on identification procedures . . . involve[] suggestiveness originating with law enforcement officers” (*People v Marte*, 12 NY3d 583, 586 [2009], citing *People v Adams*, 53 NY2d 241, 251 [1981]). The concern is that suggestive pretrial identification procedures arranged by law enforcement will influence and taint the witness’s subsequent in-court identification of the defendant, resulting in possible misidentification (*see Riley*, 70 NY2d at 530-531). To address that concern, this Court has generally precluded in-court identifications made following an unduly suggestive pretrial identification procedure, allowing a witness to make an in-court identification only if the People can demonstrate an independent source for the witness’s identification that was not influenced by the suggestive pretrial procedure (*id.* at 531-532; *Adams*, 53 NY2d at 251).¹ We have also recognized the possibility that trial courts might need to take protective procedures when the suggestiveness of

1. When considering whether an independent source exists, we have focused on independent indicia of the identification’s reliability (*see People v Brisco*, 99 NY2d 596, 597 [2003]; *People v Williams*, 85 NY2d 868, 869 [1995]; *see also Neil v Biggers*, 409 US 188, 199-200 [1972]).

a pretrial procedure does not originate with law enforcement (see *Marshall*, 26 NY3d at 498; see also *Marte*, 12 NY3d at 589-590).

Concerning identifications made at trial, this Court and many others have recognized the inherent suggestiveness of the traditional in-court identification procedure, with a single defendant sitting at a table with defense counsel (see e.g. *Perry v New Hampshire*, 565 US 228, 244 [2012]; *People v White*, 73 NY2d 468, 474-475 [1989]; *United States v Archibald*, 734 F2d 938, 941-942 [2d Cir 1984], *mod* 756 F2d 223 [2d Cir 1984]; *People v James*, 100 AD2d 552, 553 [2d Dept 1984]; *People v Huggler*, 50 AD2d 471, 474 [3d Dept 1976]). As with an unduly suggestive pretrial identification, it will often be immediately clear to the witness who the accused defendant is, especially if the witness has a rudimentary knowledge of courtroom seating arrangements. The principal danger is that, faced with the pressures of testifying at trial, the witness will identify the defendant as the perpetrator simply because the defendant is sitting in the appropriate spot, and not because the witness recognizes the defendant as the same person that they observed during the crime. Inasmuch as the traditional courtroom seating arrangement may itself suggest to the witness who should be identified, trial courts must be vigilant to ensure that where a witness has not previously identified the defendant in a properly conducted pretrial identification procedure such as a photo array or lineup, the suggestiveness of a first-time, in-court identification procedure does not create an unreasonable danger of a mistaken identification.

[1] That defense counsel may cross-examine a witness on the suggestiveness of a first-time, in-court identification, or make such arguments to the jury, does not render an in-court identification less suggestive and does not always eliminate the risk that a jury may credit a tainted identification. We have recognized that “[a]n eyewitness is often utterly confident about an identification, expressing the identification or recollection of identification with subjective certainty, and hence entirely unshakable on cross-examination” (*Boone*, 30 NY3d at 531). Thus, to counteract the heightened risk of misidentification in the first-time, in-court identification context, defendants should be afforded a meaningful opportunity to request additional procedures that would (1) demonstrate the reliability of a subsequent in-court identification—such as granting an adjournment for a non-suggestive identification procedure to

test the witness's identification (*see United States v Brown*, 699 F2d 585, 593-594 [2d Cir 1983])—or (2) reduce the suggestiveness of the in-court identification procedure itself (*see Archibald*, 734 F2d at 941-942). The determination of whether and to what extent such procedures are necessary “to enhance the truth finding process, and to prevent wrongful convictions” (*Marte*, 12 NY3d at 586-587) rests within the sound discretion of the trial court (*see People v Brown*, 28 NY3d 392, 409 [2016]).²

Of course, the ability of the defendant to meaningfully request such protective measures is dependent on the defendant's awareness that the witness may make a first-time, in-court identification. Indeed, if a defendant is unaware before the witness testifies that the witness may make such an identification, the reliability of any subsequent alternative identification procedure, or any measures to minimize suggestiveness, would be vitiated by the witness's opportunity to observe the defendant at the defense table (*cf. Archibald*, 756 F2d at 223 [availability of special identification procedures contingent on a defendant requesting such procedures “in a timely manner prior to trial”]). Accordingly, when the People may ask a witness to make a first-time, in-court identification, they must ensure that the defendant is aware of this possibility as early as practicable. We emphasize that the court's obligation to take any action regarding a first-time, in-court identification is dependent upon a timely request made by the defendant, as the defendant may not wish to seek protective measures that would bolster or draw further attention to the identification. A rule requiring courts to order that identification procedures be employed regardless of a defendant's preference (*see* dissenting op at 269) would hinder defense attorneys' ability to choose a strategy in their clients' best interest and in-

2. We agree with the dissent that a trial court should consider the witness's degree of familiarity with the defendant when determining whether such procedures are necessary (*see* dissenting op at 270-271). We decline, however, to adopt the dissent's ill-defined stranger/non-stranger dichotomy to determine when a court is permitted to exercise its discretion (*see* dissenting op at 254, 270-271 & n 9; *but see* 271 [setting forth a “brief encounter” exception to the “stranger” rule]). Moreover, the dissent's statement that a witness should not be permitted to identify a perpetrator for the first time in court when their identification is “solely based on the memory of the crime” is confusing, as it is either seemingly redundant to the “stranger” rule, or implies that a witness should base their in-court identification on something other than their memory of the crime (*see* dissenting op at 254, 270-271, 272; *but see* 271 n 9 [“The source of the witness's trial testimony is . . . what they observed during the course of the crime”]). Such a rule finds no support in our law.

appropriately circumvent the trial judge's role of evaluating the demands of the particular case.

In the absence of the guidance we provide today, the People did not specifically notify the defendant that the witness might be called to identify him. Nonetheless, the body-camera footage and the 911 call—together with the People's witness list, which included this witness—alerted defendant that the witness would likely make a first-time, in court identification. Defendant did not request any alternative identification procedures before the witness testified but sought preclusion of the identification during her testimony.

III.

Trial courts may “exclude relevant evidence if its probative value is outweighed by the prospect of trial delay, undue prejudice to the opposing party, confusing the issues[,] or misleading the jury” (*People v Primo*, 96 NY2d 351, 355 [2001]). The admissibility of a first-time, in-court identification is therefore vested to the discretion of the trial court.

In exercising this discretion in the context of a first-time, in-court identification, the court must consider the danger of misidentification from the suggestiveness of a first-time, in-court identification, and whether there are independent assurances of the identification's reliability that outweigh this risk. Such considerations may include: the witness's familiarity with the defendant, the quality of the witness's opportunity to observe the defendant before the incident in question (*see Marshall*, 26 NY3d at 509; *People v Ramos*, 42 NY2d 834 [1977]), the witness's ability to provide accurate descriptive details regarding the defendant (*see Brisco*, 99 NY2d at 597), the time between the crime and the testimony, and whether there is other, reliable trial evidence corroborating the identification (*see People v Allen*, 13 NY3d 251, 269 [2009]). In evaluating the danger of misidentification, the court may also take into account the suggestiveness of the in-court identification procedure itself.

When a defendant is not given advance notice of the identification, the trial court may also consider whether there was any reason for the failure to provide notice and the extent to which it has prejudiced the defendant. In general, to limit the risk that a trial court will exclude an identification for lack of notice, the People should provide explicit notice at the earliest possible juncture. Going forward, application of this

framework should render attempts to elicit unnoticed, first-time, in-court identifications uncommon, and the admission of such identifications even less so. We acknowledge, though, that situations may arise where the People, through no fault of their own, are not themselves aware of a witness's ability or willingness to make an identification during their trial testimony. Trial courts must assess how to proceed in such scenarios on a case-by-case basis.

[2] During her trial testimony, the witness established her ability to observe the shooting and view the shooter. She described the shooter in detail, establishing that she had a sufficient opportunity to view the shooter in order to make a reliable identification. And her trial testimony, which took place only five months after the shooting, mirrored her previous description of the shooter on the 911 call. Moreover, the witness's identification was far from the only evidence linking defendant to this crime. The victim, who had met defendant prior to the shooting, also identified defendant as the shooter and confirmed that he and defendant appeared on the surveillance video. Indeed, defendant can be seen on the video not only wearing the precise clothing that the witness had described, but also holding what is clearly a gun. The police investigator, for his part, testified that defendant was stopped driving the same vehicle in which the shooter can be seen fleeing the scene. Though the People were not aware of any duty to provide notice, this does not appear to have significantly prejudiced the defendant, given that he was provided with the witness's unequivocal statements that she could identify the perpetrator. Here, Supreme Court therefore did not abuse its discretion as a matter of law in denying defendant's request to preclude the witness's first-time, in-court identification.

In any event, any error was clearly harmless (*see People v Harris*, 80 NY2d 796, 798 [1992]; *People v Owens*, 74 NY2d 677, 678 [1989]; *People v Oliver*, 34 NY2d 859, 860 [1974]).

IV.

This Court is unanimous in its resolve to curtail the dangers of first-time, in-court identifications. Our approach ensures that defendants have notice and an opportunity to be heard and empowers trial courts to ensure the reliability of such identifications before they are elicited at trial. Beyond that, trial courts are well equipped to assess the admissibility of first-time, in-court identifications and exclude those that pose a risk of misidentification or other undue prejudice.

Defendant's remaining contention lacks merit.

Accordingly, the order of the Appellate Division should be affirmed.

RIVERA, J. (dissenting). A first-time, in court identification by a person unfamiliar with the defendant is highly suggestive and can lead to a wrongful conviction. I would adopt a rule requiring the prosecution to conduct a pretrial procedure that accords with due process and ensures a defendant's right to a fair trial when: (1) identification is at issue; (2) the witness is a stranger to the defendant; and (3) the witness's memory of the crime is the only basis for the identification. Absent such a procedure, an in-court identification should be prohibited. This rule places the burden of demonstrating the identification's reliability on the prosecution—the party that bears the burden of establishing defendant's guilt beyond a reasonable doubt, the party that can wield the power of the State to ensure the administration of a constitutionally-adequate procedure, and the party best positioned to proffer evidence that the identification is reliable and not a product of unlawfully suggestive practices or cues. The rule would effectuate the truth-seeking function of the trial by testing this most unreliable form of testimonial evidence against the accused—eyewitness identification by a stranger based on observations made under stressful conditions—before deciding whether the testimony should be presented to the jury. The rule also incentivizes pretrial identification procedures consistent with well-established constitutional mandates and disincentivizes mid-trial requests for untested, inherently suggestive testimony.

In contrast, the majority's rule shifts the burden onto the defendant and rewards State actors for failing to conduct a constitutionally-valid, out-of-court identification before the witness takes the stand. Worse, the majority's approach sanctions what is nothing more than an in-court "show up" identification, without the constitutional protections against this inherently unreliable practice. Finally, while acknowledging the risks of misidentification attendant to first-time, in-court identifications, the majority concludes that admission of the testimony against defendant was harmless. But harmless error analysis has no place when, as here, defendant is denied a fair trial.

We can and must do better to protect the integrity of the criminal legal system and to protect defendants by avoiding the risk of convictions of the innocent based on misidentifications. I dissent.

I.

Defendant Thomas Perdue claims that his due process rights were violated by an unduly suggestive first-time, in-court identification by a person unfamiliar with him. Science supports defendant’s claims that this type of identification is inherently unreliable.

A.

Wrongful Convictions Based on Misidentification

Wrongful convictions based on misidentification are a real phenomenon. “Inaccurate identifications, especially misidentifications by a single eyewitness, play a role in the vast majority of post-conviction DNA-based exonerations in the United States” (*People v Boone*, 30 NY3d 521, 527-528 [2017]). The National Academy of Sciences has concluded that “at least one mistaken eyewitness identification was present in almost three-quarters of DNA exonerations” and another report has put the number around 70% (*id.* at 528 [internal quotation marks omitted], citing Identifying the Culprit: Assessing Eyewitness Identification 11 [2014]; Innocence Project, DNA Exonerations in the United States [2023], available at <https://innocenceproject.org/dna-exonerations-in-the-united-states/> [last accessed Dec. 3, 2023]).

In New York, there are growing numbers of exonerations (*see* Hurubie Meko, *City to Pay Record \$17.5 Million Settlement After Wrongful Conviction*, NY Times, Nov. 16, 2023). In 2022, New York City alone “settled cases involving 16 wrongful convictions, the most of any single year” (*id.*). Out of the 354 exonerations in New York State since 1989, 122 involved a mistaken eyewitness identification (Interactive Map: *Exonerations by State*, National Registry of Exonerations [Sept. 27, 2023], available at <https://www.law.umich.edu/special/exoneration/Pages/Exonerations-in-the-United-States-Map.aspx> [last accessed Dec. 3, 2023]). In one particularly egregious example from 2004, Sheldon Thomas was convicted in Kings County of killing a 14-year-old boy and sentenced to 25 years in prison (*Thomas v New York Dept. of Corr.*, 2017 WL 5891778, 2017 US Dist LEXIS 199481 [ED NY, Nov. 28, 2017, 11-cv-01119 (AMD)]). His arrest was based, in part, on an eyewitness who identified him in a photo array that police assembled using what they believed to be his photo. There was just one problem: they used the photograph of a different man

named Sheldon Thomas. During pretrial hearings, a detective admitted that “he had ‘mixed up’ the details of the photographic array” (2017 WL 5891778, *2, 2017 US Dist LEXIS 199481, *6). Nevertheless, the suppression court concluded the error was “of no legal consequence” because the other Sheldon Thomas “resembled [the defendant], had the same name, and the police believed in ‘good faith’ that the person in the photograph was [the defendant]” (2017 WL 5891778, *4, 2017 US Dist LEXIS 199481, *11). Earlier this year, Thomas was exonerated following an investigation by the Brooklyn District Attorney’s Conviction Review Unit.¹

In another salient example, the Manhattan District Attorney moved in 2016 to vacate the conviction of Clifford Jones after he served 29 years in prison for rape and murder—making him one of the longest-incarcerated individuals to be wrongfully convicted in New York State (*Longest Incarcerations*, National Registry of Exonerations, available at <https://www.law.umich.edu/special/exoneration/Pages/longestincarceration.aspx> [last accessed Dec. 3, 2023]). “At trial, the only witness who was able to identify [the] defendant as the perpetrator of the crimes was the rape victim,” who claimed that she had entered an apartment building with the perpetrator intending to have sex with him, but after she had second thoughts, the man “put a knife to her throat and raped her” (*People v Jones*, 24 NY3d 623, 631 [2014]). The perpetrator then encountered another man in the stairway, and the rape victim watched as the two “tussl[ed]” and the perpetrator stabbed the man with the knife (*id.*). Months later, she identified Jones as the perpetrator in a photo array and in a subsequent lineup (*id.*). However, she testified at trial that she was a daily heroin user and “had taken heroin on the morning of the lineup” (*id.*). Years after Jones’ convictions were upheld on appeal (91 AD2d 874 [1st Dept 1982]), DNA testing of hair recovered from a baseball cap left at the scene and fingernail scrapings from the murder victim excluded Jones as the

1. District Attorney’s Offices in the following New York State counties maintain wrongful conviction units whose work has led to several exonerations: Bronx (8 exonerations), Erie (1), Kings (39), Nassau (2), New York (12), Putnam (1), Queens (12), Richmond (1), and Suffolk (3) (*see Conviction Integrity Units*, National Registry of Exonerations [Nov. 7, 2023], available at <https://www.law.umich.edu/special/exoneration/Pages/Conviction-Integrity-Units.aspx> [last accessed Dec. 4, 2023]). The following counties also have conviction integrity units: Monroe, Oneida, Orange, Ulster, and Westchester.

perpetrator (*Longest Incarcerations*, National Registry of Exonerations).²

Mistaken identifications are caused, in large part, by the natural distortion of memory that “occur[s] simply with the passage of time and with repeated recounting of events” (Joyce W. Lacy & Craig E.L. Stark, *The Neuroscience of Memory: Implications for the Courtroom*, 14 *Nature Revs Neuroscience* 9, 649-658 [2013]). However, our memories are also easily misled. The “‘misinformation effect’ . . . refers to a distortion in an original memory after being exposed to misleading information,” which “can be as subtle as slight variations in the wording of a question” or “nonverbal feedback via body language and facial expressions” by an officer conducting a lineup (*id.*, citing Lynn Garrioch & C.A. Elizabeth Brimacombe, *Lineup Administrators’ Expectations: Their Impact on Eyewitness Confidence*, 25 *L & Hum Behav* 299-315 [2001]). It is therefore no surprise that up to 80% of misidentification cases involve suggestive police practices (Alexis Agathocleous, *How Eyewitness Misidentification Can Send Innocent People to Prison*, Innocence Project [Apr. 15, 2020], available at <https://innocenceproject.org/how-eyewitness-misidentification-can-send-innocent-people-to-prison/> [last accessed Dec. 1, 2023]).

Many other “powerful variables [can] affect the reliability of eyewitness identification evidence,” such as “cross-race identifications, stress during the witnessing of a crime, quality of view,” etc. (Gary L. Wells et al., *Policy and Procedure Recommendations for the Collection and Preservation of Eyewitness Identification Evidence*, 44 *L & Hum Behav* 3, 6 [2020]).³ Cross-racial bias is a “memory phenomenon” in which the accuracy of

2. Other individuals exonerated in New York after decades in prison include Mark Denny (witness had been blindfolded for part of the attack and consistently said she was attacked by three men, but changed the number to four after police made Denny a suspect); Felipe Rodriguez (several witnesses viewed lineup and only one witness, who had been using drugs and alcohol on the night of the crime, selected Rodriguez, who did not fit the witness’s initial description); Valentino Dixon (three witnesses identified Dixon in a photo array, although each of their descriptions were more consistent with a different suspect); and Emmanuelle Cooper (witnesses failed to make an identification in several photo arrays, and one witnesses selected Cooper in a photo array but subsequently did not identify him in a lineup) (*see Longest Incarcerations*, National Registry of Exonerations, available at <https://www.law.umich.edu/special/exoneration/Pages/longestincarceration.aspx> [last accessed Dec. 3, 2023]).

3. Based on recent field studies collecting data from 6,734 lineups, among the witnesses who made an identification, over one third identified an

(n. cont’d)

an identification is reduced when identifying “faces of a race or ethnic background different from one’s own” (Lacy & Stark, *The Neuroscience of Memory*, 14 *Nature Revs Neuroscience* 9). Studies have shown that “we use our entire existing body of knowledge and experiences” in reconstructing memories, and people are “most familiar” with the “facial features of [their] own race” (*id.*). We have recognized this “near consensus in the relevant scientific community” and required in *Boone* that where an identifying witness and the defendant “appear to be of different races,” the trial court must “give, upon request, during final instructions, a jury charge on the cross-race effect,” instructing the jury to consider that “some people have greater difficulty in accurately identifying members of a different race” and to consider whether the racial difference may have affected the identification at issue (30 NY3d at 535).

Despite these thoroughly studied problems with witness memory, juries are unaware of the research and tend to have “nearly religious faith in the accuracy of eyewitness accounts” (Jules Epstein, *The Great Engine That Couldn’t: Science, Mistaken Identifications, and the Limits of Cross-Examination*, 36 *Stetson L Rev* 727, 772 [Spring 2007], quoting Elizabeth F. Loftus & James M. Doyle, *Eyewitness Testimony: Civil and Criminal* [3d ed 1997]). As Justice Brennan recognized, “there is almost nothing more convincing than a live human being who takes the stand, points a finger at the defendant, and says ‘That’s the one!’ ” (*Watkins v Sowders*, 449 US 341, 352 [1981, Brennan, J., dissenting] [emphasis omitted], quoting Loftus, *Eyewitness Testimony* at 19 [1979]). Juries tend to trust a witness even more when the witness expresses confidence, yet research has “shown weak or even negative correlations between a person’s confidence in the accuracy of a memory and the actual accuracy of that memory” (Lacy & Stark, *The Neuroscience of Memory*, 14 *Nature Revs Neuroscience* 9). In other words, “[a]ccuracy often produces confidence, but confidence does not necessarily indicate accuracy” (*id.*). This is the case even when the witness is the victim (Epstein, *The Great Engine That Couldn’t*, 36 *Stetson L Rev* at 731, 745-746 [“studies have mirrored the experience of victimization, most significantly in the area of stress” and have concluded that high-stress situations produce lower accurate identification

innocent filler (Wells, *Policy and Procedure Recommendations*, 44 *L & Hum Behav* at 5).

rates than low-stress situations]; *see also* early scholar Edwin M. Borchard, *Convicting the Innocent* xiii [1932] [jurors are predisposed “to credit the veracity and reliability of the victims of an outrage (more) than any amount of contrary evidence” but “the emotional balance” of the victim may be disturbed by the experience and their perception “distorted”]). Compounding the problem, witnesses tend to grow more confident over time. One study found that out of 190 DNA exonerations involving a misidentification, 40% involved a witness who did not initially identify the innocent suspect but by the time of trial were completely certain of their identification (Brandon L. Garrett, *Convicting the Innocent: Where Criminal Prosecutions Go Wrong* 68 [2011]).

The Court has repeatedly acknowledged the danger to defendants presented by mistaken eyewitnesses (*see e.g. People v Marshall*, 26 NY3d 495, 502 [2015], citing *United States v Wade*, 388 US 218, 228 [1967]; *People v Santiago*, 17 NY3d 661, 669 [2011]; *People v Riley*, 70 NY2d 523, 531 [1987]; *People v Caserta*, 19 NY2d 18, 21 [1966]). To assist the jury with evaluating and weighing this testimony, the Court has said that “courts are encouraged” to grant “expert testimony on the subject of eyewitness recognition memory [to] educate a jury concerning the circumstances in which an eyewitness is more likely to make such mistakes” (*Santiago*, 17 NY3d at 669 [hearing court abused its discretion by denying expert testimony where “the case turned on the accuracy of a single eyewitness identification and there was no corroborating evidence connecting the defendant to the crime” (*id.* at 672 [emphasis omitted])], citing *People v Drake*, 7 NY3d 28, 31 [2006]; *see also People v LeGrand*, 8 NY3d 449 [2007]; *People v Abney*, 13 NY3d 251 [2009]). “It is for the trial court in the first instance to determine when jurors are able to draw conclusions from the evidence based on their day-to-day experience, their common observation and their knowledge, and when they would be benefited by the specialized knowledge of an expert witness” (*People v Lee*, 96 NY2d 157, 162 [2001], citing *People v Cronin*, 60 NY2d 430, 433 [1983]). But while jurors “may be familiar from their own experience with factors relevant to the reliability of eyewitness observation and identification, it cannot be said that psychological studies regarding the accuracy of an identification are within the ken of the typical juror” (*id.*).

Despite our statements extolling the potential value of such expert testimony, courts—like some lawyers—often do not fully

appreciate how expert testimony may assist the jury. The testimony is considered unnecessary because the factors that impact on the reliability of an identification are believed to be “within the ken of the typical juror” (*id.*), even when the science shows otherwise. Not only are jurors unaware of the most significant factors that negatively impact on witness memory and thus the accuracy of an identification, but some jurors may consider negative factors as actually weighing in favor of the reliability of the identification. For example, jurors may mistakenly believe that the presence of a weapon causes the witness to pay more attention and observe the perpetrator more carefully, but according to scientific research “eyewitnesses observing a crime in which a perpetrator carries a weapon are *less* accurate in describing or identifying the suspect in a lineup compared to crimes with no weapons involved,” likely due to the “stress and arousal” caused by “the perceived threat induced by a weapon” (Kerstin Kocab & Siegfried L. Sporer, *The Weapon Focus Effect for Person Identifications and Descriptions: A Meta-analysis*, *Advances in Psychology and Law*: Vol 1 71-72 [June 2016] [emphasis added]). Without knowledge of this phenomenon, jurors may mistakenly “believe that the presence of a weapon increases attention overall and enhances eyewitness reliability” (Epstein, *The Great Engine That Couldn’t*, 36 *Stetson L Rev* at 777).

B.

Human Impact of Wrongful Convictions

It takes years to overturn a wrongful conviction, and during those years the innocent remain locked away in prison while the actual perpetrators remain unidentified. According to one report, out of 375 documented DNA exonerations, the average exoneree spent 14 years in prison, and 10% spent 25 years or more behind bars (*Research Resources*, Innocence Project [2023], available at <https://innocenceproject.org/research-resources/> [last accessed Dec. 3, 2023]). As we have recognized, the effect is corrosive: “[w]rongful convictions based on mistaken eyewitness identifications pose a serious danger to defendants and the integrity of our justice system” (*Marshall*, 26 NY3d at 502). Every exoneration reminds the public that the system failed. And the longer it takes to correct a miscarriage of justice, the greater the public’s disillusionment with our professed commitment to justice (*see* Jordan Nowotny et

al., *Understanding Public Views of Wrongful Conviction Frequency and Government Responsibility for Compensation: Results From a National Sample*, 34 Crim Just Poly Rev 2, 155 [2022] [in a national sample, most participants believed that “wrongful convictions are relatively common” and there was “near unanimous support for government compensation” to wrongfully convicted individuals]; Robert J. Norris & Kevin J. Mullinix, *Framing Innocence: An Experimental Test of the Effects of Wrongful Convictions on Public Opinion*, 16 J Experimental Criminology 2, 311-332 [2020] [the “presentation of factual numbers of exonerations reduces support for capital punishment and erodes trust in the justice system” but does not increase support for police reforms or personal concern about wrongful convictions, while narratives about individual wrongful convictions “ha(ve) more pronounced effects on death penalty attitudes” and “increase() personal concern and support for police reform”)].

Wrongful convictions also destroy the lives of the innocent and their families. The human toll is unquantifiable; years taken can never be recovered. Mark Denny, who was exonerated in 2017, spent nearly 30 years in prison for a rape and robbery in Brooklyn after he was misidentified by the rape victim (Michelle Kim, *Man Freed in Wrongful Rape, Robbery Conviction of 1987 Burger King Case*, NBC 4 New York [Dec. 20, 2017], available at <https://www.nbcnewyork.com/news/local/prisoner-exoneration-wrongful-conviction-burger-king-rape-robbery-brooklyn/378461/> [last accessed Dec. 3, 2023]). Denny, who wanted to be a police officer when he was a child, said his decades in prison were “torturous” and he contemplated suicide (*id.*). His family suffered greatly too. Denny’s mother “lost her house in Brooklyn while trying to finance lawyers to get him out of prison” (*id.*). According to Denny, his mother’s homelessness “destroyed” him (*id.*). District Attorney Eric Gonzalez recognized that the terrible error in this case “happened because little was known back then about memory retention and retrieval, and their effect on eyewitness identification” (*id.*). The District Attorney sought assistance from an expert on eyewitness identifications who opined that the victim’s limited chance to see her attackers, the extreme stress of the rape, and the long delay between the attack and the identifications “could have contributed to false identification” (*id.*).

Research also shows that, although “public opinion surveys have found people to be generally supportive of wrongfully

convicted persons,” individuals still report being stigmatized in their communities (Kimberley A. Clow & Amy-May Leach, *After Innocence: Perceptions of Individuals Who Have Been Wrongfully Convicted*, 20 Legal & Crim Psych 147, 148 [2015]). Members of their community may not know or may not believe that they were wrongfully convicted or, even if they are aware of the person’s innocence, may believe that the person was “associating with criminals while incarcerated” or is really a “prior criminal[]” despite being wrongfully convicted of one crime (*id.* at 148-149). And, of course, someone who has “lost years in prison” may have “difficulties in attaining housing and employment post-incarceration” and may face the “contemptuous prejudice” associated with being “low in status” (*id.* at 149-150).

II.

First-Time, In-Court Identifications

A.

Inherent Suggestiveness

First-time, in-court identifications are inherently suggestive. As the United States Supreme Court has recognized, “[m]ost eyewitness identifications involve some element of suggestion” but “*all* in-court identifications do” (*Perry v New Hampshire*, 565 US 228, 244 [2012] [emphasis added]). The majority posits that the inherent suggestiveness of an in-court identification lies in the fact that the defendant is seated at the defense table, and “the traditional courtroom seating arrangement may itself suggest to the witness who should be identified” as the perpetrator of the crime (majority op at 250). Other courts have recognized the same (*see United States v Archibald*, 734 F2d 938, 941 [2d Cir 1984] [noting that (a)ny witness, especially one who has watched trials on television, can determine which of the individuals in the courtroom is the defendant, which is the defense lawyer, and which is the prosecutor]; *United States v Morgan*, 248 F Supp 3d 208, 213 [D DC 2017] [endorsing *Archibald*’s rationale and recognizing that in the case at bar there would “be no doubt that the African-American man seated at counsel table is being prosecuted for crimes”]).

But that is not the only basis for the heightened suggestiveness of first-time in-court identifications. Courts and legal scholars have identified the witness’s observation of and

participation in the proceeding itself as adding to the suggestiveness. The witness knows that the State has investigated the crime and concluded that the defendant is guilty beyond a reasonable doubt, pressuring the witness to confirm the correctness of the State's prosecution (*see State v Dickson*, 322 Conn 410, 439-440, 141 A3d 810, 832 [2016] [noting that, "when the state places the witness under the glare of scrutiny in the courtroom and informs the witness of the identity of the person who has been charged with committing the crime, it is far less likely that the witness will be hesitant or uncertain when asked if that person is the perpetrator"]⁴). This "social environment . . . produces an immensely strong commitment effect" (brief of amici in *Garner v Colorado*, 589 US —, 140 S Ct 448 [2019], available at 2019 WL 3854682, *14). The witness "may feel that failing to identify the defendant 'will make [the witness] appear incompetent, unreliable, or unhelpful to law enforcement' " (*id.*).

Additionally, the effect of implicit bias undoubtedly exacerbates the inherent suggestiveness of in-court, cross-racial identifications (*see* New York State Unified Court System, Report, Equal Justice in the New York State Courts: 2022 Year in Review [2022], available at www.nycourts.gov/LegacyPDFS/publications/22-Equal-Justice-Review.pdf [last accessed Dec. 9, 2023]; Sonia Moghe, *Report reveals 'long-simmering racial tensions' in New York State courts*, CNN [Oct. 16, 2020], available at <https://www.cnn.com/2020/10/16/us/new-york-state-courts-racial-tensions/index.html> [last accessed Dec. 9, 2023] [discussing Jeh Johnson's 2020 Special Adviser Report on Equal Justice, which uncovered systemic bias in the State court system and recommended mandatory bias training for judges and nonjudicial staff]). And bias pervades the system. People of color are more likely to be prosecuted than White people, both because their communities are disproportionately policed and because ingrained racial bias may impact charging decisions leading to higher prosecution rates for Black individuals (*see*

4. That is why an officer conducting a pretrial identification procedure is discouraged from informing the witness that a suspect is already in custody. "Courts around the country recognize the inherent danger of an identification procedure in which the witness is aware of whom police officers have targeted as a suspect" (Aliza B. Kaplan & Janis C. Puracal, *Who Could it Be Now? Challenging the Reliability of First Time In-Court Identifications After State v. Henderson and State v. Lawson*, 105 J Crim L & Criminology 947, 983 [2015]).

Luke Scrivener et al., Report, Tracking Enforcement Trends in New York City: 2003-2018, Data Collaborative for Justice [Sept. 2020]; Vera Institute of Justice, Report, Race and Prosecution in Manhattan [July 2014]; Alan Feuer, *Black New Yorkers Are Twice as Likely to Be Stopped by the Police, Data Shows*, NY Times, Oct. 10, 2021, available at <https://www.nytimes.com/2020/09/23/nyregion/nypd-arrests-race.html> [last accessed Dec. 9, 2023]; Timothy Williams, *Black People Are Charged at a Higher Rate Than Whites. What if Prosecutors Didn't Know Their Race?*, NY Times, June 12, 2019, available at <https://www.nytimes.com/2019/06/12/us/prosecutor-race-blind-charging.html> [last accessed Dec. 8, 2023]). Black individuals are also more likely to be wrongfully convicted. While less than 14% of the American population is Black, Black defendants account for over half of all exonerations and are seven times more likely to be wrongfully convicted of murder than White defendants (National Registry of Exonerations, Race and Wrongful Convictions in the United States 2022 [Sept. 2022]). In the context of a first-time, in-court identification, some element of suggestiveness inheres when the defendant's race or ethnicity matches the race or ethnicity that the witness has used to describe the perpetrator. Unsurprisingly, that suggestiveness is heightened when the defendant is the only person of color in the courtroom—or one of very few.

Courts have also recognized that asking a witness for the first time on the stand whether the person they observed commit a crime is present in the courtroom, and if so to identify them, is essentially a single-person, show-up identification without the constitutional guardrails imposed on pretrial photo arrays and line-ups (see e.g. *State v Watson*, 254 NJ 558, 579, 298 A3d 1049, 1061 [2023] [“Showups can serve a valuable purpose if conducted within hours of a crime,” but an “in-court identification is essentially a live, single-person line-up . . . comparable to a showup but . . . conducted well after the crime has taken place”]). An in-court identification may be more suggestive than a show-up because “within hours of a crime, the eyewitness . . . is unlikely to know how confident the police are in their suspicion [of the individual]” but “in the courtroom, the eyewitness knows that the defendant has been charged” (*Commonwealth v Crayton*, 470 Mass 228, 237, 21

NE3d 157, 166 [2014]). As these courts have concluded, there is no logical basis for treating pretrial identifications with greater caution than in court identifications when the latter is so highly suggestive (*see Dickson*, 322 Conn at 423-424, 141 A3d 810 at 822-823 [(W)e are hard-pressed to imagine how there could be a *more* suggestive identification procedure than placing a witness on the stand in open court, confronting the witness with the person who the state has accused of committing the crime, and then asking the witness if he can identify the person who committed the crime]). Indeed, treating in-court identifications differently discourages the use of pretrial identification procedures, thereby creating a path for the State to avoid the constitutional mandates, internal rules, and best practices developed over time to minimize the suggestiveness of those procedures (*see e.g. People v Hawkins*, 55 NY2d 474 [1982] [once the right to counsel has attached, defense counsel must receive notice of any lineup and is entitled to attend]; *People v Chipp*, 75 NY2d 327, 336 [1990] [a photo array should show other individuals sufficiently similar in appearance to the suspect such that the suspect is unlikely to be “singled out for identification” based on particular characteristics]; *see also* New York State District Attorneys Association Best Practices Committee, New York State Lineup Procedure Guidelines [Nov. 2010]).⁵

As with unduly suggestive out-of-court procedures, reliance on first-time, in-court identifications violates a defendant’s due process rights and “adversely impact[s] the truth-finding process” (*see Marshall*, 26 NY3d at 503). It is thus incumbent upon the judiciary to develop and enforce rules that incentivize the use of constitutionally-sound pretrial practices and State officials to heed those commands in order to reduce the risk of misidentification-based wrongful convictions.

5. The Lineup Procedure Guidelines instruct administrators to, among many other things: refrain from informing the witness if an arrest has been made; use at least five “fillers” who are unknown to the witness and similar to the suspect in appearance; allow the suspect to choose their own position in the lineup and, if a photo array was previously conducted, to avoid having the suspect in the same numerical position they appeared in the array; give all instructions before the procedure begins and refrain from making any further comments until the procedure is finished; document every aspect of the procedure, including the exact words of the witness; and honor any reasonable requests from defense counsel.

B.The Majority Rule Falls Short1. Presumption of Suggestiveness and the Prosecution'sBurden

The majority elides the reality that wrongful convictions occur in New York, referring in the abstract to the “danger of wrongful convictions presented by mistaken identification[s]” and alluding by citation to the steps the Court has taken to protect defendants “from such miscarriages of justice” (majority op at 249, citing *Boone*, 30 NY3d at 521; *Marshall*, 26 NY3d at 495; *Santiago*, 17 NY3d at 669 [2011]; *Riley*, 70 NY2d at 530-531). On that foundation, the majority adopts an inadequate notice rule that burdens the defendant with mitigating the errors of the prosecution and the police.

The majority first fails to adopt a clear standard for the provision of notice in accordance with general due process principles (*Sessions v Dimaya*, 584 US 148, 177 [2018, Gorsuch, J., concurring] [“Perhaps the most basic of due process’s customary protections is the demand of fair notice”], citing *Connally v General Constr. Co.*, 269 US 385, 391 [1926]; Note, *Textualism as Fair Notice*, 123 Harvard L Rev 542, 543 [2009] [“From the inception of Western culture, fair notice has been recognized as an essential element of the rule of law”]). According to the majority, the prosecution need only “ensure that the defendant is aware of th[e] possibility” “that the witness may make a first-time, in-court identification” (majority op at 251). But to avoid mistaken assumptions about a defendant’s awareness and appellate challenges on the issue, the prosecutor should directly inform the defendant of this potential identification. Why hide the ball? Why rely on some version of constructive notice and the attendant judicial interpretation of what is adequate under the circumstances? We should be particularly suspect of anything less than clear, express on-the-record notice, given that the defendant’s liberty is at stake.⁶ And if the prosecutor did not know for certain until trial that they would ask for an in-court identification, that would not preclude the prosecutor from notifying defendant, as the majority says, of that “possibility” (majority op at 251).

6. Express record notice can be written or oral, depending on the circumstances of the particular case.

The majority next goes astray by imposing on defendants in the first instance the burden to contest the propriety of the in-court identification, even though it is the State's pretrial inaction that has led it to request an inherently suggestive identification during trial. Under the majority's rule, once a defendant is made aware that the prosecution intends to call a witness who might make a first-time identification at trial, it is up to the defendant to persuade the trial court that an alternative procedure is necessary to avoid the inherent suggestiveness of the in-court identification (*see* majority op at 251-252). But science supports a presumption that the in-court identification is inadmissible unless preceded by a court-approved, non-suggestive pre-testimony procedure. Those procedures can be conducted when practicable before the testimony, for example, by a photo array or lineup that is not unduly suggestive. The majority's rule not only burdens the party who did not create the problem in the first place, but also fails to encourage prosecutors to conduct pre-testimony identification procedures in a manner that avoids the heightened suggestiveness of in-court identifications, even when they could do so easily.

In addition to misallocating the burden onto the defendant, the majority's rule allows for violations of defendants' rights to due process and a fair trial. The majority vests trial courts with discretion to determine whether to order a nonsuggestive identification procedure (majority op at 250-251). But a first-time, in-court identification is simply a "show-up," and the law should regard it as such. Put another way, just as an identification based on a suggestive pretrial procedure should not be admitted at trial, neither should a court discretionarily admit an identification made under the more suggestive conditions of the courtroom. The latter scenario is the epitome of unfairness.⁷

7. The majority asserts that its rule "should render attempts to elicit unnoticed, first-time, in-court identifications uncommon, and the admission of such identifications even less so" but then makes obvious to the reader that admission is not error (majority op at 252-253). The majority fails to explain why the prosecution's uncertainty about the witness's identification should preclude a pre-testimony procedure. If we really want to decrease the risk of wrongful convictions based on misidentifications, then these in-court identifications by strangers, under the circumstances I have discussed, should be tested before the witness takes the stand. Even if the majority is correct that under its rule these types of identifications will be "uncommon," the majority rule still permits some number of defendants to be prosecuted under

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2. Cross-Examination Does Not Mitigate In-Court
Suggestiveness

The majority implies that its rule benefits the defendant because it allows the defense to strategically choose the in-court identification, subject to cross-examination, over a pre-testimony procedure (majority op at 251-252). The majority thus concludes that defense counsel's opportunity to cross-examine a witness on the reliability of their in-court identification provides an opportunity to mitigate its suggestiveness. But "the reliance of courts on the power of cross-examination" in this context "has no support in the literature" (Epstein, *The Great Engine That Couldn't*, 36 Stetson L Rev at 727, 774). Cross-examination is a poor means to mitigate suggestiveness when the witness testifies truthfully about what they sincerely believe they observed. Put another way, cross-examination may be an effective tool to ferret out the liars but it is a woefully ineffective device for probing a witness who genuinely believes in the truth of their testimony and the accuracy of their identification (*id.* at 766).

Studies show that defense counsel "start[s] at a disadvantage" due to jurors' tendency to believe eyewitness accounts (*id.* at 772, quoting Elizabeth F. Loftus & James M. Doyle, *Eyewitness Testimony: Civil and Criminal* [3d ed 1997]). A witness testifying sincerely but inaccurately "will not display the demeanor of [a] dishonest or biased witness" (*id.*). Further, "[t]he likelihood that a committed eyewitness will recant [their] position (or fall apart on the stand) is so minimal that it is hardly worth considering" (*id.* at 771, quoting Brian L. Cutler, *Eyewitness Testimony: Challenging Your Opponent's Witness* at 97 [National Institute Trial Advocacy 2002]). There are no *Perry Mason* moments. As a result, seasoned practitioners warn new attorneys to "have minimal expectations for cross-examination in eyewitness-identification cases" and not to expect a "knock-out punch" (*id.* at 772, citing Loftus & Doyle, *Eyewitness Testimony*). Instead, they should simply aim "to hold the risks to an absolute minimum" (*id.*).⁸ These practitioner guides and instructions illustrate the inadequacy of cross-examination as

circumstances that all members of this Court agree are highly suggestive. The rule thus violates established notions of due process and fairness.

8. Epstein agrees that cross-examiners of eyewitnesses face a steep uphill battle, but suggests that a "skilled cross-examiner can always make some headway with an eyewitness" if they can "establish inconsistencies or a

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a means to mitigate the suggestiveness of an in-court identification.

The majority concedes that cross-examination and counsel's arguments to the jury "do[] not render an in-court identification less suggestive and do[] not always eliminate the risk that a jury may credit a tainted identification" (majority op at 250). Nonetheless, the majority claims that counsel may rely on cross-examination as part of its defense strategy (*id.* at 250, 251-252). That "choice" is no choice at all because no amount of cross-examination can undo the damage wrought by the jury's exposure to a highly suggestive and unreliable method of identification that both the law and experts have told us increases the risk of a misidentification and a possible wrongful conviction (*see* section II.A, *supra*). A defense attorney's strategy to avoid the pre-testimony identification is of course understandable, but the research demonstrates it is a strategy based on assumptions and traditions ill-suited to the specific task of undermining a mistaken but confident witness (*see* Loftus & Doyle, *Eyewitness Testimony: Civil and Criminal*; Cutler, *Eyewitness Testimony: Challenging Your Opponent's Witness* at 97). That strategy is akin to throwing a drowning person a life-saver attached to an anchor.

Perversely, the majority's rule advantages the State, rewarding its failure to conduct a pretrial or pre-testimony procedure. The real choice should be between a mandatory pre-testimony nonsuggestive procedure or exclusion of the identification testimony. Requiring the prosecution to subject the witness to a constitutionally-adequate procedure mid-trial does not impair the defendant's rights because the defendant could not have prevented such a procedure before trial. And if an out-of-court procedure is conducted mid-trial, the right to counsel has attached and defense counsel is entitled to be present (*see Hawkins*, 55 NY2d 474). In other words, neither party is worse off under a rule requiring a pre-testimony procedure as a condition to admission of the in-court identification than if the State had initially conducted the procedure before trial and provided CPL 710.30 notice to the defense. And if the witness cannot identify the defendant before trial, they should not be allowed a second opportunity, in the crucible of a suggestive courtroom setting, to identify the defendant.

reduced opportunity to observe" (Epstein, *The Great Engine That Couldn't*, 36 Stetson L Rev at 781).

C.

One simple way to reduce the chance that someone will go to jail for a crime they did not commit is to prohibit highly suggestive first-time, in-court identifications by a witness unfamiliar with a defendant like the identification at issue in this appeal. First-time, in-court identifications create the “ultimate ‘targeted suspect’ situation that courts have repeatedly condemned in the pretrial context” (Aliza B. Kaplan & Janis C. Puracal, *Who Could it Be Now? Challenging the Reliability of First Time In-Court Identifications After State v. Henderson and State v. Lawson*, 105 J Crim L & Criminology 947, 984 [2015]). The “expectancy effect,” which psychologists use to refer to the unconscious influence that lineup administrators may have on a witness, may be mitigated by “double-blind” procedures in which the administrator is not an investigator of that particular case “and does not know who the suspect is” (*id.* at 984-985). But “[t]here is no chance” for such a procedure in a first-time, in-court identification (*id.* at 985). Everyone in the courtroom is “aware that the suspect is the individual seated at the defense table” (*id.*). There is simply no way to insulate the witness from this powerful influence except to prohibit first-time, in-court identifications.

Fundamental fairness and due process require that, when there has been no pretrial identification, the prosecution must move for permission to elicit a first-time in-court identification. Unlike the majority’s rule, my rule provides the court and defendant with clear notice of the prosecution’s intent, leaving no doubt or appellate issue as to defendant’s awareness of the possibility of a first-time, in-court identification (*see* majority op at 251-252). Where either identification is not at issue in the case, the witness is familiar with the defendant prior to the crime, or the identification is not based solely on the witness’s memory of observing the crime, the court may grant the motion.⁹ In all other cases, the court should order a pre-testimony identifica-

9. The majority asserts that there is some vagueness in the rule that I here describe as most aligned with our law and best designed to protect the defendant’s rights (majority op at 251 n 2). But there is nothing vague in a rule that distinguishes between witnesses who are strangers to the defendant and those who know a defendant well enough to reliably identify them. The potential unreliability of an identification by a person who observed the perpetrator for the first time at the moment of the crime, compared to the certainty of an identification by, for example, the spouse of the perpetrator is plain. Under my rule, and that of other jurisdictions, a witness who does not know the defendant can be asked to identify the defendant in court once the

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tion procedure, after considering alternatives recommended by the prosecution and defendant. Where no such procedure is conducted, the motion must be denied.

For example, if a witness claims they saw the perpetrator of the crime and can identify them if they saw them again, but the witness is a stranger to the defendant, then a nonsuggestive pretrial identification is required. In contrast, if the witness knows the defendant—as in the case of a relative, friend, or someone who has observed them over some period of time, in circumstances unrelated to the crime—then they can be asked for the first time in court if they can identify the person they saw commit the crime (*see People v Dixon*, 85 NY2d 218, 223-224 [1995] [explaining that a *Wade* hearing is not required where a witness “is familiar with the perpetrator because that witness will naturally be ‘impervious to police suggestion’ ”], citing *People v Rodriguez*, 79 NY2d 445, 452 [1992]; *Rodriguez*, 79 NY2d at 450 [a “confirmatory identification” is “tantamount to a conclusion that, as a matter of law, the witness is so familiar with the defendant that there is ‘little or no risk’ that police suggestion could lead to a misidentification”]). However, familiarity from a prior “brief encounter” is insufficient exposure to a suspect and not much more reliable than a stranger’s identification (*id.*).

Several sister jurisdictions have adopted rules that protect against these first-time in-court identifications. In *Crayton*, the Supreme Judicial Court of Massachusetts held that “[w]here an eyewitness has not participated before trial in an identification procedure, [the court] shall treat the in-court identification as an in-court showup, and shall admit it in evidence only where there is ‘good reason’ for its admission” (470 Mass at 241, 21 NE3d at 169). Good reason may exist, for example, “where the eyewitness was familiar with the defendant before the commission of the crime” or “where the witness is an arresting officer who was also an eyewitness to the commission of the crime, and the identification merely confirms that the defendant is the person who was arrested” (470 Mass at 242, 21

reliability of that identification has been previously tested and has resulted in a positive identification of the defendant. The source of the witness’s trial testimony is not what they viewed during the prior identification, but rather on what they observed during the course of the crime. That rule flows logically from our case law on wrongful convictions and out-of-court identifications, while according with a defendant’s rights to due process and a fair trial (*see* sections I.A, II.A, *supra*).

NE3d at 170). The court made clear that it would not “place[] the burden on the defendant to . . . propos[e] alternative, less suggestive identification procedures” because doing so would suggest that the prosecution “is entitled to an unnecessarily suggestive in-court identification unless the defendant proposes [an] alternative that the trial judge in [their] discretion adopts” (470 Mass at 241, 21 NE3d at 169). Instead, the prosecution must move in limine to proceed with an in-court identification where there has been no out-of-court procedure (470 Mass at 243, 21 NE2d at 170-171).

Two years after *Crayton*, the Supreme Court of Connecticut went a step further in *Dickson*, holding that a prosecutor must seek advance permission from the trial court before presenting a first-time in-court identification, and the court may grant that permission *only* if “there is no factual dispute as to the identity of the perpetrator, or the ability of the particular eyewitness to identify the defendant is not at issue” (322 Conn at 446, 141 A3d at 835-836). Most recently, the Supreme Court of New Jersey followed *Crayton*’s approach, holding in *Watson* that a first-time in-court identification can be conducted only when there is “good reason” for it (254 NJ at 568, 298 A3d at 1055). Procedurally, the prosecution “must give fair notice to the defense” before attempting to elicit such an identification and must file a motion in limine to establish “good reason” (254 NJ at 568, 588, 298 A3d at 1055, 1066). The *Watson* court noted that it “does not make sense” to require the defendant to file a motion to suppress in these circumstances because “only the prosecution knows whether it will ask a witness to make an identification in court” (254 NJ at 588, 298 A3d at 1066).

The “good reason” requirement recognized by these courts ensures that the in-court identification is merely confirmatory or is reliable because it is not solely based on the memory of the crime but on some additional source of familiarity with the defendant (*Crayton*, 470 Mass at 241, 21 NE3d at 169; *Watson*, 254 NJ at 568, 588, 298 A3d at 1066). As with the approach adopted by our sister jurisdictions, my rule similarly protects defendant’s rights and furthers the truth-seeking function of the trial.

III.

This appeal perfectly illustrates why we must prohibit first-time, in-court identifications. Defendant’s trial features the State’s pre-testimony failures and the suggestiveness factors

that researchers and legal scholars have roundly identified as leading to unreliable identifications.

A.

According to the trial testimony, victim CC attended a small house party with two female friends and two other individuals. CC did not know defendant prior to seeing him for the first time earlier that evening. CC consumed approximately two pints of liquor and at some point, left with his two friends to buy more alcohol. When they returned, one of the women nicknamed “Nita” told him to stay outside. CC wanted to retrieve some personal belongings from the house, so he started “banging on the door.” Nita opened the door but blocked the entrance, and an argument and “pushing match” ensued. CC spilled some of his liquor and in frustration, poured the rest of the bottle on Nita. Eventually, CC retrieved his belongings and walked outside, continuing to verbally argue with Nita and one of the other men present. Another man walked outside and shot CC in the leg with a revolver. CC crawled to his car and put a tourniquet on his leg. His friends then drove him to the hospital, where he underwent surgery. Hospital records indicated that CC initially told doctors that he “threw a drink on a girl and she shot him in the leg.” He testified that he did not recall making that statement. He also identified defendant as the person who shot him.

Police recovered surveillance footage from a nearby building which the prosecution played for the jury. The video does not depict the shooting but shows CC crawl across the street to his vehicle with two other individuals who then drive him away. The video also shows a black male wearing a white cap enter the video frame and look towards CC before entering a silver Chevy Equinox and driving away.

The morning after the incident, a police officer spoke with CC at the hospital. CC indicated he did not see who shot him and declined to give any further statement at that time. Several days later, CC told an investigator that the shooter was a “black male in his twenties” who went by the nickname “Killa.” The investigator searched the name “Killa” in a police database which yielded defendant’s name among several others. He then searched defendant’s name in another database, which showed defendant being stopped in “several vehicles registered to the same female,” one of which was the same make and color as the one in the crime scene surveillance footage. Police records

contained a phone number for defendant which was linked to a Facebook page with the name “Killasquad.” Thereafter, police stopped and arrested defendant in a silver Chevy Equinox with a license plate matching the number listed in the database.

The prosecution then called SH, who testified that she lived in the apartment above the house party and was woken up by the sound of an argument between a male and a female. She went to look through her bedroom window, from where she could see the stairs descending from the porch below but could not see the porch itself. The area was illuminated by floodlights. SH stated that she saw a “black male” who was “almost six feet tall,” “dark-skinned,” with “a mustache, goatee, [and] white cap,” wearing “gray jeans” and “white sneakers.” She saw the man remove a gun from his pocket and heard a “pop,” then saw the victim drag himself to his car and the shooter pocket the gun, walk to a silver SUV, and drive away. She immediately called 911 to report the incident, and the 911 recording was entered into evidence and played for the jury. On the call, SH can be heard telling the operator that the shooter was leaving in a “light silver truck” and describing him as a black man in a white cap, gray pants, and white sneakers. Police followed up with SH about the incident when she confirmed that she could identify the shooter if she saw him again, and that conversation was captured by the responding officer’s body-worn camera. However, the police conducted no identification procedure with SH.

On the stand, the prosecution asked SH if she could identify the individual she saw shoot the victim. Defense counsel objected and the court inquired whether there had been any prior identification procedure. The following ensued outside the presence of the jury:

“THE COURT: Is she going to identify the defendant?”

“[PROSECUTOR]: I don’t know.

“[DEFENSE COUNSEL]: Was there an ID procedure done?”

“[PROSECUTOR]: No.

“THE COURT: So where in the hell did you get her? I mean, has anybody talked to her before?”

“[PROSECUTOR]: The officer that testified she spoke to her that night.

“THE COURT: Okay. But did she tell that cop that night that she could ID?”

“[PROSECUTOR]: Yes, she did.

“THE COURT: And nobody went back and did an ID with her?”

“[PROSECUTOR]: Correct, your Honor.

“THE COURT: So her name and her information is in the police reports? . . .

“THE COURT: And [she] said, ‘I can ID’?”

“[PROSECUTOR]: Yes, your Honor.

“THE COURT: Okay. Boy, that—forgive me, but that’s not really good police work.”

The court allowed the prosecution to ask SH to identify the shooter, noting that the identification would be subject to cross-examination. SH identified defendant.

In sum, a witness observed the shooting that led to defendant’s arrest and the witness informed the police on the day of the crime that based on those observations she could identify the shooter. The police and prosecutor inexplicably failed to conduct a pretrial identification procedure to test the reliability of the witness’s assertion. Instead, at trial, the prosecutor called the witness to the stand and, after some preliminary questions, asked her—without prior notice to the court or defendant—if the shooter was in the courtroom. By that point, the witness had observed defendant sitting next to his lawyer. The obvious inferences were that defendant was the person the witness had observed commit the crime and that the State of New York chose to prosecute defendant because it was convinced of his guilt. The prosecutor might as well have pointed a finger at defendant. No action by counsel or the trial court could mitigate the impact on the witness of this courtroom scene. Nor could counsel effectively cross-examine this witness who was certain of what they saw, even though the circumstances of the identification during the crime and in the courtroom may render it unreliable. The only remedy once the witness had taken the stand and observed the defendant in the courtroom was to declare a mistrial.

IV.

I disagree with the majority that defendant here received adequate notice that SH would be asked to make a first-time, in-

court identification merely because defense counsel was provided a copy of the body camera footage during which SH told the police that she could identify the shooter. First, at the time of the crime SH never said defendant was the shooter, which of course she could not because she never claimed to personally know the shooter or defendant. Second, defense counsel—like the court here—would have expected, based on the witness’s declaration that SH could identify the shooter, that the police—following good practice—would have conducted a pretrial identification procedure with her. When counsel was not advised of such procedure as CPL 710.30 requires, counsel rationally could have assumed that the State was not confident in SH’s ability to identify the shooter and therefore did not conduct a pretrial procedure with her. Under these circumstances, defense counsel cannot be faulted and defendant should not be prejudiced for operating on the assumption that, even if the prosecutor called SH to provide information regarding the events she observed and to describe the person she claimed she saw shoot the victim, the prosecutor would not risk a potentially damaging negative response from SH and thus would not ask her to identify the shooter in court. Thus, here, contrary to the majority’s conclusion, defendant is not foreclosed from challenging the lack of a pretrial procedure (*see* majority op at 252).¹⁰

The majority further concludes that the court did not abuse its discretion in denying defendant’s request to preclude SH’s

10. The majority’s conclusion that defendant was aware that the witness might be asked to identify the perpetrator would require that defense counsel have made the following sequential assumptions: first, the completely fair assumption that the prosecutor complied with its obligations under *Brady* and the CPL; second, that, notwithstanding the lack of notice that the witness in fact identified defendant or failed to do so, the prosecutor might still ask the witness to make a first-time, in-court identification; and third, that the prosecutor believed, based on some other unrevealed information, that the witness would identify defendant as the shooter or that the prosecutor would pose the identification question to the witness without knowing whether they could identify defendant. As to the second assumption, counsel could reasonably assume the prosecutor would rather avoid the risk that SH would fail to identify defendant before the jury. And for the third assumption to hold, counsel would have to assume the prosecutor was withholding information or that they would act in contravention of a fundamental tenet of trial practice that you should never ask a question to which you do not already know the answer (*see* Irving Younger’s 10 Commandments of Cross Examination, Litigation Monograph Series No. 1, ABA Annual Meeting [1975]). None of these assumptions are reasonable and thus cannot support the majority’s conclusion that defense counsel was on notice.

testimony because “the witness’s identification was far from the only evidence linking defendant to this crime” (majority op at 253). But that evidence was not without its weaknesses and depended on CC, who admitted he was drinking heavily and who told the hospital staff that a woman he was arguing with shot him. SH’s identification thus bolstered CC’s conflicting trial testimony that defendant was the shooter.

Regardless, the quantum of evidence is quite beside the point. Whether measured by its independent impact on the jury or by how it may have shored up the prosecution’s other witness, it is still the case that SH identified defendant under circumstances that the majority recognizes as dangerous (*see* majority op at 253). Furthermore, the trial court admitted the identification testimony not because the court was persuaded of its reliability—indeed, the court chided the prosecutor for the police’s failure to conduct a pretrial procedure and was surprised by the prosecutor’s uncertainty as to whether SH would identify defendant—but because the court concluded defense counsel would have the opportunity to cross-examine SH. But as the majority acknowledges, cross-examination is insufficient to eliminate this type of suggestiveness (majority op at 250).

As this Court has declared, “[t]he appellate courts have an overriding responsibility, never to be eschewed or lightly to be laid aside,” to give assurance to the public “that there shall be full observance and enforcement of the cardinal right of a defendant to a fair trial” (*People v Crimmins*, 36 NY2d 230, 238 [1975]).

“[I]f in any instance, an appellate court concludes that there has been such error of a trial court, such misconduct of a prosecutor, such inadequacy of defense counsel, or such other wrong as to have operated to deny any individual defendant his fundamental right to a fair trial, the reviewing court must reverse the conviction and grant a new trial, quite without regard to any evaluation as to whether the errors contributed to the defendant’s conviction. The right to a fair trial is self-standing and proof of guilt, however overwhelming, can never be permitted to negate this right” (*id.*; *see also People v Mayo*, 48 NY2d 245, 252 [1979] [(T)here are some errors of constitutional magnitude that are so fundamental that their commis-

sion serves to invalidate the entire trial. These errors are simply not amenable to traditional harmless error analysis”], citing *People v Felder*, 47 NY2d 287 [1979]).

The admission of SH’s testimony presents a risk of wrongful conviction and constitutes an error of constitutional magnitude that violated defendant’s freestanding right to a fair trial. Thus “without regard to any evaluation as to whether the error[] contributed to . . . defendant’s conviction,” our law instructs that the conviction cannot stand (*Crimmins*, 36 NY2d at 238). Therefore, I would reverse and grant defendant a new trial.

Chief Judge WILSON and Judges GARCIA, CANNATARO, TROUTMAN and HALLIGAN concur. Judge RIVERA dissents in an opinion.

Order affirmed.

[232 NE3d 1223, 209 NYS3d 289]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARCUS
BROWN, Appellant.

Argued October 19, 2023; decided November 21, 2023

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 30, 2022. The Appellate Division affirmed an order of the Supreme Court, Queens County (Charles S. Lopresto, J.), which had, after a hearing, designated defendant a level one sex offender pursuant to Correction Law article 6-C.

People v Brown, 203 AD3d 1183, reversed.

HEADNOTE

Crimes — Sex Offenders — Sex Offender Registration Act — Sex Offender Designation for Imprisonment of Child Where Offense Lacked Sexual Act or Motive

In a criminal prosecution in which defendant pleaded guilty to the unlawful imprisonment of a child, an eligible offense under the Sex Offender Registration Act (SORA) (Correction Law art 6-C), for stealing money from his aunt at gunpoint in the presence of his 10-year-old cousin, requiring defendant to register as a sex offender violated his due process rights and did not further the legislative purpose of SORA to protect the public from sex offenders, where defendant's crime lacked a sexual act or motive and where defendant posed no risk of future harm to children. The SORA court found that defendant's motivation was to steal money, that the offense involved "no sexual contact or motivation" whatsoever, and that defendant was not a "sex offender" and "posed no risk of sexual threat at all." Based on the lack of a sexually motivated crime, it was determined that defendant was not eligible to participate in the Sex Offender Counseling and Treatment Program while in prison. While data on actual sex offenses at the time SORA was enacted found a likelihood of sexual assault in nonfamily abductions, defendant was the child's blood relative and the crime here was a robbery with no sexual conduct or motive. Moreover, defendant never removed the child from his home, the child was not kidnapped or detained for any prolonged period of time, and the child's detention did not put him at risk of a sexual assault. There was no past sexual offense, and there was an affirmative judicial finding that defendant posed no future risk. The stigma of the misdesignation unconstitutionally impacted defendant's liberty interest in a criminal designation that rationally fit his conduct and public safety risk.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Mentally Impaired Persons §§ 131, 134.

NY JUR 2d Penal and Correctional Institutions §§ 383, 405.

ANNOTATION REFERENCE

See ALR Index under Sex Offender Registration and Notification.

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POINTS OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (Ava C. Page of counsel), for appellant. Requiring an individual who commits a nonsexual crime in the presence of his minor relative to register as a sex offender, when the offense indisputably involved “no sexual contact or motivation,” and New York courts have recently exempted similarly situated individuals from the Sex Offender Registration Act (Correction Law art 6-C), is irrational and violates substantive due process. (People v Diaz, 150 AD3d 60, 32 NY3d 538; People v Knox, 12 NY3d 60; Lawrence v Texas, 539 US 558; Does #1-5 v Snyder, 834 F3d 696; Vega v Lantz, 596 F3d 77; Doe v Pataki, 3 F Supp 2d 456; Windsor v United States, 699 F3d 169; Cleburne v Cleburne Living Center, Inc., 473 US 432; People v Mingo, 12 NY3d 563; People v Alemany, 13 NY3d 424.)

Melinda Katz, District Attorney, Kew Gardens (William H. Branigan and John M. Castellano of counsel), for respondent. Requiring defendant to register as a sex offender did not violate his right to due process. (People v Hernandez, 93 NY2d 261; People v Buyund, 37 NY3d 532; People v Matos, 209 AD3d 19; People v Miguel, 140 AD3d 497; People v Cintron, 13 Misc 3d 833; People v Knox, 12 NY3d 60; FCC v Beach Communications, Inc., 508 US 307; Affronti v Crosson, 95 NY2d 713; People v Taylor, 9 NY3d 129; People v Bing, 76 NY2d 331.)

Emery Celli Brinckerhoff Abady Ward & Maazel, LLP, New York City (David B. Berman of counsel), Caprice Jenerson, Office of the Appellate Defender, New York City (Will A. Page of counsel), Twyla Carter, The Legal Aid Society, New York City (David Loftis of counsel), and Jenay Nurse Guilford, Center for Appellate Litigation, New York City (Nicole P. Geoglis of counsel), for Office of the Appellate Defender and others, amici

curiae. I. Differing law in state and federal court has created random and unjust application of the law. (*People v Marshall*, 195 AD3d 961, 37 NY3d 915; *People v Douglas*, 189 AD3d 1276; *People v Suarez*, 147 AD3d 802; *People v Covington*, 174 AD3d 548; *People v Diaz*, 150 AD3d 60, 32 NY3d 538; *Allen v McCurry*, 449 US 90; *LaFleur v Whitman*, 300 F3d 256; *Adler v Pataki*, 185 F3d 35; *Smith v Bennett*, 365 US 708.) II. Forcing persons who have not committed sex offenses to register as “sex offenders” or “sexually violent offenders” violates substantive due process. (*Matter of Williams v Department of Corr. & Community Supervision*, 136 AD3d 147; *Matter of State of New York v Floyd Y.*, 56 Misc 3d 271; *Devine v Annucci*, 45 Misc 3d 1001, 150 AD3d 1104; *Doe v Lima*, 270 F Supp 3d 684; *Doe v Pataki*, 3 F Supp 2d 456; *Doe #1-5 v Snyder*, 834 F3d 696; *Cleburne v Cleburne Living Center, Inc.*, 473 US 432; *Plyler v Doe*, 457 US 202; *People v Mingo*, 12 NY3d 563.) III. Forcing persons to register as sex offenders based only on their offense of conviction violates procedural due process. (*Kentucky Dept. of Corrections v Thompson*, 490 US 454; *Wills v United States Parole Commn.*, 882 F Supp 2d 60; *People v Miguel*, 140 AD3d 497; *Neal v Shimoda*, 131 F3d 818; *Coleman v Dretke*, 395 F3d 216; *Gwinn v Awmiller*, 354 F3d 1211; *Kirby v Siegelman*, 195 F3d 1285; *Jennings v Owens*, 602 F3d 652; *Connecticut Dept. of Public Safety v Doe*, 538 US 1.)

OPINION OF THE COURT

RIVERA, J.

Defendant stole money at gunpoint from his aunt in the presence of his 10-year-old cousin for which he pleaded guilty to, *inter alia*, the unlawful imprisonment of the child. For this crime, New York requires that he register as a sex offender and comply with the Sex Offender Registration Act (SORA) (Correction Law art 6-C). It is undisputed that the crime was non-sexual and that the SORA court found that defendant is not a sex offender and poses no sexual threat. Nevertheless, the courts below felt constrained by *People v Knox* (12 NY3d 60 [2009]) to impose SORA requirements. Defendant contends that the holdings in *Knox* and its companion cases are distinguishable and do not control his as-applied challenge. We agree and conclude that requiring defendant to register violates his due process rights and does nothing to further the legislative purpose of SORA to protect the public from actual sex offenders. The order of the Appellate Division should be reversed.

I.

Defendant Marcus Brown pleaded guilty to robbery in the first degree (Penal Law § 160.15 [4]) and other counts including, as relevant to this appeal, unlawful imprisonment in the first degree (§ 135.10) based on allegations that he robbed his aunt at gunpoint in her home where his 10-year-old cousin was present. Unlawful imprisonment of a minor when the offender is not the parent of the victim is a SORA-eligible crime and brings defendant within the statutory definition of “sex offender” which, in turn, subjects defendant to mandatory sex offender registration, even where the crime, in fact, lacks a sexual act or motive, and where defendant poses no risk of future harm to children (Correction Law § 168-a [2] [a] [i]).

Prior to defendant’s release from incarceration, the Board of Examiners of Sex Offenders (Board) prepared a case summary and risk assessment instrument, and assessed 90 points against defendant, for a presumptive level two (moderate) risk to reoffend designation.¹ In advance of the SORA proceedings, the Department of Corrections and Community Supervision (DOCCS) indicated that it had determined that “defendant need not be referred to any sex counseling and treatment program due to the nonsexual nature of the offense committed.”

Before the SORA court, defendant claimed, in part, that requiring him to register as a sex offender for a crime with no sexual conduct or motivation was unconstitutional as applied to him and defied the purpose of the registry. Defendant argued that *People v Knox* and its companion cases were distinguishable on the grounds that his cousin was not the target of the offense and his cousin was not abused, abducted, or detained for days.

The prosecution conceded that defendant’s offense had no sexual component, but nevertheless argued that registration was mandatory under *Knox* and that the court should desig-

1. The Board assigns points to a defendant using certain enumerated risk factors identified in its Sex Offender Registration Act: Risk Assessment Guidelines and Commentary. Aggregation of these points sets a defendant’s presumptive risk of sexual reoffense (Correction Law § 168-l [5]; [6] [a]-[c]). Under this graduated point allocation, a defendant assigned a score of 70 points or less is a presumptive level one (low) risk; a score between 70 and 110 is a presumptive level two (moderate) risk; and a score of 110 or more is a presumptive level three (high) risk (see Sex Offender Registration Act: Risk Assessment Guidelines and Commentary at 3 [2006]).

nate defendant a level two risk. Based on the record, the SORA court found that defendant's sole motivation was to steal money and that the offense involved "no sexual contact or motivation" whatsoever. The court further found that defendant was not a "sex offender" "and that he posed no risk of sexual threat at all." Nevertheless, the court determined that it was "constrained by state law" under *Knox* to mandate defendant's registration. But the court granted defendant a downward departure to level one—the lowest risk level under SORA—because the Board "greatly overestimated" defendant's "risk of being a sexual offender."

The Appellate Division affirmed, concluding that defendant's constitutional challenge was without merit, citing *Knox* and departmental precedent (203 AD3d 1183 [2d Dept 2022], citing *People v Marshall*, 195 AD3d 961 [2d Dept 2021]; *People v Douglas*, 189 AD3d 1276 [2d Dept 2020]; *People v Suarez*, 147 AD3d 802 [2d Dept 2017]; *People v Edney*, 143 AD3d 793 [2d Dept 2016]; *People v Taylor*, 42 AD3d 13 [2d Dept 2007]). We granted leave to appeal (38 NY3d 911 [2022]), and now reverse.

II.

Defendant's Due Process As-Applied Challenge

Defendant claims that requiring him to register as a sex offender when he never engaged in sexual misconduct is not rationally related to the government's interest in protecting the public from sex offenders.² He maintains that his underlying offense is factually distinguishable from *Knox* and its companion cases because defendant committed a financially-motivated robbery in which the child victim was related to

2. Amici, the Office of the Appellate Defender, The Legal Aid Society, and the Center for Appellate Litigation, make a similar substantive due process argument and also contend that SORA registration for persons like defendant who have not committed a crime involving sexual misconduct or motivation violates procedural due process. Defendant did not advance a procedural due process challenge and so the merits of such claim are not before us. Amici also argue that we should revisit *Knox* in light of conflicting federal decisions (see *Yunus v Robinson*, 2019 WL 168544, 2019 US Dist LEXIS 5654 [SD NY, Jan. 11, 2019, 17-cv-5839 (AJN)]; *Pennington v Rosado*, 2022 WL 3127062, 2022 US Dist LEXIS 143233 [SD NY, May 31, 2022, 21-CV-7322 (GHW) (KHP)]). Defendant welcomes overruling *Knox* but does not rely solely on this claim. The majority agrees that SORA as applied to defendant violates his due process rights. I and Chief Judge Wilson would overrule *Knox* for the reasons discussed in section III, *infra*.

him, was not the target of the crime, was not abducted, and was detained only for a short period of time. Further, defendant asserts that the *Knox* Court's concerns about dangerous sex offenders escaping registration do not apply to him because, here, there was an uncontested judicial finding that he presents no sexual risk. In response, the District Attorney relies on *Knox* as controlling precedent and asserts that in that case the Court found a rational relationship between the State's goal of protecting children and SORA's automatic registration of persons convicted of kidnapping-related offenses—even where the offense lacks a sexual component.³

“As the term implies, an as-applied challenge calls on the court to consider whether a statute can be constitutionally applied to the defendant under the facts of the case” (*People v Stuart*, 100 NY2d 412, 421 [2003]). We agree with defendant that the sex offender designation and SORA's mandatory registration as applied to him are not rationally related to SORA's purpose of protecting the public from sex offenders and thus violates his due process rights.

A.

SORA labels as “[s]ex offender[s]” all persons convicted of a “kidnapping offense[], provided the victim of such kidnapping or related offense is less than seventeen years old and the offender is not the parent of the victim” (Correction Law § 168-a [1], [2] [a] [i], citing Penal Law §§ 135.05 [second-degree unlawful imprisonment], 135.10 [first-degree unlawful imprisonment], 135.20 [second-degree kidnapping], 135.25 [first-degree kidnapping]). In *Knox* and its two companion cases, the Court

3. The District Attorney also claims that defendant should have raised his challenge on appeal from his judgment of conviction, not the SORA court's order determining his risk level. We reject that contention. While, as a general rule, certification as a sex offender is “appealable as part of the judgment of conviction” (*People v Buyund*, 37 NY3d 532, 537-538 [2021]; see *People v Hernandez*, 93 NY2d 261, 267 [1999]), here, the record fails to establish that the sentencing court certified defendant as a sex offender as required by Correction Law § 168-d (1) (a) (*cf. Hernandez*, 93 NY2d at 267-268). Inasmuch as the Board of Examiners of Sex Offenders, not the court, made the determination in the first instance that defendant must register under SORA, the proper course was for defendant to raise the issue before the SORA court (see *People v Liden*, 19 NY3d 271, 276 [2012]; see also *People v Cintron*, 46 AD3d 353, 354 [1st Dept 2007] [addressing an as-applied constitutional challenge to SORA registration on appeal from the SORA court's order, where the defendant's conviction of the predicate crime predated the enactment of SORA], *affd sub nom. People v Knox*, 12 NY3d 60 [2009]).

rejected a constitutional challenge to these provisions. Thus, we must first determine whether the holding and rationale of *Knox* foreclose defendant's claim.

All three appeals in *Knox* involved defendants subject to SORA as a result of their convictions for attempted or completed child kidnapping and unlawful imprisonment crimes even though there was no proof that their crimes involved any sexual act or motive. The defendant in *Knox* was convicted after she approached an eight-year-old girl in a park and tried to pull her away, apparently in an attempt to replace her own child after recently losing custody (12 NY3d at 64). *Knox* pleaded guilty to attempted kidnapping. In *People v Cintron*, the defendant had a long history of "violent conduct, including sexual violence" and a conviction for sexual misconduct based on forced intercourse with a 16 year old (*id.* at 70). The defendant locked his girlfriend and her two children inside their apartment for several days after an argument and was convicted of unlawful imprisonment of each child (*id.* at 64). In *People v Jackson*, the defendant abducted and threatened to kill the son of a woman if she did not continue to work for him as a prostitute (*id.*). Like *Knox*, he pleaded guilty to attempted kidnapping.

The defendants each challenged their SORA designations on substantive due process grounds. The Court concluded that the defendants had a "constitutionally-protected liberty interest" for purposes of substantive due process "in not being required to register under an incorrect label" (12 NY3d at 66). The Court further concluded that because this interest was not fundamental in the constitutional sense, the defendants' constitutional claims were subject to deferential rational basis review (*id.* at 67). Under that test, the law must be rationally related to a legitimate governmental interest (*id.*).

The Court held that mandatory sex offender registration of nonparent defendants convicted of kidnapping or unlawful imprisonment of victims under 17 years old is rationally related to the legitimate governmental interest of protecting minors from those "who have shown themselves capable of committing sex crimes" against children (*id.*). The Court explained that the Legislature passed SORA to comply with the Jacob Wetterling Crimes Against Children and Sexually Violent Offender Registration Act, which, in part, conditioned federal funding on the State's enactment of a system to register sexual offenders and persons who commit crimes against

children (*id.* at 67-68).⁴ The Court noted that the federal law does not require the “sex offender” designation of persons convicted of kidnapping and unlawful imprisonment of children but instead “[t]hat was the New York Legislature’s choice” (*id.* at 68).

Applying the rational basis test to that legislative decision to include all persons convicted of these crimes within SORA’s reach, even if there was no proof of a defendant’s sexual act or motive, the Court reasoned that the Legislature could “rationally have relied on the fact that a great many cases of kidnapping or unlawful imprisonment of children are indeed sex offenses” (*id.* at 68). In support, the Court cited two studies: a 1990 finding that “about two-thirds or so of the Non-Family Abductions [studied] involved sexual assaults” (*id.*, citing David Finkelhor et al., Office of Juvenile Justice and Delinquency Prevention, First Report: Numbers and Characteristics National Incidence Studies, *Missing, Abducted, Runaway, and Thrownaway Children in America* at 142 [May 1990]), and a 2002 update that found a lower rate of 46% of the nonfamily abductions studied involved a perpetrator who sexually assaulted the child (*id.*, citing David Finkelhor et al., U.S. Department of Justice, National Incidence Studies of Missing, Abducted, Runaway, and Thrownaway Children, *Nonfamily Abducted Children: National Estimates and Characteristics* at 10 [Oct. 2002]). The Court acknowledged that these studies referred to actual sex crimes but opined, without any supporting citation or resource, that “the Legislature could rationally have found that the statistics understate the problem” and that in many cases the offender intends a sexual assault but is thwarted by an arrest or the victim’s escape (*id.*). And further, that the Legislature could have found that a child cut off from familiar surroundings “is vulnerable to sexual abuse even if the offender’s sexual desires are not the motive of the crime” (*id.*). The Court hypothesized that “[a] kidnapper may plan to prostitute a child, or may seize an unplanned-for opportunity to do so” (*id.*). Thus, according to the Court, “the Legislature had a rational basis for concluding that, in the large majority of cases where people kidnap or unlawfully imprison other people’s children, the children either are sexually assaulted or are in danger of sexual assault” (*id.* at 68-69).

4. The Jacob Wetterling Act was superseded by the Adam Walsh Child Protection and Safety Act of 2006 (*see* 34 USC § 20901 *et seq.*).

The Court also concluded that

“the Legislature could have considered not only that cases where the term [sex offender] is unmerited are few, but also that the process of separating those cases from the majority in which it is justified is difficult, cumbersome and prone to error. It could rationally have found that the administrative burden, and the risk that some dangerous sex offenders would escape registration, justified a hard and fast rule, with no exceptions” (*id.* at 69).

According to the Court, the defendants suffer no worse injustice being called “sex offenders” instead of “child predators” (*id.*).

Knox is distinguishable from defendant’s case. First, and most significantly, the SORA court here expressly found that defendant is not a “sex offender,” that “[t]he child involved was not even the target of the crime, was not physically or sexually abused, [and] not kidnapped or detained for any prolonged period of time,” that “[t]here was no sexual contact or motivation on the defendant’s part at all,” and that he “posed no risk of sexual threat at all.” No such finding was made with respect to any of the defendants in the *Knox* appeals, whose crimes—although not sexually motivated—provided some basis to conclude that each of those defendants posed a future risk of sexual harm to children.

Though not elucidated in the Court’s opinion, the *Knox* defendant was homeless and suffered from substance abuse and extensive psychiatric issues. Taking the child was her objective, and if *Knox* had been successful in her attempt to kidnap and remove the child “from the safety of everyday surroundings,” the child indeed could have been left vulnerable to sexual abuse or exploitation (*id.* at 68).⁵ The defendants in *Cintron* and *Jackson* were both willing to leverage children and put

5. The dissent draws a false equivalence between *Knox*’s and defendant’s criminal conduct. *Knox* tried to take a child to make that child her own; defendant was stealing money from a place where his cousin happened to be present. The dissent goes so far as to disregard the significance of each defendant’s respective motivation vis-à-vis the child (*see* dissenting op at 303 n 2). If *Knox*, who was homeless and suffering from mental illness, had completed the abduction, she would have put the child in a position vulnerable to abuse. Indeed, the SORA court adjudicating *Knox*’s risk level noted that the legislative history “makes it clear that not only did they want to go after sex crimes, but also specifically against child abduction crimes” (hearing tr at 12, lines 15-21). Defendant here did no such thing. He made no attempt to abduct his cousin or otherwise remove him from his everyday sur-

(n. cont’d)

them in harm's way in order to exert control over their mothers—in Jackson's case, to make her perform sexually (*id.*). Cintron also clearly posed a risk of sexual harm to children because he had a prior conviction for the sexual assault of a minor (*id.* at 70). Each of them posed a risk of sexual harm to those (or other) children. Unlike the *Knox* defendants, defendant sought only to steal money from his aunt. As the SORA court found, the child was not a target of the robbery; he just happened to be home when defendant broke in. Defendant's cousin was merely in the wrong place at the wrong time. Indeed, based on the lack of a sexually motivated crime, DOCCS determined that defendant was not eligible to participate in the Sex Offender Counseling and Treatment Program while in prison. The SORA court acknowledged that determination, and, based on the totality of the circumstances, concluded that defendant is not a sexual threat.

Apart from these critical factual differences between defendant's case and the *Knox* trio of appeals, none of the *Knox* rationales apply to defendant's circumstances. Although the *Knox* Court cited data at the time SORA was enacted and thereafter that found a likelihood of sexual assault in nonfamily abductions, the underlying offense here was not a nonfamily abduction; defendant was the child's blood relative. As the Court acknowledged, those studies reported *actual* sex offenses, and here the crime was a robbery with no sexual conduct or motive. Thus, these studies do not support a sex offender designation for defendant.

Nor is there support to be found in the *Knox* Court's observation that "a child cut off from the safety of [their] everyday surroundings is vulnerable to sexual abuse even if the offender's sexual desires are not the motive of the crime" (*id.* at 68). It is undisputed that defendant never removed the child from his home. Unlike the child grabbed at a playground in *Knox*, who the defendant intended to make her own, the children in *Cintron* who were kept captive in their apartment for days, and the child in *Jackson* who was abducted upon threat of being killed if his mother did not agree to the demands of that de-

roundings. It simply does not follow from the fact that because defendant was willing to rob his aunt at gunpoint that he would someday sexually assault a child or put a child at risk of sexual abuse. Additionally, whether *Knox* or defendant here are sex offenders "in the colloquial sense" (dissenting op at 303 n 2) is not the legal issue before us; we must decide whether the State may rationally compel this defendant to register as one.

fendant, here defendant's cousin, as the SORA court found, was "not kidnapped or detained for any prolonged period of time" and the cousin's detention did not put him at risk of a sexual assault. The child was not "cut off from his everyday surroundings" nor at risk of sexual violence as was the case in *Cintrón* where the defendant had previously been convicted of forced sexual intercourse with a minor, or *Jackson* where the defendant profited from facilitating prostitution. In both of those cases the record supported a finding of the respective defendant's risk of future sexual harm to children. Here, there was no past sexual offense *and* an affirmative judicial finding that defendant posed no future risk.⁶ There were no such findings in *Knox*.

It is one thing to say that the Legislature may cast a wide net by "employ[ing] overinclusive terms" to include within SORA's reach those who commit a non-sexual crime but nonetheless present a future risk of sexual harm to children (dissenting op at 301). It is another to say that there can be no remedy for those whose crime did not involve a sexual act or motive, in no way targeted a child, *and* who pose no future risk of sexual harm. Contrary to the dissent's presumption, *Knox* held that the former was constitutionally permissible, but it did not close the door on a judicial remedy for those who are undisputedly not a sexual danger to children. The Court in *Knox* focused on each defendant's underlying SORA-eligible crime as a basis for a legislative determination that they could be labeled as sex offenders without inflicting constitutional harm. We cannot say that is true of defendant here; defendant is one of the "few" individuals, recognized by the *Knox* Court, for whom the sex offender designation "is unmerited" (*Knox*, 12 NY3d at 69). *Knox* never held that a person who is found to pose no risk of sexual harm to children can have no judicial remedy for the

6. Having no legitimate basis to escape the SORA court's explicit finding on this point, the dissent attempts to recast that court's use of the past tense as "merely another way of saying that 'there was no actual or potential sexual aspect' to defendant's crime" (dissenting op at 304). This is an inventive way to find hidden meaning in the court's unambiguous words: that "the [c]ourt *does not find him to be a sex offender* and that he posed no risk of sexual threat at all" (emphasis added). Along with the court's other findings regarding the total absence of any sexual motivation on defendant's part and the role of SORA courts in assessing future risks (see Correction Law §§ 168-d, 168-n; *People v Johnson*, 11 NY3d 416, 421 [2008]), there is no way to interpret the court's words as anything other than its recognition that defendant did not pose a risk of future harm and was not a sexual threat to children.

constitutional harm inflicted simply because it is administratively convenient. It is precisely because there is a factual finding of defendant's lack of risk—a finding which we have no power to disturb—that defendant's as-applied challenge must succeed.

The SORA court is tasked with determining each defendant's future risk of sexual offense based on the court's assessment (*Johnson*, 11 NY3d at 421 [explaining that the SORA court “is to make its determination after considering (the Board's) recommendation, and any other materials properly before it”]). Were this not so, there would be no need for a hearing where the defendant has an opportunity to present evidence and opposing arguments regarding their likelihood of recidivism, and for the court to make a legal determination based on the parties' submissions. By suggesting that the SORA court in this case went “well beyond” the statutory framework when acknowledging defendant's lack of risk, the dissent appears to discourage SORA courts from making such findings (dissenting op at 306 n 6). Members of the judiciary should decline the dissenters' invitation to ignore their constitutional duties and statutory fact-finding responsibilities.⁷

As the Court in *Knox* recognized, a sex offender designation imposes a stigma that broadly impacts a defendant's life and ability to participate in society, but, the Court reasoned, that stigma is no worse than that associated with being labeled a “child predator” (12 NY3d at 69). That reasoning cannot support designating defendant a sex offender where his crime is not sexual in nature and his conduct provides no basis to predict risk of future sexual harm. The stigma of this misdesignation unconstitutionally impacts defendant's liberty interest in a criminal designation that rationally fits his conduct and public safety risk.

Lastly, imposing SORA requirements on this defendant does not further “the protection of the community against people who have shown themselves capable of committing sex

7. Worryingly, the dissent seems to suggest that the Legislature has the power to foreclose as-applied constitutional challenges simply by using “over-inclusive terms” (see dissenting op at 304-305). The dissent misunderstands basic constitutional principles and rudimentary aspects of judicial review. When presented with an as-applied challenge like this one, it is our job to decide whether the legislation is unconstitutional based on the record before us (see *People v Stuart*, 100 NY2d 412, 421 [2003]). The dissent's view of the SORA court as a rubber stamp is also contrary to our constitutional principles and contrary to the Legislature's mandate (dissenting op at 305-306).

crimes”—the purpose of SORA (*Knox*, 12 NY3d at 67). Put another way, the concerns we identified in *Knox* are not present here in light of the SORA court’s findings. Defendant committed a terrible crime, but he has not shown himself to be capable of committing sex crimes. The law should not mislead the public into thinking otherwise by listing him in the registry alongside rapists and child molesters.

In sum, the core holding and reasoning in *Knox* does not control here where defendant’s criminal behavior and his lack of future risk of sexual harm to children distinguish him from the *Knox* defendants. The *Knox* Court’s conclusion that designating those three defendants as sex offenders and mandating their SORA registration was rationally related to the government’s interest in protecting children from sexual assault lacks force here, where defendant’s offense belies any such threat. Where a SORA court expressly finds that there was no sexual conduct or motive and no risk of future sexual offense, application of the sex offender label cannot be justified on the ground that a defendant may pose a risk of future sexual misconduct, and there is no further administrative burden in reaching that conclusion. Applying SORA to defendant violates his due process rights by impinging on his liberty interest to be free of the improper designation and registration as a “sex offender.”

III.

Revisiting *Knox*

Separately, I write for myself and Chief Judge Wilson that automatic registration for nonparents convicted of child abduction and unlawful imprisonment of a minor where the crime involves no sexual act or motivation and who present no risk of sexual threat to children is facially unconstitutional. To the extent *Knox* holds otherwise we would overrule it.

Knox correctly concluded that where a nonparent defendant who kidnaps or unlawfully imprisons a minor poses a risk of future sexual harm, the Legislature had a legitimate basis for mandating the defendant’s registration as a sex offender. But *Knox* had no analytically sound basis for its conclusion that the Legislature had a legitimate basis for requiring defendants whose crimes lack any sexual component and pose no risk of future sexual harm to children to be designated and registered as a sex offender. Recent federal district court decisions have

so held, putting the continued application of *Knox* to this class of defendants in question (see *Yunus v Robinson*, 2019 WL 168544, 2019 US Dist LEXIS 5654 [SD NY, Jan. 11, 2019, 17-cv-5839 (AJN)]; *Pennington v Rosado*, 2022 WL 3127062, 2022 US Dist LEXIS 143233 [SD NY, May 31, 2022, 21-CV-7322 (GHW) (KHP)]).

Moreover, the stigma attached to the sex offender designation recognized by the Court in *Knox* has increased in severity and impact with the expanded use of the SORA registry by the public. And the concerns raised by the Court regarding administrative burdens have not materialized, as courts readily distinguish sex offenders from other criminals.

A.

“Under stare decisis principles, a case ‘may be overruled only when there is a compelling justification for doing so’” (*People v Peque*, 22 NY3d 168, 194 [2013], quoting *People v Lopez*, 16 NY3d 375, 384 n 5 [2011]). A “compelling justification may arise when the Court’s prior holding ‘leads to an unworkable rule, or . . . creates more questions than it resolves’” (*id.*, citing *People v Taylor*, 9 NY3d 129, 149 [2007]) or when “a preexisting rule, once thought defensible, no longer serves the ends of justice or withstands the cold light of logic and experience” (*id.*, citing *Policano v Herbert*, 7 NY3d 588, 604 [2006]). Generally, “a court should ‘not . . . apply stare decisis as rigidly in constitutional as in nonconstitutional cases’” (*Taylor* at 149, quoting *Glidden Co. v Zdanok*, 370 US 530, 543 [1962]). For the reasons I discuss, the *Knox* Court’s conclusion that the Legislature may designate as “sex offenders” all persons convicted of an attempted or completed act of child kidnapping and unlawful imprisonment, even when a defendant poses no sexual risk of harm to children, does not serve the ends of justice (12 NY3d at 69). Such designation imposes a harm of constitutional proportions on a defendant that poses no risk, without furthering SORA’s public safety purpose.

B.

The *Knox* analysis is doctrinally flawed and lacks a relevant factual predicate. First, the *Knox* Court misunderstood the liberty interest at stake in cases where a person is treated as guilty of having committed an offense involving sexual misconduct or motivation when, in fact, they are innocent of such crime, and pose no risk to the general public. That de-

fendant's interest is not simply the right to avoid being mislabeled, it is the right not to be treated guilty of a crime the individual never committed. Put another way, a defendant has an interest in retaining the status of a non-sex offender. The difference matters because our criminal law system depends on the proper finding of guilt as related to the actual criminal behavior for which the individual is accused. Indeed, our system treats crimes differently based on the seriousness of the crime and the scope of public harm that flows from a particular criminal action (*see* Penal Law §§ 70.00, 70.02 [classifying felonies and violent felonies and setting the maximum sentences by class], 70.15 [maximum sentences for misdemeanors and violations]).

The misclassification as a sex offender has severe consequences. Although some amount of stigma results from the simple fact of a criminal conviction, the extent of that stigma flows from the nature of the particular crime committed. For example, the stigma attached to a conviction for burglary is not the same as the stigma attached to a conviction for child sexual assault. Sex offenders are societal pariahs. “More than ‘name calling by public officials,’ ” a sex offender label “ ‘is a determination of status’ that can have a considerable adverse impact on an individual’s ability to live in a community” (*People v David W.*, 95 NY2d 130, 137 [2000], citing *Paul v Davis*, 424 US 693, 703 [1976]). “As the experiences of convicted sex offenders . . . has shown,” widespread public dissemination of an individual’s sex offender status and other personal information “is likely to carry with it shame, humiliation, ostracism, loss of employment and decreased opportunities for employment, perhaps even physical violence, and a multitude of other adverse consequences” (*Doe v Pataki*, 3 F Supp 2d 456, 467-468 [SD NY 1998]). The “consequences of community notification are unlimited” and “the stigma created by [SORA registration] pervades into every aspect of an offender’s life” (*Doe v Pataki*, 120 F3d 1263, 1279 [2d Cir 1997] [internal quotation marks and brackets omitted]).

In the years since this Court decided *Knox*, that stigma has only expanded in scope and severity, affecting a sex offender’s ability to find and retain employment and housing, and limiting their efforts to reenter society and to engage with family and friends; it “consigns them to years, if not a lifetime, of existence on the margins” (*Does #1-5 v Snyder*, 834 F3d 696, 705 [6th Cir 2016], *cert denied* 583 US 814 [2017]). For example, at

the time *Knox* was decided, the sex offender registry was searchable by name. In 2015, a renter screening site debuted an online tool compiling data from the public registry into a map searchable by neighborhood (Matt Coneybeare, *This Map Shows You Every Registered Sex Offender in the City*, Viewing NYC, <https://viewing.nyc/this-map-shows-you-every-registered-sex-offender-in-the-city/> [last accessed Nov. 6, 2023]). The site explained that, for example, “if you live on the Lower East Side, you [couldn’t] see all the offenders near you. Until now.” (*Id.*) Similar map tools searchable by address or zip code are available now on other websites such as “Offender Radar” (Offender Radar, National Offender Registry and Offender Resource Center, <https://www.offenderradar.com/> [last accessed Nov. 9, 2023]). Such tools make identifying offenders in a particular area easier and increase the risk of vigilante violence against sex offenders (see Matt Clarke, *Vigilantes Assault, Rob and Murder Registered Sex Offenders*, Prison Legal News, available at <https://www.prisonlegalnews.org/news/2017/may/5/vigilantes-assault-rob-and-murder-registered-sex-offenders/> [last accessed Nov. 9, 2023] [discussing more than 10 examples of vigilante attacks against actual and suspected sex offenders between 2005 and 2017]).

Given the impact of a sex offender designation, there should be no room for error in classification. The label must be limited to those who are *actual* sex offenders, as society understands that term: those persons who pose a risk to public safety of sexual recidivism against vulnerable members of our population. Indeed, proper identification of these criminal actors is the constitutional justification for sex offender registries (see *Smith v Doe*, 538 US 84, 98 [2003] [“an imposition of restrictive measures on sex offenders adjudged to be dangerous is a legitimate nonpunitive governmental objective . . . to protect the public from harm” (internal quotation marks omitted)], citing *Kansas v Hendricks*, 521 US 346, 363 [1997] [“The State may take measures to restrict the freedom of . . . ‘individuals who present a danger to the public.’ ” “This is a legitimate nonpunitive governmental objective and has been historically so regarded”]).

The *Knox* Court concluded that a defendant’s right not to be mislabeled as a sex offender was outweighed by the greater concern of ensuring that no person who places a child at risk for sexual assault “slips through the cracks” and escapes SORA registration. This conclusion ignores that our Constitution does

not tolerate wrongful criminal designations. A “sex offender” may indeed be a “child predator” and therefore suffer no injustice by bearing one label instead of the other—as *Knox* opined—but a person convicted of a crime that lacks any sexual act or motivation and who poses absolutely no sexual threat against children is not a “child predator” for purposes of SORA or any other purpose. That person suffers a true injustice by being designated a “sex offender.”

C.

The *Knox* Court was also incorrect that SORA’s designation as “sex offenders” of defendants convicted of attempted or completed child kidnapping and unlawful imprisonment crimes survives rational basis review.⁸ The Court’s reasons for concluding that the Legislature had a rational basis for labeling persons who do not merit a sex offender designation—studies showing a potential risk of sexual abuse during nonfamily abductions and the administrative burden of identifying defendants convicted of kidnapping and imprisonment of children who pose no risk of sexual harm to children—do not support such broad application to defendants who are not sexual threats to the public.

8. The *Knox* Court concluded that this liberty interest was not a “fundamental right” in due process terms because fundamental rights are those “deeply rooted in this Nation’s history and tradition” (12 NY3d at 67, citing *Washington v Glucksberg*, 521 US 702 [1997], quoting *Moore v East Cleveland*, 431 US 494 [1977 plurality]). By way of comparison, the Court explained that “[t]he right not to have a misleading label attached to one’s serious crime” is unlike the right to marry, to have children, to decide how to educate your child, and to engage in private consensual sexual activity—rights previously identified as fundamental by the United States Supreme Court (*id.* at 67 [citations omitted]). This analogy is open to criticism because the cases referenced by the *Knox* Court do not involve criminal behavior or public risk of sexual offense recidivism. Arguably, the correct analysis should be grounded on criminal justice principles and the core due process rights of criminal defendants (see e.g. *In re Winship*, 397 US 358, 368 [1970] [due process requires proof beyond all reasonable doubt for criminal convictions and non-punitive juvenile delinquency adjudications alike]). In accordance with those principles, and given the weighty rights guaranteed to criminal defendants, SORA’s sex offender designation and mandatory registration requirement would be subject to strict scrutiny. Under that standard, the law passes constitutional muster only if it is “narrowly tailored to serve a compelling state interest” (*Reno v Flores*, 507 US 292, 302 [1993]). SORA fails under that heightened standard. Of course, as discussed supra, SORA’s application to defendants who pose no risk of sexual offense fails even under the more deferential rational basis standard.

The two studies cited in *Knox* refer to the percentages of nonfamily abductions that involve actual sexual assaults and therefore do not support a sex offender designation for those persons who, in fact, have not committed or attempted a sexual crime against a child and who the court finds do not pose a risk of committing one in the future. In addition, recent studies show that the vast majority of abductions are committed by *parents* and not the class of defendants covered by the SORA provisions at issue in this appeal (Wolak, Finkelhor & Sedlak, *Child Victims of Stereotypical Kidnappings Known to Law Enforcement in 2011*, U.S. Department of Justice—Juvenile Justice Bulletin [June 2016]; Finkelhor et al., *Family abduction in a national sample of US children*, 67 *Child Abuse & Neglect* 403 [May 2017], available at <https://www.sciencedirect.com/science/article/abs/pii/S0145213416302599> [last accessed Oct. 29, 2023]; Correction Law § 168-a [2] [a] [i]).

The administrative burden justification also fails the rational basis test. This concern is wholly a creation of the *Knox* Court. The prosecution did not raise this as a ground in any of the three appeals, and there is no legislative history to suggest the Legislature saw this alleged problem. Indeed, it is hard to square the *Knox* Court’s conclusion that it is simply too difficult and burdensome to accurately distinguish non-sex offenders from sex offenders, and defendants who pose no risk to the community of future sex crimes from defendants who present a risk of sexual recidivism, when distinguishing criminals from non-criminals is exactly the work of the criminal legal system. Indeed, the Board and the SORA court are tasked with the individual assessment of a defendant’s risk, based on the available information and upon findings of fact (Correction Law § 168-l).

Nor does the sex offender registration of a person who poses no risk of sexual harm to children further the goals of SORA and the interests of the community. The purpose of SORA is simple: “to protect the public from sex offenders” (*People v Mingo*, 12 NY3d 563, 574 [2009]). The legislative history makes clear that “protection of the public” from “the danger of recidivism posed by sex offenders, especially . . . sexually violent offenders . . . is of paramount concern or interest to [the] government” and that the sex offender registry is meant to aid law enforcement agencies and the justice system in “identify[ing], investigat[ing], apprehend[ing] and prosecut[ing]” those offend-

ers (*Doe*, 120 F3d at 1276). Thus, the purpose of SORA is clearly to track those who are actual sex offenders—it is not intended as a registry of anyone who commits a crime. Populating the registry with the names and information of individuals who do not pose a danger of sexual recidivism to children “undermin[es] the usefulness of the registry” and wastes government resources on tracking people who are not the intended targets of SORA nor implicate the public risk and law enforcement needs that first necessitated SORA registries (*Yunus*, 2019 WL 168544, *11, 2019 US Dist LEXIS 5654, *38, citing *People v Diaz*, 150 AD3d 60, 66 [1st Dept 2017]; *Pennington*, 2022 WL 3127062, *8, 2022 US Dist LEXIS 143233, *20-22; see also Senate Introducer’s Mem in Support, Bill Jacket, L 1995, ch 192 at 19-20 [“Sexual offenses and sexual assault are among the most heinous of crimes and often the victims are those least able to protect and defend themselves—children. . . . By establishing a tracking/notification system local law enforcement agencies will be able to identify and monitor sex offenders”]).

At the time *Knox* was decided, three of the four other state courts that had considered the issue had reached a contrary conclusion (*State v Robinson*, 873 So 2d 1205 [Fla 2004]; *American Civ. Liberties Union of N.M. v City of Albuquerque*, 139 NM 761, 137 P3d 1215 [2006]; *State v Reine*, 2003 WL 77174, 2003 Ohio App LEXIS 52 [Ohio Ct App, 2d Dist, Jan. 10, 2003, No. 19157]).⁹ *Knox* declined to follow those cases and instead followed *People v Johnson* (225 Ill 2d 573, 870 NE2d 415

9. The dissent’s assertion that post-*Knox*, the trend of courts in other jurisdictions has been “in *Knox*’s direction” is overstated (dissenting op at 308 & n 7). There is no “trend” supporting the dissent’s position that because the great majority of child abductors are found to pose a risk of sexual harm to children based on past conduct or a future risk assessment, an as-applied challenge cannot succeed. Quite the opposite. Other courts have held “that sex offender registration requirements violated due process as applied to persons convicted of kidnapping a child” and that “typically, these cases have involved situations where the State conceded, or the facts conclusively demonstrated, that there was no sexual component or motivation in the kidnapping” (*Doe v Sex Offender Registry Bd.*, 488 Mass 15, 25, 170 NE3d 1143, 1153 [2021], citing *State v Robinson*, 873 So 2d 1205, 1217 [Fla 2004]). Here, defendant’s as-applied challenge is even stronger because not only did the State concede and the SORA court find that defendant’s restraint of his cousin was not sexually motivated, but the SORA court also found that defendant did not pose a future risk of sexual misconduct (see *Doe v Sex Offender Registry Bd.*, 488 Mass at 18-19, 170 NE3d 1148-1149 [SORA hearing examiner concluded that the defendant, who physically assaulted a 10-year-old girl, punching her repeatedly and dragging her down a stairwell and who

[2007]), where the Illinois Supreme Court upheld their version of SORA under rational basis review. But as the dissent in *Johnson* points out, the Illinois Legislature amended its SORA while that appeal was pending, making kidnapping a “sex offense” only where “the offense was sexually motivated” (*id.* at 593-594 [Burke, J., dissenting], citing Ill Pub Act 94-945, § 1025, eff June 27, 2006, amending 730 Ill Comp Stat 150/2 [B] [1.5]). The amendment also “create[d] a new registry for offenders who commit certain violent crimes, including aggravated kidnapping of a child by a nonparent, when those crimes are committed without sexual motivation. . . . [Such offenders] will not, however, be a registered sex offender” (*id.* at 594). Given that new legislation, which did not make a non-sexually motivated kidnapping a sex offense, *Knox*’s reliance on *Johnson* was inapt.

IV.

If all this were not reason enough to revisit *Knox*, there are recent federal decisions rejecting the *Knox* analysis for this class of defendants. So long as *Knox* remains the law, defendant and others similarly situated will have meritorious grounds for federal relief, as did the petitioners in *Yunus* (2019 WL 168544, 2019 US Dist LEXIS 5654) and *Pennington* (2022 WL 3127062, 2022 US Dist LEXIS 143233), who likewise committed kidnapping offenses with no sexual motivation.¹⁰ The magistrate judge in *Yunus* agreed with the petitioner that the *Knox* court had “failed to appreciate the costs of sex offender registration” and acknowledged that a sex offender label comes with

had been previously charged with aggravated rape of a child, “posed a high risk of reoffense”).

In any event, the cases cited by the dissent are factually distinguishable (see *Moffitt v Commonwealth*, 360 SW3d 247, 256-257 [Ky Ct App 2012] [the “guilty verdict in this case necessarily required the jury to find beyond reasonable doubt that (the offender) intended to commit a sex crime” so the kidnapping in fact “did include a sexual component” (emphasis omitted)]; *State v Coleman*, 241 Ariz 190, 385 P3d 420 [Ariz Ct App 2016] [the offender grabbed a baby’s arm to pull her away from her mother and physically assaulted the mother]; *Rainer v State*, 286 Ga 675, 679, 690 SE2d 827, 830 [2010] [the offender planned to rob the 17-year-old victim in a drug deal and a physical “struggle” ensued]; *State v Smith*, 323 Wis 2d 377, 382-383, 780 NW2d 90, 93 [2010] [after forcing the minor victim into a vehicle, the offender “physically threatened the minor”]).

10. Amici note there is no right to court-appointed counsel in federal habeas corpus proceedings. This leads to the disparate treatment of similarly situated defendants, with one class having greater access to federal relief solely because they can afford it.

“profound stigma,” “a long list of filing requirements, employment prohibitions, both *de jure* and *de facto*, residency restrictions, and other civil disabilities,” as well as “a host of expanded criminal risks, including state and federal felony penalties for failure to register” (2018 WL 3455408, *23-24, 2018 US Dist LEXIS 110392, *59-61 [SD NY 2018]). Given those “devastating consequences,” the court could not “conclude that due process is satisfied by a statistical showing that 46% of the kidnappers placed on the sex offender registry—a group which [did] not include the plaintiff at bar—deserve to be there” (2018 WL 3455408, *25, 2018 US Dist LEXIS 110392, *62). The court also rejected that “the ‘administrative burden’ of determining which kidnappers are sex offenders makes it rational for the State of New York to subject [the petitioner] to 20 years of public opprobrium . . . after conceding that—for him—the term is ‘unmerited’ ” (*id.* [citation and emphasis omitted]). District Court Judge Alison Nathan—now sitting on the Second Circuit—agreed and adopted the report and recommendation, finding the “slipping-through-the-cracks argument” “insufficient to provide a rational basis for imposing extensive civil and stigmatizing burdens” (2019 WL 168544, *10, 2019 US Dist LEXIS 5654, *33; *see also Pennington*, 2022 WL 3127062, *8, 2022 US Dist LEXIS 143233, *21 [holding that the State may “impose a designation” that is “rationally related to any non-sexual risk (the petitioner) might pose to children,” but may not subject him to “a specifically sexual stigmatizing designation and restrictions designed to prevent sexual abuse”]). According to the court, even if such a rational basis existed, “no further administrative effort is required” where “the absence of a sexual element is undisputed” (2019 WL 168544, *11, 2019 US Dist LEXIS 5654, *35).¹¹

Under stare decisis principles, these federal court decisions provide a reason to reconsider and overturn *Knox* for this class of defendants that pose no risk of sexual harm to children. The analysis by the federal courts is persuasive and thus *Knox*’s “preexisting rule, once thought defensible, no longer serves the ends of justice or withstands the cold light of logic and experience” (*Policano*, 7 NY3d at 604 [internal quotation marks omitted]). Moreover, given the federal rulings, the *Knox* rule is unworkable as it leads to increased litigation in federal court.

11. The presiding judge at the SORA hearing in *Yunus* “found that there was virtually no likelihood that Plaintiff would ever commit a sex crime” (2019 WL 168544, *1, 2019 US Dist LEXIS 5654, *5).

There is simply no legitimate interest served by a rule that requires individuals like defendant to exhaust a constitutional challenge in state court or seek federal relief, all while bearing the “sex offender” label, which, upon success in federal court, will be belatedly removed—although the stigma it brings can never be fully erased.

Defendants have a liberty interest in not being misclassified as a sex offender and required to register under SORA. And while defendants are clearly harmed by this misclassification, there is no countervailing public benefit from a rule that does not achieve the SORA provisions’ child safety purpose—and even undermines that purpose by making the registry less reliable. Judicial inertia in the face of logic, reason and evidence of the mismatch between the legislative goal and the means adopted is indefensible. We would overrule *Knox* to the extent it upholds that mismatch and hope that it will not be long before a majority of the Court agrees.

V.

Defendant stands convicted of a crime that lacks a sexual act or motive. The SORA court found that he is not a sex offender and is not a sexual threat. Under these circumstances, and unlike the defendants in *Knox*, application of SORA’s sex offender designation and registration requirement to defendant is a clear violation of his due process rights.

Accordingly, the order of the Appellate Division should be reversed, with costs, and defendant’s Sex Offender Registration Act designation vacated.

CANNATARO, J. (dissenting). A little more than a decade ago, in *People v Knox*, this Court unanimously decided that defendants who commit, or attempt to commit, kidnapping and unlawful imprisonment of other people’s children can be compelled to register as “sex offenders” under the Sex Offender Registration Act (SORA) (Correction Law art 6-C) without offending the due process guarantees of our State and Federal Constitutions, even if “there was no actual or potential sexual aspect in any of the[ir] crimes” (12 NY3d 60, 66 [2009]). Today the majority all but explicitly overturns that recent precedent. Because in doing so the majority evades our well-established principles of stare decisis, I respectfully dissent.

I.

There are two ways to go about overturning precedent. The

first, straightforward, approach at least attempts to apply stare decisis principles (*see op of Rivera, J.*, parts III-IV [writing solely for herself and Chief Judge Wilson]). The more indirect method, chosen by the majority, “distinguishes” precedent to the point that it unravels. Although I disagree with Judge Rivera that defendant has made the compelling showing necessary to justify departure from stare decisis in this case (*see part II, infra*), my greater concern is with the circumvention of those core jurisprudential principles by the majority.

In *Knox*, we held that it was “plainly rational”—and therefore constitutional—for the legislature to require all persons who kidnap or unlawfully imprison other people’s children to register as sex offenders under SORA, even if that rule impacts some individuals for whom the term is technically “unmerited” (12 NY3d at 69). We concluded that application of “a hard and fast rule, with no exceptions,” was justified by administrative convenience and the rational inference that “in the large *majority* of cases where people kidnap or unlawfully imprison other people’s children, the children either are sexually assaulted or are in danger of sexual assault” (*id.* at 68-69 [emphasis added]).

Our holding in *Knox* respected the prerogative of the legislature to employ overinclusive terms when doing so does not impinge on a fundamental right and rationally furthers a legitimate State objective—here, the government’s compelling interest in protecting the public, and especially children, from recidivism by sex offenders (*see id.* at 67). Application of the rational basis test—which is “not a demanding one”—begins with the “strong presumption that legislative enactments are constitutional” (*id.* at 69). The test requires the party contending otherwise to bear “the heavy burden of showing that a statute is ‘so unrelated to the achievement of any combination of legitimate purposes’ as to be irrational” (*id.* at 69, quoting *Affronti v Crosson*, 95 NY2d 713, 719 [2001]). Under that standard, “[a] classification that has a rational basis or relationship to a legitimate State interest will be upheld even though it ‘is not made with mathematical nicety or because in practice it results in some inequality’ ” (*Lovelace v Gross*, 80 NY2d 419, 427 [1992], quoting *Dandridge v Williams*, 397 US 471, 485 [1970]; *accord Vance v Bradley*, 440 US 93, 108 [1979] [“Even if the classification involved here is to some extent both underinclusive and overinclusive, and hence the line drawn by Congress imperfect, it is nevertheless the rule that . . . perfec-

tion is by no means required” (internal quotation marks omitted)]; *Rojas-Reyes v Immigration & Naturalization Serv.*, 235 F3d 115, 123-124 [2d Cir 2000] [“a law will be upheld under rational basis review if any reasonably conceivable state of facts could demonstrate that the statute is rationally related to a legitimate government purpose . . . because the judicial system has long recognized that the problems of government are practical ones and may justify, if they do not require, rough accommodations—illogical, it may be, and unscientific” (internal quotation marks, brackets and citations omitted)]; *People v Turnage*, 55 Cal 4th 62, 77, 281 P3d 464, 473 [2012] [“When conducting rational basis review, we must accept any gross generalizations and rough accommodations that the Legislature seems to have made”]). The deference afforded by the rational basis test makes it “a paradigm of judicial restraint” (see *Knox*, 12 NY3d at 69 [internal quotation marks omitted]; *Affronti*, 95 NY2d at 719).

Here, the record establishes that defendant is one of the “few” persons who must register as a sex offender even though his crime involved no sexual component or motive¹ (see *Knox*, 12 NY3d at 69). However, this puts him in no better position than any of the three defendants in *Knox*, who we *assumed* fell within the “small minority” of cases “in which there was neither a sexual assault nor any discernible risk of one” (*id.*). Indeed, in the opening paragraph of *Knox*, we observed that “there was *no proof* that [the defendants’] crimes involved any sexual act or sexual motive” (12 NY3d at 64 [emphasis added]). We also noted the People’s “acknowledge[ment]” that there was “no evidence of sexual misconduct in any of these cases” (*id.* at 66). Our ultimate conclusion was that even “on the assumption that there was no actual or potential sexual aspect in any of these crimes . . . defendants’ constitutional rights have not been violated” (*id.*).

Because we decided *Knox* on the premise that the three defendants’ crimes involved no actual sexual component—and further, that even “the possibility of . . . threatened sexual misconduct” had been “ruled out” (see *id.*)—the existence of *findings* to that effect in the instant case is not a “significant[]”

1. Although unclear from the record, defendant does not contend that his trial counsel failed to inform him of this consequence of his plea. If defendant voluntarily agreed to plead guilty to a SORA-qualifying offense with knowledge that doing so would require him to register as a sex offender, that would significantly undermine his claim here.

distinguishing feature (majority op at 287; see *Mackey v Warden, Lebanon Corr. Inst.*, 525 Fed Appx 357, 361 [6th Cir 2013] [rejecting distinction based on proposition that was assumed in prior case]). Although the legislature “might well have made such cases an exception to the requirement that the convicted people register as sex offenders . . . it acted rationally in not doing so” (*Knox*, 12 NY3d at 69).

Unable to distinguish *Knox* on this basis, the majority instead invents a rationale that appears nowhere in *Knox*: that the underlying facts of the *Knox* defendants’ crimes “provided some basis to conclude that each of those defendants posed a *future* risk of sexual harm to children” (majority op at 287 [emphasis added]). Preliminarily, that is not true with respect to the lead defendant, Knox.² But even if it were, we made no such finding or observation in *Knox*, nor did the facts identified by the majority play any role in our constitutional analysis—they function merely as a post hoc justification for setting aside our actual holding that the legislature was constitutionally permitted to define “sex offender” to encompass persons like defendant here.

The majority also mischaracterizes the SORA court’s findings in this case. Contrary to the majority’s repeated assertion,

2. Knox’s SORA-qualifying offense consisted of attempting to abduct an eight-year-old girl in a park for the apparent purpose of replacing one of her own children, of whom she no longer had custody (12 NY3d at 64; majority op at 285). The majority strains to explain why Knox “posed a future risk of sexual harm,” mustering only that Knox was “homeless and suffering from mental illness,” and if successful purportedly “would have put the child in a position vulnerable to abuse” of some kind (majority op at 287, 287-288 n 5 [acknowledging that these facts were “not elucidated in the Court’s opinion” in *Knox*]). That rationalization is not one I can imagine the majority accepting if Knox’s appeal were actually before the Court today, and it certainly was not the basis for our decision in 2009. It is utterly speculative and appears to punish Knox for the actions of some unidentified and completely theoretical third party.

To be sure, the underlying facts of the crimes committed by Knox and defendant were different. Knox was unstable and clearly intended no harm to the child; defendant willfully held his 10-year-old close relative at gunpoint while restraining and robbing the child’s mother, whom he had lived with for years. But at the end of the day, it cannot be disputed that neither Knox nor defendant is a “sex offender” in the colloquial sense (the majority claims this “is not the legal issue” but inconsistently attempts to distinguish this case based in part on the SORA court’s finding that defendant was “not a sex offender”) (*id.* at 283, 287, 288 n 5). Nor did either of their underlying crimes or backgrounds suggest that they posed any significant future risk of *sexual* harm. Defendant’s and Knox’s facts are not distinguishable in any material aspect, and the majority’s assertions to the contrary are baseless.

there was no judicial finding below that defendant poses “no future risk” of sexual harm (majority op at 289, 284). What the SORA court actually stated was that defendant “*posed* [past tense] no risk of sexual threat”—an unambiguous reference to his conduct during the robbery. That is merely another way of saying that “there was no actual or potential sexual aspect” to defendant’s crime, which is precisely what we assumed in *Knox* (12 NY3d at 66). With respect to defendant’s risk of *future* sexual harm, the SORA court reached the same conclusion as the courts in *Knox* with respect to defendants Knox and Jackson—it classified him as a level one sex offender, the applicable designation for all offenders who pose a “low risk” of future sexual harm (*see id.* at 70 [noting that defendants Knox and Jackson were classified as “level one (low risk)” sex offenders, and affirming the classification of defendant Cintron as a “level three (high risk)” offender based on the facts identified in today’s majority opinion]).³ The majority is forced to rewrite the SORA court’s findings in this manner because its ends-oriented analysis demands it in order to distinguish *Knox*.

The majority’s further assertion that “none of the *Knox* rationales apply to defendant’s circumstances” (majority op at 288) ignores the ultimate holding of *Knox*, which is that the applicability of those rationales in the “large majority” of cases involving these SORA-qualifying offenses justifies the marginally overinclusive application of the rule against persons like defendant. It is that principle which drove the decision to reject the claims of the defendants in *Knox*, despite our assumption that they, too, fell into the “minority” class (12 NY3d at 68-69). This appeal merely confirms the existence of outlier cases we assumed could exist in *Knox*; but it in no way distinguishes that decision or exposes any irrationality in its reasoning.⁴

If anything, this case demonstrates that the legislature’s inference that outlier cases are extremely rare was, in fact, rational. At oral argument, defense counsel was asked if she had any “sense of the number of individuals that fit within this

3. This will generally be the case where an individual’s SORA-qualifying offense involved no actual or potential sexual aspect.

4. The attempt to distinguish this case based on the “blood” relationship (*see* majority op at 288) between defendant and his cousin is equally unavailing. Because the record is devoid of any data on kidnappings and false imprisonments by cousins, I cannot conclude that the legislature acted irrationally in declining to exclude them from the sex offender registration requirement as they did parents.

narrow category we’re talking about”—specifically, persons whose offenses involved “no sexual motivation[or] sexual act” (oral argument tr at 14, lines 1-16 [Oct. 19, 2023]). Counsel forthrightly admitted that the class of individuals who fit within this narrow category amounts to “0.001 percent” of all SORA cases (*id.* at 14, line 8). In crafting its purported distinction among such an infinitesimal class of persons, the majority has usurped the legislative function and disrespected principles of stare decisis. Indeed, in holding that there must be a remedy for any defendant as to whom the overarching rationales of *Knox* do not *individually* apply (majority op at 289-290), the majority is effectively holding that the legislature has no prerogative to use overinclusive terms in this arena. That can only be true if one ignores the holding of *Knox* that the rights at stake are not “fundamental” and subjects the entire statutory process to a higher level of judicial review in order to reach the desired outcome.⁵

Finally, in pointing to the SORA court’s “affirmative judicial finding[s]” as the “most significant[]” distinguishing factor here (*see* majority op at 289, 287), the majority arguably creates a standard under which the success of a constitutional challenge turns not on the underlying conviction, but on the election of a SORA court to analyze the criminal record and make findings that are neither statutorily nor constitutionally required. As we recognized in *Knox*, one purpose of the legislature’s “hard and fast rule” was to relieve SORA courts of the administrative burden of analyzing each kidnapping and false imprisonment offense in order to identify the few cases which lack any actual or potential sexual aspect (*see* 12 NY3d at 69). This Court unanimously and unambiguously held that the legislature’s decision to relieve courts of that administrative burden was rational and constitutionally permissible. Consequently, there can be no requirement—not under the constitution, and certainly not under the statute, which speaks for itself—to make the kinds of findings on which the majority

5. Unable to dispute these points, the majority employs straw man tactics, accusing me of arguing that “the Legislature has the power to foreclose as-applied constitutional challenges simply by using ‘overinclusive terms’” (majority op at 290 n 7). Not even remotely. My point is that this Court has *already decided an as-applied challenge* to SORA on materially indistinguishable facts and determined that the legislature’s use of overinclusive terms is constitutional, resulting in application of stare decisis.

now attempts to distinguish *Knox*.⁶ This gives rise to a risk of arbitrary decision-making.

Today's majority responds by asserting that a court that fails to make such findings "ignore[s] their constitutional duties and statutory fact-finding responsibilities" (majority op at 290). But if *that* is true, then the majority is being disingenuous in stating that it is merely distinguishing and not overturning *Knox*. It is not possible to have it both ways. Either all SORA courts are required to analyze whether a defendant's crime involved a sexual component or motive before requiring sex offender registration as a matter of constitutional due process (in which case *Knox* is truly dead law), or the presence or absence of such findings is irrelevant on the theory of *Knox* (i.e., that the legislature had a rational basis on which to define "sex offender" to encompass these crimes, even if in doing so it captured a small number of persons who do not fit within the colloquial definition of that term). Today's decision creates rather than alleviates irrationality in the sex offender registration scheme.

II.

Any analysis of whether to overturn precedent must be "guided, first and foremost, by the principle of stare decisis" (*People v Taylor*, 9 NY3d 129, 148 [2007]). The doctrine of stare decisis provides that once a court has decided a legal issue, subsequent appeals presenting similar facts should be decided in conformity with that decision (*see People v Peque*, 22 NY3d 168, 194 [2013]). The doctrine "promotes the evenhanded, predictable, and consistent development of legal principles, fosters reliance on judicial decisions, and contributes to the actual and perceived integrity of the judicial process" (*Taylor*, 9 NY3d at 148 [internal quotation marks omitted]), through its assurance to the public that "a court is an institution, not merely a collection of individuals, and that governing rules of law do not change merely because the personnel of the court changes" (*People v Garvin*, 30 NY3d 174, 185 [2017] [internal quotation marks omitted]; *see* 1 William Blackstone, *Commentaries on the Laws of England* at 69 [1765] [stare decisis

6. As previously noted, SORA courts *do* have the statutory obligation to determine a defendant's risk-classification level. However, that determination depends on a weighing of specific, carefully developed statutory factors (*see* Correction Law § 168-1 [5]). The findings here go well beyond application of those factors.

“keep(s) the scale of justice even and steady, and not liable to waver with every new judge’s opinion”)).

“Even under the most flexible version of the doctrine of stare decisis, prior decisions should not be overruled unless a compelling justification exists for such a drastic step” (*Grady v Chenango Val. Cent. Sch. Dist.*, 40 NY3d 89 [2023] [internal quotation marks and alterations omitted]). This means that “the Court must have a good reason to do so over and above the belief that the precedent was wrongly decided. It is not alone sufficient that we would decide a case differently now than we did then” (*Dobbs v Jackson Women’s Health Organization*, 597 US 215, 388 [2022, Breyer, Sotomayor & Kagan, JJ., dissenting] [internal quotation marks, citation, and brackets omitted]; *accord Grady*, 40 NY3d at 96 [“Our stare decisis doctrine does not permit overturning precedent merely because ‘it’s time’ ” (brackets omitted)]). The doctrine generally requires “evidence that [the existing precedent] has become unworkable, is unjust or has created an irreconcilable conflict in our case law” (*Matter of State Farm Mut. Auto. Ins. Co. v Fitzgerald*, 25 NY3d 799, 820 [2015] [emphasis added]).

Here, defendant did not preserve a challenge to *Knox* and only “invite[d]” us to overturn it when directly asked at oral argument (see oral argument tr at 4, line 9). Although “[i]nvitations to judicial reconsideration carry more weight when addressed to constitutional issues” (*Matter of Higby v Mahoney*, 48 NY2d 15, 18 [1979]), it is improper for judges to effectively invite themselves to revisit our cases and declare duly enacted laws null and void. Moreover, even when properly invited to overturn prior constitutional precedent, the “‘vitality of . . . constitutional principles cannot be allowed to yield simply because of disagreement with them’ ” (*Thornburgh v American College of Obstetricians and Gynecologists*, 476 US 747, 759 [1986], quoting *Brown v Board of Education*, 349 US 294, 300 [1955]).

Because defendant did not preserve any argument that *Knox* should be overturned, the record unsurprisingly fails to show that our decision “has become unworkable, is unjust or has created an irreconcilable conflict in our case law” (see *Fitzgerald*, 25 NY3d at 819-820). Nor has Judge Rivera succeeded in making that showing on defendant’s behalf (see op of Rivera, J., parts III-IV). Although her criticisms are worthy of debate, virtually all of them were considered and rejected in *Knox*, and I question whether her analysis faithfully applies the presump-

tion of constitutionality and correctly allocates the burden of proof (*see op of Rivera, J.*, at 295-296 [criticizing certain gaps in the studies cited in *Knox*, ignoring that it is a defendant's burden to prove irrationality]).

Knox is plainly “workable”: it has been applied for 13 years in this state without complication or issue. Judge Rivera asserts that “the stigma attached to the sex offender designation recognized by the Court in *Knox* has increased in severity and impact” (*op of Rivera, J.*, at 292), but offers no significant factual basis or support for that assertion. She correctly observes that *Knox* was an outlier among state courts when it was decided, and that the U.S. District Court for the Southern District of New York has expressed disagreement with *Knox* in two recent opinions (*id.* at 298-299; *see Yunus v Robinson*, 2019 WL 168544, 2019 US Dist LEXIS 5654 [SD NY, Jan. 11, 2019, No. 17-cv-5839 (AJN)]; *Pennington v Rosado*, 2022 WL 3127062, 2022 US Dist LEXIS 143233 [SD NY, May 31, 2022, No. 21-CV-7322 (GHW) (KHP)]). However, the modern trend seems to be in *Knox*'s direction.⁷ Further, most states—not just New York—require persons convicted of kidnapping or imprisoning other people's children to register as sex offenders, even if there is no sexual purpose motivating the crime (*see State v Smith*, 323 Wis 2d 377, 384 n 4, 780 NW2d 90, 93 n 4 [2010] [observing that at least 41 other states and the District of Columbia “require individuals convicted of false imprisonment or kidnapping of a minor to register as sex offenders—regardless of whether the crime was of a sexual nature”]). The federal Sex Offender Registration and Notification Act, which was part of the legislation that replaced the Jacob Wetterling Act (*see majority op at 285-286, 286 n 4*), similarly characterizes persons in defendant's position as sex offenders (*see 34 USC § 20911 [1], [5] [A] [ii]; [7] [B]*). Although I share Judge Rivera's concern

7. Compare *State v Robinson* (873 So 2d 1205 [Fla 2004]), *American Civ. Liberties Union of N.M. v City of Albuquerque* (2006-NMCA-078, 139 NM 761, 137 P3d 1215 [2006]), and *State v Reine* (2003 WL 77174, 2003 Ohio App LEXIS 52 [Ohio Ct App, 2d Dist, Jan. 10, 2003, No. 19157], *cause dismissed* 99 Ohio St 3d 1549, 795 NE2d 686 [2003]) (all finding constitutional violations prior to *Knox*, and all considered in *Knox*), with *Doe v Sex Offender Registry Bd.* (488 Mass 15, 170 NE3d 1143 [2021]), *State v Coleman* (241 Ariz 190, 385 P3d 420 [Ariz Ct App 2016]), *Moffitt v Commonwealth* (360 SW3d 247 [Ky Ct App 2012]), *Rainer v State* (286 Ga 675, 690 SE2d 827 [2010]), and *State v Smith* (323 Wis 2d 377, 780 NW2d 90 [2010]) (all rejecting constitutional challenges post-*Knox*). Judge Rivera's attempts to distinguish the post-*Knox* cases have no more merit than her attempt to distinguish *Knox*.

that the two federal cases referenced in her decision are creating inequities, they do not “provide a reason to reconsider and overturn *Knox*” (see op of Rivera, J., at 299)—the two cases both involved the *same* kidnapping, and neither binds this Court.

In the end, Judge Rivera has made a good case for the Second Circuit, the U.S. Supreme Court,⁸ or even this Court to address this issue on a fully developed record in an appropriate future case, but not for this Court to abandon its precedent on this record. Regrettably, a true test of *Knox*’s reasoning will now never occur because that decision is effectively no longer good law: by virtue of today’s decision, the “hard and fast rule, with no exceptions” we approved in *Knox* no longer exists (see 12 NY3d at 69). The current majority has at once kneecapped and provided future litigants with a sword to slay our 14-year-old, unanimous prior decision.

III.

The majority’s desire to protect the due process rights of criminal defendants is commendable. I only wish it showed the same respect for the process by which we overturn precedent. For all of the foregoing reasons, I would affirm the Appellate Division order.

Chief Judge WILSON concurs. Judges TROUTMAN and HALLIGAN concur in result for reasons stated in sections I, II and V of the opinion. Judge CANNATARO dissents and votes to affirm in an opinion, in which Judges GARCIA and SINGAS concur.

Order reversed, with costs, and defendant’s Sex Offender Registration Act designation vacated.

8. Notably, the U.S. Supreme Court denied certiorari in *Knox* (*Knox v New York*, 558 US 1011 [2009]).

[232 NE3d 1244, 209 NYS3d 310]

SRECKO BAZDARIC et al., Appellants, v ALMAH PARTNERS LLC et al., Respondents.

Argued January 11, 2024; decided February 20, 2024

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered March 31, 2022. The Appellate Division (1) reversed, on the law, so much of an order of the Supreme Court, New York County (Carol R. Edmead, J.; op 2019 NY Slip Op 32990[U] [2019]), insofar as appealed from by defendants, which had (a) granted plaintiffs' motion for summary judgment as to liability on their Labor Law § 241 (6) cause of action; and (b) denied defendants' cross-motion for summary judgment dismissing the section 241 (6) cause of action; (2) denied plaintiffs' motion; and (3) granted defendants' cross-motion for summary judgment dismissing the section 241 (6) cause of action. The following question was certified by the Appellate Division: "Was the decision and order of this Court, dated March 31, 2022, properly made?"

Bazdaric v Almah Partners LLC, 203 AD3d 643, reversed.

HEADNOTES**Labor — Safe Place to Work — Industrial Code Violation — Slipping Hazard**

1. Plaintiffs were entitled to summary judgment as to liability on their Labor Law § 241 (6) cause of action for workplace injuries sustained by plaintiff employee when he fell on a plastic covering placed over a stopped escalator as part of a renovation painting job, where plaintiffs established that the covering was a slipping hazard that defendants failed to remove in violation of Industrial Code (12 NYCRR) § 23-1.7 (d). Whether this particular covering was a foreign substance within the meaning of 12 NYCRR 23-1.7 (d) depended on its relation to the area where plaintiff was assigned to work, and the covering's uniform properties. The plastic covering was not a component of the escalator and was not necessary to the escalator's functionality. Rather, it would have been impossible to operate the escalator if covered with plastic. Because section 23-1.7 (d) specifically lists ice, snow, water and grease, the catchall reference to "other foreign substance" includes those substances that share a quality common to the enumerated items. The listed items are, by their nature, types of material that are slippery when in contact with an area where someone walks, seeks passage, or stands, and, when the substance is present, would make it difficult if not impossible to use the work area safely, necessitating one of the affirmative mitigating measures set forth in section 23-1.7 (d) as a means to provide safe footing. The plastic covering used here similarly made plaintiff's work area slippery

upon contact, with the result that plaintiff could not traverse the plastic-covered escalator without risking a fall.

Labor — Safe Place to Work — Industrial Code Violation — Integral to Work Defense

2. In plaintiffs' action arising from workplace injuries sustained by plaintiff employee when he fell on a plastic covering placed over a stopped escalator as part of a renovation painting job, defendants failed to establish that the covering was integral to the work such that defendants could not be held liable for plaintiff's fall and attendant injuries. The "integral to the work" doctrine does not absolve a defendant of liability for the use of an avoidable dangerous condition or for failure to mitigate the danger, including as specifically provided by the Industrial Code, if preventive measures would not make it impossible to complete the work. Standing on a stopped escalator while painting required that the steps be covered to prevent the paint from falling on the escalator machinery and potentially damaging the escalator, and also to prevent the work area from becoming slippery and thus hazardous to plaintiff or any other worker who needed to walk on the steps. Thus, the use of some cover was integral to plaintiff's assignment to paint around the escalator. However, the plastic covering that was placed on the escalator was not integral to the paint job because it made plaintiff's work area slippery, creating one of the hazards that the cover was intended to avoid. Defendant was in a position to avoid this danger because there were alternative coverings that were familiar, previously-used options that would have achieved the goal of protecting the worker from injuries caused by a slipping hazard and also protected the escalator from possible damage.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Employment Relationship §§ 233, 234, 237, 239.

McKINNEY'S, Labor Law § 241 (6).

12 NYCRR 23-1.7 (d).

NY JUR 2d Employment Relations §§ 251, 262, 265–267, 304, 305, 307.

NEW YORK LAW OF TORTS §§ 12:84–12:87.

ANNOTATION REFERENCE

See ALR Index under Labor and Employment.

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POINTS OF COUNSEL

Pollack, Pollack, Isaac & DeCicco, LLP, New York City (Brian J. Isaac of counsel), and *Elefterakis, Elefterakis & Panek*, New

York City (*Eileen Kaplan* of counsel), for appellants. I. The majority opinion at bar announced a new “integral to the work” rule which is unmoored from precedent, and bereft of reason. If the First Department is not reversed, Labor Law § 241 (6) protections, already limited, will be disemboweled. (*Rizzuto v L.A. Wenger Contr. Co.*, 91 NY2d 343; *Zimmer v Chemung County Performing Arts*, 65 NY2d 513; *Sadowski v Long Is. R.R. Co.*, 292 NY 448; *Quinlan v Cecchini*, 41 NY2d 686; *Voss v Black & Decker Mfg. Co.*, 59 NY2d 102; *Tomassi v Town of Union*, 46 NY2d 91; *Pfaffenbach v White Plains Express Corp.*, 17 NY2d 132; *Ross v Curtis-Palmer Hydro-Elec. Co.*, 81 NY2d 494; *Misicki v Caradonna*, 12 NY3d 511; *Henry v Hudson & Manhattan R.R. Co.*, 201 NY 140.) II. The majority’s ruling as to construction of “foreign substance” within the meaning of 12 NYCRR 23-1.7 (d) should be reversed. (*Matter of Walsh v New York State Comptroller*, 34 NY3d 520; *Nadkos, Inc. v Preferred Contrs. Ins. Co. Risk Retention Group LLC*, 34 NY3d 1; *Matter of New York County Lawyers’ Assn. v Bloomberg*, 19 NY3d 712; *Colon v Martin*, 35 NY3d 75; *Velasquez v 795 Columbus LLC*, 103 AD3d 541; *St. Louis v Town of N. Elba*, 16 NY3d 411.)

Scott A Korenbaum, New York City, and *Callahan & Fusco, LLC*, Roseland, New Jersey (*Christopher S. Del Bove* of counsel), for respondents. I. The structure and language of 12 NYCRR 23-1.7 (d) and (e) (1) make clear that Srecko Bazdaric neither slipped on a foreign substance (12 NYCRR 23-1.7 [d]) nor was injured in a passageway (12 NYCRR 23-1.7 [e] [1]). (*Ross v Curtis-Palmer Hydro-Elec. Co.*, 81 NY2d 494; *Nostrom v A.W. Chesterton Co.*, 15 NY3d 502; *Misicki v Caradonna*, 12 NY3d 511; *Toussaint v Port Auth. of N.Y. & N.J.*, 38 NY3d 89; *Matter of Alvarez v Annucci*, 38 NY3d 974; *Kimmel v State of New York*, 29 NY3d 386; *Matter of Manhattan Pizza Hut v New York State Human Rights Appeal Bd.*, 51 NY2d 506; *Lynch v City of New York*, 35 NY3d 517; *Morales v County of Nassau*, 94 NY2d 218; *Matter of Chase Natl. Bank v Guardian Realities, Inc.*, 283 NY 350.) II. The Appellate Division correctly held that the integral to the work defense barred Srecko Bazdaric’s claims because it was necessary for him to protect the escalator from dripping paint to complete his job. (*O’Sullivan v IDI Constr. Co., Inc.*, 7 NY3d 805; *Salazar v Novalex Contr. Corp.*, 18 NY3d 134; *Tucker v Tishman Constr. Corp. of N.Y.*, 36 AD3d 417; *DeLiso v State of New York*, 69 AD3d 786; *Krzyzanowski v City of New York*, 179 AD3d 479; *Mullin v Genesee County Elec. Light, Power & Gas Co.*, 202 NY 275; *Henry v Hudson & Manhattan R.R. Co.*, 201 NY 140; *Johnson v 923 Fifth Ave.*

Condominium, 102 AD3d 592; *Rajkumar v Budd Contr. Corp.*, 77 AD3d 595; *People v Kupprat*, 6 NY2d 88.)

Powers & Santola LLP, Albany (Michael J. Hutter and Daniel R. Santola of counsel), for New York State Academy of Trial Lawyers, amicus curiae. I. Determination of the “integral to the work” defense at issue before the Court cannot be considered and determined in isolation and, instead, must be considered and determined in view of Labor Law § 241 (6)’s core concern to ensure the safety of workers and its negligence-based standard of care requiring owners and contractors to make reasonable efforts to comply with the applicable Industrial Code regulations. (*Ross v Curtis-Palmer Hydro-Elec. Co.*, 81 NY2d 494; *Toussaint v Port Auth. of N.Y. & N.J.*, 38 NY3d 89; *St. Louis v Town of N. Elba*, 16 NY3d 411; *Rizzuto v L.A. Wenger Contr. Co.*, 91 NY2d 343; *Morris v Pavarini Constr.*, 22 NY3d 668; *Nagel v D & R Realty Corp.*, 99 NY2d 98; *Allen v Cloutier Constr. Corp.*, 44 NY2d 290; *Rodriguez v City of New York*, 31 NY3d 312; *Blake v Neighborhood Hous. Servs. of N.Y. City*, 1 NY3d 280; *Koenig v Patrick Constr. Corp.*, 298 NY 313.) II. The “integral to the work” defense as presently constructed by this Court’s decisions is the result of a logical and commonsense application of Labor Law § 241 (6)’s core concerns; and these decisions instruct that such application must be employed in determining whether the defense applies in a given case. (*O’Sullivan v IDI Constr. Co., Inc.*, 7 NY3d 805; *Salazar v Novalex Contr. Corp.*, 18 NY3d 134; *Henry v Hudson & Manhattan R.R. Co.*, 201 NY 140; *Mullin v Genesee County Elec. Light, Power & Gas Co.*, 202 NY 275.) III. The first department majority opinion holding that the “integral to the work” defense immunized owners and contractors from liability for a violation of Labor Law § 241 (6) when the risk involved in the work can be reasonably avoided cannot be reconciled with the defense as presently interpreted by this Court and must be rejected as it constitutes an unwarranted extension of the defense.

OPINION OF THE COURT

RIVERA, J.

Plaintiffs are entitled to summary judgment as to liability on their Labor Law § 241 (6) cause of action for workplace injuries resulting from a fall on a plastic covering placed over a stopped escalator as part of a renovation project paint job. Plaintiffs established that the covering was a slipping hazard that de-

defendants failed to remove in violation of Industrial Code (12 NYCRR) § 23-1.7 (d), rendering defendants liable under Labor Law § 241 (6). Additionally, contrary to the Appellate Division's conclusion, the plastic covering was not integral to the paint job but was created by use of a nonessential and inherently slippery plastic that caused plaintiff employee's injuries. We therefore reverse.

I.

Plaintiffs Srecko Bazdaric and his spouse Zorka filed this action for damages arising from disabling injuries that Srecko sustained at a renovation project worksite when he slipped on a plastic covering on an escalator in an area he was assigned to paint. The injuries left Srecko unable to work. Plaintiffs alleged, among other things, violations of Labor Law § 241 (6) under various sections of the Industrial Code against defendant owners of the premises where the injury occurred—Almah Partners LLC, Almah Mezz LLC, 180 Maiden Lane LLC, Downtown NYC Owner LLC—and defendant general contractor J.T. Magen & Company, Inc (J.T. Magen).¹ Defendant J.T. Magen hired nonparty subcontractor Kara Painting (Kara), which employed Srecko as a painter on the project.

Plaintiffs moved for partial summary judgment on liability under Labor Law § 241 (6) based on violations of Industrial Code (12 NYCRR) § 23-1.7 (d) and (e) (1) and (2). In support, they submitted Srecko's testimony that he complained to Kara's foreman, "this is no way to work on this," when he saw the unsecured plastic covering the escalator that he was required to stand on to complete the paint job. In response, the foreman cursed at him, chastised him for complaining, and told him he "ha[d] to do" the job on the plastic. Srecko thus walked to the middle of the escalator, put his paint can down, took a step to begin the job, and slipped and fell on the plastic covering. A three-gallon paint can fell on his leg, a paint can hit his back, and his body hit the metal of the escalator. To establish the plastic was not appropriate to the task, plaintiffs relied on Srecko's testimony, including his assertion that drop cloths were available on the premises. Plaintiffs also submitted testimony from Lucas Calamari, defendant J.T. Magen's superintendent, that the plastic was the wrong type of covering for the esca-

1. Supreme Court dismissed plaintiffs' claims under Labor Law § 200, and neither party moved on the Labor Law § 240 claim, so neither are at issue on this appeal.

tor steps, and that if he had seen that covering before Srecko's fall, he would have directed that it be removed and replaced with a safer covering on the steps. Calamari admitted that Kara was using drop cloths at this particular site, and that in his experience drop cloths are less slippery than the plastic that was placed on the escalator. He also acknowledged that he had previously seen escalators instead covered with wood. After Srecko's fall, Calamari directed that the plastic covering be removed, and "it was removed right away" and "wasn't used anymore." Defendants opposed and cross-moved to dismiss the Labor Law § 241 (6) cause of action, arguing, as relevant here, that 12 NYCRR 23-1.7 (d) and (e) (1) were inapplicable and the plastic covering was integral to the work. Defendants further asserted that Srecko was at fault, relying on an affidavit from the foreman that Srecko placed and used the plastic covering even though canvas drop cloths were available, a characterization of the events denied by Srecko. Supreme Court granted plaintiffs summary judgment on the Labor Law § 241 (6) cause of action based on violations of 12 NYCRR 23-1.7 (d) and (e) (1) (2019 NY Slip Op 32880[U] [Sup Ct, NY County 2019]).²

A divided Appellate Division reversed and granted defendants' cross-motion for summary judgment dismissing the Labor Law § 241 (6) cause of action over a two-Justice dissent (203 AD3d 643 [1st Dept 2022]). As relevant here, the majority applied the maxim *ejusdem generis* to conclude that the plastic covering was not a foreign substance under 12 NYCRR 23-1.7 (d) because the plastic covering was "not similar in nature to the foreign substances listed in the regulation, i.e., ice, snow, water or grease" (*id.* at 644). The majority also concluded that plaintiffs' claim was barred because the plastic covering was integral to the work (*id.*).³ The dissent maintained that the plastic sheeting, as "a physical material not normally present on an escalator," constituted a foreign substance under the ordinary meaning of the term and therefore comes within the scope of 12 NYCRR 23-1.7 (d), and further that the plastic covering was not integral to Srecko's work because there was nothing intrinsic to the plastic used that was essential to the paint job (*id.* at 649 [Moulton, J., dissenting]). The Appellate Division granted plaintiffs leave to appeal and certified the

2. Plaintiffs do not appeal Supreme Court's rejection of their claim under 12 NYCRR 23-1.7 (e) (2).

3. The Appellate Division majority also rejected plaintiffs' claim under 12 NYCRR 23-1.7 (e) (1) as similarly inapplicable.

question whether its decision and order was properly made (2022 NY Slip Op 67803[U] [1st Dept 2022]). We answer that question in the negative.

II.

Plaintiffs argue that the plastic covering was a foreign substance for purposes of 12 NYCRR 23-1.7 (d) because it was not a part of the escalator, and that this interpretation best supports the broad remedial purposes of the Labor Law. Plaintiffs further argue that the majority below misapplied the “integral to the work” doctrine on the facts of this case. We conclude that plaintiffs established their entitlement to summary judgment under Labor Law § 241 (6) because they demonstrated, *prima facie*, that the plastic covering created a slippery surface in violation of 12 NYCRR 23-1.7 (d) and it was not integral to Srecko’s paint job assignment. In response, defendants failed to raise any triable issue of fact.

A.

“On a motion for summary judgment, facts must be viewed ‘in the light most favorable to the non-moving party’ ” (*Vega v Restani Constr. Corp.*, 18 NY3d 499, 503 [2012], quoting *Ortiz v Varsity Holdings, LLC*, 18 NY3d 335, 339 [2011]). The movant “must make a *prima facie* showing of entitlement to judgment as a matter of law, tendering sufficient evidence to demonstrate the absence of any material issues of fact” (*Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986]). “Once this showing has been made, . . . the burden shifts to the party opposing the motion for summary judgment to produce evidentiary proof in admissible form sufficient to establish the existence of material issues of fact which require a trial of the action” (*id.*).

Labor Law § 241 (6) provides:

“All areas in which construction, excavation or demolition work is being performed shall be so constructed, shored, equipped, guarded, arranged, operated and conducted as to provide reasonable and adequate protection and safety to the persons employed therein or lawfully frequenting such places. The commissioner may make rules to carry into effect the provisions of this subdivision, and the owners and contractors and their agents for such work, except owners of one and two-family

dwelling who contract for but do not direct or control the work, shall comply therewith.”

Labor Law § 241 (6) is a “hybrid” statute, as the first sentence “reiterates the general common-law standard of care,” while the second sentence imposes a nondelegable duty with respect to compliance with rules of the Commissioner which contain “specific, positive command[s]” (*Ross v Curtis-Palmer Hydro-Elec. Co.*, 81 NY2d 494, 503-504 [1993]; see also *Toussaint v Port Auth. of N.Y. & N.J.*, 38 NY3d 89, 93 [2022] [“It is the second sentence, mandating compliance with the rules of the Commissioner, that creates a nondelegable duty—but only with respect to certain regulations.”]). Thus, an owner or general contractor “is vicariously liable without regard to [their] fault,” and “even in the absence of control or supervision of the work-site,” where a plaintiff establishes a violation of a specific and applicable Industrial Code regulation (*Rizzuto v L.A. Wenger Contr. Co.*, 91 NY2d 343, 348-350 [1998]; see *Toussaint v Port Auth. of N.Y. & N.J.*, 38 NY3d 89, 94 [2022]; *Nostrom v A.W. Chesterton Co.*, 15 NY3d 502, 507 [2010]). As the Court has emphasized, “[t]he Industrial Code should be sensibly interpreted and applied to effectuate its purpose of protecting construction laborers against hazards in the workplace” (*St. Louis v Town of N. Elba*, 16 NY3d 411, 416 [2011]).

Plaintiffs argue that defendants violated 12 NYCRR 23-1.7 (d), “Protection from general hazards, Slipping hazards,” which provides:

“Employers shall not suffer or permit any employee to use a floor, passageway, walkway, scaffold, platform or other elevated working surface which is in a slippery condition. Ice, snow, water, grease and any other foreign substance which may cause slippery footing shall be removed, sanded or covered to provide safe footing.”

In *Rizzuto* the Court explained that this section:

“unequivocally directs employers not to ‘suffer or permit any employee’ to use a slippery floor or walkway, and also imposes an affirmative duty on employers to provide safe footing by requiring that any ‘foreign substance which may cause slippery footing shall be removed to provide safe footing.’ As such, 12 NYCRR 23-1.7 (d) mandates a distinct

standard of conduct, rather than a general reiteration of common-law principles, and is precisely the type of ‘concrete specification’ that *Ross* requires” (91 NY2d at 350-351 [ellipsis and citations omitted]).

Thus, an owner or general contractor is liable where the negligent act of some party to or participant of the construction project violated the provision and caused the employee’s injury.

To meet their summary judgment burden, plaintiffs here were required to show that: (1) section 23-1.7 (d) applied under the circumstances; (2) defendants or Kara violated that section’s specific commands; (3) this violation alone, or considered with other undisputed factual evidence, constitutes negligence; and (4) the violation caused plaintiffs’ injuries (*see Rizzuto*, 91 NY2d at 351; *Ross*, 81 NY2d at 501-505; *Morris v Pavarini Constr.*, 22 NY3d 668, 675 [2014]). In support of their motion, plaintiffs submitted Srecko’s testimony that he was assigned to paint in an area where an escalator was covered with a slippery plastic covering, he informed his supervisor the plastic was not appropriate for the paint job, he slipped and fell as he started his assigned task in the middle of the escalator, on the way down his back hit a paint bucket and the escalator steps, and, as a result of the injuries from the fall, he can no longer work. Plaintiffs submitted Calamari’s corroborating testimony that the plastic covering was “the wrong type of covering for the escalator steps,” if he had seen the covering before Srecko fell he would have directed Kara and the foreman to remove the plastic and put a safer covering on the steps, in accordance with his instructions the covering was removed after Srecko’s fall and was not used again, he had seen drop cloth coverings on the work site that, in his experience, were less slippery than plastic, and he had previously observed wood coverings being used for these types of paint jobs. Plaintiffs also submitted evidence of Srecko’s injuries and Zorka’s loss of consortium. In their opposition, defendants conceded that Srecko slipped on a plastic covering intentionally placed on the escalator and that the “[p]lastic sheeting was admittedly a poor choice for the purpose it was used.” Thus, plaintiffs established all the factual predicates for liability under Labor Law § 241 (6) if Industrial Code § 23-1.7 (d) applies on the facts of this case. We now turn to that question.

B.

[1] The textual requirements of section 23-1.7 (d) are satisfied here. The escalator is clearly the type of work surface enumerated in this section.⁴ Plaintiffs also established that the plastic covering was not part of the escalator and this foreign substance created a slippery condition. Thus, defendants violated 12 NYCRR 23-1.7 (d)'s express prohibition against the use of this work surface without providing safe footing from a slipping hazard.

Defendants' argument, adopted by the Appellate Division majority, that the plastic covering is not a "foreign substance" for purposes of 12 NYCRR 23-1.7 (d) because it is unlike the substances listed in this section is unpersuasive. Defendants rely on the maxim of ejusdem generis that "general words are construed to embrace only objects similar in nature to those objects enumerated by the preceding specific words" (*Circuit City Stores, Inc. v Adams*, 532 US 105, 114-115 [2001], quoting 2A N. Singer, *Sutherland on Statutes and Statutory Construction* § 47.17 [1991]). Defendants ignore that "[c]anons of construction need not be conclusive" (*Circuit City Stores, Inc. v Adams*, 532 US 105, 115 [2001]), and that "however helpful the maxims when discriminately used, they should not be abused as talismanic" (*Becker v Huss Co.*, 43 NY2d 527, 540 [1978]). Instead, these interpretive aids are deployed to achieve the legislative goals.

Whether this particular covering was a foreign substance within the meaning of 12 NYCRR 23-1.7 (d) depends on its relation to the area where Srecko was assigned to work, and the covering's uniform properties. As to its relation to the work area, the plastic covering was not a component of the escalator and was not necessary to the escalator's functionality. Quite the opposite, as it would have been impossible to operate the escalator if covered with plastic. Therefore, it was, by definition, a substance foreign to the escalator (see Merriam-Webster.com Dictionary, foreign [[---

4. Although defendants argued that the escalator was not a "passageway," their argument was directed to a different subdivision of the Industrial Code, 12 NYCRR 23-1.7 \(e\), and premised on the fact that this subdivision is split into two paragraphs, section 23-1.7 \(e\) \(1\) \("Passageways"\) and section 23-1.7 \(e\) \(2\) \("Working areas"\), which 12 NYCRR 23-1.7 \(d\) is not. Though plaintiffs originally also argued for liability under 12 NYCRR 23-1.7 \(e\) \(1\), they do not argue for liability under that section before this Court. Accordingly, we do not address this argument.](https://www.merriam-</p></div><div data-bbox=)

webster.com/dictionary/foreign] [“not normally found in an area or part”], substance [<https://www.merriam-webster.com/dictionary/substance>] [“physical material from which something is made or which has discrete existence”]).

As to whether the covering’s properties are the type encompassed within the affirmative mandate of 12 NYCRR 23-1.7 (d), because that section specifically lists ice, snow, water and grease, the catchall reference to “other foreign substance” includes those substances that share a quality common to the enumerated items. The listed items are, by their nature, types of material that are slippery when in contact with an area where someone walks, seeks passage, or stands, and, when the substance is present, would make it difficult if not impossible to use the work area safely, necessitating one of the affirmative mitigating measures set forth in section 23-1.7 (d) as a means to provide safe footing. The plastic covering used here similarly made Srecko’s work area slippery upon contact, with the result that Srecko could not traverse the plastic-covered escalator without risking a fall.

Interpreting 12 NYCRR 23-1.7 (d) as we do, to include the plastic covering, accords with the text and achieves this section’s specific purpose of protecting workers against slipping hazards. Defendants’ proposed limitation on “foreign substance” is nonsensical and would thwart this purpose.

III.

Defendants also argue that the plastic covering was integral to the work and therefore they cannot be liable for plaintiffs’ fall and attendant injuries under Labor Law § 241 (6). Defendants, and the Appellate Division majority, misconstrue this doctrine, which applies only when the dangerous condition is inherent to the task at hand, and not, as is the case here, when a defendant or third party’s negligence created a danger that was avoidable without obstructing the work or imperiling the worker.

Salazar v Novalex Contr. Corp. (18 NY3d 134 [2011]) is instructive. The plaintiff in that case sued under Labor Law §§ 240 (1) and 241 (6) for injuries sustained when he stepped into a partially-filled basement trench while laying a concrete floor over the basement. The Court concluded that defendants were entitled to summary judgment dismissing both claims and held that the provision of the Industrial Code at issue—a different subdivision of section 23-1.7, which applies to hazard-

ous openings which are falling hazards—did not apply because “covering the opening in question would have been inconsistent with filling [the trench], *an integral part of the job*” (*id.* at 140 [emphasis added]; *see also O’Sullivan v IDI Constr. Co., Inc.*, 7 NY3d 805 [2006] [permanently installed protruding electrical pipe plaintiff tripped on was integral to the work of constructing the high-rise building]). The doctrine thus recognizes that certain work assignments are, by their nature, dangerous but still permissible, and the particular commands of the Industrial Code may not apply if they would make it impossible to conduct the work. Thus, in *Salazar* it was inherent to the job of filling a trench that the plaintiff work near an unfilled opening, an obvious falling hazard. The doctrine does not, as the Appellate Division majority mistakenly concluded, absolve a defendant of liability for the use of an avoidable dangerous condition or for failure to mitigate the danger, including as specifically provided by the Industrial Code, if preventive measures would not make it impossible to complete the work.

[2] Here, standing on a stopped escalator while painting required that the steps be covered to prevent the paint from falling on the escalator machinery and potentially damaging the escalator, and also to prevent the work area from becoming slippery and thus hazardous to Srecko or any other worker who needed to walk on the steps. Thus, the use of some cover was integral to Srecko’s assignment to paint around the escalator. But that does not mean that any cover used—even one that was inherently slippery—was necessarily “integral,” particularly where a safer alternative would have accomplished the same goal. The plastic covering that was placed on the escalator was not integral to the paint job because it made Srecko’s work area slippery, creating one of the hazards that the cover was intended to avoid. Contrary to defendants’ and the Appellate Division majority’s view, this was not merely a poor choice of material but an inherently dangerous one. Defendant was in a position to avoid this danger because, as Calamari testified, there were alternative coverings—drop cloths and wood panels—that were familiar, previously-used options that would have achieved the goal of protecting the worker from injuries caused by a slipping hazard and also protected the escalator from possible damage. A contrary holding would absolve employers of liability for using any means of accomplishing a task, even if it is the most dangerous. This distorted interpretation finds no support in the Industrial Code or our case law.

IV.

Plaintiffs demonstrated the applicability and a violation of 12 NYCRR 23-1.7 (d) that resulted in Srecko's fall and injury. In response, defendants failed to produce any evidence raising a triable issue of fact as to whether the plastic covering was a foreign substance or caused a slippery footing. Moreover, defendants failed to establish their defense that the plastic covering was integral to Srecko's work and safe to use under the circumstances. Thus, plaintiffs are entitled to summary judgment as to liability based on 12 NYCRR 23-1.7 (d).

Accordingly, the order of the Appellate Division should be reversed, with costs, plaintiffs' motion insofar as it sought summary judgment as to liability on their Labor Law § 241 (6) cause of action granted, defendants' motion insofar as it sought summary judgment on the Labor Law § 241 (6) cause of action denied, and the certified question answered in the negative.

GARCIA, J. (concurring). The issue on this appeal is whether defendant owners—Almah Partners LLC, Almah Mezz LLC, 180 Maiden Lane LLC, Downtown, NYC Owner, LLC—and defendant general contractor—J.T. Magen & Company, Inc.—can be held vicariously liable for plaintiff Srecko Bazdaric's workplace injury. Plaintiff, who had been assigned by his employer to paint the walls and ceiling of an escalator, slipped and fell on the protective plastic sheeting which covered the escalator steps. To hold defendants liable for this accident under Labor Law § 241 (6), plaintiff must allege a violation of an Industrial Code provision "mandating compliance with concrete specifications" (*Ross v Curtis-Palmer Hydro-Elec. Co.*, 81 NY2d 494, 505 [1993]). While I concur in result with the majority denying the defendants' motion for summary judgment, I write separately to make clear that to qualify as a "concrete specification[]," 12 NYCRR 23-1.7 (d) requires that a foreign substance cause the slippery condition referred to in the first sentence of the provision (*see id.*).

Supreme Court granted plaintiff's Labor Law § 241 (6) motion for summary judgment to the extent it relied on 12 NYCRR 23-1.7 (d). The court did not address whether the plastic was a foreign substance because it found "[d]efendants have violated 12 NYCRR 23-1.7 (d) if they permitted a slippery condition on the escalator" (2019 NY Slip Op 32990[U], *5 [Sup Ct, NY County 2019]). The Appellate Division reversed and granted defendants' motion for summary judgment (203 AD3d 643, 643

[1st Dept 2022]). The Court invoked the principle of *ejusdem generis* to conclude that the plastic sheeting was not a foreign substance because it “is not similar in nature to the foreign substances listed in the regulation, i.e., ice, snow, water or grease” (*id.* at 644). The Court then determined that “even if the regulation arguably contemplates plastic sheeting to be a slipping hazard, under the factual circumstances here, the integral to the work defense bars plaintiff’s reliance on 12 NYCRR 23-1.7 (d)” (*id.*).

“As a general rule, when an employee is injured in the course of his employment, his sole remedy against his employer lies in his entitlement to a recovery under the Workers’ Compensation Law” (*Billy v Consolidated Mach. Tool Corp.*, 51 NY2d 152, 156 [1980], citing Workers’ Compensation Law § 11; *see also Williams v Hartshorn*, 296 NY 49, 50 [1946]; *Gonzales v Armac Indus.*, 81 NY2d 1, 8-9 [1993]). Workers’ compensation is an exclusive remedy with only limited exceptions, such as where the employer commits an intentional tort against the employee (*see Mylroie v GAF Corp.*, 81 AD2d 994, 995 [3d Dept 1981], *affd* 55 NY2d 893 [1982]). However, while workers’ compensation generally does not allow actions against *employers* for accidental injuries suffered in the course of employment, employees may bring actions against *owners* and *general contractors* under certain circumstances.

One avenue for doing so is Labor Law § 200 (1), which codifies a “common-law duty imposed upon an owner or general contractor to maintain a safe construction site” (*Rizzuto v L.A. Wenger Contr. Co.*, 91 NY2d 343, 352 [1998]). However, it is well settled that to recover under Labor Law § 200 (1), a plaintiff must show that an owner or general contractor had “the authority to control the activity bringing about the injury to enable it to avoid or correct an unsafe condition” (*id.* [emphasis omitted], quoting *Russin v Louis N. Picciano & Son*, 54 NY2d 311, 317 [1981]). In *Comes v New York State Elec. & Gas Corp.* (82 NY2d 876, 877 [1993]), to take one example, we held that the Appellate Division correctly dismissed a Labor Law § 200 (1) claim where “there [was] no evidence that defendant exercised supervisory control” over the moving of a steel beam.

Labor Law § 241 (6), at issue here, provides another means for seeking recovery from owners and general contractors, imposing a nondelegable duty to “‘provide reasonable and adequate protection and safety’ for workers and to comply with the

specific safety rules and regulations promulgated by the Commissioner of the Department of Labor” (*Ross*, 81 NY2d at 501-502, quoting Labor Law § 241 [6]). Because the duty is nondelegable, unlike the duty imposed by Labor Law § 200 (1), plaintiffs “need not show that defendants exercised supervision or control over [the] worksite in order to establish [a] right of recovery” (*id.* at 502). However, this vicarious liability is limited: “only ‘provisions of the Industrial Code mandating compliance with *concrete specifications*’ give rise to a nondelegable duty under Labor Law § 241 (6)” (*see Toussaint v Port Auth. of N.Y. & N.J.*, 38 NY3d 89, 94 [2022] [emphasis added], quoting *Ross*, 81 NY2d at 505). The Court in *Ross* reasoned that allowing plaintiffs to use “broad, nonspecific regulatory standard[s] as predicate[s]” under Labor Law § 241 (6) would “seriously distort the scheme of liability for unsafe working conditions,” render Labor Law § 200 (1) “all but superfluous,” and run contrary to legislative intent (81 NY2d at 504-505).

The Industrial Code section at issue here must be interpreted within this framework:

“Employers shall not suffer or permit any employee to use a floor, passageway, walkway, scaffold, platform or other elevated working surface which is in a slippery condition. Ice, snow, water, grease and any other foreign substance which may cause slippery footing shall be removed, sanded or covered to provide safe footing” (12 NYCRR 23-1.7 [d]).

While we have held that 12 NYCRR 23-1.7 (d) “mandates a distinct standard of conduct” (*Rizzuto*, 91 NY2d at 351) and satisfies *Ross*, that conclusion flows from reading the second sentence of the regulation to inform the meaning of the first. Absent any context, the first sentence is clearly a general reiteration of common-law principles. To qualify as mandating compliance with a “concrete specification[]” (*see Ross*, 81 NY2d at 505), the “slippery condition” referenced in the first sentence must be caused by the “foreign substance” described in the second. Taken as a whole, 12 NYCRR 23-1.7 (d) “mandates a distinct standard of conduct” by requiring that employees not be permitted to use a floor or any other elevated surface which is in a slippery condition due to “[i]ce, snow, water, grease [or] any other foreign substance” and by further requiring that such a substance be removed or otherwise remedied “to provide safe footing.” In *Rizzuto*, the plaintiff alleged that diesel fuel—clearly a “foreign substance”—inadvertently sprayed into his

work area and caused the slippery condition (91 NY2d at 347). A contrary reading of 12 NYCRR 23-1.7 (d) would indeed create common-law negligence liability under the first sentence of the provision (*see Toussaint*, 38 NY3d at 110 [Wilson, J. dissenting] [supporting a broad interpretation of *Rizzuto* that would in fact create common-law negligence liability]).

The majority's holding that "defendants violated 12 NYCRR 23-1.7 (d)'s express prohibition against the use of this work surface without providing safe footing from a slipping hazard" (majority op at 319) is somewhat ambiguous. However, the preceding sentence concluding that "[p]laintiffs . . . established that the plastic covering was not part of the escalator and this foreign substance created a slippery condition" thereby establishing a violation of 12 NYCRR 23-1.7 (d) (majority op at 319), combined with the significant attention given to the question of whether the plastic sheeting was a foreign substance (majority op at 319-320), makes clear enough that the foreign substance referred to in the second sentence must cause the slippery condition referred to in the first. Clarity in our interpretation of 12 NYCRR 23-1.7 (d), always important, is especially crucial in this case, where Supreme Court based its holding on an overly broad reading of the first sentence of that provision, untethered to any requirement that the plastic sheeting was a "foreign substance."

Although a close question, I agree that the plastic sheeting was a "foreign substance" within the meaning of 12 NYCRR 23-1.7 (d).^{*} I do not agree, however, that any substance "not part of the escalator" (majority op at 319) would qualify as such. I would hold instead that plastic sheeting shares the same qualities that make "ice, snow, water and grease" hazardous when introduced into a qualifying work area.

Chief Judge WILSON and Judges TROUTMAN and HALLIGAN concur. Judge GARCIA concurs in result in an opinion, in which Judges SINGAS and CANNATARO concur.

Order reversed, with costs, plaintiffs' motion insofar as it sought summary judgment as to liability on their Labor Law § 241 (6) cause of action granted, defendants' motion insofar as it sought summary judgment on the Labor Law § 241 (6) cause of action denied, and certified question answered in the negative.

^{*} I also agree that the integral to the work exception does not apply.

[234 NE3d 337, 210 NYS3d 721]

In the Matter of CLIFTON PARK APARTMENTS, LLC, as Owner of Pine Ridge II Apartments, et al., Respondents, v NEW YORK STATE DIVISION OF HUMAN RIGHTS, Appellant, et al., Respondents. (And Another Related Proceeding.)

Argued January 9, 2024; decided February 15, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Appellate Division of the Supreme Court in the Third Judicial Department, entered April 28, 2022, in proceedings pursuant to Executive Law § 298 (transferred to the Appellate Division by order of the Supreme Court, entered in Saratoga County). The Appellate Division (1) annulled a determination of respondent New York State Division of Human Rights, which had found that petitioners engaged in an unlawful discriminatory practice based on retaliation; and (2) granted the petition to set aside the determination.

Matter of Clifton Park Apts., LLC v New York State Div. of Human Rights, 204 AD3d 1358, reversed.

HEADNOTES

Civil Rights — Judicial Review — Adverse Action Element of Retaliation Claim — Threat of Litigation

1. A threat of litigation may constitute the requisite adverse action to support a retaliation claim under the New York State Human Rights Law. Accordingly, in related Executive Law § 298 proceedings, substantial evidence supported the determination of respondent New York State Division of Human Rights (DHR) that a letter sent by petitioner attorney on petitioner housing facility's behalf to respondent not-for-profit corporation and its employee, following DHR's dismissal of a complaint alleging that the housing facility engaged in familial status discrimination during a test call placed by the employee, amounted to adverse action. Determining whether a threat of litigation amounts to adverse action is properly left to a fact-specific determination. A per se rule precluding litigation threats from constituting adverse action would impermissibly restrict New York's antiretaliation statute (*see* Executive Law § 296 [7]) in violation of the legislative directive to construe the Human Rights Law liberally to eliminate discrimination in this state (*see id.* § 300). Here, DHR rationally concluded that the letter threatened litigation, as it specifically stated that the housing facility was looking to the corporation and its employee for damages and warned that the facility would proceed as necessary to obtain such damages. Further, the record established that the attorney's letter "shocked" the corporation's employees and forced the corporation to expend resources and "scramble . . . to locate counsel" to address the threat. In the circumstances presented, it was rational for DHR to conclude that the threatening letter caused the corporation to divert resources and could have dissuaded a person from pursuing a discrimination claim to protect their rights under the Human Rights Law.

Civil Rights — Judicial Review — Retaliation Claim — Burden to Establish Protected Activity

2. In determining whether petitioner housing facility and its attorney engaged in retaliation in violation of the New York State Human Rights Law by sending a letter threatening litigation to respondent not-for-profit corporation and its employee, respondent New York State Division of Human Rights (DHR) improperly shifted the burden when analyzing whether the corporation engaged in protected activity. Petitioners sent the letter following DHR's dismissal of the corporation's complaint alleging that the housing facility engaged in familial status discrimination during a test call placed by the employee. Appellate Division and DHR precedent required the corporation and its employee to demonstrate that they were engaged in protected activity by showing that the initial complaint to DHR was based on a reasonable belief that the housing facility had engaged in unlawful housing discrimination during the test call. DHR therefore erred by putting the burden on petitioners to show that the allegations advanced by the corporation in the initial DHR complaint were made in bad faith. Because DHR failed to make any non-conclusory factual findings on this issue, remittal was necessary so that DHR could determine whether the corporation and its employee established the "protected activity" element of the retaliation claim.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Civil Rights §§ 12–14, 19, 402, 488.
McKINNEY's, Executive Law § 298.
NY JUR 2d Civil Rights §§ 145, 283, 285, 286.

ANNOTATION REFERENCE

See ALR Index under Civil Rights and Discrimination;
Retaliation and Revenge.

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POINTS OF COUNSEL

New York State Division of Human Rights, Bronx (Toni Ann Hollifield and Caroline J. Downey of counsel), for appellant. I. The Third Department exceeded its extremely narrow judicial review authority and instead substituted its judgment for that of the New York State Division of Human Rights regarding the question of fact of whether respondents' threatening letter constituted a retaliatory adverse action. (300 Gramatan Ave. Assoc. v State Div. of Human Rights, 45 NY2d 176; Matter of Mize v State Div. of Human Rights, 33 NY2d 53; Rainer N.

Mittl, Ophthalmologist, P.C. v New York State Div. of Human Rights, 100 NY2d 326; *Hollandale Apts. & Health Club, LLC v Bonesteel*, 173 AD3d 55; *Matter of Delkap Mgt., Inc. v New York State Div. of Human Rights*, 144 AD3d 1148, 33 NY3d 925; *Matter of New York State Off. of Mental Retardation & Dev. Disabilities [Staten Is. Dev. Ctr.] v New York State Div. of Human Rights*, 164 AD2d 208; *Matter of State Div. of Human Rights v County of Onondaga Sheriff's Dept.*, 71 NY2d 623; *Matter of State Div. of Human Rights [Granelle]*, 70 NY2d 100; *Matter of Pace Coll. v Commission on Human Rights of City of N.Y.*, 38 NY2d 28.) II. The Third Department erred when, having found that the New York State Division of Human Rights' administrative law judge did not undertake any analysis as to whether CityVision Services, Inc. reasonably believed that Clifton Park Apartments, LLC, as Owner of Pine Ridge II Apartments, was engaging in a discriminatory practice, the Court failed to remit this matter to the New York State Division of Human Rights for further proceedings regarding this question of fact. (*State Div. of Human Rights v County of Monroe*, 73 AD2d 1058, 50 NY2d 805; *Matter of State Div. of Human Rights v North Queensview Homes*, 75 AD2d 819.)

Powers & Santola, LLP, Albany (Michael J. Hutter, Jr. of counsel), for Clifton Park Apartments, LLC and another, respondents. I. CityVision Services, Inc.'s initial housing discrimination complaint filed with the New York State Division of Human Rights alleging Clifton Park Apartments, LLC engaged in unlawful steering, a discriminatory practice, was dismissed on the ground it was factually unfounded. (*Montanaro v Weichert*, 145 AD3d 1563; *Zuch v Hussey*, 394 F Supp 1028; *Stalker v Stewart Tenants Corp.*, 93 AD3d 550; *Francis v Kings Park Manor, Inc.*, 944 F3d 370; *Hirsch v Morgan Stanley & Co.*, 239 AD2d 466.) II. The Third Department correctly held that evidence in the record of the hearing was insufficient to support the New York State Division of Human Rights' finding that respondents took adverse action against CityVision Services, Inc., an element of a retaliation claim, thereby requiring annulment of the New York State Division of Human Rights' determination. (*Forrest v Jewish Guild for the Blind*, 3 NY3d 295; *Hollandale Apts. & Health Club, LLC v Bonesteel*, 173 AD3d 55; *Langton v Warwick Val. Cent. Sch. Dist.*, 144 AD3d 867; *Treglia v Town of Manlius*, 313 F3d 713; *Dodd v Middletown Lodge [Elks Club] No. 1097*, 264 AD2d 706; *Modiano v Elliman*, 262 AD2d 223; *Matter of Electchester Hous. Project v Rosa*, 225 AD2d 772; *Matter of New York State Off. of Mental*

Retardation & Dev. Disabilities [Staten Is. Dev. Ctr.] v New York State Div. of Human Rights, 164 AD2d 208; *Regional Economic Community Action Program, Inc. v City of Middletown*, 294 F3d 35; *Matter of Mohawk Finishing Prods. v State Div. of Human Rights*, 57 NY2d 892.) III. If this Court holds the Third Department erred in concluding the hearing evidence did not support New York State Division of Human Rights' finding that respondents took adverse action against CityVision Services, Inc., it should remit this matter to the New York State Division of Human Rights for further proceedings to determine under the correct approach whether CityVision Services, Inc. held a reasonable belief that Clifton Park Apartments, LLC was engaging in housing discrimination.

OPINION OF THE COURT

SINGAS, J.

The New York State Human Rights Law prohibits retaliation against those who make discrimination complaints or engage in other protected activity. We hold that a threat of litigation may constitute the requisite adverse action to support a retaliation claim and, therefore, respondent New York State Division of Human Rights (DHR) rationally concluded that this element had been established here. Remittal is necessary, however, because, as the parties agree, DHR improperly shifted the burden when analyzing whether respondent CityVision Services, Inc. (CityVision) had engaged in protected activity.

I.

CityVision is a Texas-based not-for-profit corporation which tests whether housing facilities engage in discrimination by having their agents pose as prospective tenants. In 2016, respondent Leigh Renner, a CityVision employee, placed a test call to petitioner Clifton Park Apartments, LLC, as owner of Pine Ridge II Apartments (Pine Ridge)—a housing facility located in New York—purportedly seeking to rent an apartment. Following that call, CityVision filed a complaint with DHR, alleging that Pine Ridge had discriminated against Renner based on her familial status in violation of the Human Rights Law (*see* Executive Law § 296 [5] [a] [1]). CityVision maintained that Pine Ridge steered Renner to a different apartment complex after discovering that she intended to reside in the apartment with her children.

DHR investigated CityVision's complaint and dismissed it, concluding that there was no probable cause to support a find-

ing that Pine Ridge engaged in familial status discrimination. Following DHR's determination, Pine Ridge's attorney, petitioner David H. Pentkowski, Esq., sent a letter to CityVision and Renner on Pine Ridge's behalf. The letter stated that Pine Ridge considered the allegations in CityVision's DHR complaint to be "false, fraudulent and libelous." The letter explained that Pine Ridge was "looking to" CityVision and Renner "personally for the damages that" Pine Ridge "sustained as a result of this wrongful conduct." The letter concluded by stating that if CityVision and Renner did not respond within a stated period, Pine Ridge would "assume that" they did "not intend to take responsibility for these actions and [would] proceed accordingly." In response, CityVision and Renner filed a second complaint, alleging that Pine Ridge and Pentkowski retaliated against them for filing the first discrimination complaint. CityVision and Renner claimed that Pine Ridge and Pentkowski sent the letter to intimidate them and, thus, interfere with their protected rights.

A public hearing ensued before an administrative law judge (ALJ). A CityVision employee testified that CityVision's staff was "shocked" when they received Pentkowski's letter, and "had to scramble around . . . to locate counsel," thereby diverting resources in response to the letter. The ALJ recommended a finding of unlawful retaliation, a damages award payable to CityVision, and a civil fine. Concerning the first element of the retaliation claim, the ALJ placed the burden on Pine Ridge and Pentkowski to show that CityVision's initial discrimination complaint was "made in bad faith," and concluded that they failed to meet that burden. The ALJ further determined that Pentkowski's letter was retaliatory and threatening because it sought damages from CityVision and Renner for filing the initial complaint. DHR adopted the ALJ's recommendation as its final order, amending it only to award CityVision attorney's fees.

Pine Ridge and Pentkowski then commenced this Executive Law § 298 proceeding to annul DHR's determination. DHR cross-petitioned to enforce its determination and to transfer the matter to the Appellate Division.

Upon transfer from Supreme Court, the Appellate Division annulled the determination and granted the petition (*see* 204 AD3d 1358, 1361 [3d Dept 2022]). Concerning the first element of the retaliation claim, the Court concluded that the ALJ and DHR "improperly shifted the burden" to Pine Ridge and

Pentkowski “to prove, in the first instance, that CityVision did not hold a reasonable belief that Pine Ridge was engaging in housing discrimination” (*id.* at 1360). The Court did not remit the matter to DHR for further proceedings, however, because “[t]he hearing evidence failed to support the finding that” Pine Ridge and Pentkowski “took adverse action against CityVision, under the third prong of the test for retaliation” (*id.*). The Court held that the “retaliation complaint must be dismissed” because it could not conclude that “the mere sending of the letter rose to the level of retaliation” (*id.* at 1360-1361). We granted DHR leave to appeal (*see* 39 NY3d 904 [2022]), and now reverse the Appellate Division’s judgment and remit the matter for further proceedings.

II.

The Human Rights Law (Executive Law art 15) makes it “unlawful to retaliate against” a person “for opposing discriminatory practices” (*Forrest v Jewish Guild for the Blind*, 3 NY3d 295, 312 [2004]). More specifically, Executive Law § 296 (7) states:

“It shall be an unlawful discriminatory practice for any person engaged in any activity to which this section applies to retaliate or discriminate against any person because [they have] opposed any practices forbidden under this article or because [they have] filed a complaint, testified or assisted in any proceeding under this article.”

The parties do not dispute that the retaliation claim before us should be “analyzed under the same burden-shifting framework established for” other discrimination cases (*Treglia v Town of Manlius*, 313 F3d 713, 719 [2d Cir 2002]). Under this approach, a plaintiff bears the burden to establish a *prima facie* retaliation claim (*see Forrest*, 3 NY3d at 312-313). To meet that burden, the plaintiff must show that (1) they have “engaged in protected activity,” (2) the defendant “was aware that” the plaintiff “participated in” the protected activity, (3) the plaintiff suffered adverse action based upon the activity, and (4) “there is a causal connection between the protected activity and the adverse action” (*id.*). Only the first and third elements of CityVision’s retaliation claim are at issue here.

We address the third element of the retaliation claim first. In *Burlington N. & S. F. R. Co. v White* (548 US 53 [2006]), the Supreme Court considered the antiretaliation provision of title

VII of the Civil Rights Act of 1964 (*see* 42 USC § 2000e-3 [a]), which relates to employment discrimination. The Supreme Court concluded that the adverse action element is satisfied when “a reasonable employee would have found the challenged action materially adverse” in that “it well might have dissuaded a reasonable worker from making or supporting a charge of discrimination” (*Burlington*, 548 US at 68 [internal quotation marks omitted]). If a plaintiff meets this objective standard, the adverse action element is satisfied. The Supreme Court adopted this test to effectuate the intent of the antiretaliation provision—to protect an individual “from retaliation that produces an injury or harm” while “[m]aintaining unfettered access to statutory remedial mechanisms” (*Burlington*, 548 US at 64, 67 [internal quotation marks omitted]). The Court recognized that antidiscrimination statutes “depend[] for [their] enforcement upon the cooperation of [those] who are willing to file complaints and act as witnesses” and interpreting antiretaliation provisions “to provide broad protection from retaliation helps ensure the cooperation upon which accomplishment” of their “primary objective depends” (*id.* at 67; *see Crawford v Metropolitan Government of Nashville and Davidson Cty.*, 555 US 271, 279 [2009]).

[1] Neither party disputes that *Burlington* provides the appropriate standard for assessing adverse action under the Human Rights Law. Applying that test, the Appellate Division erred by concluding that there was insufficient evidence that Pine Ridge and Pentkowski took adverse action against CityVision and Renner based on the initial complaint. We reject the notion that the letter could not amount to adverse action as a matter of law. Instead, determining whether a threat of litigation amounts to adverse action is properly left to a fact-specific determination (*see e.g. Hollandale Apts. & Health Club, LLC v Bonesteel*, 173 AD3d 55, 69 [3d Dept 2019] [eviction threats “may constitute adverse actions . . . , even when the eviction is never carried out”]; *cf. Moran v Simpson*, 80 Misc 2d 437, 438 [Sup Ct, Livingston County 1974] [concluding that the commencement of a libel lawsuit in response to a complaint under the Human Rights Law was an adverse action]). A *per se* rule precluding litigation threats from constituting adverse action would impermissibly restrict New York’s antiretaliation statute (*see* Executive Law § 296 [7]) in violation of the legislative directive to construe the Human Rights Law liberally to eliminate discrimination in this state (*see id.* § 300).

Having rejected the per se rule, our review of DHR's analysis concerning whether CityVision and Renner satisfied the adverse action element is limited. When reviewing DHR's "findings on the presence of unlawful discrimination," this Court "may not weigh the evidence or reject" DHR's "choice where the evidence is conflicting and room for a choice exists" (*Matter of State Div. of Human Rights v County of Onondaga Sheriff's Dept.*, 71 NY2d 623, 631 [1988] [internal quotation marks omitted]; see *Rainer N. Mittl, Ophthalmologist, P.C. v New York State Div. of Human Rights*, 100 NY2d 326, 331 [2003]). Instead, "the judicial function is concluded when it is determined that" DHR's "determination is supported by substantial evidence on the record" (*County of Onondaga Sheriff's Dept.*, 71 NY2d at 631; see Executive Law § 298). "Put a bit differently, the reviewing court should review the whole record to determine whether there is a rational basis in it for the findings of fact supporting the agency's decision" (*300 Gramatan Ave. Assoc. v State Div. of Human Rights*, 45 NY2d 176, 182 [1978] [internal quotation marks omitted]). On judicial review, DHR's determinations are "accorded substantial deference when" it "acts within [its] area of expertness," and we have recognized that "identifying discriminatory acts . . . requires expertness" (*County of Onondaga Sheriff's Dept.*, 71 NY2d at 630; see *300 Gramatan Ave. Assoc.*, 45 NY2d at 183).

Here, DHR concluded that Pentkowski's letter threatened litigation and that such threats could have dissuaded a reasonable person from bringing the original discrimination charge. Initially, DHR rationally concluded that the letter threatened litigation. The letter specifically stated that Pine Ridge was looking to CityVision and Renner for damages and warned that Pine Ridge would proceed as necessary to obtain such damages.

Further, the record established that Pentkowski's letter "shocked" CityVision's employees and forced CityVision to expend resources and "scramble . . . to locate counsel" to address the threat. In the circumstances presented, it was rational for DHR to conclude that the threatening letter caused CityVision to divert resources and could have dissuaded a person from pursuing a discrimination claim to protect their rights under the Human Rights Law. Indeed, a potential plaintiff might be chilled from filing a discrimination complaint when weighing the harm caused by the threat of retaliatory litigation, let alone the injury potentially occasioned by actual re-

taliatory litigation. DHR's determination that the litigation threat amounted to adverse action in this case was rational and, thus, supported by substantial evidence.

[2] We turn to the first element of the retaliation claim. Although we have never adopted the "reasonable belief" standard (see *Matter of Mohawk Finishing Prods. v State Div. of Human Rights*, 57 NY2d 892, 893-894 [1982]), and do not do so here because the parties agree that it applies, Appellate Division and DHR precedent requires CityVision and Renner to demonstrate that they were engaged in protected activity by showing that the initial complaint was based on a reasonable belief that Pine Ridge had engaged in unlawful housing discrimination (see *Matter of New York State Off. of Mental Retardation & Dev. Disabilities [Staten Is. Dev. Ctr.] v New York State Div. of Human Rights*, 164 AD2d 208, 210 [3d Dept 1990]; *State Div. of Human Rights v GPA Dev. Corp.*, 2011 NYHUM LEXIS 16, *20 [NY St Div of Human Rights Case Nos. 10122321 & 10122322 (Feb. 1, 2012)]). DHR therefore erred by putting the burden on Pine Ridge and Pentkowski to show that the allegations advanced by CityVision in the initial DHR complaint were made in bad faith. As the Appellate Division concluded, DHR failed to "undertake any analysis as to whether CityVision reasonably believed that Pine Ridge" had engaged in a discriminatory practice during the test call (204 AD3d at 1360). Because DHR failed to make any non-conclusory factual findings on this issue, remittal is necessary so that DHR may determine whether CityVision and Renner established the first element of the retaliation claim.

Accordingly, the judgment should be reversed, with costs, and the matter remitted to the Appellate Division with directions to remand to DHR for further proceedings in accordance with this opinion.

Chief Judge WILSON and Judges RIVERA, GARCIA, CANNATARO, TROUTMAN and HALLIGAN concur.

Judgment reversed, with costs, and matter remitted to the Appellate Division, Third Department, with directions to remand to the New York State Division of Human Rights for further proceedings in accordance with the opinion herein.

[234 NE3d 343, 210 NYS3d 727]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GONZALO AGUILAR, Appellant.

Argued January 11, 2024; decided February 20, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 28, 2022. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Charles H. Solomon, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree, attempted murder in the second degree, and assault in the first degree.

People v Aguilar, 206 AD3d 572, affirmed.

HEADNOTE

Crimes — Instructions — Jury Note — Meaningful Response

In a murder prosecution in which defendant asserted a claim of self-defense, the trial court meaningfully responded to a note from the deliberating jury, which requested “[a]ll [d]efinitions discussed: Murder II, Manslaughter I, Depraved Murder II, etc.,” by rereading the instructions for the charged counts, but not reinstructing the jury on justification. In determining whether a response to a jury note is meaningful, the court must evaluate the form of the question, which may require clarification before it can be answered, the particular issue of which inquiry is made, the supplemental instruction given and the presence or absence of prejudice to the defendant. Here, the form of the jury’s note indicated a request that the jury be recharged on the elements of the crimes inasmuch as the jury chose to limit which “definitions” it sought by providing an exemplary list containing the first three of the 10 criminal offenses on which the trial court had originally instructed the jury and ending the list with “etc.” The usage of “etc.” at the end of a list signaled a desire for others of the same kind, and the jury did not seek further instruction or clarification after the recharge. In addition, defense counsel’s request for the justification recharge was made after the court had concluded rereading the instructions on the charged counts; returning to that portion of the jury note may have placed undue emphasis on the justification issue.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Trial §§ 1277–1279, 1282.

CARMODY-WAIT 2d Jury Conduct and Deliberation
§§ 201:15–201:17.

NY JUR 2d Criminal Law: Procedure §§ 2883, 2884, 2886.

ANNOTATION REFERENCE

See ALR Index under Jury Trials.

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Query: jury /3 note /p meaningful /2 response /p justification

POINTS OF COUNSEL

Jenay Nurse Guilford, Center for Appellate Litigation, New York City (Jan Hoth of counsel), for appellant. I. The trial court erroneously refused to reinstruct the jury on the defense of justification in response to a jury note seeking “all definitions” which the court interpreted as requiring a recharge on all of the submitted counts. (*People v Kisoona*, 8 NY3d 129; *People v Santi*, 3 NY3d 234; *People v Almodovar*, 62 NY2d 126; *People v Malloy*, 55 NY2d 296; *People v Ellis*, 183 AD2d 534, 81 NY2d 854; *People v Reynoso*, 73 NY2d 816; *People v McManus*, 67 NY2d 541.) II. Where the court instructed the jury that appellant was an interested witness as a matter of law, appellant was deprived of due process and the presumption of innocence, an issue reviewable in this Court as a question of law because any objection would have been futile. (*United States v Gaines*, 457 F3d 238; *United States v Brutus*, 505 F3d 80; *United States v Mehta*, 919 F3d 175; *United States v Solano*, 966 F3d 184; *People v Blake*, 39 AD3d 402, 9 NY3d 873; *People v Bowden*, 198 AD2d 39; *People v Davis*, 13 NY3d 17; *Turner v Rogers*, 564 US 431; *Mathews v Eldridge*, 424 US 319; *Portuondo v Agard*, 529 US 61.)

Alvan L. Bragg, Jr., District Attorney, New York City (Stephen J. Kress, Steven C. Wu and Christopher P. Marinelli of counsel), for respondent. I. The court meaningfully responded to the jury’s note. (*People v Taylor*, 26 NY3d 217; *People v Malloy*, 55 NY2d 296; *People v Brown*, 33 NY3d 316.) II. Defendant’s unpreserved challenge to the interested-witness charge is not reviewable in this appeal and is meritless in any event. (*People v Kelly*, 5 NY3d 116; *Feinberg v Saks & Co.*, 56 NY2d 206; *People v Lopez*, 71 NY2d 662; *People v Louree*, 8 NY3d 541; *People v Nieves*, 2 NY3d 310; *Bingham v New York City Tr. Auth.*, 99 NY2d 355; *People v Friola*, 11 NY2d 157; *People v DeFore*, 242 NY 13; *Mapp v Ohio*, 367 US 643; *People v Reynolds*, 25 NY2d 489.)

OPINION OF THE COURT

SINGAS, J.

Defendant claims that the trial court erred by failing to include a reinstruction on the justification defense in its response to a jury note. We disagree and hold that the court's response was meaningful. Defendant's additional argument that the court's interested witness charge violated defendant's constitutional right to due process is unpreserved for our review.

I.

In 2000, defendant, his friend, and a group of patrons engaged in an altercation outside a Manhattan bar. Defendant stabbed one victim three times in the chest with a knife, killing him, and slashed another victim's neck causing serious physical injury. Defendant was charged with murder in the second degree, attempted murder in the second degree, and assault in the first degree. During defendant's 2002 trial, the court instructed the jury on the elements of 10 criminal offenses: the charged offenses, as well as several lesser included offenses. Defendant asserted that he acted in self-defense and the court accordingly instructed the jury on justification (*see* Penal Law § 35.15). Because defendant testified, the court also instructed the jury that defendant was an interested witness and that his interest in the outcome of the proceedings was one factor to consider in evaluating his credibility. Prior to jury deliberations, the court told the jurors that if they had "any questions on the law, please write me a note specifying the particular law you wish me to review and I'll bring you back into the courtroom and do that."

On the first day of deliberations, the jury sent a note to the court requesting "[a]ll [d]efinitions discussed: Murder II, Manslaughter I, Depraved Murder II, etc.," as well as a readback of certain testimony, among other things. The court communicated to the parties that it intended to "give [the jury] the elements of all the crimes again before lunch" and provide the relevant testimony after lunch. The court asked defense counsel if that plan was "acceptable" and counsel responded in the affirmative. The court then reread the instructions for the charged counts but did not reinstruct the jury on justification. At the conclusion of the recharge, the court stated, "I hope that answers your question concerning the charges to the case" and informed the jury that the relevant testimony would be read

back after lunch. At that point, defense counsel requested that the court reinstruct the jury on “the definition of justification,” which the court declined on the ground that the jury “didn’t ask for that” but rather had “specified the counts.”

The jury convicted defendant of murder in the second degree, attempted murder in the second degree, and assault in the first degree. The Appellate Division affirmed the judgment, holding that the trial court responded meaningfully to the jury note “by rereading its instructions on the elements of the offenses submitted to the jury, without mentioning the defense of justification” because “[t]he jury did not ask for reinstruction on justification” (206 AD3d 572, 573 [1st Dept 2022]). Further, as relevant here, the Court concluded that defendant’s constitutional challenge to the interested witness charge was unpreserved and, in the alternative, unavailing (*id.* at 573-574). A Judge of this Court granted defendant leave to appeal (38 NY3d 1186 [2022]).

II.

“CPL 310.30 provides that the jury may request further instructions at any time during its deliberations and if it does so the court must ‘give such requested information or instruction as [it] deems proper’” (*People v Almodovar*, 62 NY2d 126, 131 [1984]). Because “[t]he trial court is generally in the best position to evaluate the jury’s request” (*People v Steinberg*, 79 NY2d 673, 684 [1992]), trial courts are vested with “significant discretion in determining the proper scope and nature of the response” (*People v Taylor*, 26 NY3d 217, 224 [2015]). But that discretion is cabined by the requirement that a court “respond meaningfully to the jury’s inquiries” (*Almodovar*, 62 NY2d at 131).

“The factors to be evaluated” in determining whether a response to a jury note is meaningful “are the form of the jury’s question, which may have to be clarified before it can be answered, the particular issue of which inquiry is made, the supplemental instruction actually given and the presence or absence of prejudice to the defendant” (*People v Malloy*, 55 NY2d 296, 302 [1982]; *Almodovar*, 62 NY2d at 132). Failure to answer a jury’s note meaningfully is an abuse of discretion as a matter of law (*see Taylor*, 26 NY3d at 224, citing *Malloy*, 55 NY2d at 302).

In this case, “the form of the jury’s” note indicated a request that the jury be recharged on the elements of the crimes (*see*

Almodovar, 62 NY2d at 131 [internal quotation marks omitted]). The jury note asked for “[a]ll definitions” contained in the charges: the jury did not simply ask for “all definitions” to be read back but instead chose to limit which “definitions” it sought by providing an exemplary list containing the first three of the 10 criminal offenses on which the trial court had originally instructed the jury and ending the list with “etc.” The usage of “etc.” in this context corroborates this interpretation of the note because *et cetera* at the end of a list signals “others especially of the same kind” (Merriam-Webster.com Dictionary, *et cetera* [<https://www.merriam-webster.com/dictionary/et%20cetera>]). That the jury did not seek further instruction or clarification after the recharge also supports our conclusion that the trial court correctly interpreted the jury note and responded meaningfully and with the complete information sought (*see Almodovar*, 62 NY2d at 132; *compare Malloy*, 55 NY2d at 303 [jury’s silence following the court’s response to its note was indicative of satisfaction with the response], *with Taylor*, 26 NY3d at 227 [court’s response to a jury note was not meaningful despite the jury’s decision to “cease their inquiry”]).

Additionally, upon conclusion of its response to the portion of the jury’s note requesting recharge, defense counsel then requested that the court recharge justification. Returning to that portion of the jury note at that time may have “placed undue emphasis on the issue” (*see Almodovar*, 62 NY2d at 132).

Defendant’s remaining argument is unpreserved, as he concedes, and no exception to the preservation rule applies under these circumstances (*see People v Cabrera*, 41 NY3d 35 [2023]; *see also People v Peque*, 22 NY3d 168 [2013]).

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge WILSON (concurring). I write separately to make clear what is decided and undecided on this appeal. Mr. Aguilar’s appeal presents three distinct questions of law. First, Mr. Aguilar contends that the jury’s note, which asked for “[a]ll definitions,” required the court to recharge the jury with the instruction on justification. I agree with the Court’s rejection of that argument.

Second, Mr. Aguilar makes a quite different argument that does not depend on the wording of the note. He contends that

because the trial court determined that he was entitled to receive a justification instruction and the People must disprove justification beyond a reasonable doubt, whenever the jury requests the readback of a count as to which justification applies, a court must include a readback of the justification instruction with it. In other words, because absence of justification is an element of the crime, it must be read back along with the other elements. Mr. Aguilar advanced that argument in his briefs to our Court (“once a justification defense is interposed, the People must disprove it to the same degree as any element”) and at oral argument. Whatever the merits of that argument may be, Mr. Aguilar did not raise it in Supreme Court, and it is therefore unpreserved for our review.

Third, as Mr. Aguilar concedes and as the majority notes, his final legal question—whether the court’s interested witness instruction deprived him of due process and the presumption of innocence—is likewise unpreserved.

Chief Judge WILSON and Judges RIVERA, GARCIA, CANNATARO, TROUTMAN and HALLIGAN concur, Chief Judge WILSON in a concurring opinion.

Order affirmed.

[234 NE3d 1002, 211 NYS3d 210]

In the Matter of ANTHONY S. HOFFMANN et al., Respondents, v
NEW YORK STATE INDEPENDENT REDISTRICTING COMMISSION
et al., Respondents, ROSS BRADY, Independent Redistrict-
ing Commissioner, et al., Appellants, and TIM HARKEN-
RIDER et al., Intervenor-Appellants.

Argued November 15, 2023; decided December 12, 2023

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered July 13, 2023. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, a judgment of the Supreme Court, Albany County (Peter A. Lynch, J.; op 2022 NY Slip Op 33555[U] [2022]), entered in a proceeding pursuant to CPLR article 78, which had granted the motion by respondent Independent Redistricting Commissioners Ross Brady, John Conway III, Lisa Harris, Charles Nesbitt, and Willis H. Stephens, and by intervenors-respondents to dismiss the amended petition in a proceeding for mandamus to compel the Independent Redistricting Commission respondents to prepare and submit to the legislature a second redistricting plan and the necessary implementing legislation for such plan for subsequent elections this decade; and (2) granted the petition.

Matter of Hoffmann v New York State Ind. Redistricting Commn., 217 AD3d 53, affirmed.

HEADNOTES

Legislature — Apportionment — Court-Drawn Electoral Maps — Extent Necessary to Remedy Violation of Law

1. The 2014 amendments to the New York State Constitution mandating that the Independent Redistricting Commission (IRC) prepare and submit a redistricting plan, with appropriate implementing legislation, to the legislature for a vote without amendment expressly prohibit court-drawn redistricting “except to the extent that a court is required to order the adoption of, or changes to, a redistricting plan as a remedy for a violation of law” (NY Const, art III, § 4 [e]). Accordingly, the judicially drawn congressional districts directed by *Matter of Harkenrider v Hochul* (38 NY3d 494 [2022]) as a result of the legislature’s deviation from the constitutionally mandated redistricting procedure were limited to the 2022 election cycle. The plain text of the 2014 amendments to the Constitution expressly limits court-drawn redistricting to the minimum required to remedy a violation of law. Permitting a judicially created redistricting to last longer than “required” would read the words “to the extent that a court is required” out of the Constitution. When applied to the maps made pursuant to *Harkenrider*, section 4 (e)

authorized the Steuben County Supreme Court to fashion maps to the “extent” it was “required” to do so. Given the impending 2022 election cycle, the court was “required” to alter the IRC-based redistricting process for that imminent election cycle, and to that “extent” alone. Section 4 (e) requires a nexus between the violation and the judicial remedy, and a court cannot adopt a remedy beyond what is necessary to cure the violation of law. Thus, *Harkenrider* cannot be read to hold that courts may create decade-long redistrictings or that Supreme Court was ordered to do so.

Limitation of Actions — Four-Month Statute of Limitations — Mandamus to Compel

2. Petitioner New York voters’ CPLR article 78 proceeding in the form of a writ of mandamus to compel the Independent Redistricting Commission (IRC) to follow the prescribed constitutional procedure for creating congressional and senate electoral maps to replace the court-drawn maps limited to the 2022 elections was timely commenced within four months of the IRC’s refusal to do so. Under CPLR article 78, a writ of mandamus to compel governmental bodies or officers “must be commenced within four months . . . after the respondent’s refusal, upon the demand of the petitioner . . . , to perform its duty” (CPLR 217 [1]). It is therefore necessary to make a demand and await a refusal before bringing a proceeding in the nature of mandamus, wherein the statute of limitations does not run out until four months after the refusal. Petitioners filed a petition, whereupon certain respondent IRC members moved to dismiss, constituting a refusal. Thus, petitioners demanded the IRC to act, and the IRC refused. Because the filing of the petition and the IRC’s subsequent refusal to act began the running of the period, the proceeding was within the four-month limitations period prescribed by CPLR 217 (1). The Constitution requires the IRC to draw districts, so if a court has drawn districts, the IRC’s constitutional obligation may be enforced at any time unless barred by laches. Mandamus to compel the IRC to complete its constitutional function was therefore timely.

Equity — Laches — Mandamus to Compel — Reasonable Timing

3. Petitioner New York voters’ CPLR article 78 proceeding in the form of a writ of mandamus to compel the Independent Redistricting Commission (IRC) to follow the prescribed constitutional procedure for creating congressional and senate electoral maps to replace the court-drawn maps limited to the 2022 elections was not barred by laches. When laches is invoked in an article 78 proceeding in the nature of mandamus, proof of unexcused delay without more may be enough. It is the unreasonable nature of a delay that might constitute laches in such proceedings. Petitioners were seeking to compel the IRC to send maps to the legislature, as required in the Constitution, to replace court-drawn maps that were limited to the 2022 elections, and had done so in a more than timely fashion. The petition was filed two months and one day after the decision in *Matter of Harkenrider v Hochul* (38 NY3d 494 [2022]), which held the 2021 gap-filling legislation unconstitutional and that a court-ordered redistricting plan must be implemented to the extent required to remedy the legislature’s violation of law. Because the Constitution forbade those court-drawn plans from lasting longer than necessary, the *Harkenrider* decision marked the date on which petitioners’ right to make the demand of the IRC arose and when petitioners knew or should have known of the facts that gave them a clear legal right to relief. Petitioners were seeking to compel the IRC to act in the future, and the date on which they made a demand was early enough to allow for the proceeding to work its way through the courts with a determination made in time for the

IRC to act in advance of the deadlines set forth in the Constitution ahead of the upcoming elections.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Elections §§ 8–9, 68–69; AM JUR 2d Equity §§ 107–108, 111, 123–125; AM JUR 2d Mandamus §§ 1, 17–18, 33–36, 44, 71–72, 78, 318–319.
CARMODY-WAIT 2d Proceeding Against a Body or Officer §§ 145:10, 145:175–145:177, 145:186, 145:198–145:199.
MCKINNEY'S, CPLR 217 (1); art 78; NY Const, art III, § 4 (e).
NY JUR 2d Article 78 and Related Proceedings §§ 80–82, 89, 114, 118–119; NY JUR 2d Elections §§ 48, 51–52, 55; NY JUR 2d Limitations and Laches §§ 350–351, 357–358.
SIEGEL, NY PRAC (6th ed) §§ 36, 558, 566.

ANNOTATION REFERENCE

See ALR Index under Elections and Voting; Equity; Laches and Delay; Limitation of Actions; Mandamus; Reapportionment.

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POINTS OF COUNSEL

Troutman Pepper Hamilton Sanders LLP, New York City (*Misha Tseytlin* of counsel), for Tim Harkenrider and others, intervenors-appellants. I. Petitioners' lawsuit is untimely. (*Matter of Kolson v New York City Health & Hosps. Corp.*, 53 AD2d 827; *Matter of Scherbyn v Wayne-Finger Lakes Bd. of Coop. Educ. Servs.*, 77 NY2d 753; *Matter of Waterside Assoc. v New York State Dept. of Envtl. Conservation*, 72 NY2d 1009; *Hill v Giuliani*, 272 AD2d 157; *U.S. Bank N.A. v Losner*, 145 AD3d 935; *Matter of Sheerin v New York Fire Dept. Arts. 1 & 1B Pension Funds*, 46 NY2d 488.) II. Petitioners' request violates NY Constitution, article III, § 4 (e)'s prohibition on mid-decade redistricting. (*Yaniveth R. v LTD Realty Co.*, 27 NY3d 186; *MCI Telecommunications Corp. v American Telephone & Telegraph Co.*, 512 US 218; *Fouts v Harris*, 88 F Supp 2d 1351.)

III. Petitioners' requested relief is also unconstitutional because as this Court held in *Matter of Harkenrider v Hochul* (38 NY3d 494, 523 [2022]), only a court can adopt a map to remedy a violation of the Independent Redistricting Committee (IRC)/legislature process after "[t]he deadline in the Constitution for the IRC to submit a second set of maps has . . . passed." (*People v Hobson*, 39 NY2d 479; *Matter of Nichols v Hochul*, 206 AD3d 463.) IV. If this Court concludes that the requested relief seeks a constitutionally permissible "modifi[cation]" of the *Harkenrider* map under NY Constitution, article III, § 4 (e), then this lawsuit was filed in the wrong court. (*Gager v White*, 53 NY2d 475; *Divito v Glennon*, 193 AD3d 1326; *Matter of Calabrese Bakeries, Inc. v Rockland Bakery, Inc.*, 83 AD3d 1060; *Donato v American Locomotive Co.*, 283 App Div 410.)

Perillo Hill LLP, Sayville (*Timothy F. Hill* and *Lisa A. Perillo* of counsel), for Ross Brady and others, appellants. I. The congressional map is not interim. (*Matter of Harkenrider v Hochul*, 38 NY3d 494; *Ruckelshaus v Sierra Club*, 463 US 680; *Public Citizen v Department of Justice*, 491 US 440.) II. The plain meaning of NY Constitution, article III, § 4 (e) is that a redistricting plan, whether legislative or judicial, shall remain in effect for the balance of the decade. III. Stare decisis requires this Court to adhere to *Matter of Harkenrider v Hochul* (38 NY3d 494 [2022]). (*Matter of State Farm Mut. Auto. Ins. Co. v Fitzgerald*, 25 NY3d 799; *People v Peque*, 22 NY3d 168; *People v Bing*, 76 NY2d 331.) IV. This CPLR article 78 mandamus proceeding is time-barred. (*Montco Constr. Co. v Giambra*, 184 Misc 2d 970; *Ruskin Assoc., LLC v State of N.Y. Div. of Hous. & Community Renewal*, 77 AD3d 401; *Matter of Van Aken v Town of Roxbury*, 211 AD2d 863.) V. This relief sought by this CPLR article 78 mandamus proceeding is barred by the Constitution. (*Matter of Altamore v Barrios-Paoli*, 90 NY2d 378; *Matter of Council of City of N.Y. v Bloomberg*, 6 NY3d 380; *Matter of Thorsen v Nassau County Civ. Serv. Commn.*, 32 AD3d 1037; *New York Civ. Liberties Union v State of New York*, 4 NY3d 175.)

Elias Law Group, LLP, Washington, D.C. (*Aria C. Branch*, admitted pro hac vice, *Richard Alexander Medina* and *Samuel T. Ward-Packard*, admitted pro hac vice, of counsel) and Seattle, Washington (*Jonathan P. Hawley*, admitted pro hac vice, of counsel), and *Dreyer Boyajian, LLP*, Albany (*James R. Peluso* of counsel), for Anthony S. Hoffmann and others, respondents. I. The Appellate Division's ordered relief is consistent with the

redistricting amendments. (*Personhuballah v Alcorn*, 155 F Supp 3d 552; *Abrams v Johnson*, 521 US 74; *Matter of Sherrill v O'Brien*, 188 NY 185; *Pfingst v State of New York*, 57 AD2d 163.) II. This Court's *Matter of Harkenrider v Hochul* (38 NY3d 494 [2022]) decision does not foreclose the Appellate Division's ordered relief. (*Matter of Agoglia v Benepe*, 84 AD3d 1072.) III. Petitioners timely commenced this suit. (*Matter of Best Payphones, Inc. v Department of Info. Tech. & Telecom. of City of N.Y.*, 5 NY3d 30; *Smith v State of New York*, 201 AD3d 1225; *Matter of Capital Dist. Regional Off-Track Betting Corp. v New York State Racing & Wagering Bd.*, 97 AD3d 1044; *Matter of League of Women Voters of N.Y. State v New York State Bd. of Elections*, 206 AD3d 1227; *Arizona State Legislature v Arizona Independent Redistricting Comm'n*, 576 US 787; *Matter of Meegan v Griffin*, 161 AD2d 1143; *Matter of Gopaul v New York City Employees' Retirement Sys.*, 122 AD3d 848; *Matter of Speis v Penfield Cent. Schs.*, 114 AD3d 1181; *Matter of Granto v City of Niagara Falls*, 148 AD3d 1694; *Hill v Giuliani*, 272 AD2d 157.) IV. This proceeding is not an improper "collateral attack." (*ABN AMRO Bank, N.V. v MBIA Inc.*, 17 NY3d 208; *Gager v White*, 53 NY2d 475; *Chicot County Drainage Dist. v Baxter State Bank*, 308 US 371; *Divito v Glennon*, 193 AD3d 1326; *Donato v American Locomotive Co.*, 283 App Div 410; *Matter of Calabrese Bakeries, Inc. v Rockland Bakery, Inc.*, 83 AD3d 1060.)

Jenner & Block LLP, Washington, D.C. (*Jessica Ring Amunson*, admitted pro hac vice, and *Sam Hirsch*, admitted pro hac vice, of counsel) and New York City (*Jacob D. Alderdice* and *Allison N. Douglass* of counsel), for Ken Jenkins and others, respondents. I. The New York Constitution mandates that redistricting occur through the Independent Redistricting Commission process. (*New York Civ. Liberties Union v State of New York*, 4 NY3d 175; *Matter of Orans*, 15 NY2d 339; *Wise v Lipscomb*, 437 US 535; *League of United Latin American Citizens v Perry*, 548 US 399.) II. The Appellate Division, Third Department appropriately ordered the correct remedy for the violation of law at issue here. (*MCI Telecommunications Corp. v American Telephone & Telegraph Co.*, 512 US 218.) III. This Court's decision in *Matter of Harkenrider v Hochul* (38 NY3d 494 [2022]) does not foreclose relief. IV. Appellants' and amici's policy arguments lack merit.

Letitia James, Attorney General, New York City (*Andrea W. Trento*, *Barbara D. Underwood* and *Jeffrey W. Lang* of counsel),

for Kathy Hochul and another, amici curiae. I. The court-drawn congressional map currently in place is legally deficient and should be redrawn pursuant to an Independent Redistricting Commission-driven process. (*Matter of DeVera v Elia*, 32 NY3d 423; *Matter of New York Pub. Interest Research Group v Dinkins*, 83 NY2d 377; *Matter of Waldbaum's #122 v Board of Assessors of City of Mount Vernon*, 58 NY2d 818; *Matter of Breslin v Conners*, 10 AD3d 471; *Columbia Mem. Hosp. v Hinds*, 38 NY3d 253; *People v Badji*, 36 NY3d 393; *Bruni v City of New York*, 2 NY3d 319; *Matter of 89 Christopher v Joy*, 44 AD2d 417, 35 NY2d 213; *Wittman v Personhuballah*, 578 US 539; *Matter of Empire Ctr. for N.Y. State Policy v New York State Teachers' Retirement Sys.*, 23 NY3d 438.) II. This Court may construe the petition liberally to constitute a challenge to the court-drawn congressional map. (*Quintal v Kellner*, 264 NY 32; *Matter of Red Hook/Gowanus Chamber of Commerce v New York City Bd. of Stds. & Appeals*, 5 NY3d 452; *Cohn v Lionel Corp.*, 21 NY2d 559; *Matter of Katherine B. v Cataldo*, 5 NY3d 196; *Matter of First Natl. City Bank v City of N.Y. Fin. Admin.*, 36 NY2d 87.)

Law Office of Joseph T. Burns, PLLC, Williamsville (*Joseph T. Burns* of counsel), for Lawyers Democracy Fund, amicus curiae. I. A 2024 redistricting would be impractical—and maybe impossible—for New York's election boards to administer. II. Persistent dysfunction in New York State's election boards will be exacerbated by a mid-decade redistricting and likely result in major election administration failures. (*Matter of Amedure v State of New York*, 210 AD3d 1134; *Matter of Cantrell v Hayduk*, 45 NY2d 925; *Tenney v Oswego County Bd. of Elections*, 71 Misc 3d 385.) III. Allowing a mid-decade redistricting reopens the possibility of additional legal challenges to a new congressional map which may result in a botched 2024 ballot access process and 2024 election. IV. In adopting the 2014 redistricting reform amendment, the voters intended a fair, nonpartisan, nonpolitical redistricting process and this was fulfilled with the congressional map ordered by the courts in 2022. (*Puerto Rican Legal Defense & Educ. Fund, Inc. v Gantt*, 796 F Supp 681; *Matter of Kuhn v Curran*, 294 NY 207; *People v Rathbone*, 145 NY 434.)

Holwell Shuster & Goldberg LLP, New York City (*James M. McGuire* of counsel), for League of Women Voters of New York State, amicus curiae. I. This appeal is controlled by the remedial holding in *Matter of Harkenrider v Hochul* (38 NY3d 494

[2022]). (*People v Rathbone*, 145 NY 434; *Matter of Nichols v Hochul*, 212 AD3d 529, 39 NY3d 1119; *People v Hobson*, 39 NY2d 479; *Payne v Tennessee*, 501 US 808; *Matter of State Farm Mut. Auto. Ins. Co. v Fitzgerald*, 25 NY3d 799; *People v Lopez*, 16 NY3d 375; *People v Garcia*, 38 NY3d 1137.) II. The amendment prohibits mid-decade redistricting. (*MCI Telecommunications Corp. v American Telephone & Telegraph Co.*, 512 US 218; *Matter of Benvenga v LaGuardia*, 294 NY 526.)

Covington & Burling LLP, New York City (P. Benjamin Duke, Benjamin Klein and Abigail Kertzman of counsel), for Mark Favors and others, amici curiae. I. The Appellate Division correctly concluded that *Matter of Harkenrider v Hochul* (38 NY3d 494 [2022]) does not deprive New Yorkers of their right to Independent Redistricting Commission-based redistricting for the rest of this decade. (*Matter of Hearst Corp. v Clyne*, 50 NY2d 707.) II. The 2014 amendments require this Court to limit the prior judicial remedy and return the redistricting process to the Independent Redistricting Commission and the legislature. (*People v Schonfeld*, 74 NY2d 324; *Matter of King v Cuomo*, 81 NY2d 247.) III. The Appellate Division, Third Department correctly determined that petitioners' filing of this mandamus action was timely under CPLR 217 (1). (*I. L. F. Y. Co. v Temporary State Hous. Rent Commn.*, 10 NY2d 263; *People v Arez*, 28 NY2d 764; *New York Civ. Liberties Union v State of New York*, 4 NY3d 175.) IV. Mandamus relief to vindicate the people's right to an Independent Redistricting Commission-based redistricting plan is also needed to relieve the scourge of hyper-partisanship in New York.

OPINION OF THE COURT

Chief Judge WILSON.

In 2014, the voters of New York amended our Constitution to provide that legislative districts be drawn by an Independent Redistricting Commission (IRC). The Constitution demands that process, not districts drawn by courts. Nevertheless, the IRC failed to discharge its constitutional duty. That dereliction is undisputed. The Appellate Division concluded that the IRC can be compelled to reconvene to fulfill that duty; we agree. There is no reason the Constitution should be disregarded.

I.

Every 10 years, congressional, state senate, and state assembly districts are reapportioned based on the federal decen-

nial census (see NY Const, art III, § 4 [a]). Historically, as is true for the vast majority of states, New York’s redistricting process was controlled almost entirely by the legislature,¹ subject to certain limitations imposed by federal law (such as the Equal Protection Clause or the Voting Rights Act). Unfettered legislative redistricting led to decade after decade of stalemates, allegations of partisan gerrymandering, and judicially drafted plans. Thus, in 2014, New Yorkers voted to amend the Constitution to “significantly and permanently” reform the redistricting process (Governor’s Approval Mem, Bill Jacket, L 2012, ch 17 at 5).

As we noted in *Harkenrider*, the surrounding context and history of the 2014 amendments illustrate that they were “carefully crafted to guarantee that redistricting maps have their origin in the collective and transparent work product of a bipartisan commission that is *constitutionally required* to pursue consensus to draw district lines” (*Matter of Harkenrider v Hochul*, 38 NY3d 494, 513-514 [2022] [emphasis added]). Prior to the amendments, exclusive legislative control often left opposing political parties—particularly with respect to the congressional maps—unable to reach consensus on district lines (see *id.* at 502). The process was “plagued with allegations of partisan gerrymandering” (*id.* at 503) and often resulted in “predictable” litigation in federal courts every 10 years (*Favors v Cuomo*, 2012 WL 928223, *1, 2012 US Dist LEXIS 36910, *5 [ED NY, Mar. 19, 2012, Docket No. 11-CV-5632 (RR)(GEL)(D-LI)(RLM)]; see also *Rodriguez v Pataki*, 2002 WL 1058054, *1, 2002 US Dist LEXIS 9272, *2 [SD NY, May 24, 2002, No. 02 Civ. 618(RMB)]; *Puerto Rican Legal Defense & Educ. Fund, Inc. v Gantt*, 796 F Supp 681, 684 [ED NY 1992]; *Flateau v Anderson*, 537 F Supp 257, 258 [SD NY 1982]).

Notably, in each decennial redistricting dating back to 1982, the legislature’s redistricting quagmire resulted in eerily similar bouts of litigation.² As to each of those redistrictings, parties requested courts to step in and conduct the redistricting

1. The State Legislative Task Force on Demographic Research and Reapportionment was created in 1978 as an advisory task force composed of lawmakers and staff selected by legislative leaders to conduct studies and develop redistricting plans for the New York State Legislature (see Legislative Law § 83-m; L 1978, ch 45, § 1; see also *Rodriguez v Pataki*, 308 F Supp 2d 346, 354 [SD NY 2004]).

2. Indeed, legal challenges to New York legislative apportionment and redistricting go farther back than 1982 (see *Matter of Sherrill v O’Brien*, 188 NY 185 [1907]; *Matter of Reynolds*, 202 NY 430 [1911]). In 1964, the Supreme

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with the aid of special masters (in federal court) or special referees (in state court).

1982

In 1982, the State Legislative Task Force on Demographic Research and Reapportionment's (Task Force) deadlock led to the creation of three redistricting plans for senate and congressional districts in the following order: (1) plans wholly created by the legislature, which the Justice Department disapproved as violating the Voting Rights Act; (2) plans developed by a special master reporting to a federal court; and (3) plans drafted and ultimately enacted by the legislature but with the Justice Department "guiding the pen" (Roman Hedges & Carl P. Carlucci, *Reapportionment Under the Voting Rights Act: The Case of New York*, 1983 NY St Legis Task Force on Demographic Research & Reapportionment at 14). The federal court intervened pursuant to a lawsuit in which all but one plaintiff requested the court to "order New York State to enact a constitutional plan of reapportionment" and failing that, requested that the district court "devise a reapportionment plan" (*Flateau*, 537 F Supp at 259). The remaining plaintiff requested that the court itself "immediately redistrict the State" (*id.*). Although the legislature's plan was ultimately enacted, thus began the 10-year cycle of the federal court enlisting the help of a special master to prepare a redistricting plan in the event the legislature failed to do so.

1992

Ten years later, in 1992, partisan politics once again deadlocked the Task Force (*Gantt*, 796 F Supp at 685; *see also Diaz v Silver*, 978 F Supp 96, 99 [ED NY 1997]). Parallel actions in state and federal court sought to compel the develop-

Court of the United States held both houses of the New York legislature were malapportioned, violating the Fourteenth Amendment to the Federal Constitution (*see WMCA, Inc. v Lomenzo*, 377 US 633, 653-654 [1964]). Our Court in *Matter of Orans* effectively judicially modified the apportionment laws that violated federal standards (15 NY2d 339, 350-354 [1965]). The early 1970s were similarly riddled with litigation over New York's apportionment as violative of the Voting Rights Act (*see New York v United States*, 419 US 888 [1974]), which concluded with revisions to the redistricting plan that wound up litigated, once again, in the U.S. Supreme Court (*see United Jewish Organizations of Williamsburgh, Inc. v Carey*, 430 US 144, 155 [1977] [holding the New York Legislature seeking to comply with the Voting Rights Act did not violate the Fourteenth and Fifteenth Amendments by deliberately revising its reapportionment plan along racial lines]).

ment of a lawful redistricting plan (*Diaz*, 978 F Supp at 99). In response, the federal court ordered a special master to develop a redistricting plan that would comply with federal law. The state court appointed a panel of three referees to develop a plan that would comply with federal and state law (*id.*). Each court adopted their respective experts' plans, at which point the federal plan would take effect unless the legislature adopted the state plan (*id.*). The legislature, "who until then had not been able to agree upon a plan which satisfied both sides of the political aisle, promptly embraced the state court's plan as [its] own and enacted it" (*Gantt*, 796 F Supp at 698). Even though the United States Department of Justice had pre-cleared that plan, three years later, a group of Black and Hispanic voters sued to challenge the plan as unconstitutional. That suit ultimately required the legislature to change the maps once again (*Diaz*, 978 F Supp at 131).

2002

In 2002, both the federal and state courts were once again asked to intervene to "ensure that Congressional district lines [were] drawn in time for the fair and orderly conduct of the primary and general elections to be held in 2002" (*Pataki*, 2002 WL 1058054, *1, 2002 US Dist LEXIS 9272, *3; *see also Rodriguez v Pataki*, 308 F Supp 2d 346, 355 [SD NY 2004] [the companion state and federal court cases requested the courts "set a reasonable deadline for state authorities to enact redistricting plans and obtain (United States Department of Justice) pre-clearance thereof and adopt and promulgate new districts in the event of a failure by the Legislature to act in time for the 2002 elections"])). Once again, the federal court appointed a special master and the state court appointed a special referee, with both courts adopting the plans proposed by their respective experts (*Pataki*, 308 F Supp 2d at 357-358). As in 1992, the federal court noted its willingness to defer to the State, offering that it would withdraw the federal plan if the legislature adopted "appropriate and lawful modifications" (*Pataki*, 2002 WL 1058054, *8, 2002 US Dist LEXIS 9272, *28). Shortly thereafter, the legislature adopted a congressional redistricting plan of its own, which was subsequently pre-cleared, and the federal court withdrew its plan (*Pataki*, 308 F Supp 2d at 358). Elections were held using the legislature's plan, after which consolidated plaintiffs from the 2002 state and federal companion cases filed suit substantively challeng-

ing the congressional map (*id.* at 359). In 2004, the federal court dismissed the plaintiffs' claims, and the U.S. Supreme Court upheld that dismissal (*id.* at 460-461; *Rodriguez v Pataki*, 543 US 997 [2004]).

2012

That tortured history brings us to 2012—the redistricting cycle that immediately preceded the 2014 constitutional amendments. In 2012, with less than 24 hours until the start of the petitioning process for congressional primaries, the legislature failed to pass a congressional plan (*Favors*, 2012 WL 928223, *1, 2012 US Dist LEXIS 36910, *5 [“In the past, judicial creation of a congressional redistricting plan has spurred the New York legislature to produce its own plan just in time to avoid implementation of the judicial plan. . . . This time is different”]). As a result, the court delegated the task of creating a congressional redistricting plan to a federal magistrate judge (*Favors v Cuomo*, 39 F Supp 3d 276, 285 [ED NY 2014]). With the help of an “expert in election law and redistricting,” the magistrate judge drafted a congressional redistricting plan, which the federal court ordered the legislature to implement (*id.*). The result was a judicially drafted congressional redistricting plan and assembly and senate maps enacted by the legislature that were widely criticized as being gerrymandered (*see Harkenrider*, 38 NY3d at 513; *see also* Thomas Kaplan, *An Update on New York Redistricting*, NY Times, Mar. 9, 2012).

2014

The people of New York voted to amend New York's Constitution and create the IRC against that long history. Faced with decades of failed legislative redistricting and the concomitant court challenges leading to court-drawn districts or the threat of the same to compel legislative compliance, the legislature proposed the constitutional amendments creating the IRC process through concurrent resolutions adopted in 2012 and 2013. The adoption of those resolutions in successive years placed the question before the voters on the November 2014 ballot. The voters approved the reforms by a margin of nearly half a million votes.

The resulting constitutional amendments created the IRC—a bipartisan, 10-person commission mandated to reflect the “diversity of the state”—as a mechanism to provide an “historic

level of independence and transparency while protecting minority voting rights and communities of interest” (Governor’s Approval Mem, Bill Jacket, L 2012, ch 17 at 5; Governor’s Message of Necessity, Bill Jacket, L 2012, ch 17 at 7; *see* NY Const, art III, § 5-b [a] [1]-[5]; [b]-[c]).³

That was the promise of the 2014 constitutional amendments—a promise to “unequivocally” reform the “redistricting process permanently” by “provid[ing] transparency to a process cloaked in secrecy” and respite from “legal challenges to partisan gerrymandering” (Governor’s Approval Mem, Bill Jacket, L 2012, ch 17 at 5; Assembly Mem in Support of 2012 NY Senate-Assembly Concurrent Resolution S6698, A9526; Senate Introducer’s Mem in Support of 2013 NY Senate-Assembly Concurrent Resolution S2107, A2086). It was a promise adopted by two consecutive legislatures and New York voters by a wide margin to both avoid legislative gerrymandering *and* judicial intervention in the redistricting process except to the minimum necessary (*see Harkenrider*, 38 NY3d at 513).

Thus, our Constitution now mandates that the IRC prepare and submit a redistricting plan, with appropriate implementing legislation, to the legislature for a vote without amendment (*see* NY Const, art III, § 4 [b]). The plan and legislation must be submitted to the legislature “no later than January fifteenth in the year ending in two” (*id.*). If the legislature fails to approve that redistricting plan, or if the governor vetoes it and the legislature does not override the veto, the legislature or the governor must notify the IRC of the rejection (*see id.*). The IRC must then prepare a second redistricting plan with the necessary implementing legislation “[w]ithin fifteen days of such notification and in no case later than February twenty-eighth,” and resubmit it to the legislature for a vote without amendment (*id.*). If the second redistricting plan fails to pass the legislature, or if it is subject to a veto, then the legislature may amend the maps drawn by the IRC (*see id.*). According to a statute enacted as a companion to the 2014 constitutional amendments, any legislative alteration of IRC-drawn districts cannot affect more than two percent of the population in any district (*see* L 2012, ch 17, § 3).

3. The 2014 amendments also placed substantive requirements on the creation of districts including: the protection of racial and language minority voting rights; contiguity and compactness of districts; and a preference for the maintenance of existing districts, of preexisting political subdivisions, and of communities of interest (*see* NY Const, art III, § 4 [c]).

Unfortunately, the new constitutional process broke down the first time it became applicable. Following the 2020 census, the newly established IRC convened in 2021 and, as required, held public hearings throughout the state, receiving input from voters and stakeholders on the process (*see* NY Const, art III, § 4 [c]; *Harkenrider*, 38 NY3d at 504). Simultaneously, the legislature recognized that the Constitution did not explicitly state what would happen if the IRC failed to deliver maps and implementing legislation. To address that lack of clarity, the legislature placed an additional constitutional amendment on the 2021 ballot that would authorize the legislature to introduce its own redistricting legislation if the IRC failed to vote on any plan or implementing legislation by the deadline (2021 NY Senate-Assembly Concurrent Resolution S515, A1916). Voters rejected the proposed amendment by a margin of just over a quarter of a million votes. Upon the failure of the 2021 constitutional amendment, the legislature enacted a statute authorizing the legislature to create its own districts if the IRC failed to deliver maps and implementing legislation—the same remedy the voters had rejected (*see* L 2021, ch 633 [hereinafter the 2021 legislation]). The statute provided that if the IRC “does not vote on any redistricting plan or plans, for any reason, by the date required for submission of such plan, [then] the [IRC] shall submit to the legislature all plans in its possession, both completed and in draft form, and the data upon which such plans are based” and “each house shall introduce such implementing legislation with any amendments each house deems necessary” (*id.* § 1).

The IRC submitted its first redistricting plan to the legislature on January 3, 2022, 12 days before its January 15, 2022 deadline (*see Harkenrider*, 38 NY3d at 504; NY Const, art III, § 4 [b]). Because the IRC had reached an impasse and was unable to reach a seven-person quorum as specified in the Constitution (*see* NY Const, art III, § 5-b [f]), the first submission consisted of two competing maps that had garnered equal support (*see Harkenrider*, 38 NY3d at 504; NY Const, art III, § 5-b [g]). On January 10, 2022, the legislature rejected both maps, triggering the IRC’s constitutional obligation to prepare and submit a second redistricting plan within 15 days but in no case later than February 28, 2022 (*see Harkenrider*, 38 NY3d at 504; NY Const, art III, § 4 [b]). On January 24, 2022—one day before the 15-day deadline and well before the February 28 deadline—two different factions of the IRC publicly released

dueling statements reflecting that the body was deadlocked, with one faction declaring that the IRC would not be submitting a second plan to the legislature (*see Harkenrider*, 38 NY3d at 504-505). Neither faction consisted of a seven-person quorum. Shortly thereafter, relying on the 2021 legislation, the legislature introduced and passed its own redistricting maps, which the Governor signed into law on February 3, 2022 (*see* 2022 NY Senate-Assembly Bill S8196, A9167; 2022 NY Senate-Assembly Bill S8172A, A9039A; 2022 NY Senate-Assembly Bill S8197, A9168; 2022 NY Senate-Assembly Bill S8185A, A9040A).

The *Harkenrider* litigation commenced immediately. The *Harkenrider* petitioners sued the state legislature, alleging that the February 3 maps were procedurally and substantively unconstitutional. The *Harkenrider* petitioners argued that the 2021 legislation authorizing the legislature to create its own maps in the event of the IRC's dereliction was unconstitutional, and that because the February 3 maps were enacted pursuant to that statute, they had to fall with it. Because the legislature could not "contravene the Constitution's exclusive process for redistricting in New York through legislative enactment," the *Harkenrider* petitioners argued that the 2022 congressional and state senate maps should be declared invalid; that the court could not give the "Legislature another opportunity to draw curative districts"; and instead the "Court should draw its own maps for Congress and state Senate prior to the upcoming deadlines for candidates to gain access to the ballot, just as happened regarding the 2012 congressional map."

On April 27, 2022, we held that the 2021 legislation was "unconstitutional to the extent that it permit[ted] the legislature to avoid" compliance with the bipartisan IRC process, a "central requirement of the [redistricting] reform amendments" (*Harkenrider*, 38 NY3d at 517). We further held that "the legislature and the IRC deviated from the constitutionally mandated [redistricting] procedure"; a deviation which required invalidation of the congressional and state senate maps (*id.* at 509, 511). We concluded that "judicial oversight [wa]s required to facilitate the expeditious creation of constitutionally conforming maps for use in the 2022 election and to safeguard the constitutionally protected right of New Yorkers to a fair election" (*id.* at 502). We then remitted the matter to Supreme Court to adopt, with the assistance of a special master, constitutional maps "with all due haste" following any "submis-

sions from the parties, the legislature, and any interested stakeholders who wish to be heard” (*id.* at 523, 524). Less than a month later, Supreme Court certified the maps prepared by a special master as “the official approved 2022 Congressional map and the 2022 State Senate map” (*Harkenrider v Hochul*, 2022 NY Slip Op 31471[U], *1, *5 [Sup Ct, Steuben County 2022]).

Five weeks later, on June 28, 2022, petitioners—10 registered New York voters uninvolved in the *Harkenrider* litigation—commenced this CPLR article 78 proceeding seeking a writ of mandamus to compel the IRC

“to ‘prepare and submit to the legislature a second redistricting plan and the necessary implementing legislation for such plan’ as is required by Article III, Sections 4 and 5(b) of the New York Constitution, in order to ensure a lawful congressional plan is in place immediately following the 2022 elections and can be used for subsequent elections this decade.”

Relying on *Harkenrider*, petitioners argued that the IRC failed to comply with its constitutional duty to submit to the legislature a second redistricting plan. According to petitioners, the IRC continues to have that obligation, even though the 2022 congressional map was judicially adopted.

Three IRC members answered, indicating that they did not oppose the specific mandamus relief sought by petitioners. Five other IRC members (hereinafter the Brady Appellants) moved under CPLR 3211 (a) (5) and (7) to dismiss the petition, asserting it failed to state a claim, mandamus to compel does not lie, and that the claim is barred by the statute of limitations. The Brady Appellants argued that February 28, 2022, was the last lawful date on which the IRC could have submitted to the legislature a second redistricting plan; thus, petitioners sought to compel the IRC to perform an unconstitutional act. They further argued that a court-ordered redistricting plan was the exclusive remedy for a violation of the redistricting process and that, because the constitutionally prescribed remedial process had played out in *Harkenrider*, the resulting maps could not be redrawn until after the 2030 census. Finally, the Brady Appellants argued that petitioners’ mandamus claim accrued when the IRC announced its deadlock on January 24, 2022, which rendered this proceeding barred by the four-month limitations period contained in CPLR 217.

The *Harkenrider* intervenors—14 New York voters who had participated in the earlier *Harkenrider* litigation (hereinafter the Harkenrider Intervenors)—intervened in this proceeding and moved to dismiss the petition on three grounds. First, they argued that this proceeding constitutes an impermissible collateral attack on the *Harkenrider* judgment. Second, they argued that the mandamus relief requested by petitioners would violate the New York Constitution because once the IRC failed to discharge its obligations, the only constitutionally permissible remedy is the judicial creation of maps, which was fully accomplished by Supreme Court in May 2022. Third, they argued that this proceeding is untimely because it was not commenced between January 24, 2022—the date on which the IRC “declared its decision to violate its constitutional duties”—and February 28, 2022, when “the IRC’s authority to submit [second proposed] maps expired.”

Supreme Court granted the motions and dismissed the petition (2022 NY Slip Op 33555[U] [Sup Ct, Albany County 2022]). The court held that petitioners’ claim was timely because it accrued on May 20, 2022—when the 2022 congressional map was certified by Supreme Court—and thus was well within the four-month statute of limitations. However, the court dismissed the petition on the ground that the congressional map certified in May 2022 was to remain in full force and effect until the next redistricting cycle. Petitioners appealed.

With two Justices dissenting, the Appellate Division reversed Supreme Court’s judgment on the law and granted the petition. The Court held that this proceeding was commenced “well within” the four-month statute of limitations, reasoning that the mandamus claim accrued when the 2021 legislation was deemed unconstitutional by Supreme Court on March 31, 2022 (217 AD3d 53, 58 [3d Dept 2023]). The court then declined to infer, in “the complete absence of any explicit direction” in our opinion in *Harkenrider*, that the resulting court-drawn districts were intended to apply beyond the 2022 election (*id.* at 60). As a result, the Court held that *Harkenrider* did not foreclose the requested mandamus relief and that petitioners had a clear legal right to the mandamus relief sought. The Court therefore ordered the IRC to “commence its duties forthwith” (*id.* at 62).

The Brady Appellants and Harkenrider Intervenors appealed as of right (*see* CPLR 5601 [a]). They subsequently asserted that an automatic stay under CPLR 5519 (a) (1) was in place and the IRC was therefore precluded from working toward the

submission of a second redistricting plan during the pendency of appeals. Petitioners moved for a determination that the automatic stay did not apply or, in the alternative, to vacate or modify the stay to permit “the IRC to meet and discuss the upcoming map-drawing process, draft maps, and take any other steps necessary to swiftly comply with the Appellate Division’s order should this Court affirm.” On September 19, 2023, we held that the Appellate Division’s order was automatically stayed pursuant to CPLR 5519 (a) (1), denied the motion to vacate the stay, and clarified that the automatic stay of the Appellate Division’s order did not “prohibit the IRC or its members from taking any actions” (40 NY3d 968 [2023]).

II.

[1] A simple and straightforward proposition disposes of most of the issues the parties have raised. The plain text of the 2014 amendments to the Constitution places express limitations on court-drawn maps. Following the enactment of the 2014 amendments, New York courts no longer have the blanket authority to create decade-long redistricting plans. Instead, the Constitution now limits court-drawn redistricting to the minimum required to remedy a violation of law. Article III, § 4 (e), enacted as part of the 2014 constitutional amendments, reads:

“The process for redistricting congressional and state legislative districts established by this section and sections five and five-b of this article shall govern redistricting in this state *except to the extent that a court is required* to order the adoption of, or changes to, a redistricting plan as a remedy for a violation of law.

“A reapportionment plan and the districts contained in such plan *shall be in force* until the effective date of a plan based upon the subsequent federal decennial census taken in a year ending in zero *unless modified pursuant to court order*” (NY Const, art III, § 4 [e] [emphasis added]).

Thus, the 2014 constitutional amendments place an explicit limitation on court-created maps. Permitting a judicially created redistricting to last longer than “required” would read the words “to the extent that a court is required” out of the Consti-

tution. Both the dissent and appellants would have us read the Constitution as if it said, instead, that the IRC process “shall govern except if a court orders the adoption of, or changes to, a redistricting plan.” But that is not what the Constitution says.

The dissent contends that we have erred grammatically—that “‘to the extent . . . required’ does not modify the courts’ power ‘to order the adoption of, or changes to, a redistricting plan as a remedy for a violation of law’—it modifies the subject of the sentence, which is ‘[t]he process for redistricting . . . established by [sections 4, 5 and 5-b] shall govern’ ” (dissenting op at 384-385). As a grammatical matter, the limiting language is annexed to the clause describing what the courts may do, not what the IRC must do. As a commonsense matter, language directed at the scope of a court-ordered remedy necessarily relates to the courts, not the IRC. What that passage, quoted in full in the text above, clearly states is that the IRC process for creating districts “*shall govern* redistricting in this state except to the extent that a court is required to order the adoption of, or changes to, a redistricting plan as a remedy for a violation of law” (NY Const, art III, § 4 [e] [emphasis added]). The Constitution clearly establishes the IRC process as predominant over court-drawn districts.

“To the extent” and “required” are limiting words that cannot be disregarded. Those words permit court-drawn redistricting only “to the extent” it is “required” to remedy a violation of law. Otherwise, the Constitution requires the IRC map-drawing process. When applied to the maps made pursuant to *Harkenrider*, section 4 (e) authorized the Steuben County Supreme Court to fashion maps to the “extent” it was “required” to do so. Given the impending 2022 election cycle, Supreme Court was “required” to alter the IRC-based redistricting process for that imminent election cycle—and to that “extent” alone. Indeed, Supreme Court quite properly identified the maps pursuant to *Harkenrider* as the “official approved 2022 Congressional map” (*Harkenrider*, 2022 NY Slip Op 31471[U], *5). The Appellate Division reached this same conclusion (*see Hoffmann*, 217 AD3d at 60). In short, section 4 (e) requires a nexus between the violation and the judicial remedy, and a court cannot adopt a remedy beyond what is necessary to cure the violation of law.

Appellants cannot explain why their interpretation does not render those words superfluous. They offer no alternative

meaning for them, and none is apparent.⁴ We have long and repeatedly held that “[i]n construing the language of the Constitution as in construing the language of a statute, the courts should look for the intention of the People and give to the language used its ordinary meaning” (*Sherrill*, 188 NY at 207). The “‘starting point for discerning legislative intent is the language of the statute itself’” (*Matter of Lynch v City of New York*, 40 NY3d 7, 13 [2023], quoting *Yatauro v Mangano*, 17 NY3d 420, 426 [2011]), such that the “‘literal language of a statute controls’” (*Lynch*, 40 NY3d at 13, quoting *Matter of Anonymous v Molik*, 32 NY3d 30, 37 [2018]). All parts of the constitutional provision or statute “‘must be harmonized with each other as well as with the general intent of the whole statute, and effect and meaning must, if possible, be given to the entire statute and every part and word thereof’” (*People v Pabon*, 28 NY3d 147, 152 [2016], quoting McKinney’s Cons Laws of NY, Book 1, Statutes § 98 [a]). Indeed, our well-settled doctrine requires us to give effect to each component of the provision or statute to avoid “‘a construction that treats a word or phrase as superfluous’” (*Columbia Mem. Hosp. v Hinds*, 38 NY3d 253, 271 [2022], quoting *Matter of Lemma v Nassau County Police Officer Indem. Bd.*, 31 NY3d 523, 528 [2018]).

Appellants’ failure to offer any other meaning for the words “to the extent that a court is required” properly ends any analysis. Instead of offering any other possible meaning, both the dissent and appellants point to the next sentence of section 4 (e), which provides that reapportionment plans last for a decade (*see* dissenting op at 385). However one reads that sentence, it does not explain what meaning should be ascribed to the words “to the extent that a court is required.” Furthermore, that second sentence of section 4 (e) bolsters our plain reading of the prior sentence, rather than refutes it. The second sentence reads: “A reapportionment plan and the districts

4. Our dissenting colleagues offer that the clause “except to the extent that a court is required to order the adoption of, or changes to, a redistricting plan as a remedy for a violation of law” merely “clarifies that the IRC and legislature must comply with the deadlines, voting requirements, and other procedural rules set forth in the referenced constitutional provisions” and “reaffirms . . . the courts’ traditional power to remedy violations of law” (dissenting op at 385). Of course, that reading renders the limiting clause as wholly superfluous. Under the dissent’s reading, striking “to the extent that a court is required” would change neither the IRC’s nor the legislature’s duties, nor alter the courts’ power of review. It is also a quite tortured reading to say that words limiting the power of courts are meant as a direction to the IRC and legislature.

contained in such plan shall be in force until the effective date of a plan based upon the subsequent federal decennial census taken in a year ending in zero *unless modified pursuant to court order*” (NY Const, art III, § 4 [e] [emphasis added]). The clause beginning with “unless” specifies that plans modified pursuant to a court order—unlike plans created by the IRC process—might not last until the next federal decennial census.⁵ Far from contradicting the plain reading of the first sentence that cabins a court’s power to conduct redistricting, the second sentence is completely in harmony with the first. A reading that gives a consistent meaning to both must be accepted in preference to a reading that renders words superfluous.⁶

Appellants and our dissenting colleagues also contend that mid-decade redistricting is disfavored, observing that the 2014 amendments prohibit mid-decade redistricting because the state of Texas deemed as such under its Constitution and Congress is considering, but has not acted on, legislation to that effect (dissenting op at 386). Putting aside that any such general preference cannot supersede the language of the Constitution, section 5-b (a), which itself is part of the 2014 constitutional amendments, expressly contemplates that a court may issue orders directing an IRC to redo IRC-created or legislatively created districts mid-decade, even though section 4 (e) specifies that such districts are expected to last for a decade.

Section 5-b (a) states, in part:

“On or before February first of each year ending
with a zero *and at any other time a court orders*
that congressional or state legislative districts *be*

5. Additionally, based on the context and placement of section 4 (e), the “reapportionment plan” mentioned therein is the plan created by the IRC and, if necessary, the legislature, not court-drawn districts—the entirety of section 4, which concludes with section 4 (e), sets forth the IRC redistricting process in detail.

6. Appellants, though not the dissent, also contend that “modified” in the second sentence of section 4 (e) means only “minor change” or “small change” or “somewhat different.” From that, appellants posit that the exclusion beginning with “unless” in that sentence applies only to minor court-ordered changes, and not to the adoption of a complete set of maps created by court order. That argument is not tenable. Under section 4 (e) (and also as an indisputable proposition of law), modifications must be whatever “a court is required to order . . . as a remedy for a violation of law” (NY Const, art III, § 4 [e]). The law might require something drastic or minor, yet whatever is required is the “modification,” whether minor or drastic.

amended,¹⁷ an independent redistricting commission shall be established to determine the district lines for congressional and state legislative offices” (NY Const, art III, § 5-b [a] [emphasis added]).

Thus, although not applicable to the judicially created districts involved on this appeal, section 5-b (a) further refutes both the dissent’s and appellants’ argument that the Constitution prohibits mid-decade redistricting.

Moreover, in the instant proceeding, petitioners are not requesting a court-ordered amendment to any districts. Instead, they have asked the court to issue a writ of mandamus compelling the IRC to deliver to the legislature a second set of maps and implementing legislation. The legislature may adopt those maps, or it may modify them as provided for in the Constitution (and as further constrained by the accompanying legislation). Either way, maps drawn pursuant to our decision will not be maps “ordered” by a court—rather, they will, one way or another, be adopted by the IRC and legislature.

Although the constitutional language is clear, the background against which the constitutional provisions were implemented further supports the conclusion that the Constitution limits court-drawn maps to the minimum time and scope required to cure a violation of law. For more than half a century before the 2014 constitutional amendments, every New York legislative redistricting was subject to court intervention, including the imposition of a judicially created congressional plan in 2012. The people adopted the 2014 amendments creating the IRC against that background and did so because of the frustration over both the legislature’s inability to draw lawful districts and the continual requests for districts to be created by the courts. In light of that history, it does not make sense to read the constitutional amendments to require a court to create decade-long electoral districts if the IRC or legislature fails to carry out its constitutional duties.

Court-drawn judicial districts are generally disfavored because redistricting is predominantly legislative. As the U.S. Supreme Court has explained, “our decisions have assumed that state legislatures are free to replace court-mandated re-

7. As with “modified,” appellants would have us read “amended” as limited to small changes. But amendments can be large or small. In any redistricting, the party responsible for the redistricting starts with the preexisting districts and asks what needs to be changed, which fits neatly within the definition of “amended.”

medial plans by enacting redistricting plans of their own. . . . Underlying this principle is the assumption that to prefer a court-drawn plan to a legislature’s replacement would be contrary to the ordinary and proper operation of the political process” (*League of United Latin American Citizens v Perry*, 548 US 399, 416 [2006]; see *id.* [(D)rawing lines for congressional districts is one of the most significant acts a State can perform . . . As the Constitution vests redistricting responsibilities foremost in the legislatures of the States and in Congress, a lawful, legislatively enacted plan should be preferable to one drawn by the courts”]; see also *Perry v Perez*, 565 US 388, 392 [2012] [emphasizing that “(r)edistricting is ‘primarily the duty and responsibility of the State’ ” and consistently referring to courts required to take up the state legislature’s task as creating, drafting, or devising an “interim map”]; *Wise v Lipscomb*, 437 US 535, 540 [1978] [(I)t is . . . appropriate, whenever practicable, to afford a reasonable opportunity for the legislature to meet constitutional requirements by adopting a substitute measure rather than for the federal court to devise and order into effect its own plan”]; *Reynolds v Sims*, 377 US 533, 586 [1964] [redistricting is “primarily a matter for legislative consideration and determination”]).⁸ Given this strong and longstanding body of federal law, it makes complete sense that the 2014 constitutional amendments were drafted to prohibit court-ordered redistricting “except to the extent that a court is required to order the adoption of, or changes to, a redistricting plan as a remedy for a violation of law” (NY Const, art III, § 4 [e]). The 2014 constitutional reforms unambiguously promised New York’s citizens an IRC redistricting process with minimal

8. We would not be the first state court to order recommencement of a nonjudicial redistricting process mid-decade following the judicial adoption of maps. As petitioners point out, other states’ high courts have recognized in similar circumstances that when a redistricting body “fails to enact a new redistricting plan [within the timeframe provided by the state constitution], it is neither deprived of its authority nor relieved of its obligation to redistrict” (*In re Below*, 151 NH 135, 137, 855 A2d 459, 462 [2004 per curiam]; see also *Lamson v Secretary of Commonwealth*, 341 Mass 264, 273, 168 NE2d 480, 486 [1960] [although the failure of the redistricting body to act “thwarts the intention of the Constitution,” an “even more serious nullification of constitutional purpose will result under a construction which would” prohibit a redistricting body from “return[ing] to reapportion”]; *Harris v Shanahan*, 192 Kan 183, 213, 387 P2d 771, 795 [1963] [(T)he duty to properly apportion legislative districts is a continuing one, imposed by constitutional mandate upon the legislature, notwithstanding the failure of any previous session to make such a lawful apportionment, and this duty may be performed prior to commencement of the next pending electoral process”]).

resort to court-drawn districts—only to the extent required to remedy a violation of law.

III.

Because we conclude that the Constitution limits the redistricting power of the courts—including our Court—to the creation of interim districts as the proper means to correct the extant constitutional failure, determining whether *Harkenrider* commanded the creation of a decade-long redistricting plan is wholly irrelevant and simply an academic exercise. Even if *Harkenrider* could be read to have required or allowed Supreme Court to create decade-long court-drawn districts, that reading would run afoul of the Constitution. In other words, if that is what *Harkenrider* intended, it lacked authority to do so because that remedy would have been unnecessary to cure the constitutional violation. Thus, reading the *Harkenrider* tea leaves—which all parties have attempted to do, each claiming something in that writing supports one position or the contrary—is meaningless given our holding today.

In any event, *Harkenrider* is silent about the duration of the remedy. Although there are points that could be read to suggest that the remedy was limited to the 2022 election,⁹ it is possible to read some of them as neutral or cutting the other way. Even the passage on which appellants most heavily rely—beginning with the observation that “[t]he procedural unconstitutionality of the congressional and senate maps is, at this juncture, incapable of a legislative cure”—suggests that the decision was limited to the exigency caused by the impending 2022 election, hence the inclusion of the words “at this juncture” (*Harkenrider*, 38 NY3d at 523). Although appellants contend that ordering the IRC to produce maps in *Harkenrider* would have been quicker than ordering judicially created

9. *Harkenrider* starts off with a declaration that judicial oversight was required to facilitate the “expeditious creation of the constitutionally conforming maps for use in the 2022 election” (38 NY3d at 502 [emphasis added]; see also *id.* at 521 [reiterating that the state was left “without constitutional district lines for use in the 2022 primary and general elections” (emphasis added)]). In addition, our Court highlighted the urgency and underlying exigency constraining our 2022 remedy because the maps were “incapable of a legislative cure” at “this juncture” (*id.* at 523). In combination with the plain text of the Constitution, our time-specific language and emphasis on the exigency of the then-fast-approaching 2022 election cycle, one could read *Harkenrider* as ordering an interim set of maps. But again, that line of reasoning is hardly conclusive, especially given this Court’s silence on that issue.

districts, that contention misses two important points. First, Supreme Court accomplished the redistricting in two months. Second, no party in *Harkenrider* sought to compel the IRC to act, the IRC was not a party to the proceeding, and ordering the IRC to deliver maps would still have left those maps subject to legislative or gubernatorial disapproval and further map-making by the legislature, with the historically attendant litigation to follow.

Regardless, because the 2014 constitutional amendments limited court-ordered districts to only what is required to remedy a violation of law, *Harkenrider* cannot be read to hold that courts may create decade-long redistrictings or that we ordered Supreme Court to do so. Accordingly, the existing judicially drawn congressional districts are limited to the 2022 election.¹⁰

IV.

[2] Petitioners' writ of mandamus proceeding is timely and not barred by laches. Petitioners filed an article 78 special proceeding in the form of a writ of mandamus to compel the IRC to submit a second set of congressional maps once the exigency of the 2022 elections had passed. Mandamus to compel lies where an administrative body has failed to perform a duty enjoined upon it by law, the performance of that duty is mandatory and ministerial rather than discretionary, and there is a legal right to the relief sought (*see* CPLR 7803 [1]; *New York Civ. Liberties Union v State of New York*, 4 NY3d 175, 184 [2005]; *see also Klostermann v Cuomo*, 61 NY2d 525, 540 [1984] [explaining that the "function of mandamus (is) to compel acts that officials are duty-bound to perform"]). Under CPLR article 78, a writ of mandamus to compel governmental bodies or officers "must be commenced within four months . . . after the respondent's refusal, upon the demand of the petitioner or the

10. Of course, if no one challenges the continued use of a judicially created redistricting, it will remain in place by default. But if, for example, a challenge is brought that does not leave enough time for the IRC to act, that challenge may be subject to a laches defense or a court may determine, as we did in *Harkenrider*, that the IRC or legislative processes may be too fraught with delay to prove feasible "at that juncture," and a further court-ordered remedy is required. Our holding today in no way "eliminat[es] . . . judicial review" (dissenting op at 387). Quite to the contrary, by granting a writ of mandamus to compel the IRC to fulfill its constitutional duty, we are asserting the power of the judiciary to ensure compliance with the will of the people of New York, as set forth in the constitutional provision they adopted—not "diminish[ing] the judiciary's role and power" (*id.*).

person whom he represents, to perform its duty” (CPLR 217 [1]; see *Austin v Board of Higher Educ. of City of N.Y.*, 5 NY2d 430, 442 [1959] [where the relief sought is in the nature of a mandamus to compel, the “aggrievement does not arise from the final determination but from the refusal of the body or officer to act or to perform a duty enjoined by law”]). It is therefore necessary to make a “demand and await a refusal before bringing a proceeding in the nature of mandamus,” wherein the statute of limitations does not run out until “four months after the refusal” (*id.*; see *Matter of Bottom v Goord*, 96 NY2d 870, 872 [2001]; see also *Donoghue v New York City Dept. of Educ.*, 80 AD3d 535, 536 [1st Dept 2011]).

In an appropriate case, the filing of a petition and the answer thereto is one way to establish a “demand” and a “refusal” for the purposes of a mandamus proceeding (see *Matter of Thomas v Stone*, 284 AD2d 627, 628 [3d Dept 2001]; *Matter of Speis v Penfield Cent. Schs.*, 114 AD3d 1181, 1182-1183 [4th Dept 2014]; *Matter of Meegan v Griffin*, 161 AD2d 1143, 1143 [4th Dept 1990], *lv denied* 76 NY2d 710 [1990], *rearg denied* 67 NY2d 1018 [1990]). Petitioners filed a petition on June 28, 2022, whereupon the Brady Appellants moved under CPLR 3211 (a) (5) and (7) to dismiss, constituting a refusal. Thus, the petitioners demanded the IRC to act, and the IRC refused. Because the filing of the petition and the IRC’s subsequent refusal to act began the running of the period, this proceeding is decidedly within the four-month limitation period prescribed by CPLR 217 (1).¹¹

Appellants, our dissenting colleagues, and the Appellate Division dissenting Justices do not dispute that the Constitution requires the IRC to conduct redistricting but contend that the time to compel the IRC to act has passed. The insuperable problem with their argument is that they have assumed that the court-ordered maps last for the decade. Because they do not, the time to move for a writ of mandamus to compel the IRC to complete its constitutional function as to the remaining

11. Appellants repeatedly cite footnote 10 of *Harkenrider* as “confirm[ing] th[e] accrual date” for a mandamus action as January 25, 2022. Neither the footnote nor the text calling it make any mention of an accrual date or January 25. Instead, with no reference whatsoever to timeliness, the footnote lists a mandamus action among several methods that might be used to compel IRC members “either to appear at IRC meetings or to otherwise perform their constitutional duties” (38 NY3d at 515 n 10). That is precisely the relief sought and granted in this appeal.

elections in this decade has not yet passed. Indeed, it could not have commenced until we ordered Supreme Court to draw its own districts as a remedy. Put differently, because the Constitution requires the IRC to draw districts, if a court has drawn districts, the IRC's constitutional obligation may be enforced at any time unless barred by laches (which, for example, would bar a challenge made insufficiently ahead of the next election cycle to permit the IRC to perform its constitutional function). Effectively, the untimeliness argument is nothing more than a way to undo the constitutional requirement that the court-drawn maps be only what is necessary to cure the violation: by requiring any challenge to be made only at the IRC's initial failure, appellants and our dissenting colleagues would cause court-ordered districts to last a decade. Because the Constitution says otherwise, mandamus to compel the IRC to complete its constitutional function now is timely.

[3] Nor is the petition barred by laches. When laches “is invoked in an article 78 proceeding in the nature of mandamus, proof of unexcused delay without more may be enough” (*Matter of Sheerin v New York Fire Dept. Arts. 1 & 1B Pension Funds*, 46 NY2d 488, 495-496 [1979]). It is the unreasonable nature of a delay that might constitute laches in such proceedings: “laches is designed to introduce flexibility into the process of determining when rights have been asserted so unseasonably that a point at which they should be barred has been reached” (*id.* at 496). Citing various Appellate Division decisions arising in quite different contexts but disregarding the import of our own decision in *Sheerin*, our dissenting colleagues assert that the laches period can be no greater than the four-month limitations period in CPLR 217 (1) (dissenting op at 377). Here, however, laches has no application. Petitioners are seeking to compel the IRC to send maps to the legislature, as required in the Constitution, to replace the court-drawn maps that are limited to the 2022 elections. They have done so in a more than timely fashion.

As we explained in *Sheerin*, laches in this context functions “as the counterpart of a Statute of Limitations, to which it may be analogized *but to whose provisions it owes no necessary obeisance*” (46 NY2d at 496 [emphasis added]). We pointedly rejected as “too broad an assertion” the proposition that the point at which laches may attach cannot “cover a period longer

or shorter than that prescribed by any available Statute of Limitations” (*id.*).¹²

Petitioners filed this proceeding on June 28, 2022. The petition was filed two months and one day after we decided *Harkenrider*, in which we held the 2021 gap-filling legislation unconstitutional and that a court-ordered redistricting plan must be implemented to the extent required to remedy the legislature’s violation of law. Because the Constitution forbade those court-drawn plans from lasting longer than necessary, our *Harkenrider* decision marks the date on which petitioners’ right to make the demand of the IRC arose and when petitioners knew or should have known of the facts that gave them a clear legal right to relief.

Moreover, as we observed in *Sheerin*, the question for the application of laches is not whether the delay exceeded four months, but whether the time at which the demand was made was reasonable in the circumstances. Here, petitioners are seeking to compel the IRC to act in the future, and the date on which they made a demand was early enough to allow for this proceeding to work its way through the courts with a determination made in time for the IRC to act in advance of the deadlines set forth in the Constitution ahead of the upcoming elections. Given these circumstances, making a demand on June 28, 2022, is hardly unreasonable. We therefore see no basis to impose a laches bar to prevent the citizens of New York from having districts drawn as the Constitution commands.

V.

Indisputably, the Constitution requires the IRC to deliver a second set of maps and implementing legislation to the legislature. The court-drawn maps directed by our *Harkenrider* decision may exist only to the extent required to remedy the violation of law at issue in that appeal. They are not now necessary to remedy the continuing violation of law asserted on this appeal, because the IRC has more than sufficient time to complete the constitutionally required process—time it did not have in late April 2022.

12. *Sheerin* states that the laches period may be “*longer* or shorter” than the statute of limitations (46 NY2d at 496 [emphasis added]), yet the dissent reads it as if “longer or” is missing from that opinion (*see* dissenting op at 381 n 2).

The *Harkenrider* litigation did not seek to remedy the violation caused by the IRC's failure to fulfill its constitutional obligation. Indeed, the obligation that now exists did not exist at that time due to the presence of the gap-filling legislation, which allowed for an alternative statutory path to redistricting in the event that the IRC deadlocked or otherwise failed to deliver maps. Instead, the *Harkenrider* petitioners attacked as unconstitutional the legislature's 2021 gap-filling legislation, and the redistricting created by the legislature under that statutory authorization, on both procedural and substantive grounds. Even though the *Harkenrider* and *Hoffmann* proceedings share some common background, the two are legally different. As the Appellate Division observed, "*Harkenrider* addresses the IRC's inaction solely by way of factual background" (*Hoffmann*, 217 AD3d at 61). In that same vein, no party in *Harkenrider* sued the IRC to compel it to act consistently with its constitutional duties. Indeed, the IRC and its members were not a party to it (*see Harkenrider*, 38 NY3d at 552 [Rivera, J., dissenting] [petitioners "did not sue the IRC to secure compliance with what they and the (Court's) majority maintain(ed) is the 'exclusive method of redistricting'" (quoting majority op)]).

Thus, our dissenting colleagues' complaints about the failure to adhere to stare decisis are meritless (dissenting op at 382-383, 384 n 3). *Harkenrider* is silent as to the duration of the maps; the decision does not discuss any interpretation of section 4 (e), and no party advanced any argument about its meaning. It is surely a novel proposition to urge that a court is "derelict" for failing to address an argument no one advanced (*see id.* at 383-384), or that we are "eager[] to relitigate" an issue that the dissent concedes no party in *Harkenrider* raised and as to which *Harkenrider* is silent (*id.* at 384 n 3). Rather, it is hornbook law that "[a] judicial opinion . . . must be read as applicable only to the facts involved and is an authority only for what is actually decided" (*Rolfe v Hewitt*, 227 NY 486, 494 [1920]). Indeed, the doctrine of stare decisis presupposes the existence of binding precedent, yet issues that have never been addressed nor squarely decided certainly cannot bind future courts (*see Matter of Empire Ctr. for N.Y. State Policy v New York State Teachers' Retirement Sys.*, 23 NY3d 438, 446 [2014] ["Our decisions are not to be read as deciding questions that were not before us and that we did not consider"]).

It follows then that the *Harkenrider* Intervenor's collateral attack argument likewise fails. Because the instant proceeding

revolves around a distinct and previously unraised issue—the interpretation of section 4 (e)’s language limiting judicial redistricting “except to the extent that a court is required to order the adoption of, or changes to, a redistricting plan as a remedy for a violation of law”—none of the claims or issues raised in this mandamus proceeding is addressed (much less barred) by our prior decision.¹³ The Harkenrider Intervenors’ collateral attack argument thus fails because the judicial redistricting ordered by our *Harkenrider* decision cannot constitutionally last longer than necessary to remedy a violation of law. It therefore can have no preclusive effect on future legislative redistricting, except insofar as the redistricting plan we struck down as substantively unconstitutional may have some bearing in any evaluation of the substantive constitutionality of a future redistricting plan.

Accordingly, mandamus to compel lies. The people of New York are entitled to the process set out in the Constitution, for which they voted. That process may include a judicially directed creation of districts that is limited expressly to the “extent” that the court is “required” to do so (NY Const, art III, § 4 [e]), but not at the expense of the IRC process when time exists to follow that process. There is no good argument as to why New Yorkers must be prohibited from ordering the creation of legislative districts through the process the Constitution requires, adopted by the direct vote of the people. Underlying all the dissent’s rhetoric is a complaint that this Court is forcing the IRC and legislature to follow the Constitution.

Reduced to its essence, the dissent’s and appellants’ arguments are that we should not pursue the IRC process because it will never work: ordering the IRC to deliver the required maps and implementing legislation will produce gamesmanship, a never-ending cycle of litigation, and ensure that “politics triumphs over free and fair elections” (dissenting op at 390). But that is precisely what New York faced for decades before the 2014 constitutional amendments and it was the very reason the IRC process was adopted. To allow the IRC to defeat

13. For the same reason, and contrary to the Harkenrider Intervenors’ argument, this proceeding was properly brought in Albany. The petition does not seek a modification of a prior court order of the Steuben County Supreme Court. Instead, it seeks to compel the IRC to deliver maps. New maps will supplant the judicially created maps not by judicial modification of Supreme Court’s order, but rather by operation of the IRC and legislative process as provided for in the Constitution.

the Constitution encourages gamesmanship and defeats the popular will. Indeed, if we allow the IRC's lack of compliance to stand, we would incentivize the same conduct that deadlocked the IRC and led to court-ordered redistricting.

Compelling the IRC to commence its constitutional duty will not reopen the door to future mid-decade challenges. Instead, once the IRC has submitted a second set of lawful redistricting maps and they are adopted by the legislature, those maps would remain in place through the end of the decade. That, in turn, would send a clear directive to the IRC in subsequent decades that it must comply with the Constitution. In any event, debates about gamesmanship are better addressed to the voters, who can repeal or modify the IRC process if it proves undesirable. Until such time, however, it is our obligation to enforce the constitutional process, not give up on it because of a judicial judgment that it was ill-advised.

We note the irony in the dissent's claim that, by compelling the IRC and legislature to comply with the Constitution, we are "restrict[ing] . . . judicial authority" (dissenting op at 388), or that because the courts may again have to hold the IRC to its constitutional obligations, we are diminishing the role of the judiciary (*id.* at 387). Instead, "the judicial department of the government is charged with the solemn duty of enforcing the Constitution . . . [and] the responsibility of correcting every possible abuse arising from the exercise by the other departments of their conceded authority" (*McCray v United States*, 195 US 27, 53-54 [1904]). We are holding the IRC and legislature to what the Constitution demands and will do so as often as necessary to secure compliance with its mandate. That said, we trust that the members of the IRC will act as the Constitution requires without further need for judicial intervention. After all, the IRC members, like us, may not ignore our respective constitutional duties.

VI.

Consistent with our opinion and the Appellate Division's direction, the IRC should comply with its constitutional mandate by submitting to the legislature, on the earliest possible date, but in no event later than February 28, 2024, a second congressional redistricting plan and implementing legis-

lation.¹⁴ Accordingly, the order of the Appellate Division should be affirmed, with costs.

CANNATARO, J. (dissenting). Less than a decade ago, the people of this state amended the New York Constitution to mandate that partisanship be kept out of the decennial redistricting process (see NY Const, art III, § 4 [c] [5]). At their first opportunity, the Independent Redistricting Commission (IRC) and legislature failed to follow the constitutional process for enacting redistricting legislation and disobeyed the Constitution's anti-gerrymandering mandate, requiring this Court to act (see *Matter of Harkenrider v Hochul*, 38 NY3d 494, 501 [2022]). Redistricting plans were drafted by a neutral special master in accordance with our decision in *Harkenrider*, certified by Supreme Court, and then used in the 2022 election, producing a fair and competitive election consistent with the overarching goals of the 2014 constitutional reforms prohibiting gerrymandering.

Today, even though the constitutionality of the existing district lines has not been substantively challenged, the majority reverses course. Recasting the judiciary's long history of safeguarding New Yorkers' right to free and fair elections as the problem in need of correction—with political gerrymandering meriting barely any mention in the majority decision—the Court today strictly curtails the constitutional authority of the judiciary to remedy future legislative overreach, rewriting the Constitution in order to do so.

Under the plain language of the Constitution, the maps we ordered in *Harkenrider* must remain “in force until the effective date of a plan based upon the subsequent federal decennial census . . . unless modified pursuant to court order” to remedy a violation of law (NY Const, art III, § 4 [e]). Since the only violation of law alleged in this proceeding is the previous breakdown of the redistricting process this Court remedied in *Harkenrider*, there is no constitutional basis for this Court to order a new congressional map. The majority's holding to the contrary manufactures a new violation of law to justify overruling *Harkenrider*, rewards petitioners for their inexcusable and strategic delay in commencing this proceeding, and elevates a failed process above the people's substantive rights

14. This redistricting process must be based on the 2020 census data, which the IRC has already compiled, and there is no requirement that the IRC conduct any solicitation of public commentary beyond what it has done previously.

to free and fair elections. The majority is able to reach this result “for one reason and one reason only: because the composition of this Court has changed” (*Dobbs v Jackson Women’s Health Organization*, 597 US 215, 364 [2022] [Breyer, Sotomayor, & Kagan, JJ., dissenting]). I dissent.

I.

Adoption and Violation of the 2014 Constitutional Amendments

Partisan gerrymandering—the manipulation of district lines to favor a particular political party—is a practice that “debase[s] and dishonor[s] our democracy,” “enable[s] politicians to entrench themselves in office as against voters’ preferences,” “promote[s] partisanship above respect for the popular will,” and “encourage[s] a politics of polarization and dysfunction” (*Rucho v Common Cause*, 588 US 684, 722 [2019, Kagan, J., dissenting]). As the majority recounts, redistricting in New York has been frustrated for decades by partisan gerrymandering and legislative stalemates. And history demonstrates that it was the judiciary that was called upon to guarantee fair elections to New Yorkers.

In 2014, following resolutions enacted by two successive legislatures and a ballot referendum approved by the people, amendments to the New York Constitution effected sweeping reform of the state’s redistricting process by restraining the legislature’s ability to enact gerrymandered maps, with the goal of ushering in a new era of bipartisanship. In 2019, however, Democrats captured a supermajority of both the state senate and the state assembly. In 2021, the new legislature sponsored a ballot initiative in which it proposed to amend the Constitution and grant itself the authority to draw maps if the IRC “for any reason” failed to carry out its constitutional duty to submit a redistricting plan to the legislature (2021 NY Senate-Assembly Concurrent Resolution S515, A1916, § 4). New York voters firmly rejected that proposal by a 54-45% margin, reaffirming their commitment to bipartisanship and their opposition to legislative circumvention of the constitutional map-drawing process. Undeterred, the legislature promptly passed a statute to achieve the same result (the 2021 legislation) (*see* L 2021, ch 633).

Following passage of the 2021 legislation, negotiations between the IRC members broke down. Split along party lines,

the IRC was unable to garner sufficient votes to submit a single set of maps by the constitutional deadline for its first-round proposal. As a result of their disagreements, the IRC submitted a dueling pair of redistricting plans to the legislature, one from each party delegation.¹

On January 10, 2022, the legislature rejected this first round of IRC redistricting plans, thereby triggering the IRC's constitutional obligation to proffer a second round of maps "[w]ithin fifteen days of such notification" (NY Const, art III, § 4 [b]). The Constitution therefore mandated that the IRC proffer a second redistricting plan by January 25, 2022. Fourteen days later, the IRC publicly announced a deadlock and, on January 25th, the IRC's deadline came and went without the submission of second-round maps to the legislature.

Within a week, acting under color of the 2021 legislation, the legislature's supermajority composed and enacted its own set of congressional, senate, and assembly redistricting maps without any consultation or participation by the minority party (*see* 2022 NY Senate-Assembly Bill S8196, A9167; 2022 NY Senate-Assembly Bill S8172A, A9039A; 2022 NY Senate-Assembly Bill S8197, A9168; 2022 NY Senate-Assembly Bill S8185A, A9040A). The congressional map, in particular, was universally derided by the press, legal experts, and good-government groups as an egregious partisan gerrymander (*see e.g.* Nia Prater, *New York Democrats Have Gerrymandered Their Way to a Huge Advantage*, New York Magazine, Feb. 4, 2022, <https://nymag.com/intelligencer/2022/02/n-y-democrats-gerrymandered-their-way-to-a-huge-advantage.html>; Nicholas Fandos et al., *A 'Master Class' in Gerrymandering, This Time Led by N.Y. Democrats*, NY Times, Feb. 2, 2022, § A at 1, <https://www.nytimes.com/2022/02/02/nyregion/redistricting-gerrymandering-ny.html>; Jane C. Timm, *New York Legislature OKs gerrymander that could net Democrats 3 more seats*, NBC News, Feb. 2, 2022, <https://www.nbcnews.com/politics/elections/new-york-legislature-oks-gerrymander-net-democrats-3-seats-rcna14526>; Aaron Navarro, *New York Democrats advance new congressional map that heavily favors Democratic Party*, CBS News, Feb. 2, 2022, <https://www.cbsnews.com/news/new-york-congressional-map-democrats/>; *see also* Michael Li, *What Went*

1. The submission of multiple redistricting plans is constitutionally permitted if a single consensus map fails to garner sufficient votes (*see* NY Const, art III, § 5-b [g]).

Wrong with New York's Redistricting, Brennan Center for Justice, June 7, 2022, <https://www.brennancenter.org/our-work/research-reports/what-went-wrong-new-yorks-redistricting>). The Governor nonetheless signed the legislation into law on February 3, 2022.

Harkenrider

The *Harkenrider* petitioners promptly commenced a proceeding to invalidate as unconstitutional the congressional and senate maps, alleging that the legislature lacked authority to enact the maps absent a second-round IRC submission. The petitioners also alleged that the maps were drawn with unconstitutional partisan intent.

The *Harkenrider* petitioners ultimately prevailed on their procedural claim, as well as on their substantive gerrymander challenge to the congressional map (38 NY3d 494 [2022]). This Court declared both the congressional and state senate maps void because “the IRC’s fulfillment of its constitutional obligations” was a prerequisite to—and limitation on—the legislature’s authority to draft redistricting plans (*id.* at 514). Although the 2021 legislation purported to authorize the legislature to adopt redistricting maps even if the IRC failed to submit plans, we concluded that such legislation was “unconstitutional to the extent that it permits the legislature to avoid a central requirement of the reform amendments” (*id.* at 517). This Court also upheld the factual findings of the courts below that the congressional map was drawn with an unconstitutional partisan intent to discourage competition and favor Democrats. The Court remedied these violations by “endor[sing] the procedure directed by Supreme Court to ‘order the adoption of . . . a redistricting plan’ (NY Const, art III, § 4 [e]) with the assistance of a neutral expert, designated a special master, following submissions from the parties, the legislature, and any interested stakeholders who wish to be heard” (38 NY3d at 523). In doing so, we upheld the fundamental role of the courts—a role required by the Constitution—in protecting the right of the people of this state to free and fair elections untainted by partisan gerrymandering.

On May 20, 2022, the new congressional and state senate maps were promulgated by Supreme Court (*Harkenrider v Hochul*, 2022 NY Slip Op 31471[U] [Sup Ct, Steuben County 2022]) and, following minor revisions, that court certified the new maps on June 2, 2022.

The Instant Litigation

After the *Harkenrider* litigation had fully concluded, and five months after the IRC's January 25th deadline to submit a second-round redistricting plan to the legislature had passed, petitioners commenced this proceeding purportedly to enforce the bipartisan IRC process. Their amended petition sought a "writ of mandamus to compel" the IRC and its commissioners "to fulfill their constitutional duty . . . by submitting a second round of proposed congressional districting plans for consideration by the [l]egislature."

The members of the IRC aligned with the legislature's supermajority declined to oppose the petition, but the remaining IRC Commissioners moved to dismiss the proceeding as untimely and for failing to state a cognizable claim for relief under either the Constitution or this Court's decision in *Harkenrider*. Having successfully intervened, the *Harkenrider* petitioners also moved to dismiss the petition as untimely and on the basis that, in *Harkenrider*, this Court had already remedied the constitutional defect identified by petitioners by directing the enactment of new, nonpartisan maps. Supreme Court granted respondents' motions to dismiss, agreeing that the Constitution required the *Harkenrider* redistricting maps to remain in place until the next census (2022 NY Slip Op 33555[U] [Sup Ct, Albany County 2022]).

On appeal, a divided Appellate Division reversed, granted the petition, and "direct[ed] the IRC to commence its duties forthwith" (217 AD3d 53, 62 [3d Dept 2023]). According to the Appellate Division, petitioners' claim against the IRC was timely because it "accrued" on March 31, 2022, the date on which the *Harkenrider* Supreme Court ruled that the 2021 legislation purporting to allow the legislature to proceed absent a second IRC submission was unconstitutional (217 AD3d at 58). On the merits, the Appellate Division concluded that *Harkenrider* "exclusively addressed the Legislature's constitutional violations and, thus, did not remedy the IRC's failure to perform [its nondiscretionary constitutional] duty" (*id.*). The Appellate Division also reasoned that the Constitution authorized judicial intervention in redistricting only "to the extent . . . required" to remedy a violation of law and, in *Harkenrider*, "the Court was not 'required' to divert the constitutional process beyond the then-imminent issue of the 2022 elections" (217 AD3d at 60 [emphasis omitted]). Thus, in the Appellate Division's view, the congressional map adopted pursuant to

Harkenrider was “merely an interim map for the purpose of the 2022 elections” and the IRC could be compelled to produce a second congressional map for the legislature’s consideration (217 AD3d at 58).

Two Justices dissented. Initially, the dissenters would have rejected the petition as time-barred because petitioners unreasonably failed to demand the IRC perform its legal duty until five months after the IRC failed to act. Alternatively, the dissenters would have affirmed Supreme Court’s denial of the petition because “the failure of the IRC to act . . . was . . . part and parcel” of our holding in *Harkenrider* that the originally enacted maps violated the Constitution’s procedural requirements (217 AD3d at 68 [Pritzker, J., dissenting]). Further, this Court’s remedy had already “repaired the procedural and substantive infirmities in a manner directly set forth in the NY Constitution” (*id.* at 68-69). Since a constitutionally-enacted “congressional map has been established and remains in place” for the duration specified in the Constitution—namely, until the next federal census—the dissenters concluded that petitioners lacked any clear legal right to relief (*id.* at 70).

Respondents appealed as of right on double dissent grounds (*see* CPLR 5601 [a]). For the reasons detailed below, I would reverse and dismiss the proceeding.

II.

Petitioners seek to compel the IRC to fulfill its constitutional duty “by submitting a second round of proposed congressional districting plans for consideration by the [l]egislature” (amended petition at 5 [¶ 14], 20 [Prayer for Relief]). As is proper, I will begin with the timeliness of this claim for relief, which the majority chooses to ignore for the first 18 pages of its opinion.

It is well-settled that a proceeding in the nature of mandamus to compel “must be commenced within four months . . . after the respondent’s refusal, upon the demand of the petitioner . . . to perform its duty” (CPLR 217 [1]; *see Matter of Waterside Assoc. v New York State Dept. of Env’tl. Conservation*, 72 NY2d 1009, 1010 [1988]; *Matter of De Milio v Borghard*, 55 NY2d 216, 220 [1982]; *Austin v Board of Higher Educ. of City of N.Y.*, 5 NY2d 430, 442 [1959]). As we have cautioned, however: “This does not mean that the aggrieved party can, by delay in making [a] demand, extend indefinitely the period during which [they are] required to take action. If [they do] not proceed

promptly with [the] demand [they] may be charged with laches” (*Austin*, 5 NY2d at 442, citing 22 Carmody-Wait, New York Practice, §§ 289, 297 at 379, 388-390; *see also Matter of Sheerin v New York Fire Dept. Arts. 1 & 1B Pension Funds*, 46 NY2d 488, 496 [1979]; *Matter of Devens v Gokey*, 12 AD2d 135, 137 [4th Dept 1961], *affd* 10 NY2d 898 [1961]).

To avoid application of laches in this context, a “demand must be made within a reasonable time after the right to make [it] occurs” (*Matter of Devens*, 12 AD2d at 136) or, at the latest, “after the petitioner knows or should know of the facts which give [them] a clear right to relief” (*Matter of Granto v City of Niagara Falls*, 148 AD3d 1694, 1695 [4th Dept 2017] [internal quotation marks omitted]; *Matter of Barresi v County of Suffolk*, 72 AD3d 1076, 1076 [2d Dept 2010], *lv denied* 15 NY3d 705 [2010]; 24A Carmody-Wait 2d § 145:880). In furtherance of the policies underlying CPLR 217 (1), four months has been deemed the longest possible period in which service of a demand can be considered reasonable (*see Matter of Norton v City of Hornell*, 115 AD3d 1232, 1233 [4th Dept 2014], *lv denied* 23 NY3d 907 [2014]; *Matter of Zupa v Zoning Bd. of Appeals of Town of Southold*, 64 AD3d 723, 725 [2d Dept 2009]; *Matter of Blue v Commissioner of Social Servs.*, 306 AD2d 527, 528 [2d Dept 2003]; *Matter of Thomas v Stone*, 284 AD2d 627, 628 [3d Dept 2001], *appeal dismissed* 96 NY2d 935 [2001], *lv denied* 97 NY2d 608 [2002], *cert denied* 536 US 960 [2002]; *Matter of Densmore v Altmar-Parish-Williamstown Cent. School Dist.*, 265 AD2d 838, 839 [4th Dept 1999], *lv denied* 94 NY2d 758 [2000]; *Devens*, 12 AD2d at 137; *Matter of Amsterdam City Hosp. v Hoffman*, 278 App Div 292, 297 [3d Dept 1951]). Unexcused delay of more than four months requires dismissal of the proceeding, even in the absence of any prejudice (*see Matter of Sheerin*, 46 NY2d at 495-496; *Devens*, 12 AD2d at 137).

Straightforward application of these well-settled principles can lead to only one conclusion: petitioners’ claim was filed far too late. Petitioners seek enforcement of the IRC’s duty to submit second-round maps to the legislature, but they did not demand that the IRC fulfill its constitutional duty when the commission announced on January 24th that it was deadlocked and therefore would not comply. Nor did petitioners make any demand when the IRC’s constitutional deadline for the submission of second-round maps came and went on January 25th. Petitioners remained silent as the legislature introduced its

own redistricting legislation on February 1st, removing the process entirely from the IRC and signaling that the legislature would proceed with redistricting despite the IRC's abdication of its constitutional duty. Petitioners also sat idle when the infirm redistricting legislation was delivered to the Governor and signed into law on February 3rd.

Petitioners' inaction continued throughout the entire *Harkenrider* litigation. Significantly, at oral argument before this Court on April 26, 2022, both the *Harkenrider* petitioners (intervenor here) and the state respondents acknowledged that mandamus relief "could have" been sought against the IRC at an earlier point, evidencing that the availability of such relief was always well understood (oral argument tr at 33, 46). Indeed, counsel for the Speaker of the Assembly stated that "there could have been a lawsuit brought by petitioners against the . . . members of the commission *but the . . . time passed*" (*id.* at 46 [emphasis added]).

Even after our decision in *Harkenrider*, most petitioners remained idle with respect to mandamus relief or chose to pursue alternative relief. Most notably, lead petitioner Hoffmann sought an order in the United States District Court for the Southern District of New York requiring that the gerrymandered maps enacted by the legislature be used in the impending 2022 congressional elections (Doc No. 1, complaint dated May 2, 2022 at 3, 13, in *De Gaudemar v Kosinski*, SD NY, No.1:22 Civ 3534). The District Court harshly rejected that request to "hav[e] the New York primaries conducted on district lines that the State says are unconstitutional," referring to it as an attempt to "impinge[]" on "[f]ree, open, rational elections" (Doc No. 92-2, tr at 15, 40, in *De Gaudemar*). Only after these efforts failed, the special master maps were certified, and several more weeks had passed did petitioners finally seek mandamus relief against the IRC.

There is no excuse for this extravagant delay. Even assuming petitioners' claim would have been deemed premature on January 24th—the day the IRC announced its stalemate—they had a clear right to mandamus relief against the IRC on January 25th, when the 15-day constitutional deadline elapsed without any second-round submission by the IRC. Further, it is unfathomable that petitioners can argue that even after the Governor signed the legislature's maps into law on February 3rd, it remained unclear whether the IRC would act to deliver a second set of maps. Because these events were unequivocal,

petitioners' commencement of this proceeding on June 28th was "well beyond four months after they knew or should have known of the facts that provided them a clear right to relief" (see *Matter of Granto*, 148 AD3d at 1696). Plainly, by then the ship had sailed.

Petitioners agree that this proceeding is governed by a four-month time limit, but argue that such period should be measured from March 31, 2022, the date the *Harkenrider* trial court declared the 2021 legislation unconstitutional. However, the 2021 legislation neither relieved the IRC of its mandatory constitutional duty to submit second-round maps nor concealed petitioners' clear right to mandamus relief arising from the breach of that duty on January 25th. The 2021 legislation provided merely that "[i]f the commission does not vote on any redistricting plan or plans, for any reason, by the date required for submission of such plan," the legislature could enact its own redistricting plan (L 2021, ch 633, § 1 [emphasis added]). Nothing in that language purports to modify the IRC's underlying constitutional duty to submit maps to the legislature, which is the very action petitioners now seek to compel. Moreover, it is a bedrock legal principle that statutes are subordinate to the Constitution and are void in the event of any conflict. Thus, even if the legislature had intended to relieve the IRC of its mandatory constitutional obligation, the only way to do so was to amend the Constitution. The legislature clearly understood this: it initially submitted the 2021 legislation to the people in the form of a ballot initiative for a proposed constitutional amendment. In rejecting that proposal, the people signaled their strong preference for the constitutionally mandated process, which—as I will explain—leaves remediation of any IRC breakdown primarily to the *courts*. The legislature's response was to ignore the voters' will and circumvent the Constitution by enacting the same provisions as an ordinary statute. That unsubtle effort to subvert the IRC's role was legally ineffective for the reasons stated above.

Petitioners nonetheless argue that the 2021 legislation effectively delayed accrual of their claim against the IRC because the legislature's enactment of maps significantly ameliorated any injury arising from the IRC's abdication of its constitutional duty. In addition to confusing the accrual date for mandamus to compel with that applicable to mandamus to review, this argument willfully ignores that the 2021 legislation inflicted the same injury petitioners claim to have suffered in this

proceeding: removal of the IRC from the map-drawing process. Unsurprisingly, then, the record does not support a conclusion that petitioners actually suffered from any confusion regarding their right to relief during the brief period in which the 2021 legislation was effective. If anything, the record suggests that Hoffmann and the other petitioners commenced this action as a fallback only after it became clear that they would not get the gerrymandered maps they desired: the true injury they seek to cure here.

Nor does petitioners' alternative argument that their claim accrued on February 28th fare any better. The February 28th cut-off date operates to shorten, not lengthen, the 15-day period that may be available to the IRC following the legislature's rejection of its first-round submission. The Constitution directs that, "[w]ithin [15] days" of the legislature's notification of its rejection of the first round of redistricting maps "and in no case later than February [28th], the [IRC] shall prepare and submit to the legislature a second redistricting plan" (NY Const, art III, § 4 [b]). The purpose of the February 28th outer deadline is to ensure that the legislature has sufficient time to act on a second-round submission before candidates must begin to canvass signatures from their districts and other election preparations must begin. By comparison, the Constitution affords the IRC more flexibility with respect to the deadline for its first-round submission, directing the IRC to submit its initial redistricting plan "on or before January first *or as soon as practicable thereafter* but no later than January [15th]" (NY Const, art III, § 4 [b] [emphasis added]), language notably lacking from the provision setting forth the IRC's deadline for its second-round maps. By January 25th—not February 28th—petitioners were fully apprised of the facts necessary to make their demand that the IRC fulfill its constitutional duty.

Recognizing that petitioners' timeliness arguments cannot carry the day, the majority devises a novel theory not advanced by any party to this litigation. The majority declares that "the IRC's constitutional obligation may be enforced *at any time*," so long as the demand is made and refused "[s]ufficiently ahead of the next election cycle to permit the IRC to perform its constitutional function" (majority op at 366 [emphasis added]). In other words, the majority decrees that the normal timeliness rules governing mandamus proceedings simply do not apply to this case. Even where the IRC has unequivocally violated its constitutional duties, and all applicable deadlines set forth

in the Constitution have passed, the majority encourages a petitioner to sit on their rights for months, while other parties timely commence and prevail in litigation over the same facts, candidates and voters wait in limbo regarding district lines, and new maps are painstakingly developed and put in place.

This holding makes no sense. It is based on a conclusion that the IRC's duties are automatically revived any time a court orders the adoption of judicial maps, and therefore, what is being remedied here is not the violation of the January 25th IRC deadline, but some nebulous new duty that first sprung into being after *Harkenrider*. Even ignoring the lack of support for any such theory in either the Constitution or the pleadings, the majority's reasoning logically should require it to order that the *entire* IRC process now begin anew—a two-year process that would not afford petitioners the immediate relief they seek. Yet, the majority tellingly orders only that the IRC submit a second redistricting plan, demonstrating that it is, in fact, simply ordering a different remedy for the same violation of law that was already remedied by this Court in *Harkenrider*.²

Because this proceeding was commenced long after petitioners should have known of their right to relief, seemingly for strategic reasons, “the solution is not to apply a different legal standard . . . , but to reject the petition for mandamus to compel” (see *Matter of Krug v City of Buffalo*, 34 NY3d 1094, 1099 [2019, Wilson, J., dissenting]). Dismissal on laches and timeliness grounds would strongly discourage partisan actors from engineering future breakdowns of the IRC. Had petitioners acted reasonably following the IRC's violation of its duties on January 25th, they could have *immediately* sought and obtained an emergency order in the nature of mandamus compelling the IRC to submit a second redistricting plan in accordance with the timetable set forth in the Constitution while still giving the IRC and legislature each several weeks to act. The sad irony the majority refuses to recognize is that if petitioners had simply acted reasonably and in good faith following the

2. Contrary to the majority's contention, our decision in *Sheerin* in no way justifies today's ill-advised timeliness ruling. In holding that the laches doctrine “owes no necessary obeisance” to the statute of limitations in mandamus proceedings, the Court was rejecting an argument that “once the right [to mandamus] is established, laches is unavailable to restrict . . . the remedy to cover a period longer or shorter than that prescribed by any available Statute of Limitations” (46 NY2d at 496). Nothing in *Sheerin* authorizes this Court to effectively abolish the statute of limitations and laches principles applicable to mandamus proceedings in this context.

IRC's breach of duty, the relief we ordered in *Harkenrider* may never have been necessary, and we might not be here today. Enforcing our ordinary timeliness principles is not "a way to undo the constitutional requirement that the court-drawn maps be only what is necessary to cure the violation" (majority op at 366). It is a way to ensure that the courts are never "required" to order such maps in the first place. If the majority truly sees the remedy we ordered in *Harkenrider* as an evil to be avoided (see part III, *infra*), it should encourage prompt action upon the breakdown of the IRC process, not sanction the unreasonable delay that occurred here.

III.

Even if we were to put aside, as the majority does, what is a legally insurmountable timeliness hurdle, this Court has already remedied the IRC's failure to fulfill its constitutional duty. A petitioner seeking mandamus to compel "must have a clear legal right to the relief demanded and there must exist a corresponding nondiscretionary duty on the part of the administrative agency to grant that relief" (*Matter of Scherbyn v Wayne-Finger Lakes Bd. of Coop. Educ. Servs.*, 77 NY2d 753, 757 [1991]). "The duty must be positive, not discretionary, and the right to its performance must be so clear as not to admit of reasonable doubt or controversy" (*Matter of Burr v Voorhis*, 229 NY 382, 387 [1920]). Applying these well-settled principles to the instant case, mandamus is available to petitioners only if they have demonstrated that the IRC has an "exist[ing]," "clear," and "nondiscretionary" duty to submit a second-round redistricting plan to the legislature, even after our decision in *Harkenrider* and the promulgation of the remedial maps by Supreme Court in accordance with that decision (not to mention long after the passage of the constitutional deadlines).

Petitioners do not, and cannot, make any such showing. Petitioners are not entitled to mandamus relief because the IRC's failure to fulfill its constitutional duty was remedied by this Court in *Harkenrider*. Once remedied, the IRC's duty dissipated, leaving no performance to compel by mandamus. Absent any substantive challenge to the current redistricting plan in effect, the decennial redistricting process has concluded. Petitioners therefore have no right—let alone any clear legal right—to compel the IRC to submit a congressional redistricting plan to the legislature.

Harkenrider clearly addressed and remedied the breakdown of the constitutional map-drawing process, including the IRC's

failure to submit second-round maps within the constitutionally required timeframe. We held that “*the IRC and the legislature* failed to follow the procedure commanded by the State Constitution,” and we characterized the “primary questions before us” as “whether this failure to follow the prescribed constitutional procedure warrants invalidation of the legislature’s congressional and state senate maps” (38 NY3d at 501-502 [emphasis added]). The *Harkenrider* petitioners “alleged that the process by which the 2022 maps were enacted was constitutionally defective *because* the IRC failed to submit a second redistricting plan as required under the 2014 constitutional amendments” (*id.* at 505 [emphasis added]), and we agreed that, “in light of the lack of compliance *by the IRC and the legislature* with the procedures set forth in the Constitution, the legislature’s enactment of the 2022 redistricting maps contravened the Constitution” (*id.* at 508-509 [emphasis added]).

In claiming otherwise, the majority erroneously treats the lack of an order against the IRC requiring specific performance of its constitutional duty as a failure to remedy the breakdown of the constitutional process. But that is not how *stare decisis* or the judicial remediation of injury works. In ordering new maps to be drafted by a neutral expert following a period of input from the public, interested stakeholders, and the legislature, under the supervision of a Supreme Court Justice, we indisputably provided a legal substitute (i.e. a remedy) for the IRC’s failure to submit bipartisan maps. That remedy was fully supported by the Constitution, specifically our duty to engage in “expedited judicial review of redistricting challenges” and “‘order the adoption of . . . a redistricting plan’ in the absence of a constitutionally-viable legislative plan” so as “to guarantee the people’s right to a free and fair election” (*Harkenrider*, 38 NY3d at 521-522, quoting NY Const, art III, § 4 [e]).

Nor can *Harkenrider* reasonably be understood to have ordered the adoption of “interim” maps for use solely in the 2022 elections. This Court’s opinion necessarily referenced the impending 2022 election at various intervals. However, such references served only to clarify that the remedy would not be postponed until after the 2022 elections, as requested by the state respondents. Had this Court intended to limit its remedy to a single election cycle and contemplated the need for further redistricting thereafter, our failure to expressly so direct would

be inexplicable and derelict, needlessly leaving New York in election limbo (*compare Honig v Board of Supervisors of Rensselaer County*, 24 NY2d 861, 862 [1969] [directing that a reapportionment plan for election of county board of supervisors proceed on maps as an “interim measure” and that the County Board of Supervisors “proceed as promptly as circumstances permit to promulgate a plan of reapportionment (for use in future elections) meeting constitutional standards”]).

Unwilling to accept our reasoning in *Harkenrider* or accept the remedy this Court put in place, the majority discards both. It proclaims the holding in *Harkenrider* “wholly irrelevant” (majority op at 363) because, in its view, the judiciary is constitutionally prohibited from ever ordering the adoption of maps for more than a single election (*id.* at 357-358).³ Its sole support for this startling conclusion is the first sentence of article III, § 4 (e), which provides as follows:

“The process for redistricting congressional and state legislative districts established by this section and sections five and five-b of this article shall govern redistricting in this state except to the extent that a court is required to order the adoption of, or changes to, a redistricting plan as a remedy for a violation of law” (NY Const, art III, § 4 [e]).

According to the majority, the four words “to the extent . . . required” effected a sea change in the courts’ ability to adjudicate and remedy constitutional violations of the redistricting process. As the majority reads the language, a court may now order the adoption of, or changes to, a redistricting plan only to the extent *and for the minimum period of time required* to remedy a violation of law (*see* majority op at 357-361).

An obvious problem with the majority’s reading is that it rewrites the constitutional text. As a grammatical matter, the phrase “to the extent . . . required” does not modify the courts’ power “to order the adoption of, or changes to, a redistricting plan as a remedy for a violation of law”—it modifies the subject

3. The majority’s eagerness to relitigate the *Harkenrider* remedy is not surprising given their disagreement in that case (*see Harkenrider*, 38 NY3d at 527 [Wilson, J., dissenting]; *id.* at 546 [Rivera, J., dissenting]; *id.* at 524 [Troutman, J., dissenting in part]). However, *stare decisis* does not permit the majority to overturn our precedent merely because they would “decide [the] case differently now than we did then” (*Dobbs*, 597 US at 388 [Breyer, Sotomayor, & Kagan, JJ., dissenting]).

of the sentence, which is “[t]he process for redistricting . . . established by [sections 4, 5 and 5-b] shall govern” (NY Const, art III, § 4 [e]). Thus, contrary to the majority’s conclusion, the clause does not limit the circumstances under which a court can order the adoption of a redistricting plan to remedy a constitutional violation. Instead, the sentence clarifies that the IRC and legislature must comply with the deadlines, voting requirements, and other procedural rules set forth in the referenced constitutional provisions. If they fail to do so, the clause reaffirms—in the context of the new system adopted by the people—the courts’ traditional power to remedy violations of law.

The “to the extent . . . required” clause does not speak to the duration of the remedy. Indeed, the only language in the Constitution explicitly referencing the duration of maps immediately follows and directs—without exception for maps adopted by a court—that “such plan shall be in force until the effective date of a plan based upon the subsequent federal decennial census . . . unless modified pursuant to court order” (NY Const, art III, § 4 [e]). Contrary to the majority’s suggestion, the phrase “unless modified pursuant to court order” does not exclude new, remediated maps from the 10-year rule. Rather, the Constitution clearly commands that once a constitutional redistricting plan is put into effect—either by the legislature or, when necessary, by the courts—such plan governs until the next census absent further court-ordered modifications to remedy additional violations of law. Rearranging key phrases and changing what they modify may superficially work to achieve the majority’s ends, but it cannot override the meaning of the words in their proper order, or read out provisions of the Constitution.

In *Harkenrider*, this Court determined that it was required to order the adoption of maps as a constitutional remedy for a variety of reasons, including but not limited to: the inability to maintain the 2012 maps following the 2020 census (38 NY3d at 504); the procedural unconstitutionality of the legislature’s congressional and state senate maps, which rendered them invalid in their entirety (*id.* at 514-522); the substantive unconstitutionality of the legislature’s congressional map (*id.* at 519-520); the fact that “[t]he deadline in the Constitution for the IRC to submit a second set of maps ha[d] long since passed” (*id.* at 523); the exigencies created by the impending 2022 elections (*id.* at 507); and the preserved arguments of the parties

who timely sought relief from the courts. Those maps, created by order of this Court, are now constitutionally required to remain in force until the next census (*see* NY Const, art III, § 4 [e]).

The restrictions our Constitution places on mid-decade legislative redistricting are consistent with traditional practice and make particular sense considering the goal of the 2014 amendments—unmentioned by the majority—to avoid partisan gerrymandering (*see* NY Const, art III, § 4 [c] [5] [“Districts shall not be drawn to discourage competition or for the purpose of favoring or disfavoring incumbents or other particular candidates or political parties”]). Mid-decade legislative redistricting is notorious for being conducted “with the sole purpose of achieving a [partisan] majority” (*League of United Latin American Citizens v Perry*, 548 US 399, 417 [2006] [observing the legislature appeared to redistrict solely to achieve a republican congressional majority]) or “to benefit the political party that most recently received unified control of the state government” (Patrick Marecki, *Mid-Decade Congressional Redistricting in a Red and Blue Nation*, 57 Vand L Rev 1935, 1961 [2004]). A good example would be the 2003 redistricting in Texas, which resulted in that State’s congressional delegation flipping from a 17-15 Democratic majority to a 21-11 Republican majority (*see League of United Latin American Citizens*, 548 US at 412-413).

Indeed, in notable contrast to the potentially limitless reapportionment cycle sanctioned by the majority, legislation introduced in Congress has attempted to preclude any “State which has been redistricted in the manner provided by law” from being “redistricted again until after the next apportionment of Representatives” unless a court finds that the existing map is, in some way, substantively flawed (HR 42, 118th Cong, 1st Sess [2023]). The parallel language of article III, section 4 (e) of our Constitution demonstrates that similar restrictions already exist in New York—or did until today.

The majority nonetheless posits that the background against which the 2014 amendments were approved supports its conclusion that the Constitution requires all court-drawn maps to be interim in duration. It observes that for more than half a century before the 2014 constitutional amendments, every legislative redistricting in New York was subject to court intervention and many resulted in decade-long judicial maps. The majority concludes from this history that judicially created

maps are part of the problem the people sought to correct in approving those amendments (*see* majority op at 352, 361).

Nothing in the legislative history of the 2014 amendments even remotely supports that conclusion (*see* Governor’s Approval Mem, Bill Jacket, L 2012, ch 17 at 5-6 [far from complaining about judicial intervention in redistricting, expressing concern that the legislative redistricting process was “*largely immune* from legal challenges to partisan gerrymandering” (emphasis added)]). If anything, the extensive history detailed by the majority establishes that it is only through judicial intervention—including, in many cases, the adoption of judicially-crafted decade-long maps—that fair elections were held in this State for much of the past century. The availability of decade-long judicial maps as a remedy also ensured that elections were only unsettled by litigation once per decade, rather than every other year. Insofar as the Constitution should be interpreted consistent with this historical context, it defies reason to suggest that the drafters of the 2014 amendments—while endeavoring to provide more substantial checks on legislative abuse—acted to diminish the judiciary’s role and power as *the* critical backstop against those very abuses. Ultimately, the majority’s false narrative distracts from the critical aim of the 2014 amendments: free and fair elections through the elimination of partisan gerrymandering, a goal furthered by our decision and remedy in *Harkenrider* and substantially undermined by the majority’s holding today.

The majority also ignores the practical consequences of its holding. It appears to believe that once the IRC has submitted a second set of redistricting maps to the legislature, the matter will be settled for the remainder of the decade. If, however, the process again breaks down or results in another partisan gerrymander, the courts may again be required to intervene, invalidate the legislature’s map, and reimpose the special master’s map for the 2024 elections. Under the majority’s logic, mandamus relief against the IRC would again lie, with the potential for the process to be repeated serially until 2032 and then every two years thereafter.

Short of the complete elimination of judicial review, a legislature determined to enact gerrymandered maps could not have asked for a more favorable ruling than they have received. At the start of each decade, the majority members can enact egregious gerrymanders, secure in the knowledge that if their

plan is rejected by the courts, they will have another opportunity to enact maps only slightly less infected with partisan intent—and so on and so on—until the maps just barely pass constitutional muster. This is not what the people voted for in 2014 and 2021. Rather, it is a perversion of the constitutional amendments that increases the likelihood of partisan gamesmanship and future litigation.

Ultimately it is today's remedy, not *Harkenrider*'s, that exceeds what is "required" to cure a violation of law. In *Harkenrider* we were faced with a congressional map that was both gerrymandered and enacted without constitutional authority, and we devised an appropriate remedy that cured both the procedural and substantive unconstitutionality. Indeed, the special master's congressional map currently in effect has not been substantively challenged in this or any other proceeding. Under that map, "almost one in five seats are competitive, the highest percentage in the country for a large state," whereas "[h]ad the map passed by the Democratic-controlled legislature remained in place, no districts would have been competitive" (Michael Li & Chris Leaverton, *Gerrymandering Competitive Districts to Near Extinction*, Brennan Center for Justice, Aug. 11, 2022, <https://www.brennancenter.org/our-work/analysis-opinion/gerrymandering-competitive-districts-near-extinction>). The maps put in place after *Harkenrider*, especially the congressional map, defy the national trend of increasingly partisan districts. Neither petitioners nor the majority have articulated any legitimate interest—let alone a violation of law—that requires such maps to be replaced at this stage.

IV.

The majority's self-imposed restriction on judicial authority to remedy illegal gerrymandering is especially concerning coming as it does on the heels of the United States Supreme Court's parallel abdication of that power. Although the Supreme Court has long had "a special responsibility to remedy violations of constitutional rights resulting from politicians' districting decisions," it has in more recent years begun to disavow federal judicial review of partisan gerrymandering claims (*Rucho*, 588 US at 747-748 [Kagan, J., dissenting]). Instead, the Supreme Court has held that it is up to the states to curtail partisan gerrymandering through "state statutes and state constitutions" (*Rucho*, 588 US at 719) and that, while redistricting may

traditionally be a legislative function, *state courts* are the appropriate tribunals to hold state legislatures to compliance with state constitution redistricting requirements (see *Moore v Harper*, 600 US 1, 34 [2023]). Throughout the country, since *Rucho*, state courts have “become a primary firewall against gerrymandering as both Democrats and Republicans try to carve out maximum advantages in the maps they control” (Nick Corasaniti & Reid J. Epstein, *As Both Parties Gerrymander Furiously, State Courts Block the Way*, NY Times, Apr. 2, 2022).

Last year, for example, the Supreme Court of North Carolina upheld that court’s “solemn duty” to review the legislature’s redistricting plans for constitutional conformity to protect “the constitutional rights of the people to vote on equal terms” by striking down egregious and intentional partisan gerrymanders by the Republican party, thereby ensuring that complaints of gerrymandering were not destined to “‘echo into a void’” (*Harper v Hall*, 380 NC 317, 323, 868 SE2d 499, 510 [2022], quoting *Rucho*, 588 US at 719). Earlier this year, the same court granted rehearing upon the legislature’s request that the court “revisit” its determination that “claims of partisan gerrymandering are justiciable under the state constitution” (*Harper v Hall*, 384 NC 292, 299, 886 SE2d 393, 399 [2023]). This time, the court held “that partisan gerrymandering claims present a political question that is nonjusticiable under the North Carolina Constitution” (384 NC at 300, 886 SE2d at 401). As lamented by the dissent, “[n]othing ha[d] changed since” the court’s earlier decision: “[t]he legal issues [were] the same; the evidence [was] the same; and the controlling law [was] the same” (384 NC at 423, 886 SE2d at 476 [Earls, J., dissenting]).

So too here. Despite the majority’s futile attempts to distinguish *Harkenrider*, nothing has changed since we decided that case just last year. Now, as then, the Constitution authorizes judicial intervention in the redistricting process only when circumstances require that the courts remedy a violation of law. Now, as then, we are asked to remedy a constitutional deficiency in the 2022 redistricting process that was attributable to the IRC’s abdication of its constitutional duty. In *Harkenrider*, we ordered a remedy for the IRC and legislature’s procedural violation that was constitutionally authorized. Now, as then, the Constitution mandates that the resulting constitutionally enacted and substantively unchal-

lenged maps remain in force until the next federal census. This time, however, politics triumphs over free and fair elections.

Judges RIVERA, TROUTMAN and RENWICK* concur. Judge CANNATARO dissents in an opinion, in which Judges GARCIA and SINGAS concur. Judge HALLIGAN took no part.

Order affirmed, with costs.

* Designated pursuant to NY Constitution, article VI, § 2.

[234 NE3d 1035, 211 NYS3d 243]

SUZANNE P., Administratrix of the Estate of MITCHELL P.,
Deceased, Appellant, v JOINT BOARD OF DIRECTORS OF ERIE-
WYOMING COUNTY SOIL CONSERVATION DISTRICT, Also
Known as ERIE-WYOMING JOINT WATERSHED BOARD, et al.,
Respondents.

Argued January 5, 2023; reargued November 16, 2023; decided January 16, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered May 7, 2021. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Erie County (Mark J. Grisanti, J.), which had (a) granted plaintiff's CPLR 4401 motion for a directed verdict; (b) denied as moot the motion of defendant Joint Board of Directors of Erie-Wyoming County Soil and Water Conservation District for a directed verdict; and (c) awarded judgment, as a matter of law, to be entered that defendant Joint Board of Directors of Erie-Wyoming County Soil and Water Conservation District was an—or the—owner of the Earsing Sills low head dam structures on June 12, 2012; (2) denied plaintiff's motion; (3) granted defendant's motion; and (4) dismissed the complaint.

The appeal brings up for review five prior nonfinal orders of that Appellate Division entered August 22, 2019, and one entered September 29, 2017. The order entered August 22, 2019, in appeal No. 1 affirmed an order of that Supreme Court, which had denied the motion of defendant Joint Board of Directors of Erie-Wyoming County Soil and Water Conservation District for summary judgment. The order entered August 22, 2019, in appeal No. 2 affirmed an order of that Supreme Court, which had denied the motion of defendant Erie County Soil and Water Conservation District for summary judgment. The order entered August 22, 2019, in appeal No. 3 affirmed an order of that Supreme Court, which had denied the motion of defendant Wyoming County Soil and Water Conservation District for summary judgment. The order entered August 22, 2019, in appeal No. 4 affirmed an order of that Supreme Court, which had denied the motion of defendant Town of West Seneca for summary judgment. The order entered August 22, 2019, in appeal No. 5 affirmed an order of that Supreme Court, which had granted the motion of defendant County of Erie for leave to reargue and, upon reargument, denied the motion of defendant

County of Erie for summary judgment. The order entered September 29, 2017, modified, on the law, an order of that Supreme Court, which had denied the motion of defendant County of Erie to dismiss the complaint in part pursuant to CPLR 3211 (a) (7). The modification consisted of granting the motion, in part, and dismissing the complaint, as amplified by the bill of particulars, insofar as it alleged that defendant County of Erie was negligent in “improperly advising” defendant Joint Board of Directors of Erie-Wyoming County Soil Conservation District.

Suzanne P. v Joint Bd. of Directors of Erie-Wyoming County Soil Conservation Dist., 194 AD3d 1483, modified.

Suzanne P. v Joint Bd. of Directors of Erie-Wyoming County Soil Conservation Dist., 175 AD3d 1093, affirmed.

Suzanne P. v Joint Bd. of Directors of Erie-Wyoming County Soil Conservation Dist. [appeal No. 2], 175 AD3d 1097, affirmed.

Suzanne P. v Joint Bd. of Directors of Erie-Wyoming County Soil Conservation Dist. [appeal No. 3], 175 AD3d 1097, affirmed.

Suzanne P. v Joint Bd. of Directors of Erie-Wyoming County Soil Conservation Dist. [appeal No. 4], 175 AD3d 1097, affirmed.

Suzanne P. v Joint Bd. of Directors of Erie-Wyoming County Soil Conservation Dist., 175 AD3d 1098, affirmed.

Suzanne P. v Joint Bd. of Directors of Erie-Wyoming County Soil Conservation Dist., 153 AD3d 1635, affirmed.

HEADNOTE

Trial — Verdict — Directed Verdict

In an action commenced following the death of plaintiff’s son from injuries sustained when he was pulled underwater by the “hydraulic boil” associated with dams operated and maintained by defendant pursuant to an agreement with a federal agency also transferring title to “land, including . . . appurtenances thereto,” notwithstanding that the agency never owned the underlying land to which the dams were affixed, the trial evidence did not support a directed verdict for either plaintiff or defendant on the issue of whether defendant owned the dam. A motion for a directed verdict should be granted only when there is no rational process by which the jury could find in favor of the opposing party. The evidence that the dams were firmly affixed to the creek bed was insufficient to establish as a matter of law that ownership of the dams ran with the land; the intent of the agency and landowners also had to be considered. Neither party introduced sufficient evidence to eliminate triable issues of fact regarding such intent. Nor did plaintiff establish that the provisions of the agreement transferring title to “real property” un-

ambiguously encompassed the dams. Because there was a rational process by which a jury could find in favor of either plaintiff or defendant on the ownership issue, neither party was entitled to a directed verdict.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Trial §§ 768–771, 799, 812, 815.
CARMODY-WAIT 2d Motions at Trial §§ 59:3, 59:7, 59:22–59:26.
NY JUR 2d Trial §§ 277–279.
SIEGEL, NY PRAC (6th ed) § 402.

ANNOTATION REFERENCE

See ALR Index under Appeal and Error; Directed Verdicts.

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POINTS OF COUNSEL

Paul William Beltz, P.C., Buffalo (*William A. Quinlan* of counsel), for appellant. I. The Joint Board of Directors of Erie-Wyoming County Soil and Water Conservation District was an owner of the structure of the Earsing Sills low head dams. (*Searles v Town of Horicon*, 116 AD2d 93; *Smith v City of Syracuse*, 298 AD2d 842; *Paul v Village of Quogue*, 178 AD3d 942; *Matter of Metromedia, Inc. [Foster & Kleiser Div.] v Tax Commn. of City of N.Y.*, 60 NY2d 85; *Matter of Cornell Univ. v Board of Assessment Review*, 186 AD3d 990; *Matter of First Fed. Sav. & Loan Assn. of Syracuse v Srogi*, 105 AD2d 1081; *Nationstar Mtge., LLC v Goodman*, 187 AD3d 1635; *O'Brien v Town of Huntington*, 66 AD3d 160, 14 NY3d 935; *Gordon v Eastern Ry. Supply*, 82 NY2d 555; *Tauriello v New York Tel. Co.*, 199 AD2d 377.) II. Defendants Erie County Soil and Water Conservation District and Wyoming County Soil and Water Conservation District should be considered to be jointly liable as constituent parts of a joint venture with the Joint Board of Directors of Erie-Wyoming County Soil and Water Conservation District. Alternatively, defendant Erie County Soil and Water Conservation District assumed a duty to operate and maintain the subject low head dams through a “public benefit”

contract with the County of Erie. (*Kaufman v Torkan*, 51 AD3d 977; *Richbell Info. Servs. v Jupiter Partners*, 309 AD2d 288; *Schultz v Sayada*, 133 AD3d 1015; *Halloran v Ohlmeyer Communications Co.*, 618 F Supp 1214; *Chalmers v Eaton Corp.*, 71 AD2d 721; *Martin v Peyton*, 246 NY 213; *Rubenstein v Small*, 273 App Div 102; *Forman v Lumm*, 214 App Div 579; *P.F.G. Indus. v Tel-Glass, Inc.*, 49 AD2d 112; *Ramirez v Goldberg*, 82 AD2d 850.) III. Defendant County of Erie assumed a duty of care for low head dams when it advised Joint Board of Directors of Erie-Wyoming County Soil and Water Conservation District not to post warning signs and through its “public benefit” contract with Erie County District Soil and Water Conservation District. (*Schwartz v Greenfield*, *Stein & Weisinger*, 90 Misc 2d 882; *Vereins-Und Westbank, AG v Carter*, 691 F Supp 704; *Ultramares Corp. v Touche*, 255 NY 170; *Glanzer v Shepard*, 233 NY 236; *Davis v South Nassau Communities Hosp.*, 26 NY3d 563; *Hosmer v Kubricky Constr. Corp.*, 88 AD3d 1234, 19 NY3d 839.) IV. The summary judgment motion of defendant Town of West Seneca should have been denied. (*Morgan v King*, 35 NY 454; *Adirondack League Club v Sierra Club*, 92 NY2d 591; *Caldwell v Village of Is. Park*, 304 NY 268; *Vestal v County of Suffolk*, 7 AD3d 613; *Melby v Duffy*, 304 AD2d 33; *Cupo v Karfunkel*, 1 AD3d 48; *O’Keeffe v State of New York*, 140 AD2d 998; *Roth v State of New York*, 262 App Div 370; *Colentine v City of New York*, 279 NY 119; *Leone v City of Utica*, 66 AD2d 463.)

Jeremy C. Toth, County Attorney, Buffalo, for County of Erie, respondent. I. Plaintiff did not file a timely appeal regarding Fourth Department decisions. (*Sontag v Sontag*, 66 NY2d 554; *We’re Assoc. Co. v Cohen*, *Stracher & Bloom*, 65 NY2d 148.) II. The County of Erie is a separate entity from the Erie County Soil and Water Conservation District, and thus this Court should uphold the Fourth Department’s decision to sustain summary judgment. (*Matter of Shields v Dinga*, 222 AD2d 816.) III. The County of Erie cannot be held liable for the death in Buffalo Creek. (*Hosmer v Kubricky Constr. Corp.*, 88 AD3d 1234.) IV. Plaintiff cannot pursue a cause of action against the County of Erie for the actions the County Attorney’s office took pursuant to its statutorily mandated obligation. (*Weiss v Manfredi*, 83 NY2d 974; *Estate of Schneider v Finmann*, 15 NY3d 306; *Lavanant v General Acc. Ins. Co. of Am.*, 79 NY2d 623; *Bluntt v O’Connor*, 291 AD2d 106; *Kumar v American Tr. Ins. Co.*, 49 AD3d 1353; *Rechberger v Scolaro*, *Shulman, Cohen, Fetter & Burstein, P.C.*, 45 AD3d 1453; *Davis v South Nassau*

Communities Hosp., 26 NY3d 563; *Albala v City of New York*, 54 NY2d 269; *McNulty v City of New York*, 100 NY2d 227; *Fredriksen v Fredriksen*, 30 AD3d 370.)

Bouvier Law LLP, Buffalo (*Paul F. Hammond* and *Norman E.S. Greene* of counsel), for Town of West Seneca, respondent. The determination of the court of original jurisdiction as well as the Appellate Division for the Fourth Judicial Department awarding summary judgment to the Town of West Seneca was properly made, inasmuch as the Town of West Seneca had no legal duty pertaining to operation or maintenance of the low-head dams or sills located in Buffalo Creek. (*Pulka v Edelman*, 40 NY2d 781; *Galindo v Town of Clarkstown*, 2 NY3d 633; *Cleary v Harris Hill Golf Ctr., Inc.*, 23 AD3d 1142; *Coogan v D'Angelo*, 66 AD3d 1465; *Stagnitta v County of Onondaga*, 147 AD2d 935; *Miller v Tuchols*, 90 AD2d 957; *Garner v City of New York*, 6 AD3d 387; *Oxman v Mountain Lake Camp Resort Inc.*, 105 AD3d 653; *Carlo v Town of E. Fishkill*, 19 AD3d 442; *Ledet v Battle*, 231 AD2d 884.)

Walsh, Roberts & Grace, Buffalo (*Mark P. Della Posta* and *Robert P. Goodwin* of counsel), for Joint Board of Directors of Erie-Wyoming County Soil and Water Conservation District, respondent. I. The Fourth Department properly granted the Joint Board of Directors of Erie-Wyoming County Soil Conservation District's motion for a directed verdict. (*Halloway v State Farm Ins. Cos.*, 23 AD3d 617; *Bentley v City of Amsterdam*, 170 AD2d 725; *Herbold v Labarre*, 176 AD3d 1428; *O'Brien v Town of Huntington*, 66 AD3d 160; *S.L. Benfica Transp., Inc. v Rainbow Media, Inc.*, 13 AD3d 348; *Szczerbiak v Pilat*, 90 NY2d 553; *Zebzda v Hudson St., LLC*, 156 AD3d 851; *Matter of Metromedia, Inc. [Foster & Kleiser Div.] v Tax Commn. of City of N.Y.*, 60 NY2d 85; *Matter of Schulman v Assessor of the Town of Thompson*, 198 AD3d 1245; *Matter of T-Mobile Northeast, LLC v DeBellis*, 143 AD3d 992.) II. The jury's verdict was reached by a fair interpretation of the trial evidence and the trial court should not have set it aside. (*Rew v Beilein*, 151 AD3d 1735; *Clark v Loftus*, 162 AD3d 1643; *Sauter v Calabretta*, 103 AD3d 1220; *McCulloch v New York Cent. Mut. Ins. Co.*, 175 AD3d 912; *Hollamon v Vinson*, 38 AD3d 1159.)

Kenney Shelton Liptak Nowak LLP, Buffalo (*Justin L. Hendricks* of counsel), for Erie County Soil and Water Conservation District, respondent. The Appellate Division properly af-

firmed the Supreme Court's order which granted the motion for summary judgment of Erie County Soil and Water Conservation District in holding that Erie County Soil and Water Conservation District did not owe the plaintiff a duty of care. (*Mooney v BP/CG Ctr. II, LLC*, 35 NY3d 1125; *Bogart v Town of New Paltz*, 145 AD2d 110; *DeLong v County of Erie*, 89 AD2d 376; *Espinal v Melville Snow Contrs.*, 98 NY2d 136.)

Barth Condren LLP, Buffalo (*Philip C. Barth III* and *Breanna C. Reilly* of counsel), for Wyoming County Soil and Water Conservation District, respondent. The Fourth Department's memorandum and order affirming the lower court's granting of summary judgment in favor of the Wyoming County Soil and Water Conservation District on the grounds that they did not owe a duty to the decedent should be upheld. (*Pulka v Edelman*, 40 NY2d 781; *Darby v Compagnie Natl. Air France*, 96 NY2d 343; *Weller v Colleges of the Senecas*, 217 AD2d 280; *Brzostowski v Coca-Cola Bottling Co.*, 16 AD2d 196; *Cupo v Karfunkel*, 1 AD3d 48; *Parslow v Leake*, 117 AD3d 55; *Galindo v Town of Clarkstown*, 2 NY3d 633.)

OPINION OF THE COURT

CANNATARO, J.

This appeal arises from the tragic death of a teenage boy who drowned after swimming near a low-head dam on Buffalo Creek in Erie County. The principal issue is whether the courts below erred in ordering a directed verdict following a jury trial on the issue of whether the Joint Board of Directors of Erie-Wyoming County Soil Conservation District (the Joint Board) owned the dam. Based on the record and arguments before us, we hold that neither plaintiff nor the Joint Board was entitled to a directed verdict on that question.

I.

Plaintiff commenced this negligence and wrongful death action following the death of her 14-year-old son (the child) from injuries sustained while he and several friends were swimming in the waters of Buffalo Creek near structures known as the Earsing Sills low-head dams. As the group swam in the creek, the child was pulled underwater by an undertow-like phenomena associated with the dams known as "hydraulic boil," causing drowning injuries that ultimately proved fatal. Despite several prior drownings in the vicinity of the dams, there were no signs posted in the area warning of the dangerous condition.

The dams in question were constructed in the mid-twentieth century as part of a stream bank stabilization project funded by the federal government under the Flood Control Act of 1944 (Pub L 78-534, 58 US Stat 887). They were designed, constructed, and installed by the National Resources Conservation Service (NRCS), a federal agency.¹ The specific dam at issue is located within Erie County (the County), but the broader federal project crosses the territory of both the Erie County Soil and Water Conservation District and the Wyoming County Soil and Water Conservation District (the Districts), two natural resource conservation agencies formed to carry out flood prevention measures within their respective borders (*see* Soil and Water Conservation Districts Law §§ 5, 9).

The sole defendant remaining in this case at the time of trial, the Joint Board, was created by the State in 1949 to be the local “sponsor” of the federal project and is comprised of all members of the boards of directors of the Districts, sitting jointly (*see* L 1949, ch 374). First in 1959, and again in 1984 when the dams needed reconstruction, the Joint Board entered into operation and maintenance agreements with NRCS relating to the dams. The agreements required the Joint Board to obtain “permanent easements” from landowners permitting the construction and operation of the dams, and allocated to the Joint Board ongoing duties to inspect and maintain the dams. The 1984 agreement notably also provides that “[t]itle to real property shall vest in the [Joint Board],” and that “[r]eal property means land, including land improvement, structures, and appurtenances thereto, excluding movable machinery and equipment.”

Plaintiff commenced this action to hold defendants liable for failing to warn of the danger posed by the hydraulic boil condition. Following dismissal of the claims against the Districts, County, and Town of West Seneca (the Town), and multiple appeals to the Appellate Division, the case proceeded to a jury trial on the singular question of whether the Joint Board owned the dams at the time of the accident, which would provide a basis for negligence liability. Plaintiff attempted to prove that the Joint Board acquired ownership of the dams from NRCS pursuant to the 1984 agreement. The sole witness called at trial was the field manager for Erie District, who testified that he had participated in Joint Board meetings and inspections of

1. NRCS was previously known as the Soil Conservation Service.

the dams for over two decades and did not believe the Joint Board owned the dams. He also testified that the Joint Board does not own any property, that its inspection and maintenance obligations are minimal, and that the Joint Board must obtain permission from NRCS before making any alterations or improvements to the dams. Plaintiff declined to submit into evidence copies of the permanent easements obtained from landowners.

At the close of evidence both plaintiff and the Joint Board moved for directed verdicts. Plaintiff relied primarily on the language of the 1984 agreement. The Joint Board argued, among other things, that the dams must be deemed “fixtures” that run with the land and belong to the owner(s) of that underlying realty, who the Joint Board posited is either the State or adjacent landowners. The Joint Board also argued that the provisions of the 1984 agreement transferring title to “land, including land improvement, structures, and appurtenances thereto,” did not encompass the dams because it is undisputed that NRCS has never owned the underlying land to which they are affixed. Supreme Court reserved decision on the motions. After the jury returned a verdict in favor of the Joint Board, the court granted plaintiff’s motion, holding as a matter of law that the Joint Board acquired ownership of the dams from NRCS pursuant to the 1984 agreement.

The Joint Board appealed and the Appellate Division reversed, denying plaintiff’s motion for a directed verdict and granting the Joint Board’s motion for a directed verdict. The Court held that “there is no rational process by which the jury could reach a finding that defendant owned the subject dam at the time of [the child’s] accident” (194 AD3d 1483, 1485-1486 [4th Dept 2021]). The Court reasoned that NRCS could not have transferred ownership of the dams to the Joint Board in the 1984 agreement because the dams are “permanently affixed to land underlying Buffalo Creek” and thus “constitute fixtures,” ownership of which runs with the land (*see id.* at 1486, citing, *inter alia*, *Matter of Metromedia, Inc. [Foster & Kleiser Div.] v Tax Commn. of City of N.Y.*, 60 NY2d 85, 90 [1983]). We granted plaintiff leave to appeal.

II.

The primary question on this appeal is whether the trial evidence supported a directed verdict for either plaintiff or the Joint Board on the issue of ownership of the dams. A motion

for a directed verdict should be granted only when there is no rational process by which the jury could find in favor of the opposing party (see e.g. *Vintage, LLC v Laws Constr. Corp.*, 13 NY3d 847, 849 [2009]; *Bradley v Earl B. Feiden, Inc.*, 8 NY3d 265, 273 [2007]; *Thompson v City of New York*, 60 NY2d 948, 950 [1983]; *Cohen v Hallmark Cards*, 45 NY2d 493, 499 [1978]). In determining whether to grant such a motion, the court must view the evidence in the light most favorable to the opposing party (*Vintage*, 13 NY3d at 849).

Contrary to the Appellate Division's conclusion, the evidence that the dams are firmly affixed to the creek bed is insufficient to establish as a matter of law that ownership of the dams runs with the land; the intent of the NRCS and landowners must also be considered (see 59 NY Jur 2d, Fixtures § 2; *Matter of Metromedia, Inc.*, 60 NY2d at 90; see also *Matter of New York City Council v City of New York*, 4 AD3d 85, 91-92 [1st Dept 2004] [recognizing the "prevailing rule" in other jurisdictions that "railroad structures and appurtenances placed upon the land of another pursuant to an easement are personalty, not realty, absent a showing that such structures were intended to be merged with the realty"], *lv denied* 4 NY3d 701 [2004]). Neither party introduced evidence sufficient to eliminate triable issues of fact regarding such intent. Nor did plaintiff establish that the provisions of the 1984 agreement transferring title to "real property" unambiguously encompass the dams.² Because there was a rational process by which a jury could find in favor of either plaintiff or the Joint Board on the ownership issue, neither party was entitled to a directed verdict. The case accordingly must be remanded to Supreme Court for reinstatement of the jury verdict.³

2. Contrary to the dissent's assertion, the Joint Board contested plaintiff's interpretation of these provisions both on motion for a directed verdict and before the jury and has never conceded the issue or abandoned its contrary interpretation (see tr of oral argument dated Jan. 5, 2023 at 32-33). In any event, plaintiff cannot succeed on this appeal without demonstrating that her interpretation is correct as a matter of law, which she has not done. Nor can plaintiff succeed without establishing that NRCS had an ownership interest in the dams to convey under the 1984 agreement (194 AD3d at 1486 [collecting authorities]), which as noted above depends on the intent of NRCS and the relevant landowners.

3. Prior to trial, plaintiff offered an alternative ground for holding the Joint Board liable: that the Joint Board assumed a duty of care under the 1984 agreement by undertaking responsibility for maintaining the dams. The Appellate Division rejected that theory on summary judgment, finding that

(n. cont'd)

Plaintiff also seeks review of those portions of the Appellate Division's prior orders that resolved plaintiff's claims against the Districts, County, and Town (*see* 175 AD3d 1093 [4th Dept 2019]; [appeal No. 2] 175 AD3d 1097 [4th Dept 2019]; [appeal No. 3] 175 AD3d 1097 [4th Dept 2019]; [appeal No. 4] 175 AD3d 1097 [4th Dept 2019]; 175 AD3d 1098 [4th Dept 2019]; 153 AD3d 1635 [4th Dept 2017]). Having carefully considered the parties' arguments, the record below, and the unique facts of this case, we hold that plaintiff has not identified any basis for us to overturn the Appellate Division's resolution of those claims. We therefore affirm those orders insofar as appealed from.

Accordingly, the order appealed from should be modified, without costs, by denying the CPLR 4401 motion by the Joint Board and, as so modified, affirmed; the prior Appellate Division orders insofar as brought up for review should be affirmed; and this case should be remitted to Supreme Court for further proceedings in accordance with this opinion.

TROUTMAN, J. (dissenting in part). I respectfully dissent. Plaintiff's 14-year-old son was swimming in a creek with friends when a strong current flowing over a low-head dam held him under water until he drowned; he was hospitalized and died from his injuries a few days later. There is no dispute that, prior to this tragedy, four people had previously drowned as a result of the "hydraulic boil" created by dams operated and maintained by the Joint Board of Directors of Erie-Wyoming County Soil Conservation District (Joint Board). The hydraulic boil that led to their deaths is a hidden hazard for which each defendant claims not to be responsible,¹ even though some of them were aware of the hazard and delayed

the 1984 agreement "was not so comprehensive and exclusive that it entirely displaced . . . NRCS's duty to maintain the premises safely, such that the [Joint] Board owed a duty to [the child]" (175 AD3d at 1094-1095 [internal quotation marks and brackets omitted]; *see Espinal v Melville Snow Contrs.*, 98 NY2d 136 [2002]). In granting plaintiff's motion for a directed verdict, Supreme Court noted that in light of the Appellate Division's ruling, "issues regarding the Espinal case . . . [had] already been decided," and thus a duty could be imposed on the Joint Board only if it was found to be the owner of the dams. The Appellate Division's ruling on the applicability of *Espinal* is not before us on the instant appeal, and we express no opinion on whether it would or will provide a basis for liability. We further note that plaintiff's claims against the State have not been finally decided.

1. The low-head dams on Buffalo Creek in the Town of West Seneca are artificial structures characterized by a concealed risk in the form of a phenomenon referred to as "hydraulic boil." The hydraulic boil is a latent condi-

(n. cont'd)

posting warning signs. The idea that the Joint Board—which all agree is contractually responsible for the operation and maintenance of the dams, which was created specifically to receive federal funds to assist it with those operations, and which signed a contract taking title to the dams—can walk away from this lawsuit without a full trial is unconscionable.

Here, the only issue at trial was whether the Joint Board owned the particular dam creating the latent danger that caused the death of the young decedent. Supreme Court granted judgment as a matter of law to plaintiff on that discrete issue. That ruling was correct. Given the unambiguous provision in the 1984 operation and maintenance agreement—by which the National Resources Conservation Service (NRCS), a federal agency, conveyed the dam to the Joint Board—there was no rational process by which the jury could reach a finding that the Joint Board did not own the dam at the time of the decedent’s accident. Consequently, plaintiff was entitled to a judgment as a matter of law that the Joint Board owned the dam.

I.

“A trial court’s grant of a CPLR 4401 motion for judgment as a matter of law is appropriate where the trial court finds that, upon the evidence presented, there is no rational process by which the fact trier could base a finding in favor of the nonmoving party” (*Szczerbiak v Pilat*, 90 NY2d 553, 556 [1997]; see *Vintage, LLC v Laws Constr. Corp.*, 13 NY3d 847, 849 [2009]). In determining whether to grant such a motion, the court must view the evidence in the light most favorable to the opposing party (see *Szczerbiak*, 90 NY2d at 556; *Vintage*, 13 NY3d at 849). Applying this standard, the majority correctly rejects the Joint Board’s contention, accepted by the Appellate Division, that fixture law compels the conclusion that NRCS lacked a transferable ownership interest in the dams in 1984.

However, the majority errs in holding that plaintiff is not entitled to a judgment as a matter of law because of a purported ambiguity in the language of the 1984 agreement and because plaintiff did not submit evidence of the intentions of NRCS and the underlying property owner when the dam was built because of a cryptic and unsubstantiated distrust of

tion—unknown to the public at large—that occurs when water flowing over the dam, under high flow conditions, falls in upon itself and creates a recirculative effect in the water below the dam.

NRCS's right to convey the dam to the Joint Board under the agreement, which was entered into by officers of both federal and state entities. Contrary to what the majority contends, plaintiff merely needed to prove ownership by a preponderance of the evidence, as provided in the verdict sheet, which plaintiff did by entering the unambiguous 1984 agreement into evidence and eliciting testimony that the agreement was still effective.

The Joint Board does not dispute, and has never disputed, that the plain language of the 1984 agreement purports to convey title to the dam, regardless of who owned the land beneath it. Instead, what it contends is that this contractual language was ineffective to convey title to the dam because as a matter of fixture law NRCS could not convey ownership of a dam sitting upon land that it did not own. Although the Joint Board has claimed to be confused by the conveyance of the dam set forth in the 1984 agreement (*see* majority op at 399 n 2), that confusion stemmed merely from the Joint Board's incorrect view that, as a matter of law, ownership of the dam must run with ownership of the land beneath it (*see* tr of oral argument dated Jan. 5, 2023 at 31-36). The majority correctly rejects that contention (*see* majority op at 399, citing *Matter of Metromedia, Inc. [Foster & Kleiser Div.] v Tax Commn. of City of N.Y.*, 60 NY2d 85, 90 [1983] [holding that one can own a structure, defined as "real property," without owning the property underneath it (*see id.* at 89-91)]).

Nevertheless, the majority insists on reading into the 1984 agreement an ambiguity that is simply not there. They also fail to explain either the nature of the ambiguity or any preserved alternative reading of the contract that has not been abandoned by the Joint Board on this appeal. Instead, the majority opts to raise in conclusory fashion the prospect of an unidentified ambiguity that they claim somehow throws the agreement into doubt.

II.

In the absence of anyone articulating an alternative reading of the 1984 agreement, we are left with what Supreme Court held was the sole issue of the trial: Who is the "owner of the dam"? As the majority agrees, the 1984 agreement relied on by plaintiff constituted *prima facie* evidence of the Joint Board's ownership of the dam, which follows from the majority's holding that the Joint Board failed to meet its burden of establish-

ing its right to judgment as a matter of law (see e.g. *Hill v St. Clare's Hosp.*, 67 NY2d 72, 82 [1986]; *Holy Temple First Church of God in Christ v City of Hudson*, 17 AD3d 947, 947 [3d Dept 2005]). Consequently, although the burden of proof never shifts, the Joint Board had “the burden of going forward, that is, [of] offering evidence to contradict [plaintiff’s] prima facie case” (Jerome Prince, *Richardson on Evidence* § 3-202 [Farrell 11th ed 1995, 2008 Suppl]; see *Matter of Powers v Powers*, 86 NY2d 63, 69 [1995]; *Farmers’ Loan & Trust Co. v Siefke*, 144 NY 354, 359 [1895] [(W)hen the plaintiff has established a *prima facie* case, the defendant is bound to controvert it by evidence, otherwise he will be cast in judgment”). Although “[n]o legal obligation requires parties to introduce sufficient rebuttal evidence when the burden of going forward is placed upon them,” their “[f]ailure to meet that burden . . . may subject [them] to the risk of a . . . directed verdict” (Prince § 3-202; see generally *St. Andrassy v Mooney*, 262 NY 368, 370-373 [1933]).

Once plaintiff submitted the 1984 agreement, she not only established a prima facie case of ownership, but she also proved ownership by a preponderance of the evidence. As Supreme Court astutely asked, “how do you get around the language [of the 1984 agreement]” stating that “the structure [i.e., dam] vest[s] with [the] Sponsor [i.e., the Joint Board]”? It is because the Joint Board remains unable to answer that question rationally that the evidence preponderates in plaintiff’s favor.

Contrary to the majority’s conclusion, even affording the Joint Board “every inference which may properly be drawn from the facts presented,” “there is no rational process by which the [jury] could base a finding in favor of the [Joint Board]” (*Szczerbiak*, 90 NY2d at 556). Without a shred of probative evidence to contradict the plain language of the 1984 agreement, the Joint Board has little choice but to rely on the purely speculative testimony of Marc Gaston. He is the field manager for the Erie County Soil and Water Conservation District (Erie District) that has board members serving on the Joint Board in conjunction with board members of the Wyoming County Soil and Water Conservation District. However, Gaston testified to no facts from which a rational jury could infer either that the Joint Board did not own the dam or that he would somehow know if it did. Gaston, a layperson who was not involved in the drafting of the 1984 agreement, testified that he did not “believe” the Joint Board owns the dam, but he undercut that testimony by candidly admitting that he did not know who owns it.

When asked at trial for the basis of his belief that the Joint Board does not own the dam, he responded: “I base my belief on how we’ve operated for the last twenty years.” It is worth noting, however, that Gaston was not an employee of the Joint Board, rather he was an employee of the Erie District, and his connection to the dam was limited to performing maintenance on it at his employer’s request. Gaston’s answer suffers from the fallacy of being a non sequitur. How does knowledge of who owns a dam necessarily follow from one’s experience operating and maintaining the dam? It does not.

Additionally, when Gaston was asked at trial for any additional basis for his opinion that the Joint Board did not own the dam, he was capable of offering nothing more than ill-informed conjecture: “Because the Joint Board doesn’t own anything, in my eyes. They don’t have an office. They don’t have a staff. They don’t have anything.”² Thus, the Joint Board’s attempt to overcome the evidence of ownership contained in the 1984 agreement is supported improperly by Gaston’s mere speculation (*see Feblot v New York Times Co.*, 32 NY2d 486, 494 [1973] [“a jury finding based on speculation is a nullity”]). This is so even considering Gaston’s additional testimony that the Joint Board’s inspection and maintenance obligations are minimal and that the Joint Board must obtain permission from NRCS before making any alterations or improvements to the dams.

A jury could not fairly infer from the Joint Board’s lack of staff or office that it does not own anything, much less that it does not own the dam. By statute, the Joint Board can acquire

2. Although outside the record, and certainly not a basis for this dissent, it is worth noting that the federal government might be surprised to learn that the Joint Board does not own anything. According to the National Inventory of Dams maintained by the U.S. Army Corps of Engineers, the “Erie-Wyoming Counties Soil Conservation District” owns the “East Br Cazenovia Creek Legion Dam” (<https://nid.sec.usace.army.mil/#/dams/system/NY01246/summary> [last updated Mar. 12, 2021]; *see generally* Federal Emergency Management Agency, *National Inventory of Dams*, <https://www.fema.gov/emergency-managers/risk-management/dam-safety/national-inventory-dams> [last updated Aug. 30, 2022]). That said, despite the dangers posed by low-head dams, “[t]here is no nationwide inventory of low-head dams” (Rollin H. Hotchkiss & Forrest R. Hansen, *Low-head Dams: Status and Legal Issues*, 20 *The Journal of Dam Safety* [Issue 1] 6, 7 [winter 2023], available at <https://www.asce.org/-/media/asce-images-and-files/communities/institutes-and-technical-groups/environmental-and-water-resources/documents/2023-lhds-status-legal-issues.pdf> [accessed Dec. 28, 2023]). Surely, *someone* owns the dam. The true owner should not be a great mystery, particularly to the entity that has undertaken the responsibility of maintaining it.

property (*see* Soil and Water Conservation Districts Law §§ 9 [4]; 10). And the evidence is uncontested that a chairman of the Joint Board signed the 1984 agreement transferring title of the dam to the Joint Board. Moreover, there has been no assertion that it was improper for the chairman to do so on behalf of the Joint Board.

The mere fact that the 1984 agreement gave NRCS the right to inspect the dam, required the Joint Board to consult with it before modifying the dam, and placed only minimal maintenance obligations on the board did not contradict the agreement's provision conveying title to the dam. Those provisions are essentially no different than any sale of property containing an easement or lawful restrictive covenant, and they do not lead rationally to an inference that title never passed to the Joint Board.

Accordingly, Supreme Court properly granted plaintiff's motion for judgment as a matter of law inasmuch as there was no rational process by which a jury could base a finding that the Joint Board did not own the dam (*see Szczerbiak*, 90 NY2d at 556). Inasmuch as the majority holds otherwise, I dissent.

Judges GARCIA, SINGAS and HALLIGAN concur. Judge TROUTMAN dissents in part in an opinion, in which Chief Judge WILSON and Judge RIVERA concur.

Order appealed from modified, without costs, by denying the CPLR 4401 motion by defendant Joint Board of Directors of Erie-Wyoming County Soil Conservation District and, as so modified, affirmed; prior Appellate Division orders insofar as brought up for review affirmed; and case remitted to Supreme Court, Erie County, for further proceedings in accordance with the opinion herein.

[234 NE3d 1043, 211 NYS3d 251]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FER-
NANDO RAMIREZ, Appellant.

Argued January 11, 2024; decided February 20, 2024

SUMMARY

APPEAL, by permission of the Acting Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 31, 2022. The Appellate Division affirmed a judgment of the Suffolk County Court (Timothy P. Mazzei, J.) which had convicted defendant, upon a jury verdict, of aggravated vehicular homicide (three counts), manslaughter in the second degree, aggravated unlicensed operation of a motor vehicle in the first degree, aggravated driving while intoxicated, driving while intoxicated (two counts), driving while ability impaired by the combined influence of drugs or of alcohol and any drug or drugs, reckless driving, and consumption or possession of an alcoholic beverage in a motor vehicle.

People v Ramirez, 208 AD3d 897, affirmed.

HEADNOTES**Crimes — Jurors — Selection of Jury — COVID-19 Safety Protocols**

1. Neither a defendant's right to be present during jury selection nor due process required that defendant have a simultaneous, unobstructed view of the entirety of every prospective juror's face during jury selection. Accordingly, in defendant's trial held during the COVID-19 pandemic, these rights were not violated by the implementation of social distancing and the requirement that prospective jurors cover their mouths and noses with a face mask when not being questioned individually. It was undisputed that defendant was able to hear the questions posed to prospective jurors and to observe their responses including their facial expressions, demeanor and other subliminal responses because they were given plastic face shields and were instructed to lower their cloth masks while being questioned. Even assuming that a defendant's rights with respect to jurors who are being actively questioned could be more broadly applied to non-questioned members of the venire, the safety protocols in use at defendant's jury selection were permissible as they did not impede defendant's ability to be present and observe the selection process. A defendant's right to be present at jury selection does not entail the absolute or unlimited ability to observe each prospective juror's facial expressions, and defendant could still observe a great deal about prospective jurors including their posturing, the position of their arms, and their eyes and eyebrows. Moreover, the safety protocols in use at the time of the trial, which constituted at most a slight restriction, properly balanced defendant's right to be present during jury selection with the safety of those present in the courtroom in accordance with due process considerations.

Crimes — Trial — Mistrial — Decedent's Surviving Spouse Crying in Courtroom

2. In a prosecution for aggravated vehicular homicide and related charges, there was no reason to disturb the trial court's decision to deny defendant's motion for a mistrial made during the prosecution's opening statement after defense counsel observed the decedent's surviving spouse crying in the courtroom. The trial court's observation that the spouse's crying was inconspicuous and that there was no indication that the jury heard it was entitled to deference. Furthermore, the exploration of alternatives, such as instructing the People to speak with the spouse and offering defendant a curative instruction—which he rejected—justified the decision not to grant the defendant's motion. Finally, notwithstanding the trial court's efforts to temper the surviving spouse's courtroom reactions, there is no requirement that a trial judge keep courtroom spectators from displaying any emotion whatsoever absent prejudice to a party.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 973, 984; AM JUR 2d Jury § 192; AM JUR 2d Trial §§ 127, 128, 184, 186, 187, 1409, 1411, 1433.

CARMODY-WAIT 2d Jury Selection and Supervision §§ 191:21, 191:24; CARMODY-WAIT 2d Motion for Mistrial §§ 197:5, 197:6, 197:25.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) § 22.3.

NY JUR 2d Criminal Law: Procedure §§ 2505, 2509, 2593, 2741, 2752.

ANNOTATION REFERENCE

See ALR Index under Absence or Presence; Jury Trials; Masks.

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POINTS OF COUNSEL

Laurette D. Mulry, Legal Aid Society of Suffolk County, Inc., Riverhead (Felice B. Milani of counsel), for appellant. I. Appellant was deprived of his right to due process and to prepare a defense when his trial counsel was unable to properly select a jury due to the procedures in place during the COVID-19 pandemic. Counsel's application to delay the trial should have been granted. (Duncan v Louisiana, 391 US 145; People v Torpey, 63 NY2d 361; People v Antommarchi, 80 NY2d 247; People

v Maffei, 35 NY3d 264; *In re Schoenfield*, 608 F2d 930; *Skilling v United States*, 561 US 358; *People v Steward*, 17 NY3d 104; *People v Sloan*, 79 NY2d 386; *United States v Thompson*, 543 F Supp 3d 1156.) II. The trial court should have granted the defense motion for a mistrial after jurors were exposed to the open proclamations of grief by decedent victim's wife during the prosecutor's opening statement. (*People v Taylor*, 40 AD3d 782; *People v Perez*, 40 AD3d 1131; *People v Rodriguez*, 71 NY2d 214; *People v Williams*, 264 AD2d 745; *People v Johnson*, 87 NY2d 1006; *People v Buford*, 69 NY2d 290.)

Raymond A. Tierney, District Attorney, Riverhead (Rosalind C. Gray and Marion Tang of counsel), for respondent. I. Because the procedures put into place to facilitate jury selection during the COVID-19 pandemic not only ensured the safety of the participants and spectators but also properly permitted the parties to select an impartial jury, the trial court properly denied defendant's application to delay his trial. (*People v Williams*, 81 NY2d 303; *Chambers v Mississippi*, 410 US 284; *People v Foy*, 32 NY2d 473; *People v Spears*, 64 NY2d 698; *People v Spencer*, 29 NY3d 302; *Taylor v Louisiana*, 419 US 522; *People v Shedrick*, 66 NY2d 1015; *People v Rodriguez*, 100 NY2d 30; *People v Batticks*, 35 NY3d 561; *People v Kuzdzal*, 31 NY3d 478.) II. The trial court properly denied defendant's request for a mistrial as there was no evidence that defendant's right to a fair trial was in jeopardy; further, even if this Court could reach defendant's additional unpreserved claim, individual inquiry of the jurors was not required. (*People v Buford*, 69 NY2d 290; *People v Bailey*, 32 NY3d 70; *People v Terrell*, 149 AD3d 1108; *People v Torres*, 80 NY2d 944; *People v Baptiste*, 72 NY2d 356; *People v Michael*, 48 NY2d 1; *Matter of Plummer v Rothwax*, 63 NY2d 243; *People v Reader*, 142 AD3d 1109, 28 NY3d 1149; *People v Knorr*, 284 AD2d 411; *People v Dawkins*, 82 NY2d 226.)

OPINION OF THE COURT

CANNATARO, J.

New York guarantees the right of defendants to be present at all material stages of their criminal trial and to meaningfully contribute to their defense, including the opportunity to be present at jury selection and to observe the body language, facial expressions and demeanor of prospective jurors (NY Const, art I, § 6; CPL 260.20; *People v Rodriguez*, 100 NY2d 30, 34-35 [2003]; see *People v Wilkins*, 37 NY3d 371, 374 [2021];

People v Maffei, 35 NY3d 264, 272 [2020]; *People v Williams*, 15 NY3d 739, 740 [2010]; *People v Favor*, 82 NY2d 254, 267 [1993]). On this appeal, defendant maintains that safety protocols implemented during the COVID-19 pandemic—namely social distancing and the requirement that prospective jurors cover their mouths and noses with a face mask when not being questioned individually—violated these rights because defendant could not see each prospective juror’s entire face throughout the jury selection process. Because neither a defendant’s right to be present during jury selection nor due process requires that defendant have a simultaneous, unobstructed view of the entirety of every prospective juror’s face during jury selection, we affirm.

I.

Defendant caused a three-car collision in the early morning hours of November 27, 2017, while driving on the South Service Road of the Long Island Expressway in Hauppauge. One person died as a result of the crash and four others were seriously injured. A blood test performed later that day revealed that defendant’s blood alcohol content was well above the legal limit. A search of defendant’s vehicle performed by police revealed the presence of several alcoholic beverages, some opened and others unopened. Defendant was indicted on three counts of aggravated vehicular homicide, manslaughter in the second degree and various other crimes.

Defendant’s trial commenced in April 2021. Due to the ongoing COVID-19 public health emergency, a number of safety protocols implemented throughout the New York State court system were employed during jury selection. Specifically, prospective jurors were advised that they would be “assigned specific seats, arranged in a socially-distant manner” and that they were required to wear a face mask at all times while inside the courthouse, but would be permitted to lower their masks and use a clear plastic face shield while being directly questioned.

Defense counsel objected to the safety measures, arguing that *People v Antommarchi* (80 NY2d 247 [1992]) entitled defendant to observe “every smile, every frown of a potential juror” and that the procedures prevented him from doing so. The court overruled the objection noting that prospective jurors were given plastic face shields and were instructed to lower their cloth masks while being questioned so that the attorneys

could better see their facial expressions. Jury selection proceeded to conclusion with the safety measures being observed.

At trial, during the prosecution's opening statement, defense counsel moved for a mistrial after observing the decedent's surviving spouse crying in the courtroom. Counsel argued that defendant had been unfairly prejudiced as the crying might cause the jury to feel overly sympathetic towards the victim. The trial court denied the motion, noting that the decedent's surviving spouse was seated 15 feet behind defense counsel, that the court did not hear any crying and that, since the jury was even farther away than the judge, there was little likelihood the jury was aware of the crying. Nonetheless, the court directed the prosecutor to advise the decedent's surviving spouse that they should not cry during proceedings and that if they did, the court would exclude them from the courtroom. Further, the court offered to instruct the jury not to sympathize with either side, which the defense counsel declined.

Defendant was ultimately convicted of 11 of the charged counts. The Appellate Division affirmed defendant's conviction, holding that there was no record support for the assertion that the safety procedures in place interfered with or deprived defendant of the ability to observe and assess prospective jurors (208 AD3d 897, 898-899 [2d Dept 2022]). The Court further concluded that, in view of the trial court's observations on the record that the surviving spouse's crying was inconspicuous and did not distract from the proceedings, that defendant was not entitled to a mistrial (208 AD3d at 899). A Judge of this Court granted defendant leave to appeal (39 NY3d 1074 [2023]).

II.

"[A] defendant has a constitutional right to a trial by a particular jury chosen according to law, in whose selection [the defendant] has had a voice" (*Rodriguez*, 100 NY2d at 33-34 [internal quotation marks omitted]). Additionally, CPL 260.20 confers a statutory right to be present during jury selection. The gravamen of a defendant's right to be present at jury selection is to "hear questions intended to search out a prospective juror's bias, hostility or predisposition to believe or discredit the testimony of potential witnesses and the venire person's answers so that they have the opportunity to assess the juror's facial expressions, demeanor and other subliminal responses"

(*Antommarchi*, 80 NY2d at 250 [internal quotation marks and citation omitted]; see *People v Sloan*, 79 NY2d 386, 392 [1992]).

The key question in determining whether a defendant's exclusion from any phase of jury selection violates a right is whether the exclusion would have a substantial effect on the ability to mount a defense and the right is not violated where defendant's presence would be "useless, or the benefit but a shadow" (*People v Velasco*, 77 NY2d 469, 473 [1991], quoting *Snyder v Massachusetts*, 291 US 97, 106-107 [1934]). We have previously held that the sidebar questioning of prospective jurors concerning their ability to participate as impartial jurors outside of the presence of the defendant violates the statutory right to meaningfully participate in jury selection (see *Antommarchi*, 80 NY2d at 250; *Sloan*, 79 NY2d at 392-393). Conversely, we have found no such violation when questioning was confined to "juror qualifications such as physical impairments, family obligations and work commitments," because such questioning does not have a "substantial effect on [a defendant's] ability to defend" (*Antommarchi*, 80 NY2d at 250; see CPL 260.20; *Velasco*, 77 NY2d at 472-473).

[1] It is undisputed that defendant was present at all phases of jury selection. It is also undisputed that defendant was able to hear the questions posed to prospective jurors and to observe their responses including their "facial expressions, demeanor and other subliminal responses." Nonetheless, defendant argues that both he and his counsel were prevented from simultaneously observing the unobstructed facial expressions of all members of the venire, including those not being actively questioned, and that this deprivation violated defendant's right to fully participate in jury selection. Defendant cannot point to any authority supporting such a sweeping interpretation of the right to meaningful participation. Instead, defendant relies upon language from *Sloan* and its progeny to argue that he has a constitutional right to see all prospective juror's faces simultaneously. *Sloan*, which dealt with the defendant's exclusion from the sidebar questioning of individual prospective jurors on matters directly relevant to their "attitudes and feelings" concerning the defendant and the facts of the case, did not recognize such a broad right (79 NY2d at 392). In fact, *Sloan* made no mention of potential jurors who are present in the jury room but who are not being questioned (*id.* at 390-

391).^{*} Plainly, *Sloan* is not instructive with respect to the circumstances presented here.

Even assuming the rights articulated in *Sloan* could be more broadly applied to non-questioned members of the venire, the safety protocols in use at defendant's jury selection were permissible as they did not impede defendant's ability to be present and observe the selection process. A defendant's right to be present at jury selection does not entail the absolute or unlimited ability to observe each prospective juror's facial expressions. After all, there is much more to body language than a person's nose or mouth; defendant could still observe a great deal about prospective jurors including their posturing, the position of their arms, and their eyes and eyebrows (see *United States v Trimarco*, 2020 WL 5211051, *5, 2020 US Dist LEXIS 159180, *15-16 [ED NY, Sept. 1, 2020, 17-CR-583 (JMA)] [a person's demeanor consists of more than just their mouth and nose]). As the People note, the mere fact that a particular trial procedure might be tactically preferable to a defendant does not mean that the procedure is constitutionally required. To the contrary, the safety protocols challenged here are in line with those upheld by numerous state and federal courts nationwide (see e.g. *United States v Watkins*, 2021 WL 3732298, *6-7, 2021 US Dist LEXIS 160031, *18-20 [WD NY, Aug. 24, 2021, 18-CR-32-A] [masking requirements were in line with recommendations issued by the US Courts COVID-19 Judicial Task Force]; *United States v Crittenden*, 2020 WL 4917733, *8, 2020 US Dist LEXIS 151950, *22-23 [MD Ga, Aug. 21, 2020, Case No. 4:20-CR-7 (CDL)]; *People v Garcia*, 2022 COA 144, ¶¶ 26-31, 527 P3d 410, 418 [Colo App 2022]; *Guerin v Commonwealth*, 658 SW3d 481, 484 [Ky Ct App 2022]; *Prince v State*, 255 Md App 640, 661-662, 284 A3d 795, 807-808 [2022]).

Moreover, the safety protocols in use at the time of trial did not violate defendant's due process rights (see *People v Stanard*, 42 NY2d 74, 84-85 [1977] [due process not violated due to restriction of cross-examination in order to protect witness's safety]). "[D]ue process is a flexible constitutional concept calling for such procedural protections as a particular situation

^{*} Indeed, jury selection in New York often involves the questioning of individual jurors, or the questioning of the entire room of prospective jurors simultaneously (see 8 Carmody-Wait 2d §§ 55:35, 55:36). In both scenarios it would be impossible for defendant to view all jurors' faces simultaneously regardless of any masks.

may demand” (*LaRossa, Axenfeld & Mitchell v Abrams*, 62 NY2d 583, 588 [1984]). Proper consideration of whether an individual’s due process rights have been violated requires balancing “the interest of the parties to the dispute, the adequacy of the contested procedures to protect those interests and the government’s stake in the outcome” (*id.*). Here, defendant asserts that he had an interest in viewing the entirety of prospective jurors’ faces to aid in determining potential bias. The procedures in place afforded defendant an adequate opportunity to do so. Defendant was fully able to observe prospective jurors while they were being questioned, and even able to observe prospective jurors who were *not* being questioned, albeit with masks that covered their mouths and noses. This is at most a slight restriction, and permissible when weighed against the safety of all persons present in the court. Indeed, it would have been difficult, if not impossible, to conduct a jury trial with procedures that would permit a completely unobstructed view of all prospective jurors until the pandemic had subsided. Thus, the trial court properly balanced defendant’s right to be present during jury selection with the safety of those present in the courtroom in accordance with due process considerations (*see LaRossa, Axenfeld & Mitchell*, 62 NY2d at 588).

III.

[2] Turning to defendant’s request for a mistrial, we see no reason to disturb the decision of the trial court (*see People v Michael*, 48 NY2d 1, 9 [1979]). The court’s observation that the spouse’s crying was inconspicuous and that there was no indication that the jury heard it is entitled to deference (*see People v Batticks*, 35 NY3d 561 [2020]). Furthermore, the exploration of alternatives, such as instructing the People to speak with the spouse and offering defendant a curative instruction—which he rejected—justifies the decision not to grant the defendant’s motion (*see People v Moore*, 71 NY2d 684, 688 [1988]; *People v Young*, 48 NY2d 995, 996 [1980]; *see also People v Baptiste*, 72 NY2d 356, 360 [1988]). Finally, notwithstanding the trial court’s efforts to temper the surviving spouse’s courtroom reactions, there is no requirement that a trial judge keep courtroom spectators from displaying any emotion whatsoever absent prejudice to a party.

Accordingly, the order of the Appellate Division should be affirmed.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS,
TROUTMAN and HALLIGAN concur.

Order affirmed.

[235 NE3d 332, 211 NYS3d 800]

CONSOLIDATED RESTAURANT OPERATIONS, INC., Appellant, v
WESTPORT INSURANCE CORPORATION, Respondent.

Argued January 10, 2024; decided February 15, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 7, 2022. The Appellate Division order, insofar as appealed from, affirmed an order of the Supreme Court, New York County (Jennifer G. Schechter, J.), which had (1) granted defendant's motion to dismiss the complaint pursuant to CPLR 3211 (a) (1) and (7); and (2) declared that the losses plaintiff alleged in the complaint are not covered by the subject insurance policy.

Consolidated Rest. Operations, Inc. v Westport Ins. Corp., 205 AD3d 76, affirmed.

HEADNOTE

Insurance — Property Insurance — Direct Physical Loss or Damage — Business Interruption Coverage for Inability to Use Premises Due to Presence of Coronavirus

In an action arising out of defendant insurer's denial of coverage for the loss of revenue sustained by plaintiff restaurant owner resulting from the coronavirus pandemic, plaintiff's allegations of business interruption losses caused by the presence of the coronavirus on the insured property were insufficient to state a claim for "direct physical loss or damage" within the meaning of plaintiff's property insurance policy. Direct physical loss or damage requires a material alteration or a complete and persistent dispossession of insured property, which plaintiff did not allege. Nowhere did the complaint allege that certain restaurant closures were because the properties themselves were contaminated to the point of uninhabitability, as opposed to prudent economic decisions in light of lost "foot-traffic." Plaintiff's remediation efforts prompted by the presence of the coronavirus, even if useful to facilitate in-person dining, did not establish that the restaurants were completely uninhabitable until property was repaired or replaced. Nor did plaintiff allege a permanent impact amounting to persistent and complete uninhabitability. Moreover, the complaint alleged nothing specific about how the presence of the coronavirus might have affected the physical integrity of structures or property. Plaintiff did not allege there was any need to repair or replace insured property; only business interruption losses were identified.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Insurance §§ 473, 479.

COUCH ON INSURANCE (3d ed) §§ 1:61, 148:46, 148:50,
148:60, 167:11–167:12, 167:15, 178:21.

NY JUR 2d Insurance §§ 1706, 1716.

WILLISTON ON CONTRACTS (4th ed) § 49:27.

ANNOTATION REFERENCES

Coverage under all-risk insurance. 30 ALR5th 170.

Business interruption insurance. 37 ALR5th 41.

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Query: physical /3 loss or damage /p “business interrup-
tion” /p coronavirus or COVID-19 or pandemic

POINTS OF COUNSEL

Cohen Ziffer Frenchman & McKenna LLP, New York City (Robin L. Cohen, Adam S. Ziffer and Orrie A. Levy of counsel), for appellant. I. The First Department’s conclusion that “direct physical loss or damage” can only be satisfied by tangible, demonstrable damage to property contravenes bedrock principles of insurance policy interpretation and must be reversed. (*J.P. Morgan Sec. Inc. v Vigilant Ins. Co.*, 37 NY3d 552; *Cata-ract Sports & Entertainment Group, LLC v Essex Ins. Co.*, 59 AD3d 1083; *Westview Assoc. v Guaranty Natl. Ins. Co.*, 95 NY2d 334; *Quadrant Structured Prods. Co., Ltd. v Vertin*, 23 NY3d 549; *Barnes v American Intl. Life Assur. Co. of N.Y.*, 681 F Supp 2d 513; *Lefrak Org., Inc. v Chubb Custom Ins. Co.*, 942 F Supp 949; *Pan Am. World Airways, Inc. v Aetna Cas. & Sur. Co.*, 505 F2d 989; *Raymond Corp. v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 5 NY3d 157; *Pillsbury Co. v Underwrit-ers at Lloyd’s, London*, 705 F Supp 1396.) II. The First Depart-ment erroneously departed from New York’s liberal pleading standard in holding that Consolidated Restaurant Operations, Inc.’s allegations regarding COVID-19 were “conclusory.” (*Foley v D’Agostino*, 21 AD2d 60; *Eurycleia Partners, LP v Seward & Kissel, LLP*, 12 NY3d 553; *Ashcroft v Iqbal*, 556 US 662; *Guti-errez v Bactolac Pharm., Inc.*, 210 AD3d 746; 511 W. 232nd Owners Corp. v Jennifer Realty Co., 98 NY2d 144; *Cohn v Lionel Corp.*, 21 NY2d 559; *Davis v Boenheim*, 24 NY3d 262; *EBC I, Inc. v Goldman, Sachs & Co.*, 5 NY3d 11; *Salles v Chase Manhattan Bank*, 300 AD2d 226; *Aristy-Farer v State of New York*, 29 NY3d 501.) III. No exclusion in the policy bars cover-age. (*Belt Painting Corp. v TIG Ins. Co.*, 100 NY2d 377; *Conti-*

mental Cas. Co. v Rapid-American Corp., 80 NY2d 640; *Pepsico, Inc. v Winterthur Intl. Am. Ins. Co.*, 13 AD3d 599; *Urogynecology Specialist of Fla. LLC v Sentinel Ins. Co., Ltd.*, 489 F Supp 3d 1297; *National Football League v Vigilant Ins. Co.*, 36 AD3d 207; *Sincoff v Liberty Mut. Fire Ins. Co.*, 11 NY2d 386; *Duane Reade, Inc. v St. Paul Fire & Mar. Ins. Co.*, 279 F Supp 2d 235.)

DLA Piper LLP (US), New York City (*Aidan M. McCormack* and *Robert C. Santoro* of counsel), for respondent. I. This Court reviews the grant of a motion to dismiss de novo, the insurance contract is construed as a matter of law and Consolidated Restaurant Operations, Inc. has the burden to establish coverage. (*Siegmund Strauss, Inc. v East 149th Realty Corp.*, 104 AD3d 401; *Goshen v Mutual Life Ins. Co. of N.Y.*, 98 NY2d 314; *Ralex Servs., Inc. v Southwest Mar. & Gen. Ins. Co.*, 155 AD3d 800; *Universal Am. Corp. v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 25 NY3d 675; *Roundabout Theatre Co. v Continental Cas. Co.*, 302 AD2d 1; *Dreisinger v Teglasi*, 130 AD3d 524; *Bethlehem Steel Co. v Turner Constr. Co.*, 2 NY2d 456; *Ashwood Capital, Inc. v OTG Mgt., Inc.*, 99 AD3d 1; *Schering Corp. v Home Ins. Co.*, 712 F2d 4; *Westchester Fire Ins. Co. v MCI Communications Corp.*, 74 AD3d 551.) II. Consolidated Restaurant Operations, Inc.'s allegations do not reasonably allege its financial loss was caused by direct physical loss or damage to property. (*Consolidated Edison Co. of N.Y. v Allstate Ins. Co.*, 98 NY2d 208; *Deer Mountain Inn LLC v Union Ins. Co.*, 541 F Supp 3d 235; *Whitaker v Nationwide Mut. Fire Ins. Co.*, 115 F Supp 2d 612; *Great N. Ins. Co. v Benjamin Franklin Fed. Sav. & Loan Assn.*, 793 F Supp 259; *Cytopath Biopsy Lab. v United States Fid. & Guar. Co.*, 6 AD3d 300; *Uncork & Create LLC v Cincinnati Ins. Co.*, 498 F Supp 3d 878; *100 Orchard St., LLC v Travelers Indem. Ins. Co. of Am.*, 542 F Supp 3d 227; *Dino Drop, Inc. v Cincinnati Ins. Co.*, 544 F Supp 3d 789; *Café La Trova LLC v Aspen Specialty Ins. Co.*, 519 F Supp 3d 1167; *O'Brien Sales & Mktg., Inc. v Transportation Ins. Co.*, 512 F Supp 3d 1019.) III. Consolidated Restaurant Operations, Inc.'s arguments to the contrary are unavailing. (*Matter of Cardinale v New York City Dept. of Educ.*, 204 AD3d 994, 39 NY3d 966; *Matter of Albany, City of v McMorran*, 16 AD2d 1021; *Barnes v Hodge*, 118 AD3d 633; *Pepsico, Inc. v Winterthur Intl. Am. Ins. Co.*, 24 AD3d 743; *Commercial Union Ins. Co. v Flagship Mar. Servs., Inc.*, 190 F3d 26; *Gilbane Bldg. Co./TDX Constr. Corp. v St. Paul Fire & Mar. Ins. Co.*, 31 NY3d 131; *Last Time Beverage Corp. v F & V Distrib. Co., LLC*, 98

AD3d 947; *Raymond Corp. v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 5 NY3d 157; *Westview Assoc. v Guaranty Natl. Ins. Co.*, 95 NY2d 334; *Ingenco Holdings, LLC v Ace Am. Ins. Co.*, 921 F3d 803.) IV. Four separate exclusions apply to bar coverage for Consolidated Restaurant Operations, Inc.'s claims. (*Northwell Health, Inc. v Lexington Ins. Co.*, 550 F Supp 3d 108; *Office Solution Group, LLC v National Fire Ins. Co. of Hartford*, 544 F Supp 3d 405; *Broad St., LLC v Gulf Ins. Co.*, 37 AD3d 126; *Belt Painting Corp. v TIG Ins. Co.*, 100 NY2d 377; *Broome County v Travelers Indem. Co.*, 125 AD3d 1241.)

Reed Smith LLP, New York City (*John N. Ellison* and *Richard P. Lewis* of counsel), for *Chefs' Warehouse, Inc.* and others, amici curiae. I. For 60 years, Westport Insurance Corporation has known that its standard-form business income trigger was at least ambiguous as to whether it applied to loss or damage from a virus, and under New York law its election not to add an express virus exclusion must have consequences. (*Fidelity-Phenix Fire Ins. Co. of N.Y. v Benedict Coal Corp.*, 64 F2d 347; *National Children's Expositions Corp. v Anchor Ins. Co.*, 279 F2d 428; *Datatab, Inc. v St. Paul Fire & Mar. Ins. Co.*, 347 F Supp 36; *Parks Real Estate Purch. Group v St. Paul Fire & Mar. Ins. Co.*, 472 F3d 33; *Roundabout Theatre Co. v Continental Cas. Co.*, 302 AD2d 1; *Howard Stores Corp. v Foremost Ins. Co.*, 82 AD2d 398; *American Alliance Ins. Co. v Keleket X-Ray Corp.*, 248 F2d 920; *Cyclops Corp. v Home Ins. Co.*, 352 F Supp 931; *Hampton Foods, Inc. v Aetna Cas. & Sur. Co.*, 787 F2d 349; *Pillsbury Co. v Underwriters at Lloyd's, London*, 705 F Supp 1396.) II. The Court should not accept insurers' cries of "wolf." III. Insurers are using decisions in COVID-19 cases to claw back coverage they have provided for 60 years.

Reed Smith LLP, New York City (*Nicholas M. Insua* of counsel), for United Policyholders, amicus curiae. I. Commercial insurance policy terms should be construed in light of their purchasers' reasonable expectations and ordinary understanding. (*Bird v St. Paul Fire & Mar. Ins. Co.*, 224 NY 47; *Arthur A. Johnson Corp. v Indemnity Ins. Co. of N. Am.*, 7 NY2d 222; *Michaels v City of Buffalo*, 85 NY2d 754; *Matter of Mostow v State Farm Ins. Cos.*, 88 NY2d 321; *County of Columbia v Continental Ins. Co.*, 83 NY2d 618; *Cragg v Allstate Indem. Corp.*, 17 NY3d 118.) II. The ordinary businessperson reasonably construes "all risks of direct physical loss or damage" as including losses and damage from the coronavirus. (*TAG 380, LLC v ComMet 380, Inc.*, 10 NY3d 507; *Bi-Economy*

Mkt., Inc. v Harleysville Ins. Co. of N.Y., 10 NY3d 187; *Matter of September 11 Litig. v Port Auth. of N.Y. & N.J.*, 751 F3d 86; *City of Burlington v Indemnity Ins. Co. of N. Am.*, 332 F3d 38.) III. New York law prohibits narrowing coverage by implication. (*Seaboard Sur. Co. v Gillette Co.*, 64 NY2d 304; *Northwell Health v Lexington Ins. Co.*, 550 F Supp 3d 108.) IV. Inapplicable lower court decisions do not resolve this case or establish New York law. (*Quadrant Structured Prods. Co., Ltd. v Vertin*, 23 NY3d 549; *Matter of Ore Cargo, Inc. v Gottesman*, 544 F2d 80.) V. The lower court and other courts have misread *Roundabout Theatre Co. v Continental Cas. Co.* (302 AD2d 1 [1st Dept 2002]) in applying it to COVID-related insurance coverage cases.

Robinson & Cole LLP, New York City (*Wystan M. Ackerman* of counsel), for American Property Casualty Insurance Association and another, amici curiae. I. The history and purpose of commercial property insurance policies support the Appellate Division's decision. (*Santo's Italian Café LLC v Acuity Ins. Co.*, 15 F4th 398; *Uncork & Create LLC v Cincinnati Ins. Co.*, 27 F4th 926; *Real Hosp., LLC v Travelers Cas. Ins. Co. of Am.*, 499 F Supp 3d 288; *L. Smirlock Realty Corp. v Title Guar. Co.*, 52 NY2d 179; *United States Fid. & Guar. Co. v American Re-Ins. Co.*, 20 NY3d 407; *L&J Mattson's Co. v Cincinnati Ins. Co.*, 536 F Supp 3d 307; *Connecticut Children's Med. Ctr. v Continental Cas. Co.*, 581 F Supp 3d 385; *Northwell Health, Inc. v Lexington Ins. Co.*, 550 F Supp 3d 108.) II. Insurance cannot broadly cover pandemic losses, and to find such coverage contrary to the plain language of the policy could substantially harm New York's insurance marketplace. III. Recent appellate decisions and additional authority dispel Consolidated Restaurant Operations, Inc.'s arguments and provide further support for the Appellate Division's decision. (*Sokoloff v Harri-man Estates Dev. Corp.*, 96 NY2d 409; *Circle Block Partners, LLC v Fireman's Fund Ins. Co.*, 44 F4th 1014.) IV. Deliberate modifications to property for social distancing purposes do not constitute "direct physical loss or damage" to property.

Reed Smith LLP, New York City (*Bert Wells, Russell M. Squire* and *Hyuna Yong* of counsel), Pittsburgh, Pennsylvania (*James C. Martin* of counsel) and Philadelphia, Pennsylvania (*Miranda A. Jannuzzi* of counsel), for Metropolitan Transportation Authority and others, amici curiae. I. The panel erred by redefining "physical" as "tangible" and misapplying both terms. (*Keyspan Gas E. Corp. v Munich Reins. Am., Inc.*, 31 NY3d 51;

Pepsico, Inc. v Winterthur Intl. Am. Ins. Co., 24 AD3d 743; *Mercado v Vega*, 77 NY2d 918; *Voss v Netherlands Ins. Co.*, 22 NY3d 728; *Vermont Teddy Bear Co. v 538 Madison Realty Co.*, 1 NY3d 470.) II. The panel erred by failing to find Consolidated Restaurant Operations, Inc.'s allegations of SARS-CoV-2 deposits' infectiousness sufficient to support "physical damage." (*Thomas J. Lipton, Inc. v Liberty Mut. Ins. Co.*, 34 NY2d 356; *Cytopath Biopsy Lab. v United States Fid. & Guar. Co.*, 6 AD3d 300.) III. The panel erred by subsuming "physical loss" within "physical damage." (*Roundabout Theatre Co. v Continental Cas. Co.*, 302 AD2d 1.) IV. The panel erred by crediting Westport Insurance Corporation's "mere cleaning" defense. (*Herald Sq. Loft Corp. v Merrimack Mut. Fire Ins. Co.*, 344 F Supp 2d 915; *American Alliance Ins. Co. v Keleket X-Ray Corp.*, 248 F2d 920; *Wakeman v Wheeler & Wilson Mfg. Co.*, 101 NY 205.) V. The panel erred by failing to find under liberal notice pleading standards that Consolidated Restaurant Operations, Inc.'s allegations of "physical loss or damage" were sufficient. (*Nonnon v City of New York*, 9 NY3d 825; *Leon v Martinez*, 84 NY2d 83; *Guggenheimer v Ginzburg*, 43 NY2d 268; *People v Magri*, 3 NY2d 562; *Hamilton v Miller*, 23 NY3d 592; *Siegmund Strauss, Inc. v East 149th Realty Corp.*, 104 AD3d 401; *Rapoport v Schneider*, 29 NY2d 396; *Matter of Great E. Mall v Condon*, 36 NY2d 544.) VI. The Court should reject Westport Insurance Corporation's defense that physical impairments must be permanent to constitute "physical loss or damage." (*Olin Corp. v Insurance Co. of N. Am.*, 972 F Supp 189; *Olin Corp. v Lamorak Ins. Co.*, 332 F Supp 3d 818.) VII. The Court should not apply any exclusions to preclude Consolidated Restaurant Corporation, Inc.'s claim. (*Belt Painting Corp. v TIG Ins. Co.*, 100 NY2d 377.) VIII. The Court should not issue the sweeping "no coverage" ruling Westport Insurance Corporation demands. (*Matter of Viking Pump, Inc.*, 27 NY3d 244.)

McCarter & English, LLP, New York City (*Sherilyn Pastor* of counsel), and *Medical Society of the County of Erie* (*Aimana El-Bahtity* of counsel), for Medical Society of the County of Erie, amicus curiae. I. COVID-19's primary transmission vector is the presence of SARS-CoV-2 in indoor air. II. The presence of SARS-CoV-2 continually intrudes on the properties because its continuous reintroduction into business premises remaining open to the public renders cleaning, disinfection or dissipation ineffective at removing it. III. The presence of SARS-CoV-2 rendered property uninhabitable or less functionally useful in 2020 as demonstrated by the elevated COVID-19 infection and

death rates of essential workers. IV. SARS-CoV-2 cannot be removed or eliminated with routine surface cleaning.

Latham & Watkins LLP, New York City (*Paul Moura* of counsel), Boston, Massachusetts (*Robert Gilbert*, admitted pro hac vice, of counsel) and Washington, D.C. (*David Barrett*, admitted pro hac vice, of counsel), for Envision Healthcare Operating, Inc., amicus curiae. I. The lower courts erred by dismissing Consolidated Restaurant Operations, Inc.’s well-pleaded allegations. (*United States Dredging Corp. v Lexington Ins. Co.*, 99 AD3d 695; *Travelers Indem. Co. v Zeff Design*, 60 AD3d 453; *United States Fid. & Guar. Co. v Annunziata*, 67 NY2d 229; *Penna v Federal Ins. Co.*, 28 AD3d 731; *Teliman Holding Corp. v VCW Assoc.*, 211 AD3d 499; *Hamburg v New York Univ. Sch. of Medicine*, 155 AD3d 66; *Belt Painting Corp. v TIG Ins. Co.*, 100 NY2d 377; *TRAVCO Ins. Co. v Ward*, 715 F Supp 2d 699; *Elegant Massage, LLC v State Farm Mut. Auto. Ins. Co.*, 506 F Supp 3d 360; *Port Auth. of N.Y. & N.J. v Affiliated FM Ins. Co.*, 311 F3d 226.) II. Whatever this Court decides with respect to Consolidated Restaurant Operations, Inc., it should not decide *all* claims for physical loss or damage arising from the SARS-CoV-2 virus for other claimants under other policies.

Cravath, Swaine & Moore LLP, New York City (*Keith R. Hummel* and *Justin C. Clarke* of counsel), for American Museum of Natural History, amicus curiae. I. Courts have erred in relying on *Roundabout Theatre Co. v Continental Cas. Co.* (302 AD2d 1 [1st Dept 2002]) to conclude that SARS-CoV-2 cannot cause “physical loss or damage.” (*Mudpie, Inc. v Travelers Cas. Ins. Co. of Am.*, 487 F Supp 3d 834.) II. Courts may not disregard bedrock principles of New York law when evaluating insurance claims arising out of the COVID-19 pandemic. (*Cragg v Allstate Indem. Corp.*, 17 NY3d 118; *Matter of Mostow v State Farm Ins. Cos.*, 88 NY2d 321; *Vigilant Ins. Co. v Bear Stearns Cos., Inc.*, 10 NY3d 170; *White v Continental Cas. Co.*, 9 NY3d 264; *Selective Ins. Co. of Am. v County of Rensselaer*, 26 NY3d 649; *State of New York v Home Indem. Co.*, 66 NY2d 669; *Newman Myers Kreines Gross Harris, P.C. v Great N. Ins. Co.*, 17 F Supp 3d 323; *India.Com, Inc. v Dalal*, 412 F3d 315; *Reda v Eastman Kodak Co.*, 233 AD2d 914.) III. Whether SARS-CoV-2 can cause “physical loss or damage” is a quintessential question of fact, not of law.

Pillsbury Winthrop Shaw Pittman LLP, New York City (*Ro-*

lando T. Acosta, Joseph D. Jean, Maria T. Galeno and Scott D. Greenspan of counsel), and *New York State Trial Lawyers Association*, New York City (*David L. Scher and Brian J. Isaac* of counsel), for New York State Trial Lawyers Association, amicus curiae. I. Supreme Court erred in granting the motion to dismiss and denying leave to amend, and the First Department erred in affirming those decisions. (*Rosen v Ciba-Geigy Corp.*, 78 F3d 316; *P.T. Bank Cent. Asia, N.Y. Branch v ABN AMRO Bank N.V.*, 301 AD2d 373; *Leon v Martinez*, 84 NY2d 83; *Fischbach & Moore v Howell Co.*, 240 AD2d 157; *Bernstein v Kelso & Co.*, 231 AD2d 314.) II. Challenges to the merits of plaintiff's allegations should occur at summary judgment. (*Gershon v Goldberg*, 30 AD3d 372; *Aronoff v Albanese*, 85 AD2d 3; *Foley v D'Agostino*, 21 AD2d 60; *Pernet v Peabody Engg. Corp.*, 20 AD2d 781; *Holzer v Feinstein*, 23 AD2d 771; *Lane v Mercury Record Corp.*, 21 AD2d 602, 18 NY2d 889; *219 Broadway Corp. v Alexander's, Inc.*, 46 NY2d 506; *EBC I, Inc. v Goldman, Sachs & Co.*, 5 NY3d 11; *Nonnon v City of New York*, 9 NY3d 825; *Salles v Chase Manhattan Bank*, 300 AD2d 226.) III. Scientific allegations cannot be evaluated at the pleading stage. (*Parker v Mobil Oil Corp.*, 7 NY3d 434.) IV. The complex and evolving science of coronavirus requires fact and expert discovery.

Latham & Watkins LLP, Washington, D.C. (*Roman Martinez and Christine G. Rolph*, admitted pro hac vice, of counsel), Austin, Texas (*Brook B. Roberts*, admitted pro hac vice, of counsel) and San Diego, California (*John M. Wilson*, admitted pro hac vice, and *Corey D. McGehee*, admitted pro hac vice, of counsel), for *Caesars Entertainment, Inc.*, amicus curiae. I. "All-risks" property policies are intentionally broad to maximize protection for policyholders. (*TAG 380, LLC v ComMet 380, Inc.*, 10 NY3d 507; *United States Dredging Corp. v Lexington Ins. Co.*, 99 AD3d 695; *Travelers Indem. Co. v Zeff Design*, 60 AD3d 453; *Essex Ins. Co. v BloomSouth Flooring Corp.*, 562 F3d 399; *TRAVCO Ins. Co. v Ward*, 715 F Supp 2d 699.) II. New York's canons of insurance policy interpretation and case law confirm that policyholders' expectations of coverage are reasonable. (*Penna v Federal Ins. Co.*, 28 AD3d 731; *Port Auth. of N.Y. & N.J. v Affiliated FM Ins. Co.*, 311 F3d 226; *Teliman Holding Corp. v VCW Assoc.*, 211 AD3d 499; *Oot v Home Ins. Co. of Ind.*, 244 AD2d 62; *Southeast Mental Health Ctr., Inc. v Pacific Ins. Co., Ltd.*, 439 F Supp 2d 831; *Lend Lease [US] Constr. LMB Inc. v Zurich Am. Ins. Co.*, 136 AD3d 52; *Hanover Ins. Co. v Weirfield Coal, Inc.*, 474 F Supp 3d 564; *International Multifoods Corp. v Commercial Union Ins. Co.*, 309 F3d 76;

Vargas v Insurance Co. of N. Am., 651 F2d 838; *Wai Kun Lee v Otsego Mut. Fire Ins. Co.*, 49 AD3d 863.)

OPINION OF THE COURT

HALLIGAN, J.

This appeal presents the question of whether allegations that SARS-Co-V-2, the virus that causes COVID-19 (coronavirus or virus), was present in insured restaurants and resulted in cessation of in-person dining services and related business interruption losses are sufficient to state a claim for “direct physical loss or damage,” as that phrase is used in plaintiff’s property insurance policy. We hold that direct physical loss or damage requires a material alteration or a complete and persistent dispossession of insured property, which plaintiff has not alleged. We therefore affirm the order below dismissing the complaint.

I.

Consolidated Restaurant Operations, Inc. (CRO), a company that owns and operates dozens of restaurants, obtained from Westport Insurance Corporation (Westport) an “all-risk” commercial property insurance policy covering the period from July 1, 2019, through July 1, 2020. Subject to certain exclusions, the policy insured “all risks of direct physical loss or damage to insured property” and business interruption losses “directly resulting from direct physical loss or damage” to insured property. The policy is governed by New York law under its express terms.

Beginning in late 2019 and early 2020, the spread of the coronavirus led to a global pandemic with devastating impacts worldwide. In addition to the severe consequences for human health and mortality, many business owners and the economy at large suffered tremendously. According to a report by the World Bank, the COVID-19 pandemic triggered “the largest global economic crisis in more than a century” (The World Bank, World Development Report 2022: Finance for an Equitable Recovery at 1, <https://openknowledge.worldbank.org/bitstream/handle/10986/36883/9781464817304.pdf>).

CRO, like many businesses directly serving the public, sustained a significant reduction in revenue during the pandemic. In its original complaint, CRO alleged that it was forced to suspend or substantially curtail its operations due to the presence of the coronavirus in its restaurants and govern-

ment restrictions on nonessential businesses. CRO sought coverage for the ensuing loss of revenue and, after Westport denied coverage, commenced this action seeking a declaration as to Westport's obligations under the policy and damages for breach of contract. Westport moved to dismiss for failure to state a cause of action, arguing that CRO could not establish that the coronavirus caused "direct physical loss or damage" to its properties as a matter of law.

Supreme Court declared that the policy did not cover CRO's alleged losses and granted Westport's motion to dismiss. Relying upon the construction of identical policy language in *Roundabout Theatre Co. v Continental Cas. Co.* (302 AD2d 1 [1st Dept 2002]) and *Northwell Health, Inc. v Lexington Ins. Co.* (550 F Supp 3d 108 [SD NY 2021]), the court acknowledged that the alleged cause of CRO's business interruption was something physical—the coronavirus. Supreme Court concluded, though, that CRO had not alleged that its premises were "uninhabitable" or in need of repair or replacement, and thus had not adequately alleged a resulting physical loss or damage to insured property. The court later denied as futile that part of a motion in which CRO sought leave to amend its complaint.

The Appellate Division affirmed the first Supreme Court order and that part of the subsequent order denying leave to amend the complaint (205 AD3d 76, 87 [1st Dept 2022]). The Court first considered the meaning of the phrase "direct physical loss or damage," which it had interpreted in *Roundabout* "to mean something that directly happens to the property resulting in physical damage to it" (205 AD3d at 82, citing *Roundabout*, 302 AD2d 1). It concluded that *Roundabout* was "factually distinguishable" (*Roundabout* involved a wholly exogenous event—a street closure—and no allegations of a physical substance on the insured premises) but still "a useful starting point" (*id.*). The Court noted that numerous federal and state court cases had applied both New York law and the law of other states to hold that the terms "direct" and "physical," as they relate to "damage or loss to property," require "a direct physical loss of property, not simply the inability to use it" (*id.* at 83-85). The Court concluded that "the plain meaning of 'physical,' as commonly understood, requires some tangible alteration of the property," reasoning that "the words 'direct' and 'physical' modify or qualify the phrase 'loss or damage' to require a showing of actual, demonstrable physical harm of some form to the insured premises" (*id.* at 84, 85).

Turning to the pleadings, the Appellate Division held that CRO's allegations that the coronavirus physically altered its properties were too "conclusory" to withstand a motion to dismiss (*id.* at 83). CRO had not identified "any physical change, transformation, or difference in any of its property," the Court observed, and absent such allegations, the complaint failed to state a cause of action (*id.* at 86). CRO's "statement that [coronavirus] particles and droplets damage property is merely a conclusion that will not save the complaint from dismissal" (*id.*). Nor would the proposed amended complaint require a different result, the Court determined, because it "fail[ed] to identify any physical change, transformation, or difference in any of its property" (*id.*). The Court concluded that because "[t]he additional facts that [CRO] seeks to add" in its proposed amended complaint "do not remedy" the pleading "defect," the motion for leave to amend was properly denied (*id.* at 87).

This Court granted CRO leave to appeal from the Appellate Division order to the extent that it affirmed dismissal of the complaint and granted judgment in favor of Westport (*see* 39 NY3d 943 [2022]).¹

II.

As with any motion to dismiss, we must give CRO's pleadings "a liberal construction, take the allegations of the complaint as true and provide plaintiff the benefit of every possible inference" (*EBC I, Inc. v Goldman, Sachs & Co.*, 5 NY3d 11, 19 [2005]; *see also* CPLR 3026 [directing that "(p)leadings shall be liberally construed" and "(d)effects shall be ignored if a substantial right of a party is not prejudiced"]). A motion to dismiss "must be denied if from the pleadings' four corners 'factual allegations are discerned which taken together manifest any cause of action cognizable at law'" (*511 W. 232nd Owners Corp. v Jennifer Realty Co.*, 98 NY2d 144, 152 [2002]). Furthermore, to prevail on a motion to dismiss based on

1. Because CRO sought leave to amend its complaint in a motion that postdated the August 2021 judgment, the Appellate Division order, insofar as it affirmed that part of Supreme Court's September 2021 order denying leave to amend, is nonfinal and hence nonappealable to this Court. Accordingly, we granted leave to appeal only in part, and we dismissed CRO's motion for leave to appeal, on finality grounds, from so much of the Appellate Division order as resolved the appeal from Supreme Court's September 2021 order (*see* 39 NY3d 943). Any issues relating to the proposed amended complaint are therefore not properly before us.

documentary evidence, “the moving party (here, the Insurers) must establish that the documentary evidence ‘conclusively refutes’ the plaintiff’s allegations” (*J.P. Morgan Sec. Inc. v Vigilant Ins. Co.*, 21 NY3d 324, 334 [2013], quoting *AG Capital Funding Partners, L.P. v State St. Bank & Trust Co.*, 5 NY3d 582, 591 [2005]).

Under New York law, insurance contracts are construed by applying general principles of contract interpretation (see *Universal Am. Corp. v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 25 NY3d 675, 680 [2015]). A contractual provision is unambiguous if its language has “a definite and precise meaning, unattended by danger of misconception in the purport of the policy itself, and concerning which there is no reasonable basis for a difference of opinion” (*Breed v Insurance Co. of N. Am.*, 46 NY2d 351, 355 [1978]). Unambiguous provisions of an insurance contract, like any contract, “must be given their plain and ordinary meaning, and the interpretation of such provisions is a question of law for the court” (*Universal Am. Corp.*, 25 NY3d at 680, quoting *Vigilant Ins. Co. v Bear Stearns Cos., Inc.*, 10 NY3d 170, 177 [2008] [internal quotation marks omitted]). On the other hand, “any ambiguity must be construed in favor of the insured and against the insurer” (*White v Continental Cas. Co.*, 9 NY3d 264, 267 [2007]).

CRO advances two primary arguments for reversal and reinstatement of its complaint. It first contends that the Appellate Division erred in interpreting “direct physical loss or damage” to require “tangible, ascertainable damage, change or alteration to the property” because that formulation, according to CRO, does not give the words “physical loss” independent meaning. CRO would have us read the phrase more broadly, to encompass situations where a physical event occurs on insured property and impairs its functionality or renders it, in whole or in part, unusable for its intended purpose. Second, CRO argues that even if the policy is read to require physical alteration to its property, it alleged as much. Westport disputes each of these points, and further argues that coverage was independently barred by several exclusions in the policy. We hold that “direct physical loss or damage” requires a material alteration or a complete and persistent dispossession of insured property, which CRO did not allege. Because we conclude that the policy thus does not cover CRO’s claims, we do not reach the question of whether the policy exclusions are triggered here.

A.

The first question before us is what the relevant provisions of the insurance policy mean. CRO’s all-risk commercial property insurance policy provides in relevant part that it “insures all risks of direct physical loss or damage to INSURED Property while on INSURED LOCATION(S).” Insured property is defined to include both real property and personal property owned by CRO. The policy also insures against business interruption, referred to as “TIME ELEMENT loss,” “during the Period of Liability directly resulting from direct physical loss or damage insured by this POLICY to INSURED PROPERTY at INSURED LOCATION(S).” The period of liability “[f]or building and equipment” is defined as “the period of time” “starting on the date of physical loss or damage insured by this POLICY to INSURED PROPERTY,” and “ending when with due diligence and dispatch the building and equipment could be repaired or replaced with current materials of like size, kind and quality and made ready for operations;”²

To interpret the phrase in question, we begin with each of its constituent words (*see Universal Am. Corp.*, 25 NY3d at 680-681 [utilizing dictionary definitions of constituent words to construe undefined policy phrase]). Direct means “marked by absence of an intervening agency, instrumentality, or influence” (Merriam-Webster.com Dictionary, direct [<https://www.merriam-webster.com/dictionary/direct>]). Physical means “[o]f, relating to, or involving material things; pertaining to real, tangible objects” (Black’s Law Dictionary [11th ed 2019], physical). Loss means “[t]he failure to maintain possession of a thing” (Black’s Law Dictionary [11th ed 2019], loss; *accord Wilson v USI Ins. Serv. LLC*, 57 F4th 131, 141-142 [3d Cir 2023]; *Terry Black’s Barbecue, L.L.C. v State Auto. Mut. Ins. Co.*, 22 F4th 450, 456 [5th Cir 2022]; *Santo’s Italian Café LLC v Acuity Ins. Co.*, 15 F4th 398, 401 [6th Cir 2021]; *Estes v Cincinnati Ins. Co.*, 23 F4th 695, 700 [6th Cir 2022]), and “damage” means the “loss or harm resulting from injury to person, property, or reputation” (Merriam-Webster.com Dictionary, damage [<https://www.merriam-webster.com/dictionary/>]).

2. CRO notes that it purchased additional coverage for the “reasonable and necessary costs incurred” for “cleanup, removal[,] and disposal of the actual not suspected presence of COMMUNICABLE DISEASES” if property use was limited, restricted, or prohibited by a government order or company officer, but CRO’s complaint did not seek coverage under this provision, which was capped at \$250,000 annually.

damage]; *accord Wilson*, 57 F4th at 142; *Uncork & Create LLC v Cincinnati Ins. Co.*, 27 F4th 926, 932 [4th Cir 2022]). And because the words “direct” and “physical” both modify the phrase “loss or damage,” we read the phrase “direct physical loss or damage” to mean “direct physical loss” or “direct physical damage” (see *Starr Surplus Lines Ins. Co. v Eighth Jud. Dist. Ct. in & for County of Clark*, — Nev —, —, 535 P3d 254, 261 [2023] [“In the phrase ‘direct physical loss or damage,’ both ‘direct’ and ‘physical’ function as prepositive modifiers giving meaning to ‘loss’ and ‘damage’ individually”]).

“Physical damage” must be understood to require a material physical alteration to the property—one that is perceptible, even if not visible to the naked eye (*accord Huntington Ingalls Indus., Inc. v Ace Am. Ins. Co.*, 2022 VT 45, ¶ 26, 287 A3d 515, 527-528 [2022]). CRO contends that it has alleged a material physical alteration—specifically, the presence of the coronavirus at its restaurants. For the reasons set forth in point II.B below, we disagree.

Turning to “direct physical loss,” CRO argues that this phrase encompasses impaired functionality and either a partial or complete loss of use for a limited period of time. That reading is untenable, though, because it would collapse coverage for “direct physical loss” into coverage for “loss of use” (see *Northwell Health*, 550 F Supp 3d at 117; *cf. Schlamm Stone & Dolan, LLP v Seneca Ins. Co.*, 6 Misc 3d 1037[A], 2005 NY Slip Op 50324[U], *4 [Sup Ct, NY County 2005] [interpreting insurance policy that defines “property damage” to include “loss of use of tangible property which has not been physically injured or destroyed”]; 10A Steven Plitt et al., *Couch on Insurance* § 148:47 [3d ed, Nov. 2023 update] [discussing insurance policy that defines “property damage” to include “loss of use of tangible property which has not been physically injured or destroyed”]). “[L]osing a thing is conceptually different than losing the functional use of that thing for a period of time” (*Tapestry, Inc. v Factory Mut. Ins. Co.*, 482 Md 223, 244, 286 A3d 1044, 1056 [2022]; see also *Chief of Staff LLC v Hiscox Ins. Co. Inc.*, 532 F Supp 3d 598, 602 [ND Ill 2021]; *Santo’s*, 15 F4th at 402). To take a practical example, forgetting the password to unlock one’s phone is quite different than losing possession of it entirely because it has been stolen or inadvertently left somewhere. “This distinction is clear enough that had the parties intended the policy to cover a loss of use of property, they would have said so explicitly” (*Terry Black’s*, 22

F4th at 457-458). “Direct physical loss” thus requires more than loss of use; it requires an actual, complete dispossession.

Our reading is bolstered by other provisions in CRO’s policy. The “Time Element” provision provides coverage for “TIME ELEMENT loss, during the Period of Liability, directly resulting from direct physical loss or damage . . . to INSURED PROPERTY.” Thus, the insured must suffer direct physical loss that in turn causes “time element” (i.e., business interruption) losses. Reading “direct physical loss” to include loss of use is circular and fails to give distinct meaning to the two concepts (see *Tapestry*, 482 Md at 245, 286 A3d at 1056-1057; *Verveine Corp. v Strathmore Ins. Co.*, 489 Mass 534, 541, 184 NE3d 1266, 1274 [2022]). Additionally, the period of liability provision references the time for “repair[ing]” or “replac[ing]” buildings and equipment and restoring them to “the same or equivalent physical and operating conditions that existed immediately prior to such physical loss or damage,” and similarly, the time element coverage provision requires the insured to act with due diligence in “repairing or replacing physically damaged buildings and equipment.” The words “repair” and “replace” are fairly read to contemplate physical damage to or complete and persistent dispossession of the insured property, rather than loss of use of it. Thus, construing “direct physical loss or damage” to require physical damage or complete and persistent dispossession harmonizes the relevant provisions of the policy (accord *Uncork & Create LLC*, 27 F4th at 932 & n 9; *Sandy Point Dental, P.C. v Cincinnati Ins. Co.*, 20 F4th 327, 333 [7th Cir 2021]; *Oral Surgeons, P.C. v Cincinnati Ins. Co.*, 2 F4th 1141, 1144 [8th Cir 2021]; *Mudpie, Inc. v Travelers Cas. Ins. Co. of Am.*, 15 F4th 885, 892 [9th Cir 2021]; *Goodwill Indus. of Cent. Oklahoma, Inc. v Philadelphia Indem. Ins. Co.*, 21 F4th 704, 711 [10th Cir 2021]; *SA Palm Beach, LLC v Certain Underwriters at Lloyd’s London*, 32 F4th 1347, 1361-1362 [11th Cir 2022]; *Tapestry*, 482 Md at 244-246, 286 A3d at 1056-1057; see also *Newman Myers Kreines Gross Harris, P.C. v Great N. Ins. Co.*, 17 F Supp 3d 323, 332 [SD NY 2014] [“construing ‘direct physical loss or damage’ to require actual, physical damage to the insured premises gives effect to all provisions of the Policy”]).³

3. CRO notes that its policy lacks a “virus exclusion,” but that does not confer coverage. CRO also points out that its policy excludes certain invisible, noxious substances (e.g., microorganisms and contaminants), but “exclusion

(n. cont’d)

CRO invokes *Western Fire Ins. Co. v First Presbyt. Church* (165 Colo 34, 437 P2d 52 [1968]) and various subsequent cases which hold that loss of a premises' use due to infiltration of gasoline, fumes, or a similar substance constitutes "direct physical loss."⁴ The rationale of these decisions appears to be that total uninhabitability is akin to physical dispossession, and thus to "direct physical loss" (see e.g. *Western Fire*, 165 Colo at 38-40, 437 P2d at 55; *Sandy Point Dental*, 20 F4th at 334 ["the gas infiltration (in *Western Fire*) . . . was so severe that it led to complete dispossession—something easily characterized as a 'direct physical loss'"]; *Wilson*, 57 F4th at 142 [insured "must show that the functionalities of their properties were nearly eliminated or destroyed, that the structures were made useless or uninhabitable, or that there was an imminent risk of either of those things happening"]; cf. *Huntington*, 2022 VT 45, 287 A3d 515 [suggesting in dicta that deprivation of use is "direct physical loss," but resolving case based on allegations of "direct physical damage"]). In general, these cases have found coverage only where physical contamination is "persistent" and complete—i.e., contamination that "eliminate[s]" "the function of the building" (*Kim-Chee LLC v Philadelphia Indem. Ins. Co.*, 535 F Supp 3d 152, 160-161 [WD NY 2021], *affd* 2022 WL 258569, 2022 US App LEXIS 2655 [2d Cir, Jan. 28, 2022, 21-1082-cv]). Other decisions have reached the opposite result, though, holding that "direct physical loss or damage" requires a physical alteration, not just contamination to the point of uninhabitability (see *Uncork & Create*, 27 F4th at 932 & n 9; *accord* 10A Couch on Insurance § 148:46).

CRO cites several cases applying New York law, but upon close reading, they do not shed much light on this question.

clauses subtract from coverage rather than grant it" (*Raymond Corp. v National Union Fire Ins. Co. of Pittsburgh, Pa.*, 5 NY3d 157, 163 [2005] [emphasis omitted]).

4. Some of the decisions CRO cites for this proposition suggest there has been some element of physical damage to the property itself (see e.g. *Essex Ins. Co. v BloomSouth Flooring Corp.*, 562 F3d 399, 404-405 [1st Cir 2009] ["the presence of a permeating odor" caused "physical injury to property"]; *Gregory Packaging, Inc. v Travelers Prop. Cas. Co. of Am.*, 2014 WL 6675934, *5, 2014 US Dist LEXIS 165232, *13-15 [D NJ Nov. 25, 2014, Civ. No. 2:12-CV-04418 (WHW) (CLW)] [relying on precedent involving physical damage]). Others provide insufficient factual detail to understand the basis for the court's conclusion (see e.g. *Farmers Ins. Co. of Or. v Trutanich*, 123 Or App 6, 10, 858 P2d 1332, 1335 [1993] ["pervasive odor" is "physical" because it "damaged" house]; *Sentinel Mgt. Co. v New Hampshire Ins. Co.*, 563 NW2d 296, 300-301 [Minn 1997] [asbestos contamination may result in "direct physical loss," even though buildings were not uninhabitable]).

Schlamm Stone held that the presence of post-9/11 noxious particles in the air and on surfaces constituted “property damage,” but that is “direct physical damage,” not “direct physical loss,” and the policy there explicitly defined “property damage” to include “loss of use of tangible property which has not been physically injured or destroyed” (2005 NY Slip Op 50324[U], *4). In *Port Auth.*, the Third Circuit reasoned that elimination of a property’s “function” or “utility” due to asbestos contamination could trigger coverage for “physical loss,” but offered no specific decisional support for its conclusion (*Port Auth. of N.Y. & N.J. v Affiliated FM Ins. Co.*, 311 F3d 226, 236 [3d Cir 2002]).

Because CRO has alleged neither persistent contamination nor total uninhabitability of its restaurants, we need not decide today whether such allegations could fairly be equated with actual material dispossession, and thus “direct physical loss” (*cf. Sandy Point*, 20 F4th at 334 [“This is not to say that no circumstances can exist under which a loss of use, unaccompanied by any physical alteration to property, might be so pervasive as effectively to qualify as a complete physical dispossession of property and thus a ‘direct physical loss.’ . . . We leave these questions for another day”]; *Santo’s*, 15 F4th at 405 [“Correctly decided or not, these cases (involving coverage for uninhabitable property) stand a significant step removed from today’s dispute. (Plaintiff) has not alleged that its property is unusable or uninhabitable”]).

Indeed, CRO’s complaint makes clear that neither of those conditions is met. Although the complaint alleges that the coronavirus rendered its restaurants “unusable” such that it had to “suspend[] or severely curtail[] [its] operations” and “limit[] [its] on-premises dining and operations,” it does not allege a complete shutdown—for example, that its employees could not enter the restaurants or that they could not provide take-out and delivery services. And while CRO alleges that it was “forced to close 30 restaurants,” nowhere does it allege that those closures were because the properties themselves were contaminated to the point of uninhabitability, as opposed to prudent economic decisions in light of lost “foot-traffic.” Even if we were to generously construe the complaint to allege that the presence of the coronavirus prompted various remediation efforts (e.g. adding physical partitions at its restaurants, increasing the distance between tables, and implementing stringent cleaning procedures), as does the proposed amended complaint, that would not yield a different result. These ef-

forts, even if useful to facilitate in-person dining, do not establish that the restaurants were completely uninhabitable until property was repaired or replaced (see *Starr Surplus Lines*, — Nev at —, 535 P3d at 265 [“social-distancing, plexiglass installation, sanitizing mechanisms, and regular cleaning . . . do not aim to ‘repair, rebuild, or replace’ the property; they aim to redress the way people pose harm to one another by carrying and transmitting the virus at the property” (brackets omitted)]). Nor does CRO allege a permanent impact; its complaint alleges only that the coronavirus “can survive on surfaces for days and even weeks.” These allegations do not amount to persistent and complete uninhabitability.

Our reading of the phrase “direct physical loss or damage” is consistent with that applied by federal courts in COVID-19 insurance coverage cases governed by New York law (see e.g. *10012 Holdings, Inc. v Sentinel Ins. Co., Ltd.*, 21 F4th 216, 221 [2d Cir 2021] [noting that court had identified no “contrary authority in New York that diverges from the holding in (*Roundabout*), which state and federal courts in New York have (at either the motion to dismiss stage or on summary judgment) uniformly applied since the start of the COVID-19 pandemic to deny coverage under similar insurance provisions where the insured property itself was not alleged or shown to have suffered direct physical loss or physical damage”]; *Kim-Chee*, 2022 WL 258569, *2, 2022 US App LEXIS 2655, *4-5; *Northwell Health*, 550 F Supp 3d at 117).

Our conclusion also accords with the views of other jurisdictions across the country, notwithstanding variation in their precise understandings of the term “direct physical loss or damage.” To our knowledge, in cases that allege loss of use due to COVID-19-related government shutdown orders, no appellate court has allowed an insurance coverage claim under similar policy terms to proceed past a motion to dismiss. And the outcomes have been no different where the alleged loss of use was due to the presence of the coronavirus on insured property (see e.g. *Colectivo Coffee Roasters, Inc. v Society Ins.*, 401 Wis 2d 660, 974 NW2d 442 [2022]; *Verveine Corp. v Strathmore Ins. Co.*, 489 Mass 534, 184 NE3d 1266 [2022]; *Indiana Repertory Theatre v Cincinnati Cas. Co.*, 180 NE3d 403 [Ind Ct App 2022]; *Tapestry, Inc. v Factory Mutual Ins. Co.*, 482 Md 223, 286 A3d 1044 [2022]; *Schleicher & Stebbins Hotels, LLC v Starr Surplus Lines Ins. Co.*, 175 NH 744, 302 A3d 67 [2023]; *Starr Surplus Lines Ins. Co. v Eighth Jud. Dist. Ct. in & for County of Clark*,

— Nev —, 535 P3d 254 [2023]; *Neuro-Communication Servs., Inc. v Cincinnati Ins. Co.*, 171 Ohio St 3d 606, 219 NE3d 907 [2022]; *Legal Sea Foods, LLC v Strathmore Ins. Co.*, 36 F4th 29 [1st Cir 2022]; *Wilson v USI Ins. Serv. LLC*, 57 F4th 131 [3d Cir 2023]; *Uncork & Create LLC v Cincinnati Ins. Co.*, 27 F4th 926 [4th Cir 2022]; *Bridal Expressions LLC v Owners Ins. Co.*, 2021 WL 5575753, 2021 US App LEXIS 35676 [6th Cir, Nov. 30, 2021, Case No. 21-3381]; *Sandy Point Dental, P.C. v Cincinnati Ins. Co.*, 20 F4th 327 [7th Cir 2021]; *Olmsted Med. Ctr. v Continental Cas. Co.*, 65 F4th 1005 [8th Cir 2023]; *Circus Circus LV, LP v AIG Specialty Ins. Co.*, 2022 WL 1125663, 2022 US App LEXIS 10298 [9th Cir, Apr. 15, 2022, No. 21-15367]; *Sagome, Inc. v Cincinnati Ins. Co.*, 56 F4th 931 [10th Cir 2023]; *SA Palm Beach, LLC v Certain Underwriters at Lloyd’s London*, 32 F4th 1347 [11th Cir 2022]; cf. *Huntington Ingalls Indus., Inc. v Ace Am. Ins. Co.*, 2022 VT 45, 287 A3d 515 [2022] [resolving appeal on theory of “direct physical damage” and thus not reaching question of whether complaint alleged “direct physical loss”]).

B.

CRO next argues that even if “direct physical loss or damage” requires a physical alteration of property, it has sufficiently alleged that. We disagree. The complaint contains minimal allegations about the presence of the coronavirus in CRO’s restaurants. While the complaint offers some details about how an infectious virus is transmitted from surfaces to humans, it alleges nothing specific about how the presence of the coronavirus might affect the physical integrity of structures or property. The complaint states that “droplets carrying the virus . . . are physical objects that attach to and cause harm to property,” and that the coronavirus “is resilient and can survive on surfaces for days and even weeks.” Without elaboration, CRO further alleges that “[t]he virus thus compromises the physical integrity of the structures it permeates and poses an imminent risk of physical damage to all other structures.” But CRO does not allege there was any need to repair or replace insured property; only business interruption losses are identified. Other allegations in the complaint concern the risk that the coronavirus poses to humans, not property. And even as to whether the coronavirus was actually present in its restaurants, CRO offered contradictory allegations, stating in its complaint that “the virus might not be actually present at

the Restaurants.” Even generously construed to allege that various surfaces in the restaurants became vectors for transmission of the coronavirus, CRO “fails to identify . . . a single item that it had to replace, anything that changed, or that was actually damaged at any of its properties” (205 AD3d at 86). As the Appellate Division found, “[n]othing stopped working” (*id.*). And the allegations themselves confirm that the presence of the coronavirus was temporary.

Our conclusion is in line with *Northwell Health*, which similarly involved allegations that virus droplets stay on surfaces, compromise the physical integrity of the structures they permeate, and render them unusable (550 F Supp 3d at 117). Those allegations, the court held, did not support the conclusion “that the coronavirus compromises the physical integrity of objects by harming surfaces and structures, as opposed to harming the people who touch them” and thus failed to state a claim (*id.*). Countless decisions across the country have likewise dismissed similar property insurance claims involving allegations that the presence of the coronavirus damaged insured property (see e.g. *Kim-Chee LLC v Philadelphia Indem. Ins. Co.*, 535 F Supp 3d 152, 161 [WD NY 2021], *affd* 2022 WL 258569, 2022 US App LEXIS 2655 [2d Cir, Jan. 28, 2022, 21-1082-cv]; *Jeffrey M. Dressel, D.D.S., P.C. v Hartford Ins. Co. of the Midwest, Inc.*, 2021 WL 1091711, 2021 US Dist LEXIS 54067 [ED NY, Mar. 22, 2021, 20-CV-2777 (KAM) (VMS)]; *Verveine Corp. v Strathmore Ins. Co.*, 489 Mass 534, 184 NE3d 1266 [2022]; *Tapestry, Inc. v Factory Mutual Ins. Co.* 482 Md 223, 286 A3d 1044 [2022]; *Bridal Expressions LLC v Owners Ins. Co.*, 2021 WL 5575753, 2021 US App LEXIS 35676 [6th Cir, Nov. 30, 2021, Case No. 21-3381]; *SA Palm Beach, LLC v Certain Underwriters at Lloyd’s London*, 32 F4th 1347 [11th Cir 2022]).

Indeed, CRO has not identified, nor have we discovered, any state or federal decision that has found coverage for COVID-19-related business interruption under a policy similar to CRO’s (see e.g. *Oregon Clinic, PC v Fireman’s Fund Ins. Co.*, 75 F4th 1064, 1071 [9th Cir 2023] [noting that dismissal of a COVID-19 coverage claim for failure to adequately allege physical alteration is “consistent with the conclusion reached in more than 800 cases nationwide, including decisions from the federal courts of appeal and state supreme courts”]), and it appears that just one state high court—and no Federal Circuit—has allowed such a claim to proceed past a motion to dismiss (see *Huntington*, 2022 VT 45, 287 A3d 515). We agree with the weight of authority nationwide.

Because we conclude that CRO did not sufficiently allege “direct physical loss or damage,” we do not reach the question of whether the exclusions in the policy apply.

* * *

We do not take lightly the severe economic losses incurred by restaurants and other businesses serving the public as a result of the COVID-19 pandemic. But our task is to faithfully interpret the terms of the insurance policy before us, not to “rewrite the language of the polic[y] at issue” to reach a result with “equitable appeal” (*Fieldston Prop. Owners Assn., Inc. v Hermitage Ins. Co., Inc.*, 16 NY3d 257, 265 [2011]). The coverage provisions relied upon by CRO only cover economic losses to the extent they are caused by “direct physical loss or damage” to insured property. We conclude that the business interruption caused by the actual presence of the coronavirus on the premises of CRO’s insured property, as alleged in the complaint, is insufficient to trigger such coverage.

Accordingly, the order of the Appellate Division insofar as appealed from should be affirmed, with costs.

Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and CONNOLLY* concur. Chief Judge WILSON took no part.

Ordered insofar as appealed from affirmed, with costs.

* Designated pursuant to NY Constitution, article VI, § 2.

[235 NE3d 343, 211 NYS3d 811]

THE PEOPLE OF THE STATE OF NEW YORK ex rel. DOUGLAS G. RANKIN, on Behalf of TYRONE WALLER, Respondent, v CYNTHIA BRANN, Commissioner, New York City Department of Correction, Appellant.

Argued January 9, 2024; decided February 20, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Appellate Division of the Supreme Court in the Second Judicial Department, entered January 11, 2022, in a proceeding pursuant to CPLR article 70. The Appellate Division (1) sustained the writ of habeas corpus to the extent of remitting the matter to the Supreme Court, Queens County, to conduct an evidentiary hearing pursuant to CPL 530.60 (2) (c); and (2) otherwise dismissed the writ.

People ex rel. Rankin v Brann, 201 AD3d 675, reversed.

HEADNOTES

Appeal — Academic and Moot Questions — Exception to Mootness Doctrine — Modification of Securing Order

1. The appeal from the Appellate Division's judgment sustaining defendant's writ of habeas corpus to the extent of remitting the case to Supreme Court to conduct a CPL 530.60 (2) (c) evidentiary hearing on the modification of defendant's securing order was rendered moot by Supreme Court's order remanding defendant in accordance with the procedures in CPL 530.60 (2) (c). Although defendant was no longer entitled to habeas relief, the mootness exception applied as the issue of the procedures governing modifications to securing orders when a defendant is charged with additional class A or violent felonies while at liberty was novel, likely to recur and would typically evade review. Accordingly, the proceeding was converted to a declaratory judgment action to resolve the open issue.

Bail — Revocation — Commission of Felonies while at Liberty — Procedure for Modification of Securing Order

2. Where a defendant is initially charged with a qualifying felony offense, released on bail, and subsequently accused of committing additional violent felonies, the securing order may be modified by means of the provisions of either CPL 530.60 (1) or (2) (a). If a defendant's charged crimes render a case otherwise eligible under either subdivision, no one approach is exclusive—nothing in subdivision (2) (a) limits the court's ability to modify a defendant's bail under subdivision (1). The People may make a modification application, or the court on its own initiative may order such a modification, under either subdivision, but the record must support the course charted. Where the court proceeds under CPL 530.60 (1), the record must reflect that the decision was based on the risk of flight factors and criteria expressly listed in the CPL (*see*

CPL former 510.30 [1] [a]-[h], now 510.10 [1] [a]-[j]). Where, as here, the record does not demonstrate that the court's decision was based on defendant's increased risk of flight, it will be assumed that the court proceeded pursuant to CPL 530.60 (2) (a) and a failure to follow the procedural requirements of CPL 530.60 (2) (c) will be considered error.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review § 558; AM JUR 2d Bail and Recognizance §§ 42, 121.

CARMODY-WAIT 2d Bail and Recognizance §§ 180:83, 180:84; CARMODY-WAIT 2d Appeals in Criminal Cases § 207:132.

McKINNEY'S, CPL 530.60 (1), (2) (a), (c).

NY JUR 2d Criminal Law: Procedure §§ 1499–1501, 3683.

ANNOTATION REFERENCE

See ALR Index under Bail and Recognizance; Moot and Abstract Matters.

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POINTS OF COUNSEL

Melinda Katz, District Attorney, Kew Gardens (*Danielle M. O'Boyle*, *John M. Castellano* and *Johnnette Traill* of counsel), for appellant. The lower court properly revoked defendant's bail pursuant to CPL 530.60 (1) based upon a showing of good cause that remand was the least restrictive means to ensure defendant's return to court. (*People v Saulnier*, 129 Misc 2d 151; *People v McDonnell*, 177 Misc 2d 610; *People ex rel. Parker v Hasenauer*, 62 NY2d 777; *People v Torres*, 112 Misc 2d 145; *State of New York ex rel. Rooney v Brann*, 68 Misc 3d 679; *People ex rel. Ortiz v Commissioner of Corr. of City of N.Y.*, 76 AD2d 818; *People v Bailey*, 118 Misc 2d 860; *People v Fuhrtz*, 74 Misc 3d 831; *People v Knight*, 67 Misc 3d 247; *People v Jackman*, 69 Misc 3d 180.)

Twyla Carter, The Legal Aid Society, New York City (*Arielle Reid* of counsel), for respondent. As determined by the Appellate Division, where the “plain, unambiguous language” of CPL 530.60 (2) (a) applied to the prosecution's application to revoke Tyrone Waller's bail, he was entitled to the hearing prescribed

by CPL 530.60 (2) (c) (US Const Amends VIII, XIV; NY Const, art I, § 5; CPL 530.60 [2] [a]). (*People ex rel. Ryan v Warden, N.Y. City House of Detention*, 113 AD2d 116; *People v Bailey*, 118 Misc 2d 860; *People v LaFontaine*, 92 NY2d 470; *People v Garcia*, 67 Misc 3d 511; *People v Turriago*, 90 NY2d 77; *Commonwealth of the N. Mariana Is. v Canadian Imperial Bank of Commerce*, 21 NY3d 55; *People v Iverson*, 37 NY3d 98; *People v Torres*, 112 Misc 2d 145; *Zaldin v Concord Hotel*, 48 NY2d 107; *People v Saulnier*, 129 Misc 2d 151.)

District Attorneys Association of the State of New York, Albany (John Flynn, Alvin L. Bragg, Jr., Steven C. Wu, Grace Vee and Philip V. Tisne of counsel), for District Attorneys Association of the State of New York, amicus curiae. I. CPL 530.60 provides parallel but distinct procedures to revoke a securing order. (*People v Torres*, 112 Misc 2d 145; *People v Garcia*, 67 Misc 3d 511; *People v Fuhrtz*, 74 Misc 3d 831.) II. The revocation procedures in CPL 530.60 are sometimes exclusive but can also overlap, including in this case. (*People ex rel. Ryan v Warden, N.Y. City House of Detention*, 113 AD2d 116; *People v McCullough*, 174 Misc 2d 418.) III. The legislature's provision of overlapping procedures in CPL 530.60 does not make either procedure meaningless.

OPINION OF THE COURT

GARCIA, J.

While out on bail after his arrest for a felony, defendant was arrested three times for additional violent felonies. The court modified his securing order by remanding defendant. This appeal concerns the overlap between statutory provisions governing modifications to securing orders under these circumstances. We now hold that, where otherwise applicable, courts may modify a securing order when a defendant is charged with additional class A or violent felonies pursuant to either CPL 530.60 (1) or (2) (a), but that, where the court proceeds under CPL 530.60 (1), the record must reflect that the decision was based on the risk of flight factors and criteria in CPL 510.30. Where, as here, the record does not demonstrate that the court's decision was based on defendant's increased risk of flight, it will be assumed that the court proceeded pursuant to CPL 530.60 (2) (a) and a failure to follow the procedural requirements of CPL 530.60 (2) (c) will be considered error. Accordingly, because affirmative habeas relief is no longer appropriate, we reverse the judgment, modify the Appellate Divi-

sion order to convert the proceeding to a declaratory judgment action, and grant judgment in accordance with this opinion.

I.

Title P of the CPL instructs courts on pretrial management of defendants.¹ Under CPL 510.10 (1), the court must issue a securing order for a defendant “whose future court attendance at a criminal action or proceeding is or may be required.” At the time of the proceedings relevant to this appeal, a court was required, in doing so, to “impose the least restrictive kind and degree of control or restriction that is necessary to secure the principal’s return to court when required” (CPL 510.30 [1]).² Courts are required to consider available “information about the principal that is relevant to the principal’s return to court, including” the principal’s “activities and history,” “the charges facing the principal,” any prior criminal conviction, any prior adjudication as a juvenile delinquent, any previous record of flight to avoid prosecution, individual financial circumstances if monetary bail is authorized and, for certain charged crimes, any violations of orders of protection or the use of a firearm (CPL 510.30 [1] [a]-[i]).³

Modification of securing orders is governed by CPL 530.60. Subdivision (1), which has been part of the CPL since its enactment in 1970, provides that when a defendant is released pursuant to a securing order, on whatever terms, the court may, when necessary, review the order—on the People’s motion or its own initiative—and, “for good cause shown, may revoke the order of recognizance, release under non-monetary conditions, or bail” (CPL 530.60 [1]). Where “the defendant is entitled to recognizance, release under non-monetary conditions, or bail as a matter of right, the court must issue another such order” and so cannot remand the defendant; otherwise, “the court may either issue such an order or commit the defendant to the custody of the sheriff in accordance with this section” (*id.*). When issuing a new securing order pursuant to subdivision (1),

1. While the statute has been amended since the relevant proceedings took place, we refer here to the statutory provisions in place at that time unless otherwise indicated.

2. The statute currently requires a court to “consider the kind and degree of control or restriction necessary to reasonably assure the principal’s return to court, and select a securing order consistent with its determination” (current CPL 510.10 [1]; see L 2023, ch 56, § 1, part VV, § 1, subpart A, § 2).

3. These factors are, as of the date of this opinion, now set forth in CPL 510.10 (L 2022, ch 56, § 1, part UU, § 1, subpart C, § 1).

the court must consider factors pertinent to the defendant's risk of flight.

In 1981, the legislature added subdivision (2) (a) to CPL 530.60, providing that when "a defendant charged with the commission of a felony is at liberty . . . it shall be grounds for revoking [a securing] order that the court finds reasonable cause to believe the defendant committed one or more specified class A or violent felony offenses or intimidated a victim or witness . . . while at liberty." This subdivision, enacted following debates regarding preventive detention, "represents a cautious, self-limiting compromise" based on a defendant's alleged commission of certain additional felonies "even if there is no reasonable correlation between the fact of the new arrest and the criteria of [former] CPL 510.30, even if it does not appreciably change the court's view of the likelihood of future appearance, and even if it does not, for any other reason, constitute 'good cause' for revocation" (*People v Torres*, 112 Misc 2d 145, 151-152 [Sup Ct, NY County 1981]). Supporters of the bill explained that "[t]he safety of the community requires that if released defendants continue to commit crimes while awaiting trial, the courts should have the option of determining that they have forfeited their opportunity for release and should be remanded" (Mem of Dist Atty, NY County, Bill Jacket, L 1981, ch 788).

Procedural and evidentiary requirements were added at the same time, which mandate that "[b]efore revoking an order of recognizance, release under non-monetary conditions, or bail pursuant to this subdivision, the court must hold a hearing and shall receive any relevant, admissible evidence not legally privileged[, t]he defendant may cross-examine witnesses and may present relevant, admissible evidence on his own behalf," and a "transcript of testimony taken before the grand jury upon presentation of the subsequent offense shall be admissible as evidence" (CPL former 530.60 [2] [a], now [c]). These new requirements were meant to ensure that "[t]he statute, while explicitly permitting judges to act to protect the safety of the community, will thus also serve to protect the due process rights of the accused" (Mem of Dist Atty, NY County, Bill Jacket, L 1981, ch 788). Subject to these procedural safeguards, subdivision (2) provided courts with a separate avenue for detaining certain defendants initially facing a felony charge who committed class A or violent felonies while released on a securing order (*see Torres*, 112 Misc 2d at 152 [as a result of the enactment of this provision, rearrest could now "automati-

cally trigger the discretionary power to revoke bail or parole,” but because that new authority “mark(ed) a departure from traditional practice and because it (wa)s so potentially subject to abuse, it was expressly limited to only those cases where one already charged with a serious crime is rearrested for another”]).

In 2019, the legislature enacted comprehensive bail reform legislation, which in large part eliminated cash bail and specified a set of crimes for which such bail may be set (L 2019, ch 59, § 1, part JJJ, § 2; *see* CPL 510.10 [4]; 530.20 [1] [b]). For all other crimes, the defendant “shall” be released pending trial on defendant’s own recognizance “unless the court finds on the record or in writing that release on the principal’s own recognizance will not reasonably assure the principal’s return to court,” in which case the defendant shall be released under non-monetary conditions (CPL 510.10 [3]; *see People v Portoreal*, 66 Misc 3d 497, 501 [Sup Ct, Bronx County 2019]). Subdivision (2) (b) was added to CPL 530.60, providing “a revocation mechanism for chronically absent defendants, defendants who intimidate or tamper with witnesses or violate orders of protection, and chronic felons” (*People v Fuhrtz*, 74 Misc 3d 831, 835 [Sup Ct, NY County 2022]; *see* L 2019, ch 59, § 1, part JJJ, § 20). The enhanced procedural requirements also apply to modifications made under subdivision (2) (b) (CPL 530.60 [2] [c]). Amendments to subdivision (1) were largely nonsubstantive, with the most significant change being the addition of express language providing that a securing order may come under review either “due to a motion by the people or otherwise” (*see* L 2019, ch 59, § 1, part JJJ, § 20).

II.

We now turn to the application of that statutory framework in this case. Defendant was arrested in September 2020 and charged with several felony and misdemeanor offenses, including second-degree criminal possession of a weapon, a class C felony and a qualifying offense (*see* Penal Law § 265.03; CPL 510.10 [4]). The court set bail and defendant was released the next day. Over the course of the next several months, defendant was arrested three times for additional violent felony offenses.

The People sought revocation of defendant’s bail on the initial indictment and, proceeding under CPL 530.60 (1), asserted that remand was appropriate on the grounds that defendant

had allegedly committed additional felonies. Defense counsel argued that the court needed to conduct an evidentiary hearing as required by CPL 530.60 (2) (c). The court rejected defense counsel's request, determined that CPL 530.60 (1) applied, listed defendant's "activities and history," "prior contacts," "criminal record" of misdemeanors, and parole violation, held that "the least restrictive means to ensure the defendant's return to court . . . is remand," and cited the additional indictment as "good cause for the application here."

[1] Defendant's counsel then commenced this habeas proceeding before the Appellate Division seeking defendant's release. That Court granted the writ to the extent of remitting the case to Supreme Court to conduct a CPL 530.60 (2) (c) evidentiary hearing and otherwise dismissed the writ (201 AD3d 675 [2d Dept 2022]). The Court explained that "where the sole basis for modification of the securing order is the principal's subsequent arrests and alleged commission of subsequent crimes, . . . the Supreme Court should have considered the People's application under CPL 530.60 (2) (a) and held the hearing required by CPL 530.60 (2) (c)" (*id.* at 678). Following this ruling, the People submitted transcripts of the grand jury testimony from one of the subsequent violent felony arrests pursuant to CPL 530.60 (2) (c) and the court continued defendant's remand. Defendant went to trial on the initial indictment and was convicted of several counts of criminal possession of a weapon.⁴

III.

[2] We agree with the Appellate Division that a court modifying a defendant's securing order on the sole basis that he was arrested and accused of committing subsequent specified or violent felonies must follow the CPL 530.60 (2) (c) procedures and make the required reasonable cause determination. But CPL 530.60 (2) (a) is not the only available mechanism for revoking a defendant's bail. Where a defendant is initially charged with a qualifying felony offense, released on bail, and

4. The court's order remanding defendant in accordance with the procedures in CPL 530.60 (2) (c) rendered this appeal moot. The parties agree that defendant is no longer entitled to habeas relief. Because this appeal involves a novel issue that is likely to recur and will typically evade our review, however, we convert the proceeding to a declaratory judgment action and apply the mootness exception to resolve this open issue (*see People ex rel. McManus v Horn*, 18 NY3d 660, 664 & n 2 [2012]).

subsequently accused of committing additional violent felonies, the securing order may be modified by means of the provisions of either CPL 530.60 (1) or (2) (a). If a defendant's charged crimes render a case otherwise eligible under either subdivision, no one approach is exclusive—nothing in subdivision (2) (a) limits the court's ability to modify a defendant's bail under subdivision (1).⁵ The People may make a modification application, or the court on its own initiative may order such a modification, under either subdivision. Both avenues are available, but the record must support the course charted.

Under subdivision (1), a court may hold a summary hearing and consider the relevant factors to assess defendant's risk of flight and how the alleged additional crimes, now considered along with the factors underlying the initial determination, have changed the court's assessment of the "kind and degree of control or restriction that is necessary to secure the principal's return to court" (CPL 510.30 [1]). The record must reflect consideration of the factors expressly listed in the CPL as well as "available information . . . relevant to the principal's return to court," and a determination of how the risk factors apply to defendant's case (*see* CPL former 510.30 [1] [a]-[h], now 510.10 [1] [a]-[j]).

It is important in this context to note that a court may consider circumstances beyond those factors delineated in the statute if relevant to risk of flight. Before the 2019 amendments, former CPL 510.30 limited a court's consideration of defendant's risk of flight to only those subjects listed in the statute. The 2019 amendments altered the statute to provide expansive language, adding that the court must consider and take into account available "information about the principal that is relevant to the principal's return to court," added the word "including" before the list of factors, and removed express mention of the following factors: "[t]he principal's character, reputation, habits and mental condition," "employment and financial resources," "family ties and the length of his residence if any in the community," "the weight of the evidence against him . . . and any other factor indicating probability or improbability of conviction," and "the sentence which may be or has been imposed upon conviction" (L 2019, ch 59, § 1, part JJJ, § 5; *see* former CPL 510.30 [2] [a] [i]-[ix]). The additional

5. By contrast, CPL 530.60 (2) (b) applies to a defendant's conduct while at liberty under a securing order "[e]xcept as provided in" CPL 530.60 (2) (a).

element now requiring courts to consider “the charges facing the principal” may encompass some of the same considerations as the omitted factors, such as the potential sentence facing defendant (*see* former CPL 510.30 [1] [b]). In any event, where relevant to a defendant’s likelihood of returning to court, the court may now consider the previously listed factors as part of “available information . . . relevant to the principal’s return to court” (*see e.g. Portoreal*, 66 Misc 3d at 505-508 [(V)iewing the statute as a whole and with a view toward realizing its central purpose of reducing unnecessary pretrial incarceration, the list of bail factors set out in (CPL 510.30 [1]) is *not* exclusive, and . . . the court remains free to consider *all* information relevant to assuring defendant’s return to court”]).

Using this broad array of available information to assess a defendant’s likelihood of returning to court, a judge may decide to modify a defendant’s bail after the alleged commission of additional eligible felonies. Where a court comes to that conclusion, it must make clear on the record that its decision is based on consideration of these factors as applied to the defendant’s circumstances, and not on the mere allegation that the defendant committed additional felonies (*see e.g. People v McCullough*, 174 Misc 2d 418, 420 [Sup Ct, Monroe County 1997] [while “the facts that affect a subdivision (1) predicate may include a subdivision (2) (a) situation, . . . an alteration of bail status under subdivision (1) cannot be based exclusively upon an allegation that the defendant’s second offense was a violent felony per subdivision (2) (a)”]).

A court also has the option to proceed under subdivision (2) (a) and consider whether, after receiving evidence in compliance with the subdivision (2) (c) procedural safeguards, there is reasonable cause to believe the additional crimes have been committed such that defendant poses a danger to the community requiring remand. This provision serves to provide the court with information relevant to the reasonable cause determination, and the risk of flight factors have no relevance here. Where a court modifies a securing order on that reasonable cause finding, and so determines that a defendant poses a danger to the community, the court must ensure that the procedural requirements of subdivision (2) (c) are followed (*see e.g. People ex rel. Ryan v Warden, N.Y. City House of Detention*, 113 AD2d 116, 117 [1st Dept 1985] [subdivision (2) (c) hearing required where “(p)etitioner’s remand without bail was, concededly, based solely upon his arrest for a new charge as provided

for in CPL 530.60 (2) (a) and not on any finding that there was a likelihood he might not return to court (under) CPL 530.60 (1)”). These prerequisites—a hearing with relevant, admissible evidence and the cross-examination of witnesses, or the submission of grand jury testimony transcripts—are designed to provide the court with a basis for a reasonable cause determination and to ensure that a defendant receives due process. While the procedural prerequisites provide for a more formal hearing with witness testimony, they also provide the People with the option, as they did upon remittal here, to submit transcripts of grand jury testimony—a streamlined approach that may provide the support needed for a reasonable cause finding.

Courts accordingly may modify a defendant’s securing order, where otherwise eligible, under either subdivision (1), after examining the risk of flight factors, or under subdivision (2) (a), after assessing whether there is reasonable cause to believe defendant committed the additional offense. Nor is the court bound by the grounds asserted in the People’s application. However where, as here, the record does not sufficiently demonstrate that the modification is based on factors informing the defendant’s likelihood of returning to court, the determination will be presumed to rest upon the fact of the subsequent arrest and the danger defendant poses to the community, and failure to follow the procedural requirements of subdivision (2) (c) will be considered error.

Accordingly, the judgment of the Appellate Division should be reversed, without costs, the habeas corpus proceeding converted into a declaratory judgment action, and judgment granted in accordance with this opinion.

Chief Judge WILSON and Judges RIVERA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Judgment reversed, without costs, habeas corpus proceeding converted into a declaratory judgment action, and judgment granted in accordance with the opinion herein.

[235 NE3d 351, 211 NYS3d 819]

NAFEESA SYEED, Appellant, v BLOOMBERG L.P., Respondent.

Argued February 14, 2024; decided March 14, 2024

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.27, to review a question certified to the New York State Court of Appeals by the United States Court of Appeals for the Second Circuit. The following question was certified by the United States Court of Appeals and accepted by the New York State Court of Appeals: “Whether a nonresident plaintiff not yet employed in New York City or State satisfies the impact requirement of the New York City Human Rights Law or the New York State Human Rights Law if the plaintiff pleads and later proves that an employer deprived the plaintiff of a New York City- or State-based job opportunity on discriminatory grounds.”

HEADNOTE**Civil Rights — Discrimination in Employment — Personal Impact in New York State or City — Nonresident Deprived of New York State- or City-Based Job Opportunity**

The New York City and New York State Human Rights Laws each protect nonresidents who are not yet employed in the city or state but who proactively sought an actual city- or state-based job opportunity. The Human Rights Laws, which cover “inhabitants” and “individual[s] within this state,” are required to be construed liberally to accomplish the remedial purposes that they serve (Executive Law §§ 290 [3]; 300; Administrative Code of City of NY §§ 8-101, 8-130 [a]). With respect to nonresidents, not all are excluded from the protection of the Human Rights Laws; rather, nonresidents seeking to assert claims under the State and City Human Rights Laws must satisfy an “impact” test in one of two ways: either working in New York or establishing that the challenged conduct had some impact on the plaintiff within the respective New York geographic boundaries. A nonresident who has been discriminatorily denied a job in New York City or State loses the chance to work, and perhaps live, within those geographic areas. The prospective employee personally feels the impact of a discriminatory refusal to promote or hire in New York City or State, because that is where the person wished to work and perhaps relocate and where they were denied the chance to do so.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Job Discrimination §§ 38, 41, 106.
McKINNEY’S, Executive Law §§ 290 (3); 300.

NY JUR 2d Civil Rights §§ 4, 8, 9, 12, 13, 32, 33, 39.

ANNOTATION REFERENCE

See ALR Index under Civil Rights and Discrimination;
Equal Employment Opportunity.

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tive applicant

POINTS OF COUNSEL

Law Office of Niall MacGiollabhui, New York City (*Niall MacGiollabhui* of counsel), for appellant. I. The terms, conditions or extent of a plaintiff's employment are impacted in New York by a discriminatory refusal to hire or promote the plaintiff into a New York position. (*Chau v Donovan*, 357 F Supp 3d 276; *Kraiem v JonesTrading Institutional Servs. LLC*, 492 F Supp 3d 184; *Hardwick v Auriemma*, 116 AD3d 465.) II. The liberal construction required by the New York City Human Rights Law mandates a broad interpretation of the impact requirement. (*Williams v New York City Hous. Auth.*, 61 AD3d 62; *Albunio v City of New York*, 16 NY3d 472.)

Proskauer Rose LLP, New York City (*Elise M. Bloom*, *Rachel S. Pillion* and *Allison L. Martin* of counsel) and Boston, Massachusetts (*Mark W. Batten*, admitted pro hac vice, of counsel), for respondent. I. *Hoffman v Parade Publs.* (15 NY3d 285 [2010]) precludes Nafeesa Syeed's claims. (*Jarusauskaite v Almod Diamonds, Ltd.*, 198 AD3d 458; *Shah v Wilco Sys., Inc.*, 27 AD3d 169; *Kraiem v JonesTrading Institutional Servs. LLC*, 492 F Supp 3d 184.) II. *Hoffman v Parade Publs.* (15 NY3d 285 [2010]) was correctly decided and remains the correct interpretation of the New York City Human Rights Law and New York State Human Rights Law. (*Palladino v CNY Centro, Inc.*, 23 NY3d 140; *People v Hobson*, 39 NY2d 479; *Matter of State Farm Mut. Auto. Ins. Co. v Fitzgerald*, 25 NY3d 799; *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577; *Goshen v Mutual Life Ins. Co. of N.Y.*, 286 AD2d 229, 98 NY2d 314; *Great N. Ins. Co. v Interior Constr. Corp.*, 7 NY3d 412; *Desrosiers v Perry Ellis Menswear, LLC*, 30 NY3d 488; *Matter of Knight-Ridder Broadcasting v Greenberg*, 70 NY2d 151; *Hammelburger v Foursome Inn Corp.*, 54 NY2d 580; *Makinen v City of New York*, 30 NY3d 81.)

Letitia James, Attorney General, New York City (*Cleland B. Welton II, Barbara D. Underwood* and *Judith N. Vale* of counsel), and *Sylvia Hines-Radix, Corporation Counsel*, New York City (*Claude S. Platten* and *Amanda A. Abata* of counsel), for State of New York and another, amici curiae. Unlawful discrimination has an impact in New York when it affects a New York-based employment opportunity. (*Reiter v Sonotone Corp.*, 442 US 330; *National Pork Producers Council v Ross*, 598 US 356; *Knapp v Hughes*, 19 NY3d 672; *Matter of Obregon*, 91 NY2d 591; *Commonwealth of the N. Mariana Is. v Canadian Imperial Bank of Commerce*, 21 NY3d 55; *Global Reins. Corp.-U.S. Branch v Equitas Ltd.*, 18 NY3d 722; *Goshen v Mutual Life Ins. Co. of N.Y.*, 286 AD2d 229, 98 NY2d 314; *Matter of Cahill v Rosa*, 89 NY2d 14; *Lubonty v U.S. Bank N.A.*, 34 NY3d 250; *Matter of Walston & Co. v New York City Commn. on Human Rights*, 41 AD2d 238.)

Anti-Discrimination Center, Inc., New York City (*Craig Gurian* of counsel), and *Shehan Legal, PLLC*, New York City (*Kevin J. Shehan* of counsel), for Anti-Discrimination Center, Inc. and another, amici curiae. I. *Hoffman v Parade Pubs.* (15 NY3d 285 [2010]) neither contemplated nor decided the certified question before this Court. II. *Hoffman v Parade Pubs.* (15 NY3d 285 [2010]) failed to examine multiple elements of relevant statutory language and failed to engage altogether in the required liberal construction analysis. (*Chauca v Abraham*, 30 NY3d 325.) III. Respondent's contention that the New York City Council implicitly ratified *Hoffman v Parade Pubs.* (15 NY3d 285 [2010]) by failing to overrule it specifically has been rejected; the obligation to revise noncompliant legal doctrine is ongoing. (*Desrosiers v Perry Ellis Menswear, LLC*, 30 NY3d 488; *McGrath v Toys "R" Us, Inc.*, 3 NY3d 421.) IV. Prospective employment of nonresidents in New York City is well within the zone of interests that the New York City Human Rights Law seeks to protect. (*Makinen v City of New York*, 30 NY3d 81; *Pakniat v Moor*, 192 AD3d 596, 37 NY3d 917; *Goshen v Mutual Life Ins. Co. of N.Y.*, 286 AD2d 229, 98 NY2d 314.) V. Even if the Court were to impose an "impact in New York City" requirement for hiring and promotion claims for jobs based in New York City, nonresidents would meet that test. VI. Prospective employment of nonresidents in New York State is well within the zone of interests that the New York State Human Rights Law seeks to protect.

OPINION OF THE COURT

SINGAS, J.

The New York City Council and the New York State Legislature have enacted laws banning discrimination, including employment discrimination, from within their geographic boundaries. In response to a question certified by the United States Court of Appeals for the Second Circuit, we hold that the New York City and New York State Human Rights Laws each protect nonresidents who are not yet employed in the city or state but who proactively sought an actual city- or state-based job opportunity.

I.

Plaintiff Nafeesa Syeed, a South Asian-American woman, filed this suit against defendant Bloomberg L.P., asserting employment discrimination claims. She alleges that, in 2014, she began working for defendant, a privately held company with global headquarters in New York City. Defendant operates Bloomberg Media, a news organization that employs reporters, editors, and producers throughout the world.

Plaintiff's complaint alleged that she was subjected to discrimination on account of her sex and race while working as a reporter in defendant's Washington, D.C. bureau. In 2018, after plaintiff concluded that she could no longer advance her career in the Washington, D.C. bureau, she "appl[ie]d for various positions" at defendant's New York bureau, including "the New Economy Forum Editor position." In addition, plaintiff "affirmed her interest" to her Washington, D.C. team leader concerning an open United Nations (U.N.) reporter position that was based in New York, and subsequently "inquired multiple times" about that job. The U.N. vacancy ultimately was filled by a man who allegedly had less practical experience than plaintiff and less formal education. After her managing editor in Washington, D.C. told plaintiff that defendant decided not to convert the U.N. job to a "'diversity slot,'" she understood that she would only be considered for promotions to positions identified as such. In June 2018, claiming that she was constructively discharged, plaintiff informed her team leader and managing editor that she could no longer work for defendant because of the discrimination that she had encountered and left defendant's employ.

Two years later, plaintiff, then a California resident, commenced this class action in New York State court. She asserted,

among other causes of action, individual claims under the State and City Human Rights Laws. Plaintiff maintained that defendant discriminated against her on the basis of sex and race by denying her promotions.

After defendant removed the case to federal court, the United States District Court for the Southern District of New York granted defendant's motion to dismiss all of plaintiff's claims under both Human Rights Laws (*see* 568 F Supp 3d 314, 349 [SD NY 2021]). Concerning plaintiff's failure to promote claims, the court, relying on our decision in *Hoffman v Parade Publs.* (15 NY3d 285 [2010]), held that plaintiff could not show that defendant's conduct impacted her in New York State or City (*see* 568 F Supp 3d at 330). The court read *Hoffman* and its progeny to hold that the Human Rights Laws are limited to people who live or work in New York (*see id.* at 333). Because plaintiff alleged neither and her claims instead rested "solely on her allegations that . . . she applied for, and was denied, certain New York-based positions," the court held that plaintiff's allegations failed to state a claim under the Human Rights Laws (*id.* at 330). The court acknowledged, however, that other cases from the Southern District had reached the opposite conclusion in analogous circumstances (*see id.* at 330-331; *see e.g. Chau v Donovan*, 357 F Supp 3d 276, 283-284 [SD NY 2019]; *Anderson v HotelsAB, LLC*, 2015 WL 5008771, *3-4, 2015 US Dist LEXIS 111820, *10-12 [SD NY, Aug. 24, 2015, No. 15CV712-LTS-JLC]).

The Second Circuit reserved decision on plaintiff's appeal and certified the following question to this Court:

"Whether a nonresident plaintiff not yet employed in New York City or State satisfies the impact requirement of the New York City Human Rights Law or the New York State Human Rights Law if the plaintiff pleads and later proves that an employer deprived the plaintiff of a New York City- or State-based job opportunity on discriminatory grounds" (58 F4th 64, 71 [2d Cir 2023]).

The court concluded that *Hoffman* "was silent as to whether, in discriminatory failure-to-hire or failure-to-promote cases, a nonresident plaintiff" would be "unable to assert sufficient personal impact in New York City or State" (*id.* at 68). The Second Circuit explained that "[c]ertain portions of *Hoffman* seem to imply that nonresidents can satisfy the . . . impact

requirement only if they currently work in New York City or State” (*id.*). However, the Second Circuit noted that *Hoffman* left open the possibility that its impact test might be satisfied by “those who *would* work in New York City or State absent discrimination” (*id.* at 69). Given the policy implications involved and the lack of controlling authority, the Second Circuit determined that certification was appropriate.

We accepted the certified question (*see* 39 NY3d 1061 [2023]), and answer it in the affirmative.

II.

The State and City Human Rights Laws proscribe employment discrimination based on, among other grounds, race and either sex or gender (*see* Executive Law § 296 [1] [a]; Administrative Code of City of NY § 8-107 [1] [a] [2]). Both statutes have provisions directing that they be liberally construed to accomplish the remedial purposes that they serve (*see* Executive Law § 300; Administrative Code § 8-130 [a]). “Exceptions to and exemptions from” both statutes “shall be construed narrowly in order to maximize deterrence of discriminatory conduct” (Executive Law § 300; Administrative Code § 8-130 [b]). Courts must construe the Human Rights Laws “broadly in favor of discrimination plaintiffs, to the extent that such a construction is reasonably possible” (*Albunio v City of New York*, 16 NY3d 472, 477-478 [2011]; *see Makinen v City of New York*, 30 NY3d 81, 88 [2017]). Applying this mandate to interpret these laws broadly, we turn to the question presented.

Hoffman established an “impact” test for nonresidents seeking to assert claims under the State and City Human Rights Laws. There, the plaintiff was a Georgia resident who worked in Atlanta for the defendant, a company headquartered in New York City. Claiming that his termination violated the Human Rights Laws, the plaintiff commenced an age discrimination action in New York where the decision to fire him was made. We concluded that “nonresidents of the city and state must plead and prove that the alleged discriminatory conduct had an impact within those respective boundaries” (15 NY3d at 289). We emphasized that “the impact requirement does not exclude all nonresidents from [the] protection” of the Human Rights Laws (*id.* at 290). Instead, the impact test “expands” the protections of the Human Rights Laws “to nonresidents who work in the” state or city (*id.*) and to those who “state a claim that the alleged discriminatory conduct had any impact

in either of those locations” (*id.* at 292). *Hoffman* therefore sets forth two ways in which a nonresident may satisfy the impact requirement: (1) working in New York or (2) establishing that the challenged conduct had some impact on the plaintiff within the respective New York geographic boundaries. Applying the impact rule in *Hoffman*, we held that the plaintiff’s discriminatory termination claims failed because he “was neither a resident of, nor employed in, the City or State of New York,” and he failed to allege that the purported discrimination “had any impact in” New York (*id.*).

III.

The Second Circuit has asked us to explain how *Hoffman*’s impact test governs a situation where, as here, a nonresident plaintiff alleges a failure to promote or hire.¹ We conclude that the City and State Human Rights Laws protect nonresidents who proactively sought an actual New York City- or State-based job opportunity.

For purposes of the impact test, a failure to hire or promote case is distinct from a discriminatory termination case, like *Hoffman*. Citing Executive Law § 290 (3) and Administrative Code § 8-101, *Hoffman* turned on those statutes’ use of the terms “inhabitants” and persons “within this state” (*see also* Executive Law § 290 [2] [covering “the people of this state”]). But the plaintiff in *Hoffman* was not a New York inhabitant and did not seek to become one. Indeed, the plaintiff was a Georgia resident who worked in Georgia and wished to retain his Georgia employment. By contrast, a nonresident who engaged in affirmative conduct to obtain an actual job opportunity based in New York City or State sought to become an inhabitant or person within those geographical boundaries (*see Chau*, 357 F Supp 3d at 284 [because the plaintiff alleged that “she would have taken a position in New York City had she not been discriminated against, she has satisfied the requirement that the alleged discriminatory act had an impact within the boundaries of New York City”]; *Anderson*, 2015 WL 5008771, *4, 2015 US Dist LEXIS 111820, *12 [the plaintiff’s “rejection from the position denied her the opportunity to work in New York City, thus providing the necessary New York City

1. The certified question presumes that *Hoffman*’s impact test applies here. Plaintiff concedes that the test governs this matter and does not request that we revisit our holding in *Hoffman*.

workplace nexus for her claim of a” City Human Rights Law covered injury]).

Unlike the plaintiff in *Hoffman*, a nonresident who has been discriminatorily denied a job in New York City or State loses the chance to work, and perhaps live, within those geographic areas.² The prospective employee personally feels the impact of a discriminatory refusal to promote or hire in New York City or State, because that is where the person wished to work (and perhaps relocate) and where they were denied the chance to do so. When applying the required liberal construction of “inhabitants” and “individual within this state” (Executive Law § 290 [3]; Administrative Code § 8-101), a prospective inhabitant or employee, who was denied a job opportunity because of discriminatory conduct, fits comfortably within the Human Rights Laws’ protection.

Our conclusion is buttressed by important policy considerations specifically addressed in the Human Rights Laws. New York State has declared that a “failure to provide”

“every individual within this state . . . an equal opportunity to enjoy a full and productive life . . . , whether because of discrimination, prejudice, [or] intolerance . . . not only threatens the rights and proper privileges of its inhabitants but menaces the institutions and foundation of a free democratic state and threatens the peace, order, health, safety and general welfare of the state and its inhabitants” (Executive Law § 290 [3]).

Similarly, New York City has “declare[d] that prejudice, intolerance, bigotry, and discrimination, bias-related violence or harassment and disorder occasioned thereby threaten the rights and proper privileges of its inhabitants and menace the institutions and foundation of a free democratic state” (Administrative Code § 8-101; *see id.* [stating that there is “no greater danger to the . . . welfare of the city . . . than the existence of groups prejudiced against one another”]). Thus, as amici curiae State of New York and City of New York argue, the Human Rights Laws contemplate that discrimination harms the State and City as governmental institutions, in ad-

2. The certified question seeks guidance with respect to “a New York City- or State-based job opportunity” (58 F4th at 71), which we understand to mean a position that requires the employee to be physically present in New York. Our analysis is limited to that scenario.

dition to the targeted individual. The State and the City are deprived of economic and civic contributions from individuals discriminatorily denied the opportunity to work in New York, along with the more diverse workforces and communities that the individuals would advance. Our resolution of the certified question has the beneficial effect of protecting New York institutions and the general welfare of the State and City—as the legislature and city council intended.

The Second Circuit recognized that a ruling for defendant “would serve to immunize employers from liability” under the Human Rights Laws “for discriminatory conduct pertaining to New York City- or State-based jobs” even when the discriminatory conduct has an impact in New York (58 F4th at 71). We cannot conclude that the legislature and city council intended to give New York employers a license to discriminate against nonresident prospective employees and, thus, we may not adopt such a narrow construction of the statutes. Accordingly, the certified question should be answered in the affirmative.

Chief Judge WILSON and Judges RIVERA, GARCIA, CANNATARO, TROUTMAN and HALLIGAN concur.

Following certification of a question by the United States Court of Appeals for the Second Circuit and acceptance of the question by this Court pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), and after hearing argument by counsel for the parties and consideration of the briefs and record submitted, certified question answered in the affirmative.

[235 NE3d 356, 211 NYS3d 824]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JASON
BOHN, Appellant.

Argued February 14, 2024; decided March 19, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 6, 2021. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Michael Aloise, J.), which had convicted defendant, upon a jury verdict, of murder in the first degree, criminal contempt in the first degree, and tampering with physical evidence.

People v Bohn, 198 AD3d 669, affirmed.

HEADNOTE

Crimes — Murder — Legal Sufficiency of Evidence — Torture

The evidence in defendant's murder prosecution, which consisted of defendant's prior statements of intent to harm the victim, an audio recording of his statements and conduct as he repeatedly taunted and strangled her, and medical testimony regarding the numerous painful and ultimately fatal injuries the victim sustained, was legally sufficient to establish that defendant "relished the infliction of extreme physical pain upon the victim" or that he "evidenced a sense of pleasure in the infliction of extreme physical pain" so as to constitute "torture" within the meaning of Penal Law § 125.27 (1) (a) (x). The statute requires a specific intent to inflict torture, which is defined as "the intentional and depraved infliction of extreme physical pain" (Penal Law § 125.27 [1] [a] [x]). The jury heard defendant's graphic threats to sexually assault and "hunt" the victim down and his statement that he would enjoy doing so. Moreover, the manner in which defendant conducted the prolonged assault resulting in the victim's death, including repeatedly asking the victim how it felt as he choked her, gave her a brief reprieve, and then strangled her again, provided evidence from which the jury could conclude that he derived mental gratification from inflicting extreme pain upon the victim. Further, there was sufficient evidence for the jury to find that while defendant may have also acted in anger or sought information from the victim, taking pleasure in inflicting extreme pain upon her was a substantial motivation.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Homicide §§ 35, 38.

McKINNEY'S, Penal Law § 125.27 (1) (a) (x).

NY JUR 2d Criminal Law: Substantive Principles and Offenses §§ 477, 490.

ANNOTATION REFERENCE

What constitutes murder by torture. 83 ALR3d 1222.

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POINTS OF COUNSEL

Patricia Pazner, Appellate Advocates, New York City (Mark W. Vorkink of counsel), for appellant. I. The People failed to prove appellant's guilt of first-degree murder beyond a reasonable doubt because there was insufficient evidence he specifically intended to inflict torture by relishing or evincing pleasure in causing extreme physical pain. (*Jackson v Virginia*, 443 US 307; *People v Cahill*, 2 NY3d 14; *People v Lucas*, 11 NY3d 218; *People v Duggins*, 3 NY3d 522; *People v Valdez-Cruz*, 99 AD3d 738; *People v Williams*, 78 AD3d 574; *People v Lauderdale*, 13 AD3d 1173; *People v Santi*, 3 NY3d 234; *People v Carr*, 25 NY3d 105; *People v McKenzie*, 19 NY3d 463.) II. The trial court deprived appellant of his due process right to a fair trial and an impartial jury when it denied defense counsel's for-cause challenges to three prospective jurors—two who researched the charged crime online in defiance of the court's express instructions, and a third who said she did not “like” gruesome photos and never unequivocally stated that seeing such photos in this case would not affect her ability to be fair and impartial. (*People v Branch*, 46 NY2d 645; *People v Arnold*, 96 NY2d 358; *People v Guzman*, 76 NY2d 1; *People v Warrington*, 28 NY3d 1116; *People v Harris*, 19 NY3d 679; *People v Johnson*, 17 NY3d 752; *People v Patterson*, 34 NY3d 1112; *People v Torpey*, 63 NY2d 361; *People v Blyden*, 55 NY2d 73; *People v Culhane*, 33 NY2d 90.) III. The court violated appellant's due process right to a fair trial by qualifying the People's rebuttal expert to testify about extreme emotional disturbance (EED), even though she had never evaluated anyone for EED, she had no experience assessing a defendant's state of mind at the time of a crime, and her testimony demonstrated a gross misunderstanding of EED and the role of an expert in rendering an opinion about it. (*United States v Agurs*, 427 US 97; *Collins v Scully*, 755 F2d 16; *Matott v Ward*, 48 NY2d 455; *Price v New York City Hous. Auth.*, 92 NY2d 553; *Meiselman v Crown Hgts. Hosp.*, 285 NY 389; *Caprara v Chrysler Corp.*, 52

NY2d 114; *People v Kenny*, 30 NY2d 154; *Matter of Andreija N. [Michael N.—Tiffany O.]*, 206 AD3d 1081; *People v Greene*, 153 AD2d 439; *Lessard v Caterpillar, Inc.*, 291 AD2d 825.)

Melinda Katz, District Attorney, Kew Gardens (*Christopher Blira-Koessler* and *John M. Castellano* of counsel), for respondent. I. Defendant's conviction for murder in the first degree was legally sufficient where he tortured the victim prior to killing her. (*People v Danielson*, 9 NY3d 342; *People v Santi*, 3 NY3d 234; *People v Hampton*, 21 NY3d 277; *People v Acosta*, 80 NY2d 665; *People v Carrel*, 99 NY2d 546; *People v Stuart*, 100 NY2d 412; *People v Aragon*, 28 NY3d 125; *People v Curtis*, 87 AD2d 954; *Lamb v Cheney & Son*, 227 NY 418; *Lewis v Jeffers*, 497 US 764.) II. The trial court properly denied defendant's for-cause challenges to three jurors because the record reflects that they could be fair and impartial and that they would follow the court's instructions. (*People v Johnson*, 94 NY2d 600; *People v Williams*, 63 NY2d 882; *People v Shulman*, 6 NY3d 1; *People v Neulander*, 34 NY3d 110; *People v Harris*, 19 NY3d 679; *People v Chambers*, 97 NY2d 417; *People v Rivera*, 33 AD3d 303, 9 NY3d 904; *People v Martell*, 138 NY 595; *People v Blyden*, 55 NY2d 73.) III. The court properly qualified the people's rebuttal witness as an expert. (*People v Cronin*, 60 NY2d 430; *People v Miller*, 91 NY2d 372; *Selkowitz v County of Nassau*, 45 NY2d 97; *Meiselman v Crown Hgts. Hosp.*, 285 NY 389; *Matott v Ward*, 48 NY2d 455; *Caprara v Chrysler Corp.*, 52 NY2d 114; *Price v New York City Hous. Auth.*, 92 NY2d 553; *Werner v Sun Oil Co.*, 65 NY2d 839; *Fuller v Preis*, 35 NY2d 425; *Matter of Enu v Sobol*, 171 AD2d 302.)

OPINION OF THE COURT

GARCIA, J.

A jury convicted defendant of first-degree murder for killing a woman with whom he had an extremely abusive relationship. Defendant claims the evidence was legally insufficient to establish that he relished or took pleasure in the infliction of extreme physical pain upon the victim so as to constitute "torture" under the first-degree murder statute. We disagree and affirm.

A verdict will be considered "legally sufficient when, viewing the facts in a light most favorable to the People, there is a valid line of reasoning and permissible inferences from which a rational jury could have found the elements of the crime proved beyond a reasonable doubt" (*People v Danielson*, 9 NY3d 342,

349 [2007] [internal quotation marks and citations omitted]). Applying this standard, we conclude that there was sufficient proof for a rational jury to determine that defendant relished or took pleasure in the infliction of extreme pain.

A person who commits intentional murder “in the context of one or more of 13 aggravating factors” is guilty of first-degree murder (see *People v Cahill*, 2 NY3d 14, 63 [2003]; see also Penal Law § 125.27 [1]). Torture, the aggravating factor at issue here, requires that the defendant, “[w]ith intent to cause the death of another person, . . . causes the death of such person or of a third person; and . . . the defendant acted in an especially cruel and wanton manner pursuant to a course of conduct intended to inflict and inflicting torture upon the victim prior to the victim’s death” (Penal Law § 125.27 [1] [a] [x]). The statute “requires a specific intent to inflict torture” (William C. Donnino, *Prac Commentaries*, McKinney’s Cons Laws of NY, Penal Law § 125.27 [1] [a] [x]), which is defined as “the intentional and depraved infliction of extreme physical pain” (Penal Law § 125.27 [1] [a] [x]). To establish depravity, the evidence must demonstrate that “the defendant relished the infliction of extreme physical pain upon the victim evidencing debasement or perversion or that the defendant evidenced a sense of pleasure in the infliction of extreme physical pain” (*id.*). It is proof of this last element—that the defendant relished or took pleasure in inflicting extreme pain upon the victim—that defendant argues was insufficient.

The Penal Law does not define the terms “relish” or “pleasure.” Black’s Law Dictionary defines “pleasure” as “[a]n agreeable sensation,” “mental gratification,” or “[s]omething that one desires or chooses” (Black’s Law Dictionary [11th ed 2019], pleasure). “Relish” is similarly defined as “a strong liking,” or “enjoyment of or delight in something that satisfies one’s tastes, inclinations, or desires” (Merriam-Webster.com Dictionary, relish [<http://www.merriam-webster.com/dictionary/relish>]). With those dictionary definitions serving as “useful guideposts” (*People v Ocasio*, 28 NY3d 178, 181 [2016] [internal quotation marks and citations omitted]), we turn to the record here.

The People’s proof with respect to this element of the crime fell into three general categories: defendant’s threats and other abusive conduct toward the victim in the period before the murder; the events that took place that night, including a voice-mail that inadvertently recorded the crime; and the medical examiner’s testimony about the nature and extent of the

victim's injuries. This evidence, particularly the audio recording of a portion of the attack during which the jury could hear the victim being repeatedly choked and taunted by defendant and the medical testimony about the pain these injuries would have caused, was sufficient to allow a rational jury to conclude beyond a reasonable doubt that defendant relished or took pleasure in the infliction of extreme pain upon the victim.

Evidence in the first category established that several weeks before her death, the victim reported defendant to the police. She arrived at the precinct limping, with large bruises on her body and "visible red marks on her face." She showed officers graphic and threatening emails sent by defendant earlier that day in which defendant described in detail the ways he would sexually assault her as a "penalty" for lying and warned her that if she did not obey him, he would "respond with a fury that satan himself would envy." While the victim was at the precinct, defendant called her, and the officers listened in as defendant threatened to "dedicate [his] life to hunting [her] down like a dog on the street."

The jury also heard evidence of defendant's actions on the night of the murder, including a nearly three-minute-long audio recording of defendant repeatedly strangling the victim. That night, less than three weeks after she went to the precinct, the victim called 911. A recording of that emergency call was played for the jury. Although she is unable to speak to the operator, the victim can be heard begging defendant to let her out of the apartment and screaming in pain. Almost one hour later, the victim's phone dialed a friend's telephone number and the call went to voicemail. On that recording, which demonstrates that the attack was still ongoing, defendant is heard mocking the victim and telling her that she did not "have a lot of time" left. He repeatedly asked her why she called a certain number and told her that her responses were "probably good enough" and that he "believe[d]" her. He nevertheless continued to attack her. As defendant demanded that the victim "listen" to him, she told him that she was "choking," and that she could no longer breathe. Defendant asked her, "How does it feel?" Though still choking, the victim managed to tell defendant that she loved him and that she could not breathe while begging for help. Defendant can be heard telling her she had "five seconds" before he killed her and that this was her "fault." Towards the end of the recording, defendant told the victim once more that

she had “five seconds” and that he would “let” her get up to provide a sufficient answer “or else you die.” She is again heard screaming and choking. At that point, her voice trails off and her responses become unintelligible before the call ends. Two days later, police discovered the victim’s badly bruised body in her bathtub.

The medical examiner who performed the autopsy testified that the victim’s cause of death was blunt force trauma to her torso and compression of her neck, each “potentially a set of fatal injuries.” Many of her ribs and her sternum were fractured in a manner consistent with being “stomped” with “a significant amount of force” and were likely caused by “multiple impacts” to the front, back, and side of her body. Those fractures caused contusions to her lungs and lacerations to her liver, which in turn caused her to bleed internally, resulting in a loss of “nearly one third her total blood circulating volume.” The testimony also showed that defendant used his hands to fatally strangle the victim with such force that he fractured the cartilage in her upper trachea and caused deep hemorrhaging in various muscles in her neck. “[A] good amount [of] pressure on the neck” would need to be applied to cause those injuries and it would take “about five [or] six minutes . . . to strangle somebody before the brain irreversibl[y] loses [the] ability to function.” The medical examiner testified that given the “nerve endings” in that location, it would be “a very painful experience” to be repeatedly strangled almost to the point of unconsciousness.

Given defendant’s prior statements of intent to harm the victim, the audio recording of his statements and conduct as he repeatedly taunted and strangled the victim, and the numerous painful and ultimately fatal injuries the victim sustained, the evidence was sufficient to establish that defendant had the requisite intent to inflict torture, did so, and experienced enjoyment from it. The jury heard defendant’s graphic threats to sexually assault and “hunt” the victim down and his statement that he would enjoy doing so. Moreover, the manner in which defendant conducted the prolonged assault resulting in the victim’s death, including repeatedly asking the victim how it felt as he choked her, gave her a brief reprieve, and then strangled her again, provided evidence from which the jury could conclude that he derived “mental gratification” from inflicting extreme pain upon the victim (*see Valdez-Cruz v Racette*, 2014 WL 3795577, 2014 US Dist LEXIS 105858 [ED NY, Aug. 1, 2014, No. 13-CV-03033 (JFB)]).

We reject defendant's argument that he acted only out of anger or a desire to get information from the victim. As this Court has made clear, where the requisite motivation is at least a "substantial factor" in the murder, the statute is satisfied, even if the defendant "may have had mixed motives" (*Cahill*, 2 NY3d at 57; *see also Williams v Lempke*, 2012 WL 2086955, *19, 2012 US Dist LEXIS 80113, *59-62 [SD NY, June 1, 2012, No. 11 Civ 2504 (PGG/JLC)] [analyzing Penal Law § 125.27 (1) (a) (x) and holding that even if the jury found that "the assaults were partially motivated by fury and/or the 'rational' goal of preventing the victim from later identifying him, it would not preclude a finding that (the defendant) *also* relished inflicting extreme pain on the victim, of which there was substantial evidence"], *rep & recommendation adopted by* 2014 WL 5035219, 2014 US Dist LEXIS 137449 [SD NY, Sept. 29, 2014, No. 11 Civ 2504 (PGG)]). Certainly, the goal of extracting information is not incompatible with relishing the infliction of extreme pain, and proof that a defendant acted out of anger in harming the victim does not preclude the jury from finding that defendant took pleasure in doing so. Here, defendant is heard on the recording continuing to attack the victim even after stating that her response was "good enough." On this record, there was sufficient evidence for the jury to find that while defendant may have also acted in anger or sought information from the victim, taking pleasure in inflicting extreme pain upon her was a substantial motivation.

In sum, there is a valid line of reasoning from which the jury could have determined that the People established that defendant relished or took pleasure in inflicting extreme pain upon the victim. We have considered defendant's remaining contentions and find them to be without merit. The order of the Appellate Division should be affirmed.

Chief Judge WILSON and Judges RIVERA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed.

[235 NE3d 949, 212 NYS3d 265]

PETRÓLEOS DE VENEZUELA S.A. et al., Appellants, v MUFG
UNION BANK, N.A., et al., Respondents.

Argued January 10, 2024; decided February 20, 2024

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.27, to review three questions certified to the New York State Court of Appeals by the United States Court of Appeals for the Second Circuit. The following questions were certified by the United States Court of Appeals and accepted by the New York State Court of Appeals: “1. Given PDVSA’s argument that the Governing Documents are invalid and unenforceable for lack of approval by the National Assembly, does New York Uniform Commercial Code section 8-110(a)(1) require that the validity of the Governing Documents be determined under the Law of Venezuela, ‘the local law of the issuer’s jurisdiction’? 2. Does any principle of New York common law require that a New York court apply Venezuelan substantive law rather than New York substantive law in determining the validity of the Governing Documents? 3. Are the Governing Documents valid under New York law, notwithstanding the PDV Entities’ arguments regarding Venezuelan law?” The first certified question was reformulated by the New York State Court of Appeals, as authorized by the United States Court of Appeals, to read: “Given the presence of New York choice-of-law clauses in the governing documents, does UCC 8-110 (a) (1), which provides that the validity of securities is determined by the local law of the issuer’s jurisdiction, require the application of Venezuela’s law to determine whether the 2020 notes are invalid due to a defect in the process by which the securities were issued?”

HEADNOTE

Conflict of Laws — Law Governing Contract Actions — New York Choice-of-Law Provision — Choice-of-Law Rules under New York Uniform Commercial Code for Determining Validity of Securities

In plaintiffs’ federal action arising out of a bond swap offer by Venezuela’s state-owned oil company, determination of whether the notes and governing documents, which provided that they “shall be governed by” New York law, were invalid because the offer involved a contract of national public interest requiring approval by the Venezuelan National Assembly required application of Venezuela’s law, as matters going to the “validity of [the] security” are

governed by “[t]he local law of the issuer’s jurisdiction” under UCC 8-110 (a) (1). Because the parties chose New York law, the documents were generally governed by New York’s substantive law, except in the narrow category of cases subject to the statutory choice-of-law directives set forth in General Obligations Law § 5-1401 (1), including that where UCC 8-110 “specifies the applicable law, that provision governs” (UCC 1-301 [c] [6]). UCC 8-110 (a) (1) contains the UCC’s choice-of-law rules for the validity of securities, providing that “[t]he local law of the issuer’s jurisdiction, as specified in subsection (d), governs . . . the validity of a security.” General Obligations Law § 5-1401 states explicitly that it “shall not apply” where UCC 8-110 is applicable (General Obligations Law § 5-1401 [1] [c]). Because UCC 8-110 applied, any issue of the validity of a security issued pursuant to the governing documents was to be determined by the law of the issuer’s jurisdiction. As the issuer was a Venezuelan entity, the law of Venezuela was determinative of the issue of validity.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Conflict of Laws § 80; AM JUR 2d Secured Transactions § 4.

McKINNEY’S, General Obligations Law § 5-1401; UCC 1-301 (c) (6); 8-110.

NY JUR 2d Courts and Judges § 586; NY JUR 2d Secured Transactions §§ 40, 52.

WHITE AND SUMMERS, UNIFORM COMMERCIAL CODE §§ 1:19, 30:35.

ANNOTATION REFERENCE

See ALR Index under Conflict of Laws; Secured Transactions.

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POINTS OF COUNSEL

Paul Hastings LLP, Washington, D.C. (*Igor V. Timofeyev* of counsel) and New York City (*Kurt W. Hansson* and *James L. Ferguson* of counsel), for PDVSA Petróleo, S.A. and another, appellants, and *Willkie Farr & Gallagher LLP*, Washington, D.C. (*Michael J. Gottlieb* of counsel), New York City (*Jeffrey B. Korn* of counsel), San Francisco, California (*Nicholas Reddick* of counsel) and London, United Kingdom (*Kristin E. Bender* of counsel), for PDV Holding, Inc., appellant. I. UCC 8-110 mandates that the validity of the 2020 notes be determined

under Venezuelan law. (*Worthy Lending LLC v New Style Contrs., Inc.*, 39 NY3d 99; *People v Versaggi*, 83 NY2d 123; *People v Aleynikov*, 31 NY3d 383; *Matter of Town of Irondequoit v County of Monroe*, 36 NY3d 177; *Gunnison County Comm'rs v Rollins*, 173 US 255; *Chaffee County v Potter*, 142 US 355; *People v Roberts*, 31 NY3d 406; *People v Pabon*, 28 NY3d 147; *IRB-Brasil Resseguros, S.A. v Inepar Invs., S.A.*, 20 NY3d 310; *Ministers & Missionaries Benefit Bd. v Snow*, 26 NY3d 466.) II. New York common law requires application of Venezuelan law when evaluating Petróleo de Venezuela, S.A.'s capacity, power, and authority to enter into the 2020 notes transaction. (*Parsa v State of New York*, 64 NY2d 143; *Boss v American Express Fin. Advisors, Inc.*, 15 AD3d 306, 6 NY3d 242; *Indosuez Intl. Fin. v National Reserve Bank*, 98 NY2d 238; *Freedman v Chemical Constr. Corp.*, 43 NY2d 260; *Schnabel v Trilegiant Corp.*, 697 F3d 110; *Canada Southern R. Co. v Gebhard*, 109 US 527; *Storr v National Defense Sec. Council*, 164 F3d 619; *Parsa v State of New York*, 64 NY2d 143; *Federal Crop Ins. Corp. v Merrill*, 332 US 380; *Northrop Grumman Ship Sys., Inc. v Ministry of Defense of Republic of Venezuela*, 575 F3d 491.) III. New York law does not resuscitate the governing documents as "valid" notwithstanding their invalidity under Venezuelan law.

Paul, Weiss, Rifkind, Wharton & Garrison LLP, New York City (*Jonathan H. Hurwitz*, *Walter Rieman* and *Shane D. Avidan* of counsel) and Washington, D.C. (*Roberto J. Gonzalez*, admitted pro hac vice, of counsel), and *Latham & Watkins LLP*, New York City (*Matthew S. Salerno* of counsel), for respondents. I. The substantive law of New York law governs this action. (*IRB-Brasil Resseguros, S.A. v Inepar Invs., S.A.*, 20 NY3d 310; *2138747 Ontario, Inc. v Samsung C&T Corp.*, 144 AD3d 122, 31 NY3d 372; *Zurich Ins. Co. v Shearson Lehman Hutton*, 84 NY2d 309; *Auten v Auten*, 308 NY 155; *Republic of Argentina v Weltover, Inc.*, 504 US 607; *Philips Credit Corp. v Regent Health Group, Inc.*, 953 F Supp 482; *Bank Leumi Trust Co. of N.Y. v Wulkan*, 735 F Supp 72.) II. Appellants' challenge to the enforceability of the governing documents does not raise any issue of "validity" under UCC 8-110. (*Chaucav Abraham*, 30 NY3d 325; *People v Litto*, 8 NY3d 692; *Matter of Bohlen v Di-Napoli*, 34 NY3d 434; *Riley v County of Broome*, 95 NY2d 455; *Matter of Knight-Ridder Broadcasting v Greenberg*, 70 NY2d 151; *American Sec. Transfer, Inc. v Pantheon Indus., Inc.*, 871 F Supp 400; *Gunnison County Comm'rs v Rollins*, 173 US 255; *Chaffee County v Potter*, 142 US 355; *Mindspirit, LLC v Eval-*

ueserve Ltd., 346 F Supp 3d 552.) III. None of the common-law doctrines that appellants invoke require application of Venezuelan law. (*New York Community Bank v Woodhaven Assoc., LLC*, 137 AD3d 1231; *Storr v National Defense Sec. Council*, 164 F3d 619; *Matter of New York State Med. Transporters Assn. v Perales*, 77 NY2d 126; *Vought v Eastern Bldg. & Loan Assn.*, 172 NY 508; *Sphere Drake Ins. Ltd. v Clarendon Natl. Ins. Co.*, 263 F3d 26; *International Mins. & Resources, S.A. v Pappas*, 96 F3d 586; *Baron v Port Auth. of N.Y. & N.J.*, 105 F Supp 2d 271; *Broder v O'Brien*, 60 Misc 2d 1039; *Indosuez Intl. Fin. v National Reserve Bank*, 98 NY2d 238; *Schnabel v Trilegiant Corp.*, 697 F3d 110.)

Holwell Shuster & Goldberg LLP, New York City (Vincent Levy and Daniel M. Sullivan of counsel), for Chamber of Commerce of the United States of America and another, amici curiae. I. As in any market, investors participating in the sovereign-debt market depend on predictable background rules upon which risks can be evaluated and decisions can be made, and an investor should be able to know what legal rules will apply to a financial instrument stated to be governed by New York law. (*NML Capital v Republic of Argentina*, 17 NY3d 250.) II. Under UCC 8-110, “validity” relates only to corporate-law formalities, and thus no application of foreign law is necessary in this case because there is no question of “validity.” (*Riley v County of Broome*, 95 NY2d 455; *Matter of Wegmans Food Mkts., Inc. v Tax Appeals Trib. of the State of N.Y.*, 33 NY3d 587; *Whitman v American Trucking Assns., Inc.*, 531 US 457; *Matter of Bohlen v DiNapoli*, 34 NY3d 434; *Altman v 285 W. Fourth LLC*, 31 NY3d 178; *Vatore v Commissioner of Consumer Affairs of City of N.Y.*, 83 NY2d 645; *Worthy Lending LLC v New Style Contrs., Inc.*, 39 NY3d 99.) III. Appellants’ interpretation will dramatically disrupt the sovereign debt market, generate market uncertainty, and defeat the purpose of selecting New York law to govern such instruments. (*U.S. Bank N.A. v DLJ Mtge. Capital, Inc.*, 38 NY3d 169; *Nomura Home Equity Loan, Inc., Series 2006-FM2 v Nomura Credit & Capital, Inc.*, 30 NY3d 572; *W.W.W. Assoc. v Giancontieri*, 77 NY2d 157; *Ehrlich-Bober & Co. v University of Houston*, 49 NY2d 574; *Islamic Republic of Iran v Pahlavi*, 62 NY2d 474; *Crown Cork & Seal Co. v Rheem Mfg. Co.*, 64 AD2d 545.) IV. Appellants’ position will harm New York’s status as a global commercial and financial center. (*J. Zeevi & Sons v Grindlays Bank [Uganda]*, 37 NY2d 220; *IRB-Brasil Resseguros, S.A. v Inepar Invs., S.A.*, 20 NY3d 310; *Allied Bank Intl. v Banco Credito Agricola de Cartago*, 757 F2d 516.)

Munger, Tolles & Olson LLP, Washington, D.C. (*Donald B. Verrilli, Jr.* and *Ginger D. Anders* of counsel), for Bolivarian Republic of Venezuela, amicus curiae. I. Venezuelan law applies under New York's "grouping of contacts" framework. (*Indosuez Intl. Fin. v National Reserve Bank*, 98 NY2d 238; *J. Zeevi & Sons v Grindlays Bank [Uganda]*, 37 NY2d 220; *Auten v Auten*, 308 NY 155; *Sea Breeze Salt, Inc. v Mitsubishi Corp.*, 899 F3d 1064; *Spectrum Stores, Inc. v Citgo Petroleum Corp.*, 632 F3d 938.) II. Venezuela's compelling public policy requires application of Venezuelan law. III. The public policies of the Bolivarian Republic of Venezuela at stake here are fundamental sovereign interests. (*Office of Personnel Management v Richmond*, 496 US 414.) IV. New York's public policy concerns are not advanced by the application of New York law when determining the validity of the governing documents.

Jennifer & Block LLP, New York City (*Benjamin D. Alter* of counsel) and Washington, D.C. (*Douglas A. Mitchell* of counsel), for George A. Bermann and others, amici curiae. I. Articles 150 and 187 (9) were incorporated into the Venezuelan Constitution as part of a broader move to reassert popular, domestic control over Venezuela's largest asset. II. Articles 150 and 187 (9) of the Venezuelan Constitution require the Venezuelan government to obtain prior approval from the national assembly before entering into contracts in the "national public interest." (*Federal Crop Ins. Corp. v Merrill*, 332 US 380.) III. Articles 150 and 187 (9) are comparable in purpose and effect to provisions in the constitutions of numerous other countries. IV. The District Court's analysis erroneously avoided consideration of article 150 of the Venezuelan Constitution and, in doing so, frustrated its text and purpose. (*Granada Bldgs. v City of Kingston*, 58 NY2d 705; *Seif v City of Long Beach*, 286 NY 382.)

RMP, LLP, Springdale, Arkansas (*Lisa Geary* of counsel), for Kermit Roosevelt III, amicus curiae. I. A mandatory choice-of-law rule displaces a choice-of-law clause. (*Ministers & Missionaries Benefit Bd. v Snow*, 26 NY3d 466.) II. A choice-of-law clause is generally unenforceable if application of the selected law violates a fundamental policy of a state with a materially greater interest whose law would otherwise govern. (*Welsbach Elec. Corp. v MasTec N. Am., Inc.*, 7 NY3d 624; *Marine Midland Bank v United Mo. Bank*, 223 AD2d 119; *American Express Travel Related Servs. Co., Inc. v Assih*, 26 Misc 3d 1016.) III. New York General Obligations Law § 5-1401 should be read to

preserve the fundamental policy exception. (*IRB-Brasil Resseguros, S.A. v Inepar Invs., S.A.*, 20 NY3d 310; *Ministers & Missionaries Benefit Bd. v Snow*, 26 NY3d 466; *Tosapratt, LLC v Sunset Props., Inc.*, 86 AD3d 768; *Allstate Ins. Co. v Hague*, 449 US 302.)

OPINION OF THE COURT

TROUTMAN, J.

In 2016, Venezuela’s state-owned oil company offered a bond swap through which its noteholders could exchange unsecured notes due in 2017 for new, secured notes due in 2020. The United States Court of Appeals for the Second Circuit certified three questions to this Court concerning the extent to which New York law governs this transaction. Upon reformulating the first question, we answer that Venezuelan law governs the validity of the notes under Uniform Commercial Code § 8-110 (a) (1), which encompasses within its scope plaintiffs’ arguments concerning whether the issuance of the notes was duly authorized by the Venezuelan National Assembly under the Venezuelan Constitution—i.e., whether there is a defect in the notes occasioned by the application of a constitutional provision bearing on the procedure through which the notes were issued. We emphasize, however, that New York law governs the transaction in all other respects, including the consequences if a security was “issued with a defect going to its validity” (UCC 8-202 [b] [1]-[2]). Given our answer to the first certified question, we need not answer the remaining questions.

I.

Plaintiffs are three related entities. Petróleos de Venezuela S.A. (PDVSA) is an oil and gas company wholly owned by the Venezuelan government (Venezuelan Const art 303 [“the State shall retain all shares of” PDVSA]). PDVSA Petróleo S.A. (Petróleo) is incorporated in Venezuela and is a wholly owned subsidiary of PDVSA. PDV Holding, Inc. (PDVH), also a wholly owned subsidiary of PDVSA, is incorporated in Delaware and has its principal place of business in Houston, Texas. PDVH wholly owns CITGO Holding, Inc., which is the sole owner of CITGO Petroleum Corporation, a refiner and marketer of petroleum products in the United States. Nonparties CITGO Holding and CITGO Petroleum Corporation are both incorporated in Delaware with a principal place of business in Houston.

II.

As relevant here, article 150 of the Venezuelan Constitution mandates that “[t]he execution of national public interest contracts shall require the approval of the National Assembly in those cases in which such requirement is determined by law.” It further provides, “No municipal, state or national public interest contract shall be executed with foreign States or official entities, or with companies not domiciled in Venezuela, or shall be transferred to any of them without the approval of the National Assembly.” And section 9 of article 187 states that “[i]t is the role of the National Assembly to . . . [a]uthorize the National Executive to enter into contracts of national interest, in the cases established by law,” and to “[a]uthorize contracts of municipal, state and national public interest, with States or official foreign entities or with companies not domiciled in Venezuela.” The Venezuelan Constitution defines neither the term “national public interest contract” nor “contracts of national interest.”

III.

In April 2007, PDVSA issued \$3 billion of unsecured notes scheduled to come due in April 2017. In October 2010 and January 2011, PDVSA further issued a combined total of \$6.15 billion in additional notes scheduled to come due in November 2017. These issuances are collectively referred to as the “2017 notes.” As the maturity date of the 2017 notes approached, it became clear that, due to declining oil revenues, PDVSA was likely to default on the 2017 notes.

In May 2016, Venezuelan President Nicolás Maduro declared a “State of Exception and Economic Emergency” granting himself the authority to execute public interest contracts unilaterally. Thirteen days later, Venezuela’s unicameral National Assembly passed a resolution reciting that, “[i]n relation to contracts of national . . . public interest concluded by and between the National Executive and . . . companies not domiciled in Venezuela, the Constitution categorically mandates, without exception, the approval of the National Assembly.” The resolution further “warn[ed] that any activity carried out by an organ that usurps the constitutional functions of another public authority is null and void and shall be considered non-existent,” and it “remind[ed] that the contracts of national . . . public

interest concluded by and between the National Executive and . . . companies not domiciled in Venezuela, without the approval of the National Assembly . . . , shall be null and void in their entirety.”

Nonetheless, in early September 2016, PDVSA’s Board of Directors approved the transaction at issue in this case: a bond exchange through which holders of the 2017 notes could tender them in exchange for new notes with principal due in 2020 (2020 notes). The parties agree that the transaction was an attempt to avoid default on the 2017 notes by effectively pushing the maturity date back an additional three years. The 2020 notes were secured by a pledge, from PDVH, of 50.1% of the equity in CITGO Holding. The pledge was memorialized in a pledge agreement naming PDVH as pledgor, PDVSA as issuer, Petróleo as guarantor, defendant GLAS Americas, LLC (GLAS) as collateral agent, and defendant MUFG Union Bank, N.A. (MUFG) as trustee.¹ In addition to the pledge agreement, the documents governing the exchange offer included the indenture governing the 2020 notes and the global notes evidencing the obligations of PDVSA and Petróleo to registered holders of the 2020 notes (collectively, the governing documents).² PDVSA’s sole shareholder, the Venezuelan government, purportedly approved the exchange offer on September 8, 2016, through the President and Director of PDVSA. However, plaintiffs allege that the National Assembly did not authorize the transaction.

The indenture contains a New York choice-of-law provision nearly identical to those found in the other governing documents:

“This Indenture and the notes shall be construed in accordance with, and this Indenture and the notes and all matters arising out of or relating in any way whatsoever to this Indenture and the notes (whether in contract, tort or otherwise) shall be governed by, the laws of the State of New York without regard to the conflicts of law provisions

1. MUFG is a U.S. banking institution with offices in New York. GLAS is a limited liability company organized under New York law with offices in New York.

2. The 2020 notes were issued through global notes registered in the name of Cede & Co. as nominee of the Depository Trust Company representing the total debt issued (*see* 51 F4th 456, 461 n 3 [2d Cir 2022]).

thereof (other than Section 5-1401 of the New York General Obligations Law).”³

The exchange offer had a New York nexus. Plaintiffs used a New York-based financial adviser and an American law firm with New York partners to advise on the structure of the offer. The Law Debenture Trust Company (DTC) of New York served as the paying agent, transfer agent, and registrar for the indenture. Further, the depository for the indenture is incorporated and headquartered in New York; the 2020 notes were deposited in New York; the collateral is held in a vault in New York; holders of 2017 notes who accepted the exchange offer had to tender their notes through DTC in New York; the 2020 notes were registered through Cede & Co., a general partnership organized under New York law and based in New York; and signature pages executing the governing documents were exchanged in New York.

In September 2016, PDVSA announced the exchange offer. The National Assembly responded by passing a second resolution reciting that the exchange offer required PDVSA to “offer 50.1% of its position in the subsidiary company [CITGO Holding] as collateral,” and that “Article 187 of the Constitution empowers the National Assembly to exercise control functions . . . , with the power to obtain information about the financial statements and details of any transaction that commits PDVSA’s assets as collateral.” The resolution resolved to “reject categorically that, within the swap transaction, 50.1% of the shares comprising the capital stock of [CITGO Holding] are offered as a guarantee with priority . . . or that a guarantee is constituted over any other property of the Nation,” and it “urge[d] the Public Ministry to open an investigation to

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3. The choice-of-law provision in the global notes states as follows:
 “This note shall be construed in accordance with, and this note and all matters arising out of or relating in any way whatsoever to this note (whether in contract, tort or otherwise) shall be governed by, the laws of the State of New York without regard to the conflicts of law provisions thereof (other than Section 5-1401 of the New York General Obligations Law).”

And the pledge agreement provides,

“This agreement shall be construed in accordance with, and this agreement and all matters arising out of or relating in any way whatsoever to this agreement (whether in contract, tort or otherwise) shall be governed by, the laws of the State of New York without regard to the conflicts of law provisions thereof (other than Section 5-1401 of the New York General Obligations Law).”

determine if the current transaction protects the National Property, in accordance with article[] 187, section 9 . . . of the Constitution.”

The exchange offer expired on October 21, 2016. Ultimately, holders of 39.4% of the aggregate principal amount outstanding under the 2017 notes—representing approximately \$2.8 billion—accepted the offer. PDVSA and its subsidiaries then executed the exchange offer, with the 2020 notes being issued on October 28, 2016, in a principal amount of over \$3.3 billion.

Maduro was reelected President of Venezuela in 2018. In January 2019, the National Assembly declared Maduro’s presidency illegitimate and named Juan Guaidó, the president of the National Assembly, as interim President. The following month, the National Assembly passed a law under which Guaidó appointed a competing, ad hoc board of directors for PDVSA.

In October 2019, the National Assembly passed a third resolution specifically addressing the exchange offer. It designated the indenture a “national public contract” that should have been authorized by the National Assembly under article 150 of the Constitution and asserted that the transaction was unauthorized.

After making principal and interest payments in 2017 and 2018, and an interest payment in April 2019, PDVSA defaulted by failing to make a scheduled payment in October 2019. At the direction of the ad hoc board of directors, plaintiffs commenced this action seeking a judgment declaring the 2020 notes and the governing documents “invalid, illegal, null and void *ab initio*, and thus unenforceable.” Plaintiffs also sought an order enjoining defendants from enforcing any remedies under the notes. Defendants counterclaimed for a declaration that the 2020 notes and the governing documents are legal and enforceable and that an event of default had occurred, thereby entitling defendant GLAS to sell the collateral. Defendants further asserted counterclaims for breach of contract, unjust enrichment, and quantum meruit.

Following discovery, defendants moved for summary judgment on their breach of contract counterclaim, and plaintiffs moved for summary judgment on all their claims. Plaintiffs argued that the resolutions constituted sovereign acts that rendered the exchange offer void under Venezuelan law and that the court should therefore decline to enforce the 2020

notes under the act-of-state doctrine. Plaintiffs further argued that the 2020 notes and the governing documents were invalid under Venezuelan law because the exchange offer involved a contract of national public interest requiring approval by the National Assembly pursuant to article 150 of the Venezuelan Constitution.

The United States District Court for the Southern District of New York (Polk Failla, J.) granted defendants' motion, denied plaintiffs' motion, and declared, among other things, "that the 2020 Notes and the Governing Documents are valid and enforceable; that a default has occurred under the terms of the Indenture; [and] that Defendants are permitted to exercise the remedies for default set forth in the Indenture and the Pledge Agreement" (495 F Supp 3d 257, 293 [SD NY 2020]). Relevant to the certification here, the court further concluded that New York law, not Venezuelan law, governed the dispute. The court acknowledged that the governing documents contained choice-of-law provisions but proceeded under the assumption that those provisions were not effective, stating that even if those provisions did control it would nonetheless need to assess the applicability of UCC 8-110. The court reasoned that UCC 8-110 (a) (1), which provides that "the validity of a security" is governed by "[t]he local law of the issuer's jurisdiction," did not require the court to apply Venezuelan law because the constitutional provisions at issue here do not speak to "validity" under section 8-110 (*id.* at 284-286 [internal quotation marks omitted]). In the court's view, the term "validity" referred only to whether the securities were "duly authorized" (*id.* at 285-286 [internal quotation marks omitted]).

Based on that assessment, the court concluded that article 150 of the Venezuelan Constitution did not speak to the authorization of the 2020 notes because it applied to a "broad category of contracts, and has nothing specifically to do with the issuance of securities" (*id.* at 285-286). "In lieu of any more specific choice of law rule," the court applied the "center of gravity" or "grouping of contacts" analysis to conclude that New York law applies because New York "has the most substantial relationship to the transaction and to the parties" (*id.* at 290 [internal quotation marks omitted]). Plaintiffs appealed.

IV.

The Second Circuit deferred decision because "[t]his case raises important questions about the scope of an as-of-yet un-

interpreted provision of the New York Uniform Commercial Code . . . and about potential common law exceptions to New York’s general approach to enforcing contractual choice-of-law elections” that we have “not addressed” and that “are important to the State’s choice-of-law regime and status as a commercial center” (51 F4th 456, 460 [2d Cir 2022]). Consequently, the court certified the following questions:

“1. Given [plaintiffs’] argument that the Governing Documents are invalid and unenforceable for lack of approval by the [Venezuelan] National Assembly, does New York [UCC] 8-110(a)(1) require that the validity of the Governing Documents be determined under the Law of Venezuela, ‘the local law of the issuer’s jurisdiction’?”

“2. Does any principle of New York common law require that a New York court apply Venezuelan substantive law rather than New York substantive law in determining the validity of the Governing Documents?”

“3. Are the Governing Documents valid under New York law, notwithstanding [plaintiffs’] arguments regarding Venezuelan law?” (*id.* at 475-476).

The Second Circuit explained that they did “not intend to limit the scope” of our analysis by formulating the questions as they did, and they invited us to reformulate the questions as we “deem appropriate” (*id.* at 476 [internal quotation marks omitted]).

Consistent with this invitation, we reformulate the first certified question as follows in order to highlight the limited nature of the “validity” inquiry under UCC 8-110 (a) (1):

1. Given the presence of New York choice-of-law clauses in the governing documents, does UCC 8-110 (a) (1), which provides that the validity of securities is determined by the local law of the issuer’s jurisdiction, require the application of Venezuela’s law to determine whether the 2020 notes are invalid due to a defect in the process by which the securities were issued?

We answer this question in the affirmative. Matters going to the “validity of [the] security” at issue here, that is the 2020 notes, are governed by the law of Venezuela—i.e., “[t]he local law of the issuer’s jurisdiction” under UCC 8-110 (a) (1).

Plaintiffs' argument that the 2020 notes are invalid—because their issuance contravened constitutional provisions requiring National Assembly approval to issue the securities—falls within the scope of “validity” as that term is used in UCC 8-110. Given our answer to this question, we do not reach the second and third certified questions (*see Self-Insurer's Assn. v State Indus. Commn.*, 224 NY 13, 16-17 [1918, Cardozo, J.]; *see also Cordero v Transamerica Annuity Serv. Corp.*, 39 NY3d 399, 409 [2023], quoting NY Const, art VI, § 3 [b], cl 9; 22 NYCRR 500.27).

V.

The inclusion of a New York choice-of-law clause in a contract demonstrates the parties' intent that “courts not conduct a conflict-of-laws analysis,” which thereby “obviates the application of both common-law conflict-of-laws principles and statutory choice-of-law directives,” unless the parties or the legislature clearly express a contrary intent (*Ministers & Missionaries Benefit Bd. v Snow*, 26 NY3d 466, 468 [2015]; *see IRB-Brasil Resseguros, S.A. v Inepar Invs., S.A.*, 20 NY3d 310, 312 [2012], *cert denied* 569 US 994 [2013]). Here, the governing documents state that they “shall be governed by . . . the laws of the State of New York without regard to the conflicts of law provisions thereof (other than Section 5-1401 of the New York General Obligations Law).” Because the parties chose New York law, the documents are generally governed by New York's substantive law, except in the narrow category of cases that are subject to the statutory choice-of-law directives set forth in section 5-1401 (1).

One such exception is, even where parties choose New York law, that law “shall not apply . . . to the extent provided to the contrary in subsection (c) of section 1-301 of the uniform commercial code” (*id.*). UCC 1-301 (c) (6) provides in turn that, if UCC 8-110 “specifies the applicable law, that provision governs and a contrary agreement is effective only to the extent permitted.”

UCC 8-110 (a) (1) contains the UCC's choice-of-law rules for the validity of securities, providing that “[t]he local law of the issuer's jurisdiction, as specified in subsection (d), governs . . . the validity of a security.” Subsection (d), for its part, specifies that the “[i]ssuer's jurisdiction” is “the jurisdiction under which the issuer of the security is organized or, if permitted by the law of that jurisdiction, the law of another jurisdiction speci-

fied by the issuer” (UCC 8-110 [d] [internal quotation marks omitted]). Notably, while subsection (d) allows an in-state issuer to “specify the law of another jurisdiction as the law governing” certain matters, it does not allow an in-state issuer to choose another jurisdiction’s law to govern the validity of the security (*id.*). And critically for our purposes, out-of-state issuers like PDVSA may select another jurisdiction’s law only “if permitted by the law of that jurisdiction” (UCC 8-110 [d]).

The official comments to the UCC further clarify that UCC 8-110 proscribes such a choice because “[t]he question whether an issuer can assert the defense of invalidity may implicate significant policies of the issuer’s jurisdiction of incorporation” (UCC 8-110, Comment 2). And, as observed when the legislature adopted revisions to UCC article 8 in the 1990s, “[t]he ‘validity of a security,’ . . . refers to validity in the sense of corporate or other authority to issue securities, [and] is not included in the list of issues for which the applicable law can be chosen” (Rep of Comm on Uniform State Laws & Banking Law Comm of the Assn of the Bar of the City of NY [Rep of Comms], Feb. 21, 1996 at 22, Bill Jacket, L 1997, ch 566). Moreover, “[t]his lack of choice is consistent with . . . the prevailing view that the law under which an issuer is organized must govern whether a security issued by that entity is valid, in the sense of having been issued pursuant to appropriate corporate or other similar action” (*id.*). Consequently, under UCC 8-110, the issuer of a security must abide by the validity requirements of its own jurisdiction.

The text and history of the provision leave no doubt that this is a mandatory rule. Though General Obligations Law § 5-1401 must be read broadly to promote party choice given that it reflects “the legislature’s desire to encourage parties to choose the New York justice system to govern their contractual disputes,” (*Ministers*, 26 NY3d at 472; see *IRB-Brasil*, 20 NY3d at 314), the statute states explicitly that it “shall not apply” where UCC 8-110 is applicable (General Obligations Law § 5-1401 [1] [c]; see UCC 1-301 [c] [6]). In such a case, “that provision governs” (UCC 1-301 [c]). The legislative history confirms that exempting the validity of a security from New York’s otherwise broad endorsement of party choice was a purposeful decision made to accord with “the prevailing view” and the policy considerations articulated by the authors of the UCC.

Therefore, this is not a case where “engag[ing] in a conflict-of-laws analysis . . . would frustrate the Legislature’s purpose”

(*IRB-Brasil*, 20 NY3d at 316). We reaffirm the principle of *IRB-Brasil* and *Ministers* that when the parties have chosen New York law, a court may not contravene that choice through a common-law conflicts analysis. In addition, where a statutory provision “is merely a codification of a long-standing common-law conflict-of-laws principle,” the same principle applies (*Ministers*, 26 NY3d at 472-473). Notably, and consistent with the legislative intent of avoiding uncertainty identified in *Ministers* and *IRB-Brasil*, UCC 8-110 does not invite courts to conduct an open-ended conflicts analysis—rather, it clearly identifies “[t]he local law of the issuer’s jurisdiction” as the governing law on the validity of a security (UCC 8-110 [a]).

Because UCC 8-110 is applicable here, any issue of the validity of a security issued pursuant to the governing documents is determined by the law of the issuer’s jurisdiction. In this case, the issuer is a Venezuelan entity, so the law of Venezuela is determinative of the issue of validity.

However, we emphasize that generally, in every other respect, the governing documents are governed by New York law. Indeed, it is important to distinguish carefully between the validity of a security issued by a Venezuelan entity, which is governed by Venezuelan law, and all other issues that remain governed by New York law. Venezuelan law applies here only as to the validity of the securities issued by a Venezuelan entity, not as to other actions arising from or related to the transaction. Even if a security issued by a Venezuelan entity is invalid under Venezuelan law, the effect of that invalidity is nonetheless governed by New York law (*see* UCC 8-202 [b] [describing remedies available when a security is issued “with a defect going to its validity”]; *cf. Korea Life Ins. Co., Ltd. v Morgan Guar. Trust Co. of N.Y.*, 269 F Supp 2d 424, 438 [SD NY 2003] [(“T)he existence of illegality is to be determined by the local law of the jurisdiction where the illegal act is done, while the effect of illegality upon the contractual relationship is to be determined by the law of the jurisdiction which is selected under conflicts analysis”]). Furthermore, as discussed below, “validity” under UCC 8-110 is a limited term that bears only on the process by which a security is properly issued.

VI.

This background leads us to the issue of whether the term “validity” as used in UCC 8-110 (a) (1) could apply to article 150 of the Venezuelan Constitution, such that a court should

analyze article 150 and its related constitutional provisions to determine the validity of securities issued by the Venezuelan entities in this transaction. We conclude that, despite the limited scope of the term “validity” in UCC 8-110, determining whether the securities issued by these Venezuelan entities are valid requires analysis of article 150 and related provisions of the Venezuelan Constitution, because those provisions may govern the process by which a security is “duly authorized.”

When interpreting the UCC, we look to the “language of the statute, as well as the clear commentary on the relevant sections” (*Worthy Lending LLC v New Style Contrs., Inc.*, 39 NY3d 99, 103 [2022]). UCC 8-110 does not define the term “validity,” nor do dictionary definitions further our understanding given the specialized nature of the statute (*see Chauca v Abraham*, 30 NY3d 325, 330-331 [2017] [(W)ords of technical or special meaning are used by the legislature, not loosely, but with regard for their established legal significance” (internal quotation marks omitted)]). Therefore, we look to the prevailing understanding of the term “validity” in this specialized area.

In the parlance of commercial and corporate lawyers, “the word ‘valid’ has a well-developed meaning,” which is “that the agreement has been duly authorized by the borrower” (Carl S. Bjerre, *Investment Securities*, 76 Bus Law 1371, 1375 [Fall 2021]). This is consistent with the report contained in the Bill Jacket, which makes clear that UCC 8-110 (a) (1) “refers to validity in the sense of corporate or other authority to issue securities” (Rep of Comms at 22, Bill Jacket, L 1997, ch 566). For example, a validity determination might involve issues such as whether the proper corporate formalities were observed in issuing the securities and whether the issuer had actual authority to issue those same securities (*see* W. Mark C. Weidemaier & Mitu Gulati, *Unlawfully-Issued Sovereign Debt*, 61 Va J Intl L 553, 568 [Spring 2021]). The “prevailing view” is that the validity of a security is governed by the law of the jurisdiction where the issuer is organized (Rep of Comms at 22, Bill Jacket, L 1997, ch 566; *see e.g.* American Bar Association, *Third-Party Legal Opinion Report, Including the Legal Opinion Accord, of the Section of Business Law*, American Bar Association, 47 Bus Law 167, 200 [Nov. 1991] [(T)he authorization of the Transaction and the Transaction Documents will be governed by the law of the Client’s jurisdiction of organization—whether or not it is the law governing the Transaction Document”]).

Legal opinions on validity generally evaluate two issues that speak to whether an agreement was duly authorized:

“(1) did the borrower have the power to enter the agreement, and (2) did the proper body or bodies within the borrower approve[] the agreement in the manner required—*with these questions being evaluated both under the borrower’s constitutive internal documents, such as its charter, and the external law under which the borrower is organized, such as the jurisdiction’s statutes or constitution*” (Bjerre at 1375-1376 [internal quotation marks omitted and emphasis added]).

Notably, this second consideration includes a procedural determination about whether

“all actions or approvals by the [borrower] (e.g., by its board of directors) and its owners (e.g., shareholders or partners) necessary (without resort to principles of estoppel, apparent authority, waiver or the like) to bind the [borrower] under the contract have been taken or obtained and the contract has been duly executed pursuant thereto” (American Bar Association at 200; *see id.* at 201; *see also* Bjerre at 1375 n 19).⁴

Validity should be carefully distinguished from two other issues. One is the issue of whether the rights and duties created by contractual provisions are contrary to local law, which certain commentaries refer to as “enforceability” (*see* 7 William D. Hawkland et al., Uniform Commercial Code Series § 8-110:2 [Oct. 2023 update]). In explaining the distinction between validity and enforceability, it is

“useful to characterize *validity* requirements as going to the nature of the obligor [e.g., the issuer] and its internal processes on one hand, and on the other hand *enforceability* requirements of general applicability as going to the nature of the rights and obligations purportedly created, irrespective of the nature of the obligor and its processes” (Bjerre at 1379 [emphasis added]).

For example, statutory and constitutional provisions of the issuer’s jurisdiction may restrict certain interest rates, mandate various contractual provisions, or prohibit fraud. However,

4. While these sources do not define the exact scope of the term “validity,” it is clear that validity concerns the antecedent procedures and approvals required for an agreement to be duly authorized.

such provisions do not implicate the validity of a security because they do not speak to the “procedural requirement[s]” for it to be duly authorized—i.e., the process without which the security cannot come into being in the first place (*id.* at 1380). For this reason, a court should not apply such provisions under UCC 8-110 (a) (1).

Second, validity itself should be distinguished from the consequences of validity or invalidity. In broader commercial practice, courts generally “look to the sovereign’s law to decide *whether* a loan was validly issued but look to the designated foreign law [i.e., the law specified by contract] to determine the *consequences* of a violation” (Weidemaier & Gulati at 560; *cf.* Restatement [Second] of Conflict of Laws § 202, Comment c [“A distinction must here be drawn between the *effect* of illegality upon the validity of the contract and the *existence* of illegality as such” (emphasis added)]). As to the validity of a security, UCC 8-202 specifically addresses “the circumstances in which an issuer can and cannot assert invalidity as a defense against purchasers” (UCC 8-110, Comment 2). Even if a court determines that a security is invalid under the local law of the issuer’s jurisdiction, the effects of that determination will depend on New York law.

Here, the inquiry is whether the constitutional provisions at issue could render defective the issuer’s authority to issue the 2020 notes or whether they merely implicate the legality of national public interest contracts with foreign entities. We conclude that article 150 and its related constitutional provisions could potentially implicate validity because they speak to whether an entity has the power or authority to issue a security, and relatedly, what *procedures* are required to exercise such authority (*see generally* UCC 8-202, Comment 3 [explaining that limitations applicable to governmental issuers are intended to ensure, “as a matter of public policy,” that “mere technicalit(ies)” are not grounds for invalidating securities held by an innocent purchaser while also “requiring that the municipality have *power* to issue the security” (emphasis added)]).

Article 150 requires “approval of the National Assembly” before certain “national public interest contracts” “shall be executed.” Section 9 of article 187 states that “[i]t is the role of the National Assembly to . . . [a]uthorize” such contracts. By their terms, these provisions may address the procedural requirements and approvals necessary for—and present a discrete

limitation on—the authority of certain public entities to enter into “national public interest contracts.” While defendants analogize article 150 to a law of general applicability—for example a law prohibiting usurious contracts—this is inapt. Unlike a usury law, which simply prohibits certain terms of interest, article 150 specifically references the actual authority and process required for due authorization of national public interest contracts, which may include an issuance of securities under Venezuelan law (*see* brief for amicus curiae Kermit Roosevelt III at 5 [characterizing the Venezuelan constitutional provisions as “specific restrictions on the authority of state entities”]).

The official comment to UCC 8-110 reinforces our conclusion that the constitutional provisions at issue here may speak to the validity of the 2020 notes. That comment ties the meaning of “validity” to the provisions in UCC 8-202, which address “the circumstances in which an issuer can and cannot assert invalidity as a defense against purchasers” (UCC 8-110, Comment 2; *see* 7 Hawklund § 8-110:2 [explaining that UCC 8-202 is “the principal Article 8 substantive rule to look to for guidance in applying the choice of law rule in subsection 8-110(a)”]). For its part, UCC 8-202 (b) provides that “[a] security . . . issued with a defect going to its validity, is valid in the hands of a purchaser for value and without notice of the particular defect unless the defect involves a violation of a *constitutional provision*,” in which case “the security is valid in the hands of a purchaser for value and without notice of the defect, other than one who takes by original issue” (UCC 8-202 [b] [1] [emphasis added]). The same rules apply to “an issuer that is a government or governmental subdivision, agency, or instrumentality,” but with additional restrictions (UCC 8-202 [b] [2]).

This discussion of validity, with its reference to constitutional provisions, clarifies that while determining a security’s validity generally involves inquiring into whether corporate formalities were observed, it also implicates constitutional provisions of the issuer’s jurisdiction that speak to whether a security is duly authorized. Invalidity under UCC 8-110 (a) (1), when properly understood, does not encompass all defects, and even a defect going to validity may not prevent the terms of the security from being enforced (*see* UCC 8-202, Comment 3). However, invalidity under section 8-110 (a) (1) does encompass defects bearing on whether securities were “duly authorized” at the time of their issuance (7 Hawklund § 8-110:2). Such defects

may exist due to the failure to comply with a specific constitutional provision that applies to the issuance of the security, much in the same way that a defect may exist due to the failure to comply with corporate formalities governing the issuance of the security.

Indeed, the legislature appears to have understood that the term “validity” in UCC 8-110 is not limited strictly to compliance with corporate formalities. A report “consulted” by the legislature (L 1997, ch 566, § 1) explained that “[t]he ‘validity of a security,’ . . . in both Prior and Revised Article 8[,] refers to validity in the sense of corporate *or other authority* to issue securities” and “in the sense of having been issued pursuant to appropriate corporate *or other similar action*” (Rep of Comms at 22, Bill Jacket, L 1997, ch 566 [emphasis added]). Thus, the statutory scheme of the UCC and the language of various pertinent sections of UCC article 8, “as amplified by the Official Comments” (*Banque Worms v BankAmerica Intl.*, 77 NY2d 362, 373 [1991]), support the view that a security’s validity, at the time it is issued, may be determined by reference to a qualifying constitutional provision.

Defendants minimize “section 8-202(b)(1)’s reference to ‘violation[s] of constitutional provision[s]’ ” by claiming that it “is cabined to those constitutional provisions directly dealing with the issuance of securities” (51 F4th at 469). But this limitation is nowhere in the text of section 8-110, section 8-202, or the official comments. Moreover, it is not clear what “directly deal with the issuance of securities” would mean in this context. The parties here agree that general requirements of corporate law governing approval of transactions affect the validity of a security, even though they may apply generally to all transactions, rather than solely to securities. The proper line, therefore, must be drawn between constitutional provisions that determine the validity of a security and those that determine other issues, not between those that speak to securities by name and those that do not. Because the constitutional provisions here may affect validity in the sense that they render defective the issuer’s procedural authority to issue the securities in question, they are relevant to the analysis under UCC 8-110.

VII.

This litigation has focused heavily on whether certain provisions of the Venezuelan Constitution are relevant to the valid-

ity of securities issued by certain Venezuelan entities under the governing documents. We conclude that they are. However, in light of New York's "status as a commercial center" (51 F4th at 460) and our previous decisions demonstrating respect for New York choice-of-law agreements (*see e.g. Ministers*, 26 NY3d at 468), the application of Venezuelan law to the governing documents must be narrowly confined. The exception provided by UCC 8-110 provides no opportunity for the application of foreign laws going to the enforceability of a security, nor does it affect the adjudication of any question under the contract other than whether a security issued by a foreign entity is valid when issued.

None of this is to say that plaintiffs will ultimately be victorious. The question that we have answered is merely whether UCC 8-110 (a) (1) requires courts to consider if the 2020 notes were issued with defects going to their validity under article 150 and other related provisions of Venezuela's Constitution. The question remains whether, under those constitutional provisions, failure to receive authorization from the National Assembly prior to issuing the 2020 notes means that the notes were invalid under the law of Venezuela at the time of their issuance. That, however, is an issue that we must leave for the federal courts to determine. Finally, even if it is determined that the securities were "issued with a defect going to [their] validity" under Venezuelan law, New York law nonetheless governs the consequences of that defect (*see* UCC 8-202 [b]).

Accordingly, the first certified question, as reformulated, should be answered in accordance with this opinion and the remaining questions not answered.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and CURRAN* concur. Judge HALLIGAN took no part.

Following certification of questions by the United States Court of Appeals for the Second Circuit and acceptance of the questions by this Court pursuant to Rules of Practice of the Court of Appeals (22 NYCRR) § 500.27, and after hearing argument by counsel for the parties and consideration of the briefs and record submitted, first certified question, as reformulated, answered in accordance with the opinion herein and remaining questions not answered.

* Designated pursuant to NY Constitution, article VI, § 2.

[236 NE3d 162, 212 NYS3d 558]

In the Matter of EDWIN AGRAMONTE et al., Appellants, v LOCAL 461, DISTRICT COUNCIL 37, AMERICAN FEDERATION OF STATE, COUNTY AND MUNICIPAL EMPLOYEES, by its President, Jason Velzaquez, Respondent.

Argued February 15, 2024; decided March 14, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 13, 2022. The Appellate Division affirmed an order and judgment (one paper) of the Supreme Court, New York County (William Perry, J.; op 2022 NY Slip Op 30317[U] [2022]), entered in a proceeding pursuant to CPLR article 78, which, to the extent appealed from, had (1) granted respondent's motion to dismiss the amended petition seeking to annul an officer election conducted in February 2021 and to direct new elections; and (2) dismissed the proceeding.

Matter of Agramonte v Local 461, Dist. Council 37, Am. Fedn. of State County & Mun. Empls., 209 AD3d 478, affirmed.

HEADNOTES

Labor Unions — Election of Officers — Proceeding by Union Members Seeking Only Injunctive Relief — Approval or Ratification by Each Individual Member

1. Where union members seek only injunctive relief against the union and state no claim for pecuniary damages, the pleading is not governed by *Martin v Curran* (303 NY 276 [1951]), and a plaintiff need not allege the participation of each individual member to bring a claim in accordance with General Associations Law § 13. Accordingly, the hybrid CPLR article 78 proceeding and declaratory judgment action brought by petitioner union members seeking to enforce certain provisions in respondent union's local and parent constitutions governing eligibility of seasonal lifeguard members to vote and run for office in union elections was improperly dismissed on the ground that the petition failed to allege that every individual member of the union authorized or ratified the challenged actions. General Associations Law § 13 and its predecessors establish that a plaintiff cannot maintain an action against an association officer, unless the debt, which the plaintiff seeks to recover, is one upon which they could maintain an action against all the associates by reason of their liability therefor, either jointly or severally. The requirement that union members approve or ratify the union's alleged wrongdoing when pecuniary damages are sought against the union is consistent with potential personal liability for the individual members. If *Martin* precluded petitioners' claim, union members would have no recourse to the courts even when incumbent union officials are allegedly manipulating elections to maintain power.

Labor Unions — Election of Officers — Reasonable Interpretation of Union Constitutions

2. The petition in a hybrid CPLR article 78 proceeding and declaratory judgment action seeking to enforce certain provisions in respondent union's constitutions governing eligibility of seasonal lifeguard members to vote and run for office in union elections was properly denied, where respondent reasonably interpreted its constitutions in determining that petitioner seasonal lifeguards were not entitled to vote or run for office in a particular election because they had not been in good standing for the immediately preceding 12 months. The constitution and bylaws of a union define the relations of the union and its members, the powers of the union officers and committees and the rights of the members. Under respondent's local and parent constitutions, a seasonal lifeguard could qualify to vote and run for office either through paying dues or through a combination of paying dues and submitting a proper request for a dues credit. Even assuming the seasonal lifeguards were provided the benefit of a six-month dues credit, the record demonstrated they would have nevertheless failed to satisfy the constitutional requirement that they be in good standing for the 12 months immediately preceding the election. Moreover, under the circumstances presented, it was not unreasonable for respondent to conclude that the seasonal lifeguards were not in good standing for the two months leading up to the election for purposes of qualifying to vote.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Labor and Labor Relations §§ 997, 1004, 1032, 1033.
McKINNEY'S, General Associations Law § 13.
NY JUR 2d Employment Relations §§ 493, 502, 504, 505, 536, 539.

ANNOTATION REFERENCE

See ALR Index under Injunctions; Labor and Employment.

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POINTS OF COUNSEL

Advocates for Justice Chartered Attorneys, New York City (Arthur Z. Schwartz of counsel), for appellants. I. *Martin v Curran* (303 NY 276 [1951]) does not apply to cases alleging violation of a union constitution during an election. (*Matter of LaSonde v Seabrook*, 89 AD3d 132; *Machinists v Gonzales*, 356 US 617; *Polin v Kaplan*, 257 NY 277; *Litwin v Novak*, 9 AD2d

789; *Daley v Stickel*, 6 AD2d 1; *Arnold v District Council No. 9, Intl. Bhd. of Painters & Allied Trades*, 97 Misc 2d 302, 61 AD2d 748; *Beiso v Robilotto*, 26 Misc 2d 137; *Maineculf v Robinson*, 19 Misc 2d 230.) II. The election was run in an undemocratic manner violating the Local 461 constitution and the New York State common law of union democracy. (*Ballas v McKiernan*, 41 AD2d 131, 35 NY2d 14; *Matter of Allen v New York City Tr. Auth.*, 109 Misc 2d 178; *Caliendo v McFarland*, 13 Misc 2d 183; *Matter of LaSonde v Seabrook*, 89 AD3d 132; *Litwin v Novak*, 9 AD2d 789; *Young v Hayes*, 195 F Supp 911; *Stettner v International Print. Pressmen & Assistants' Union of N. Am.*, 278 F Supp 675; *Gulickson v Forest*, 290 F Supp 457; *Polin v Kaplan*, 257 NY 277; *Madden v Atkins*, 4 NY2d 283.) III. The Supreme Court below made a clear error by not upholding the right of those who applied for a waiver to vote in the February 2021 election.

Cohen, Weiss and Simon LLP, New York City (*Hanan Kolko, Kate M. Swearengen and Daniel M. Nesbitt* of counsel), for respondent. I. The First Department correctly dismissed the amended petition under the *Martin v Curran* (303 NY 276 [1951]) rule. (*Madden v Atkins*, 4 NY2d 283; *Salemeh v Tous-saint*, 25 AD3d 411; *Giffords Oil Co. v Boss*, 54 AD2d 555; *Mounteer v Bayly*, 86 AD2d 942; *Zanghi v Laborers' Intl. Union of N. Am., AFL-CIO*, 8 AD3d 1033; *A. Terzi Prods., Inc. v Theatrical Protective Union*, 2 F Supp 2d 485; *Palladino v CNY Centro, Inc.*, 23 NY3d 140; *Duane Reade, Inc. v Local 338 Retail, Wholesale, Dept. Store Union, UFCW, AFL-CIO*, 17 AD3d 277; *McCabe v Goodfellow*, 133 NY 89; *Catania v Liriano*, 203 AD3d 422.) II. Local 461 did not breach its constitution. (*Matter of Hofbauer*, 47 NY2d 648; *Harrington v Harrington*, 290 NY 126; *Watkins v Clark*, 85 Misc 2d 727; *Matter of Blair v Local 100 of Transp. Workers Union of Am.*, 106 Misc 2d 1018; *Willsey v Gjuraj*, 65 AD3d 1228; *Donovan v Sailors' Union of the Pac.*, 739 F2d 1426; *English v Cunningham*, 282 F2d 848; *Dole v Local 512, Intl. Broth. of Teamsters, Chauffers, Warehousemen & Helpers of Am., AFL-CIO*, 730 F Supp 1562; *Wirtz v Hotel Employees*, 391 US 492; *Hodgson v Local Unions No. 18, etc., Intl. Union of Operating Engrs.*, 440 F2d 485.)

Greenberg Burzichelli Greenberg P.C., Lake Success (*Harry Greenberg and Daniel Doeschner* of counsel), and *Steptoe & Johnson LLP*, New York City (*Alan M. Klinger and Dina Kolker* of counsel), for New York City Municipal Labor Committee,

amicus curiae. The relief appellants seek does not warrant an exception to the *Martin v Curran* (303 NY 276 [1951]) rule because it requires amendment of Local 461's constitution, which should be left to the union's membership. (*Dakchoylous v Ernst*, 203 Misc 277; *Matter of Walsh v Scanlon*, 3 Misc 3d 254; *Sim v New York Mailers' Union No. 6*, 166 F3d 465.)

Service Employees International Union Local 32BJ, New York City (*Katchen Locke* and *Jessica Drangel Ochs* of counsel), and *Levy Ratner, P.C.*, New York City (*Pamela Jeffrey* and *Allyson L. Belovin* of counsel), for Service Employees International Union Local 32BJ and another, amici curiae. The Court should not alter *Martin v Curran* (303 NY 276 [1951]). (*Cablevision Sys. Corp. v Communications Workers of Am. Dist. 1*, 41 Misc 3d 763, 131 AD3d 1087; *Palladino v CNY Centro, Inc.*, 23 NY3d 140; *Cablevision Sys. Corp. v Communications Workers of Am. Dist. 1*, 131 AD3d 1082; *Bidnick v Grand Lodge of Free & Accepted Masons of the State of N.Y.*, 159 AD3d 787; *Mounteer v Bayly*, 86 AD2d 942; *Matter of LaSonde v Seabrook*, 89 AD3d 132; *Matter of Noe v Local 983*, 213 AD3d 460; *NLRB v Insurance Agents*, 361 US 477; *Rochdale Vil. v Beverly*, 96 Misc 2d 1080; *NLRB v Erie Resistor Corp.*, 373 US 221.)

OPINION OF THE COURT

GARCIA, J.

Petitioners, as members of respondent Local 461, seek to enforce certain provisions in the union's local and parent constitutions governing eligibility of seasonal lifeguard members to vote and run for office in union elections. In the absence of allegations that every individual member of the union authorized or ratified the challenged conduct, the courts below dismissed the petition as barred by *Martin v Curran* (303 NY 276 [1951]). We now clarify that *Martin* does not apply when union members seek nonmonetary injunctive relief against a union. Nonetheless, we affirm the orders below denying the petition and dismissing the proceeding because, under the circumstances here, respondents reasonably interpreted and applied the relevant provisions of the union's constitutions.

I.

Respondent Local 461 represents lifeguards employed by the New York City Department of Parks and Recreation. The union is affiliated with respondent American Federation of State,

County and Municipal Employees (AFSCME), District Council 37. Both Local 461 and AFSCME are unincorporated associations. The Local's membership is comprised of approximately 30 year-round lifeguards and more than 1,100 seasonal lifeguards who typically work at pools and beaches from late May to early September.

Under the Local's constitution, all lifeguards—except supervisors—are eligible for membership. However, any member who fails to pay dues by the 15th day of each month is considered delinquent and their membership is suspended after two months of nonpayment. To vote in union elections, a member must be in good standing as of the date of the election. To run for union office, members must be in good standing for one year immediately preceding the election—or three years if running for the office of president. Prior to the election, the union president must appoint an election committee responsible for conducting the election and ascertaining nominee eligibility. The constitution directs that union elections be held in the month of February.

The Local's constitution is subject to AFSCME's constitution, which contains similar provisions governing the payment of dues and good standing. AFSCME's constitution further provides that when a member is “unemployed, on leave for military service, or on unpaid leave for more than [20] days in any calendar month,” the member “shall, upon request, be entitled to credit for membership dues for the period of unemployment, military service, or unpaid leave but not to exceed six months within any twelve-month period.”

Petitioners Edwin Agramonte, Omer Ozcan, and Raphael Sequiera are members of Local 461. Agramonte serves as a lifeguard year-round while Ozcan and Sequiera serve on a seasonal basis. In October of 2020, the Local's former president was removed from office after AFSCME sustained charges filed by Ozcan and Sequiera alleging that membership meetings were not being held. The removal order clarified that “seasonal lifeguards should be regarded as members in good standing during their employment period” if otherwise eligible. Soon after the removal, respondent Jason Velasquez¹—the union's vice president—assumed the office of president.

In early February 2021, Velasquez sent notices to the year-round lifeguards indicating that there would be a virtual

1. According to respondents, the petition incorrectly identified Jason Velasquez as “Jason Velzaquez.”

nomination meeting held on February 25th, to be followed by an election the next day. By letter to DC37 a few days prior, certain seasonal lifeguards—including petitioner Ozcan—requested recognition of their membership and a six-month dues credit, which they asserted would qualify them to vote and run for office in the upcoming election. DC37 indicated that it would refer the matter to the Local's leadership, but no subsequent action was taken on the requests.

At the union meeting, Agramonte nominated himself for union president and nominated Ozcan and Sequiera, along with other seasonal lifeguards, for the remaining offices. After an objection was raised as to their eligibility, the election committee determined that Agramonte was eligible to run for office but not the seasonal lifeguards. According to the election committee, the 2020 lifeguard season ran from July to September and, even affording the seasonal members a credit for six months of dues, they would not have been in good standing for the immediately preceding 12 months.

At about the same time, petitioners commenced the instant proceeding against the Local, AFSCME, and Velasquez; they also filed an order to show cause seeking a temporary restraining order and preliminary injunction to halt the election that was scheduled for the next day. Supreme Court declined to provide interim relief and Agramonte lost the election.

After unsuccessfully attempting to overturn the election results through the internal union process, petitioners amended their pleading to allege that the 2021 election was conducted in contravention of both the Local and AFSCME's constitutions because seasonal lifeguards were excluded from the vote and ballot. Petitioners moved for an order voiding the 2021 election results and directing the Local to hold a new election in which eligible seasonal dues-paying lifeguards were permitted to vote and run for office. According to emails and letters submitted by petitioners, Ozcan and at least one other seasonal lifeguard requested a six-month dues credit just a few days before the 2021 election took place. Their requests stated that they had worked and paid dues from May to September in 2020, but that the City had failed to deduct dues from their vacation checks in December.

Respondents cross-moved to dismiss. As a threshold matter, respondents asserted that petitioners' failure to plead that every member of the Local had authorized or ratified the chal-

lenged actions—as they argued was required by *Martin v Curran* (303 NY 276 [1951])—was fatal to petitioners’ claim. Respondents also argued that petitioners’ claims lacked merit because the union had reasonably interpreted and applied the plain language of the relevant constitutional provisions governing eligibility.

Supreme Court denied petitioners’ motion to void the election, denied the amended petition, granted respondents’ motion, and dismissed the proceeding (2022 NY Slip Op 30317[U], *1-2 [Sup Ct, NY County 2022]). The court held that *Martin* mandated dismissal because “petitioners failed to sufficiently plead that the individual members of Local 461 authorized or ratified the purportedly unlawful conduct” (2022 NY Slip Op 30317[U], *11-13). In any event, Supreme Court determined that respondents had reasonably applied the union constitutions to conclude that the seasonal lifeguards did not qualify to participate in the 2021 election (*see id.* at *14-16). The Appellate Division affirmed, holding that dismissal was proper under *Martin* (209 AD3d 478 [1st Dept 2022]). We granted petitioners leave to appeal (*lv granted* 39 NY3d 908 [2023]).

II.

In *Martin v Curran*, this Court held that a libel action for damages was properly dismissed as asserted against representatives of a union in their official capacities because the complaint did not allege that the individual members of the union had authorized or ratified publication of the libel in question (303 NY 276, 280 [1951]). Since the union was an unincorporated association, the Court explained, “the liability to be enforced in any . . . suit” against it “is still that of the individual members as individuals, and so the cause of action has to be one ‘for or upon which the plaintiff may maintain such an action . . . against all the associates, by reason of their . . . liability therefor, either jointly or severally’ ” (*id.* at 281, quoting General Associations Law § 13). The *Martin* Court recognized that General Associations Law § 13² and its predecessor statutes, authorizing suits against a union to be brought

2. General Associations Law § 13 provides in relevant part that actions or proceedings against unincorporated associations

“may be maintained, against the president or treasurer of such an association, to recover any property, or upon any cause of action, for or upon which the plaintiff may maintain such an action or special proceeding, against all the associates, by reason

(n. cont’d)

against the association president or treasurer in their representative capacities, dispensed with the need to name each individual member as required at common law (*Martin*, 303 NY at 280-281). But, the Court clarified, such “privilege was conferred by the Legislature on plaintiffs for their ‘convenience,’ and created no new substantive right or liability” (*id.* at 281 [citation omitted]). We determined that “for better or worse, wisely or otherwise, the Legislature has limited such suits against association officers, whether for breaches of agreements or for tortious wrongs, to cases where the individual liability of every single member can be alleged and proven” (*id.* at 282).

Not long after *Martin*, this Court held that plaintiff union members who were wrongfully expelled were entitled to the relief of reinstatement as well as damages against the union for lost wages (see *Madden v Atkins*, 4 NY2d 283 [1958]). In *Madden*, the plaintiffs were expelled after a fiercely contested election. We rejected the union’s basis for expulsion, clarifying that “[i]f there be any public policy touching the government of labor unions, . . . it is that traditionally democratic means of improving their union may be freely availed of by members without fear of harm or penalty” and “[t]he price of free expression and of political opposition within a union cannot be the risk of expulsion or other disciplinary action” (*id.* at 293). We therefore held that the Appellate Division had properly ordered reinstatement; we did so without any discussion of *Martin*.

Only in addressing plaintiffs’ pecuniary damages claim for lost wages did we consider whether *Martin* “forbade [the] action against the union for damages . . . unless the proof established an authorization or ratification of the expulsion by all of the members and thereby rendered each and every one of them responsible for the wrong committed” (*Madden*, 4 NY2d at 294). Recognizing that *Martin* was implicated “where damages are sought against an unincorporated union” (*Madden*, 4 NY2d at 294-295), this Court nonetheless concluded that strict application of *Martin* to cases of wrongful expulsion “would have far-reaching consequences” because the absence of any redress for damages suffered would risk “stifl[ing] all criticism within the union” (*Madden*, 4 NY2d at 296). To address that risk, we held that where union members delegate disciplinary and expulsion authority to part of the membership, “the act of

of their interest or ownership, or claim of ownership therein, either jointly or in common, or their liability therefor, either jointly or severally.”

expulsion will be regarded as the act of the union for which damages may be recovered from union funds” even if the act was not specifically ratified by every individual member (*id.*).

More recently, in *Palladino v CNY Centro, Inc.*, this Court applied *Martin* to uphold the dismissal of an action brought against a union by a member seeking damages for an alleged breach of the duty of fair representation (*see* 23 NY3d 140, 144 [2014]). While this Court acknowledged that the *Martin* rule represents a minority approach that has been criticized by other courts and jurisdictions, the Court nonetheless declined to overrule it, instead deferring to the legislature (*see Palladino* at 148-152).

Martin’s continued viability is not before us on this appeal. Rather, petitioners argue that *Martin* does not apply where, as here, only injunctive relief is requested—namely, to enforce the union’s compliance with constitutional provisions governing the members’ right to vote and run for union office. We agree.

[1] The plaintiffs in *Martin*, *Madden*, and *Palladino* sought to hold the respective unions liable for *monetary* damages. We interpreted General Associations Law § 13 and its predecessors as establishing that “[a] plaintiff ‘cannot, in any case, maintain . . . an action against the [association] officer, *unless the debt, which [the plaintiff] seeks to recover, is one upon which [they] could maintain an action against all the associates by reason of their liability therefor, either jointly or severally*’ ” (*Martin*, 303 NY at 281 [emphasis added], quoting *McCabe v Goodfellow*, 133 NY 89, 92 [1892]). Indeed, the requirement that union members approve or ratify the union’s alleged wrongdoing when pecuniary damages are sought against the union is consistent with potential personal liability for the individual members, recognized at both common law and by the relevant statutory scheme. Should the plaintiff “get judgment [against the union] but fail to collect it from the association’s funds, [the plaintiff] could bring another suit for the same tort against the members themselves, to reach their separate assets, ‘as if the first action had not been brought’ ” (*Martin*, 303 NY at 282, quoting General Associations Law § 16; *see* General Associations Law § 15).

The limitation of the *Martin* rule to claims seeking damages is also supported by the precedent upon which this Court relied in concluding that the libel action could not be maintained (*see e.g. Glauber v Patof*, 294 NY 583, 584 [1945] [in the absence of

proof that the general membership knew or approved of the irregularity “the court was without power to award a *recovery of damages* as against an unincorporated association” (emphasis added)]; *Browne v Hibbets*, 290 NY 459, 467 [1943] [“plaintiff’s right to *recover damages* depends upon proof of facts rendering all the members of the association liable for the sum claimed” (emphasis added)]; *People ex rel. Solomon v Brotherhood of Painters, Decorators & Paperhangers of Am.*, 218 NY 115, 123 [1916] [“It is well established that in a proceeding or action against a voluntary, unincorporated association, *to recover damages*, facts must be alleged and proved which render all the members of such association liable for the sum claimed” (emphasis added)]; *Schouten v Alpine*, 215 NY 225, 232 [1915] [observing that, in the event of recovery, “*satisfaction is to be made . . . out of personal property belonging to the association, or owned jointly, or in common, by all the members thereof*” (emphasis added)]; *McCabe*, 133 NY at 92-93 [“The plaintiff must allege and prove, and the court must find that all the members of the association were liable, either jointly or severally, to *pay the plaintiff the amount of his claim*, or the judgment in this action cannot stand” (emphasis added)]). Based on this precedent, we articulated the requirement of individual member ratification as a condition for monetary claims against the union.

In *Madden*, we recognized what we have since characterized as a “narrow exception” (*Palladino*, 23 NY3d at 147) to *Martin*’s requirement by holding that *pecuniary* damages were available even absent allegations that all members ratified or approved the challenged conduct (4 NY2d at 294-295). By contrast, *Madden* created no exception to *Martin* in order to justify reinstatement; *Martin* did not operate to bar the injunctive relief in the first instance. Respondents’ expansive interpretation of *Martin* as barring petitioners’ suit here despite the absence of any damages claim would eliminate the long-standing distinction. Doing so, and in effect extending *Martin* to bar union members from seeking any form of injunctive relief against a union, would have troubling implications. Respondents do not seriously dispute that, if *Martin* precludes petitioners’ claim here, union members would have no recourse to the courts even when incumbent union officials are allegedly manipulating elections to maintain power. Applying *Martin* to bar suits seeking to compel union officials to abide by their respective union constitutions and bylaws would have “far-reaching conse-

quences” and risk “stiffl[ing] all criticism” and democracy “within the union” (*Madden*, 4 NY2d at 296).

We therefore clarify that where, as here, union members seek only injunctive relief against the union and state no claim for pecuniary damages, the pleading is not governed by *Martin* and, as such, a plaintiff need not allege the participation of each individual member to bring a claim in accordance with General Associations Law § 13. The petition below was therefore improperly dismissed on that ground.

III.

[2] Respondents nonetheless urge us to affirm the order below denying the petition and dismissing the proceeding. According to respondents, the union reasonably interpreted its constitutions in determining that the seasonal lifeguards in question were not entitled to vote or run for office in the 2021 election. Respondents are correct.

“The constitution and by-laws of the . . . union define the relations of the union and its members; the powers of the union officers and committees and the rights of the members’” (*Matter of Willard Alexander, Inc. [Glasser]*, 31 NY2d 270, 273 [1972], *cert denied* 410 US 983 [1973], quoting *O’Keefe v Local 463 of United Assn. of Plumbers & Gas Fitters*, 277 NY 300, 304 [1938]; see *Polin v Kaplan*, 257 NY 277, 281 [1931]). Courts assess whether union conduct is authorized by “reviewing the constitution or bylaws ‘in accordance with the general rules of construction appertaining to contracts’ and . . . determining whether the union[’s] . . . interpretation is . . . reasonable” (*Matter of LaSonde v Seabrook*, 89 AD3d 132, 137-138 [1st Dept 2011], *lv denied* 18 NY3d 911 [2012], quoting *Matter of Allen v New York City Tr. Auth.*, 109 Misc 2d 178, 184 [Sup Ct, Kings County 1981]; see *Matter of Desir v Spano*, 259 AD2d 749, 749-750 [2d Dept 1999]).

It is not disputed that, under the Local and AFSCME constitutions, seasonal lifeguards are eligible for union membership. However, the constitutions require all union members—including seasonal lifeguards—to pay dues by the 15th of each month, and two months of delinquency results in revocation of good standing and suspension of membership. Further, to be eligible to run for office, members must have paid dues and been in good standing for the 12 months immediately preceding the election. A member may be credited with the payment of dues “upon request” while unemployed, but only up to a maximum of six months.

Applying these provisions, a seasonal lifeguard may qualify to vote and run for office either through paying dues or through a combination of paying dues and submitting a proper request for a dues credit. Here, however, even assuming the seasonal lifeguards were provided the benefit of a six-month dues credit, the record demonstrates they would nevertheless fail to satisfy the constitutional requirement that they be in good standing for the 12 months immediately preceding the election. Moreover, under the circumstances presented, we cannot say that it was unreasonable for the union to conclude that the seasonal lifeguards were not in good standing for the two months leading up to the election for purposes of qualifying to vote. Inasmuch as petitioners' remaining contentions lack merit, the petition was properly denied.

Accordingly, the order of the Appellate Division should be affirmed, with costs.

Chief Judge WILSON and Judges RIVERA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order affirmed, with costs.

[236 NE3d 1232, 213 NYS3d 213]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KENNETH E. FISHER, Appellant.

Argued March 14, 2024; decided April 23, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 19, 2023. The Appellate Division affirmed a judgment of the Chemung County Court (Christopher P. Baker, J.), which had convicted defendant, upon a jury verdict, of criminal sale of a controlled substance in the third degree (three counts).

People v Fisher, 212 AD3d 984, reversed.

HEADNOTE

Crimes — Jurors — Discharge of Juror — Grossly Unqualified

The trial court in defendant's criminal prosecution erred in denying defendant's motion for a mistrial and retaining a juror who informed the court, during jury deliberations, that she believed defendant had followed her home three days earlier, as the juror's bias rendered her "grossly unqualified" (CPL 270.35 [1]), and her assurances that she could be impartial were insufficient to cure the bias. A juror who clearly holds a bias directly against the defendant generally cannot render a verdict that respects the defendant's right to an impartial jury. Therefore, the only way such a juror may be retained is if there is a showing, including unequivocal assurances, that the juror's bias will not affect their deliberations. Because the juror's bias here was strongly held and ran directly against defendant, the danger to defendant's right to an impartial jury reached a level that would render the juror grossly unqualified. The juror's concerns were about defendant's character, specifically whether he was following her intending to harm or intimidate her. She further told the court that she believed that other jurors were concerned that defendant or those observing his trial might harm them—a state of mind that is extremely likely to produce prejudice. Moreover, it was inappropriate for her to introduce out-of-court evidence regarding defendant's character into deliberations, prompting or validating the safety concerns of other jurors. The juror's bias was not the type that could be directly rebutted by the trial evidence, and she did not renounce her belief about defendant's out-of-court conduct. The juror's response to the court's question of whether she could be "fair and impartial" was equivocal and reiterated her concern for safety even while assuring the court that she could be fair, thereby undercutting the value of her assurance.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Criminal Law §§ 341, 343; AM JUR 2d Jury § 21; AM JUR 2d Trial §§ 1405, 1417.

CARMODY-WAIT 2d Jury Selection and Supervision §§ 191:43, 191:89–191:92; CARMODY-WAIT 2d Motion for Mistrial § 197:18.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 24.9, 25.2.

McKINNEY'S, CPL 270.35 (1).

NY JUR 2d Criminal Law: Procedure §§ 2611, 2639–2640, 2643–2644, 2870.

ANNOTATION REFERENCE

Misconduct of juror which will authorize or require withdrawal of juror. 86 ALR 928.

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Query: juror /p “grossly unqualified” /p bias

POINTS OF COUNSEL

Lisa A. Burgess Attorney At Law, PLLC, Indian Lake (*Lisa A. Burgess* of counsel), for appellant. County Court's denial of appellant's motion for a mistrial was an abuse of discretion, where the court failed to conduct a probing and tactful inquiry to ensure appellant's constitutional right to a trial by an impartial jury. (*People v Branch*, 46 NY2d 645; *People v Neulander*, 34 NY3d 110; *People v Buford*, 69 NY2d 290; *Turner v Louisiana*, 379 US 466; *People v Brown*, 48 NY2d 388; *People v Kuzdzal*, 31 NY3d 478.)

Weeden A. Wetmore, District Attorney, Elmira (John D. Kelley of counsel), for respondent. County Court performed a probing and tactful inquiry, ensuring appellant's constitutional right to a fair and impartial jury. (*People v Kuzdzal*, 31 NY3d 478; *People v Buford*, 69 NY2d 290; *People v Spencer*, 29 NY3d 302.)

OPINION OF THE COURT

Chief Judge WILSON.

Upon a jury verdict, the trial court convicted Kenneth Fisher of three counts of third-degree criminal sale of a controlled substance (Penal Law § 220.39) arising from two controlled buy operations. He was sentenced to nine years in prison. One of the jurors in Mr. Fisher's case was certain that Mr. Fisher had followed her home after the first day of jury selection, a belief the trial court deemed likely unfounded. Instead of

promptly informing the court of her concern, she instead waited three days, until the case was submitted to the jury, and then expressed her safety concern to the other jurors as they deliberated. Those facts established that the juror was “grossly unqualified” pursuant to CPL 270.35 (1), because it was clear she “possesse[d] a state of mind which would prevent the rendering of an impartial verdict” (*People v Buford*, 69 NY2d 290, 298 [1987]). Although the trial judge then elicited some assurances that the juror could put aside her concerns, those assurances were insufficient to support a conclusion that the juror should be retained. Therefore, the juror should have been dismissed and a mistrial granted.¹

I.

During jury deliberations, the court received a note stating: “Confidential, one juror feels she may have been followed home Monday by Mr. Fisher.” On investigation, the juror in question was identified as Juror Six. The court questioned Juror Six in the robing room as follows:

“THE COURT: . . . The foreperson had indicated in a note to us that you had felt that Monday, after jury selection, that you may have been followed home by Mr. Fisher?”

“JUROR SIX: Yes.

“THE COURT: What leads you to believe that?”

“JUROR SIX: Because I could see him in my rearview mirror.

“THE COURT: Do you recall what type of car he may have been driving?”

“JUROR SIX: It was a maroon Lincoln. I could see the Lincoln symbol, an older model. . . .

“THE COURT: . . . And do you recall that this maroon Lincoln, do you recall how many people were in it, or the ages, or—

“JUROR SIX: No, just the driver.

1. The alternate jurors had been dismissed by that point, so a mistrial was the only option available to the court. Of course, had the juror disclosed her concern prior to the start of deliberations, that would not have been the case (*see* CPL 270.35 [1]).

“THE COURT: Okay. Were you able to see that this car was directly behind you, or was it a couple of spots behind you, or—

“JUROR SIX: It may have been six or eight car lengths behind me.

“THE COURT: Okay, and you believe—you think it’s Mr. Fisher?

“JUROR SIX: I believe it may have been.

“THE COURT: Can you tell us why you think you may believe that? And I don’t mean to impose, but these are just questions that we need to ask you.

“JUROR SIX: I just tend to look in my rearview mirror a lot, because years ago I was rear-ended by an ex-husband.

“THE COURT: Okay. So this was about six to eight cars behind you?

“JUROR SIX: Yes.

“THE COURT: Can you give us with any percentage degree how certain you think that it may have been Mr. Fisher?

“JUROR SIX: 95 percent.

“THE COURT: Okay. Is there a reason why you are bringing this up to us now, rather than let’s say when we reconvened on Wednesday morning?

“JUROR SIX: Because other juror members were scared for their own safety, because of certain people that were sitting watching the trial through the week.

“THE COURT: Okay. And without getting into what other—those concerns may be, does this affect your ability to remain on the jury?

“JUROR SIX: No.

“THE COURT: Could you be a fair and impartial juror?

“JUROR SIX: I can be a fair and impartial juror,

yes. I say that, because the other juror members encouraged me, because their safety may be at risk.

“THE COURT: Well, you did exactly what you were supposed to do by telling us your concerns. So without confirming whether that was or was not [defendant], and obviously, we don’t know that, and we’re just listening to you, you could put aside whatever that is?”

“JUROR SIX: Yes.

“THE COURT: And determine this case solely on the evidence and the legal instructions that I gave you.

“JUROR SIX: Yes.”

Further questioning established that Juror Six had seen Mr. Fisher in the parking lot as she left the courthouse but did not see him get into a maroon Lincoln. Therefore, her identification was based only on observations she made by looking in her rearview mirror at a car that was six to eight car lengths behind.

After consulting with his client, Mr. Fisher’s attorney moved for a mistrial on the basis that he did not have a fair and impartial jury. He argued that Juror Six and likely other jurors had fear and apprehension related to Juror Six being followed and also that jurors were demonstrating implicit racial bias.²

The court denied the motion. The court gave two reasons for retaining Juror Six: first, it did not credit that Juror Six was actually followed; second and “even more important,” Juror Six indicated that she could remain fair and impartial. The court noted that it had not observed anything in the courtroom that would cause jurors to fear for their safety. Defense counsel then asked for questioning of the other jurors, which occurred.³ After that questioning, defense counsel made no additional motion. The Appellate Division affirmed (212 AD3d 984 [3d Dept 2023]) and a Judge of this Court granted leave to appeal (39 NY3d 1141 [2023]).

2. The record establishes that Mr. Fisher is African American, but does not indicate the race of any of the jurors, including Juror Six.

3. Because the issue is whether the trial court properly denied the motion for a mistrial on the evidence before it at the time, the information gained from questioning other jurors has no role in our decision here.

II.

CPL 270.35 (1) states that if after a jury is sworn, “the court finds, from facts unknown at the time of the selection of the jury, that a juror is grossly unqualified to serve in the case . . . the court must discharge such juror.” If no alternate juror is available, the court must declare a mistrial (*see* CPL 270.35; 280.10 [3]).

In applying this statute, we have noted that it safeguards two constitutional rights: “the right to be tried by the jury in whose selection the defendant himself has participated, and the right to an impartial jury” (*People v Rodriguez*, 71 NY2d 214, 218 [1988]; *see* NY Const, art I, §§ 2, 6; US Const 6th, 14th Amends). The right to participate in jury selection is protected by the fact that the “grossly unqualified” standard is higher than the standard for removal of a juror during voir dire (*see People v Kuzdzal*, 31 NY3d 478, 483 [2018]; *Buford*, 69 NY2d at 297-298). A juror may be challenged for cause during voir dire if it is “likely” her state of mind will prevent an impartial verdict (CPL 270.20 [1] [b]), but the “grossly unqualified” standard for disqualification of a sworn juror requires that the juror’s inability to render an impartial verdict be “obvious” or “convincingly demonstrate[d]” (*People v Spencer*, 29 NY3d 302, 309-310 [2017] [emphasis omitted], quoting and citing *Buford*, 69 NY2d at 298). The higher standard for sworn jurors ensures that jurors chosen by both parties are not later dismissed because of “speculation” or “minor incidents,” which would undermine the voir dire process (*Rodriguez*, 71 NY2d at 219, 220). Accordingly, “[i]n concluding that a juror is grossly unqualified, the court may not speculate as to possible partiality of the juror based on her equivocal responses” (*Buford*, 69 NY2d at 299).

However, the defendant’s right to an impartial jury demands that even a sworn juror must be dismissed if the record “convincingly demonstrate[s] that the sworn juror cannot render an impartial verdict” (*Spencer*, 29 NY3d at 310). In reaching the conclusion that this standard was met here, we are guided by our decision in *People v Rodriguez* (71 NY2d 214), which suggests that a strong bias harbored directly against the defendant strikes at the core of the right to an impartial jury and will render a juror grossly unqualified absent a showing that the bias will not affect the verdict. In *Rodriguez*, we held that where a juror is “racially or otherwise invidiously biased against the defendant,” the juror is presumed

to be grossly unqualified (71 NY2d at 220). We stated that this understanding of the “grossly unqualified” standard was demanded by the defendant’s right to an impartial jury (*id.* at 218, 220). In a system that requires jurors to judge the guilt or innocence of a defendant based on the evidence rather than on beliefs and assumptions, bias directly against a defendant cannot be brushed off as “insignificant” or “minor” like irritation with an attorney or knowledge of a collateral fact (*id.* at 219-220; *see Buford*, 69 NY2d at 298). A juror who clearly holds a bias directly against the defendant generally cannot render a verdict that respects the defendant’s right to an impartial jury. That inability would render her grossly unqualified. Therefore, the only way such a juror may be retained is if there is a showing, “including unequivocal assurance[s],” that the juror’s bias will not affect her deliberations (*Rodriguez*, 71 NY2d at 220).

Because the juror’s bias here was strongly held and ran directly against the defendant, the danger to the defendant’s right to an impartial jury reached a level that would render the juror grossly unqualified. Juror Six’s fear that she had been followed home by Mr. Fisher is a less stark form of bias than the explicit racial prejudice expressed by the juror in *Rodriguez*, but is similar in that it is a prejudicial belief about the defendant that is not based on the evidence at trial. Juror Six’s concern was not about witnesses or collateral matters, but about the defendant’s character, specifically whether he was following her intending to harm or intimidate her. The note sent by the jury foreperson stated that one juror (Juror 6) “feels she may have been followed home Monday by Mr. Fisher,” and when the court thereafter asked her, “you had felt that Monday, after jury selection, that you may have been followed home by Mr. Fisher,” Juror Six answered “[y]es.” She informed the court that she was 95% certain that the person in the car that followed her home was Mr. Fisher, though she admitted it was possible that Mr. Fisher “may have simply been going somewhere.” She further told the court that she believed that other jurors were concerned that Mr. Fisher or those observing his trial might harm them—a state of mind that is extremely likely to produce prejudice. Importantly, her fear was not based on record evidence, but rather on her own out-of-court observations and discussions with other jurors. Because Juror Six held irrelevant and prejudicial beliefs about the defendant himself, her concerns implicated the core of the right to an impartial jury, and dismissal of the juror was required unless the trial

court made a determination supported by the record that she could set aside her concerns (*Rodriguez*, 71 NY2d at 220).

Our conclusion that Juror Six was “grossly unqualified” is further supported by the fact that she violated the court’s instructions when she failed to inform the court promptly about her beliefs about the defendant and instead introduced those beliefs into jury deliberations. Jurors are admonished to decide cases based solely on the evidence presented, and even if true, out-of-court evidence regarding a defendant’s character would never be a proper consideration in evaluating the charges against a defendant. It was clearly inappropriate for Juror Six to introduce such information into deliberations, prompting or validating the safety concerns of other jurors. Nothing in the court’s colloquy confirmed that Juror Six would follow the court’s instructions in the future or even that she would cease to discuss her beliefs with the other jurors. Juror Six’s actions in this regard therefore support our conclusion that the problems with her state of mind rise to the same level as the “invidiously biased” mindset that we found in *Rodriguez* would render a juror grossly unqualified (71 NY2d at 220).

Despite noting that Juror Six had introduced a strong and likely unjustified fear of the defendant into deliberations, the trial court nonetheless retained the juror because it found that the defendant most likely had not actually followed Juror Six and because it relied on her assurances that despite her concerns, she could be fair and impartial. The trial court erred in concluding that those factors provided grounds to deny a mistrial. Although *Rodriguez* contemplates that an initial showing that a juror is biased towards the defendant may be rebutted by a showing, “including unequivocal assurance[s],” that the juror’s bias will not affect her deliberations (71 NY2d at 220), there was no such showing here.

The trial court’s observation that the juror’s belief was apparently unfounded supports, rather than rebuts, the conclusion that she was grossly unqualified. The trial judge was skeptical of the juror’s identification of Mr. Fisher from six to eight car lengths away, and stated that even if it was Mr. Fisher, he likely was not following the juror. But if the juror was wrong in believing the driver was Mr. Fisher, or was imputing negative motives towards Mr. Fisher regarding an event with an innocent explanation, this would strengthen the case that she was grossly unqualified to render a verdict on his case. Indeed, drawing negative inferences against the defend-

ant from facts extraneous to the trial evidence is exactly what jurors may not do in a system founded upon the presumption of innocence. Juror Six's insistence, after questioning by the court about the basis of her belief, that she was 95% certain that Mr. Fisher had followed her, further demonstrates the strength of her biased state of mind.

The trial court was correct to weigh Juror Six's assurances as a relevant factor but erred in concluding that they cured her bias under these circumstances. Certainly, there are numerous cases in which we have held that an assurance of impartiality was sufficient to overcome indicia of bias (*see e.g. People v Warrington*, 28 NY3d 1116 [2016]; *People v Dukes*, 8 NY3d 952 [2007]; *People v Harris*, 99 NY2d 202 [2002]; *People v Cargill*, 70 NY2d 687 [1987]; *People v Williams*, 63 NY2d 882 [1984]). However, we have also stated repeatedly that assurances of impartiality are not magic words (*see People v Blyden*, 55 NY2d 73, 76-78 [1982] [assurances "have no talismanic power to convert a biased juror into an impartial one"]; *People v Torpey*, 63 NY2d 361, 367 [1984] [assurances are not a "facile method for purging a prima facie showing of bias"], quoting *People v Culhane*, 33 NY2d 90, 104 n 2 [1973]). Rather, assurances "must be taken in context" to determine the ultimate issue—here, whether the juror is grossly unqualified (*Blyden*, 55 NY2d at 78).

As we observed in *People v Torpey*, "virtually all" of our cases involving actual bias are "premised on the juror having expressed an opinion as to the guilt of the defendant for the charges being tried" (63 NY2d at 366). In that situation, the trial evidence can refute the juror's prior opinion, and a declaration by the juror that she can decide the case based solely on the evidence at trial can be meaningful. But where bias is unrelated to the crime for which the defendant was charged, it cannot be directly rebutted by the trial evidence. Although *Torpey* applied the lower standard applicable to a challenge for cause during voir dire, the distinction still carries force in determining if a sworn juror's bias renders that juror grossly unqualified. Juror Six's bias is not the type that could be directly rebutted by the trial evidence, and she did not renounce her belief about Mr. Fisher's out-of-court conduct.

Moreover, when the court asked if Juror Six could be "fair and impartial," her response was equivocal. She stated: "I can be a fair and impartial juror, yes. *I say that, because the other juror members encouraged me, because their safety may be at*

risk" (emphasis added). That explanation could be read to indicate that her assurance was made because other jurors encouraged her to make it, and in any case indicates that she remained focused on the "risk" posed by Mr. Fisher to the jury. By reiterating her concern for safety even while assuring the court that she could be fair, Juror Six undercut the value of her assurance.

Her remaining answers, one-word affirmative responses to formulaic questions from the court, do not support the conclusion that she could put her bias aside in light of the surrounding context. If Juror Six had acknowledged that she was mistaken or in some other manner indicated that she no longer believed Mr. Fisher was a threat, such answers might have supported a finding that her state of mind had changed such that she was no longer grossly unqualified (*cf. People v Sher*, 24 NY2d 454, 457-458 [1969] [upholding a verdict after the juror stated that an outside attempt to sway his vote "strengthened (his) resolve to be completely impartial and to be governed by the evidence alone"])). Here, however, that did not occur.

III.

Strongly held, prejudicial beliefs about the defendant which are not based on the trial evidence strike at the heart of the right to an impartial jury, and therefore render a juror "grossly unqualified" unless the bias can be cured or set aside. Given the extent of Juror Six's prejudicial beliefs and her introduction of those beliefs into deliberations, it was error to conclude that the issue was cured merely by "yes" answers to formulaic questions.

Accordingly, the order of the Appellate Division should be reversed and a new trial ordered.

Judges RIVERA, GARCIA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order reversed and a new trial ordered.

[237 NE3d 778, 213 NYS3d 712]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAY-
QUAINE SEIGNIOUS, Respondent.

Argued January 11, 2024; decided February 22, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 10, 2022. The Appellate Division order, insofar as appealed from, modified a judgment of the Supreme Court, New York County (Ann E. Scherzer, J.), which had convicted defendant, upon a jury verdict, of burglary in the second degree, sexual abuse in the first degree, forcible touching (two counts), and sexual abuse in the third degree (two counts). The modification consisted of dismissing the count of burglary in the second degree.

People v Seignious, 202 AD3d 511, reversed.

HEADNOTE

Crimes — Lesser Included Offense — Second-Degree Burglary as Lesser Included Offense of Second-Degree Burglary as Sexually Motivated Felony

In the prosecution of defendant on a charge of, among others, burglary in the second degree as a sexually motivated felony based on an incident in which he entered a university dormitory after assaulting and groping several women outside the building, the trial court properly charged second-degree burglary as a lesser included offense over defendant's objection that the charge should be precluded entirely because he was deprived of notice that he would need to defend against a crime that was not sexual in nature, as there was no notice issue presented on the record. There was no dispute that the two conditions required to obtain a jury charge on a lesser included offense under Criminal Procedure Law § 300.50 (1) and (2) were met. The rule that where the People have affirmatively abandoned their pursuit of a conviction for a certain crime, the court may not then charge the jury on that crime as a lesser included offense had no application. The People did not indict defendant on ordinary burglary and later withdraw or affirmatively abandon that charge. In addition, whether the People limited their theory of the crime defendant intended to commit to an extent requiring a more circumscribed jury instruction was not at issue because the defense argued, and the Appellate Division held, that the People were entirely precluded from submitting the lesser included offense of burglary in the second degree to the jury. The consequence of the Appellate Division's holding, that the People so "constricted their theory of the case" that defendant was "lulled" into defending against only burglary as a sexually motivated felony and not second-degree burglary, would in effect be to prevent a trial court from ever charging the lesser included offense whenever the People charge second-degree bur-

glary as a sexually motivated felony absent explicit notice to the defendant of their intent to do so.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Burglary §§ 1, 2, 27, 30, 36, 66.

CARMODY-WAIT 2d Charge and Instruction to Jury
§§ 200:88, 200:89, 200:92.

McKINNEY's, CPL 300.50 (1), (2); Penal Law § 130.91 (1).

NY JUR 2d Criminal Law: Procedure §§ 2850, 2853, 2854;

NY JUR 2d Criminal Law: Substantive Principles and
Offenses §§ 785, 786, 803, 809.

ANNOTATION REFERENCE

See ALR Index under Burglary; Lesser Included Offenses.

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included

POINTS OF COUNSEL

Alvin L. Bragg, Jr., District Attorney, New York City (Franklin R. Guenther, Steven C. Wu and Alexander Michaels of counsel), for appellant. The trial court properly submitted the lesser included offense to the jury. (*People v Iannone*, 45 NY2d 589; *People v Mackey*, 49 NY2d 274; *People v Delp*, 156 AD3d 1450; *People v Grega*, 72 NY2d 489; *People v Petersen*, 190 AD3d 769; *People v Taylor*, 163 AD3d 1275; *People v Duell*, 124 AD3d 1225; *People v Kolempear*, 267 AD2d 327; *People v Park*, 209 AD3d 568; *People v Marku*, 143 AD3d 576.)

Jenay Nurse Guilford, Center for Appellate Litigation, New York City (Jan Hoth of counsel), for respondent. (A) Where the Appellate Division modified Jayquaine Seignious's conviction on partially unpreserved grounds, and the prosecution's present arguments are unpreserved, this Court lacks jurisdiction to hear this appeal; and (B) where the prosecution narrowed their theory of burglary, the trial court erred in submitting the lesser included offense which altered that theory to Jayquaine Seignious's detriment. (*People v Barnes*, 50 NY2d 375; *People v Johnson*, 47 NY2d 124; *People v Riley*, 19 NY3d 944; *People v*

Allende, 34 NY3d 996; *People v Rivera*, 23 NY3d 112; *People v Butler*, 84 NY2d 627; *People v Scarborough*, 49 NY2d 364; *People v Nieves*, 67 NY2d 125; *People v Iannone*, 45 NY2d 589; *Berger v United States*, 295 US 78.)

OPINION OF THE COURT

GARCIA, J.

Defendant was charged with burglary in the second degree as a sexually motivated felony. This charge required the People to prove both that defendant committed the underlying burglary and that the burglary was motivated, at least in substantial part, by defendant's own sexual gratification. At the People's request, the trial court charged second-degree burglary as a lesser included offense. The Appellate Division reversed defendant's burglary conviction, holding that the People had so limited their theory of the case to the more serious offense that requiring defendant to defend against the lesser offense violated his right to notice of the charges against him. We disagree and reverse.

I.

Defendant confronted, assaulted, and groped several women outside of a New York University dormitory, including grabbing a student by the throat and sexually assaulting her. The students managed to run from defendant and into their dormitory. Shortly thereafter, defendant entered the dormitory and had an altercation with the building's security guard who tried to block his way, but defendant pushed through the turnstiles that separated the dormitory's public lobby from the elevator bank that led to the private residences. The security guard was able to return defendant to the lobby, where defendant continued to harass students until police arrived and arrested him.

Defendant was indicted on charges of burglary in the second degree as a sexually motivated felony (Penal Law §§ 130.91 [1]; 140.25 [2]), sexual abuse in the first degree (Penal Law § 130.65 [1]), and criminal obstruction of breathing or blood circulation (Penal Law § 121.11 [a]), among other crimes. He was not indicted for burglary in the second degree.

Defendant proceeded to trial. At a mid-trial charge conference, the People asked the court to charge the jury on burglary in the second degree as a lesser included offense of burglary as a sexually motivated felony. Defense counsel objected to the

submission of that charge, arguing that ordinary burglary is not a lesser included offense and that, because of the People's theory of the case, defendant was deprived of notice that he would need to defend against a crime that was not sexual in nature. The trial court rejected defendant's arguments, holding that ordinary second-degree burglary met the two-prong test for submission of lesser included offenses set out in CPL 300.50 (1). As to notice, the court explained that while defense counsel kept "talking about [whether defendant] intended to commit a sex crime, . . . that's not really what the extra component is. The extra component has to do with what his ultimate goal was and whether it was his own sexual gratification" and that the court could "envision . . . the evidence unfolding such that there is a reasonable view of the evidence that [defendant] entered with the intent to forcibly touch women, but not for his own direct sexual gratification, which would make him guilty of Burglary in the Second Degree, but not as a sexually motivated felony." The court repeated that "the evidence could end up showing that he intended to harass women sexually, but not for his own sexual gratification." Prior to summations, defense counsel again objected to a jury charge on second-degree burglary, citing this Court's decision in *People v Shealy* (51 NY2d 933, 934 [1980] ["Having pleaded that defendant entered or remained with intent to commit the crime of sexual abuse, the People were obligated to prove just that"]), and the court again denied the objection. Defendant never requested that the jury charge on the lesser included offense be narrowed to a specific theory of the crime; he asked only that the charge be precluded entirely. Defendant was convicted of, among other crimes, second-degree burglary but was acquitted of the sexually motivated felony.

The Appellate Division reversed defendant's burglary conviction (202 AD3d 511 [1st Dept 2022]). While the Court agreed that the requirements of CPL 300.50 were met, the Court nevertheless held that the trial court "improperly charged the lesser-included offense because the People, through the way they presented their case, deprived defendant of notice of the possibility that the jury would be asked to consider a lesser-included" (*id.* at 514-515). The Court saw no merit in the People's argument that they "never overtly relinquished" the lesser included charge submitted to the jury, reasoning that "it should not make any difference that a defendant was deprived of notice because the People affirmatively abandoned their

pursuit of a conviction on a potential offense . . . or . . . so constricted their theory of the case that a defendant would be lulled into defending against that crime only, and not any potential lesser included crimes” (*id.* at 515, citing *People v Rothman*, 117 AD2d 535 [1st Dept 1986], *affd for reasons stated below* 69 NY2d 767 [1987]). As a result, the Court dismissed the second-degree burglary count, reducing defendant’s sentence from 13 to 7 years, and otherwise affirmed.

A Judge of this Court granted leave (38 NY3d 1035 [2022]), and we now reverse.¹

II.

Under Penal Law § 130.91 (1), “[a] person commits a sexually motivated felony when he or she commits a specified offense for the purpose, in whole or substantial part, of his or her own direct sexual gratification.” The statute specifies 30 qualifying offenses (as well as the conspiracy or felony attempt to commit an enumerated offense), including second-degree burglary (Penal Law § 130.91 [2]). To establish a defendant’s guilt of a sexually motivated felony, the People must prove each element of the underlying specified crime—here, the burglary—and the additional element that the motivation for committing that crime was “in whole or substantial part” for the defendant’s own sexual gratification (*see* CJI2d[NY] Penal Law § 130.91 [1], <https://www.nycourts.gov/judges/cji/2-PenalLaw/130/130.91%281%29.pdf>).

The second-degree burglary statute, Penal Law § 140.25, provides in relevant part that a person who “knowingly enters or remains unlawfully in a building [that is a dwelling] with intent to commit a crime therein” (Penal Law § 140.25 [2]), is guilty of that crime. This Court has made clear that “to secure a conviction for burglary the State need not establish what particular crime the intruder intended to commit, nor is it necessary that the intended crime in fact be committed” (*People v Mackey*, 49 NY2d 274, 279 [1980] [internal quotation marks and citations omitted]). In this case, to convict defendant of second-degree burglary as a sexually motivated felony, the People needed to prove all the elements of the underlying crime of burglary.

1. We reject defendant’s arguments that the issue of law raised by the People on this appeal is unpreserved or otherwise beyond this Court’s power of review.

Two points are necessary to frame defendant's argument that he lacked notice of the lesser charge. First, by charging second-degree burglary as the underlying crime, the People do not necessarily limit their proof to a specific subset of crimes the defendant intended to commit once inside the building. In other words, charging burglary as a sexually motivated felony does not, by itself, limit the People to proving that a defendant intended to commit what is traditionally considered a "sex crime" when he or she entered the dwelling. Instead, the People must prove that, regardless of the crime the defendant intended to commit inside the dwelling, the burglary was motivated in substantial part by personal sexual gratification. For example, the People may charge a sexually motivated burglary based on a theory that the defendant intended to commit larceny once inside of a dwelling, but still maintain the motivation for the burglary was sexual gratification.

Second, the inverse is also possible: the People may argue that the intended crime was obviously sexual in nature, but the jury may find that, although the defendant entered or remained in the dwelling intending to commit that crime, the motivation was something other than sexual gratification. In that situation, as the trial court here made clear in rejecting defendant's argument, the proof may be insufficient to convict defendant of the sexually motivated felony but sufficient as to the lesser included offense of burglary in the second degree.

III.

There is no dispute that the two conditions required to obtain a jury charge on a lesser included offense under Criminal Procedure Law § 300.50 (1) and (2) were met here. Second-degree burglary is a lesser included offense of second-degree burglary as a sexually motivated felony and there is a reasonable view of the evidence from which the jury could have determined that defendant committed second-degree burglary, but that it was not sexually motivated (*see* 202 AD3d at 514; *People v Glover*, 57 NY2d 61, 64 [1982]). We turn then to two other principles relevant to the submission of lesser included offenses applicable to our analysis here. First, where the People have affirmatively abandoned their pursuit of a conviction for a certain crime, the court may not then charge the jury on that crime as a lesser included offense. For example, in *People v Rothman*, relied on by the Appellate Division below (*see* 202 AD3d at 515), the People initially indicted defendants on

charges of grand larceny and attempted grand larceny but, upon their own motion and without explanation, dismissed the attempted grand larceny counts prior to trial (*Rothman*, 117 AD2d at 535). The trial court nevertheless charged the lesser included offense of attempted grand larceny sua sponte over a defense objection. This Court affirmed the holding that submitting the lesser included offense was an abuse of the trial court's discretion because, under these circumstances, the defendants were "deprived of their right to know they were being tried for attempted grand larceny" because it was explicitly dismissed by the People before the trial began (*id.* at 536, *aff'd* 69 NY2d 767).

This rule has no application here: the People did not indict defendant on ordinary burglary and later withdraw or affirmatively abandon that charge. Rather, the indictment charging defendant with second-degree burglary as a sexually motivated felony specifically identified the lesser included crime as the qualifying offense (*see People v Saenger*, 39 NY3d 433, 438 [2023] [indictment is generally "'considered as the necessary method of providing the defendant with fair notice of the accusations made'"], quoting *People v Iannone*, 45 NY2d 589, 594 [1978]; *see also Rothman*, 117 AD2d at 535-536 [(o)rdinarily an indictment for a crime gives sufficient notice of any lesser included crimes" (citation omitted)]; William C. Donnino, Practice Commentaries, McKinney's Cons Laws of NY, CPL 300.40 ["Each count of an indictment charges a specific crime and by operation of law its applicable lesser included offense"]). Nor did the People take any action following the indictment indicating affirmative abandonment of that lesser included charge such that defendant was deprived of the constitutionally required notice of the charges against him.

Next, the People may also restrict their theory of the crime to such an extent that an appropriate limitation on the jury charge is required. In a burglary prosecution, the People may do so by specifying the crime the defendant intended to commit in the pleadings (*see Shealy*, 51 NY2d at 934), by providing such information in their bill of particulars (*see People v Edmonds*, 165 AD3d 1494, 1495 [3d Dept 2018]), or through a similarly explicit limitation in their presentation of the case (*see People v Kolempear*, 267 AD2d 327, 327-328 [2d Dept 1999] [the People's theory of the case limited in their bill of particulars and opening statement]; *see also People v Barnes*, 50 NY2d 375, 379 n 3 [1980] [where the people "expressly limited" their

theory of the burglary to one of larceny, they were obligated to prove that narrow theory]).² If so, the trial court must appropriately tailor the burglary charge to the theory the People have presented (*see* CJI2d[NY] Penal Law § 140.25 [2] at 4 n 14, <https://www.nycourts.gov/judges/cji/2-PenalLaw/140/140-25%282%29.pdf> [(i)f, in the indictment or bill of particulars, the People allege that the defendant intended a specific crime, that crime must be specified . . . and the third element should then be . . . (t)hat the defendant did so with the intent to commit the (specified crime) inside the building"], citing *Barnes*, 50 NY2d at 379 n 3). But here, defendant never requested that any limiting instruction be given if the charge were submitted. Instead, the defense argued, and the Appellate Division held, that the People were entirely precluded from submitting the lesser included offense of burglary in the second degree to the jury. Therefore, whether the People limited their theory to an extent requiring a more circumscribed jury instruction is not at issue here.

The Appellate Division appears to have conflated the rule limiting the People to an explicit theory of the crime intended with respect to a burglary charge (*see Barnes*, 50 NY2d at 379 n 3) with case law precluding submission of a lesser included offense where the People have unequivocally signaled their intention to abandon that charge (*see Rothman*, 117 AD2d at 536). The consequence of the court's holding, that the People so "constricted their theory of the case" that defendant was "lulled" into defending against only burglary as a sexually motivated felony and not second-degree burglary, would in effect be to prevent a trial court from ever charging the lesser included offense whenever the People charge second-degree burglary as a sexually motivated felony absent explicit notice to the defendant of their intent to do so (202 AD3d at 515). This approach is inconsistent with our case law and the Criminal Procedure Law (*see People v Glover*, 57 NY2d 61 [1982] [setting out the standard for entitlement to a lesser included offense charge]; *People v Green*, 56 NY2d 427, 429 [1982] [prejudicial error for trial court to refuse defendant's request for a jury charge on a lesser included offense of the crime charged in

2. In *Barnes*, during the People's summation at defendant's bench trial for burglary and attempted petit larceny, the People asked the Court to "infer from the circumstantial evidence that the defendant had the intent to commit a crime, that crime being that he intended to take property from the store."

the indictment]; *see also* CPL 300.50 [1], [2]). Moreover, such a rule would have an effect well beyond the specific charges at issue here (*see e.g.* Penal Law § 485.05 [1], [3] [defining the elements of a hate crime]; *see also* *People v Winston*, 205 AD3d 32, 40 [1st Dept 2022] [rejecting trial court's amendment of indictment to include lesser included offense in a hate crime case made pursuant to CPL 200.70 and additionally citing the opinion below in this case and CPL 300.50]). We reject that reasoning and hold that, as there is no notice issue presented on this record, the lesser included offense charge was properly submitted to the jury (*see* CPL 300.50 [2]).

Accordingly, the Appellate Division order insofar as appealed from should be reversed, defendant's conviction of burglary in the second degree and sentence thereon reinstated, and the case remitted to that Court for consideration of defendant's excessive sentence claim regarding that conviction.

Chief Judge WILSON and Judges RIVERA, SINGAS, CANNATARO, TROUTMAN and HALLIGAN concur.

Order insofar as appealed from reversed, defendant's conviction of burglary in the second degree and sentence thereon reinstated, and case remitted to the Appellate Division, First Department, for consideration of defendant's excessive sentence claim regarding that conviction.

[237 NE3d 784, 213 NYS3d 718]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JONAIKI
MARTINEZ ESTRELLA, Respondent.

Argued February 14, 2024; decided March 19, 2014

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 9, 2023. The Appellate Division order, insofar as appealed from, modified a judgment of the Supreme Court, Bronx County (Robert A. Neary, J.), which had convicted defendant, upon a jury verdict, of murder in the first degree, murder in the second degree, conspiracy in the second degree and gang assault in the second degree. The modification consisted of (1) vacating defendant's conviction of murder in the first degree; (2) dismissing that count of the indictment; and (3) remanding for resentencing on the remaining convictions.

People v Estrella, 214 AD3d 459, affirmed.

HEADNOTES**Crimes — Murder — Torture Murder — Course of Conduct**

1. By using the phrase “course of conduct” in the torture murder subparagraph of the first-degree murder statute (Penal Law § 125.27 [1] [a] [x]), the legislature intended to require a series of distinct acts before the victim's death that are intended to inflict and actually inflict extreme physical pain. Accordingly, in a torture murder prosecution in which the testimony of the medical examiner as well as the surveillance video established that before defendant fatally stabbed the 15-year-old victim in the neck, defendant's accomplices dragged the victim from a bodega and stabbed him multiple times with knives and a machete, and that the victim suffered several sharp force injuries, blunt force injuries, and defensive wounds as a result, the evidence was legally sufficient to establish the course of conduct element. Although the medical examiner described the victim's nonfatal sharp force injuries as “superficial,” meaning that they impacted only the top layers of skin, the medical examiner clarified that “superficial” was a medical term, and that it had no bearing on the pain the wound would have caused. A rational jury could have concluded that the victim's nonfatal wounds, inflicted pursuant to a course of conduct during which the victim was dragged from the store to the street, and then while on the ground subjected to several stab wounds of varying degrees from multiple assailants, caused him extreme physical pain before his death. However, defendant's planning meeting with his accomplices before the attack, as well as the psychological pain suffered by the victim while he was being chased, although horrible to contemplate, were not part of the course of conduct required under the statute; the planning did not cause the victim physical pain. Moreover, the course of conduct element would not be satisfied if defendant's fatal blow to the victim's neck

was the only wound to cause the victim extreme physical pain before his death, because the statute clearly states that a “course of conduct,” not a single, isolated act, must inflict the requisite physical pain before death.

Crimes — Murder — Torture Murder — Relishing or Evidencing Sense of Pleasure in Infliction of Extreme Physical Pain

2. The torture murder subparagraph of the first-degree murder statute (Penal Law § 125.27 [1] [a] [x]) requires that the defendant must relish or take pleasure in inflicting extreme physical pain before killing the victim. Accordingly, in a torture murder prosecution, the People’s evidence that, shortly after attacking the 15-year-old victim, defendant stated in a boastful tone that the victim was “not gonna eat for a good long time because [defendant] hit him in the neck” and that defendant sought out gang leadership after the attack to claim responsibility for stabbing the victim in the neck was insufficient to establish the mens rea element. This evidence demonstrated, at most, that defendant took pride in having killed the victim, not that he took pleasure in causing the victim extreme physical pain before his death. When a defendant inflicts needlessly brutal or prolonged suffering upon the victim before death, a rational jury may, based on the totality of the evidence, reasonably infer that the defendant took pleasure in inflicting extreme physical pain. However, those circumstances were not present here. There was no evidence presented that defendant was aware at the time of the attack of how long it took the victim to die after he stabbed him, inasmuch as defendant and his accomplices immediately fled the scene of the attack. Defendant’s boasting was evidence that he believed that the murder would gain him status in the gang and that he took pleasure in causing the victim’s death. But the statute requires the defendant to take pleasure in inflicting extreme physical pain before the victim dies, not merely to take pleasure in the murder, even a murder that is particularly heinous, or in the perverse gains achieved by killing another.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Homicide §§ 35, 38.

McKINNEY’S, Penal Law § 125.27 (1) (a) (x).

NY JUR 2d Criminal Law: Substantive Principles and Offenses § 477.

ANNOTATION REFERENCE

See ALR Index under Homicide; Torture.

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POINTS OF COUNSEL

Darcel D. Clark, District Attorney, Bronx (Reva Grace Phillips, Yael V. Levy and David M. Cohn of counsel), for appellant.

The trial evidence sufficiently proved defendant's guilt of first-degree torture murder; defendant and his accomplices terrorized, tortured, and murdered Lesandro Guzman-Feliz (Junior) in an extended course of conduct, and defendant reveled in the brutality when he later bragged about it to his fellow gang members. (*People v Delamota*, 18 NY3d 107; *People v Bleakley*, 69 NY2d 490; *People v Gordon*, 23 NY3d 643; *People v Sanchez*, 13 NY3d 554; *People v Lamont*, 25 NY3d 315; *People v Bracey*, 41 NY2d 296; *People v Rodriguez*, 17 NY3d 486; *People v Bueno*, 18 NY3d 160; *People v Barnes*, 50 NY2d 375; *People v Payton*, 161 Misc 2d 170.)

Steven N. Feinman, White Plains, for respondent. Because the People failed to prove beyond a reasonable doubt that defendant, and/or his accomplices, "tortured" Lesandro Guzman-Feliz (Junior) by acting in a cruel and wanton manner by committing a series of distinct acts for the intentional and depraved infliction of extreme physical pain upon Junior from which defendant received pleasure for its own sake, the prerequisite elements for murder in the first degree under Penal Law § 125.27 (1) (a) (x) were not satisfied; therefore, as a matter of law, the Appellate Division properly reversed defendant's conviction under said statute, dismissed the relevant count of the indictment, and directed that he be resentenced. (*People v Bernazard*, 188 AD3d 1239; *People v Richmond*, 36 AD3d 721; *People v Fews*, 148 AD3d 1180; *People v Williams*, 78 AD3d 574; *People v Valdez-Cruz*, 99 AD3d 738; *Matter of New York County Lawyers' Assn. v Bloomberg*, 95 AD3d 92; *Matter of World Trade Ctr. Bombing Litig.*, 17 NY3d 428.)

OPINION OF THE COURT

TROUTMAN, J.

The People appeal from an order of the Appellate Division that vacated defendant's conviction of murder in the first degree after concluding that two elements of that crime were not proved by legally sufficient evidence. Although we agree with the People that the Appellate Division erred in concluding that one element of that crime was not proved, we agree with the Appellate Division that a second element was not satisfied. We therefore affirm.

I.

This case arises from hostilities that developed among factions of the Bronx Trinitarios gang. On June 20, 2018, the

leaders of two of those factions—Los Sures and the Bad Boys—directed their members to seek out and attack members of another group, the Sunsets. Defendant was a probationary member of Los Sures who set out with other gang members to find and attack Sunset members. The group came across 15-year-old Lesandro Guzman-Feliz, otherwise known as Junior. Mistakenly believing Junior to be a Sunset member, the group chased him, dragging him from a bodega and stabbing him with knives and a machete. Defendant delivered the fatal blow by stabbing Junior in the neck with a knife, after which Junior lived for at least several minutes as he struggled to make his way to a hospital two blocks away before he bled to death. The entire attack was captured on surveillance video.

Defendant was tried with four other codefendants and was convicted of first-degree murder pursuant to Penal Law § 125.27 (1) (a) (x), among other crimes. On appeal, the Appellate Division unanimously modified by vacating defendant's conviction of first-degree murder and dismissing that count of the indictment, and otherwise affirmed (214 AD3d 459 [1st Dept 2023]). The Court concluded that two of the necessary elements of first-degree murder were not satisfied by legally sufficient evidence. First, the Appellate Division held that “defendant and his accomplices did not engage in a ‘course of conduct’ involving the intentional infliction of extreme physical pain” (*id.* at 460). Second, the Court held that “the record also fails to support the conclusion that defendant ‘relished’ or ‘evidenced a sense of pleasure in the infliction of extreme physical pain’ ” (*id.*). The Appellate Division rejected defendant's contention that his conviction of second-degree murder was not supported by legally sufficient evidence (*see id.*).

A Judge of this Court granted the People's application for leave to appeal and denied defendant's application (40 NY3d 934 [2023]).

II.

“A verdict is legally sufficient when, viewing the facts in a light most favorable to the People, ‘there is a valid line of reasoning and permissible inferences from which a rational jury could have found the elements of the crime proved beyond a reasonable doubt’ ” (*People v Danielson*, 9 NY3d 342, 349 [2007], quoting *People v Acosta*, 80 NY2d 665, 672 [1993]). “A sufficiency inquiry requires a court to marshal competent facts most favorable to the People and determine whether, as a mat-

ter of law, a jury could logically conclude that the People sustained its burden of proof” (*id.*). “This deferential standard is employed because the courts’ role on legal sufficiency review is simply to determine whether enough evidence has been presented so that the resulting verdict was lawful” (*People v Li*, 34 NY3d 357, 363 [2019], quoting *Acosta*, 80 NY2d at 672).

Penal Law § 125.27 (1) (a) (x) provides that a defendant who kills another commits first-degree murder when, with intent to kill:

“defendant acted in an especially cruel and wanton manner pursuant to a course of conduct intended to inflict and inflicting torture upon the victim prior to the victim’s death. As used in this subparagraph, ‘torture’ means the intentional and depraved infliction of extreme physical pain; ‘depraved’ means the defendant relished the infliction of extreme physical pain upon the victim evidencing debasement or perversion or that the defendant evidenced a sense of pleasure in the infliction of extreme physical pain” (Penal Law § 125.27 [1] [a] [x]).¹

This “torture murder” subparagraph therefore required the People to prove that defendant and his accomplices acted pursuant to a “course of conduct” intended to inflict and which in fact inflicted extreme physical pain upon Junior before his death.² The People were also required to prove that defendant himself “relished” the infliction of extreme physical pain upon Junior “evidencing debasement or perversion,” or that defendant “evidenced a sense of pleasure” at inflicting extreme physical pain upon Junior (*id.*). The Appellate Division concluded that neither of these elements were established by legally sufficient evidence (*see* 214 AD3d at 460).

A.

[1] Penal Law § 125.27 (1) (a) (x) does not define the term “course of conduct.” However, other Penal Law statutes use the

1. This subparagraph was added to the statute in 1995 as part of an effort to revive the death penalty in New York State (*see* Governor’s Approval Mem, Bill Jacket, L 1995, ch 1 at 5-10). If convicted of first-degree murder, defendants are subjected to heightened punishments “reserved for the most heinous crimes and the most hardened offenders” (Mem of Assembly Codes Comm, Bill Jacket, L 1995, ch 1 at 25).

2. There is no dispute that accomplice liability applies to a charge under Penal Law § 125.27 (1) (a) (x) (*see People v Mateo*, 2 NY3d 383, 405-406 [2004], *cert denied* 542 US 946 [2004]).

same phrase and are thus instructive. In the context of interpreting the harassment statute, we have held that a single, isolated act is insufficient to establish a course of conduct (see *People v Valerio*, 60 NY2d 669, 670 [1983]; *People v Wood*, 59 NY2d 811, 812 [1983]). Similarly, the Appellate Division has held that the “course of conduct” element necessary to convict defendant of third-degree stalking requires “a series of acts ‘evidencing a continuity of purpose’ ” (*People v Ubbink*, 120 AD3d 1574, 1575-1576 [4th Dept 2014], quoting *People v Payton*, 161 Misc 2d 170, 174 [Crim Ct, Kings County 1994]). We agree with defendant that by using the phrase “course of conduct” in the torture murder subparagraph, the legislature intended to require a series of distinct acts before the victim’s death that are intended to inflict and actually inflict extreme physical pain (see also Mem of Assembly Codes Comm, Bill Jacket, L 1995, ch 1 at 22).

We therefore reject the People’s assertion that the relevant “course of conduct” commenced with the gang’s planning meeting held before the attack on Junior. The plain text of the statute requires that the “course of conduct” actually inflict extreme physical pain upon the victim before death (Penal Law § 125.27 [1] [a] [x]). Defendant’s planning, as well as the psychological pain suffered by Junior while he was being chased by defendant and his accomplices, although horrible to contemplate, are not part of the course of conduct required under the statute; the planning did not cause Junior physical pain.

Moreover, we disagree with the People that the course of conduct element would be satisfied if defendant’s fatal blow to Junior’s neck was the only wound to cause Junior extreme physical pain before his death. A single, isolated act cannot satisfy the course of conduct element (see *Valerio*, 60 NY2d at 670; *Wood*, 59 NY2d at 812), and the statute clearly states that a “course of conduct” must inflict the requisite extreme physical pain before death.

We therefore agree with the Chief Judge that the course of conduct must cause extreme physical pain, not solely the fatal blow that caused Junior’s death (see *Wilson*, Ch. J., concurring op at 526-527). We disagree, however, to the extent that the Chief Judge suggests that we have rendered Penal Law § 125.26 (2) (a) “entirely superfluous” (see *id.* at 527). The legislative history for the 2009 amendment that added this subparagraph makes clear that in response to a specific crime of child abuse, the legislature intended to eliminate the “rel-

ish” or “pleasure” requirement where a defendant tortures a child less than 14 years old (*see* Assembly Mem in Support, Bill Jacket, L 2009, ch 482 at 6 [“In view of the atrocious nature of such a crime, when it is alleged that a parent has killed a child in a tortuous manner, the prosecution, in order to seek a life-without-parole sentence, should not have to prove that the defendant relished or evidenced a sense of pleasure in inflicting extreme physical pain. This bill eliminates that element of proof in the case of an adult alleged to have killed a child, assuring that a sentence of life imprisonment without possibility of parole may be sought in such circumstances”]). That is the key distinction between the two statutes, not the “course of conduct” requirement, which exists in both Penal Law §§ 125.27 (1) (a) (x) and 125.26 (2) (a).

We nevertheless disagree with the Appellate Division that the People’s evidence was not legally sufficient to establish the course of conduct element. The Appellate Division’s holding appears to be based upon its conclusion that although defendant’s fatal stab wound to Junior’s neck caused Junior extreme physical pain before his death, the other injuries Junior suffered beforehand were “superficial” (*see* 214 AD3d at 459-460). The medical examiner who performed the autopsy testified that aside from the stab wound to his neck, Junior suffered several other sharp force injuries, as well as other blunt force injuries and defensive wounds. Junior’s neck wound ultimately caused his death by exsanguination, and the medical examiner described his remaining sharp force injuries as “superficial,” meaning that they impacted only the top layers of skin. The medical examiner clarified that “superficial” was a medical term, and that it had no bearing on the pain the wound would have caused.

This testimony as well as the surveillance video established that before defendant stabbed Junior in the neck, defendant’s accomplices dragged Junior from the bodega, stabbed him multiple times with knives and a machete, and that Junior suffered several sharp force injuries, blunt force injuries, and defensive wounds as a result. There was a valid line of reasoning and permissible inferences from which a rational jury could conclude that these additional wounds, coupled with the fatal stab wound, caused Junior extreme physical pain before his death. Although a rational jury might have also concluded that only the fatal stab wound caused Junior extreme physical pain, we are required to draw every reasonable inference in the

People’s favor on a legal sufficiency review (*see Li*, 34 NY3d at 364). A rational jury could have concluded that Junior’s other wounds, inflicted pursuant to a course of conduct during which Junior was dragged from the store to the street, and then while on the ground subjected to several stab wounds of varying degrees from multiple assailants, caused him extreme physical pain before his death.

We respectfully disagree with the Chief Judge that the statutory definition of “serious physical injury” is relevant to the meaning of “extreme physical pain” (*see Wilson*, Ch. J., concurring op at 525-526). The legislature could have chosen to define extreme physical pain, as it did with serious physical injury (*see Penal Law* § 10.00 [10]), or it could have chosen to equate torture with a level of injury rather than a level of pain, but it did not. In *People v Stewart* (18 NY3d 831 [2011]), upon which the concurrence relies, the Court acknowledged that “pain may itself be disabling,” but the victim did not testify that his pain rose to that level (*see id.* at 832-833). Here, as the Chief Judge acknowledges, Junior was not alive to testify to the amount of pain he was in before his death. The jurors, who were presented with all the evidence regarding Junior’s wounds, including graphic videotape evidence, were entitled to give the statutory words their ordinary meaning and rely upon their common sense and life experience to determine if Junior’s physical pain would have been “extreme” (*see generally People v Versaggi*, 83 NY2d 123, 129-131 [1994]).

We further disagree that the legislature’s use of the term “course of conduct” evinces a legislative intent to require a series of acts that are chargeable as separate crimes (*see Wilson*, Ch. J., concurring op at 528). The legislature could have required that multiple underlying crimes be committed for the element of torture to be satisfied. Indeed, the legislature has structured other crimes in precisely this manner by imposing both a durational element and requiring that multiple crimes be committed during that period (*see e.g. Penal Law* § 130.80). Inasmuch as our role in interpreting the statute is to effectuate the intent of the legislature (*see generally People v Holz*, 35 NY3d 55, 59 [2020]), we decline to add an element that the legislature did not see fit to impose. Ultimately, although this case may not fit the paradigm of torture murder that most would envision, “all that was needed for the . . . charge to be sustained was for the People to satisfy its elements” (*Li*, 34 NY3d at 363 [internal quotation marks omitted]).

B.

[2] We agree with the Appellate Division, however, that the People failed to establish by legally sufficient evidence that defendant “relished the infliction of extreme physical pain” or “evidenced a sense of pleasure in the infliction of extreme physical pain” (Penal Law § 125.27 [1] [a] [x]). The People’s evidence with respect to this mens rea element consisted of testimony that, shortly after attacking Junior, defendant stated in a boastful tone that Junior was “not gonna eat for a good long time because [defendant] hit him in the neck.” The People also presented evidence that defendant sought out Los Sures leadership after the attack to claim responsibility for stabbing Junior in the neck.

This evidence demonstrates, at most, that defendant took pride in having killed Junior, not that he took pleasure in causing Junior extreme physical pain before his death. The statute is clear that the defendant must relish or take pleasure in inflicting extreme physical pain, not simply in killing the victim (see Penal Law § 125.27 [1] [a] [x]). Moreover, inasmuch as the defendant must also intend that the victim be killed, and the statute requires that the victim’s extreme physical pain occur prior to death, the statute requires that the defendant inflicted extreme physical pain and took pleasure in doing so *before* killing the victim (see *id.*).

Of course, intent can be inferred from conduct, and a defendant will rarely announce in the presence of witnesses that they are taking pleasure from inflicting pain upon the victim (see generally *People v Rodriguez*, 17 NY3d 486, 489 [2011]). When a defendant inflicts needlessly brutal or prolonged suffering upon the victim before death, a rational jury may, based on the totality of the evidence, reasonably infer that the defendant took pleasure in inflicting extreme physical pain (see *People v Williams*, 78 AD3d 574, 575 [1st Dept 2010], *lv denied* 16 NY3d 746 [2011]; see also *People v Bohn*, 41 NY3d 455 [2024] [decided today]).³

Those circumstances are not present here. There was no evidence presented that defendant was aware at the time of the

3. Infliction of needlessly brutal or prolonged suffering before death is one fact that the People may prove and rely upon to establish that a defendant relished or took pleasure in the infliction of extreme physical pain, but we do not suggest that it is the only manner in which the People could prove this element. Of course, the ultimate finder of fact is entitled to reject the People’s evidence as to this element.

attack of how long it took Junior to die after he stabbed him, inasmuch as defendant and his accomplices immediately fled the scene of the attack. Defendant's boasting was evidence that he believed that the murder would gain him status in the gang and that he took pleasure in causing Junior's death. But the statute requires the defendant to take pleasure in inflicting extreme physical pain *before* the victim dies, not merely to take pleasure in the murder, even a murder that is particularly heinous, or in the perverse gains achieved by killing another. We therefore conclude that the Appellate Division correctly held that the People failed to establish this element of the first-degree murder statute with legally sufficient evidence.

Accordingly, the order of the Appellate Division, insofar as appealed from, should be affirmed.

Chief Judge WILSON (concurring). I concur in the result but write separately because I disagree with the majority's conclusion that the evidence here would be legally sufficient to meet the statutory "course of conduct" requirement. More to the point, I disagree with some of the majority's characterization of the statute itself. My disagreement lies in three areas. First, absent record evidence to the contrary, "superficial" wounds—defined as cuts to the uppermost layer of skin only—cannot cause "extreme physical pain." Second, the continuous attack here should not be considered a "course of conduct" within the meaning of the statute; some cessation and resumption that would allow assaults to be charged separately should be required to meet the statutory definition of "course of conduct" in Penal Law § 125.27 (1) (a) (x). Third, the result here leaves us either with no definition of the elements required to satisfy the torture murder provision or provides one that would allow a huge variety of ordinary homicides to be transmuted into A-I felonies, a result that does not fit the overall scheme of the Penal Law with regard to homicide.

At the outset, I note that I agree with the majority's holding in part II B: the People failed to establish that Mr. Estrella "relished" or "evidenced a sense of pleasure in the infliction of" extreme physical pain. That holding is independently sufficient to require affirmance of the Appellate Division here, without the need for a foray into the course-of-conduct portion of the test.

That said, I also agree with several of the majority's observations about what a course of conduct should mean in the context of Penal Law § 125.27 (1) (a) (x). I agree that more

than one act must be involved. I agree that the planning steps here are not acts that can be counted as part of the course of conduct, if for no other reason than that those planning acts did not themselves inflict extreme physical pain. I further agree with the majority that each of the acts used to establish a course of conduct must have been intended to inflict extreme physical pain and also must actually have inflicted extreme physical pain.

I.

A.

Penal Law § 125.27 (1) (a) (x) requires that a defendant have caused (and intended to cause) “extreme physical pain.” Defendants’ actions of dragging, stabbing and beating Junior, though absolutely horrific, are not consistent with our case law defining extraordinary forms of pain.

The term “extreme physical pain” is not defined in Penal Law § 125.27 (1) (a) (x) or in our case law. On that point the majority and I agree. To resolve the meaning of that phrase, the majority conducts no analysis whatsoever, but instead offers two repetitive statements: “a rational jury could conclude that these additional wounds, coupled with the fatal stab wound, caused Junior extreme physical pain before his death” (majority op at 520); and “[a] rational jury could have concluded that Junior’s other wounds, . . . stab wounds of varying degrees from multiple assailants, caused him extreme physical pain before his death” (*id.* at 521).

As the majority notes (and as the Appellate Division also observed), “the medical examiner described [Junior’s] remaining [wounds other than the machete blow to his neck that killed him] as ‘superficial,’ meaning that they impacted only the top layers of skin” (*id.* at 520). Superficial is, indeed, a medical term and it means that the cut stops at the epidermis—the top layer of skin—and does not extend into the dermis or hypodermis. More serious wounds caused by sharp objects that penetrate beyond the epidermis, which may affect blood vessels, muscles or tendons, are classified as lacerations or puncture wounds, not superficial wounds.¹ In this case, the medical examiner clarified during her testimony that the term “superfi-

1. See e.g. Benjamin Wedro, *Wound Care*, eMedicineHealth, available at https://www.emedicinehealth.com/wound_care/article_em.htm (last accessed Mar. 6, 2024) (“Many wounds are superficial requiring local first aid includ-

(n. cont’d)

cial” has no “bearing on the pain the wound would have caused” (*id.*). That testimony, however, represents an absence of medical evidence that superficial cuts cause extreme physical pain. Nothing in the record of this case assists in defining what the legislature meant by “extreme physical pain,” or provides a basis to know whether that standard was met here.

To aid in defining “extreme physical pain,” it is instructive to look to analogous definitions in the Penal Law. “Physical injury” is defined as “impairment of physical condition or substantial pain” (Penal Law § 10.00 [9]). “Serious physical injury” refers to “physical injury which creates a substantial risk of death, or which causes death or serious and protracted disfigurement, protracted impairment of health or protracted loss or impairment of the function of any bodily organ” (*id.* § 10.00 [10]). Although “serious physical injury” is an element of many grave offenses, the highest grade of all but two of those offenses is class B felony (*see e.g. id.* § 120.10 [2] [defining assault in the first degree]). “Serious physical injury” is an element relevant to murder in the second degree (*id.* § 125.25 [4] [(u)nder circumstances evincing a depraved indifference to human life . . . recklessly engages in conduct which creates a grave risk of serious physical injury or death to another person less than eleven years old and thereby causes the death of such person]), and murder in the first degree (*id.* § 125.27 [1] [a] [viii] [“as part of the same criminal transaction, the defendant, with intent to cause serious physical injury to or the death of an additional person or persons, causes the death of an additional person or persons”]), both of which are class A-I felonies.

The superficial cuts and blunt force injuries described by the medical examiner in this case would not meet the definition of “serious physical injury” required for various class A and B felonies. The medical examiner who performed Junior’s autopsy testified that the injuries leading up to the fatal injury did not cause Junior’s death and did not testify that those injuries would have caused serious and protracted disfigurement and impairment of his health. “Serious physical injury,” an element of crimes less serious than the torture murder offense at issue here, must require a lower standard of pain and disability than

ing cleansing and dressing. Some wounds are deeper and need medical attention to prevent infection and loss of function, due to damage to underlying structures like bone, muscle, tendon, arteries and nerves”).

Penal Law § 125.27 (1) (a) (x) requires for “extreme physical pain.”

Our case law is instructive on this point as well. In *People v Stewart*, we held that a “serious [assault] involving numerous blows with a sharp instrument . . . described in their most acute aspect by the treating emergency room physician as ‘superficial’ ” did not qualify as “serious physical injury” (18 NY3d 831, 832 [2011]). There, as here, the medical testimony was that the wounds would have required simple, noninvasive care except that in *Stewart*, one wound required stitches. Because we have held that superficial cuts—even those that require stitches—do not constitute a “serious physical injury,” it would be incongruous to contend that such cuts and bruises can cause the “extreme physical pain” required to elevate a murder to one that is death eligible.²

Furthermore, in *Stewart* we specifically noted the absence of evidence of the degree of pain suffered. Although the victim in *Stewart* was alive and could testify as to the degree of pain, whereas Junior is not, in *People v Bohn* (41 NY3d 455 [2024]), which we heard and decided simultaneously with this case, the record contained expert testimony as to the extreme degree of pain suffered by the decedent. Such testimony could have been attempted here, but instead, the medical examiner testified that the superficial wounds were not related to the degree of pain, and offered no testimony about the degree of pain likely caused by such wounds.

B.

It is also important to note that the legislature has chosen to enhance the available sentences when certain egregious circumstances are met. Of particular relevance here is Penal Law § 125.26, which itemizes the circumstances in which a murder can become an “aggravated murder,” which renders it a class A-I felony. That section was added in 2005, and it was amended in 2009 to add what is now section 125.26 (2), which provides that a murder is an A-I felony when:

2. See also *People v Murray*, 222 AD3d 496 (1st Dept 2023) (three-centimeter cut that required stitches did not constitute a serious physical injury); *People v Minchala*, 194 AD3d 754, 754-755 (2d Dept 2021) (evidence legally insufficient to show serious physical injury when victim was “stabbed multiple times . . . by multiple rival gang members” and the “multiple lacerations and wounds to his neck, head, chest, and abdomen” were treated with sutures).

“2. (a) With intent to cause the death of a person less than fourteen years old, he or she causes the death of such person, and the defendant acted in an especially cruel and wanton manner pursuant to a course of conduct intended to inflict and inflicting torture upon the victim prior to the victim’s death. As used in this subdivision, ‘torture’ means the intentional and depraved infliction of extreme physical pain that is separate and apart from the pain which otherwise would have been associated with such cause of death; and

“(b) The defendant was more than eighteen years old at the time of the commission of the crime.”

When interpreting the torture murder provision in Penal Law § 125.27 (1) (a) (x), we should keep in mind the above provision. We presume the legislature is familiar with its own statutory scheme (see *e.g. People v Hedgeman*, 70 NY2d 533, 537 [1987]; *People v Roberts*, 31 NY3d 406, 418 [2018]), which presumption is particularly strong where the two provisions both exist in the same code and, indeed, are in immediately adjacent sections. The majority’s broad interpretation of Penal Law § 125.27 (1) (a) (x) would render section 125.26 (2) entirely superfluous. Perhaps more importantly, section 125.26 (2) (a) evidences a legislative judgment that an A-I felony for torture murder should be limited to extreme physical pain that is “separate and apart from the pain which otherwise would have been associated with such cause of death.” It would make no sense to impose that additional requirement on the torture murder of a victim under 14 years of age, while having no such requirement for the torture murder of adults (or 14 year olds).

The broader point to take from Penal Law § 125.26 is that the legislature has carefully crafted the Penal Law to designate certain types of murders A-I felonies. The legislature’s supplementation of the Penal Law through the enactment of section 125.26 should bear on our interpretation of provisions of the Penal Law, which we should interpret not in isolation so as to reach a result that renders the later provision meaningless, but rather as part of an integrated statutory scheme (see *Matter of Mancini v Office of Children & Family Servs.*, 32 NY3d 521, 525 [2018]). In sum, the statutory structure, our case law, and common sense compel the conclusion that, without some different evidence as to the degree of pain, superficial wounds do not rise to the level of causing “extreme

physical pain” as contemplated by Penal Law § 125.27 (1) (a) (x).

II.

The gang attack on Junior should not be deemed to constitute a course of conduct, because it is chargeable as a single act under the Penal Law, not a series of separate crimes. A continuous series of blows, stabs or gunshots are not each chargeable as a separate crime. Here, the attack was continuous, and although it involved a group of assailants involved in a concerted attack (and therefore each could be charged with the acts of all the others), had Junior not died, no attacker could have been convicted of a separate count of assault for each blow or cut (*see e.g. People v Kaid*, 43 AD3d 1077, 1079-1080 [2d Dept 2007] [(T)he four defendants, acting in concert, committed one continuous assault upon the complainant over a short period of time, with no pronounced break. The fact that more than one dangerous instrument allegedly was used by the defendants, and more than one blow was struck causing the complainant several injuries, does not transform this single criminal incident into multiple assaults”]; *People v Genao*, 154 AD3d 492, 493 [1st Dept 2017] [holding a single assault count not duplicitous because the “trial evidence established a single, continuous fast-paced assault on a taxi driver, even if the assault began inside the taxi and quickly moved outside of it, and even if more than one weapon was used”]).

Although I would agree with the majority that a course of conduct requires more than a single act, I would hold that a single continuous series of blows, strikes or shots is a single act for the purposes of the course-of-conduct requirement in Penal Law § 125.27 (1) (a) (x), just as it is in our jurisprudence on duplicitousness. Otherwise, a huge number of conventional murders will be punishable as torture murder. For example, the medical examiner in this case testified that some of the superficial cuts could have been caused by fingernails. Under the majority’s logic, someone who grabbed a victim’s arm, scratching it, and then killed the person by a method satisfying the majority’s definition of “extreme physical pain” (which the fingernail scratch might be) could be convicted of torture murder.

III.

That brings me to my third point: the majority’s opinion either provides no meaningful guidance or transforms a huge

number of conventional homicides into A-I felonies. The facts in this case are horrific, and the accompanying public outrage is completely appropriate. But that should not factor into our determination of whether the gang murder of Junior satisfies the requirement of proving that the defendants engaged in a course of conduct intended to cause, and at least two acts of which caused, extreme physical pain. Suppose a defendant fires two shots, one which grazes his victim, causing a superficial skin injury, and the other kills him in an extremely painful way; or the defendant slashes the victim with a broken bottle cutting only the epidermis, and then kicks the victim to death. Are those now chargeable as torture murder?

Sadly, those types of homicides, and other conceptually equivalent variants, are quite common. But it cannot have been the legislature's intention to transform all such homicides into A-I homicides. The entire structure of the Penal Law—particularly as to homicides, but as to other crimes as well—indicates otherwise, because the legislature has made careful gradations and enhancements applicable to specific circumstances.³ Gang assaults resulting in the victim's death have occurred with unfortunate frequency for decades now, yet, unlike the enhancements for gang assault, the legislature has not chosen to enhance the punishment for gang-related murders. As horrifically senseless and brutal the gang killing of a completely uninvolved teenager is, that horror does not transform a gang murder into torture murder. Instead, if we accept the proposition that the hypotheticals I provided above are not facts that would permit prosecution for torture murder, it remains unclear where the line is. I am left to wonder, though, whether the horror of this case provides a one-off exception to a yet invisible rule.

SINGAS, J. (concurring). I concur in the result and with Chief Judge Wilson's opinion, except insofar as it concludes that the evidence that defendant "relished" or "evidenced a sense of pleasure" in "the infliction of extreme physical pain" was legally insufficient (Penal Law § 125.27 [1] [a] [x]). Based on defendant's own statements delighting in the vulnerable location of the fatal wound and the fact that the victim was not going to

3. For example, the legislature enacted specific crimes related to gang assault in the first and second degrees, each of which elevates the level of felony by one step beyond what is provided absent gang involvement. (*Compare* Penal Law §§ 120.05 and 120.10 *with* §§ 120.06 and 120.07.)

be able to eat “for a good long time,” I believe a jury could have rationally concluded that this element was satisfied.

Judges RIVERA, GARCIA, CANNATARO and HALLIGAN concur. Chief Judge WILSON concurs in result in an opinion. Judge SINGAS concurs in result in a separate concurring opinion.

Order insofar as appealed from affirmed.

[237 NE3d 796, 213 NYS3d 730]

In the Matter of LUIS JAIME, Respondent, v CITY OF NEW YORK,
Appellant.

In the Matter of ADAN OROZCO, Respondent, v CITY OF NEW
YORK, Appellant.

Argued and submitted February 13, 2024; decided March 21, 2024

SUMMARY

APPEAL, in the first above-entitled proceeding, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 19, 2022. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Mitchell J. Danziger, J.), which had granted the petition for leave to file late notices of claim.

APPEAL, in the second above-entitled proceeding, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 16, 2021. The Appellate Division affirmed an order of the Supreme Court, New York County (Dakota D. Ramseur, J.; op 2020 NY Slip Op 33383[U]), which had granted the petition for leave to file a late notice of claim to the extent of deeming petitioner's claims for false arrest and malicious prosecution to be timely.

Matter of Jaime v City of New York, 205 AD3d 544, reversed.

Matter of Orozco v City of New York, 200 AD3d 559, reversed.

HEADNOTES

Municipal Corporations — Notice of Claim — Late Notice — Actual Knowledge

1. In a proceeding pursuant to General Municipal Law § 50-e (5) in which petitioner failed to offer any evidence establishing respondent city's actual knowledge of the essential facts constituting his false arrest and malicious prosecution claims, the trial court abused its discretion in granting petitioner leave to file a late notice of claim. Petitioner failed to establish any of the factors on which he relied. The petition verified by petitioner's attorney asserted that the actual knowledge of the police officers who participated in the arrest and prosecution could be imputed to respondent, and that respondent also acquired actual knowledge through its alleged possession of records that its officers were required to create during the course of the investigation and prosecution. However, without any competent evidence, the trial court was unable to undertake a fact-specific inquiry into whether respondent acquired actual knowledge through any of its employees. Furthermore, petitioner's failure to submit evidence of the contents of the alleged records was fatal to his argument that respondent acquired actual knowledge from the existence

of such records. There was no suggestion that petitioner's attorney attempted to obtain the records and was refused, nor did petitioner seek to compel respondent to produce any papers necessary to the determination of his petition. Insofar as petitioner argued that respondent would not be substantially prejudiced by the late filing because it acquired timely actual knowledge, petitioner's failure to establish actual knowledge was fatal, and petitioner also failed to provide a reasonable excuse for his late notice.

Municipal Corporations — Notice of Claim — Late Notice — Actual Knowledge

2. In a proceeding pursuant to General Municipal Law § 50-e (5) in which the only evidence submitted by petitioner undermined his claim that respondent city had actual knowledge of alleged incidents in which correction officers and/or inmates assaulted petitioner during his detention at a city jail, the trial court abused its discretion in granting petitioner leave to file a late notice of claim. The grievances in the record demonstrated that petitioner was familiar with the grievance procedure and repeatedly availed himself of it, and also that he knew how to obtain copies of the grievances he filed. Yet the absence of any grievances bearing on the incidents described in the late notices of claim suggested that he never filed such a grievance. Given the absence of any relevant evidence, it would be entirely speculative to consider the possibility that petitioner did not file a grievance for fear of reprisal. Further, neither the allegation that petitioner sustained injuries in the attacks for which he sought medical attention in the infirmary, nor the allegation that the department of correction created or maintained records relating to those injuries, established that respondent acquired actual knowledge of the essential facts constituting the claim. Petitioner provided no evidence that he told the infirmary personnel his injuries were caused by correction officers, nor was there any indication that he unsuccessfully sought production of these alleged records. Petitioner failed to meet his initial burden on the substantial prejudice factor, as he argued that respondent was not substantially prejudiced by the late filing because it acquired timely actual knowledge. Petitioner's claimed reasonable excuse for the late filing was his continued detention, difficulty securing legal representation while in jail, and the effects of the COVID-19 pandemic. However, under the particular facts of the case, petitioner's excuse, even if substantiated, would not by itself support a discretionary extension of time in which to serve a late notice of claim.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Municipal Corporations, Counties, and Other Political Subdivisions §§ 595, 597, 598; AM JUR 2d Penal and Correctional Institutions §§ 25, 118, 173.

CARMODY-WAIT 2d Actions By and Against Public Bodies and Public Officers §§ 144:84, 144:88, 144:100, 144:101, 144:115–144:117.

McKINNEY'S, General Municipal Law § 50-e (5).

NY JUR 2d Government Tort Liability §§ 434, 435, 443–446; NY JUR 2d Penal and Correctional Institutions § 117.

NEW YORK LAW OF TORTS §§ 17:26, 17:27.

ANNOTATION REFERENCE

See ALR Index under Municipal Corporations; Notice of Claims; Prisons and Prisoners.

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Query: leave /s late /2 notice /3 claim & “actual knowledge” /s inquiry

POINTS OF COUNSEL

Sylvia O. Hinds-Radix, Corporation Counsel of the City of New York, New York City (Lorenzo Di Silvio, Richard Dearing, Ingrid R. Gustafson and Jane L. Gordon of counsel), for appellant in the first above-entitled proceeding. I. The First Department erred in granting a petition that was inadequate by any measure. (Matter of Beary v City of Rye, 44 NY2d 398; Rosner v Metropolitan Prop. & Liab. Ins. Co., 96 NY2d 475; Bornschein v City of New York, 203 AD3d 570; Matter of Figueroa v City of New York, 195 AD3d 467; Matter of Konstantinides v City of New York, 278 AD2d 235; Matter of March v Town of Wappinger, 29 AD3d 998; Matter of Grajko v City of New York, 150 AD3d 595; Matter of Kelley v New York City Health & Hosps. Corp., 76 AD3d 824; Matter of Maldonado v City of New York, 152 AD3d 522; Monell v New York City Dept. of Social Servs., 436 US 658.) II. Separately, the Appellate Division’s actual-knowledge analysis compounds its errors in Matter of Orozco v City of New York (200 AD3d 559 [1st Dept 2021]). (Matter of Trump-Equitable Fifth Ave. Co. v Gliedman, 57 NY2d 588.)

Sim & DePaola, LLP, Bayside (Sang J. Sim of counsel), for respondent in the first above-entitled proceeding. I. When considering an application for leave to file a late notice of claim, a court should consider all relevant facts and circumstances, including whether there is a reasonable excuse for the delay, whether the public corporation acquired actual knowledge of the facts constituting the claim within 90 days or a reasonable time thereafter, and whether the public corporation’s defense would be substantially prejudiced by the delay. (Matter of Catherine G. v County of Essex, 3 NY3d 175; Matter of Acosta v City of New York, 39 AD3d 629; Christoforatos v City of New York, 285 AD2d 622; Matter of D’Anjou v New York City Health & Hosps. Corp., 196 AD2d 818; Frith v New York City Hous. Auth., 4 AD3d 390; Matter of Porcaro v City of New York, 20 AD3d

357; *Camacho v City of New York*, 187 AD2d 262; *Teresta v City of New York*, 304 NY 440; *Matter of Santana v City of New York*, 183 AD2d 665; *Nardi v County of Nassau*, 18 AD3d 520.) II. The City of New York did receive notice of the claim within 90 days of the accident. (*Teresta v City of New York*, 304 NY 440; *Matter of Cicio v City of New York*, 98 AD2d 38; *Cohen v Pearl Riv. Union Free School Dist.*, 51 NY2d 256; *Beary v City of Rye*, 44 NY2d 398; *Grullon v City of New York*, 222 AD2d 257; *Matter of Reisse v County of Nassau*, 141 AD2d 649; *Weinzel v County of Suffolk*, 92 AD2d 545.) III. Petitioner-respondent proffered a reasonable excuse for the delay. (*Rodriguez v County of Nassau*, 126 AD2d 536.) IV. Respondent-appellant will not be prejudiced. (*Nunez v City of New York*, 307 AD2d 218; *Grullon v City of New York*, 222 AD2d 257; *Matter of Holmes v City of New York*, 189 AD2d 676; *Strobel v County of Lewis*, 147 AD2d 948; *Matter of Andrew T.B. v Brewster Cent. School Dist.*, 18 AD3d 745; *Matter of Lanphere v County of Washington*, 301 AD2d 936; *Matter of Kelli A. v Galway Cent. School Dist.*, 241 AD2d 883; *Matter of Gerzel v City of New York*, 117 AD2d 549; *Teresta v City of New York*, 304 NY 440; *Hayden v Incorporated Vil. of Hempstead*, 103 AD2d 765.)

Sylvia O. Hinds-Radix, Corporation Counsel of the City of New York, New York City (Elina Druker, Richard Dearing, Ingrid R. Gustafson and Jane L. Gordon of counsel), for appellant in the second above-entitled proceeding. I. The Appellate Division's decision vitiates General Municipal Law § 50-e's key actual-knowledge prong. (*Matter of Roberts Real Estate v New York State Dept. of State, Div. of Licensing Servs.*, 80 NY2d 116; *Parker v City of New York*, 206 AD3d 936; *Matter of Singleton v City of New York*, 198 AD3d 498; *Matter of Nunez v Village of Rockville Ctr.*, 176 AD3d 1211; *Matter of Torres v County of Westchester*, 176 AD3d 720; *Matter of Nicholson v City of New York*, 166 AD3d 979; *Tarquinio v City of New York*, 84 AD2d 265; *Pierson v City of New York*, 56 NY2d 950; *Matter of Fethallah v New York City Police Dept.*, 150 AD3d 998.) II. Adan Orozco's showing on the remaining factors was also insufficient, requiring denial of his petition. (*Monell v New York City Dept. of Social Servs.*, 436 US 658; *Matter of Felice v Eastport / South Manor Cent. School Dist.*, 50 AD3d 138; *Diallo v City of New York*, 224 AD2d 339; *Justiniano v New York City Hous. Auth. Police*, 191 AD2d 252; *Erichson v City of Poughkeepsie Police Dept.*, 66 AD3d 820; *Tatum v City of New York*, 161 AD2d 580; *Nunez v City of New York*, 307 AD2d 218.)

Sim & DePaola, LLP, Bayside (Sang J. Sim of counsel), for

respondent in the second above-entitled proceeding. I. When considering an application for leave to file a late notice of claim, a court should consider all relevant facts and circumstances, including whether there is a reasonable excuse for the delay, whether the public corporation acquired actual knowledge of the facts constituting the claim within 90 days or a reasonable time thereafter, and whether the public corporation's defense would be substantially prejudiced by the delay. (*Matter of Catherine G. v County of Essex*, 3 NY3d 175; *Matter of Acosta v City of New York*, 39 AD3d 629; *Christoforatos v City of New York*, 285 AD2d 622; *Matter of D'Anjou v New York City Health & Hosps. Corp.*, 196 AD2d 818; *Frith v New York City Hous. Auth.*, 4 AD3d 390; *Matter of Porcaro v City of New York*, 20 AD3d 357; *Teresta v City of New York*, 304 NY 440; *Nardi v County of Nassau*, 18 AD3d 520; *Barnes v County of Onondaga*, 103 AD2d 624, 65 NY2d 664; *Bay Terrace Coop. Section IV v New York State Employees' Retirement Sys. Policemen's & Firemen's Retirement Sys.*, 55 NY2d 979.) II. Actual notice can be imputed to the City of New York. (*Matter of Melendez v City of New York*, 245 AD2d 564; *Grullon v City of New York*, 222 AD2d 257; *Nunez v City of New York*, 307 AD2d 218; *Cohen v Pearl Riv. Union Free School Dist.*, 51 NY2d 256; *Matter of Beary v City of Rye*, 44 NY2d 398; *Matter of Townson v New York City Health & Hosps. Corp.*, 158 AD3d 401; *Matter of Reisse v County of Nassau*, 141 AD2d 649; *Weinzel v County of Suffolk*, 92 AD2d 545; *Ansaldo v City of New York*, 92 AD2d 557.) III. There would be no prejudice to the City of New York. (*Matter of Holmes v City of New York*, 189 AD2d 676; *Strobel v County of Lewis*, 147 AD2d 948; *Grullon v City of New York*, 222 AD2d 257; *Matter of Newcomb v Middle Country Cent. Sch. Dist.*, 28 NY3d 455; *Matter of Gerzel v City of New York*, 117 AD2d 549; *Teresta v City of New York*, 304 NY 440; *Hayden v Incorporated Vil. of Hempstead*, 103 AD2d 765; *Matter of Holmes v City of New York*, 189 AD2d 676; *Matter of Newcomb v Middle Country Cent. Sch. Dist.*, 28 NY3d 455; *Sarjoo v New York City Health & Hosps. Corp.*, 252 AD2d 449.) IV. Lack of reasonable excuse is not fatal. (*Matter of Dell'Italia v Long Is. R.R. Corp.*, 31 AD3d 758; *Matter of Chambers v Nassau County Health Care Corp.*, 50 AD3d 1134; *Nardi v County of Nassau*, 18 AD3d 520; *Heck v Humphrey*, 512 US 477.)

OPINION OF THE COURT

TROUTMAN, J.

The issue here is whether the trial courts abused their discre-

tion in granting petitioners leave to serve a late notice of claim against respondent City of New York (City) pursuant to General Municipal Law § 50-e (5). We hold that the courts abused their discretion in determining that the alleged participation of the City's employees in an intentional tort, and the City's alleged creation or possession of records related to the events underlying the claims, provided the City with actual knowledge of the essential facts constituting the claims. We therefore reverse the orders of the Appellate Division.

I.

Matter of Orozco v City of New York

On July 23, 2020, petitioner Adan Orozco served a notice of claim alleging that, on July 26, 2018, officials of the New York City Police Department (NYPD) and the District Attorney's Office¹ obtained a warrant for his arrest, absent probable cause, by submitting to the issuing magistrate "false" and "fabricated" evidence of an unspecified nature. The officials allegedly arrested Orozco on the fraudulent warrant at a specified address on August 13, 2018, and interrogated him in an attempt to coerce him into implicating the "true criminal targets" of the investigation. Orozco alleged that he was then maliciously prosecuted with the same coercive purpose based on "patently false" and "fabricat[ed]" evidence of an unspecified nature that the officials provided to the prosecutor. Orozco allegedly was "wrongfully detained" for five months until December 24, 2018, when the criminal proceedings terminated in his favor. He sought to assert claims of, inter alia, false arrest and malicious prosecution.

Orozco filed a petition verified by his attorney for leave to serve a late notice of claim, asserting that the actual knowledge of the police officers who participated in the arrest and prosecution may be imputed to the City, and that the City also acquired actual knowledge through its alleged possession of records that its officers were required to create during the course of the investigation and prosecution. Orozco further asserted that, because the City had actual knowledge, it would not be

1. Orozco specifically named the Special Narcotics Prosecutor of the City of New York, who is an assistant district attorney on the staff of the District Attorney's Office of one of the City's five boroughs (*see* Judiciary Law § 177-c; *People v Viviani*, 36 NY3d 564, 579 [2021]), as well as five officials who work under the auspices of the Office of the Special Narcotics Prosecutor.

substantially prejudiced by the late filing. Orozco also asserted that his need to defend against the criminal charges constituted a reasonable excuse for his failure to serve a timely notice of claim, as did his limited English, his California residency, and the effects of the COVID-19 pandemic. The proposed notice of claim was attached to the petition, but Orozco did not submit an affidavit or any other evidence in support of his petition.

In opposition, the City argued that Orozco failed to meet his initial burden of proof with respect to actual knowledge, substantial prejudice, or reasonable excuse. The City argued that knowledge acquired by a police officer during the course of an investigation should not be imputed to the City, and that the mere existence of records is insufficient to provide the City with actual knowledge. Furthermore, the City argued that Orozco failed to meet his initial burden to show lack of prejudice, and that he had no reasonable excuse for the late filing because his false arrest and malicious prosecution claims did not accrue until he was released from detention and the prosecution terminated.

Supreme Court granted the petition in relevant part (*Matter of Orozco v City of New York*, 2020 NY Slip Op 33383[U] [Sup Ct, NY County 2020]),² and the Appellate Division affirmed (200 AD3d 559 [1st Dept 2021]), reasoning that the City acquired actual knowledge due to “the fact” that its officers “participated and were directly involved in” the conduct giving rise to the claims and “are in possession of records and documents relating to the incident” (*id.* at 560). The Court concluded that the City’s “actual knowledge may be presumed by the very nature of the action and the allegations” (*id.* at 562). In light of the City’s actual knowledge, Orozco made an

2. Supreme Court granted the petition only with respect to the false arrest and malicious prosecution claims. Those claims were timely because they accrued on December 24, 2018, the date Orozco was released from jail (see *Britt v Legal Aid Socy.*, 95 NY2d 443, 448 [2000]; *McQueen v City of New York*, 209 AD3d 469, 470 [1st Dept 2022]), and thus the limitations period of one year and 90 days prescribed in General Municipal Law § 50-i (1) had not expired before March 20, 2020, the date the governor issued an executive order containing a provision that tolled all limitations periods due to the COVID-19 pandemic (see Executive Order [A. Cuomo] No. 202.8 [9 NYCRR 8.202.8]). That provision that remained in effect in July 2020 when Orozco filed his late notice of claim (see Executive Order [A. Cuomo] No. 202.72 [9 NYCRR 8.202.72] [lifting the toll as of Nov. 4, 2020]). Supreme Court denied the petition with respect to the remaining claims, which were time-barred because they had earlier accrual dates.

initial showing that the City would not be prejudiced, and the City made no particularized showing of prejudice in opposition (*see id.* at 563). Orozco's excuse, though "debatable," was "sufficient under the circumstances" (*id.*). One Justice dissented on the ground that Orozco had submitted no evidence in support of his petition (*see id.* at 564-566).

We granted the City leave to appeal (39 NY3d 903 [2022]).

Matter of Jaime v City of New York

On May 6, 2021, petitioner Luis Jaime filed a petition attaching five proposed notices of claim, each relating to a different date between June 21, 2019, and October 8, 2020, while Jaime was detained at Riker's Island. Although each notice alleged a separate incident, the allegations in the notices used nearly identical language with little variation. In the first notice, Jaime alleged that, on or about June 21, 2019, at approximately 3:00 p.m., he was attacked by correction officers, including five officers identified by title and surname, "and/or inmates," who struck him about the body, head, and face. Prior to the attack, he allegedly informed Department of Correction (DOC) employees that he was in "imminent danger" of attack by "officers and/or other inmates," and that his safety would be in jeopardy if not placed in protective custody, but the employees allegedly responded with "deliberate indifference" and were not at their posts at the time of attack. Jaime further alleged that, in the aftermath of the attack, he sought and received medical attention in the infirmary for injuries, including a fractured arm. The allegations in the remaining notices differ only in the dates and times and the injuries sustained, except for the fourth notice, which also names a different set of officers and alleges a different manner of attack.

Jaime, who was represented by the same attorney as Orozco, raised essentially the same arguments as Orozco, except that Jaime's claimed reasonable excuse for the late filing was his continued detention, difficulty securing legal representation while in jail, and the effects of the COVID-19 pandemic. Like Orozco, Jaime attached his proposed notices of claim to his petition but did not submit an affidavit or other evidence with his petition.

In opposition, the City argued that Jaime failed to prove that the City had actual knowledge because he submitted no evidence and, moreover, the involvement of its employees does not establish that the City had actual knowledge. The City further

argued that, because Jaime failed to prove actual knowledge, he failed to meet his initial burden to show a lack of prejudice. The City did not address whether Jaime had a reasonable excuse for his delay.

Jaime thereafter submitted documents, including copies of grievances that he filed while jailed at Riker's Island, but none of those grievances or any of the other documents relate to the incidents alleged in the notices of claim. The significance of the documents to Jaime's claims is unclear, and he has not provided an explanation.

Supreme Court granted the petition, and the Appellate Division affirmed (*Matter of Jaime v City of New York*, 205 AD3d 544 [1st Dept 2022]), concluding that the City had actual knowledge due to "the fact that the officers who allegedly assaulted petitioner or witnessed the incidents would, as respondent's employees, have had immediate knowledge of the events giving rise to this dispute" (*id.* at 544, citing *Orozco*, 200 AD3d at 560).

We granted the City leave to appeal (39 NY3d 903 [2022]).

II.

"[W]hen the State of New York waived its sovereign immunity in 1929, its subdivisions, including the City, also lost their protection from suit" (*Campbell v City of New York*, 4 NY3d 200, 205 [2005]). "In recognition of this loss of sovereign immunity, the legislature has created certain protections for municipalities in General Municipal Law article 4 that do not apply to private tort defendants" (*Colon v Martin*, 35 NY3d 75, 82 [2020, Fahey, J., concurring], citing *Bender v New York City Health & Hosps. Corp.*, 38 NY2d 662, 667 [1976]). As part of these protections, a litigant generally may not maintain a tort claim against a municipality unless the litigant served upon the municipality a notice of claim within 90 days of the claim's accrual (*see* General Municipal Law §§ 50-i [1]; 50-e [1]). The purpose of the notice of claim is to alert the municipality to the existence of the claim so that it can promptly investigate and preserve any relevant evidence before the passage of time renders such evidence unavailable or lessens its probative value (*see Matter of Beary v City of Rye*, 44 NY2d 398, 412 [1978]; Siegel & Connors, *New York Practice* § 32 at 43 [6th ed 2018]). In furtherance of that purpose, the service of a notice of claim triggers the municipality's right to compel oral and physical examinations of a claimant before an action is com-

menced—a unique discovery tool unavailable to the typical tort defendant (see General Municipal Law § 50-h; *Colon*, 35 NY3d at 83).

A claimant’s failure to file a timely notice of claim is not necessarily fatal. Courts have broad discretion to extend the 90-day time limitation “in exceptional cases” upon consideration of all relevant factors, provided the statute of limitations of one year and 90 days has not already expired (*Beary*, 44 NY2d at 412; see General Municipal Law § 50-e [5]). In determining whether to grant or deny leave to serve a late notice of claim, the court must consider “in particular” whether the municipality “acquired actual knowledge of the essential facts constituting the claim within [90 days of the claim’s accrual] or within a reasonable time thereafter” (General Municipal Law § 50-e [5]; see *Matter of Newcomb v Middle Country Cent. Sch. Dist.*, 28 NY3d 455, 461 [2016]). Courts are to place “great weight” on this factor (*Beary*, 44 NY2d at 412), which the party seeking leave has the burden of establishing through the submission of nonspeculative evidence (see *Washington v City of New York*, 72 NY2d 881, 883 [1988]; *Dalton v Akron Cent. Schools*, 107 AD3d 1517, 1519 [4th Dept 2013], *affd* 22 NY3d 1000 [2013]).

Aside from nonexclusive references to a municipality’s “attorney or its insurance carrier,” the statute does not designate precisely whose knowledge is imputable to the municipality (General Municipal Law § 50-e [5]). But courts should not assume that every municipal employee’s knowledge of essential facts is necessarily imputed to the municipality. Allowing imputation in every case would undermine the purpose of the notice of claim requirement because not every employee’s knowledge will necessarily afford the municipality an opportunity to commence a prompt investigation. Generally, knowledge of essential facts as to time and place by an actor in a position to investigate will suffice (see *Rosenbaum v City of New York*, 8 NY3d 1, 11 [2006]). Whether a particular employee’s actual knowledge is imputable to the municipality involves a fact-specific inquiry committed to the sound discretion of the trial court, whose determination should not be disturbed on appeal so long as it is supported by facts in the record (see *Dalton*, 107 AD3d at 1518-1519).

While the contents of records in the municipality’s possession may sometimes be sufficient to demonstrate that a municipality acquired actual knowledge of the essential facts constituting the claim within a reasonable time, “mere posses-

sion or creation of . . . records does not ipso facto establish . . . ‘actual knowledge’” (*Wally G. v New York City Health & Hosps. Corp. [Metro. Hosp.]*, 27 NY3d 672, 677 [2016] [“medical records must ‘evince that the medical staff, by its acts or omissions, inflicted an injury on plaintiff’ in order for the medical provider to have actual knowledge of the essential facts” (brackets omitted)]; see *Parker v City of New York*, 206 AD3d 936, 938 [2d Dept 2022] [“Unsubstantiated and conclusory allegations that the municipality acquired timely actual knowledge of the essential facts constituting the claim through the contents of reports and other documentation are insufficient”]).

In addition to actual knowledge, the courts must consider “all other relevant facts and circumstances” (General Municipal Law § 50-e [5]), and “the presence or absence of any one factor is not determinative” (*Matter of Morris v County of Suffolk*, 88 AD2d 956, 957 [2d Dept 1982], *affd* 58 NY2d 767 [1982]). One oft-cited factor is whether the municipality is substantially prejudiced by service of the late notice of claim (see General Municipal Law § 50-e [5]). Under the burden-shifting framework established in *Newcomb*, the petitioner has the initial burden to present “some evidence or plausible argument that supports a finding of no substantial prejudice” (28 NY3d at 466) and, if such a showing is made, the burden shifts to the municipality “to rebut that showing with particularized evidence” (*id.* at 467).

Courts also commonly consider whether the petitioner had a reasonable excuse for failing to serve a timely notice of claim. While the statute does not explicitly provide for the consideration of that factor, the statute is nonexhaustive and this factor has firmly taken root in the case law (see *e.g. id.* at 463; *Matter of Simpson v City of New York*, 222 AD3d 986, 986 [2d Dept 2023]; *Arnold v Town of Camillus*, 222 AD3d 1372, 1376 [4th Dept 2023]; *Matter of Benavides v New York City Health & Hosps. Corp.*, 220 AD3d 458, 458 [1st Dept 2023]; *Matter of Doe v Elmira City Sch. Dist.*, 209 AD3d 1187, 1187 [3d Dept 2022]; *Dalton*, 107 AD3d at 1518).

Where, as here, there is no action already pending, a claimant must seek leave to serve a late notice of claim by bringing a special proceeding against the municipality pursuant to CPLR article 4 (see *Matter of Jordan v City of New York*, 38 AD3d 336, 338 n 2 [1st Dept 2007]; *Matter of Guarneri v Town of Oyster Bay*, 224 AD2d 695, 695 [2d Dept 1996]; New York Practice § 32 at 47 & n 51). The burden of production is

on the petitioner in a special proceeding (*see* CPLR 409 [a]), and the court applies settled summary judgment standards (*see Matter of Bank of N.Y. Mellon*, 202 AD3d 465, 467 [1st Dept 2022]), under which the party seeking relief must establish entitlement to judgment as a matter of law by submitting admissible evidence (*see Friends of Animals v Associated Fur Mfrs.*, 46 NY2d 1065, 1067 [1979]). That said, if papers “necessary to the consideration of the questions involved” are in the possession of the municipality, the petitioner may demand the papers produced by serving a notice with the petition (CPLR 409 [a]).

Ultimately, while the decision to grant or deny leave to file a late notice of claim is committed to the court’s “broad discretion,” its determinations “must be supported by record evidence” (*Newcomb*, 28 NY3d at 465).

III.

Matter of Orozco v City of New York

[1] Orozco’s allegation that NYPD officers and the District Attorney’s Office participated in his arrest and prosecution does not establish that the City acquired actual knowledge of the essential facts constituting his false arrest and malicious prosecution claims (*see* General Municipal Law § 50-e [5]). As emphasized by the dissenting Justice at the Appellate Division, Orozco offered no evidence establishing the City’s actual knowledge (*see Orozco*, 200 AD3d at 564-565 [Moulton, J., dissenting]). Although a “‘verified pleading’ may be utilized as an affidavit whenever the latter is required” (CPLR 105 [u]; *see Sanchez v National R.R. Passenger Corp.*, 21 NY3d 890, 891 [2013]), the verified pleading has evidentiary value only if the verifier has personal knowledge of the facts (*see Juseinoski v Board of Educ. of City of N.Y.*, 15 AD3d 353, 356 [2d Dept 2005] [“a pleading verified by an attorney pursuant to CPLR 3020 (d) (3), and not by someone with personal knowledge of the facts, is insufficient to establish (a claim’s) merits”]; *see also Zuckerman v City of New York*, 49 NY2d 557, 563 [1980] [“the bare affirmation of (an) attorney who demonstrated no personal knowledge of the manner in which the accident occurred . . . is without evidentiary value and thus unavailing”]).

Without any competent evidence, the trial court was unable to undertake a fact-specific inquiry into whether the City

acquired actual knowledge through any of its employees.³ If the alleged fabrication were the work of a single rogue officer in a nonsupervisory role, for example, it is doubtful that the officer would have referred his own illicit conduct for an investigation. The evidence of actual knowledge need not be exhaustive, provided the petitioner meets the applicable evidentiary burden. Orozco might have submitted his own affidavit, copies of papers that he filed in the underlying criminal proceeding, decisions of the criminal court, or other relevant evidence. However, Orozco's mere allegation that NYPD officers participated in his arrest and prosecution does not constitute facts or evidence, and thus does not satisfy his burden of establishing that the City acquired actual knowledge of the essential facts constituting the claims.

If we were to hold that a municipal employee's alleged participation in an intentional tort necessarily provided the municipality with actual knowledge, our holding would create a de facto exemption to the notice of claim requirement for claims of battery, false arrest, and malicious prosecution, among others. This the legislature plainly did not intend because General Municipal Law § 50-e (8) identifies the kinds of tort claims that are categorically exempt from the notice of claim requirements, e.g., those arising out of sex crimes against children (*see* General Municipal Law § 50-e [8] [b]). Claims of false arrest and malicious prosecution are not exempt from the notice of claim requirement.

Furthermore, the alleged existence of records does not suffice to establish actual knowledge (*see Washington*, 72 NY2d at 883). Orozco's failure to submit evidence of the contents of the alleged records is fatal to his argument that the City acquired actual knowledge from the existence of such records. There is no suggestion that Orozco's attorney attempted to obtain the records and was refused, something that easily could have been included in an attorney affirmation. Nor did Orozco seek to compel the City to produce any papers necessary to the determination of his petition (*see* CPLR 409 [a]).

Insofar as Orozco argued that the City would not be substantially prejudiced by the late filing because it acquired timely actual knowledge, Orozco's failure to establish actual knowl-

3. Orozco cannot rely on the actual knowledge of the employees of the District Attorney's Office because the City and the District Attorney's Office "are separate entities" (*Brown v City of New York*, 60 NY2d 897, 898 [1983]).

edge is fatal. Orozco's further argument—that the City would not be substantially prejudiced because it will have to expend resources to defend against his 42 USC § 1983 claims—misapprehends the purpose served by the notice of claim requirement. As discussed above, the purpose is to afford the municipality the opportunity to investigate the claims and preserve evidence (*see Beary*, 44 NY2d at 412), not simply to shield municipalities from litigation costs. Moreover, this argument understates the advantage of facing only a section 1983 claim that can be defended on qualified immunity grounds (*see Savino v City of New York*, 331 F3d 63, 66 [2d Cir 2003]), as opposed to facing that claim plus additional state law claims.

Orozco also failed to provide a reasonable excuse for his late notice. The need to defend against the criminal charges does not provide him with a reasonable excuse because Orozco's false arrest and malicious prosecution claims did not accrue until the date he was released from custody (*see* n 2, *supra*), at which time there were no longer any criminal charges against him. Nor does the COVID-19 pandemic provide a reasonable excuse because Orozco's claims were to expire only days after the pandemic struck New York State (*see id.*). If anything, the pandemic benefited him by giving rise to the executive orders that tolled his claims. Orozco's remaining excuses were offered only in conclusory and perfunctory fashion (*see Ward v New York City Health & Hosps. Corp.*, 82 AD3d 471, 472 [1st Dept 2011]; *Matter of Oliver v City of New York*, 76 AD3d 1017, 1018 [2d Dept 2010]).

Because the court's determination was not supported by the record, the court abused its discretion in granting Orozco's petition (*see Newcomb*, 28 NY3d at 460).

Matter of Jaime v City of New York

[2] Supreme Court likewise abused its discretion in granting Jaime's petition. Unlike Orozco, Jaime appears to have submitted some evidence—copies of grievances that he filed with DOC while detained at Riker's Island. However, those grievances serve only to undermine his claim that the City had actual knowledge. The grievances in the record demonstrate that Jaime was familiar with the grievance procedure and repeatedly availed himself of it, and also that he knew how to obtain copies of the grievances he filed. Yet the absence of any grievances bearing on the incidents described in the late notices of claim suggests that he never filed such a grievance. If such a

grievance were in the record, surely it would comprise at least some evidence that the City had actual knowledge.

The City conceded at oral argument that an incarcerated person might not file a grievance concerning a violent attack by a correction officer for fear of reprisal, a fear that may constitute a reasonable excuse for late service of a notice of claim. It would, however, be entirely speculative for us to consider that possibility here given the absence of any relevant evidence. Were Jaime in fact operating under such a fear, he could have submitted an affidavit attesting to the fact. That affidavit would have constituted evidence supporting an arguably reasonable excuse, which might provide at least some support for a court's discretionary determination to allow late service.

Neither the allegation that Jaime sustained injuries in the attacks for which he sought medical attention in the infirmary, nor the allegation that the DOC created or maintained records relating to those injuries, establishes that the City acquired actual knowledge of the essential facts constituting the claim (*see Wally G.*, 27 NY3d at 677). While medical personnel in the infirmary may be expected to report injuries of inmates that were allegedly caused by correction officers or other employees, Jaime provides no evidence, even in the form of an affidavit, that he told the infirmary personnel his injuries were caused by correction officers. Absent such a linkage, there would be no reason for the infirmary personnel to file any report. Moreover, as with Orozco, there is no indication that Jaime unsuccessfully sought the production of these alleged records and documents from the City.

Jaime thus failed to meet his burden of establishing actual knowledge and, for the same reasons as Orozco, failed to meet his initial burden on the substantial prejudice factor. Because the court's determination was not supported by the record, the court abused its discretion in granting Jaime's petition (*see Newcomb*, 28 NY3d at 460).

IV.

The trial courts' abuse of discretion requires reversal. Although remittal to those courts is generally the preferred disposition given the purely discretionary nature of a determination whether to grant an extension to file a notice of claim (*see Newcomb*, 28 NY3d at 465, 468), we conclude that remittal would serve no purpose in these cases. Orozco failed to establish any of the factors on which he relied and, although Jaime

did offer an unsubstantiated reasonable excuse to which the City preserved no challenge (*see Jaime*, 205 AD3d at 544-545), under the particular facts of this case, Jaime's excuse, even if credited, would not by itself support a discretionary extension of time in which to serve a late notice of claim.

Accordingly, in each matter, the order of the Appellate Division should be reversed, with costs, and the petition to file a late notice of claim denied.

RIVERA, J. (dissenting in part and concurring in part). The common question presented in these joint appeals is whether the Appellate Division abused its discretion in affirming Supreme Court's grant of the respective petitions to file a late notice of claim under General Municipal Law § 50-e (5). In each case, the Appellate Division concluded that the immediate knowledge of the public employees who perpetrated the allegedly tortious acts is automatically imputed to the municipality, thus establishing its actual knowledge of the essential facts constituting the claim within a reasonable time after the claim accrued (*Matter of Orozco v City of New York*, 200 AD3d 559, 560-562 [1st Dept 2021]; *Matter of Jaime v City of New York*, 205 AD3d 544, 544 [1st Dept 2022]). As the majority states, "[w]hether a particular employee's actual knowledge is imputable to the municipality involves a fact-specific inquiry committed to the sound discretion of the trial court" (majority op at 540). Therefore, like the majority, I reject the Appellate Division's per se rule because it supplants the court's discretion.

The question remains whether application of the majority's rule warrants reversal in either or both appeals. To the extent the Court's analysis here may be understood as mandating denial of a late notice petition where the record lacks evidence to suggest the municipality had "actual knowledge of the essential facts constituting the claim," such a reading is contrary to the plain statutory text and our case law, which make clear that no factor is dispositive (General Municipal Law § 50-e [5]). However, I concur in the majority's conclusion that it was an abuse of discretion to grant the petition in *Orozco* for the reasons stated. But because the petition in *Jaime* provides sufficient support for actual knowledge, I would affirm the Appellate Division as to that appeal.

* * *

Section 50-e (5) of the General Municipal Law authorizes a court, "in its discretion, [to] extend the time to serve a notice of

claim” upon a prospective municipal defendant of a tort action. The court shall consider whether the municipality “acquired actual knowledge of the essential facts constituting the claim within [90 days of accrual] or within a reasonable time thereafter” and “shall also consider all other relevant facts and circumstances, including” “a nonexhaustive list of factors that the court should weigh,” such as whether service of a late notice “substantially prejudiced the public corporation in maintaining its defense on the merits” (*Williams v Nassau County Med. Ctr.*, 6 NY3d 531, 535 n 1, 539 [2006], quoting General Municipal Law § 50-e [5]). “Since the statutory notice requirement is not intended to operate as a device to frustrate the rights of individuals with legitimate claims, and because of its remedial nature, it should be liberally construed” (*Matter of Ramos v New York City Hous. Auth.*, 162 AD3d 884, 885 [2d Dept 2018] [internal quotation marks omitted], citing *Matter of Porcaro v City of New York*, 20 AD3d 357, 358 [1st Dept 2005]; see also *People v Brown*, 25 NY3d 247, 251 [2015] [“remedial statutes . . . should be interpreted broadly to accomplish their goals”]). “Because the decision to grant or deny an application for an extension under section 50-e (5) is ‘purely a discretionary one,’ our review is limited to whether the Appellate Division abused its discretion in making such a determination” (*Wally G. v New York City Health & Hosps. Corp. [Metro. Hosp.]*, 27 NY3d 672, 675 [2016] [citations omitted]). A court abuses its discretion under General Municipal Law § 50-e if it acts beyond “the perimeters of reason” (*Williams*, 6 NY3d at 539, quoting *Matter of Murray v City of New York*, 30 NY2d 113, 119 [1972]).

Petitioner Jaime alleged that during his incarceration at Rikers Island he warned numerous Department of Correction officers that he was “in imminent danger of attack” by various other officers and inmates and that his safety would be “in serious jeopardy” unless he were placed in protective custody. He further alleged that his requests were ignored and he was subsequently attacked by several identified officers and unidentified inmates five times between June 2019 and October 2020. The petition included copies of several administrative grievances he filed while incarcerated, although only one referred to an “altercation.” Crucially, he alleged that after each of the attacks, he received medical attention at the North Infirmary Command (NIC). The NIC is based on Rikers and provides medical services to inmates. Petitioner’s injuries surely would have been documented and should have been

investigated, especially given his advance warning of impending danger, if for no other reason than that a failure to do so would expose Rikers officials to liability. A prisoner who goes to the infirmary with significant injuries from a physical assault should prompt an inference of negligence because correction officers have a responsibility to keep prisoners safe (*Sanchez v State of New York*, 99 NY2d 247, 252 [2002] [“Having assumed physical custody of inmates, who cannot protect and defend themselves in the same way as those at liberty can, the State owes a duty of care to safeguard inmates, even from (reasonably foreseeable) attacks by fellow inmates”])).

The majority misinterprets *Wally G.* (27 NY3d 672), which did not foreclose the possibility that an allegation that the City possesses records documenting a petitioner’s injuries could “establish[] that the City acquired actual knowledge of the essential facts constituting the claim” (majority op at 545). That case involved negligence and medical malpractice claims against government-employed medical professionals for birth-related injuries. The Court held that expert affidavits offered by the petitioner simply posited that the City employees “could have engaged in alternative courses of treatment” that would have produced different results, and that “mere assertions that a different course of treatment” could have been followed do not address whether the City had actual knowledge of the essential facts necessary to properly defend itself (27 NY3d at 676-677). In other words, the records in the City’s possession would not have established that City-employed medical providers caused any injury to the petitioner.

But the prison infirmary records here are plainly distinguishable because an injury to an inmate in and of itself places prison officials on notice of a potential tort claim. Indeed, Rikers has a particularly appalling record of inmate injuries. Use of force rates have doubled since the federal monitor began overseeing conditions on Rikers Island, and incidents resulting in “serious injuries have tripled since 2016” (Sam McCann, *Amid Another Report of Rampant Abuse on Rikers, It’s Time to Hold City Jails Accountable*, Vera Institute of Justice [Apr. 27, 2023], available at <https://www.vera.org/news/amid-another-report-of-rampant-abuse-on-rikers-its-time-to-hold-city-jails-accountable> [accessed Mar. 2, 2024]; see also New York City Board of Correction, *Serious Injury Reports in NYC Jails* [Jan. 2019]). The numbers are difficult to verify, however, because of a “systematic lack of accountability” for correction officers, who

have been shown to cover up incidents of violence (*id.*, citing Joshua Needelman, *3 Rikers Officers Charged With Covering Up Attack on a Detainee*, NY Times, Jan. 17, 2023, available at <https://www.nytimes.com/2023/01/17/nyregion/rikers-officers-inmate-attack-cover-up.html> [accessed Mar. 2, 2024]). Thus, the fact of an injury treated at the NIC must have sent up red flags to the Rikers administration.

Petitioner alleged that his post-assault treatment at the Rikers infirmary generated medical reports regarding his injuries, which are in the City's possession. He also specifically identified the officers that he alleged had direct personal knowledge of the facts underlying the incident. This evidence supports a conclusion that the City had actual knowledge of the facts constituting petitioner's tort claim. It also supports the conclusion that "the delay in serving the notice of claim" did not "substantially prejudice[] the [City] in maintaining its defense on the merits" (General Municipal Law § 50-e [5]). As a final point, the record belies the majority's assertion that it "would be entirely speculative" to consider that any delay in filing a timely notice was due to Jaime's fear of retaliation. Jaime approached officials to seek protection because he feared an attack like the one that caused his injury. It is not speculation but rather acknowledgement of the realities of incarceration to infer that he feared retribution if he reported that officers and inmates attacked him.

The majority's primary disagreement with this reasoning is that Jaime's claims are mere allegations, rather than record evidence (*see* majority op at 545). In other words, while infirmary staff's knowledge of Jaime's injuries or medical documentation of the same might be sufficient to establish actual knowledge, the knowledge of infirmary staff ought to have been asserted in an affidavit or the records ought to have been sought through CPLR 409 (a). These formalities are not explicitly required by General Municipal Law § 50-e (5) and I believe it is within the discretion of the trial court not to require them. Here, under the majority's analysis, all that may have been missing was a declaration from Jaime that he told the infirmary staff that his injuries were caused by a correction officer.

On this record, the Appellate Division did not abuse its discretion in affirming Supreme Court's assessment of the factors for extending the time for Jaime to file a notice of claim. I dissent.

In *Matter of Jaime v City of New York*: Order reversed, with costs, and petition to file a late notice of claim denied.

Opinion by Judge TROUTMAN. Judges GARCIA, SINGAS, CANNATARO and HALLIGAN concur. Judge RIVERA dissents in an opinion, in which Chief Judge WILSON concurs.

In *Matter of Orozco v City of New York*: Order reversed, with costs, and petition to file a late notice of claim denied.

Opinion by Judge TROUTMAN. Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO and HALLIGAN concur. Judge RIVERA concurs in result in an opinion.

[237 NE3d 1229, 214 NYS3d 289]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DAVID
WILLIAMS, Appellant.

Argued March 13, 2024; decided April 23, 2024

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 24, 2022. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Juan M. Merchan, J., at suppression hearing; Thomas Farber, J., at trial), which had convicted defendant, upon a jury verdict, of criminal sale of a controlled substance in the third degree.

People v Williams, 203 AD3d 612, reversed.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review

1. In a prosecution for criminal sale of a controlled substance in the third degree in which the trial court denied defendant's motion for an independent source hearing and, instead, used an undercover police officer's prior testimony at a probable cause hearing to render a determination on whether the officer had an independent source for his prospective in-court identification of defendant, the question of whether defendant was entitled to a separate independent source hearing was preserved. In his omnibus motion, defendant requested that, in the event the court suppressed the undercover officer's confirmatory identification as the product of an unlawful seizure, it should hold an independent source hearing "pursuant to *People v Gethers* (86 NY2d 159 [1995])." Defendant then renewed his request when the court suppressed the confirmatory identification, again citing *Gethers* (86 NY2d at 159). These measures made the defense's position known to the court, thereby furnishing the court with an opportunity to provide him with the relief he sought. In response, the court "expressly decided" against holding a separate hearing. A preserved "question of law" was therefore before the Court of Appeals (CPL 470.05 [2]).

Crimes — Identification of Defendant — In-Court Identification by Undercover Officer after Confirmatory Identification Suppressed — Independent Source Hearing Required

2. In a prosecution for criminal sale of a controlled substance in the third degree in which an undercover police officer's confirmatory identification of defendant was suppressed as the product of an illegal arrest and the officer's testimony at the probable cause hearing was insufficient to determine whether he had an independent source for his prospective in-court identification of defendant, the trial court erred in admitting the officer's in-court identification without conducting a separate independent source hearing. Defendant's prosecution arose from the undercover officer's purchase of heroin through an intermediary during a buy-and-bust operation in which the offi-

cer did not meet the seller face-to-face. The testimony adduced at the limited suppression hearing focused primarily on whether there was probable cause for defendant's arrest, which turned only on whether defendant matched the undercover officer's description of the seller as a black male wearing a white top and jeans. While the undercover officer described the seller's clothes, he provided no other details from which the court could conclude that he had a meaningful opportunity to view the seller at the time of the buy. He testified that he had no prior interactions with the seller, and he did not testify as to any physical description that he may have given the arresting officers. Nor did his testimony provide any description of the confirmatory identification procedure, such that the court could compare the two interactions and be assured that the in-court identification could be made without relying on the suppressed identification. As such, the hearing did not explore the undercover's pre-arrest observations, if any, of the seller's face, physical features, complexion, build, hairstyle, or height during the buy-and-bust operation.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review §§ 531, 574; AM JUR 2d Drugs and Controlled Substances § 143; AM JUR 2d Evidence §§ 556, 558, 561, 584, 595, 627, 629, 633–634, 1353–1356.

CARMODY-WAIT 2d Arrest or Other Detention; Post-Arrest Procedure §§ 177:1–177:2, 177:11–177:12, 177:41–177:42; CARMODY-WAIT 2d Particular Types of Evidence §§ 194:218, 194:237–194:240 ;CARMODY-WAIT 2d Appeals in Criminal Cases §§ 207:23–207:24, 207:30.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 7.4, 9.4, 10.1–10.3.

McKINNEY'S, CPL 470.05 (2).

NY JUR 2d Criminal Law: Procedure §§ 146, 694–695, 2107, 2111–2114, 2276–2277, 2283–2285, 3556–3558. NY JUR 2d Criminal Law: Substantive Principles and Offenses § 1639.

ANNOTATION REFERENCE

See ALR Index under Arrests; Description and Identification; Drugs and Narcotics; Exclusion of Evidence; Preservation; Probable Cause.

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Query: "in-court identification" & ("unlawful arrest" OR "unlawful seizure") & "independent source" & preserv!

POINTS OF COUNSEL

Jenay Nurse Guilford, Center for Appellate Litigation, New York City (*Carola M. Beeney* of counsel), for appellant. The

trial court erred in finding that an independent source for Undercover Officer 322's trial identification existed without litigation on that topic. (See US Const Amends IV, V, XIV; NY Const, art I, §§ 6, 12.) (*Wong Sun v United States*, 371 US 471; *People v Gethers*, 86 NY2d 159; *People v Rahming*, 26 NY2d 411; *United States v Wade*, 388 US 218; *People v Marshall*, 26 NY3d 495; *People v Wilson*, 5 NY3d 778; *Brown v Illinois*, 422 US 590; *People v Jones*, 21 NY3d 449; *Massillon v Conway*, 574 F Supp 2d 381; *Young v Conway*, 761 F Supp 2d 59.)

Alvin L. Bragg, Jr., District Attorney, New York City (Brent E. Yarnell, Michael J. Yetter, Steven C. Wu and Christopher P. Marinelli of counsel), for respondent. The hearing court properly declined to hold a separate independent-source hearing given the undercover officer's prior testimony. (*People v Bailey*, 32 NY3d 70; *People v Jackson*, 29 NY3d 18; *People v Cantave*, 21 NY3d 374; *People v Marshall*, 26 NY3d 495; *People v Wilson*, 5 NY3d 778; *People v Dodt*, 61 NY2d 408; *People v Gonzalez*, 55 NY2d 720; *People v Garvin*, 30 NY3d 174; *People v Pena*, 28 NY3d 727; *People v Brown*, 81 NY2d 798.)

OPINION OF THE COURT

TROUTMAN, J.

On this appeal, we address whether Supreme Court erred when it denied defendant's motion for an independent source hearing and, instead, used an undercover police officer's prior testimony at a probable cause hearing to render a determination on whether the officer had an independent source for his prospective in-court identification of defendant. We hold that the trial court erred in admitting the undercover officer's in-court identification without a hearing record sufficient to support an independent source determination for the identification. Consequently, under the circumstances of this case, we reverse the order of the Appellate Division and order a new trial to be preceded by an independent source hearing.

I.

An undercover police officer bought \$40 worth of heroin through an intermediary during a buy-and-bust operation in upper Manhattan in December 2016. He did not meet the seller face-to-face. Instead, the undercover followed "several feet" behind the intermediary and the seller as they walked along the avenue. He was far enough away that he could not hear what they said to each other. The intermediary returned from

interacting with the seller and handed the undercover three glassines of heroin, after which the undercover reported to his support team that the “actual dealer” was wearing black pants, a white sweater, and a black hat. Minutes later, the police arrested defendant nearby. The undercover then made a confirmatory identification of defendant as the seller at the precinct parking lot a half hour after the arrest.

Defendant filed an omnibus motion contending that the police lacked probable cause to arrest him and that, as a result, the court should suppress the undercover officer’s confirmatory identification, the prerecorded buy money, and defendant’s cell phone. The motion stated that, if it was granted, defendant would move for an independent source hearing where the People must establish that the undercover had sufficient opportunity to observe defendant during the commission of the offense to enable him to make an in-court identification of defendant at trial.

The court ordered a hearing “limited to the issue of whether there was probable cause to arrest defendant pursuant to *People v Gethers*, 86 NY2d 159 (1995).”¹ At the hearing, the arresting officer testified regarding the circumstances surrounding defendant’s arrest, and the undercover officer testified about his observations during the buy-and-bust and his subsequent confirmatory identification of defendant at the precinct.

Inasmuch as the hearing was held for the limited purpose of determining probable cause and the suppression of evidence, the undercover officer’s testimony about the seller’s appearance was limited. The undercover testified that he had never interacted with the seller before the date in question and did not interact with the seller directly during the buy-and-bust. Although the undercover described the seller’s clothes, he did not provide a physical description of the seller. He did, however, testify about his close proximity to the seller—close enough to hear that the intermediary and the seller were having a conversation, but not their words. Nevertheless, his testimony did not address how long the seller was within his sight or the nature of his confirmatory identification of defendant.

After the hearing, Supreme Court ruled that the police lacked probable cause to arrest defendant, finding the arrest-

1. Although the court initially termed it a “*Dunaway/Wade*” hearing, it was later confirmed that there was to be no *Wade* component to the hearing.

ing officer's testimony unreliable and "tailored to meet constitutional muster." The court also suppressed, as fruits of the illegal arrest, both the undercover officer's confirmatory identification and the physical evidence recovered from defendant.

Defendant then moved for an independent source hearing to determine whether, despite the suppression of his confirmatory identification, the undercover officer would be allowed to identify defendant at trial. Denying the motion, the court reasoned that a separate hearing was not necessary because the undercover's testimony at the probable cause hearing "demonstrate[d] clear and convincing evidence 'that the undercover's observations before and during the alleged sale provided an independent source for' an in-court identification of Defendant at trial." After the undercover officer identified defendant at trial, defendant was convicted of third-degree criminal sale of heroin and sentenced to six years in prison.

The Appellate Division affirmed, concluding that "the hearing court providently exercised its discretion in denying defendant's request for a separate independent source hearing" based on the testimony at the probable cause hearing about the undercover officer's opportunity to observe defendant at the time of the drug sale and the description of the confirmatory identification (203 AD3d 612, 613 [1st Dept 2022]). Consequently, the Appellate Division concluded that the undercover officer was properly permitted to identify defendant in court.

A Judge of this Court granted defendant leave to appeal (39 NY3d 965 [2022]). We now reverse and order a new trial to be preceded by an independent source hearing on the admissibility of the undercover officer's in-court identification.

II.

[1] As an initial matter, contrary to the prosecution's contention otherwise, the question of whether defendant was entitled to a separate independent source hearing is preserved. In his omnibus motion, defendant requested that, in the event the court suppressed the undercover officer's confirmatory identification as the product of an unlawful seizure, it should hold an independent-source hearing "pursuant to *People v Gethers* (86 NY2d 159 [1995])." Defendant then renewed his request when the court suppressed the confirmatory identification, again citing *Gethers* (86 NY2d at 159). These measures "made the

defense's 'position' . . . 'known to the court,' thereby furnishing" the court "with an opportunity" to provide him with the relief he sought (*People v Sanders*, 39 NY3d 216, 220 n [2023], quoting CPL 470.05 [2]). In response, the court "expressly decided" against holding a separate hearing. A preserved "question of law" is therefore before us (CPL 470.05 [2]).

III.

Turning to the merits, the exclusionary rule provides that "when the police have acted illegally, evidence which has been come at by exploitation of that illegality should be suppressed" (*People v Gethers*, 86 NY2d 159, 161-162 [1995] [internal quotation marks omitted], quoting *Wong Sun v United States*, 371 US 471, 488 [1963]). One commonly advanced corollary to this rule is the independent source doctrine, under which a court need not suppress evidence if the People demonstrate that it was " 'acquired by means sufficiently distinguishable from the arrest to be purged of the illegality,' i.e., that the taint of the illegal arrest was 'attenuated' " (*People v Jones*, 21 NY3d 449, 455 [2013] [citations omitted]).

Applying these principles to identifications, "once the pretrial identification . . . is shown to be impermissible and improper, any in-court identifications, though not per se excludable, are not to be received in evidence 'without first determining that they were not tainted by the illegal [identification] but were of independent origin' " (*People v Ballott*, 20 NY2d 600, 606 [1967]). To accomplish this a court must hold a formal pretrial "hearing as to independent source" (*People v Burts*, 78 NY2d 20, 24 [1991]; see *People v Marshall*, 26 NY3d 495, 506 [2015]; *Gethers*, 86 NY2d at 163). A court may conduct this hearing in conjunction with another pretrial hearing, such as a suppression hearing, or as its own separate hearing. No matter the moniker given to the hearing, it must "give the People an opportunity to prove by 'clear and convincing evidence' that the in-court identification was based upon observations of the suspect other than the [illegal] identification" (*Ballott*, 20 NY2d at 606). "Only if the prosecution can establish this may the in-court identification be admitted for the consideration of the jury" (*id.*). Otherwise, "the court must exclude that identification" (*id.* at 606-607).

The need for a hearing as to independent source extends to cases like this where a confirmatory identification is the product of an illegal arrest. As we held in *Gethers*, a police officer's

in-court identification of a defendant is “‘improperly admitted [where] there was no evidence at the suppression hearing of an independent source’ upon which the hearing court could rely to find that the in-court identification was ‘“come at by . . . means sufficiently distinguishable to be purged of the primary taint”’ ” of the defendant’s illegal arrest (86 NY2d at 163 [citations omitted]).

In evaluating whether the People have met their burden to demonstrate by clear and convincing evidence a source independent from the illegal arrest, courts should consider any information relevant to whether there is a “causal relationship between the arrest and the identification” (*Gethers*, 86 NY2d at 163), including the length and quality of the witness’s opportunity to observe the defendant prior to the arrest, the accuracy of the witness’s description of the defendant prior to the arrest, and the witness’s prior familiarity with the defendant (see *Ballot*, 20 NY2d at 607; see also *United States v Wade*, 388 US 218, 241 [1967]).² Courts should also consider the nature and circumstances of the suppressed identification as they relate to the likelihood that the suppressed identification would taint any subsequent identification (*Gethers*, 86 NY2d at 163; see *United States v Crews*, 445 US 463, 472-473 [1980]; *People v Brnja*, 50 NY2d 366, 369 n 1 [1980]; see also *Marshall*, 26 NY3d at 508 n 3).

[2] Here, the testimony adduced at the limited suppression hearing focused primarily on whether there was probable cause for defendant’s arrest, which turned only on whether defendant matched the undercover officer’s description of the seller as a black male wearing a white top and jeans. The undercover’s testimony at the suppression hearing was devoid of any proof that his in-court identification would be derived from his pre-arrest interaction with the seller, rather than the postarrest confirmatory identification of defendant. While the undercover officer described the seller’s clothes, this did not establish a reliable basis for an in-court identification of defendant. The undercover provided no other details from which the court could conclude that he had a meaningful opportunity to view the seller at the time of the buy. He testified that he had no

2. Unlike in the context of determining whether an identification is suggestive, the “nature of a police officer’s duties, special training[,] and experience” on their own “simply have no relevance in a determination of whether an identification is the product of an illegal arrest” (*Gethers*, 86 NY2d at 163).

prior interactions with the seller, and he did not testify as to any physical description that he may have given the arresting officers. Nor did his testimony provide any description of the confirmatory identification procedure, such that the court could compare the two interactions and be assured that the in-court identification could be made without relying on the suppressed identification. As such, the hearing did not explore the undercover's pre-arrest observations, if any, of the seller's face, physical features, complexion, build, hairstyle, or height during the buy-and-bust operation.

The People's reliance on our decision in *People v Marshall* (26 NY3d 495 [2015]) is unavailing. In *Marshall*, we held that a trial court improperly denied a defendant's request for a full *Wade* hearing to determine the suggestiveness of a prosecutor's pretrial display of the defendant's arrest photograph to the complainant (*see id.* at 507-508). We decided that the error did not require reversal, however, because there was an independent source for the complainant's in-court identification of the defendant. That independent source included the complainant's testimony at the limited "pre-*Wade*" hearing describing her assailant—indicating that she saw the defendant at the hospital by chance and recognized the defendant as the assailant prior to the photo display—and asserting that the photo display did not affect her independent recollection or recognition of the defendant (*see Marshall*, 26 NY3d at 506-508). Consequently we concluded, "While there is some support in the hearing transcripts for defendant's argument that the hearing was circumscribed, the record also establishe[d] that defense counsel did, in fact, cross-examine complainant about the hospital identification" (*id.* at 509). Additionally, we held that the defendant's request for another hearing—despite evidence of an independent source of complainant's identification—encouraged "the unnecessary expenditure of judicial resources" (*id.*).

By comparison, here, the People presented practically no testimony regarding the undercover officer's observations of the seller's appearance to support a determination that he had a sufficient independent basis to identify defendant in court. This error requires reversal. Because the record of the probable cause hearing provided an insufficient basis for an independent source determination, defendant was entitled to an independent source hearing, as requested. In light of our determination, we do not reach defendant's remaining arguments.

Accordingly, the order of the Appellate Division should be reversed and a new trial ordered, to be preceded by an independent source hearing.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and HALLIGAN concur.

Order reversed and a new trial ordered, to be preceded by an independent source hearing.

[238 NE3d 836, 214 NYS3d 680]

MARTA URIAS, as Administrator of the Estate of MANUEL D. URIAS, Deceased, et al., Appellants, v DANIEL P. BUTTA-FUOCO & ASSOCIATES, PLLC, et al., Respondents.

Argued February 13, 2024; decided March 19, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from a judgment of the Supreme Court, Suffolk County (William J. Condon, J.), entered February 25, 2022. The judgment dismissed (1) plaintiff's action as against all defendants, and (2) defendants Daniel P. Buttafuoco & Associates, PLLC and Daniel P. Buttafuoco's cross-claims against defendant John Newman. The appeal brings up for review a prior nonfinal order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 26, 2019. The Appellate Division order, insofar as brought up for review, had (1) affirmed so much of an order of that Supreme Court (Arthur G. Pitts, J.), dated September 15, 2016, as had denied plaintiff's motion pursuant to CPLR 3025 (b) for leave to amend the amended complaint; and (2) affirmed, insofar as appealed from, so much of an order of that court, dated August 21, 2017, as had (a) granted those branches of the motion of defendants Daniel P. Buttafuoco & Associates, PLLC and Daniel P. Buttafuoco which were for summary judgment dismissing the first through fifth causes of action of the amended complaint; and (b) denied those branches of plaintiff's cross-motion which were for summary judgment on the issue of liability on the second and third causes of action and the sixth cause of action insofar as was asserted against defendants Daniel P. Buttafuoco & Associates, PLLC and Daniel P. Buttafuoco.

Urias v Daniel P. Buttafuoco & Assoc., PLLC, 173 AD3d 1244, affirmed.

HEADNOTES

Attorney and Client — Misconduct by Attorney — Deceit or Collusion — Plenary Action

1. A Judiciary Law § 487 claim may be brought in a plenary civil action where a plaintiff alleges that attorney deceit led to an adverse judgment or order. The text of the statute allows recovery of treble damages "in a civil action" where an attorney "[i]s guilty of any deceit or collusion . . . with intent to deceive the court or any party" (Judiciary Law § 487). Recognizing that our legal system depends on the integrity of attorneys who fulfill the role of officers of the court, furthering its truth-seeking function, the statute creates

a cause of action for attorney deceit that is distinct from common-law fraud or legal malpractice. Although the interest in finality of judgments generally constrains a court's authority to revisit a final judgment in a collateral action to a CPLR 5015 motion to vacate an underlying judgment, the phrase "in a civil action" in section 487 is most naturally read to include a plenary action. Section 487 does not differentiate between an action that might undermine or undo a final judgment and one that does not, or between allegations of fraud that are intrinsic to the underlying action, as opposed to extrinsic. Moreover, its legislative history reflects a consistent view that attorney deceit in the course of litigation warrants substantial penalties in the form of criminal liability and treble damages. By comparison, CPLR 5015 (d) offers a discretionary remedy that includes restitution in like manner and subject to the same conditions as where a judgment is reversed or modified on appeal.

Attorney and Client — Misconduct by Attorney — Deceit or Collusion — Calculation of Fees

2. Defendants, the law firm and individual attorney who had represented plaintiffs in a prior medical malpractice action, were entitled to summary judgment on plaintiffs' claim under Judiciary Law § 487 that defendants deceived them and the trial court in the prior action about the legal fees they were entitled to by proffering an illegal and improper interpretation of Judiciary Law § 474-a's fee schedule. Defendant attorney had submitted to the trial court an exhibit calculating the attorneys' fee as to each defendant in the medical malpractice action, consistent with his interpretation of the fee schedule. His calculations were supported by a legal argument that was not clearly foreclosed by any existing precedent, and he was transparent with the tribunal about how he arrived at those calculations. Plaintiffs did not identify a material issue of fact as to whether defendant attorney's representations that the fee calculations comported with the statutory schedule amounted to false statements. To the extent that plaintiffs also alleged that defendant attorney violated section 487 with respect to the deduction of litigation expenses from the settlement sum, which expenses were disclosed to the court when the settlement was approved, plaintiffs similarly failed to establish a material, triable issue of fact.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Attorneys at Law §§ 198, 210, 216, 249, 252.
CARMODY-WAIT 2d Officers of Court §§ 3:219, 3:220, 3:514.
MCKINNEY'S, CPLR 5015; Judiciary Law §§ 474-a, 487.
NY JUR 2d Attorneys at Law §§ 169, 170, 269, 353, 355;
NY JUR 2d Malpractice §§ 405, 406.
NEW YORK LAW OF TORTS § 13:34.10.
SIEGEL, NY PRAC (6th ed) § 426.

ANNOTATION REFERENCE

See ALR Index under Attorneys; Attorneys' Fees.

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Query: “plenary action” & attorney /s deceit

POINTS OF COUNSEL

Law Offices of Daniel A. Zahn, P.C., Holbrook (*Daniel Zahn* of counsel), for appellants. I. The plain language of section 487 of the Judiciary Law permits a plenary civil action and trial subpoena. (*Bill Birds, Inc. v Stein Law Firm, P.C.*, 35 NY3d 173; *Melcher v Greenberg Traurig, LLP*, 23 NY3d 10; *Amalfitano v Rosenberg*, 12 NY3d 8.) II. The Appellate Division should have denied the Buttafuoco motion for summary judgment of the Urias’ first five causes of action and/or not have redirected three of them to an exclusive motion to vacate the entire medical malpractice settlement pursuant to a CPLR 5015 motion. (*Farage v Ehrenberg*, 124 AD3d 159.) III. The Appellate Division should have granted the Urias’ motion to amend by way of their second verified amended complaint against Buttafuoco and/or to adding Daniel P. Buttafuoco & Associates, PLLC, as a proper party defendant. IV. Determining as a matter of law the proper amount of Buttafuoco legal fees in the underlying medical malpractice action pursuant to the mandatory provisions of section 474 of the Judiciary Law. (*Siu Kiu Lam v Loo*, 155 AD3d 660; *Samuel v Druckman & Sinel, LLP*, 12 NY3d 205; *Yalango v Popp*, 84 NY2d 601.) V. The Appellate Division should have granted Urias’ cross-motion for partial summary judgment against Buttafuoco. VI. The Appellate Division should have granted Urias’ motion to submit rebuttal at oral argument and clarification of brief.

Catalano Gallardo & Petropoulos, LLP, Jericho (*Ralph A. Catalano* and *Matthew K. Flanagan* of counsel), for respondents. I. Defendant did not deceive plaintiffs or the court in the manner in which he calculated his legal fee or argued for its approval under Judiciary Law § 474-a. (*Amalfitano v Rosenberg*, 12 NY3d 8; *Melcher v Greenberg Traurig, LLP*, 23 NY3d 10; *Bill Birds, Inc. v Stein Law Firm, P.C.*, 35 NY3d 173; *Channel Master Corp. v Aluminium Ltd. Sales*, 4 NY2d 403; *People v Hedgeman*, 70 NY2d 533; *De Lourdes Torres v Jones*, 26 NY3d 742; *Vega v Restani Constr. Corp.*, 18 NY3d 499; *Mandarin Trading Ltd. v Wildenstein*, 16 NY3d 173; *National Conversion Corp. v Cedar Bldg. Corp.*, 23 NY2d 621; *Mergler v Crystal Props. Assoc.*, 179 AD2d 177.) II. Plaintiffs’ exclusive remedy was to challenge the order approving the legal fee before the court that issued it pursuant to CPLR 5015 (a) (3). (*Newin*

Corp. v Hartford Acc. & Indem. Co., 37 NY2d 211; *Fuhrmann v Fanroth*, 254 NY 479; *Crouse v McVickar*, 207 NY 213; *Mayor of City of N.Y. v Brady*, 115 NY 599; *Ross v Wood*, 70 NY 8; *United States v Throckmorton*, 98 US 61; *Chibcha Rest., Inc. v David A. Kaminsky & Assoc., P.C.*, 102 AD3d 544; *Parker & Waichman v Napoli*, 29 AD3d 396; *Melnitzky v Owen*, 19 AD3d 201; *Yalkowsky v Century Apts. Assoc.*, 215 AD2d 214.) III. The judicial decision that approved defendant's legal fee necessarily determined that the fee was appropriate; therefore, res judicata and collateral estoppel bar plaintiffs from relitigating the fee issue under new theories of liability. (*Matter of Lawrence*, 24 NY3d 320; *Whiteman, Osterman & Hanna, LLP v Oppitz*, 105 AD3d 1162; *Buechel v Bain*, 97 NY2d 295; *Ryan v New York Tel. Co.*, 62 NY2d 494; *D'Arata v New York Cent. Mut. Fire Ins. Co.*, 76 NY2d 659; *Gilberg v Barbieri*, 53 NY2d 285; *Siegel v Werner & Zaroff*, 270 AD2d 119; *Koppelman v Liddle, O'Connor, Finkelstein & Robinson*, 246 AD2d 365; *Breslin Realty Dev. Corp. v Shaw*, 72 AD3d 258; *Bauza v Livingston*, 40 AD3d 791.)

Andrew Lavoott Bluestone, New York City, amicus curiae pro se. I. A court's task is to apply the words of the statute to the facts. (*People v Roberts*, 31 NY3d 406; *In re Ames Dept. Stores, Inc.*, 582 F3d 422; *WNET v Aereo, Inc.*, 871 F Supp 2d 281; *Louis Vuitton Malletier S.A. v LY USA, Inc.*, 676 F3d 83.) II. The First and Second Departments are in conflict over the elements of Judiciary Law § 487. (*Bill Birds, Inc. v Stein Law Firm, P.C.*, 164 AD3d 635.)

OPINION OF THE COURT

HALLIGAN, J.

Judiciary Law § 487 provides that “[a]n attorney or counselor . . . guilty of any deceit or collusion, . . . with intent to deceive the court or any party[,] . . . forfeits to the party injured treble damages, to be recovered in a civil action.” This appeal presents the question of whether a Judiciary Law § 487 claim may be brought in a plenary civil action where a plaintiff alleges that attorney deceit led to an adverse judgment or order. Given the unique concerns addressed by this statute, we hold that such a plenary action lies. We nevertheless affirm the Appellate Division's order on alternative grounds.

I.

In 2005, Delfina Urias retained defendants Daniel P. Buttafuoco and Daniel P. Buttafuoco & Associates, PLLC¹ to represent her and her husband, Manuel Urias, in a medical malpractice action stemming from a surgery that left Mr. Urias in a coma. Because Mr. Urias was incapacitated, Buttafuoco obtained a guardianship order authorizing Ms. Urias to prosecute and settle the medical malpractice action on her husband's behalf, "subject to prior court approval of legal fees and settlement." Ms. Urias agreed to settle the action for \$3.7 million. During an April 2, 2009 hearing on the proposed settlement, Ms. Urias expressly confirmed that she understood and consented to the terms of the settlement, which included a deduction of legal fees and expenses per her retainer agreement with Buttafuoco. That agreement reproduced the contingency fee schedule for medical malpractice lawsuits set forth in Judiciary Law § 474-a and stated that "expenses and disbursements for expert testimony and investigative or other services properly chargeable to the enforcement of the claim or prosecution of the action" would be deducted from the amount recovered. At the close of the hearing, the court stated that the matter was settled for \$3.7 million, making no express reference to attorneys' fees.

A subsequent hearing in the medical malpractice action was held on July 20, 2009, both to address subsequent changes in the settlement terms not directly relevant here and to obtain approval for the legal fees, as required by the guardianship order. At that proceeding, which took place before Justice Baisley, Buttafuoco submitted an exhibit that set forth his proposed legal fees and expenses, and noted on the record that the fees "followed the schedule" set forth in Judiciary Law § 474-a. The exhibit also detailed how the fees were calculated with respect to each of the four defendants: by applying section 474-a's fee schedule, which establishes a sliding scale of permissible contingency fees that decreases as the total sum recovered increases, separately to the settlement contribution of each defendant, for a total award of \$864,552. Justice Baisley approved the settlement terms and legal fees as presented, and Buttafuoco separately agreed to reduce the attorneys' fee to \$710,000.

The guardianship order required that the guardianship court separately approve settlement terms and legal fees, and Ms.

1. Both Daniel Buttafuoco and his eponymous law firm are hereinafter referred to as "Buttafuoco."

Urias retained another attorney, John Newman, to handle that process. Newman first petitioned for approval in September 2009. The guardianship court initially denied that request without prejudice, noting that “[s]ection 474-a of the Judiciary Law was used to calculate the legal fees based upon each individual defendant’s settlement amount, which resulted in a greater legal fee than if the calculations had been based upon the total sum recovered.” Accordingly, it directed that the trial court in the medical malpractice action revisit the issue of how the fees were calculated.

In seeking the requisite approval from Justice Baisley, Newman submitted the guardianship court’s decision, the fee calculations previously provided to the medical malpractice court, and an affirmation from Buttafuoco. The affirmation explained Buttafuoco’s position that because section 474-a instructs that the sliding fee scale be applied to a medical malpractice “claim or action” and the lawsuit involved four distinct causes of action against four defendants, it was proper to apply the scale separately to the settlement amounts from each of the four defendants. Justice Baisley stated that he was “satisfied the legal fees approved by the Court comport with the language and mandates of the statute” and approved the fee as previously calculated. The guardianship court thereafter approved the settlement.

In 2011, Ms. Urias sued Buttafuoco and Newman, claiming that Buttafuoco had deceived her and the trial court in the medical malpractice action about the legal fees they were entitled to by proffering an “illegal” and “improper” interpretation of section 474-a’s fee schedule. The complaint alleged, in essence, that although the trial court had approved the fees in question, it had not done so “knowingly,” and had instead “merely relied upon” Buttafuoco’s representation that section 474-a authorized this amount. The complaint also cursorily alleged that Buttafuoco had charged “improper, duplicative and illegal expenses and disbursements” against the settlement sum. In addition to the five causes of action based on these allegations (a violation of Judiciary Law § 487, breach of fiduciary duty, breach of a retainer agreement, conversion, and fraud), the complaint included a legal malpractice claim against both Buttafuoco and Newman.

Buttafuoco moved for summary judgment, arguing that the first five causes of action were improper collateral attacks on the medical malpractice settlement that could only be pursued

by a motion under CPLR 5015 to vacate the judgment in that underlying action. Alternatively, Buttafuoco argued that he was entitled to summary judgment on the section 487 claim because Ms. Urias had failed to establish that he engaged in any deceitful conduct within the meaning of the statute. In August 2017, Supreme Court granted summary judgment to Buttafuoco as to the first five causes of action, reasoning that each claim arose from Buttafuoco's representation in the underlying action, and "the remedy for fraud allegedly committed during the course of a legal proceeding must be exercised in that lawsuit by moving to vacate the civil judgment . . . not by another plenary action collaterally attacking that judgment."

The Appellate Division affirmed, agreeing with Supreme Court that Ms. Urias's sole remedy was to move under CPLR 5015 to vacate the underlying judgment (*see* 173 AD3d 1244 [2d Dept 2019]). On that basis, the Court affirmed dismissal of the first, fourth, and fifth causes of action (alleging a violation of Judiciary Law § 487, conversion of the settlement proceeds, and fraud, respectively), and affirmed dismissal of the second and third causes of action (alleging breach of fiduciary duty and breach of contract) as duplicative of the legal malpractice cause of action.²

Following a February 2022 judgment dismissing the complaint, this Court granted plaintiff leave to appeal from that final judgment to bring up for review only the June 2019 Appellate Division order (*see* 39 NY3d 907 [2023]; *Quain v Buzzetta Constr. Corp.*, 69 NY2d 376 [1987]).³

II.

We begin with the question of whether Judiciary Law § 487 permits a plenary action. We thus turn to the "plain language of the statute" as "the clearest indicator of legislative intent"

2. As to the sixth cause of action sounding in legal malpractice, Supreme Court held that triable issues of fact precluded summary judgment, and the Appellate Division affirmed. Ms. Urias subsequently withdrew that cause of action as against Buttafuoco, and Supreme Court granted Newman's motion for summary judgment in a February 2021 order that is not before us.

3. During the proceedings below, Ms. Urias appeared in both her personal capacity and as the guardian of Mr. Urias. While her motion for leave to appeal was pending before this Court, Mr. Urias passed away and the administrator of his estate, Marta Urias, substituted herself for Ms. Urias as representative of Mr. Urias. Although there are therefore two plaintiffs before us now, we use "plaintiff" throughout for simplicity.

(*Matter of T-Mobile Northeast, LLC v DeBellis*, 32 NY3d 594, 607 [2018]). Section 487 provides that

“[a]n attorney or counselor who:

“1. Is guilty of any deceit or collusion, or consents to any deceit or collusion, with intent to deceive the court or any party; or,

“2. Wilfully delays his client’s suit with a view to his own gain; or, wilfully receives any money or allowance for or on account of any money which he has not laid out, or becomes answerable for,

“Is guilty of a misdemeanor, and in addition to the punishment prescribed therefor by the penal law, he forfeits to the party injured treble damages, to be recovered in a civil action.”

This provision is “the modern-day counterpart of a statute dating from the first decades after Magna Carta; its language virtually (and remarkably) unchanged from that of a law adopted by New York’s Legislature two years before the United States Constitution was ratified” (*Amalfitano v Rosenberg*, 12 NY3d 8, 14 [2009]). Recognizing that “[o]ur legal system depends on the integrity of attorneys who fulfill the role of officers of the court, furthering its truth-seeking function,” the statute creates a cause of action for attorney deceit that is distinct from common-law fraud or legal malpractice (*Bill Birds, Inc. v Stein Law Firm, P.C.*, 35 NY3d 173, 178 [2020]). Given the importance of safeguarding the integrity of the judicial system, section 487 allows for both criminal liability and a civil remedy in the form of treble damages (*see id.* at 179).

We recognize, of course, that common law has long shielded a final judgment from collateral attack in a subsequent action (*see e.g. Smith v Lewis*, 3 Johns 157, 168 [NY Sup Ct 1808, Kent, Ch. J., concurring]; *Crouse v McVickar*, 207 NY 213, 219 [1912]). Although subsequent actions have been permitted for fraud that is extrinsic to the underlying proceeding (*see e.g. Mayor of City of N.Y. v Brady*, 115 NY 599, 617 [1889]; *United States v Throckmorton*, 98 US 61, 68 [1878]), or part of a “larger fraudulent scheme” (*Newin Corp. v Hartford Acc. & Indem. Co.*, 37 NY2d 211, 217 [1975]), the interest in finality of judgments generally constrains a court’s authority to revisit a final judgment in a collateral action (*see Crouse*, 207 NY at 219).

Such a challenge may instead be brought under CPLR 5015, which authorizes “[t]he court which rendered a judgment or order” to “relieve a party from it upon such terms as may be just . . . upon the ground of,” among others, “fraud, misrepresentation, or other misconduct of an adverse party” (CPLR 5015 [a] [3]).

Buttafuoco argues that allowing plaintiff to bring a section 487 claim as a plenary action would implicate these concerns. He correctly points out that, although Ms. Urias does not technically seek to vacate the orders of the medical malpractice court approving the fee award, she seeks to recoup the difference between the actual fee charged and the amount she contends was permissible under the fee schedule as a remedy for alleged deceit in procuring that award. Moreover, the conduct at issue is not extrinsic to the underlying medical malpractice action, and the claim for damages does not arise from allegations of a more extensive fraudulent scheme.

[1] We conclude, however, that section 487 authorizes a plenary action for attorney deceit under these circumstances. The text of the statute allows recovery of treble damages “in a civil action” where “[a]n attorney . . . [i]s guilty of any deceit or collusion . . . with intent to deceive the court or any party” (Judiciary Law § 487). The phrase “in a civil action” is most naturally read to include a plenary action. Notably, the provision does not differentiate between an action that might undermine or undo a final judgment and one that does not, or between allegations of fraud that are intrinsic to the underlying action, as opposed to extrinsic. Interpreting the statute to permit a plenary action where the remedy would not entail undermining a final judgment (for example, when the deceit harms a prevailing party), but deny one where a final judgment could be impaired, would require us to rewrite the statute. That we cannot do.

Buttafuoco contends that Ms. Urias was relegated to bringing a motion to vacate under CPLR 5015. That path may well be available as a general matter,⁴ but section 487 cannot be read to make CPLR 5015 the exclusive avenue here. Not only does the text of the provision suggest that a plenary action is

4. We note that CPLR 5015 (a) (3) specifically authorizes vacatur upon the ground of “fraud, misrepresentation, or other misconduct of an *adverse party*” (emphasis added). Although Buttafuoco was Ms. Urias’s attorney, not an adverse party, in the underlying action, a court may also “vacate its own judgment for sufficient reason and in the interests of substantial justice” as

(n. cont’d)

available in all instances of attorney deceit, but section 487's long lineage also confirms that conclusion. The cause of action was descended from the first Statute of Westminster adopted in England in 1275, incorporated in New York's earliest common law, and first codified in this state in a 1787 statute that closely tracks the current provision (see *Melcher v Greenberg Traurig, LLP*, 23 NY3d 10, 14-15 [2014]; *Amalfitano*, 12 NY3d at 12). Its legislative history reflects a consistent view, taken over centuries, that attorney deceit in the course of litigation warrants substantial penalties—both criminal liability and treble damages. By comparison, CPLR 5015 offers a discretionary remedy that includes “restitution in like manner and subject to the same conditions as where a judgment is reversed or modified on appeal” (CPLR 5015 [d]). Such relief is markedly different from that authorized by section 487, and we decline to confine a plaintiff alleging attorney deceit to the sole option of proceeding under CPLR 5015.

We appreciate that it might be more efficient to require a plaintiff who either directly or effectively challenges a judgment to return to the court that issued it and seek vacatur under CPLR 5015, and we note that transfer of a plenary action to the court that handled the underlying proceedings may be desirable where consistent with the CPLR's venue provisions. Nor do we take lightly the interest in preserving the finality of judgments. But the legislature has singled out the specific type of claim here—an allegation of attorney deceit on the court or a party—and determined that recovery of treble damages should be available in a civil action. We conclude that section 487 must be read to allow a plenary action for deceit, even where success on that claim might undermine a separate final judgment.

III.

[2] Although a cause of action under section 487 lies, Buttafuoco is entitled to summary judgment on that claim. Viewing the facts in the light most favorable to the nonmoving party, we conclude that Buttafuoco “established prima facie entitlement to judgment as a matter of law . . . by demonstrating that plaintiff[] failed to [sufficiently] allege that [he] engaged in deceit or collusion during the course of the underlying” medi-

an exercise of its “inherent discretionary power” (*Woodson v Mendon Leasing Corp.*, 100 NY2d 62, 68 [2003]).

cal malpractice action (*Bill Birds*, 35 NY3d at 179). In opposing summary judgment, “plaintiff[] failed to satisfy [her] burden to establish material, triable issues of fact” as to whether the defendants’ representations about their fee calculations or litigation expenses amounted to false statements (*id.*). Accordingly, we affirm the Appellate Division order appealed from insofar as it affirmed the dismissal of the first cause of action.

Section 487 “guards against false statements by lawyers during litigation, rising to the level of intentional deceit or collusion; it was not designed to curtail attorneys’ expressions of views concerning what the law is or should be, nor does it include merely poor lawyering, negligent legal research or the giving of questionable legal advice” (*id.* at 180 n 3). Thus, we have previously made clear that “[t]he statute does not encompass the filing of a pleading or brief containing nonmeritorious legal arguments” (*id.* at 180), or the provision of “‘false and untrue’ legal advice to induce plaintiffs to bring an unnecessary lawsuit, motivated solely by the attorney’s desire to collect a large fee” (*id.* at 178, quoting *Looff v Lawton*, 97 NY 478, 480 [1884]). Professional shortcomings or disagreements as to litigation strategy that do not involve intentional false statements in the context of litigation may sound in legal malpractice, but not in attorney deceit (*id.* at 180 n 3).

As plaintiff acknowledges, the crux of her attorney deceit claim is that Buttafuoco intentionally deceived Justice Baisley and Ms. Urias when he represented that the attorneys’ fee calculations were in accordance with the applicable statutory fee schedule set forth in section 474-a. The disagreement between the parties as to the proper interpretation of that statute turns on whether the sliding scale should be applied to the total settlement amount, which would yield a lower attorneys’ fee, or separately to each settlement reached with each of the four defendants, as was done here and which yields a higher total attorneys’ fee. Plaintiff insists that the former interpretation is “patently obvious,” and the latter is “outlandish,” “bizarre,” and “asinine.” Buttafuoco counters that the plain language of the statute permits applying the fee schedule to “any claim or action,” and that because the medical malpractice lawsuit involved four distinct causes of action against four defendants, he was permitted to calculate his fee separately as to each.

Plaintiff has not identified a material issue of fact as to whether Buttafuoco’s representations that the fee calculations

comport with the statutory schedule amounted to false statements. She insists that intent is a quintessential question of fact which precludes summary judgment; although that is true, there can be no claim for attorney deceit if there is no showing of a false statement. Plaintiff concedes that Buttafuoco submitted to Justice Baisley an exhibit calculating the attorneys' fee as to each defendant, consistent with his interpretation of the fee schedule. This Court has not had occasion to address whether section 474-a can be applied in this manner, and we do not opine on that question today. However, Buttafuoco's calculations were supported by a legal argument that was not clearly foreclosed by any existing precedent. Plaintiff appears to contend that Buttafuoco's representations were nonetheless deceitful because it was not clear that Justice Baisley actually read the exhibit submitted to the court, and plaintiff sought to subpoena Justice Baisley to explore this theory. We cannot endorse this premise or conclude that it creates a material issue of fact.

To the extent plaintiff also alleges that Buttafuoco violated section 487 with respect to the deduction of litigation expenses from the settlement sum, she has similarly failed to establish a material, triable issue of fact. Those expenses, like the fee calculations, were disclosed to the court when the settlement was approved, and plaintiff did not develop this theory before Supreme Court, the Appellate Division, or this Court, or establish a material issue of fact as to the propriety of the reported expenses.

In short, the record indicates that Buttafuoco's calculations were supported by a legal argument that was not clearly foreclosed by existing precedent, and he was transparent with the tribunal about how he arrived at those calculations. Moreover, plaintiff has raised no material issue of fact as to whether Buttafuoco made false statements or representations in doing so—an essential element of alleging attorney deceit.

* * *

None of plaintiffs' remaining contentions provide any basis to reverse or modify the order appealed from. The Appellate Division's dismissal of the second and third causes of action as duplicative of the legal malpractice cause of action was premised on a ground not raised before Supreme Court. The Appellate Division thus is deemed to have reached the issue as a matter of discretion in the interest of justice, and that deter-

mination is not reviewable by this Court (*see Hecker v State of New York*, 20 NY3d 1087, 1087-1088 [2013], *rearg denied* 21 NY3d 987 [2013]). The fourth and fifth causes of action (conversion of settlement proceeds and fraud) were properly dismissed as impermissible collateral attacks on a prior final judgment.

Accordingly, the judgment appealed from and the Appellate Division order insofar as brought up for review should be affirmed, with costs.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur.

Judgment appealed from and Appellate Division order insofar as brought up for review, affirmed, with costs.

[239 NE3d 133, 215 NYS3d 27]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NATHANIEL BOONE, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALBERT COTTO, Appellant.

Argued January 10, 2024; decided February 22, 2024

SUMMARY

APPEAL, in the first above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 3, 2022. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Raymond L. Bruce, J.), which had adjudicated defendant a level three sexually violent predicate sex offender pursuant to the Sex Offender Registration Act (Correction Law art 6-C).

APPEAL, in the second above-entitled action, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered March 10, 2022. The Appellate Division affirmed an order of the Supreme Court, Bronx County (John S. Moore, J.), which had adjudicated defendant a level three sexually violent predicate sex offender pursuant to the Sex Offender Registration Act (Correction Law art 6-C).

People v Boone, 202 AD3d 449, affirmed.

People v Cotto, 203 AD3d 492, affirmed.

HEADNOTES

Crimes — Sex Offenders — Sex Offender Registration Act — Release from Confinement for Purposes of Risk Level Classification Hearing — Possibility of Civil Commitment Proceedings

1. Sex offenders are “released” for purposes of the Sex Offender Registration Act (Correction Law art 6-C [SORA]) at the time they are no longer confined by the Department of Corrections and Community Supervision (DOCCS) following the completion of their prison sentence, regardless of the possibility that they may be confined under the Sex Offender Management and Treatment Act (Mental Hygiene Law § 10.01 *et seq.* [SOMTA]). Accordingly, the SORA hearings for defendant sex offenders, who had either been released or were about to be released from confinement by DOCCS at the time of their hearings, were not premature due to pending or potentially pending SOMTA proceedings. Multiple SORA provisions expressly tie the concept of “release” to an offender’s departure from any of several expressly listed locations, including a correctional facility. The very start of the SORA process is activated by those expressly listed locations based on their individ-

ual duty to send relevant information about the offender to the Board of Examiners of Sex Offenders, which must occur at least 120 days prior to the “release or discharge” from each institution (Correction Law § 168-m). Finding that an offender is not released whenever SOMTA proceedings are pending or contemplated would leave no statutory guidance as to how the mechanism of SORA would be triggered if and when an offender is released from civil confinement. Moreover, delaying a defendant’s SORA adjudication would serve only to impede SORA’s purpose of protecting the public from the danger of recidivism posed by sex offenders, as it would create a situation where an offender might reenter the community without a risk level determination.

Crimes — Sex Offenders — Sex Offender Registration Act — Timing of Risk Level Classification Hearing Given Potential Civil Commitment Proceedings — Due Process

2. Defendant sex offenders were not denied due process when their risk level classification hearings pursuant to the Sex Offender Registration Act (Correction Law art 6-C [SORA]) were held upon their release from confinement by the Department of Corrections and Community Supervision (DOCCS) notwithstanding the possibility that they may have been confined under the Sex Offender Management and Treatment Act (Mental Hygiene Law § 10.01 *et seq.* [SOMTA]). Determining the risk level of a sex offender upon the offender’s release from confinement by DOCCS, even if that offender is potentially subject to indefinite civil commitment under SOMTA, presents minimal risk of misclassification and thus minimal risk of an erroneous deprivation of those interests. SORA provides substantial procedural safeguards to offenders when making a risk level classification, and provides an offender with the opportunity to challenge a risk level classification at a time before a determination is made by the Board of Examiners of Sex Offenders or the sentencing court. These procedural safeguards were implemented specifically to mitigate the risk of an erroneous deprivation. Moreover, because the timing of release from civil commitment can be unpredictable and may not allow the parties to comply with the statutorily mandated timeframe expeditiously, delaying the SORA hearing could result in the release of sex offenders into the community without the proper risk level classification. The State has a significant interest in avoiding that result, especially given the pool of offenders subject to SOMTA proceedings. This is particularly important given the public safety objectives served by SORA.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Mentally Impaired Persons §§ 131, 134.
McKINNEY’S, Mental Hygiene Law § 10.01 *et seq.*
NY JUR 2d Penal and Correctional Institutions §§ 45, 397–399.

ANNOTATION REFERENCE

See ALR Index under Sex Offender Registration and Notification.

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POINTS OF COUNSEL

Jenay Nurse Guilford, Center for Appellate Litigation, New York City (Nicole P. Geoglis of counsel), for appellant in the first above-entitled action. Where Nathaniel Boone had been transferred to Office of Mental Health custody and was no longer scheduled to be released to the community, his Sex Offender Registration Act hearing was conducted in violation of the Sex Offender Registration Act and Nathaniel Boone's due process rights. (Doe v Pataki, 120 F3d 1263; People v Mingo, 12 NY3d 563; People v David W., 95 NY2d 130; People ex rel. Negrón v Superintendent, Woodbourne Corr. Facility, 36 NY3d 32; People v Perez, 35 NY3d 85; People v Game, 110 AD3d 861; People v Black, 33 AD3d 981; People v Staley, 104 AD3d 583; Matter of Chemical Specialties Mfrs. Assn. v Jorling, 85 NY2d 382; Matter of Crumpley v Wack, 212 AD2d 299.)

Darcel D. Clark, District Attorney, Bronx (Shane Magnetti and Yael V. Levy of counsel), for respondent in the first above-entitled action. I. The sentencing court had subject matter jurisdiction to assess defendant's risk level 30 days before his release from prison, and providently declined to indefinitely adjourn the proceeding pending civil commitment proceedings. (People v Stevens, 91 NY2d 270; People v Finnegan, 85 NY2d 53; Matter of North v Board of Examiners of Sex Offenders of State of N.Y., 8 NY3d 745; People v Black, 33 AD3d 981; People v Gordon, 147 AD3d 988; People v Powell, 170 AD3d 413; People v Blum, 166 AD3d 571; People v Thomas, 179 AD3d 444; People v Gillette, 189 AD3d 512; People v Dufresne, 209 AD3d 541.) II. Defendant received the full panoply of statutory and constitutional due process rights and his Sex Offender Registration Act hearing was held at a meaningful time. (People v David W., 95 NY2d 130; Mathews v Eldridge, 424 US 319; Doe v Pataki, 3 F Supp 2d 456; Armstrong v Manzo, 380 US 545; Goldberg v Kelly, 397 US 254; Cleveland Bd. of Ed. v Loudermill, 470 US 532; Matter of Kaur v New York State Urban Dev. Corp., 15 NY3d 235; People v Baxin, 26 NY3d 6; People v Encarnacion, 138 AD3d 1497.)

Twyla Carter, The Legal Aid Society, New York City (Natalie Rea of counsel), for appellant in the second above-entitled action. Since appellant's release into the community had been delayed—potentially indefinitely—by the psychiatric evalua-

tion ordered under the Sex Offender Management and Treatment Act, the Sex Offender Registration Act court's refusal to adjourn the hearing and its resulting premature risk level adjudication violated the Sex Offender Registration Act and due process, mandating vacatur (US Const, Amend XIV; NY Const, art I, § 6; Correction Law § 168 *et seq.*; Mental Hygiene Law § 10.01 *et seq.*). (*People v Mingo*, 12 NY3d 563; *Doe v Pataki*, 481 F3d 69; *People v Grabowski*, 126 AD3d 769; *People v Game*, 110 AD3d 861; *People v David W.*, 95 NY2d 130; *People v Gillotti*, 23 NY3d 841; *People v Thomas*, 179 AD3d 444; *People v Powell*, 170 AD3d 413; *People v Gordon*, 147 AD3d 988.)

Darcel D. Clark, District Attorney, Bronx (*Shane Magnetti* and *Yael V. Levy* of counsel), for respondent in the second above-entitled action. I. The Sex Offender Registration Act's plain language, full scheme, and legislative history establish that release from incarceration is the appropriate trigger for a Sex Offender Registration Act hearing. (*People v Stevens*, 91 NY2d 270; *People v Finnegan*, 85 NY2d 53; *Matter of State of New York v Rashid*, 16 NY3d 1; *People v Blum*, 166 AD3d 571; *People v Norris*, 168 AD3d 1003; *People v Gordon*, 147 AD3d 988; *People v Powell*, 170 AD3d 413; *People v Thomas*, 179 AD3d 444; *People v Gillette*, 189 AD3d 512.) II. Defendant received the full panoply of statutory and constitutional due process rights, and his Sex Offender Registration Act hearing was held at a meaningful time. (*Doe v Pataki*, 3 F Supp 2d 456; *People v David W.*, 95 NY2d 130; *Mathews v Eldridge*, 424 US 319; *Matter of Kigin v State of N.Y. Workers' Compensation Bd.*, 24 NY3d 459; *Armstrong v Manzo*, 380 US 545; *Goldberg v Kelly*, 397 US 254; *Cleveland Bd. of Ed. v Loudermill*, 470 US 532; *Matter of Kaur v New York State Urban Dev. Corp.*, 15 NY3d 235; *People v Baxin*, 26 NY3d 6.) III. The Sex Offender Registration Act court providently declined to grant an indefinite adjournment. (*People v Sherard*, 73 AD3d 537; *People v Rodriguez*, 102 AD3d 457; *People v Rivera*, 207 AD3d 761; *People v Parris*, 153 AD3d 68.)

New York Civil Liberties Union Foundation, New York City (*Daniel R. Lambright* and *Molly K. Biklen* of counsel), for Kelly M. Socia and others, amici curiae in the second above-entitled action. I. The Fourteenth Amendment's due process clause protects individuals required to register under the Sex Offender Registration Act from erroneous and premature risk assessments. (*People v David W.*, 95 NY2d 130; *Proctor v LeClaire*, 846 F3d 597; *Wolff v McDonnell*, 418 US 539; *Wisconsin*

v Constantineau, 400 US 433; *Siebert v Gilley*, 500 US 226; *Doe v Pataki*, 3 F Supp 2d 456; *Mathews v Eldridge*, 424 US 319; *Armstrong v Manzo*, 380 US 545; *Matter of Kigin v State of N.Y. Workers' Compensation Bd.*, 24 NY3d 459; *Hewitt v Helms*, 459 US 460.) II. Premature Sex Offender Registration Act hearings amplify the already high risks of erroneous assessment caused by the risk assessment instrument and do not accord with due process. (*People v Romulus*, 189 AD3d 553; *People v McFarland*, 88 AD3d 547; *People v Johnson*, 11 NY3d 416; *People v Jimenez*, 178 AD3d 1099; *Matter of State of New York v Floyd Y.*, 22 NY3d 95; *People v Migliaccio*, 90 AD3d 879.)

OPINION OF THE COURT

CURRAN, J.*

The Sex Offender Registration Act (SORA) (Correction Law § 168 *et seq.*) provides that a sex offender “shall” be classified into one of three risk level categories “[30] calendar days prior to discharge, parole or release” (Correction Law § 168-n [2]). The central question presented by these appeals is whether, for purposes of SORA, this deadline is properly measured from the date an offender is released from confinement by the Department of Corrections and Community Supervision (DOCCS), despite pending or contemplated proceedings to civilly commit the offender under the Sex Offender Management and Treatment Act (SOMTA) (Mental Hygiene Law § 10.01 *et seq.*). We hold that, under a plain reading of SORA, the 30-day deadline for conducting a risk level classification hearing must be measured from an offender’s release by DOCCS upon the completion of a prison sentence, irrespective of whether the State is considering instituting, or has already instituted, proceedings under SOMTA. We further hold that offenders are not denied due process by having a SORA hearing at a time when they may be civilly committed under SOMTA.

I.

People v Boone

In March 2011, defendant Boone pleaded guilty to three counts of course of sexual conduct against a child in the first degree (Penal Law § 130.75 [1] [a]) and one count of course of sexual conduct against a child in the second degree (§ 130.80 [1] [a]). As their babysitter, Boone repeatedly raped and sexually abused four children under the age of 10, one of whom was

* Designated pursuant to NY Constitution, article VI, § 2.

his godchild. He was previously twice convicted of sexual abuse, including an attempted rape of a six-year-old child, and was previously adjudicated a level two offender under SORA. Boone was sentenced to concurrent 12-year prison terms, with 20 years' postrelease supervision. DOCCS received Boone into custody in April 2011, and had his conditional release date scheduled for September 10, 2019.

In advance of Boone's conditional release date, the Board of Examiners of Sex Offenders (Board) issued a risk assessment instrument (RAI) determining that Boone was a presumptive level three risk based on a points assessment and upon the application of an automatic override based on Boone's prior felony sex crime convictions. Before the SORA hearing was held, the Office of the Attorney General (Attorney General) filed a petition to civilly commit Boone pursuant to SOMTA. When Boone was released from confinement by DOCCS on his conditional release date, he was placed directly into the custody of the Office of Mental Health (OMH).¹ In short, the SOMTA proceedings against Boone were pending simultaneously with the SORA proceedings.

In the SORA proceedings, Boone opposed the Board's recommendation that he be adjudicated a level three sexually violent offender. He argued that a SORA hearing was premature and that the matter should be dismissed, or at the very least adjourned, because the pending SOMTA proceedings meant that his release to the community was no longer imminent. Boone also argued that conducting the SORA hearing despite pending SOMTA proceedings violated his right to due process because he was not permitted to challenge his SORA risk assessment at a meaningful time—i.e., when he would actually be released into the community. Alternatively, Boone requested that the court grant him a downward departure to risk level two. He did not, however, challenge the points assessment under the RAI or the application of the automatic override.

After conducting a hearing, Supreme Court rejected Boone's arguments that the SORA hearing was premature due to the pending SOMTA proceedings and declined to exercise its discretion to either dismiss or adjourn the SORA proceedings. The court held that SOMTA did not bar a SORA risk level clas-

1. DOCCS's incarcerated lookup website reflects that, according to that agency, Boone has been "discharged" and was "release[d] to another agency" (Incarcerated Lookup, <https://nysdoccslookup.doccs.ny.gov/> [search by last name "Boone" and first name "Nathaniel," click on 2011 DIN number]).

sification hearing; it only postponed the offender's duty to register. The court adjudicated Boone a level three sexually violent offender, based on both a points assessment and the automatic override that applied due to his prior felony sex crime convictions. It denied the application for a downward departure. The Appellate Division affirmed, rejecting, *inter alia*, Boone's argument that the SORA proceedings were premature due to the pending SOMTA proceedings (202 AD3d 449 [1st Dept 2022]). This Court granted defendant leave to appeal (38 NY3d 908 [2022]), and we now affirm.

People v Cotto

In June 2006, defendant Cotto pleaded guilty to sexual abuse in the first degree (Penal Law § 130.65 [3]) based on allegations that he raped a nine-year-old child he was babysitting. This incident occurred less than three months after Cotto was released from incarceration for a prior felony sex offense: the rape of a seven-year-old relative. Cotto was sentenced to a determinate 10-year prison term with five years' postrelease supervision. DOCCS received Cotto into custody in September 2006, and ultimately planned to release him on his maximum custodial date—February 29, 2016. In anticipation of that date, the Board prepared an RAI determining that Cotto was presumptively a level three sexually violent offender based on a points assessment² and the automatic override for Cotto's prior felony sex crime conviction.

On January 14, 2016, DOCCS, as the agency with jurisdiction, sent Cotto a letter informing him that he had been identified as a possible "detained sex offender" and, therefore, his case had been referred to a case review team to ascertain whether, under SOMTA, he required civil management, such as civil confinement, upon his release from prison (*see generally* Mental Hygiene Law §§ 10.03 [a]; 10.05). Among other things, DOCCS informed Cotto that, during the review process, he "may be referred for a psychiatric examination and potentially for further proceedings in accordance with [SOMTA]." It also indicated that the case review team could either determine that Cotto did not require civil management or, if it reached a contrary conclusion, it could refer the case to the Attorney General, who may elect to file a petition for civil

2. Some of the points assessed against Cotto were based on his failure to participate in sex offender treatment and his continued sexual misconduct while incarcerated.

management (§§ 10.05 [g]; 10.06 [a]). DOCCS also informed Cotto of the potential outcomes of a petition for civil management under SOMTA—i.e., discharge, strict and intensive supervision in the community, or civil confinement (§§ 10.09-10.11).

During the SORA proceedings, Cotto argued that a SORA hearing was premature due to the possibility that he would be civilly confined under SOMTA. He requested an adjournment until he was about to be released into the community.³ Cotto also argued that holding a SORA hearing at this time, “when there is a not insignificant probability that [Cotto] will be released directly from DOCCS to OMH,” violated his right to due process. Alternatively, Cotto requested a downward departure to risk level two. Cotto did not challenge the points assessment under the RAI or the application of the automatic override.

Supreme Court rejected Cotto’s request to adjourn or dismiss the SORA proceedings, determining that there was no legal basis to postpone in light of the mere possibility that Cotto would be civilly committed under SOMTA.⁴ Following the SORA hearing, the court adjudicated Cotto a level three sexually violent offender based on the Board’s point assessment and the automatic override that applied due to his prior felony sex crime conviction. The Appellate Division affirmed, rejecting, *inter alia*, Cotto’s arguments that the SORA hearing should be adjourned pending the SOMTA proceedings, and that the timing of the SORA adjudication violated due process (203 AD3d 492 [1st Dept 2022]). This Court granted leave to appeal (38 NY3d 1165 [2022]), and we now affirm.

II.

A.

Defendants contend that an offender is released for purposes of SORA, thereby triggering the need for a risk level classification hearing (*see* Correction Law § 168-n [3]), *only* when they

3. To the extent that Cotto now contends on appeal that the court should have granted an adjournment pending the result of the case review team’s psychological examination, that contention is unpreserved.

4. According to the DOCCS incarcerated lookup website, Cotto is listed as being released to another agency on March 14, 2018 (Incarcerated Lookup, <https://nysdoccslookup.doccs.ny.gov/> [search by last name “Cotto” and first name “Albert,” click on 2006 DIN number]).

are free from State-imposed confinement and certain to reenter the community. They suggest that a SORA risk level classification hearing cannot go forward if there is *any* possibility at the time of the hearing that the offender will remain confined by the State for more than 30 days—here due to the pendency (or possible pendency) of SOMTA proceedings that could result in civil commitment. We reject that contention and conclude that sex offenders are “released” for purposes of SORA at the time they are no longer confined by DOCCS following the completion of their prison sentence, regardless of the possibility that they may be confined under SOMTA. At the time of their SORA hearings, defendants had either been released or were about to be released from confinement by DOCCS and therefore the hearings were not premature. Defendants’ proposed construction of the term “release” is not supported by the text and structure of SORA and would render SORA practically unworkable in cases involving the highest risk offenders.

B.

In interpreting a statute, it is “fundamental that a court . . . should attempt to effectuate the intent of the Legislature” (*Patrolmen’s Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205, 208 [1976]; see *People v Roberts*, 31 NY3d 406, 418 [2018]). “[T]he clearest indicator of legislative intent is the statutory text,” and we therefore start with the plain meaning of the language itself (see *Majewski v Broadalbin-Perth Cent. School Dist.*, 91 NY2d 577, 583 [1998]). “[E]ffect and meaning must, if possible, be given to the entire statute and every part and word thereof” (McKinney’s Cons Laws of NY, Book 1, Statutes § 98 [a]; see *People v Talluto*, 39 NY3d 306, 311 [2022]). Furthermore, “[a] statute or legislative act is to be construed as a whole, and all parts of an act are to be read and construed together to determine the legislative intent” (McKinney’s Cons Laws of NY, Book 1, Statutes § 97; see *People v Mobil Oil Corp.*, 48 NY2d 192, 199 [1979]). “[W]here the language of a statute is clear and unambiguous, courts must give effect to its plain meaning” (*State of New York v Patricia II.*, 6 NY3d 160, 162 [2006] [internal quotation marks omitted]; see *Matter of Anonymous v Molik*, 32 NY3d 30, 37 [2018]).

SORA provides, as relevant to these defendants, that “[a] determination that an offender is a sexual predator, sexually violent offender, or predicate sex offender . . . shall be made prior to the discharge, parole, release to post-release supervision or

release of such offender by the sentencing court applying the guidelines established by” Correction Law § 168-l “after receiving a recommendation from the [B]oard” (Correction Law § 168-n [1] [emphasis added]). At the same time, “the sentencing court *shall* also make a determination with respect to the level of notification, after receiving a recommendation from the [B]oard” (§ 168-n [2] [emphasis added]). Both judicial determinations must be made 30 days prior to an offender’s release (*see id.*). “As prescribed by [SORA], when a[n] [offender] is about to be *released from incarceration*, the original sentencing court has the responsibility to” perform the functions outlined in Correction Law § 168-n (*People v Stevens*, 91 NY2d 270, 273 [1998] [emphasis added]). SORA’s detailed commands govern the procedure and timeline under which an offender’s risk level classification and registration must occur (*see id.* at 279).

[1] As relevant to these appeals, this entire process is triggered by, and consistently tied to, an offender’s “release” (*see* Correction Law § 168-m; *see also* §§ 168-l [6]; 168-n [2]). Although SORA does not expressly define the term “release” (*see generally* § 168-a), a comprehensive reading of the statute makes clear that the legislature intended the term primarily to refer to an offender’s release from confinement by DOCCS.

“[I]t is a bedrock rule of statutory construction that, where the same word or phrase is used in different parts of a statute[,] it will be presumed to be used in the same sense throughout, absent any indication of a contrary intent” (*Matter of Mental Hygiene Legal Serv. v Sullivan*, 32 NY3d 652, 659 [2019] [internal quotation marks omitted]; *see McKinney’s Cons Laws of NY*, Book 1, Statutes § 236). To that end, multiple SORA provisions expressly tie the concept of “release” to an offender’s departure from *any of several* expressly listed locations, including—first and foremost—a correctional facility (*see* Correction Law §§ 168-c, 168-f [1] [a]; 168-m). Additionally, an offender’s duty to register is triggered “at least [10] calendar days prior to [, inter alia,] . . . release from any state or local correctional facility, hospital or institution where he or she was confined or committed” (§ 168-f [1] [a]). SORA also imposes a duty on DOCCS, *inter alia*, to notify the Division of Criminal Justice Services (DCJS) “at least [10] calendar days prior to the release or discharge of any sex offender from a correctional facility, hospital or local correctional facility . . . of the contemplated release or discharge of such sex offender” (§ 168-c [1]). Notably, the very *start* of the SORA process is activated by

those expressly listed locations—specifically “any state or local correctional facility, hospital or institution”—based on their individual duty to send relevant information about the offender to the Board, which must occur at least 120 days prior to “release or discharge” from each institution, in this case DOCCS (§ 168-m).

Contrary to the assertion of defendants, nowhere in the statute does SORA require delaying a risk level classification hearing or a final SORA adjudication until an offender’s reentry into the community is assured, and we decline to read those words into the statute (*see American Tr. Ins. Co. v Sartor*, 3 NY3d 71, 76 [2004] [“A court cannot amend a statute by adding words that are not there”]). Although the “release” of a sex offender from confinement by DOCCS most often coincides with reentry into the community, there is nothing in the statute expressly limiting the term to that event. Indeed, by listing the specific facilities, release from which triggers various SORA obligations, rather than simply stating that “release into the community” does so, the legislature made clear its intent. To conclude otherwise would effectively amend the statute by striking the listed facilities and substituting “into the community” as the SORA-triggering event. This we may not do (*see generally* McKinney’s Cons Laws of NY, Book 1, Statutes §§ 94, 97). In fact, none of the statutory language identified above would be necessary if the only meaning of “release” was reentry of the offender into the community, free from any and all State confinement.

SORA’s overarching structure bolsters our interpretation of the text (*see generally* McKinney’s Cons Laws of NY, Book 1, Statutes § 97). For example, when an offender is civilly committed under SOMTA, Correction Law § 168-f (2) (c-1) and (3) suspend certain SORA registration requirements, thereby demonstrating that the legislature envisioned that civilly committed offenders would already have SORA risk level classifications at the time they are placed in a secure treatment facility. Further, article 8 of the Correction Law, which concerns community supervision, ties the term “release” to a person’s release from confinement by DOCCS, not merely their release into the community (*see e.g.* §§ 203, 205-206).⁵

5. According to DOCCS, both defendants are listed as having been either discharged or released to another agency. Although certainly not dispositive

(n. cont’d)

SORA plainly envisions a singular process, one that is triggered 120 days prior to an offender's release from confinement by DOCCS (*see* § 168-m), continuing through a classification hearing held 30 days prior to release (§ 168-n [2]), and concluding with the offender's registration 10 days prior to release (§ 168-f [1] [a]). There is no indication that the legislature intended for the term "release" to have different meanings at different stages in the SORA process, and the artificial distinction the dissent draws between "release" for registration/classification purposes and risk level determination purposes is wholly unsupportable (*see* dissenting op at 599-602).

C.

In addition to SORA's text and structure, we also reject defendants' preferred construction of the term "release" because it would be contrary to the legislature's intent when it enacted SORA and would render the act practically unworkable. The legislature's paramount concern when it enacted SORA was "to protect the public from the danger of recidivism posed by sex offenders, to assist the criminal justice system to identify, investigate, apprehend and prosecute sex offenders, and to comply with the Federal Crime Control Act" (*Stevens*, 91 NY2d at 275 [internal quotation marks omitted]; *see also Doe v Pataki*, 120 F3d 1263, 1266 [2d Cir 1997] [indicating that the twin purposes served by SORA are "(1) protecting members of the community, particularly their children, by notifying them of the presence of individuals in their midst who may present a danger, and (2) enhancing law enforcement authorities' ability to investigate and prosecute future sex crimes"]]. To effectuate that purpose, SORA establishes registration and notification

to our interpretation of the word "release," it is nonetheless relevant that DOCCS's records show defendants as having been released, irrespective of the fact that there were ongoing proceedings under SOMTA (*see* Correction Law § 72 [1] [DOCCS has the charge to confine persons in its institutions "until paroled, conditionally released, transferred to the care of another agency or released or discharged in accordance with the law"]]. Contrary to the dissent's view (*see* dissenting op at 594-595), Correction Law § 72 (1) does not distinguish "release," "discharge," or "transfer" from one another. Instead, it simply outlines DOCCS's duty to confine individuals and specifies when that duty ceases. Indeed, we note that DOCCS's Community Supervision Handbook lists the nine ways an inmate may be released from prison, none of which involve transfer to a secure treatment facility under SOMTA (New York State Department of Corrections and Community Supervision, Community Supervision Handbook at 5, available at https://doccs.ny.gov/system/files/documents/2019/05/Community_Supervision_Handbook.pdf [last accessed Feb. 19, 2024]).

requirements for sex offenders and creates a three-tier classification system based on their risk of reoffending, with level one being the lowest risk and level three being the highest risk (*see* Correction Law § 168-l [6]; *People v Diack*, 24 NY3d 674, 680 [2015]). The dissent's construction of "release" under SORA undermines this goal by exposing the public to the risk the statute was enacted to protect against (L 1995, ch 192, § 1).

When an offender is discharged or released from civil confinement under SOMTA, notice is given only to the Attorney General and the offender (*see* Mental Hygiene Law § 10.09 [e]). In contrast, under SORA, when an offender is to be released the statute clearly requires that certain parties are timely and properly notified about the impending risk level adjudication—i.e., the Board, the sentencing court, and the district attorney (*see e.g.* Correction Law §§ 168-l [6]; 168-n [3]). SOMTA does not require OMH to give notice of an offender's release from civil confinement to *any* of the parties listed above. Thus, if we accepted defendants' contention that an offender is not released whenever SOMTA proceedings are pending or contemplated, there would be no statutory guidance as to how, precisely, the mechanism of SORA would be triggered if and when an offender is released from civil confinement.⁶ SOMTA does not address that serious notice problem because it never arises: a SORA risk assessment must have occurred by the time of an offender's release from incarceration—i.e., *before* any determination is made under SOMTA.

6. It is true enough that the Correction Law requires a hospital—now also defined to include a secure treatment facility under Mental Hygiene Law § 10.03 (*see* Correction Law § 168-a [6])—to "forward relevant information pertaining to a sex offender to be discharged, paroled, released to post-release supervision or released" to the Board (§ 168-m), arguably triggering its duties under SORA. Despite making that definitional change when SOMTA was originally adopted in 2007 (*see* L 2007, ch 7, §§ 2, 10), the legislature did not otherwise see fit to alter the strict timeline for judicial action under SORA. Instead, SOMTA's bill jacket states that the legislature expanded Correction Law § 168-a (6)'s definition of the word "hospital" merely for the purpose of "requir[ing] . . . secure treatment facilit[ies] to notify DCJS of an offender's imminent release" (Governor's Program Bill Mem No. 8 at 2, Bill Jacket, L 2007, ch 7). Certainly, had the legislature intended to *require* courts to delay all SORA risk level classification of an offender during the pendency of any SOMTA proceedings and ensuing civil confinement to a secure treatment facility, it easily could have done so (*see Matter of Corrigan v New York State Off. of Children & Family Servs.*, 28 NY3d 636, 642 [2017] ["the failure of the (l)egislature to include a substantive, significant prescription in a statute is a strong indication that its exclusion was intended" (internal quotation marks and citations omitted)]).

Indeed, the record in each case here demonstrates the impracticality of defendants' proffered interpretation of the term "release." At the time of defendants' respective SORA hearings—the relevant time for our purposes—no final judicial determination had yet been made as to whether they qualified for civil commitment under SOMTA. Indeed, at the time of the SORA hearing in Cotto's case, no SOMTA petition had been filed, and Cotto had not been transferred to OMH's care. He had merely been notified that his case had been referred to the case review team to ascertain whether civil commitment proceedings were warranted (*see* Mental Hygiene Law § 10.05). Even if the case review team concluded that further proceedings under SOMTA should occur, that determination would still be reviewed by the Attorney General, who would be responsible for determining whether to file a civil confinement petition under SOMTA (*see* § 10.06 [a]). Put simply, there was no certainty at the time of their SORA hearings that either defendant—both ultimately classified as the highest-risk offenders—would be confined for any significant period beyond their "release" from incarceration.⁷ Given the lack of a predictable release date under SOMTA, the Board, the sentencing court, the district attorney's office, and the secure treatment facility would likely find it impossible to coordinate and comply with SORA's statutory obligations if release only meant reentry into the community. Inevitably this would result in the release into the community of recidivist sex offenders who lacked any risk level classification—the precise risk SORA aims to address (*see Diack*, 24 NY3d at 680).

We cannot conclude that the legislature would accept such a risk. Rather, the approach more consistent with SORA—and indeed, the only practical approach—is for the sentencing court to conduct a SORA risk level classification hearing when the offender is released from confinement by DOCCS, irrespective of any parallel process occurring pursuant to SOMTA. In short, delaying defendants' SORA adjudication here would serve only to impede SORA's purpose of "protect[ing] the public from the danger of recidivism posed by sex offenders" (*Stevens*, 91 NY2d at 275 [internal quotation marks omitted]; *see People v Mingo*, 12 NY3d 563, 574 [2009]). The defendants' preferred approach would create a situation where, due to uncertainty over

7. That was particularly true of Cotto because, at the time of the SORA hearing, he was scheduled to be released from confinement by DOCCS upon the maximum expiration of his sentence.

whether the State will successfully pursue SOMTA proceedings, an offender might reenter the community without a risk level determination because DOCCS may no longer confine the individual legally.

D.

Nor do we find persuasive the dissent's arguments in support of defendants' interpretation of the term "release." The dissent construes the term "release" as meaning an offender's release from incarceration by DOCCS *unless* the offender may be transferred to another type of State custody. It generally supports that interpretation through a narrow focus on one isolated SORA provision, a resort to dictionary definitions, and a refusal to acknowledge the serious public safety risks inherent in its approach.

The dissent, with the benefit of hindsight, says that of course no "release" has occurred here because defendants have remained confined by the State at all relevant times (*see* dissenting op at 590-591). However, at the time Supreme Court made the determinations challenged on appeal, it did not have the luxury of knowing that defendants would remain in State confinement, and was faced with the possibility that, in delaying the SORA hearing until after their time of DOCCS confinement had ended, defendants could be released into the community without a risk level classification. The dissent's approach does not grapple with the situation that Supreme Court faced when it was called upon to make the challenged SORA determinations. These cases show precisely why the only workable, consistent, and predictable approach is to conclude that "release" occurs for SORA purposes when the offender's confinement by DOCCS will cease.

Moreover, the risks labeled by the dissent as "mundane operational concerns" (dissenting op at 602) are precisely the risks to the community that the legislature sought to address through enactment of SORA. Here, those concerns relate to the classification of "the most dangerous *recidivist* sex offenders" (*id.* [internal quotation marks omitted]), including those who, like defendants, have repeatedly sexually victimized young children. The risk here is not simply that agencies and courts will find it confusing or challenging to comply with the SORA process, but that vulnerable members of the community will lack the safeguards provided by SORA when offenders are released without proper classification and oversight. The idea that the legislature left it up to the assortment of officials

involved in the administration of SORA and SOMTA to cooperate on an ad hoc basis to develop procedures for handling the classification of SOMTA offenders is entirely inconsistent with SORA's goal of protecting the community.

In light of our conclusion that "release" under SORA encompasses release from DOCCS's confinement—and not merely release into the community—Supreme Court properly concluded that the SORA hearings in each case were not premature due to pending or potentially pending SOMTA proceedings. In fact, conducting the SORA hearings at their respective times was precisely what the statutory scheme intended.

III.

Defendants further contend that by conducting their SORA hearings at a time when they were unlikely to be released into the community, they were denied due process because they could not challenge their risk level classification at a meaningful time. We also reject that contention.

The United States and New York Constitutions require that the State not deprive an individual "of life, liberty, or property, without due process of law" (US Const, Amend XIV, § 1; NY Const, art I, § 6). "The bedrock of due process is notice and opportunity to be heard" (see *People v David W.*, 95 NY2d 130, 138 [2000], citing *Mathews v Eldridge*, 424 US 319, 333 [1976]). Nonetheless, due process is a flexible concept that

"generally requires consideration of three distinct factors: First, the private interest that will be affected by the official action; second, the risk of an erroneous deprivation of such interest through the procedures used, and the probable value, if any, of additional or substitute procedural safeguards; and finally, the Government's interest, including the function involved and the fiscal and administrative burdens that the additional or substitute procedural requirement would entail" (*Mathews*, 424 US at 335; see *David W.*, 95 NY2d at 136-137).

As relevant to these appeals, "[i]t is well established that sex offenders are entitled to certain due process protections at their risk level classification proceedings" (*People v Baxin*, 26 NY3d 6, 10 [2015]; see *David W.*, 95 NY2d at 140; see also *Doe v Pataki*, 3 F Supp 2d 456, 469-470 [SD NY 1998]). In particular, "[d]ue process requires that the State bear the burden of proving, at some *meaningful time*, that a defendant deserves

the classification assigned” (*David W.*, 95 NY2d at 140 [emphasis added]). Generally speaking, an opportunity to be heard at a meaningful time means that a defendant has the ability to challenge the determination *before* the State makes its determination (see *Matter of Kaur v New York State Urban Dev. Corp.*, 15 NY3d 235, 260 [2010]; see generally *Goldberg v Kelly*, 397 US 254, 268 [1970]; *Armstrong v Manzo*, 380 US 545, 550-551 [1965]).

[2] Although classification as a level three offender impacts private liberty interests (see *David W.*, 95 NY2d at 138), we nonetheless conclude that determining the risk level of a sex offender upon the offender’s release from confinement by DOCCS—even if that offender is potentially subject to indefinite civil commitment under SOMTA—presents minimal risk of misclassification and thus minimal risk of an erroneous deprivation of those interests (see generally *Mathews*, 424 US at 335; *Matter of K.L.*, 1 NY3d 362, 373 [2004]; *Pringle v Wolfe*, 88 NY2d 426, 434 [1996]). SORA already provides substantial procedural safeguards to offenders when making a risk level classification (see e.g. Correction Law §§ 168-n [3] [providing for notice of the risk level classification hearing, disclosure of the Board’s recommendation, assigned counsel, submission of evidence by the offender, and placing the burden of proving the facts supporting the risk level assessment on the People]; 168-o [2] [providing the offender with the option of pursuing yearly modification hearings]). In addition, SORA provides an offender with the opportunity to challenge a risk level classification at a time *before* a determination is made by the Board or the sentencing court (see §§ 168-m [offender is permitted to submit to the Board any information relevant to review], 168-n [3]; see generally *Goldberg*, 397 US at 268; *Pringle*, 88 NY2d at 434). These procedural safeguards were implemented specifically to mitigate the risk of an erroneous deprivation (see *Doe*, 3 F Supp 2d at 470-472).

There is little reason to believe that a sex offender considered for civil management under SOMTA who has been afforded these procedural safeguards has been misclassified under SORA as a level three offender. Sex offenders in need of civil management under SOMTA are among the highest risk offenders in the system (see Mental Hygiene Law §§ 10.01 [b]; 10.03 [i], [q]). Indeed, most of the relevant RAI factors in defendants’ respective cases are based on the unalterable characteristics of the underlying offenses, as well as on each offender’s criminal

history—both of which involved repeated sex crimes against young children and, as such, subjected these defendants to automatic overrides (*see* Correction Law § 168-1 [5]). None of these RAI factors, nor the application of the automatic override, will change during any period of civil confinement, and consequently the risk of misclassification at an arguably “premature” hearing is minimal.

The State’s interest also cuts against postponing the initial SORA hearing until an offender will be released into the community (*see generally Mathews*, 424 US at 335). To that end, the State has an important interest in ensuring that all sex offenders receive proper risk level classifications before they reenter the community. As discussed above, because the timing of release from civil commitment can be unpredictable and may not allow the parties to comply with the statutorily mandated timeframe expeditiously, delaying the SORA hearing could result in the release of sex offenders into the community without the proper risk level classification. The State has a significant interest in avoiding that result, especially given the pool of offenders subject to SOMTA proceedings. This is particularly important given the public safety objectives served by SORA (*see generally Mingo*, 12 NY3d at 574; *Stevens*, 91 NY2d at 275).⁸ Thus, in light of the minimal risk to defendants occasioned by conducting a SORA hearing despite the potential pendency of SOMTA proceedings, and given the State’s strong interest in ensuring predictable and timely risk level adjudications, defendants were not denied due process when their risk level classification hearings were held upon their release from confinement by DOCCS.

Accordingly, in each case, the Appellate Division order should be affirmed, without costs.

Chief Judge WILSON (dissenting). Mr. Boone and Mr. Cotto are sex offenders who served their prison terms and have been determined, pursuant to the Sex Offender Management and Treatment Act (SOMTA) (Mental Hygiene Law § 10.01 *et seq.*), to be dangerous sex offenders incapable of controlling their sexual offending.

Prior to those determinations, Mr. Boone and Mr. Cotto were

8. Indeed, providing the community and law enforcement notice about recidivist child sex offenders like the defendants in these appeals clearly fulfills the purposes behind the legislature’s enactment of SORA (*see* L 1995, ch 192, § 1).

incarcerated in the custody of the Department of Corrections and Community Supervision (DOCCS), serving prison sentences for committing sex offenses. Both of them were transferred from prison to a secure treatment facility operated by the Office of Mental Health (OMH) where they remain to date and for the indefinite future.¹ Thus, from the moment of their convictions to the present, they both have been confined in State custody.

The question on this appeal is whether they have been “released” within the meaning of section 168-n of the Sex Offender Registration Act (SORA) (Correction Law § 168 *et seq.*). The sole practical consequence is whether their risk to the public should be determined when they were transferred from DOCCS custody to OMH custody—after which they may remain locked up perhaps for decades or a lifetime—or shortly before they are no longer locked up by the State and released into the public, albeit usually under the strict and intensive supervision required when such persons appear to have been rehabilitated to some degree (*see* Mental Hygiene Law § 10.11).

In common parlance, someone locked up by the State is not “released,” regardless of which arm of the State is responsible for the confinement. The majority, however, insists that the meaning of “release” in section 168-n is determined by the “plain reading of SORA” (majority op at 582, 577).

Its analysis begins with the language at issue, section 168-n’s use of the word “release,” and acknowledges that SORA

1. Although Mr. Boone’s article 10 proceedings were still ongoing at the time of his conditional release date from DOCCS custody, he remained confined in State custody, having been transferred directly from a DOCCS facility to an OMH-operated secure treatment facility prior to his SORA proceeding. At his SORA proceeding which was held four months after his conditional release date, Mr. Boone appeared by video conference from the secure treatment facility. Mr. Boone has been confined in State custody continuously since at least the date of his original commitment to DOCCS, April 5, 2011.

Mr. Cotto was informed by a DOCCS letter on January 14, 2016, 46 days prior the date of the maximum expiration of his prison sentence, that he might be subject to commitment under SOMTA. The SORA court denied Mr. Cotto’s request to adjourn his SORA proceeding pending the outcome of his SOMTA proceeding. The DOCCS website indicates that Mr. Cotto was remitted back to DOCCS custody on February 29, 2016, on his maximum release date, and remained in DOCCS custody for over two years thereafter, pending the duration of his SOMTA proceedings until he was adjudicated in need of civil confinement and transferred to an OMH-operated secure treatment facility. Mr. Cotto has remained confined in State custody continuously since at least the date of his original commitment to DOCCS, September 19, 2006.

does not define “release.” The majority’s plain reading, however, takes several pages to explain, and points not to any plain language, but rather to a hodgepodge of inferences drawn from the Correction Law and from sound bites from cases that have nothing to do with what “release” means (*see* majority op at 581-586, citing §§ 72 [1]; 168-a, 168-c [1]; 168-f [1] [a]; [2] [c-1]; [3]; 168-l [6]; 168-m, 168-n [2], [3]; 203, 205-206) and from the Mental Hygiene Law (*see id.*, citing §§ 10.03; 10.05, 10.06 [a]; 10.09 [e]).² There is nothing plain about the majority’s construction of the statutory language.

I.

Under the plain language of SORA, neither Mr. Boone nor Mr. Cotto has been released. As the majority acknowledges, our paramount concern when interpreting a statute is to give effect to the legislature’s intent, which is best expressed by the statute’s own language if clear (majority op at 581). *Majewski v Broadalbin-Perth Cent. School Dist.* (91 NY2d 577 [1998]), on which the majority relies, further explains that “[i]n construing statutes, it is a well-established rule that resort must be had to the natural signification of the words employed, and if they have a definite meaning, which involves no absurdity or contradiction, there is no room for construction and courts have no right to add to or take away from that meaning” (*id.* at 583 [citation and internal quotation marks omitted]).

In relevant part, SORA provides:

“1. A determination that an offender is a sexual predator, sexually violent offender, or predicate sex offender . . . shall be made prior to the discharge, parole, release to post-release supervision or *release* of such offender by the sentencing court . . . after receiving a recommendation from the board [of examiners of sex offenders] [the Board] . . .

“2. In addition . . . the sentencing court shall also make a determination with respect to the level of

2. For example, the italicized quote from *People v Stevens* (91 NY2d 270, 272 [1998]) is taken from a case in which the sole question was whether, as to persons who had been sentenced before SORA was enacted, they could take an appeal under the Criminal Procedure Law from their SORA determination. The defendants in *Stevens* had been released from DOCCS incarceration before SORA was enacted, and were never confined pursuant to SOMTA, which did not exist at the time.

notification, after receiving a recommendation from the [Board] Both determinations of the sentencing court shall be made thirty calendar days prior to discharge, parole or *release*” (Correction Law § 168-n [1]-[2] [emphases added]).

Correction Law § 168-n does not identify a custodian from whose release triggers a risk determination. That absence, coupled with the breadth of the language, indicates that the legislature did not care *who* was releasing the sex offender; the triggering event was “discharge, parole or release” from any sort of custody. “Where a statute describes the particular situations in which it is to apply and no qualifying exception is added, ‘an irrefutable inference must be drawn that what is omitted or not included was intended to be omitted or excluded’” (*Matter of Alonzo M. v New York City Dept. of Probation*, 72 NY2d 662, 665 [1988], quoting *Patrolmen’s Benevolent Assn. of City of N.Y. v City of New York*, 41 NY2d 205, 208 [1976] [some internal quotation marks omitted]). By defining “release” as “an offender’s release from confinement by DOCCS” (majority op at 582), the majority engrafts “by DOCCS” where it is conspicuously absent from the statute.

Here, as the majority acknowledges, SORA “does not expressly define the term ‘release’” (majority op at 582). Likewise, neither the majority nor the parties contends that there is some specialized definition of “release” in the field of sex offender management. In such circumstances, we interpret words by resort to their “natural and ordinary meaning” (*Matter of Kamhi v Planning Bd. of Town of Yorktown*, 59 NY2d 385, 391 [1983]).

“Release” is defined as “[t]he action of freeing or the fact of being freed from restraint or confinement” (Black’s Law Dictionary [11th ed 2019], release), and “confinement” refers to the “act of imprisoning or restraining someone; the quality, state, or condition of being imprisoned or restrained” (*id.*, confinement; cf. *Matter of Grand Jury Subpoena Duces Tecum Served on Museum of Modern Art*, 93 NY2d 729, 738 [1999]).

Mr. Boone and Mr. Cotto have never been set free from confinement. They, like all other persons confined pursuant to SOMTA, are held in secure treatment facilities in which they are segregated from the general community and subject to extreme restraints on movement and liberty functionally analogous to those imposed upon individuals incarcerated in correctional facilities. They cannot leave the secure treatment fa-

cility except for a few enumerated events, and then only with permission from the facility's administrator and under constant supervision (*compare e.g.* Mental Hygiene Law § 10.10 [f] [a person committed to a secure treatment facility may "be granted an escorted privilege by the director of the secure treatment facility . . . but only for the purposes of allowing the person to receive medical or dental care or treatment not available at the facility, to visit a family member who is seriously ill or to attend the funeral of a family member. A person granted an escorted privilege shall be under the constant supervision of one or more facility employees"], *with* 7 NYCRR 1900.3 [a] [describing DOCCS's similar "Leave of Absence" program for the general prison population]; *see also Matter of State of New York v Nelson D.*, 22 NY3d 233, 239-240 [2013] [characterizing the restraints on liberty imposed under SOMTA confinement]).

As part of its plain language argument, the majority cites to select language in Correction Law §§ 168-c (1) and 168-f (1) (a) as evidence that "release" refers to release from confinement by DOCCS (*see* majority op at 582). However, only one of those provisions, Correction Law § 168-c, references DOCCS, and both of those provisions explicitly contemplate "release" from a "hospital." When it passed SOMTA, the legislature amended the definition of "hospital" in SORA to incorporate secure detention facilities in which individuals committed under SOMTA were confined (*see* L 2007, ch 7, § 10), in recognition of the fact that following its passage, sometimes sex offenders would be released to the community from secure psychiatric facilities, not prison. The fact that the notification obligation is parallel for DOCCS and hospitals suggests that "release" relates to release from all State custody. It surely provides no basis for concluding that the term "release" in Correction Law § 168-n should be read to apply to transfer from DOCCS custody to OMH custody.

The majority also quotes Correction Law § 72 (1) to support its position, arguing as follows:

"[I]t is . . . relevant that DOCCS's records show defendants having been released, irrespective of the fact that there were ongoing proceedings under SOMTA (*see* Correction Law § 72 [1] [DOCCS has the charge to confine persons in its institutions "until paroled, conditionally released, *transferred to the care of another agency*, or released or discharged

in accordance with the law” (emphasis added)])
(majority op at 584 n 5).

But that language supports precisely the opposite conclusion: Correction Law § 72 (1) distinguishes between “released or discharged” on the one hand, and “transferred to the care of another agency” on the other. As regarding the interpretation of “release” in SORA’s section 168-n, then, the Correction Law considers transfer to another agency to be something different from “release.” Mr. Cotto and Mr. Boone were, in fact, transferred to another agency, not released.

Resorting to canons of construction, the majority notes that “where the same word or phrase is used in different parts of a statute[,] it will be presumed to be used in the same sense throughout, absent any indication of contrary intent” (majority op at 582 [internal quotation marks omitted]). I have no quarrel with that maxim, but it does not support the majority’s claim that “release” applies to a transfer of confinement from one State lockup to another. The majority refers not to section 168-n, but instead to “multiple SORA provisions [that] expressly tie the concept of ‘release’ to an offender’s departure from *any of several* expressly listed locations, including—first and foremost—a correctional facility” (majority op at 582). From that, the majority contends that “release” in section 168-n must have the same meaning as in the sections that enumerate the places from which a defendant’s release triggers some different SORA obligation, not the risk-level determination.

There are several problems with that argument. First, in some portions of SORA the legislature paired “release” with specific locations, but in others—including section 168-n—it did not. Thus, contrary to the majority’s conclusion, although the same word “release” is used in several places, the legislature used a different phrase in section 168-n, one that omits any reference to the place from which the person is released, which under the majority’s maxim suggests that we should treat the different choice of words differently.

Second, the majority’s interpretation—that “release” includes a transfer of custody from one State lockup to another—would produce absurd results. SORA defines “hospital” to include the secure psychiatric facilities of the sort that Mr. Cotto and Mr. Boone are held in, but also “a hospital as defined in subdivision two of section four hundred” of the Correction Law (Correction Law § 168-a [6] [a]), and section 400 in turn defines “hospital” as “a hospital in the department of mental hygiene

which is designated as such by the commissioner of mental hygiene for the care and treatment of mentally ill incarcerated individuals” (*id.* § 400 [2]). Apart from the two secure psychiatric facilities that house dangerous sex offenders, New York has two dozen other State-run hospitals for the treatment of mentally ill persons (*see* Office of Mental Health, Directory of OMH Facilities, https://omh.ny.gov/omhweb/aboutomh/omh_facility.html [last accessed Feb. 15, 2024]). If, for example, a person previously convicted of a sex offense was arrested and sent by a court to such a facility for a competency hearing, the transfer of that person back to pretrial detention, or to a different mental hospital for longer-term care, would constitute a “release” under the majority’s interpretation, requiring a SORA risk-level determination each time such a transfer occurred.³

In common parlance, no one would conclude that Mr. Cotto or Mr. Boone has been released. At the point, if ever, that their release from a secure treatment facility is imminent, SORA requires that a risk-level determination must be made.

II.

Even were one to conclude that SORA is unclear as to what “release” means, one would then turn to the legislative history. In interpreting any statute, it is “fundamental that a court . . . should attempt to effectuate the intent of the Legislature” (*Patrolmen’s Benevolent Assn. of City of N.Y.*, 41 NY2d at 208; *see also People v Roberts*, 31 NY3d 406, 418 [2018]). “[D]ifferent acts which are in *pari materia* are to be construed in the light of the other” (McKinney’s Cons Laws of NY, Book 1, Statutes § 97, Comment; *see also id.* § 223). Reading them together, the legislative histories of both SORA and SOMTA reveal that the legislature contemplated confinement under SOMTA as an extension of the confinement of incarceration, and that performing a risk determination during the pendency (or potential pendency) of SOMTA proceedings runs counter to the purpose of SORA’s risk-level determination process.

3. For that reason, the majority is mistaken when it asserts “none of the statutory language identified above would be necessary if the only meaning of ‘release’ was reentry of the offender into the community, free from any and all State confinement” (majority op at 583). That language is essential to ensure, for example, that when a sex offender is released on bail or released from a medical (non-psychiatric) hospital at the completion of surgery, a SORA hearing is not required. The statutorily enumerated facilities are the only ones from which release to the community would possibly trigger a SORA risk-level determination.

I completely agree with the majority that the legislature passed SORA in 1995 with the dual purpose of protecting community members by notifying them of the presence of persons convicted of sex offenses in their community and facilitating the efforts of local law enforcement to monitor individuals convicted of sex offenses located within their jurisdictions (*see* Senate Introductor’s Mem in Support, Bill Jacket, L 1995, ch 192 at 7 [“This proposal will not only provide law enforcement with a valuable investigative tool in the fight against child abductions and sex crimes, but it also provides important information to communities since sex offenders pose a high risk of reoffending *once released from custody*” (emphasis added)]). Specifically, the legislature intended SORA’s notification and registration provisions to mitigate the risk of recidivism posed by individuals convicted of sex offenses upon “reentering the community” (*id.* at 6). As we have often noted, SORA’s purpose is “the protection of the community against people who have shown themselves capable of committing sex crimes” (*People v Knox*, 12 NY3d 60, 67 [2009]; *see also People v Cook*, 29 NY3d 121, 125 [2017]).

In 2007, the legislature passed SOMTA in order to provide a means of continuing to confine certain individuals convicted of sex crimes “whose *confinement should continue beyond the expiration of their prison terms*” (Senate Introductor’s Mem in Support, Bill Jacket, L 2007, ch 7 at 19 [emphasis added]). SOMTA also amended SORA to include “secure treatment facilities” in the definition of “hospital” (*see* L 2007, ch 7, § 10 [amending Correction Law § 168-a to include in the definition of hospital “a secure treatment facility as defined in (SOMTA)” and to “appl(y) to persons committed to such facility by an order made pursuant to (SOMTA)”]). A further important purpose of SOMTA is to treat dangerous sex offenders and reduce the likelihood of reoffending, so that those responding well to treatment could eventually be returned to the community (*see e.g.* Mental Hygiene Law § 10.01 [c], [f] [“The goal of a comprehensive system should be to protect the public, reduce recidivism, and ensure offenders have access to proper treatment. . . . (T)he system should offer meaningful forms of treatment to sex offenders in all criminal and civil phases, including during incarceration, civil commitment, and outpatient supervision”]; Governor’s Program Bill Mem No. 8, Bill Jacket, L 2007, ch 7 at 10 [“The highest risk sex criminals are the ones who should be confined until they can develop the ability to control their own behavior”]).

With the passage of both SORA and SOMTA, the legislature shared a common goal: protect the community at large from the risk of recidivism posed by individuals convicted of sex offenses. Performing a risk determination on an individual who will not soon be released into the community, and whose registration obligations will be suspended until the end of his or her civil confinement, does not advance SORA's objective of promulgating timely information to assist law enforcement and members of the community to protect themselves.

More importantly, making a risk-level determination many years or decades before a sex offender is actually released to the public does not measure the actual risk posed by the offender at the time of release and is antithetical to the SORA Guidelines' emphasis on the use of the best evidence available near the time of release to the community when measuring risk.⁴ As we have emphasized, "the purpose underlying SORA [is] to protect the public from sex offenders. Given the significance of the mission, an accurate determination of the risk a sex offender poses to the public is the paramount concern." (*People v Mingo*, 12 NY3d 563, 574 [2009]). Making a risk-level determination for someone who remains locked indefinitely in State custody does not serve SORA's purpose; making that determination years or decades before someone's release to the community flouts SORA's objective of "an accurate determination of the risk."

Making a risk-level determination years or decades before the actual release of a sex offender into the community is also inconsistent with SOMTA's purpose of treating and success-

4. See e.g. Sex Offender Registration Act: Risk Assessment Guidelines and Commentary (SORA Guidelines) at 15-16 (2006) ("In scoring [risk factor 12, "Acceptance of Responsibility"], the Board or court should examine the offender's most recent credible statements and should seek evidence of genuine acceptance of responsibility. . . . The guidelines add five points if the offender has refused or been expelled from treatment since such conduct is powerful evidence of the offender's continued denial and his unwillingness to alter his behavior. If an offender who has historically not accepted responsibility and historically has refused sex offender treatment but, subsequently participates in such programming, the Board or court should seek to examine whether there is evidence of a genuine acceptance of responsibility"); *id.* at 16 ("[risk factor 13, 'Conduct While Confined or Under Supervision'] looks to the offender's conduct while in custody or under supervision as a predictor of future behavior"); *id.* at 19 (when an offender makes a threat to reoffend by committing a sexual or violent crime: "if the threat is recent enough that there is cause to believe that the offender may act upon it, an override is warranted").

fully deinstitutionalizing sex offenders. As OMH has explained, for those confined under article 10, “[t]reatment services are individualized and strength-based, with the intended outcome of reducing the residents’ risks of sexually re-offending, while promoting growth in key areas such as treatment engagement, self-regulation, managing sexual deviance, and developing pro-social attitudes and behavior” (New York State Office of Mental Health, 2022 Annual Report on the Implementation of Mental Hygiene Law Article 10, Sex Offender Management and Treatment Act [Nov. 2022] [2022 OMH Report] at 6, available at <https://omh.ny.gov/omhweb/statistics/somta-report-2022.pdf> [last accessed Jan. 30, 2024]).

Mr. Cotto and Mr. Boone are the paradigmatic offenders contemplated for civil confinement under SOMTA. As the majority observes, each appellant had been convicted of serious offenses prior to their instant convictions and had preexisting risk-level determinations even before their most recent convictions. From those facts, the majority concludes that SORA is “practically unworkable in cases involving the highest risk offenders” (majority op at 581). The exact opposite is true; these are the offenders most likely to be subject to intensive monitoring because the number of offenders to whom SOMTA applies is quite small and, given the severity and recidivistic nature of their offenses, they are likely to already be under some form of government supervision.

III.

The majority’s plain-language argument is really something quite different: it is a collection of observations about ways in which other parts of SORA and SOMTA could be read to create various hypothesized gaps if the SORA risk-level determination were to be made close in time to the release of a sex offender from all physical confinement by the State. However, the various statutory provisions are written in such a way as to avoid any of those hypothetical gaps, and even were they not, the existence of the gaps would not mean that the plain definition of “release” produces an absurd result (*cf. Lubonty v U.S. Bank N.A.*, 34 NY3d 250, 255-257 [2019]).

A.

The majority’s principal claimed incongruity it uses to support its decision is that the risk-level determination and registration requirements must be simultaneously determined

because the language of certain SORA provisions ties the concept of an individual's release to one of a number of "expressly listed locations" and because the timing of the registration obligations is tied to the date of an individual's release from one such location (as opposed to release into the community) (majority op at 582-583).

However, the majority's reading relies on a misapprehension about SORA's structure and mischaracterization of that statute's language. The provisions of SORA pertaining to the timing of an individual's risk determination are treated separately from those provisions pertaining to the timing of an individual's registration obligations, and the majority errs in reading a condition into the statute where the legislature intentionally did not include one (*see Matter of Alonzo M.*, 72 NY2d at 665 ["Where a statute describes the particular situations in which it is to apply and no qualifying exception is added, an irrefutable inference must be drawn that what is omitted or not included was *intended* to be omitted or excluded" (emphasis added and citation and internal quotation marks omitted)]; *Matter of Albano v Kirby*, 36 NY2d 526, 530 [1975] ["When different terms are used in various parts of a statute or rule, it is reasonable to assume that a distinction between them is intended"]).

As the majority notes, the SORA provisions pertaining to the timing of an individual's registration obligations are explicitly tied to an individual's release or discharge from an enumerated location (*see* majority op at 582). In contrast, SORA's provisions pertaining to the timing of the risk-level determination are *not* tied to release from an enumerated location (*see* Correction Law §§ 168-l [6] ["(T)he (B)oard shall within sixty calendar days prior to the discharge, parole, release to post-release supervision or release of a sex offender make a recommendation"]; 168-m ["(A)ny state or local correctional facility, hospital or institution, district attorney, law enforcement agency, probation department, state board of parole, court or child protective agency shall forward relevant information pertaining to a sex offender to be discharged, paroled, released to post-release supervision or released to the (Board) for review no later than one hundred twenty days prior to the release or discharge and the (Board) shall make recommendations as

provided in (§ 168-l [6]) within sixty days of receipt of the information”).⁵

That distinction in timing makes sense, because the registration requirement and classification (sex offender, sexual predator, sexually violent offender, predicate sex offender) are determined by the crime(s) of conviction and prior criminal history, which are known at the time of conviction and are immutable. Had the legislature not intended for the risk-level determination to take into account dynamic factors when assessing an offender’s risk to the public, it could have required the determination to occur at the time of sentencing, completely disregarding the offender’s most recent state at the time of release (see e.g. *Matter of Mental Hygiene Legal Serv. v Sullivan*, 32 NY3d 652, 659 [2019] [“ ‘the failure of the Legislature to include a substantive, significant prescription in a statute is a strong indication that its exclusion was intended’ ”], quoting *Matter of Corrigan v New York State Off. of Children & Family Servs.*, 28 NY3d 636, 642 [2017]). The risk-level determination, however, explicitly considers an individual’s actions *after* he or she committed the offense—factors that may change over time—such as conduct during confinement (see SORA Guidelines, risk factor 13), participation in—or expulsion from—sex offender treatment while confined (see *id.*, risk factor 12), acceptance of responsibility (see *id.*) and factors that may warrant a downward departure (SORA Guidelines at 14 [“an offender’s response to treatment, if exceptional, can be the basis for a downward departure”]). The express consideration of facts occurring during incarceration reflects the legislature’s judgment that safe release to the community should include the most recent evidence available. Thus, the statutory structure supports reading “release” to mean release from all State confinement, not merely transfer of confinement from one arm of the State to another.

There is a further reason the analytical weight placed by the majority on the timing of SORA’s registration requirement is

5. Although Correction Law § 168-n (1)-(2) provides that both the classification of the sex offender and the risk-level determination “shall be made thirty calendar days prior to discharge, parole or release,” that requirement cannot reasonably be read to require that all such determinations be made precisely on the thirtieth day, but rather that they be made no later than 30 days before release. As discussed below, nothing in SORA or SOTMA would prevent a court from imposing registration requirements upon the completion of a sentence of incarceration and determining the risk level no later than 30 days before release to the public.

unjustified. SOMTA was intended to “‘civilly confin[e] the most dangerous *recidivistic* sex offenders’ ” (Governor’s Program Bill Mem No. 8, Bill Jacket, L 2007, ch 7 at 5 [emphasis added]). Such persons already are subject to SORA’s registration requirements by virtue of their prior sex offense convictions, and the effective date of their registration requirement is necessarily disconnected from their risk-level determination, whenever it is made. Moreover, SOTMA expressly suspends certain registration obligations for individuals civilly confined under that statute, further emphasizing a legislative determination that registration obligations and risk-level determinations are uncoupled (*see* Correction Law § 168-f [2] [c-1]; [3]).

B.

The balance of the majority’s observations about myriad statutory provisions do not bear on the meaning of “release,” but rather amount to mundane operational concerns that can readily be addressed by the various responsible actors under the SORA and SOMTA frameworks.

From the timing provisions in SORA, the majority concludes that deferring a risk-level determination until near the time, if any, that a sex offender subjected to or threatened with commitment under SOMTA is released to the community would be “practically unworkable” (majority op at 580-581)—an *ipse dixit* that avoids any detailed examination of how the various statutory timing requirements could be fully complied with without resulting in the release to the community of a sex offender with no risk-level determination. Tellingly, the majority does not contend that full compliance with SORA’s risk-level determination process could not occur if those determinations were deferred to near in time to an individual’s actual release into the community. Instead, the majority’s worry is that SORA and SOMTA do not spell out detailed instructions on how the relevant governmental actors should coordinate their activities to meet various statutory requirements (majority op at 584-585). Of course, the lack of a statutory instruction manual does not disable agencies from developing procedures that allow them to fulfill their statutory duties, nor does it provide a basis for interpreting statutory language one way or the other.

In any event, the various provisions of both SORA and SOMTA do not impede the relevant governmental actors from developing fully workable procedures to determine the risk level of persons subjected to SOMTA shortly before their release

into the community. Both statutes clearly contemplate sufficient communication among DOCCS, OMH, the Attorney General, and the SORA and SOMTA courts to allow all those actors to coordinate to ensure that individuals subject to SOMTA proceedings receive timely risk determinations before their release into the community.

When estimating the weight of the majority's workability concern, it is important to keep in mind the tiny size of the population in question. Whereas thousands of sex offenders each year have risk-level determinations made pursuant to SORA, only 59 sex offenders have been released from SOMTA commitment since the statute was enacted in 2007—not quite four per year. As an example, in November 2022, OMH reported that of the 397 sex offenders held in New York's secure treatment facilities, only two were awaiting release, both of whom would be subject to a regime of strict and intensive supervision (SIST) upon release (2022 OMH Report at 5), which imposes conditions more stringent than even the highest risk-level determination under SORA.⁶ Thus, even as to those two, were they to be released with a risk-level determination to come later (which is counterfactual because they were being held pending release to SIST, during which time a SORA risk-level determination could be made), they would be subject to even more stringent requirements than the highest level risk determination would subject them to.

With that in mind, the relevant agencies are perfectly capable of making sure that no one slips through the cracks by developing simple and fully workable procedures. When

6. See New York State Division of Criminal Justice Services, *The Sex Offender Management and Treatment Act: The First Year* at 6, available at https://www.criminaljustice.ny.gov/nsor/somta_report_april2008.pdf (last accessed Feb. 19, 2024) (“All sex offenders on SIST are supervised by specially trained parole officers with a greatly reduced case load of 10:1. In addition, offenders are required to have six face-to-face supervision contacts and six collateral contacts each month. This allows the Officer to closely monitor the offender. Offenders are also required to abide by a set of conditions that relate to known risk factors and prior behavior. For example, these conditions may mandate that the offender cannot have contact with minors, must abide by a curfew, and cannot use a computer. Typically, individuals on SIST are monitored using GPS and must take polygraph examinations. Offenders are also required to receive sex offender treatment and substance abuse treatment if appropriate. If an offender violates any of these conditions the parole officer is authorized to take the person into custody. At that point, the Attorney General's office can return to court and seek modification of the SIST conditions, or if appropriate, that the offender be confined”).

SOMTA amended the definition of “hospital” in the Correction Law to include secure treatment facilities, it imposed the requirements of Correction Law § 168-m on those facilities too. Thus, “no later than [120] days prior to the release or discharge” of a sex offender, a “state or local correctional facility, *hospital* or institution . . . shall forward relevant information” to the Board (*id.* [emphasis added]). Of course, nothing in the statute prevents the hospital from providing that information to the Board sooner. Thus, OMH is fully equipped to time its notification and discharge proceedings to accommodate SORA’s timing requirements if 120-days’ notice is not sufficient. Furthermore, as to persons released to SIST, each is required to submit to the sex offender registry even before a risk level adjudication (*see id.* § 168-h [1]), and the baseline supervision requirements under SIST exceed those of SORA risk level three (*compare* Mental Hygiene Law § 10.11 [b] [1] [(p)ersons ordered into a regiment of (SIST) . . . shall be subject to a *minimum* of six face-to-face supervision contacts and six collateral contacts per month” (emphasis added)], *with* Correction Law § 168-f [3] [individuals designated as sexual predators or who have received a risk-level three designation must verify their address in person with the local law enforcement agency every 90 days]).⁷

As to sex offenders whose initial civil management decision under SOMTA is pending, that statute provides mechanisms to ensure that such persons are not to be released prior to or during the pendency of the civil commitment proceeding. DOCCS initiates the SOMTA process. When DOCCS determines the date on which it plans to end its incarceration of a sex offender, DOCCS notifies the Attorney General and OMH (*see* Mental Hygiene Law § 10.05 [b]). DOCCS is expected to give that notice *at least* 120 days prior to such person’s anticipated release (*id.*). If, upon preliminary screening, OMH staff determines that the sex offender may require civil management under SOMTA, it refers the individual to a case review team (CRT) to decide whether to recommend that the Attorney General file a sex offender civil management petition (*id.* subd [d]). Upon referral to the CRT, the sex offender receives notice of the impending CRT review (*id.* subd [e]).

7. Additionally, SOMTA requires that, prior to ordering an individual’s release to SIST, the court must order DOCCS to recommend supervision conditions which may include, but are not limited to GPS tracking, polygraph monitoring and residence restrictions (Mental Hygiene Law § 10.11 [a] [1]).

At any time after receiving written notice of a sex offender's pending release from DOCCS and prior to the determination of the CRT, the Attorney General may file a securing petition if it appears that such person may be released from confinement before the CRT has made its determination, and if the Attorney General determines that public safety so requires (§ 10.06 [f]). The securing order requires that the sex offender remain in custody.

Within 45 days from the date on which OMH received notice of the sex offender's release, the CRT must notify the Attorney General of its findings and whether it recommends that the Attorney General should file a sex offender civil management petition (§ 10.05 [g]). If the CRT determines that a sex offender requires civil management, the Attorney General may file a sex offender civil management petition, at which point the sex offender must remain confined until the court makes a determination as to whether there is probable cause to believe the sex offender requires civil management (§ 10.06 [h]).

If the court finds probable cause has been established to believe that the sex offender is a sex offender requiring civil management under SOMTA (either after a court hearing, or by consent of the sex offender), the sex offender must remain confined in either an OMH-administered secure treatment facility or a DOCCS facility leading up to, and during, a trial which determines whether the sex offender will be committed under SOMTA (*id.* subd [k]).

Although SOMTA provides that DOCCS must seek to give at least 120 days' notice to OMH before a sex offender's anticipated release date, nothing prevents DOCCS from giving that notice with greater lead time, so that the CRT can make its determination and the court can conclude the probable cause hearing more than 120 days before the anticipated released date. In that way, if the CRT does not recommend civil management, the SORA risk-level process can commence within the time frames set out in SORA.

There is nothing whatsoever in the record to indicate that it would be unworkable for DOCCS to give sufficient advance notice of the impending release of a sex offender to allow the CRT and probable cause determinations to be made at least 120 days before the date on which the sex offender's term of incarceration with DOCCS ends. Thus, if the CRT decided that the sex offender was not to be considered for civil manage-

ment, or if the court found probable cause absent, DOCCS could notify all relevant parties of the need for a SORA hearing well in advance of the 120-day period set forth in SORA.⁸

The only remaining circumstance is one in which a sex offender prevails after a jury trial and is determined not to have a mental abnormality requiring civil sex offender management. Those situations are exceedingly rare⁹ and are no different than ones in which a court vacates a risk-level determination and remits for the SORA court to conduct a new one—in the interim, the offender will be living in the community and will temporarily have no risk-level designation (*see e.g. People v Hackett*, 89 AD3d 1479 [4th Dept 2011]). That circumstance admittedly occurs under the SORA statute in other circumstances: for example, when an out-of-state sex offender moves to New York from another jurisdiction or when an offender is released from federal custody.

On a more basic level, it is not conceivable that DOCCS, OMH and the Attorney General cannot time their processes so that sex offenders are not released without a risk-level determination. Far from the majority's mischaracterization of the statutes' enabling legislation as "the legislature le[aving] it up to the assortment of officials involved in the administration of SORA and SOMTA to cooperate on an ad hoc basis to develop procedures" (majority op at 587-588), when enacting SOMTA the legislature addressed that very concern—by creating an Office of Sex Offender Management within DCJS, whose function is, in part, to "coordinate implementation of the act with other agencies" (Governor's Program Bill Mem No. 8, Bill Jacket, L 2007, ch 7 at 6), and SOMTA expressly provided that "[o]ther state agencies shall provide cooperation and assistance to the office so as to assist it in the effective performance of its duties" (L 2007, ch 7, § 3). I see no statutory provisions that would interfere with the relevant State agencies creating time-

8. I also note that DOCCS's failure to meet the 120-day notice provision "shall not affect the validity of such notice or any subsequent action" (Mental Hygiene Law § 10.05 [b]).

9. Between SOMTA's inception in April 2007 and March 2023, 84% of sex offenders who proceeded to trial were committed to State custody under SOMTA (New York State Office of the Attorney General, Sex Offender Management Bureau, A Report On The Sex Offender Management Treatment Act April 1, 2022 to March 31, 2023, available at https://ag.ny.gov/sites/default/files/reports/2023_somb_annual_report.pdf [last accessed Jan. 30, 2024]). In that period, only 82 individual sex offenders who proceeded to trial were not committed to State custody under SOMTA (*id.*).

tables and procedures that would defer the SORA designation until shortly before the actual termination of State custody while ensuring that persons subjected to SOMTA are released into society with a risk-level determination. The majority, apparently, has a dim view of the ability of the “assortment of officials” within the executive branch to comply with the law—a novel basis for determining the meaning of a statute.

IV.

These appeals are conceptually quite simple. The idea behind SORA’s risk-level determination is to make an accurate one shortly before a sex offender is to be released, as a way of protecting the public. A goal of SOMTA is to treat dangerous sex offenders and, for those for whom treatment works, to release them to the community, supervised. Making a risk-level determination after a decade of incarceration and before a decade of treatment serves neither purpose of those statutes. Nothing in the statutory language compels the majority’s result, which is at odds with the plain language and clear statutory purposes. For that reason, I respectfully dissent.

Judges GARCIA, SINGAS, CANNATARO and TROUTMAN concur. Chief Judge WILSON dissents in an opinion, in which Judge RIVERA concurs. Judge HALLIGAN took no part.

In each case: Order affirmed, without costs.

[239 NE3d 157, 215 NYS3d 51]

In the Matter of BROOKDALE PHYSICIANS' DIALYSIS ASSOCIATES, INC., Formerly Known as CHURCH AVENUE ASSOCIATES, INC., Respondent, et al., Petitioner, v DEPARTMENT OF FINANCE OF THE CITY OF NEW YORK, Appellant.

Argued January 5, 2023; reargued January 9, 2024; decided March 21, 2024

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 3, 2019. The Appellate Division affirmed a judgment (denominated decision and order) of the Supreme Court, New York County (Margaret A. Chan, J.; op 2018 NY Slip Op 31841[U] [2018]), entered in a hybrid CPLR article 78 proceeding and declaratory judgment action, which had (1) granted the petition to the extent that respondent's determination revoking petitioners' real property tax exemption was annulled; and (2) denied respondent's cross-motion to dismiss the petition.

Matter of Brookdale Physicians' Dialysis Assoc., Inc. v Department of Fin. of the City of N.Y., 178 AD3d 443, reversed.

HEADNOTE

Taxation — Real Property Tax — Exemption — Property Owned by Not-for-Profit Corporation Used by For-Profit Corporation for Pecuniary Gain

In a hybrid CPLR article 78 proceeding and declaratory judgment action to annul respondent Department of Finance of the City of New York's revocation of the RPTL 420-a tax exemption for real property owned by petitioner not-for-profit corporation and leased to petitioner for-profit corporation, which used the hospital building thereon to provide dialysis services for a fee, respondent established that the exemption was erroneously granted by showing that the property was leased and used solely for pecuniary gain by a for-profit corporation. The mandatory real property tax exemption in RPTL 420-a (1) (a) is strictly limited to property owned by not-for-profit corporations organized exclusively for "charitable [or] hospital . . . purposes" and which those owners or another such exempt not-for-profit uses exclusively for one or more of those purposes. It was undisputed that petitioner owner did not reside on the premises or otherwise itself use the building for its exempt fundraising purpose. It was further undisputed that petitioner tenant was a for-profit corporation that had sole occupancy and used the building during the lease term exclusively to perform its for-charge dialysis services. Thus, the property was not tax exempt under RPTL 420-a (1) (a). Moreover, real property not used exclusively for the not-for-profit owner's exempt purposes is subject to taxation under RPTL 420-a (2) if the property is leased to a for-profit entity.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d State and Local Taxation §§ 185, 252, 261, 275.
McKINNEY'S, RPTL 420-a (1) (a); (2).
NY JUR 2d Taxation and Assessment §§ 86, 177, 180, 185,
188, 192.

ANNOTATION REFERENCE

See ALR Index under Exemptions and Exclusions; Non-profit Organizations; Taxes.

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Query: "real property tax" & "mandatory exemption" &
not-for-profit & lease* /5 for-profit

POINTS OF COUNSEL

Sylvia O. Hinds-Raddix, Corporation Counsel of the City of New York, New York City (Adam C. Dembrow, Andrea M. Chan, Joseph J. Kroening and Vincent D'Orazio of counsel), for appellant. The decision of the Appellate Division directly contravenes the plain language of Real Property Tax Law § 420-a, Court of Appeals precedent, and the mandate of the legislature to construe 420-a tax exemptions strictly and narrowly because it has improperly granted a tax exemption to a not-for-profit entity that does not use or occupy the building, but instead leases it to a for-profit dialysis center which uses the exempt property for its own pecuniary gain. (Matter of Greater Jamaica Dev. Corp. v New York City Tax Commn., 25 NY3d 614; Matter of Lackawanna Community Dev. Corp. v Krakowski, 12 NY3d 578; Matter of Stuyvesant Sq. Thrift Shop v Tax Commn. of City of N.Y., 54 NY2d 735; Matter of Genesee Hosp. v Wagner, 47 AD2d 37, 39 NY2d 863; Matter of Association of Bar of City of N.Y. v Lewisohn, 34 NY2d 143; Matter of Pell v Board of Educ. of Union Free School Dist. No. 1 of Towns of Scarsdale & Mamaroneck, Westchester County, 34 NY2d 222; Matter of Gilman v New York State Div. of Hous. & Community Renewal, 99 NY2d 144; Matter of Peckham v Calogero, 12 NY3d 424; Matter of Colt Indus. v New York City Dept. of Fin., 66 NY2d 466; Matter of Mobil Oil Corp. v Finance Adm'r of City of N.Y., 58 NY2d 95.)

Cozen O'Connor, New York City (*Menachem J. Kastner* and *Amanda L. Nelson* of counsel), and *Jacob Laufer*, New York City, for respondent. I. It is the Department of Finance of the City of New York's burden to prove that it properly revoked the building's long established tax-exempt status. (*New York City Health & Hosps. Corp. v McBarnette*, 84 NY2d 194; *Matter of Scherbyn v Wayne-Finger Lakes Bd. of Coop. Educ. Servs.*, 77 NY2d 753; *Matter of New York Botanical Garden v Assessors of Town of Washington*, 55 NY2d 328; *Matter of 471 Columbian Club of Port Jervis, N.Y., Inc. v Duryea*, 104 AD3d 944; *People ex rel. Watchtower Bible & Tract Socy. v Haring*, 8 NY2d 350; *Newsday, Inc. v Town of Huntington*, 82 AD2d 245, 55 NY2d 272; *Matter of PACER, Inc. v Planning Bd. of City of Middletown*, 217 AD2d 47.) II. The Department of Finance of the City of New York failed to demonstrate that it properly revoked the building's long established tax-exempt status under RPTL 420-a (1). (*Matter of Adult Home at Erie Sta., Inc. v Assessor & Bd. of Assessment Review of City of Middletown*, 10 NY3d 205; *Matter of Yeshivath Shearith Hapletah v Assessor of Town of Fallsburg*, 79 NY2d 244; *Matter of Pets Alive v Wanat*, 288 AD2d 386; *Matter of Symphony Space v Tishelman*, 60 NY2d 33; *Matter of St. Luke's Hosp. v Boyland*, 12 NY2d 135; *Matter of Genesee Hosp. v Wagner*, 47 AD2d 37, 39 NY2d 863; *Matter of ViaHealth of Wayne v VanPatten*, 90 AD3d 1700; *Kahal Bnei Emunim & Talmud Torah Bnei Simon Israel v Town of Fallsburg*, 78 NY2d 194; *Congregation Rabbinical Coll. of Tartikov, Inc. v Town of Ramapo*, 72 AD3d 869, 17 NY3d 763; *Matter of United Church Residences of Fredonia, N.Y., Inc. v Newell*, 10 NY3d 922.) III. Under no reading of the law is the Department of Finance of the City of New York entitled to tax the portion of the building which is not leased to Brookdale Dialysis.

OPINION OF THE COURT

RIVERA, J.

New York Real Property Tax Law § 420-a mandatorily exempts from taxation any real property owned by certain not-for-profit entities and used exclusively for statutorily-enumerated beneficial purposes without financial gain. The statute unambiguously reflects the legislative intent to limit the exemption to those purposes. The exemption also does not apply to property, like that at issue here, which is leased by a for-profit corporation. Consequently, the subject property is not exempt under RPTL 420-a, and the petition to annul the revocation of the property's standing exemption should have been denied.

I.

RPTL 420-a Not-for-Profit Real Property Mandatory Tax
Exemption

New York has a long-standing public policy of exempting real property owned by certain not-for-profit entities to encourage and foster legislatively favored, publicly beneficial services and operations (*see Sisters of St. Joseph v City of New York*, 49 NY2d 429, 437-438 [1980]). To that end, RPTL 420-a (1) (a) mandates, in relevant part:

“Real property owned by a corporation or association organized or conducted exclusively for . . . charitable [or] hospital . . . purposes, or for two or more such purposes, and used exclusively for carrying out thereupon . . . such purposes either by the owning corporation or association or by another such corporation or association . . . shall be exempt from taxation as provided in this section” (RPTL 420-a [1] [a]).

The Court has construed the term “exclusively” in this subdivision as meaning “principal or primary such that purposes and uses merely auxiliary or incidental to the main and exempt purpose and use will not defeat the exemption” (*Matter of Greater Jamaica Dev. Corp. v New York City Tax Commn.*, 25 NY3d 614, 623 [2015] [internal quotation marks and citation omitted]). Regardless of “[w]hether the use of real property to carry out an exempt purpose is characterized . . . as the sole use of the property or . . . as a use reasonably incident to an exempt purpose, it is the actual or physical use of the real property that is determinative under section 420-a (1) (a)” (*Matter of Lackawanna Community Dev. Corp. v Krakowski*, 12 NY3d 578, 582 n [2009]). “Put differently, the determination of whether the property is used exclusively for the statutory purposes depends upon whether its primary use is in furtherance of the permitted purposes” (*Matter of Merry-Go-Round Playhouse, Inc. v Assessor of City of Auburn*, 24 NY3d 362, 367-368 [2014]).

To avoid abuse of this mandatory exemption, such property is subject to taxation when the use allows for financial gain or when the entity is a guise or pretense for pecuniary profit. Thus, under RPTL 420-a (1) (b):

“Real property . . . shall not be exempt if any offi-

cer, member or employee of the owning corporation or association shall receive or may be lawfully entitled to receive any pecuniary profit from the operations thereof, except reasonable compensation for services in effecting one or more of such purposes, or as proper beneficiaries of its strictly charitable purposes; or if the organization thereof for any such avowed purposes be a guise or pretense for directly or indirectly making any other pecuniary profit for such corporation or association or for any of its members or employees” (RPTL 420-a [1] [b].)

Further, RPTL 420-a (2) provides, in pertinent part, that

“[i]f any portion of such real property is not so used exclusively to carry out thereupon one or more of such purposes but is leased or otherwise used for other purposes, such portion shall be subject to taxation and the remaining portion only shall be exempt . . . and provided further that such real property shall be exempt from taxation only so long as it or a portion thereof, as the case may be, is devoted to such exempt purposes and so long as any moneys paid for such use do not exceed the amount of the carrying, maintenance and depreciation charges of the property or portion thereof, as the case may be” (RPTL 420-a [2]).

The language in section 420-a (2) “is phrased in the disjunctive; thus, two occurrences could possibly serve as the grounds for disqualification: (a) that the property is leased; or (b) that the property is used by the owner-organization for other than tax-exempt purposes” (*Sisters of St. Joseph*, 49 NY2d at 440; see also New York State Department of Taxation and Finance, *Instructions to assessors: Application for real property tax exemption for non-profit organizations* [May 3, 2023], available at https://www.tax.ny.gov/research/property/assess/manuals/vol4/pt2/sec4_05/rptaxex.htm [last accessed Jan. 20, 2024]).¹ In other words, and as relevant to this appeal, under the first ground, if the property is not exclusively used for an exempt purpose and is leased in whole or in part to a nonexempt entity, the leased portion is taxable.

1. The Court in *Sisters of St. Joseph* was construing identical language in the predecessor to RPTL 420-a (2)—former RPTL 421—before the RPTL’s renumbering (49 NY2d at 437; see L 1977, ch 110, § 1).

As the text illuminates, and as the Court has previously recognized, one goal of RPTL 420-a (1) (a) and (2) is that the property actually be used for the recognized purposes, without profit (see *Matter of Greater Jamaica Dev. Corp.*, 25 NY3d at 631). Strict adherence to the statutory framework is essential to achieving that legislative goal. Careful application of the exemption also furthers another legislative goal of reversing the erosion of local tax bases by according the statute's reduced tax burden only to those properties used for the benefit of society (see *Matter of American Bible Socy. v Lewisohn*, 40 NY2d 78, 86 [1976] [acknowledging "the evident intention of our Legislature to reduce rather than to enlarge tax exemption" when it amended the RPTL in 1971 and its "articulated desire to stem and to reverse the severe erosion of the local municipal tax base, accompanied by its recognition of the corollary serious predicament of local municipal finances"]; Robert L. Beebe & Stephen J. Harrison, *A Law in Search of a Policy: A History of New York's Real Property Tax Exemption for Nonprofit Organizations*, 9 Fordham Urban LJ 533, 534 [1981] [noting the "erosion of the tax base due to a proliferation of exemptions and exempt properties" and that "many municipalities, particularly several of our largest cities and some of our most rural communities, face excruciating problems as a result of dilution of their tax bases"]).

II.

Factual and Procedural History

The Department of Finance of the City of New York (DOF) challenges the annulment of its determination to revoke petitioners' real property tax exemption commencing with the 2014 tax year. Petitioner Samuel and Bertha Schulman Institute for Nursing and Rehabilitation Fund, Inc. (Schulman) is a federally tax-exempt, New York not-for-profit corporation, which fundraises and manages assets in support of the healthcare purpose of nonparties Schulman and Schachne Institute for Nursing and Rehabilitation, Inc., and Brookdale Hospital Medical Center. Starting in 1995, Schulman leased to petitioner Brookdale Physicians' Dialysis Associates, Inc. (Brookdale Dialysis) portions of a building Schulman owns in New York City. Brookdale Dialysis is a for-profit New York corporation that used the building to provide dialysis services for a fee. Under the lease Brookdale Dialysis paid \$24,217.08

per month in rent to Schulman and was responsible for a certain percentage of any property taxes that might become due during the tenancy.

From 2001-2013, the building was tax exempt under RPTL 420-a. In 2013, DOF retroactively revoked the tax exemption to 1996 on the sole ground that the space had been leased to a for-profit, commercial entity. Supreme Court granted petitioners' CPLR article 78 petition to annul that determination in 2014, on the ground that DOF failed to show that it considered whether Brookdale Dialysis' "service is reasonably incidental to or in furtherance of the exempt purpose" given that Brookdale Dialysis furthers "the charitable activities of Brookdale Hospital and the Nursing Institute" (2014 NY Slip Op 34073[U], *2 [Sup Ct, NY County 2014]).

Thereafter, DOF assessed taxes on the property for the 2014-2015 tax year. Brookdale Associates sought an exemption based on Supreme Court's 2014 decision. In response, DOF reissued the assessment but continued to scrutinize the standing exemption. In 2016, DOF requested, amongst other items, additional income and expense documentation, including a copy of the then-current lease and information regarding maintenance and utility costs. In 2017, DOF advised petitioners by email that the exemption was revoked. DOF attached the lease and explained that, "[u]nder RPTL- Section 420a, property can be leased to another qualifying [not-for-profit] organization provided that the income does not exceed the expenses for the leased portion." DOF further explained that, in Supreme Court's 2014 decision, "the for-profit entity was determined to be treated as [a not-for-profit] organization for purposes of the lease." However, after reviewing the information Brookdale Dialysis provided, DOF denied petitioners' exemption application "based on the fact that the income exceeds the expenses for the property."

Petitioners commenced this hybrid article 78 proceeding and declaratory judgment action seeking to "annul the DOF determination of revocation, direct DOF to restore the Building to the tax-exempt tax roll and declare that the Building is entitled to tax-exempt status for the 2014/2015 tax year through the tax year in which a decision is rendered." Supreme Court

2. The monthly rent for the property was \$24,217, yielding an annual income of \$290,604. And, for 2014 and 2015, the total expenses were \$224,081 and \$252,021, respectively. For 2016, the prorated amount was \$145,768 for eight months, or a monthly average of \$18,221.

granted the petition (2018 NY Slip Op 31841[U] [Sup Ct, NY County 2018]).

The Appellate Division affirmed (178 AD3d 443 [1st Dept 2019]). The Court determined that Brookdale Dialysis is a for-profit corporation and the rent receipts exceeded the building's maintenance expenses, such that "the non-profit entities received an ostensible financial benefit" but that there was no benefit because Schulman put the profit back into its provider affiliates (*id.* at 445). Nevertheless, the Appellate Division concluded that the building was exempt under RPTL 420-a because Brookdale Dialysis' services are "‘reasonably incident’ to Schulman's purpose of funding and supporting its healthcare affiliates" (*id.*, citing *Matter of St. Luke's Hosp. v Boyland*, 12 NY2d 135, 143 [1962]; *Matter of Pace Coll. v Boyland*, 4 NY2d 528, 532-534 [1958]; *Congregation Rabbinical Coll. of Tartikoff, Inc. v Town of Ramapo*, 72 AD3d 869, 871 [2d Dept 2010], *affd* 17 NY3d 763 [2011]). The Court analogized this case to *Matter of Genesee Hosp. v Wagner*, where the courts denied a tax exemption to a hospital for that portion of the property leased to physicians for their private practices, but upheld the exemption for areas on the property used for hospital services, including an ambulatory X-ray unit even though radiologists received a commission on the X-rays (*id.*, citing 47 AD2d 37, 46-47 [4th Dept 1975], *affd on op below* 39 NY2d 863 [1976]).

We granted DOF leave to appeal (36 NY3d 908 [2021]) and now reverse. As we discuss, RPTL 420-a does not exempt from taxation real property that is not used in whole or in part for an exempt purpose and is instead leased to a for-profit corporation.

III.

A.

Standard of Review

The Court has previously recognized that an article 78 proceeding is a proper vehicle for challenging a revocation of a property tax exemption (*Matter of Watchtower Bible & Tract Socy. of N.Y. v Lewisohn*, 35 NY2d 92, 99 [1974]; *see also Hewlett Assoc. v City of New York*, 57 NY2d 356, 363 [1982] ["(If the claim is made that the subject property is wholly exempt from taxation, review by way of collateral proceedings is appropriate)"]. "[I]n reviewing an administrative agency determi-

nation, [courts] must ascertain whether there is a rational basis for the action in question or whether it is arbitrary and capricious” (*Matter of Natasha W. v New York State Off. of Children & Family Servs.*, 32 NY3d 982, 984 [2018] [internal quotation marks omitted]). “Arbitrary action is without sound basis in reason and is generally taken without regard to the facts” (*id.* [internal quotation marks omitted]). “If the [reviewing] court finds that the determination is supported by a rational basis, [then] it must sustain the determination even if the [reviewing] court concludes that it would have reached a different result than the one reached by the agency” (*id.* [internal quotation marks omitted]).

Well established legal rules control our analysis. First, except for a construction “so literal and narrow that it defeats the exemption’s settled purpose,” exemption statutes generally “should be construed strictly against the taxpayer” (*Matter of Symphony Space v Tishelman*, 60 NY2d 33, 36 [1983]). Second, “when, as here, a municipality seeks to withdraw a previously granted tax exemption, the municipality bears the burden of proving that the real property is subject to taxation” (*Matter of Lackawanna Community Dev. Corp.*, 12 NY3d at 581 [internal quotation marks omitted]). The municipality may meet this burden by showing that the petitioners “were not organized or conducted exclusively for exempt purposes or . . . not used exclusively for carrying out thereupon one or more exempt purposes” (*Matter of Greater Jamaica Dev. Corp.*, 25 NY3d at 624 [internal quotation marks and emphasis omitted]). The municipality may also meet its burden by showing a change in the law governing the applicable exemption (*see e.g. Matter of Niagara Mohawk Power Corp. v Town of Potsdam Bd. of Assessors*, 216 AD2d 775, 776 [3d Dept 1995], *lv denied* 87 NY2d 802 [1995]); a change in the property’s use (*see e.g. Matter of Miriam Osborn Mem. Home Assn. v Assessor of City of Rye*, 275 AD2d 714, 715 [2d Dept 2000]); or that the exemption “was erroneously awarded in the first instance” (*Matter of Quail Summit, Inc. v Town of Canandaigua*, 55 AD3d 1295, 1297 [4th Dept 2008], *lv denied* 11 NY3d 716 [2009]). In assessing whether the municipality met its “initial burden,” we examine both the agency’s “revocation letter” and any “additional proof” submitted in response to the taxpayer’s petition challenging the agency’s determination (*Matter of Greater Jamaica Dev. Corp.*, 25 NY3d at 624-625).

Contrary to the dissent’s suggestion, we may consider DOF’s arguments for why the building is not exempt under RPTL

420-a because the inapplicability of subdivision (2) was the ground for revocation and, as petitioners contend (and the dissent agrees), DOF was required to consider the relationship between the Schulman Fund and Brookdale Dialysis. In other words, DOF's cost analysis under subdivision (2) also necessarily implicates subdivision (1).³ In an analogous context, we adopted the same approach and gave full consideration to the agency's arguments in *Matter of Greater Jamaica Dev. Corp.*, over the dissent's objection in that case that we improperly considered an affirmation that DOF's counsel lodged in response to the petition and which was part of the record on appeal (*see* 25 NY3d at 624-625; *see also* 639 [Read, J., dissenting]). Moreover, petitioners chose to commence a plenary proceeding challenging the revocation under both RPTL 420-a (1) and (2), and they therefore cannot be heard to complain that their chosen theory of the case both affords them the relief they seek and, at the same time, deprives DOF of an opportunity to argue to the contrary.⁴

Consequently, we are free to consider the only question on this appeal, as limited by petitioners' demand for relief: whether petitioners' request to annul DOF's revocation of the exemption commencing with tax year 2014-2015 was properly granted. We note that, contrary to petitioners' implication, Supreme Court's 2014 decision that no evidence supported DOF's consideration of the relationship between Brookdale Dialysis' services and the exempt purpose from the commencement of the lease up to the 2013 revocation did not prohibit DOF from undertaking a subsequent assessment of the property's RPTL 420-a tax-exempt status. Under that understanding of the parties' dispute and the posture of this appeal, we find no basis to annul DOF's 2017 revocation determination.

3. Notably, although the dissent claims that the only issue before us is whether DOF correctly revoked the exemption based on its income-expense analysis, the dissent does not actually review the agency's determination on that ground.

4. Unlike the dissent, we perceive no unfairness to petitioners in the course of this appeal (*see* dissenting op at 627). DOF's position has always been that Brookdale Dialysis' for-profit status rendered RPTL 420-a (1) and (2) inapplicable, and that the exemption under subdivision (2) applies only when a lessee is a not-for-profit. DOF maintains this same position before us. In response, petitioners contended—and have maintained throughout the course of this litigation—that the property is exempt under RPTL 420-a (1) and that subdivision (2) is irrelevant to whether DOF erroneously revoked the exemption.

B.RPTL 420-a (1) (a)

The mandatory real property tax exemption in section 420-a (1) (a) is strictly limited to property owned by not-for-profit corporations organized exclusively for “charitable [or] hospital . . . purposes, or for two or more such purposes,” and which those owners or another such exempt not-for-profit uses exclusively for one or more of those purposes (RPTL 420-a [1] [a]). Here, it is undisputed that Schulman is a not-for-profit corporation that owns the property and did not reside on the premises or otherwise itself use the building in whole or in part for its exempt fundraising purpose. It is further undisputed that Brookdale Dialysis is a for-profit corporation that had sole occupancy and used the building during the lease term exclusively to perform its for-charge dialysis services. Thus, the property is not tax exempt under RPTL 420-a (1) (a).

C.RPTL 420-a (2)

Real property not used exclusively for the not-for-profit owner’s exempt purposes is subject to taxation under RPTL 420-a (2) if the property is leased to a for-profit entity. That is the case here. The remaining provisions of this subdivision confirm this interpretation. If, as this additional language commands, the property or any portion devoted to exempt purposes used by *another not-for-profit* is not taxable only so long as any moneys paid for the use do not exceed the property’s “carrying, maintenance and depreciation charges,” then property used by a *for-profit corporation* for its pecuniary gain certainly is not exempt. The calibrated provisions in RPTL 420-a (2) thus emphasize that the legislature did not intend to exempt property used for profit.⁵ DOF met its burden to establish that the exemption was erroneously granted by showing that the prop-

5. Given our conclusion that RPTL 420-a (2) subjects to taxation real property leased to a for-profit entity, we need not consider the Appellate Division’s conclusion that, despite the “ostensible financial benefit” from the rental payments and that Schulman’s rent receipts exceeded the maintenance expenses, there was no benefit chargeable to Schulman because it put the profits back into the hospital and nursing institute. However, we note as a legal matter that the text of RPTL 420-a (2) nowhere refers to how the profit is reinvested and focuses solely on the basic calculation of whether the “moneys paid for such use” exceed the property’s “carrying, maintenance and

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erty was leased and used solely for pecuniary gain by a for-profit corporation. Consequently, RPTL 420-a does not apply on these facts.

IV.

Petitioners' Misinterpretation of RPTL 420-a

Petitioners argue that the property is exempt under RPTL 420-a (1) (a) because the building is used exclusively for its intended charitable purposes in that its dialysis services are vital and necessary to the charitable missions of Schulman and nonparties Brookdale Hospital and the Nursing Institute. However, the exempt purpose at issue here is that of the property owner—Schulman—and its purpose is to raise funds, not to provide dialysis services, or even medical services more generally. It is true that Brookdale Hospital and the Nursing Institute provide health care services, but still, the exemption is for *Schulman's* property. And to the extent Schulman supports the health care efforts of these two entities it does so by fundraising, not by providing direct health care services. If Schulman engaged in its fundraising efforts in the building, then the exemption would apply to any portion so used, but Schulman vacated the premises during Brookdale Dialysis' tenancy. For similar reasons, the Appellate Division erred in concluding that Brookdale Dialysis' services are “reasonably incident” to Schulman's “funding and support[] of its healthcare affiliates” (178 AD3d at 445). This line of reasoning misunderstands the import of our precedent and misapplies RPTL 420-a to the facts of this case.

We address, in turn, each case relied upon below, to illustrate the flaw in the Appellate Division's analysis and why the cases on which it based that analysis are distinguishable. In *Matter of St. Luke's Hosp.*, the Court considered a predecessor to RPTL 420-a in the Tax Law in a case that involved a not-for-profit hospital's lease of its private apartments to hospital staff and family (12 NY2d at 140). The Court concluded that renting the apartments for profit was “reasonably incident” to the hospital's major purpose because the rentals facilitated the hospital's objectives of recruiting and training interns, residents and nurses, who were in short supply (*see id.* at 141-143). It was well understood that hospitals customarily provide such hous-

depreciation charges.” Further, as a factual matter, Brookdale Dialysis paid a majority of the property taxes.

ing. Significantly the medical provider was the landlord and leased the property to residential tenants it employed, and the Court accordingly held that this relationship advanced the “hospital purposes” (*id.*).

Here, by contrast, Schulman leased the property, not to its own employees but to a separate for-profit business. Further, under its lease, Brookdale Dialysis was contractually obligated to pay a certain percentage of any property taxes that might become due, but, as discussed, nothing it did as a tenant was “reasonably incident” to Schulman’s financial management purpose. In short, a hospital’s direct lease of housing to personnel and their family as a strategy to recruit and retain a talented medical and administrative staff—as was the case in *Matter of St. Luke’s Hosp.* (12 NY2d at 140)—is materially different from Schulman’s lease to Brookdale Dialysis to provide private-sector dialysis services for-profit. If all that was necessary was some generalized connection to the purposes of a third-party not-for-profit, then a for-profit corporation could set up shop in Schulman’s building without affecting the tax-exempt status of the property so long as the corporation provided some marginal benefit to the nonowner entity. That would result in the type of “tax loophole” the Court has rejected (*Sisters of St. Joseph*, 49 NY2d at 441).

Matter of Pace Coll. v Boyland (4 NY2d at 530) is similarly distinguishable. There, Pace College converted an office building for educational purposes and set aside space for a cafeteria to be used exclusively by the college’s students, faculty and staff (*see id.* at 530-531). The college contracted with a for-profit restaurant corporation to operate the cafeteria (*see id.* at 531). Under the agreement, no rent was paid to the college, and it would furnish utilities and maintenance for the space (*id.*). The corporation would also provide personnel and would carry the costs of garbage disposal and liability insurance (*id.*). The Court upheld the exemption because the cafeteria was not used by the public “paying a revenue” to the college, the property had been leased solely for “the purposes of incorporation of the lessor,” and the college retained “general supervision and control over the operation,” which was “directed exclusively to the accomplishment of its educational purposes” (*id.* at 532, 534). Here, Schulman retained no such control. And, unlike the dialysis services which did not further Schulman’s fundraising purpose, the cafeteria in *Matter of Pace Coll.* was a vital and necessary service that ensured students, faculty and staff had

food available throughout the day so that they could continue their work, thus facilitating class attendance and promoting the college's educational mission (*see id.* at 533). Essentially, the cafeteria was a staple of college life and enhanced the college experience.

Reviewing the analytic throughline of these cases, unlike the hospital and college, Schulman is renting property to a “disassociated enterprise” (*id.*). While the apartments and the cafeteria, respectively, were integral to the proper functioning of those not-for-profits and the success of their exempt purposes, it cannot be said that the treatment of renal failure and dysfunction “is part of the conventional operation” of Schulman's charitable fundraising (*id.*).

The Appellate Division's further reliance on *Congregation Rabbinical Coll. of Tartikov, Inc. v Town of Ramapo* is misplaced (17 NY3d 763 [2011], *affg* 72 AD3d 869 [2d Dept 2010]). There, a religious corporation leased its land to a for-profit corporation to operate a religious summer camp, which paid a licensing fee to the religious corporation that, in turn, used the fee to finance plans for future construction of a religious college on the site (*see Congregation Rabbinical Coll. of Tartikov, Inc.*, 72 AD3d at 870). The Court affirmed a determination by the Appellate Division that the municipality failed to establish that the operation of the camp by the for-profit corporation was inconsistent with the intended principal use of the property as a religious college (*see Congregation Rabbinical Coll. of Tartikov, Inc.*, 17 NY3d at 764). There, unlike here, the not-for-profit owner of the property directly furthered its own religious purpose by leasing the land for a fee used to build the religious college (*id.* at 764). Further, the not-for-profit itself contractually “retained general supervision and control” over the camp's operations (*id.* at 764-765).

Petitioners argue that Brookdale Dialysis' use of the property as Brookdale Hospital's only hub for ambulatory dialysis treatment is “integral, vital and necessary to” charitable causes and, more specifically, Schulman's charitable purpose to “promote the general health of the community.” However, petitioners alleged in their petition that Schulman's purpose is “promoting the health of the community *by providing funds and managing assets* in support of [the Nursing Institute]” (emphasis added). That is at least one step removed from Brookdale Dialysis' business of charging for dialysis services for profit.

As for the generality of the purpose relied upon by petitioners, the Court has previously rejected such expansive objectives proffered in support of a tax-exempt use. For example, in *Matter of Lackawanna Community Dev. Corp.*, the Court held that property leased to a for-profit corporation for the “laudable goal[]” of “encouraging the development of, or retention of, an industry in the community or area,” did not qualify for an exemption (12 NY3d at 582). Similarly, in *Matter of Greater Jamaica Dev. Corp.*, the Court held that parking facilities offered at below-market prices at local retail stores are not “charitable in and of themselves” simply because they facilitate the exempt purpose of economic development by providing a “public benefit” (25 NY3d at 629). There is no logical basis for treating efforts to promote the general health of the community differently for real property tax purposes than efforts to promote economic development. “While these goals may be laudable, they are not charitable” (*id.*). And, as with efforts at economic development, petitioners’ goal is so broad that it could, if permitted to justify an exemption here, justify an exemption for any business activity carried out for-profit so long as such activity could be said to somehow advance public health. We decline to construe RPTL 420-a in this manner, which would render its limitations “meaningless and useless” (*Ivey v State of New York*, 80 NY2d 474, 481 [1992]).

The Appellate Division also analogized Brookdale Dialysis’ for-profit purpose to the X-ray services that Genesee Hospital offered in exchange for a commission in *Matter of Genesee Hosp. v Wagner* (47 AD2d 37 [4th Dept 1975], *affd* 39 NY2d 863 [1976]). However, that conclusion overlooks several, legally-significant distinctions between that arrangement and the one between Schulman and Brookdale Dialysis. In *Matter of Genesee Hosp.*, 7,429 square feet of a 39,000-square-foot office building connected to and built by the petitioner, a nonprofit membership hospital, contained an X-ray unit, an office and research area for the hospital’s chief of surgery and the hospital’s complete nutrition clinic (*Matter of Genesee Hosp.*, 76 Misc 2d 281, 283 [Sup Ct, Monroe County 1973], *revd* 47 AD2d 37 [4th Dept 1975]). The radiologists in charge of the X-ray unit were paid by the hospital and also received a percentage of billings from X-rays taken at the facility—a fact that the City of Rochester contended extinguished the unit’s tax exemption (*Matter of Genesee Hosp.*, 47 AD2d at 39). The Appellate Division concluded, and this Court affirmed, that these pay-

ments to the radiologists—“common practice in hospitals” at the time—were “directly” related to services rendered “by [the radiologists] to the hospital” (*id.* at 39, 46).

Nothing even remotely similar existed between Schulman and Brookdale Dialysis. Rather, this case is more like *Matter of Greater Jamaica Dev. Corp.*, where we rejected a claim that certain parking facilities were “charitable in and of themselves because they fulfill[ed] the primary purpose of economic development” (25 NY3d at 629). “The economic benefit conveyed by below-market rate parking,” we reasoned, “inure[d] to the benefit of private enterprise and cannot be said to further any charitable purpose” (*id.*). Similarly, Brookdale Dialysis provides a service for, among others, Brookdale Hospital’s patients, but the arrangement also yields a competitive advantage for Brookdale Dialysis over other dialysis providers for its sole pecuniary benefit.

V.

Conclusion

This case features a not-for-profit, corporate landlord that benefited economically, yet did not use the leased property for its exempt purpose or assume any of its carrying costs. The for-profit corporate tenant that operated on the property ran a profitmaking business and, if the exemption applied, would reap the benefits of running a business without paying real property taxes—a benefit the legislature strictly limited to exempt uses by not-for-profits that do not make money off the property. The RPTL does not treat this competitive-advantage-creating arrangement as tax-exempt.

Accordingly, the order of the Appellate Division should be reversed, with costs, the petition denied and the proceeding dismissed.

CANNATARO, J. (dissenting). Judicial review of the revocation of a previously granted tax exemption is limited to the grounds invoked by the agency. This long-standing requirement is generally applicable to the review of government agency actions and is no mere docket management tool. Rather, it goes to the heart of fairness and due process for litigants challenging adverse government actions. Here, the grounds stated by the Department of Finance for revocation of petitioner’s tax exemption bear no resemblance to the defense of that determination

in the courts below, or to the analysis conducted by the majority today. Because the Department of Finance failed to consider at the agency level whether the property was used exclusively for the owner's charitable purposes, I agree with Supreme Court that the agency conducted an incomplete analysis and therefore failed to meet its burden of establishing that the exemption was properly revoked. I respectfully dissent.

Petitioner, the Samuel and Bertha Schulman Institute for Nursing and Rehabilitation Fund, Inc. (Schulman Fund), is a not-for-profit corporation, organized and operated for the charitable purpose of promoting community health by providing funds and managing assets in support of two other not-for-profit corporations that provide healthcare services: the Schulman and Schachne Institute for Nursing and Rehabilitation (Nursing Institute), a residential healthcare facility, and the Brookdale Hospital Medical Center (Brookdale Hospital). As the majority explains in detail, in 1995, petitioner Brookdale Dialysis, a for-profit corporation, leased the basement and first floor of the building from the Schulman Fund for use as an ambulatory dialysis center to provide dialysis treatment for patients of Brookdale Hospital and the Nursing Institute.

Between 2001 and 2013, respondent New York City Department of Finance (DOF) accorded the building tax-exempt status pursuant to RPTL 420-a. In 2013, DOF attempted to revoke the exemption, retroactive to 1996, on the ground that the building had been leased to a commercial entity. Petitioners challenged the revocation in a CPLR article 78 proceeding and Supreme Court, in a 2014 order, granted the petition (2014 NY Slip Op 34073[U] [Sup Ct, NY County 2014]). The court found that DOF failed to meet its burden of proving that the property was ineligible for the exemption as the agency relied solely on Brookdale Dialysis' status as a for-profit corporation without considering whether its services were in furtherance of Brookdale Hospital's exempt purpose. DOF did not appeal Supreme Court's order annulling its determination.

Three years later, after reviewing additional information relating to the lease and expenses for the building, DOF again revoked the tax exemption for the property, setting forth the basis for its determination in an April 4, 2017 email. In what it now concedes was a mistaken interpretation of Supreme Court's 2014 order, DOF proceeded under the assumption that Brookdale Dialysis should be deemed a not-for-profit organization for purposes of the lease. Proceeding under that mistaken

presumption, DOF then evaluated petitioner's eligibility for an exemption by comparing the annual rental income to the expenses incurred and revoked the exemption "based on the fact that the income exceeds the expenses for the property."

Having just defended their tax exemption on essentially the same facts three years earlier, petitioners commenced this hybrid CPLR article 78 proceeding and declaratory judgment action, seeking to annul the determination revoking the property's tax-exempt status as well as a declaration that the property was exempt from real property taxes for the tax years at issue. DOF cross-moved to dismiss, now asserting a different basis for the revocation, namely that the subject property was leased to Brookdale Dialysis, a for-profit entity that was "primarily, if not exclusively," using the property for profit-making purposes. DOF also repeated its claim that, even if Brookdale Dialysis was considered a not-for-profit corporation, the property was not entitled to exempt status under RPTL 420-a (2) because the Schulman Fund was profiting from the lease.

Supreme Court annulled the determination on the ground that DOF did not meet its burden of establishing that the exemption should be revoked (2018 NY Slip Op 31841[U] [Sup Ct, NY County 2018]). The court held that DOF conducted an incomplete analysis by resting its determination solely on the fact that the Schulman Fund profited from the lease. Rather, it was required to consider whether the property was used exclusively for the Schulman Fund's charitable purposes.

The Appellate Division affirmed, concluding that Supreme Court "correctly determined that the building . . . qualifies for tax-exempt status" (178 AD3d 443, 444 [1st Dept 2019]). Evaluating the use of the premises, the Court concluded that the provision of dialysis services for patients of Brookdale Hospital and the Nursing Institute was reasonably incident to the Schulman Fund's charitable purpose of providing funding and support for its healthcare-provider affiliates.

"Generally, the burden of proof lies with the taxpayer who is seeking to have real property declared tax exempt" (*Matter of Lackawanna Community Dev. Corp. v Krakowski*, 12 NY3d 578, 581 [2009], quoting *Matter of New York Botanical Garden v Assessors of Town of Washington*, 55 NY2d 328, 334 [1982]). However, where, as here, "the taxing authority seeks to revoke [an] exemption previously granted, it is the taxing authority that has the burden of establishing that the property is not

exempt from taxation” (*Matter of Greater Jamaica Dev. Corp. v New York City Tax Commn.*, 25 NY3d 614, 623 [2015]). To meet this burden, DOF was required to prove that the building was not being used exclusively to carry out the Schulman Fund’s exempt purposes (*see id.* at 624). Exclusive use in this context includes uses that are “reasonably incident” to the owner’s charitable purpose (*id.* at 630; *see Matter of St. Luke’s Hosp. v Boyland*, 12 NY2d 135, 143 [1962]). As we have explained, “[t]he question is how the property is used, not whether it is profitable” (*Matter of Adult Home at Erie Sta., Inc. v Assessor & Bd. of Assessment Review of City of Middletown*, 10 NY3d 205, 216 [2008]).

As noted above, DOF revoked the tax exemption based solely on its conclusion that the Schulman Fund was making a profit from its receipt of rental income in excess of the property’s carrying costs. That is the specific determination that the Fund commenced this proceeding to challenge as arbitrary and capricious. DOF cannot concede that it improperly analyzed and revoked the exemption under RPTL 420-a (2) but nonetheless argue now that the property should have been analyzed under RPTL 420-a (1) and the exemption revoked because the property was not used exclusively for petitioner’s charitable purposes. Indeed, it is well-settled that “[j]udicial review of an administrative determination is limited to the grounds invoked by the agency” (*Matter of Rizzo v New York State Div. of Hous. & Community Renewal*, 6 NY3d 104, 110 [2005] [internal quotation marks and citation omitted]). “If those grounds are inadequate or improper, the court is powerless to affirm the administrative action by substituting what it considers to be a more adequate or proper basis” (*Matter of Scherbyn v Wayne-Finger Lakes Bd. of Coop. Educ. Servs.*, 77 NY2d 753, 758 [1991] [internal quotation marks and citations omitted]).

In an attempt to sidestep this procedural problem, DOF argues that the basis for its determination includes the record generated in the prior proceeding challenging the 2013 tax-exemption revocation. However, in that prior proceeding, DOF revoked the exemption on grounds that the property was leased to a commercial entity. Supreme Court concluded that DOF failed to meet its burden because it relied on Brookdale Dialysis’ for-profit status and failed to consider the issue of exclusive use—whether the dialysis services were reasonably incident to or in furtherance of the Schulman Fund’s charitable purpose—and DOF did not appeal that order. Thus, it is of

no avail for the majority to accept DOF's argument that the record in the prior proceeding should be used to uphold the later DOF determination under review in this proceeding, where the prior record itself was held to be patently insufficient.

Nor does *Greater Jamaica* support DOF's position. The Court in that combined RPTL article 7 and CPLR article 78 proceeding considered additional materials submitted by the agency beyond the original revocation letter. However, in explaining the reason for this departure, the Court expressly noted that "the grounds in the City's revocation letter, *which were plainly sufficient on their own*[,] [were] nonetheless elucidated by the affirmation of the City's Assistant Corporation Counsel detailing how the allegations in the petition established that the parking facilities were not being operated for a charitable purpose" (25 NY3d at 624-625 [emphasis added]). Thus, although the Court considered the additional submission, it did not purport to allow the agency to set forth entirely different grounds for its revocation. More to the point, this passage certainly does not support the majority's conclusory assertion that our review encompasses "both the agency's 'revocation letter' and any 'additional proof' submitted" (majority op at 616).

DOF's decision to suddenly change tack when challenged in court, and to proceed with a defense of its revocation not previously relied upon, puts the Schulman Fund—and, indeed, all similarly situated nonprofits afforded tax exemptions—in an impossible situation with respect to their disputes with taxing authorities. Going forward, an authority that seeks to revoke a previously-granted (not to mention litigated) tax exemption can assert any grounds for the revocation—or none at all—safe in the knowledge that any justification for revocation that meets the exigencies of the situation will be available for use if the determination is challenged in court. In its zeal to undo a long-standing tax exemption that it finds to be unjustified, the majority fails to explain how fairness or consistency will be served by ignoring the Schulman Fund's procedural rights in order to reach its desired result. As a result of the majority's decision, taxing authorities may now revoke long-standing exemptions and provide the reasons for doing so later—if the nonprofit chooses to litigate and find out. This burden is incompatible with due process and our precedent.

In an unavailing effort to achieve consistency with *Greater Jamaica*—where the grounds stated by the agency were

“plainly sufficient on their own” to justify the revocation—and our precedent constraining reviewability in article 78 proceedings, the majority recasts both DOF’s legal argument and petitioners’ requested relief. DOF’s present legal argument that Brookdale Dialysis is not entitled to an exemption under RPTL 420-a (1) or (2) is not the functional equivalent of the agency’s stated grounds for revocation, as it does not align with the reason given at the agency level (majority op at 617 n 4). The majority also points to the fact that petitioner commenced these proceedings as a joint article 78 and declaratory judgment action, presumably to justify consideration of information outside the administrative record (majority op at 616-617). However, the declaratory relief sought by petitioners relates solely to the retroactive revocation of their tax exemption. Indeed, even the majority recognizes that the “only question on this appeal” is whether DOF’s revocation of the exemption should be annulled—quintessential CPLR article 78 relief (majority op at 617). Thus, despite the majority’s attempt to obfuscate the nature of the proceedings in order to reach an issue not properly before us—an attempt which risks shifting to the taxpayer the well-settled burden of proof on the agency to withdraw the exemption—there is no justification for admission of additional proof or consideration of grounds other than those relied on by DOF for the revocation.

Focusing on the basis for revocation invoked by the agency, as we must, I agree with Supreme Court that DOF’s determination to revoke the property’s tax-exempt status on the stated basis was arbitrary and capricious. As previously stated, an “economic benefit to a charitable organization does not by itself extinguish a tax exemption” (*Matter of Adult Home*, 10 NY3d at 216).

Therefore, I would affirm the Appellate Division order.

Chief Judge WILSON and Judges TROUTMAN and BRATHWAITE NELSON* concur. Judge CANNATARO dissents and votes to affirm in an opinion, in which Judges GARCIA and SINGAS concur. Judge HALLIGAN took no part.

Order reversed, with costs, petition denied and proceeding dismissed.

* Designated pursuant to NY Constitution, article VI, § 2.

[239 NE3d 172, 215 NYS3d 66]

ESTER LELCHOOK, Individually and as Personal Representative
of the Estate of DAVID MARTIN LELCHOOK, Deceased, et al.,
Appellants, v SOCIÉTÉ GÉNÉRALE DE BANQUE AU LIBAN SAL,
Respondent.

Argued March 12, 2024; decided April 18, 2024

SUMMARY

PROCEEDING, pursuant to NY Constitution, article VI, § 3 (b) (9) and Rules of the Court of Appeals (22 NYCRR) § 500.27, to review questions certified to the New York State Court of Appeals by the United States Court of Appeals for the Second Circuit. The following questions were certified by the United States Court of Appeals and accepted by the New York State Court of Appeals: “1. Under New York law, does an entity that acquires all of another entity’s liabilities and assets, but does not merge with that entity, inherit the acquired entity’s status for purposes of specific personal jurisdiction? 2. In what circumstances will the acquiring entity be subject to specific personal jurisdiction in New York?”

HEADNOTE

Courts — Jurisdiction — Specific Personal Jurisdiction over Successor Corporate Entity

Where an entity acquires all of another entity’s liabilities and assets, but does not merge with that entity, it inherits the acquired entity’s status for purposes of specific personal jurisdiction. The relevant factors in considering successor jurisdiction include the impact of the New York rule on parties to a potential acquisition, whether imputing jurisdiction fairly reflects the reasonable assumptions and expectations of the parties to such transactions, whether doing so induces responsible parties to internalize responsibility for risks they create, and the impact of imputing jurisdiction on those injured by a predecessor’s acts. Those factors tip in favor of allowing successor jurisdiction where a successor purchases all assets and liabilities. Sophisticated corporate entities will undoubtedly engage in robust due diligence before agreeing to acquire all assets and liabilities of another entity. In doing so, they should understand where jurisdiction over such liabilities may lie and the potential cost if ultimately found liable, and will presumably negotiate a purchase price that is discounted by that prospect.

RESEARCH REFERENCES

By the Publisher’s Editorial Staff

AM JUR 2d Corporations §§ 1863, 1865; AM JUR 2d
Products Liability § 1473.
CARMODY-WAIT 2d Jurisdiction in Personam and in Rem
§§ 25:29, 25:38.

NY JUR 2d Business Relationships §§ 1123–1126, 1304.

SIEGEL, NY PRAC (6th ed) § 82.

ANNOTATION REFERENCE

See ALR Index under Consolidation and Merger; Corporations; Due Process; Foreign Corporations; Jurisdiction; Sale or Transfer of Property; Successors and Predecessors.

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POINTS OF COUNSEL

Osen LLC, New York City (*Michael Radine*, *Gary M. Osen*, *Ari Ungar*, *Dina Gielchinsky* and *Aaron Schlanger* of counsel), and *The Berkman Law Office, LLC*, Brooklyn (*Robert J. Tolchin* of counsel), for appellants. I. This Court should hold that a successor inherits the jurisdictional status of its predecessor where it acquires all of its assets and liabilities. (*Fitzgerald v Fahnestock & Co.*, 286 AD2d 573; *Grant-Howard Assoc. v General Housewares Corp.*, 63 NY2d 291; *Matter of New York City Asbestos Litig.*, 112 AD3d 529; *Cole v Caterpillar Mach. Corp.*, 562 F Supp 179; *Ed Moore Adv. Agency v I.H.R., Inc.*, 114 AD2d 484; *Corpuel v Galasso*, 268 AD2d 202; *WCVAWCK-Doe v Boys & Girls Club of Greenwich, Inc.*, 216 AD3d 1; *Harvardsky Prumyslovy Holding, A.S.-V Likvidaci v Kozeny*, 166 AD3d 494; *Transfield ER Cape Ltd. v Industrial Carriers, Inc.*, 571 F3d 221; *City of Richmond, Va. v Madison Mgt. Group, Inc.*, 918 F2d 438.) II. The successor jurisdiction rule can still protect corporations' legitimate expectations. (*Matter of New York City Asbestos Litig.*, 15 AD3d 254.)

Ashcroft Law Firm, LLC, Boston, Massachusetts (*Brian J. Leske*, admitted pro hac vice, and *Michael J. Sullivan*, admitted pro hac vice, of counsel), and *Freshfields Bruckhaus Deeringer US LLP*, New York City (*Scott A. Eisman*, *Timothy P. Harkness*, *Yulia Dernovsky* and *Matthew S. Rublin* of counsel), for respondent. An asset-and-liability purchaser does not inherit the seller's jurisdictional status. (*Keane v Kamin*, 94 NY2d 263; *LaMarca v Pak-Mor Mfg. Co.*, 95 NY2d 210; *Andrew Greenberg, Inc. v Sir-Tech Software, Inc.*, 4 NY3d 185; *Matter of Malta Town Ctr. I, Ltd. v Town of Malta Bd. of Assessment*

Review, 3 NY3d 563; *McKee Elec. Co. v Rauland-Borg Corp.*, 20 NY2d 377; *Ehrenfeld v Bin Mahfouz*, 9 NY3d 501; *International Shoe Co. v Washington*, 326 US 310; *Kreutter v McFadden Oil Corp.*, 71 NY2d 460; *Longines-Wittnauer Watch Co. v Barnes & Reinecke*, 15 NY2d 443; *George Reiner & Co. v Schwartz*, 41 NY2d 648.)

OPINION OF THE COURT

HALLIGAN, J.

The United States Court of Appeals for the Second Circuit has certified two questions concerning whether an entity inherits the contacts of a predecessor for purposes of specific personal jurisdiction. The first question asks, “Under New York law, does an entity that acquires all of another entity’s liabilities and assets, but does not merge with that entity, inherit the acquired entity’s status for purposes of specific personal jurisdiction?” (67 F4th 69, 71-72 [2d Cir 2023]). The second question asks, “In what circumstances will the acquiring entity be subject to specific personal jurisdiction in New York?” (*id.* at 72). We answer the first question affirmatively and decline to reach the second as unnecessary.

I.

Plaintiffs are 21 United States citizens who were harmed, and the estate and family members of a U.S. citizen who was killed, in rocket attacks perpetrated in 2006 by the Hizbollah terrorist organization in Israel (*id.*). Plaintiffs allege that in the years leading up to the attacks, the Lebanese Canadian Bank (LCB) provided extensive financial services to Hizbollah, including millions of dollars in wire transfers that LCB facilitated through a New York-based correspondent bank.

In separate litigation commenced in 2008, many of the plaintiffs here sued LCB for its alleged assistance to Hizbollah (*see Licci v Lebanese Can. Bank*, SAL, 673 F3d 50, 55 [2d Cir 2012]). In response to two certified questions, we held that the pleadings established the transaction of business in New York with a sufficient “nexus” or “relationship” to give rise to personal jurisdiction over LCB under our long-arm statute, CPLR 302 (*see Licci v Lebanese Can. Bank*, SAL, 20 NY3d 327 [2012]), and the Second Circuit subsequently held that exercising jurisdiction over LCB comported with due process (*see Licci v Lebanese Can. Bank*, SAL, 732 F3d 161, 165 [2d Cir 2013]). Years later, the Second Circuit also held that the plaintiffs’

complaint in that case adequately stated an aiding-and-abetting claim against LCB under the Anti-Terrorism Act of 1990 (18 USC § 2331 *et seq.*), as amended in 2016 by the Justice Against Sponsors of Terrorism Act (18 USC § 2333 [d] [2]) (*see Kaplan v Lebanese Can. Bank, SAL*, 999 F3d 842, 847-848, 864 [2d Cir 2021]).

While the above litigation was ongoing, the United States Department of Treasury in February 2011 designated LCB a “primary money laundering concern” based on this conduct (67 F4th at 72). In June 2011, LCB and respondent Société Générale de Banque au Liban SAL (SGBL), a private company incorporated in Lebanon with headquarters in Beirut, executed a purchase agreement that, according to plaintiffs, expressly provided that, in exchange for a \$580 million payment to LCB, “the Seller [LCB] shall transfer, convey, and assign . . . to the Purchaser [SGBL], . . . and the Purchaser shall receive and assume from the Seller, all of the Seller’s Assets and Liabilities” (*id.*).

In 2019, plaintiffs brought similar claims against SGBL, as LCB’s successor, in the Eastern District of New York for damages stemming from the 2006 attacks (*see id.* at 74). Plaintiffs alleged that SGBL inherited LCB’s jurisdictional status and is subject to personal jurisdiction in New York because it “assumed and bears successor liability for LCB’s liability to the plaintiffs” by virtue of the June 2011 deal between LCB and SGBL, and that although LCB continues to exist at least for the purpose of defending litigation, it is insolvent (*id.* at 72, 74). SGBL contended that under New York law, a theory of successor jurisdiction may not be invoked to permit imputation of LCB’s jurisdictional contacts to SGBL (*see* 2021 WL 4931845, *2, 2021 US Dist LEXIS 206270, *4 [ED NY, Mar. 31, 2021, 19-cv-00033 (RJD) (SJB)]).

The federal district court dismissed the action for lack of personal jurisdiction over SGBL (2021 WL 4931845, *2-3, 2021 US Dist LEXIS 206270, *4-8). The court explained that it read several Appellate Division and federal decisions to allow imputation of jurisdictional status only in the event of a merger, not an acquisition of all assets and liabilities (2021 WL 4931845, *2, 2021 US Dist LEXIS 206270, *4-6).

On appeal, the Second Circuit determined that New York courts have not addressed whether successor jurisdiction lies when “a successor acquires all of a predecessor’s assets and li-

abilities, but does not do so through either a statutory merger or a transaction that meets established standards for a *de facto* merger” (67 F4th at 81). The circuit court accordingly certified the two questions noted above, and reserved consideration of whether exercising personal jurisdiction over SGBL under a successor jurisdiction theory would comport with constitutional due process. This Court accepted the certified questions (39 NY3d 1146 [2023]).

II.

We begin with the first question: whether under New York law, an entity may inherit another entity’s specific personal jurisdiction status when it acquires all of that entity’s liabilities and assets, but does not merge with the entity.

New York’s long-arm statute, CPLR 302, sets forth the acts of a non-domiciliary that may give rise to specific personal jurisdiction.¹ As the Second Circuit noted in its certification decision, it previously held that LCB is subject to specific personal jurisdiction in New York under CPLR 302 for claims “materially identical” to those raised here (67 F4th at 74; *see also Licci*, 732 F3d at 168-174), and so we proceed on the assumption that the predecessor entity here, LCB, is subject to specific personal jurisdiction in New York.

SGBL argues that plaintiffs must establish that SGBL independently had contacts sufficient to satisfy CPLR 302, wholly apart from LCB’s contacts with New York. That would be so if plaintiffs sought to exercise personal jurisdiction based on SGBL’s own conduct, but plaintiffs’ theory of successor jurisdiction relies instead on the imputation of a predecessor entity’s contacts. If we credit that theory, LCB’s jurisdictional contacts would become SGBL’s jurisdictional contacts for purposes of the long-arm statute, and requiring a showing that SGBL itself had sufficient contacts would render this proposition irrelevant. For this reason, courts that have accepted successor jurisdiction have taken the view that only the contacts of the predecessor, not the successor, must satisfy the long-arm statute (*see State ex rel. Stein v E. I. du Pont de Nemours & Co.*, 382 NC 549, 556-558, 879 SE2d 537, 543-544 [2022]; *Jeffrey v*

1. Specific personal jurisdiction “permits a court to exercise jurisdiction only where the suit arises out of or relates to the defendant’s contacts with the forum state” (*Aybar v Aybar*, 37 NY3d 274, 288-289 [2021], citing *Bristol-Myers Squibb Co. v Superior Court of Cal., San Francisco Cty.*, 582 US 255, 262 [2017]).

Rapid Am. Corp., 448 Mich 178, 195-197, 205-206, 529 NW2d 644, 653-654, 657-658 [1995]; *Williams v Bowman Livestock Equip. Co.*, 927 F2d 1128, 1131-1132 [10th Cir 1991]; *City of Richmond, Va. v Madison Mgt. Group, Inc.*, 918 F2d 438, 454-455 [4th Cir 1990]; *Simmers v American Cyanamid Corp.*, 394 Pa Super 464, 488-489, 576 A2d 376, 389 [1990], *appeal denied* 527 Pa 649, 593 A2d 421 [1991], *cert denied* 502 US 813 [1991]).

III.

That brings us to the question of whether the jurisdictional status of a predecessor entity may be imputed to a successor who acquires all assets and liabilities. CPLR 302 does not resolve the question, contrary to what SGBL contends. SGBL argues that CPLR 302 expressly provides that an agent's acts may give rise to personal jurisdiction, and that successor jurisdiction is available only where the successor and predecessor are "one and the same" because they are alter egos, or via a merger or corporate reorganization. Applying the principle of *expressio unius est exclusio alterius*, SGBL contends that CPLR 302 precludes successor jurisdiction in all other circumstances. We are not persuaded. However helpful canons of statutory construction might generally be, the text of the long-arm statute cannot bear the weight SGBL places on it. Nor has SGBL shown that the legislature even contemplated theories of successor jurisdiction, let alone meant to preclude it in a sale of all assets and liabilities.

Turning to precedent, this Court has not decided when, if ever, a successor corporation may inherit a predecessor's jurisdictional status (*cf. Andrew Greenberg, Inc. v Sir-Tech Software, Inc.*, 4 NY3d 185, 191 [2005] [successor's own alleged contacts satisfied CPLR 302]). The Appellate Divisions have addressed successor jurisdiction only sparingly (*see Matter of Gronich & Co., Inc. v Simon Prop. Group, Inc.*, 180 AD3d 541, 542 [1st Dept 2020] [determining without explanation that a merger imputes successor jurisdiction, but "merely acquir(ing) the assets of the predecessor company" does not], citing *U.S. Bank N.A. v Bank of Am. N.A.*, 916 F3d 143, 156-158 [2d Cir 2019]; *Semenetz v Sherling & Walden, Inc.*, 21 AD3d 1138, 1140-1141 [3d Dept 2005] [broadly stating that "in certain circumstances a successor corporation may inherit its predecessor's jurisdictional status," but finding no such jurisdiction on "the facts of the subject case" (internal quotation marks omitted)]; *BRG Corp. v Chevron U.S.A., Inc.*, 163 AD3d 1495, 1496

[4th Dept 2018] [confirming issue of successor jurisdiction is “novel and unsettled”]; *Applied Hydro-Pneumatics v Bauer Mfg.*, 68 AD2d 42, 46 [2d Dept 1979] [holding that successor corporation’s nunc pro tunc ratification and adoption of its predecessor’s acts in New York yields personal jurisdiction over the successor without discussing imputation]).²

This Court, however, has considered the separate but related question of successor liability on several occasions. Although liability and jurisdiction are distinct legal concepts (*see Kreutter v McFadden Oil Corp.*, 71 NY2d 460, 470 [1988]), the principles animating one may inform the other. We have identified four exceptions to the general rule that a purchaser of assets is not liable for the seller’s torts: when “(1) [a corporation] expressly or impliedly assumed the predecessor’s tort liability, (2) there was a consolidation or merger of seller and purchaser, (3) the purchasing corporation was a mere continuation of the selling corporation, or (4) the transaction is entered into fraudulently to escape such obligations” (*Schumacher v Richards Shear Co.*, 59 NY2d 239, 245 [1983], citing *Hartford Acc. & Indem. Co. v Canron, Inc.*, 43 NY2d 823, 825 [1977]; *see also Semenetz v Sherling & Walden, Inc.*, 7 NY3d 194, 196-198 [2006]).

We have not extensively probed the rationale for these four exceptions. The earliest cases, *Hartford* and *Schumacher*, recite them with minimal analysis (*see Hartford*, 43 NY2d at 825; *Schumacher*, 59 NY2d at 245). In *Grant-Howard Assoc. v General Housewares Corp.* (63 NY2d 291 [1984]), we explained

2. The federal district court decisions addressing successor jurisdiction under New York law do not resolve the question. Some involve theories not presented here (*see Abbacor, Inc. v Miller*, 2001 WL 1006051, *4, 2001 US Dist LEXIS 13385, *11-14 [SD NY, Aug. 31, 2001, No. 01 CIV 0803 (JSM)] [“alter ego” theory]; *Societe Generale v Florida Health Sciences Ctr.*, 2003 WL 22852656, *4, 2003 US Dist LEXIS 21502, *11-15 [SD NY, Dec. 1, 2003, No. 03 Civ 5615 (MGC)] [de facto merger and “mere continuation” theory]). *Schenin v Micro Copper Corp.* suggests in a cursory fashion that an acquisition of all assets does not confer successor jurisdiction, but cites no supporting New York precedent on this point (272 F Supp 523, 526 [SD NY 1967]). *U.S. Bank* opined in dicta that under New York law, a merger, but not an acquisition of assets, would confer successor jurisdiction, but that case did not address the express assumption of all liabilities (*see* 916 F3d at 155-159; 67 F4th at 81-82). *Bartlett v Société Générale de Banque Au Liban SAL* presented a question of successor jurisdiction “nearly identical” to that before us here, and although that court rejected successor jurisdiction, it did so primarily in reliance on *U.S. Bank* and without clearly deciding whether assumption of liabilities may confer jurisdiction (*see* 2020 WL 7089448, *16-17, 2020 US Dist LEXIS 229921, *73-77 [ED NY, Nov. 25, 2020, 19-CV-00007 (CBA) (VMS)]; 67 F4th at 81-82).

that successor liability is motivated in part by principles of product liability, and as such is intended to ensure that a “responsible source” (the manufacturer) is available to compensate an injured party and can in turn “transfer the costs to the general public as a component of the selling price” (*id.* at 296). We described the second and third exceptions (merger and “mere continuation”) as “based on the concept that a successor that effectively takes over a company in its entirety should carry the predecessor’s liabilities as a concomitant to the benefits it derives from the good will purchased” (*id.* at 296). But because the question in *Grant-Howard* was whether the successor had to indemnify the predecessor despite assuming no contractual liability for the specific harm alleged, these policy considerations were ultimately not dispositive (*id.*). Finally, although we noted that a sale of assets “may allow an injured plaintiff to proceed against a successor corporation” (*id.* at 297), we did so without explanation.

In *Semenetz v Sherling & Walden, Inc.* (7 NY3d 194 [2006]), we rejected the “product line” exception to successor liability adopted by several other jurisdictions, where a successor acquires most of a manufacturing business’s assets and continues to produce its line of products, but does not assume broad liabilities (*see id.* at 197-199). We considered three rationales for the proposed exception: the purported destruction of the plaintiff’s remedies against the original manufacturer caused by the successor’s acquisition of the business, which we concluded simply restated the problem; the successor’s ability to spread the risk of injury, which we determined improperly assumed that the successor manufacturer in fact had capacity to spread (and absorb) the risk of injuries; and the fairness of imposing liability where the successor benefits from the predecessor’s goodwill by continuing to operate the business, which we found ignored that the sale price already incorporated goodwill (*see id.* at 199-200). We further noted that the proposed exception could substantially harm small businesses, explained why it would improperly shift responsibility away from the entity that created the risk to one that only remotely benefited and could not have eliminated the risk, and noted that most courts had likewise declined to adopt the exception (*see id.* at 200-201).

These considerations are helpful touchstones in considering successor jurisdiction. Relevant factors include the impact of our rule on parties to a potential acquisition, whether imput-

ing jurisdiction fairly reflects the reasonable assumptions and expectations of the parties to such transactions, whether doing so induces responsible parties to internalize responsibility for risks they create, and the impact of imputing jurisdiction on those injured by a predecessor's acts (*see Grant-Howard*, 63 NY2d at 296-297; *Semenetz*, 7 NY3d at 200-201; *see also Kreutter*, 71 NY2d at 471-472 [declining to adopt fiduciary shield limit on personal jurisdiction where unnecessary as a matter of fairness and public policy]).

Those factors tip in favor of allowing successor jurisdiction where a successor purchases all assets and liabilities. An express assumption of all assets and liabilities is not akin to the limited acquisition in *Semenetz*, which involved only the purchase and continuation of a product line. Sophisticated corporate entities such as SGBL will undoubtedly engage in robust due diligence before agreeing to acquire all assets and liabilities of another entity. In doing so, they should understand where jurisdiction over such liabilities may lie and the potential cost if ultimately found liable, and will presumably negotiate a purchase price that is discounted by that prospect (*see State ex rel. Stein v E. I. du Pont de Nemours & Co.*, 382 NC 549, 559-561, 879 SE2d 537, 545-546 [2022], quoting *Simmers*, 394 Pa Super at 489-491, 576 A2d at 390).

Indeed, the history of this case indicates that SGBL, as the successor, would have been on notice when it made this acquisition of LCB's potential exposure in New York in connection with the terrorist attacks. Based on its support for Hizbollah, LCB had been designated as a primary money laundering concern by the U.S. Department of Treasury before SGBL agreed to assume LCB's liabilities. The *Licci* litigation, which involves allegations nearly identical to those in this case, was commenced against LCB in 2008, well before SGBL acquired LCB's assets and liabilities in 2011 (*see Lelchook*, 67 F4th at 73). And although the exact parameters of successor jurisdiction under New York law may not have been settled in 2011, "[t]he great weight" of authority at the time permitted imputation whenever the forum state's law would hold the successor liable (*see City of Richmond*, 918 F2d at 454 [internal quotation marks omitted], quoting *Simmers*, 394 Pa Super at 480, 576 A2d at 385; *see also* 2 Jurisdiction in Civil Actions § 7.03 [4] [d] [2022] ["The basic test seems to gear the (personal) jurisdiction question to whether, as a substantive matter, the successor corporation may be liable for the obligations of the

predecessor. . . . If it is liable for the predecessor's obligations . . . , it will be subject to personal jurisdiction in a suit to enforce the obligation if the predecessor would have been subject to such jurisdiction"). Under these circumstances, SGBL should reasonably have anticipated being subject to jurisdiction over LCB's liabilities in New York.

A contrary rule would give rise to unfortunate incentives. Allowing a successor to acquire all assets and liabilities, but escape jurisdiction in a forum where its predecessor would have been answerable for those liabilities, would allow those assets to be shielded from direct claims for those liabilities in that forum. As the Second Circuit put it, a predecessor could "decouple its assets from its enforceable liabilities, for value" (see 67 F4th at 87). Injured parties would be left to directly sue the successor in a forum that may well be less favorable, with respect to both the likely outcome and available mechanisms to enforce a judgment. As a consequence, the value of plaintiffs' claims would likely be reduced, perhaps by a significant amount, leaving the injured parties to absorb those costs themselves. That, in turn, would compromise the objective of having a "responsible source" available to absorb the risk of liability and compensate injured parties (see *Grant-Howard*, 63 NY2d at 296; *Semenetz*, 7 NY3d at 200).

Additionally, while a predecessor's assets should be available to satisfy a judgment against it prior to a sale of all assets and liabilities, that may no longer be true afterwards, depending on the terms of the deal. That risk appears to be borne out here: although plaintiffs allege that LCB had substantial assets in 2010, LCB stated in 2017 that it was "defunct, insolvent, and unable to pay any judgment rendered against it" (LCB's brief in opp to cert in *Licci v Lebanese Can. Bank*, 673 F3d 50 [2d Cir 2012], available at 2017 WL 712025, *4 [filed Feb. 17, 2017]). SGBL's response to this concern—that plaintiffs can sue SGBL or pursue its assets in other jurisdictions—encourages "catch me if you can" gamesmanship, to the detriment of New York plaintiffs.

We see no good reason to require plaintiffs to take an indirect and uncertain path to recompense where a predecessor entity allegedly caused harm, subjecting it to jurisdiction in New York, and then agreed to an acquisition of all of its assets and liabilities by a successor, who in turn reaps the benefits of the predecessor's business in New York while evading jurisdiction here. Thus, we clarify that where an entity acquires all of an-

other entity's liabilities and assets, but does not merge with that entity, it inherits the acquired entity's status for purposes of specific personal jurisdiction.³

Accordingly, the first certified question should be answered in the affirmative and the second question not answered as unnecessary.

Chief Judge WILSON and Judges RIVERA, GARCIA, SINGAS, CANNATARO and TROUTMAN concur.

Following certification of questions by the United States Court of Appeals for the Second Circuit and acceptance of the questions by this Court pursuant to Rules of Practice of the Court of Appeals (22 NYCRR) § 500.27, and after hearing argument by counsel for the parties and consideration of the briefs and record submitted, first certified question answered in the affirmative and second certified question not answered as unnecessary.

3. Our conclusion that jurisdictional contacts may be imputed here accords with nearly all decisions of other state appellate courts and federal circuit courts that have considered the issue of successor jurisdiction (*see State ex rel. Stein v E. I. du Pont de Nemours & Co.*, 382 NC at 560-564, 879 SE2d at 545-548; *Jeffrey*, 448 Mich at 206, 529 NW2d at 658; *Simmers*, 394 Pa Super at 489-490, 576 A2d at 389-390; *City of Richmond*, 918 F2d at 454-455; *Williams*, 927 F2d at 1132; *Perry Drug Stores v CSK Auto Corp.*, 93 Fed Appx 677, 681 [6th Cir 2003]; *CenterPoint Energy, Inc. v Superior Ct.*, 157 Cal App 4th 1101, 1120, 69 Cal Rptr 3d 202, 218 [2007]; *see also Anotek LLC v Venture Exch.*, 2021 WL 2577604, *2, 2021 Del Super LEXIS 481, *3-4 [June 22, 2021, CA No. N19C-04-211 JRJ] ["Court must deny (successor's) Motion to Dismiss (for lack of personal jurisdiction) if the Amended Complaint contains well-pleaded factual allegations as to *any* of these (four) bases of successor liability"]). The few cases reaching a contrary holding offer no persuasive counterpoints (*see e.g. Johnston v Pneumo Corp.*, 652 F Supp 1402, 1406 [SD Miss 1987]; *Sullivan v Fellows Testagar & Co., Inc.*, 518 So 2d 1111, 1113 [La Ct App 1987]).

[239 NE3d 928, 215 NYS3d 303]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FAROD
MOSLEY, Appellant.

Argued February 14, 2024; decided April 23, 2024

SUMMARY

APPEAL, by permission of an Associate Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered December 23, 2021. The Appellate Division affirmed a judgment of the Onondaga County Court (Stephen J. Dougherty, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree (two counts) and reckless endangerment in the first degree.

People v Mosley, 200 AD3d 1658, reversed.

HEADNOTES**Crimes — Identification of Defendant — Admissibility of Non-Eyewitness Identification Testimony**

1. Testimony from someone who is not an eyewitness to a crime identifying the defendant as the person depicted in a photo or video may be admitted where the witness is sufficiently familiar with the defendant that their testimony would be reliable, and there is reason to believe the jury might require such assistance in making its independent assessment. The relevant question is whether the proffered testimony serves to aid the jury in making an independent assessment regarding whether the person in the photo or video was indeed the defendant. To answer in the affirmative, there must be some basis for concluding that the witness is more likely to correctly identify the defendant from the photo or video than is the jury. The inquiry requires a totality of the circumstances test, which preserves the discretion of the trial court. First, the court must determine whether the witness has had sufficient contact with the defendant to achieve a level of familiarity that renders the lay opinion helpful. If the witness lacks such familiarity, it is the province of the jury to draw its own conclusions regarding the identity of the person depicted without the witness's assistance, and that is the end of the inquiry. The second consideration is whether the jury needs the witness's assistance. Before admitting lay non-eyewitness identification testimony, a court should inquire as to the basis of the witness's familiarity outside the presence of the jury in a separate hearing or voir dire and provide cautionary jury instructions.

Crimes — Identification of Defendant — Surveillance Video — Non-Eyewitness Identification

2. In a criminal prosecution arising out of a shooting captured in a grainy video by police surveillance cameras, the trial court abused its discretion in permitting a detective, who had not met defendant until seven months after the incident while investigating a different crime, to provide lay, non-eyewitness testimony identifying defendant as the shooter in the video, where

the People failed to establish that the detective's testimony would have aided the jury in making an independent assessment regarding whether the person in the video was defendant. The People did not establish that the detective was sufficiently familiar with defendant to render his identification helpful to the jury. Though the detective represented that he had interacted with defendant "a number" of times, he failed to specify how many times, for how long, or what the nature of those interactions were. He testified that he had never had "street" interactions with defendant, and it was unclear whether he ever interacted with defendant outside of the police station. The detective was not familiar with defendant's appearance at the time the shooting occurred, nor did he know what defendant was wearing on the day of the shooting. Moreover, the detective did not connect any distinctive traits of defendant's to the person depicted in the surveillance photo. The People also failed to demonstrate that the jury needed the detective's help. The shooter in the video did not wear a disguise, and there was no indication that defendant's appearance changed. The testimony suggested that the quality of the surveillance video would have made it difficult for anybody to reliably identify the subject. There was no basis to conclude, based on the totality of the circumstances, that the detective would have been more likely to correctly identify the defendant from the video than the jury.

Crimes — Harmless and Prejudicial Error — Overwhelming Evidence of Guilt

3. In a criminal prosecution arising out of a shooting incident captured in a grainy video by police surveillance cameras, the trial court's error in admitting lay, non-eyewitness testimony from a detective, who had not met defendant until seven months after the incident while investigating a different crime, identifying defendant as the shooter in the video was not harmless. Unless the proof of the defendant's guilt, without reference to the error, is overwhelming, there is no occasion for consideration of any doctrine of harmless error. Here, the only evidence tying defendant to the crime was the low-quality video and the detective's identification testimony. Without the detective's testimony, the People presented no more evidence than they did in their first indictment, which was dismissed for insufficient evidence.

RESEARCH REFERENCES

By the Publisher's Editorial Staff

AM JUR 2d Appellate Review §§ 610, 615; AM JUR 2d Evidence §§ 1353, 1355.

CARMODY-WAIT 2d Particular Types of Evidence §§ 194:218, 194:220; CARMODY-WAIT 2d Appeals in Criminal Cases § 207:125.

LAFAVE, ET AL., CRIMINAL PROCEDURE (4th ed) §§ 24.4, 27.6.

NY JUR 2d Criminal Law: Procedure §§ 2103, 2120, 2121, 3672, 3673, 3766, 3767.

ANNOTATION REFERENCE

See ALR Index under Description and Identification; Harmless and Prejudicial Error.

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POINTS OF COUNSEL

Hiscock Legal Aid Society, Syracuse (*Thomas Leith* and *Philip Rothschild* of counsel), and *Cerio Law Offices, PLLC*, Syracuse (*Nathaniel V. Riley* of counsel), for appellant. The lay opinion of a non-percipient witness, Detective Steven Kilburn, identifying Farod Mosley as the shooter prejudiced the defense in that the detective was no more likely than the jury to correctly identify him considering he did not know Mr. Mosley, who had not altered his appearance following the incident, and the shooter wore no disguise. (*People v Hackett*, 228 AD2d 377; *People v Myrick*, 135 AD3d 1069; *People v Russell*, 79 NY2d 1024; *People v Harte*, 29 AD3d 475; *People v Brown*, 145 AD3d 1549; *People v Harlow*, 195 AD3d 1505; *People v Challenger*, 200 AD3d 500; *People v Coleman*, 78 AD3d 457; *People v Graham*, 174 AD3d 1486; *People v Reddick*, 164 AD3d 526.)

William J. Fitzpatrick, District Attorney, Syracuse (*Bradley W. Oastler* of counsel), for respondent. An identification by a non-percipient witness is permissible where that witness becomes familiar with a defendant after a criminal act is committed. (*People v Graham*, 174 AD3d 1486, 34 NY3d 1016; *People v Russell*, 165 AD2d 327, 79 NY2d 1024; *People v Sanchez*, 21 NY3d 216; *People v Gambale*, 158 AD3d 1051, 31 NY3d 1081; *People v Boyd*, 151 AD3d 641, 29 NY3d 1124; *People v Boone*, 30 NY3d 521; *People v Perez*, 168 AD3d 475, 33 NY3d 952; *People v Myrick*, 135 AD3d 1069; *People v Stone*, 29 NY3d 166.)

OPINION OF THE COURT

HALLIGAN, J.

This case concerns an increasingly prevalent issue: when may someone who is not an eyewitness to a crime testify to a jury that the defendant is the person depicted in a photo or video. We hold that such testimony may be admitted where the witness is sufficiently familiar with the defendant that their testimony would be reliable, and there is reason to believe the jury might require such assistance in making its independent assessment. Here, there was no showing that the proffered wit-

ness was sufficiently familiar with the defendant to render his testimony helpful, or that the jury faced an obstacle to making the identification that the witness's testimony would have overcome. Accordingly, we reverse.

I.

On June 10, 2015, police cameras in Syracuse captured a grainy video of a man running through the street and firing three shots into a van. The van promptly drove off, and the responding officers recovered two bullet casings but did not see the shooter.

A grand jury indicted defendant Farod Mosley for the shooting in September 2015, but the indictment was dismissed as legally insufficient. In July 2016, as the People were preparing to re-present the charges against Mosley to a grand jury, an assistant district attorney showed the video of the shooting to Detective Steven Kilburn. Kilburn identified Mosley as the shooter in the video and repeated his identification to a grand jury, which indicted Mosley.

The trial took place in February 2018, and the key issue was identification of the shooter in the video. Though one of the van's passengers testified that he remembered the shooting, he said that he had not seen the shooter. And though an analyst testified as to the recovered bullet casings, she stated that they had not been tested for either fingerprints or DNA. The video therefore was the only evidence tying Mosley to the crime.

At trial, the People played the video and relied on Kilburn to provide lay, non-eyewitness identification testimony that he believed Mosley was the shooter in the video.¹ Kilburn first testified as to his familiarity with Mosley during voir dire, out of the presence of the jury. Kilburn, a homicide detective, explained that he met Mosley on January 5, 2016, when Mosley was brought into the precinct as a suspect in a different crime.²

Kilburn thus estimated that by the time of the trial for the instant offense in February 2018, he had known Mosley for a

1. The concurrence suggests that the video should not have been admitted for the purpose of identifying the defendant at all (*see* concurring op at 653, 658). Before us, the defendant challenges only the admission of Kilburn's lay non-eyewitness identification testimony, not the admission of the video itself.

2. Mosley was tried separately for the crimes related to that investigation, and they are not at issue here (*see People v Mosley*, 200 AD3d 1664 [4th Dept 2021]).

year to a year and a half. When asked to describe his interactions with Mosley, Kilburn said he had “sat in rooms with Mr. Mosley,” “walked side by side with Mr. Mosley,” and “had the occasion to speak with him,” as well as having viewed both police-related and Facebook photos of Mosley. He estimated he had been in the same room as Mosley on “a number” of occasions, but gave only one specific date—January 5, 2016, the first date he could recall seeing Mosley face-to-face. He could not ever recall having “street interactions” with Mosley. He also specified that at the time the assistant district attorney asked him if he could identify the shooter in the surveillance video in July 2016, he knew that Mosley had been arrested on a warrant for a “shots fired and weapons charge.”

The judge concluded that Kilburn had “an extensive basis of knowledge” to identify Mosley in the video. To avoid airing prejudicial information about other police interactions before the jury, the judge instructed Kilburn to avoid mentioning the unrelated criminal investigation for which he had arrested Mosley.

Kilburn accordingly told the jury that he met Mosley about seven months after the video was captured during his routine “canvassing” of the Syracuse neighborhood where the shooting occurred, had known him for about a year and a half, and that he had “interacted” with Mosley, “walked” with him, and spoken with him on a “couple” of occasions. He testified that he was familiar with Mosley’s “body language,” “body type,” and “build.” He then viewed the video and identified the shooter as Mosley. He explained that though he did not know Mosley at the time of the shooting and did not know what Mosley had been wearing that day, he based his identification on his interactions with Mosley, his “build,” the “shape of his nose,” and “on previously viewing the video and being able to zoom in and stuff.” Though he referenced Mosley’s nose, he conceded when shown screenshots of the video “the face is a blur” and there was no nose apparent at all. Kilburn also opined that Mosley’s appearance had not changed, and that Mosley “as he sits there now is the same as when I first encountered him, which is the same as he appears in that video.”

During deliberations, the jury requested to see the video again and a readback of Kilburn’s testimony. They also requested—and were denied—a magnifying glass with which to view the video. The jury ultimately convicted Mosley of two counts of criminal possession of a weapon in the second degree

(Penal Law § 265.03 [1] [b]; [3]) and reckless endangerment in the first degree (*id.* § 120.25).

Mosley argues that the trial court abused its discretion in admitting Kilburn’s testimony. The Appellate Division (with two Justices dissenting) rejected this contention, holding that the People demonstrated Kilburn was more likely than the jury to correctly identify Mosley in the video. Because the People failed to establish that Kilburn’s testimony would aid the jury in making an independent assessment regarding whether the person in the video was Mosley, we reverse.

II.

We have twice before considered the admission of lay non-eyewitness identification testimony: in *People v Russell* (79 NY2d 1024 [1992]), and in *People v Sanchez* (21 NY3d 216, 225 [2013]). In *Russell*, the trial court allowed four lay witnesses—the defendant’s roommate, his roommate’s mother, his landlord, and a friend—to identify the defendant as the person caught in surveillance photographs committing a bank robbery (*People v Russell*, 165 AD2d 327, 329 [2d Dept 1991], *affd* 79 NY2d 1024). The People presented evidence that the defendant had disguised himself by growing an “uncharacteristic” beard that he sported during the robbery, and that he changed his appearance afterward by shaving it (*id.*). Stressing two considerations—the “personal knowledge” that the witnesses had “of defendant’s appearance as of the time when the photographs were taken,” as well as the fact that defendant had made the jury’s task “more onerous” by creating impediments to identification (*Russell*, 79 NY2d at 1025)—we held that the identification testimony was properly admitted. In reaching this conclusion, we referenced two federal cases, *United States v Robinson* (804 F2d 280, 282 [4th Cir 1986]) and *United States v Farnsworth* (729 F2d 1158, 1160 [8th Cir 1984]). Both of these cases construed rule 701 of the Federal Rules of Evidence (lay opinion testimony) and focused on the two inquiries underpinning our conclusion in *Russell*: the extent of the witnesses’ familiarity with the defendant, and whether the defendant had made the jury’s job harder through use of a disguise or change in appearance. Similarly, in *Sanchez* we concluded that the admission of lay non-eyewitness testimony was proper because the proffered testimony was from two detectives who had known the defendant “from prior occasions” (*People v Sanchez*, 95 AD3d 241, 249 [2012], *affd* 21 NY3d

216), and it was “undisputed” that the defendant’s appearance had changed between the crime and the trial (*Sanchez*, 21 NY3d at 225).

Due to the widespread deployment of surveillance in public spaces and the ubiquity of private cameras and video recording devices, lay opinion identification testimony has become an increasingly common form of evidence (see George Bach, *Moderating the Use of Lay Opinion Identification Testimony Related to Surveillance Video*, 47 Fla St Univ L Rev 445, 447 n 5 [2020] [tracking the multifold increase in the annual average of state cases discussing lay opinion identification testimony related to surveillance video since 2010]; Bennett Capers, *Crime, Surveillance, and Communities*, 40 Fordham Urb LJ 959, 961-962 [2013] [tracking the expansion of surveillance technology in New York City]).³ Correspondingly, lay opinion identification testimony and the issues surrounding its admissibility have garnered increased attention from courts around the country (see e.g. *State v Gore*, 342 Conn 129, 269 A3d 1 [2022]; *State v Sanchez*, 247 NJ 450, 255 A3d 1118 [2021]; *Glenn v State*, 302 Ga 276, 806 SE2d 564 [2017]; *Lenoir v State*, 2016-KA-00226-SCT, 222 So3d 273 [Miss 2017]; *People v Thompson*, 2016 IL 118667, 49 NE3d 393 [2016]).⁴

We first note that, despite the increasing prevalence of lay non-eyewitness identification testimony, its use presents several challenges. Courts have historically been wary of lay opinion testimony, which may “usurp the fact-finding function of the jury” (*United States v Garcia*, 413 F3d 201, 210-211 [2d Cir 2005]). Although use of such testimony may be warranted

3. To the extent the concurrence raises concerns about the impact of facial recognition software (see concurring op at 657-658), they are not before us in this case.

4. Likewise, the issue has come up with increasing frequency in New York courts (see *People v Castro*, 207 AD3d 1027, 1028-1029 [4th Dept 2022]; *People v Angulo*, 201 AD3d 477, 478 [1st Dept 2022]; *People v Griffin*, 203 AD3d 1608, 1612 [4th Dept 2022]; *People v Harlow*, 195 AD3d 1505, 1507 [4th Dept 2021]; *People v Challenger*, 200 AD3d 500, 500-501 [1st Dept 2021]; *People v Trowell*, 172 AD3d 1112, 1113 [2d Dept 2019]; *People v Graham*, 174 AD3d 1486, 1487-1488 [4th Dept 2019]; *People v Pinkston*, 169 AD3d 520, 521 [1st Dept 2019]; *People v Rivera*, 170 AD3d 566, 567 [1st Dept 2019]; *People v Gambale*, 158 AD3d 1051, 1053 [4th Dept 2018]; *People v Jones*, 161 AD3d 1103, 1103 [2d Dept 2018]; *People v Reddick*, 164 AD3d 526, 527 [2d Dept 2018]; *People v Boyd*, 151 AD3d 641, 641 [1st Dept 2017]; *People v Franzese*, 154 AD3d 706, 707 [2d Dept 2017]; *People v Thomas*, 139 AD3d 764, 765 [2d Dept 2016]; *People v Myrick*, 135 AD3d 1069, 1074 [3d Dept 2016]; *People v Montanez*, 135 AD3d 528, 528 [1st Dept 2016]; *People v Brown*, 145 AD3d 1549, 1549 [4th Dept 2016]).

in certain circumstances, courts must be vigilant that the testimony does not unnecessarily invade the jury's role (*see United States v LaPierre*, 998 F2d 1460, 1465 [9th Cir 1993] [though "sometimes permissible," the lay witness identification "ran the risk of invading the province of the jury"]; *see also Kulak v Nationwide Mut. Ins. Co.*, 40 NY2d 140, 148 [1976] [in the context of expert testimony, noting testimony that "intrude(s) on the province of the jury to draw inferences and conclusions" is "improper" absent jury handicap]). Trial testimony by a law enforcement officer may pose additional concerns by drawing attention to a defendant's prior interactions with the police, and efforts to mitigate any prejudice by omitting reference to a law enforcement officer's occupation or providing a cryptic basis for familiarity may constrain the opportunity for vigorous cross-examination (*see Russell*, 165 AD2d at 335; *see also United States v Walker*, 974 F3d 193, 206 [2d Cir 2020]; *United States v Pierce*, 136 F3d 770, 776 [11th Cir 1998]; *United States v Calhoun*, 544 F2d 291, 295 [6th Cir 1976]).

[1] Whether the probative value of such identification testimony outweighs these drawbacks is a decision committed to the sound discretion of the trial court, and reviewable by this Court for abuse of discretion. As we held in *Russell*, the relevant question is whether the proffered testimony "serve[s] to aid the jury in making an independent assessment regarding whether the [person in the surveillance footage] was indeed the defendant" (79 NY2d at 1025). To answer in the affirmative, there must be "some basis for concluding that the witness is more likely to correctly identify the defendant from the photograph [or video] than is the jury" (*Farnsworth*, 729 F2d at 1160; *see also Russell*, 165 AD2d at 333).

We did not elaborate on the contours of this inquiry in *Russell* or *Sanchez*. Most other jurisdictions that have considered the question apply a totality of the circumstances test considering whether the witness is familiar enough with the defendant that it is reasonable to believe their testimony would be helpful and reliable, and whether there is reason to believe the jury might require that assistance (*see e.g. Gore*, 342 Conn at 150-151, 269 A3d at 14 [surveying cases]). Our review of these cases, as well as the cases arising in the Appellate Divisions, indicates that the issue of lay non-eyewitness identification testimony arises in a variety of circumstances and often requires courts to make fact-intensive determinations. Accord-

ingly, we too adopt a totality of the circumstances test, which preserves the discretion of the trial court—the court that, being closest to the facts of the case, is in the best position to make these evidentiary decisions.⁵ We note that this standard is fully consistent with our reasoning in *Russell* and *Sanchez* and the underlying Appellate Division opinions that we affirmed in those decisions.

First, the court must determine whether “the witness has had sufficient contact with the defendant to achieve a level of familiarity that renders the lay opinion helpful” (*United States v Fulton*, 837 F3d 281, 297-298 [3d Cir 2016], citing *United States v Beck*, 418 F3d 1008, 1014 [9th Cir 2005]). “If the witness lacks such familiarity, it is the province of the jury to draw [its] own conclusions regarding the identity of the person depicted without the witness’s assistance” (*Commonwealth v Vacher*, 469 Mass 425, 441, 14 NE3d 264, 279 [2014]), and that is the end of the inquiry.

In making this assessment, courts may consider the witness’s general level of familiarity with the defendant’s appearance (*Russell*, 165 AD2d at 329; *see also Gore*, 342 Conn at 151, 269 A3d at 14; *Thompson*, 2016 IL 118667, ¶ 44, 49 NE3d at 403-404; *United States v Dixon*, 413 F3d 540, 545 [6th Cir 2005]; *Pierce*, 136 F3d at 774; *Robinson*, 804 F2d at 282), and whether the witness’s familiarity spanned an extended period of time and variety of circumstances (*Russell*, 165 AD2d at 329; *see also Gore*, 342 Conn at 152, 269 A3d at 14-15; *Sanchez*, 247 NJ at 470-471, 255 A3d at 1129; *Walker*, 974 F3d at 205; *Beck*, 418 F3d at 1015; *Pierce*, 136 F3d at 774). Courts may also take into account whether the witness was familiar with the defendant’s appearance at the time the surveillance footage was taken (*Russell*, 165 AD2d at 329, 336; *see also Gore*, 342 Conn at 151,

5. To the extent the concurrence would adopt bright-line rules, we are not persuaded they would be administrable. For example, the concurrence seems to suggest that the defendant must have affirmatively altered their appearance for the purpose of obscuring their identity (*see concurring op at 655*). This standard would require a court to assess why, for example, a person might have worn a “bulky winter jacket” in December in Boston (*see e.g. United States v Jackman*, 48 F3d 1, 2 [1st Cir 1995]) or gained weight over a span of years (*see Sanchez*, 95 AD3d at 249-250). And if the defendant’s intent is the touchstone, it is not clear why the concurrence would nonetheless allow testimony where the defendant has some distinguishing feature not apparent in court, e.g., “a limp, or a distinctive item of clothing” (*concurring op at 655*). We do not dispute that these factors are key considerations, but we decline to limit courts’ consideration of other factors that may bear on whether the testimony would be helpful to the jury.

269 A3d at 14; *Thompson*, 2016 IL 118667, ¶ 46, 49 NE3d at 404; *Sanchez*, 247 NJ at 472, 255 A3d at 1130; *Walker*, 974 F3d at 205; *Beck*, 418 F3d at 1015; *Farnsworth*, 729 F2d at 1160). Also relevant is the witness's familiarity with the defendant's customary manner of dress or clothing on the day of the surveillance footage (*Russell*, 165 AD2d at 329; *see also Gore*, 342 Conn at 151, 269 A3d at 14; *Thompson*, 2016 IL 118667, ¶ 46, 49 NE3d at 404; *Beck*, 418 F3d at 1015; *Dixon*, 413 F3d at 545; *United States v Jackman*, 48 F3d 1, 5 [1st Cir 1995]). Along similar lines, courts should also consider whether the witness references a specific trait the defendant has (such as a distinctive gait, scar, or tattoo), and importantly, whether they identify that trait in the surveillance footage (*United States v Williams*, 396 Fed Appx 516, 517 [10th Cir 2010] [identification based on "style of walk"]⁶).

The second consideration is whether the jury needs the witness's assistance (*see e.g. Fulton*, 837 F3d at 297; *Vacher*, 469 Mass at 442, 14 NE3d at 279). Here, courts should consider whether the defendant's appearance changed between the time of the surveillance footage and the trial or whether the defendant disguised himself in the surveillance footage (*see Russell*, 165 AD2d at 329 [defendant sported "an uncharacteristic growth of facial hair" the day of the crime and shaved immediately after]; *see also Gore*, 342 Conn at 151, 269 A3d at 14; *Sanchez*, 247 NJ at 472, 255 A3d at 1130; *Thompson*, 2016 IL 118667, ¶ 47, 49 NE3d at 404; *Beck*, 418 F3d at 1015; *Dixon*, 413 F3d at 545; *United States v White*, 639 F3d 331, 336 [7th Cir 2011]; *Jackman*, 48 F3d at 5; *Farnsworth*, 729 F2d at 1160). In addition, courts may consider the quality of the surveillance footage and the extent to which the subject is clearly captured in the frame (*see e.g. Gore*, 342 Conn at 151, 269 A3d at 14; *Thompson*, 2016 IL 118667, ¶ 48, 49 NE3d at 404-405; *White*, 639 F3d at 336; *Dixon*, 413 F3d at 545; *Jackman*, 48 F3d at 5). Where an image is clear enough—that is, not so crystal clear that the jury could identify a person as capably as any witness, and not so obscure that no witness could readily identify the individual—this factor may weigh in favor of admission (*see*

6. The concurrence finds prior familiarity irrelevant (*see concurring op at 655*). Not only is this proposition unsupported as a matter of law (*see e.g. Russell*, 79 NY2d at 1025 [considering familiarity]; *see also Gore*, 342 Conn at 150, 152-154, 269 A3d at 13-16 [surveying cases]), it misapprehends our analysis. Unless a proffered witness is sufficiently familiar with the defendant, then their testimony could have no probative value.

e.g. *Gore*, 342 Conn at 164-165, 269 A3d at 22, quoting *Jackman*, 48 F3d at 5; *Sanchez*, 247 NJ at 473, 255 A3d at 1130-1131; *Fulton*, 837 F3d at 298).⁷

Finally, we note that before admitting lay non-eyewitness identification testimony, a court should inquire as to the basis of the witness's familiarity outside the presence of the jury in a separate hearing or voir dire, as the court properly did here. The party offering the witness—in most cases the People—bears the burden of establishing that their testimony would both be helpful and necessary. We note, however, that it is incumbent on both parties to create a thorough record to aid the court in its determination and to allow for meaningful appellate review. Additionally, as a best practice, it would be appropriate for the trial court to provide cautionary jury instructions, both at the time of the testimony and during the final charge, explaining to the jury that lay non-eyewitness identification testimony is mere opinion testimony that they may choose to accept or reject, and reminding the jurors that because they are the finders of fact, it is their opinion as to whether the defendant is depicted in the surveillance footage that matters (see *Sanchez*, 21 NY3d at 225 [noting that “the trial court issued appropriate limiting instructions to the jury”]; *People v Lee*, 214 AD3d 457, 458 [1st Dept 2023] [noting court’s “repeated instructions reminding the jury that it was its function to determine who was depicted on the video”]; *People v Laro*, 203 AD3d 1176, 1177 [2d Dept 2022] [“appropriate limiting instructions” given both during testimony and the court’s final charge]).

III.

[2] We now turn to the case at hand and conclude that it was an abuse of discretion to admit Kilburn’s testimony.

First, the People did not establish that Kilburn was sufficiently familiar with Mosley to render his identification helpful to the jury. When addressing this issue during voir dire,

7. The concurrence suggests that our recognition of this factor “would allow testimony in those cases where a blurry, nondescript image is used for identification” (see concurring op at 654). When a video is “blurry,” “nondescript,” and “indcipherable,” as the concurrence puts it, we agree this would counsel against admission of the testimony. But we also recognize that at the opposite end of the spectrum, where the video is crystal clear, it will likely speak for itself, and admission of non-eyewitness testimony would improperly intrude on the fact-finder’s province.

Kilburn testified only that he had “sat in rooms with Mr. Mosley,” “walked side by side with Mr. Mosley,” and “had the occasion to speak with him.” Though Kilburn represented that he had interacted with Mosley “a number” of times, he failed to specify how many times, for how long, or what the nature of those interactions were. Indeed, it is unclear from the record whether Kilburn interacted with Mosley on more than one day (see *People v Mosley*, 200 AD3d 1658, 1661 [2021, Whalen, P.J. & Lindley, J., dissenting] [characterizing Kilburn as having recalled “only a single day on which these interactions took place”]). Though Kilburn also referenced looking at photographs of Mosley, this is not a proper basis for familiarity (see *Pierce*, 136 F3d at 774; see also *Sanchez*, 247 NJ at 471-472, 255 A3d at 1130; *LaPierre*, 998 F2d at 1465). Far from having interactions with Mosley in a variety of circumstances, Kilburn testified that he had never had “street” interactions with Mosley, and it is unclear whether he ever interacted with Mosley outside of the police station. Kilburn was not familiar with Mosley’s appearance at the time the shooting occurred; he did not meet him until seven months later. Nor did Kilburn know what Mosley was wearing on the day of the shooting.

Moreover, Kilburn did not connect any distinctive traits of Mosley’s to the person depicted in the surveillance photo. Before the jury, Kilburn stated that he was familiar with Mosley’s “build,” “body language,” “body type,” and the “shape of his nose.” Contrary to best practice, though, the People did not elicit these grounds for familiarity before the judge when laying the foundation for the admission of Kilburn’s testimony, which would have avoided potential prejudice and allowed for robust cross-examination on that foundation. Even aside from this point, the assertions fail to support the utility of Kilburn’s testimony. Kilburn did not specify what is unique about any of Mosley’s features, or connect those features to his identification of the image in the video. Indeed, when asked to look at a screenshot of the video, Kilburn acknowledged that due to the poor quality, there was no nose apparent on the captured face at all.

Second, the People failed to demonstrate that the jury needed Kilburn’s help. The shooter in the video did not wear a disguise, and there is no indication that Mosley’s appearance changed. If, as Kilburn testified, Mosley “as he sits there now . . . is the same as he appears in that video,” there was no reason to think that the jury would not be equally well positioned to identify

the defendant based on his appearance in the courtroom. As for the surveillance footage, the testimony tends to suggest that the quality of the video here would make it difficult for anybody to reliably identify the subject. Kilburn testified that stills of the video were so blurry that it was impossible to make out a face, and that his identification was based on being able to “zoom in” and view the video multiple times—which, rather than establishing that he was better equipped to identify the defendant in the surveillance footage than the jury, demonstrated that his identification was largely based on exactly the same evidence that the jury had before it. In short, there was no basis to conclude, based on the totality of the circumstances here, that Kilburn would be more likely to correctly identify the defendant from the video than the jury.⁸

The admission of Kilburn’s testimony in this case illustrates the challenges of cross-examination inherent in lay opinion identification testimony from law enforcement. For example, during voir dire, Kilburn testified that he could not recall ever having “street interactions” with Mosley. Yet to avoid prejudicing Mosley at trial, at the judge’s instruction, Kilburn told the jury that he knew Mosley from “canvassing” in the area around where the shooting took place. Not only did this statement overstate Kilburn’s familiarity with Mosley by implying that he had interacted with Mosley in more natural settings, but the defense was unable to thoroughly cross-examine Kilburn about this aspect of his familiarity. As other courts have acknowledged, “the choice between full cross-examination and possibly revealing the defendant’s criminal history is a difficult one” (*Farnsworth*, 729 F2d at 1162), and so we too “caution trial courts to admit this kind of identification testimony only in limited and necessary circumstances with all appropriate safeguards” (*Pierce*, 136 F3d at 776; *see also Russell*, 165 AD2d at 334-335; *United States v Butcher*, 557 F2d 666, 670 [9th Cir 1977]).

[3] Finally, the error in admitting Kilburn’s identification was not harmless. We start by asking whether “the evidence is overwhelming in the first instance,” because “unless the proof

8. Defendant argues that the trial court additionally erred in failing to specifically instruct the jury that they are the exclusive finders of fact, and that they were free to reject Kilburn’s testimony as mere opinion. Although such an instruction may be warranted where lay non-eyewitness testimony is admitted (*see Sanchez*, 21 NY3d at 225), defendant failed to request this instruction at trial.

of the defendant's guilt, without reference to the error, is overwhelming, there is no occasion for consideration of any doctrine of harmless error" (*People v Mairena*, 34 NY3d 473, 484-485 [2019] [internal quotation marks omitted], quoting *People v Crimmins*, 36 NY2d 230, 241 [1975]). Here, the evidence is far from overwhelming: The only evidence tying Mosley to the crime was the low-quality video and Kilburn's identification testimony (see *People v Mosley*, 200 AD3d 1658 [2021, Whalen, P.J. & Lindley, J., dissenting]). Without Kilburn's testimony, the People presented no more evidence than they did in their first indictment, which was dismissed for insufficient evidence. The error thus cannot be deemed harmless and requires reversal for a new trial.

Accordingly, the Appellate Division order should be reversed and a new trial ordered.

RIVERA, J. (concurring). Video surveillance recordings are regularly proffered in criminal cases to establish a defendant's guilt. Clear images of the perpetrator of course aid the trier of fact because, where identity is at issue, such images may be compared with the defendant in court. That was not the case in this appeal, where it is undisputed the video was low-quality. Indeed, nothing connected defendant to the crimes charged except the testimony of a police officer who had no personal knowledge of the crime or defendant's guilt, but who identified defendant as the person shown in a blurry video image shooting at a van. I concur with the majority that this testimony did not aid the jury in determining whether defendant was the shooter in the video, that admission of this testimony was not harmless error and that the Appellate Division should be reversed and a new trial ordered (see majority op at 642-643, 652-653). I also agree with much of the majority's analysis of the challenges and dangers that noneyewitness testimony poses, especially where, as here, the witness is a law enforcement official (*id.* at 646-647). However, I do not adopt the majority's totality of the circumstances test because it partially relies on irrelevant and subjective factors which may hinder the truth-seeking process.

Therefore, I write separately to suggest a better approach consistent with the notion that a video is of no assistance in the truth-seeking process where the image is of such poor quality that the trier of fact cannot discern the perpetrator's physical characteristics. First, such videos are inadmissible for identification purposes as a matter of law. Second, where the

video quality supports its admissibility, the trial court still must impose strict limitations on noneyewitness opinion testimony describing the video to ensure that the trier of fact independently determines whether the video depicts the defendant. Such opinion testimony is inadmissible when: (1) the image is clear enough for the trier of fact to compare with their own observations of the defendant at trial; and (2) the defendant has not changed or disguised their appearance to avoid the comparison. However, a noneyewitness may provide testimony connecting the defendant to the image in the video only when the witness has personal knowledge of a unique feature of the defendant's appearance that is not obvious in court but which the witness can point to in the video.

* * *

To be admitted, evidence must be relevant, and it must be more probative than prejudicial (*People v Telfair*, 41 NY3d 107, 114 [2023], citing *People v Ely*, 68 NY2d 520, 529 [1986]). Because the trier of fact is solely charged with determining a defendant's guilt, evidence must assist the jury in its deliberative process (*People v Russell*, 79 NY2d 1024, 1025 [1992]; *People v Huertas*, 75 NY2d 487, 493 [1990]). Thus, where a photograph or video is of such poor quality that the images are blurry and indecipherable, a court should not allow admission for identification purposes even if the photo or video may be helpful to the jurors' understanding of the scene or the surrounding events of the crime.* The majority apparently would allow testimony in those cases where a blurry, nondescript image is used for identification (see majority op at 649-650). I cannot agree because its totality-of-the-circumstances approach increases the risk of misidentification by increasing the risk that a jury will simply defer to the prosecution's suggestions that the image is that of the defendant.

When a court permits the use of a photo or video to identify the defendant as the perpetrator, a person who did not witness the crime is in almost all cases similarly situated to members of the jury in observing that evidence and determining what it depicts. The person's familiarity with the defendant's appearance is irrelevant since the video and photo "speak for itself" and the jury can simply turn to the defense table a few feet away and compare the image to the defendant.

* For example, even a blurry photo or video may be sufficient to depict the location of the victim and the shooter or whether others were present during the crime.

There are two narrow exceptions. Such testimony is admissible where the defendant's appearance has changed between the time of the crime and the time of trial, such as in *Russell*, where defendant shaved his beard immediately after the crime (79 NY2d at 1025). The testimony is also permissible where the defendant has some defining feature either in appearance or gait that is not visible to the jury—such as, for example, a limp, or a distinctive item of clothing gifted to defendant by the non-percipient witness (*People v Rivera*, 170 AD3d 566, 567 [1st Dept 2019] [defendant changed his appearance and non-percipient witnesses “recognize(d) defendant’s mannerisms and peculiar way of walking”]). In such cases, the noneyewitness must point to this defining characteristic in the video so that the jury can then decide what weight to give this testimony. To the extent the majority relies on these cases to support its proposed balancing test, these citations are inapt and should be limited to cases involving a change in a defendant's appearance.

For example, if the witness observed unique physical features of the defendant before and close in time to the crime, such as a distinctive bone structure, hair and eye coloring, facial hair, and tattoos which have changed over time, or which appear altered or intentionally masked in the footage to avoid detection, then the witness can testify to the defendant's appearance at the time of the offense even if it differs from their appearance at trial. Or, if the video showed the perpetrator had a particular gait, the witness could testify they had observed the defendant walk in the same unique manner. Also, if the image in the video shows the perpetrator wearing particular clothing known by the witness to have been worn by the defendant—such as a sweater knitted by the witness and which they gave to the defendant—then they can testify that the clothing in the video worn by the perpetrator is the same one they have observed defendant wear in the past. By contrast, a person cannot testify that, in their opinion, a blurry video depicts the defendant based on nothing more than their memory of having observed the defendant at some prior point in time and comparing that memory to the video image and the defendant's appearance in court. That is true regardless of their relationship and interaction with the defendant. To the extent the majority leans into this “factor,” I disagree that the continuum of familiarity is particularly relevant (*see* majority op 648). Such a witness provides no additional information to jurors who can

compare the video to their own in-court observations of the defendant.

When the testimony comes from a police detective, as here, their status as a law enforcement official creates an even greater risk of unduly influencing the jurors. Data shows that most jurors in criminal cases believe police testimony (Vida B. Johnson, *Bias in Blue: Instructing Jurors to Consider the Testimony of Police Officer Witnesses with Caution*, 44 Pepp L Rev 245, 296 [2017]). The jury may believe that the officer's investigative training means they have perceptive abilities superior to those of the average person. "Jurors are likely to recognize law enforcement officers' enhanced perception in discerning criminal behavior, and may therefore tend to defer to officers' opinions as to the defendant's criminal activity" (Deon J. Nossel, Note, *The Admissibility of Ultimate Issue Expert Testimony by Law Enforcement Officers in Criminal Trials*, 93 Colum L Rev 231, 246 [1993]). The jury may also speculate that an officer observed the defendant on prior occasions as part of the officer's law enforcement duties. "[T]he jury may infer that the officer has special knowledge about the defendant" and, "[a]s a number of courts have acknowledged, the jury may be led to believe that the officer's testimony is supported by information known to the officer but not presented to the jury. The jury may therefore tend to give more credence to the testimony than is warranted" (Nossel at 245). In other words, the jury may assume that the police official has access to information suggestive of the defendant's guilt.

Non-percipient witness testimony from law enforcement also adversely impacts the defendant's right to present a defense (see *Crane v Kentucky*, 476 US 683, 690 [1986]). As here, a defendant's cross-examination of the witness is limited and thus a defendant cannot fully explore weaknesses in the identification. Unlike with other non-percipient witnesses, the "cross-examination might be unfairly limited, for example, by the nature of the relationship between a criminal defendant and a law enforcement witness. In this context, the defense attorney's decision not to cross-examine fully is not a tactical choice; rather, it is the only choice—tantamount to no choice" (George Bach, *Moderating the Use of Lay Opinion Identification Testimony Related to Surveillance Video*, 47 Fla St Univ L Rev 445, 467 [2020] [emphasis omitted]). The Sixth Circuit's observations in *United States v Calhoun* aptly describe the problem: "The main defect in permitting [defendant's parole of-

ficer] to testify was that his broad assertion could not be tempered or probed by cross-examination. The defendant could not explore the possible motives his parole officer might harbor in positively identifying him as the robber” (544 F2d 291, 295 [6th Cir 1976]).

Non-percipient identifications of defendants in low-quality video or photo evidence, absent particularized identifying evidence, also increase the risk of mistaken identification. When videos are of poor quality, non-percipient witness identification “surreptitiously tends to bolster the video itself. A grainy, pixelated, or otherwise poor video might be of little help at all to a jury, but adding the lay witness may have the effect of encouraging jurors to see more in the video than they really can” (Bach, 47 Fla St Univ L Rev at 459). “Misidentification results in more wrongful convictions than all other causes combined, which corresponds with studies showing juries believe the witness making an identification up to eighty percent of the time, regardless if correct” (Dakota Kann, Note, *Admissibility of First Time in-Court Eyewitness Identifications: An Argument for Additional Due Process Protections in New York*, 39 Cardozo L Rev 1457, 1464-1465 [2018]). The potential risk is greater in cases of cross-racial identification (*People v Boone*, 30 NY3d 521, 528 [2017] [“Social scientists have found that the likelihood of misidentification is higher when an identification is cross-racial” and a meta-analysis of studies of the phenomenon found that individuals were “1.56 times more likely to falsely identify” individuals in cross-racial identifications], citing Christian A. Meissner & John C. Brigham, *Thirty Years of Investigating the Other-Race Effect in Memory for Faces: A Meta-Analytic Review*, 7 Psych, Pub Poly & L 3, 15 [2001]).

These concerns are not limited to photographs and videos. Advancements in new technologies like facial recognition software to assist in identification of perpetrators of crime may increase the risk of misidentifications and wrongful convictions (see e.g. Aziz Z. Huq, *Racial Equity in Algorithmic Criminal Justice*, 68 Duke LJ 1043, 1079 [2019] [citing studies that show facial recognition technology varied in its accuracy based on the identity of subjects, including being less accurate in identifying Black people, women, and younger people]; Dorothy E. Roberts, *Digitizing the Carceral State*, 132 Harv L Rev 1695, 1718 [2019] [reviewing Virginia Eubanks, *Automating Inequality: How High-Tech Tools Profile, Police, and Punish the Poor*

(2018)] [“A comprehensive investigation of police department facial recognition . . . found that the databases likely contain a disproportionate number of images of (B)lack people and that the software may be especially inaccurate in recognizing (B)lack people’s faces”], citing Clare Garvie et al., Center on Privacy & Technology at Georgetown Law, *The Perpetual Line-Up: Unregulated Police Face Recognition in America* [2016]).

Here, applying the approach I have described, while the video may have provided the jury with some understanding of how the underlying events unfolded, it should not have been admitted for purposes of identifying the defendant as the shooter because of its low quality. The perpetrator’s face is not clearly visible in the grainy video, and the image does not depict any unique physical features which the jury could compare to their observations of defendant at trial. Compounding the error, once the court permitted the video to be played for the jury, the court allowed the prosecution to bolster this low-quality video evidence with opinion testimony of a non-percipient, police detective witness that the indecipherable image shows defendant. There was no evidence defendant altered or masked his appearance to avoid identification, and the witness did not testify that he had personal knowledge of any unique characteristic of defendant that he could point to in the video which the jury could not observe in the courtroom.

Moreover, the facts of this case demonstrate how non-percipient identification by law enforcement substantially increases the risk of a wrongful conviction. The first grand jury indictment was dismissed for legally insufficient evidence. A few days before the second grand jury, the prosecutor asked the detective to look at the video to support making an identification. There was nothing entered into evidence to indicate that the identification procedures were non-suggestive. The detective’s identification of defendant, at the request of the prosecution, transformed this case from being legally insufficient to indict as a matter of law into a conviction, based solely on the officer’s opinion that he could clearly see defendant in a blurry, low-quality video image, when that was not possible with the naked eye. Indeed, the jury requested and was denied a magnifying glass to view that same image. Whether the video depicts defendant as a matter of fact was solely within the province of the jury to decide and the officer’s lay opinion did not aid in that determination.

Chief Judge WILSON and Judges GARCIA, SINGAS, CANNATARO and BARROS* concur. Judge RIVERA concurs in result in an opinion. Judge TROUTMAN took no part.

Order reversed and a new trial ordered.

[Next page is 901.]

* Designated pursuant to NY Constitution, article VI, § 2.

